

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

# BUILDING UP

## A Blueprint for the Alberta Accessibility and Inclusion Act

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### PART ONE

What Real Accessibility and Inclusion Actually Look Like

### PART TWO

Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### PART THREE

The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

**352 pages · 34 sections · 3 source indices · over 200 cited sources**

### The Alberta Disability System Breakdown

St. Albert, Alberta · May 2026

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All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

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# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.1 — Definition: What Accessibility and Inclusion Mean

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Before any blueprint can be built, the terms have to be defined. Public conversation about disability frequently uses *accessibility* and *inclusion* interchangeably. They are not interchangeable. They describe two distinct obligations a province owes its disabled population, and a system can deliver one without delivering the other. This document treats both as binding standards. Both must be defined before either can be measured.

## Accessibility

Accessibility is the removal of barriers in the physical, communicational, technological, programmatic, and attitudinal environments that prevent disabled people from participating in society on equal terms with non-disabled people. The Government of Canada's *Accessible Canada Act* (2019) defines barriers as anything — physical, architectural, technological, attitudinal, information-based, communication-based, or policy-based — that hinders the full and equal participation in society of persons with an impairment. The federal definition is comprehensive on purpose. It recognizes that disability is not located in the disabled body. Disability is produced by the interaction between the body and an environment that was not designed to include it.

The United Nations *Convention on the Rights of Persons with Disabilities* (UN CRPD), ratified by Canada in 2010 and binding on all provinces including Alberta, establishes accessibility as a core principle and a state obligation. Article 9 of the Convention requires States Parties to identify and eliminate obstacles and barriers to accessibility across the built environment, transportation, information and communications, and services open to the public. The obligation is not aspirational. It is a treaty commitment.

Accessibility, in operational terms, means a ramp where stairs would exclude a wheelchair user. It means plain-language documents where Grade-16 legalese would exclude a reader with a cognitive disability. It means a captioned video where audio-only content would exclude a Deaf viewer. It means a phone tree that offers a human option where automated menus would exclude a person with a brain injury, severe anxiety, or aphasia. It means a form that can be completed without a working printer, a stable internet connection, or a current driver's license. It means a public transit system that arrives where disabled people live and travels where they need to go. It means a hospital that provides interpretation, sensory accommodation, and physical access. It means a courtroom that can be entered, heard, and addressed by a person with any combination of physical, sensory, cognitive, or psychiatric disability.

Accessibility is the floor. It is the minimum a province must build for disabled people to be present in it.

## Inclusion

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Inclusion is the further obligation. Accessibility removes the barriers that exclude. Inclusion ensures that disabled people, once present, are full participants — that their presence is welcomed, their contributions valued, their needs met, their autonomy respected, and their humanity recognized as equal in every domain of life.

A wheelchair user can enter a building with a ramp. That is accessibility. Whether they are listened to in the meeting they came to attend, whether their ideas are credited, whether they are invited back, whether the agenda includes the topics they raised — that is inclusion. A Deaf student can attend a school with interpretation services. That is accessibility. Whether the curriculum reflects Deaf culture and history, whether Deaf staff are hired, whether the social environment of the school treats Deaf identity as fully equal to hearing identity — that is inclusion. A person with intellectual disability can apply for a job through an accessible application process. That is accessibility. Whether they are hired, mentored, advanced, paid equitably, and treated as a colleague rather than a charitable accommodation — that is inclusion.

The UN CRPD frames inclusion through the principle of *full and effective participation and inclusion in society* (Article 3, General Principles). Inclusion is not a sentiment. It is a structural commitment that disabled people will be present, heard, decisive, and equal in every space the non-disabled population occupies — including the spaces where decisions are made about disabled people's own lives.

Inclusion is the standard. Accessibility makes it possible. Inclusion makes it real.

## What the Distinction Means in Practice

A province can deliver accessibility without delivering inclusion. Alberta currently does this routinely. Government buildings have ramps. Government websites have alt-text on some images. Government forms exist in PDF formats that can, in theory, be read by screen readers. These are accessibility features, often partial, sometimes effective. They are not inclusion. Disabled Albertans remain absent from senior decision-making positions in the ministries that govern their lives. The Premier's Council on the Status of Persons with Disabilities — Alberta's only formal mechanism for disabled-led advisory input to government — was defunded in 2020. The Disability Action Hall, which had organized disabled Albertans for twenty-eight years, lost its core funding in 2024. The advocacy organizations that translate community knowledge into policy input have been systematically cut. Accessibility, where it exists, exists alongside the deliberate removal of inclusion.

A province can also fail at both. Alberta does this in many domains. The AISH application requires forms written at a Grade-12-to-16 reading level for a population whose largest single diagnostic categories are mental illness and cognitive disability. The Family Support for Children with Disabilities (FSCD) program operates with wait times that approach three years in some regions, foreclosing access to interventions that are clinically time-bound. The Persons with Developmental Disabilities (PDD) program serves adult Albertans with intellectual disability through waitlists that have not moved in years. None of these are inclusion failures alone. They are accessibility failures first — the basic removal of barriers has not been done — and inclusion failures second, because the population that would have demanded better has been organized out of the conversation.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The blueprint this document builds requires both. Accessibility is the floor. Inclusion is the standard. A fair province delivers both, in every domain, to every disability category, at every life stage. Anything less is not reform. It is the maintenance of exclusion under the language of progress.

## The Social Model and the Lived-Experience Definition

Underlying both accessibility and inclusion is the social model of disability — the framework, developed by disabled scholars and activists in the late twentieth century, that disability is produced by the interaction between an impaired body and an excluding environment, not by the impairment alone. The medical model treats disability as an individual problem to be cured, accommodated, or managed. The social model treats disability as a social problem to be removed by changing the environment. Both models have legitimate uses. Medical care is essential and the medical model captures that. But policy designed around the medical model alone produces what Alberta has now: a system that treats disabled Albertans as broken individuals to be processed, rather than as full citizens whose exclusion is the system's problem to solve.

The lived-experience definition is the third anchor. Disabled people themselves — through lifelong knowledge of what their conditions actually require, what supports actually work, what barriers actually exclude, and what inclusion actually looks like — hold expertise that no clinical or policy training can replicate. Real accessibility and inclusion cannot be designed without disabled people in the design rooms. The phrase *Nothing About Us Without Us*, originating in disability rights organizing in the 1990s and adopted by the UN CRPD as a guiding principle, captures the standard. Alberta's current disability policy architecture has been built largely without disabled-led advisory input, and the consequences are visible in every program the document examines.

### WORKING DEFINITIONS FOR THIS BLUEPRINT

**Accessibility** is the systemic removal of physical, communicational, technological, programmatic, and attitudinal barriers that prevent disabled Albertans from participating in society on equal terms with non-disabled Albertans. It is a treaty obligation under the UN CRPD and a statutory standard under the federal *Accessible Canada Act*. It is the floor.

**Inclusion** is the systemic guarantee that disabled Albertans, once present in any space, will be full participants — heard, valued, decisive, and equal — across every domain of life, including the rooms where decisions about disabled people are made. It is the standard the floor exists to reach.

**Real** accessibility and inclusion are distinguished from performative versions by three tests: are the barriers actually removed in the lived experience of disabled people; are disabled people actually present and decisive in the rooms that govern their lives; and is the framework grounded in lived expertise rather than imposed from outside it. A province that fails any of the three tests has not delivered real accessibility and inclusion. It has delivered the appearance of them.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## What This Section Establishes

The remainder of Part One applies these definitions to the lifecycle of a disabled Albertan — from the developmental window of early childhood through the transition to adulthood, the operation of provincial support programs, the role of family caregivers, and the moment of acquired disability — and measures Alberta's current performance against the standard the definitions establish.

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### A Note on What Comes Next

*The lifecycle frame that follows is not a description of disability as a category. What Disability Actually Means, the campaign's existing reference document, performs that function and remains the companion text to this one. The lifecycle frame in Part One is the description of the architecture a province should build to support disability across a human life, and the systematic gap analysis between that architecture and what Alberta currently provides. The argument is structural. The evidence is sourced. The conclusion is that Alberta's current direction is not the absence of architecture. It is the active dismantling of architecture that other Canadian provinces have built, the federal government has built at the national level, and international human rights law has bound Canada to maintain.*

*Part One documents what is being dismantled, why it matters, and what should replace it.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.2 — The Lifecycle Frame: Meeting People at Their Level

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Section 1.1 established the definitions: accessibility is the floor, inclusion is the standard, and both are binding obligations under federal statute and international treaty. Section 1.2 establishes the principle that governs how those obligations apply across a human life. The principle is straightforward and the system Alberta has built does not honour it. *A fair province meets disabled people at their level, at every life stage, with the kind of support their condition actually requires* — not the kind of support a politically convenient template imposes.

Disability is not a single condition or a single life stage. It enters lives at birth, in childhood, in adolescence, in working age, in middle age, in late life. It enters through genetics, through accident, through illness, through age, through chance. It produces fixed conditions, progressive conditions, fluctuating conditions, and conditions that change in unpredictable directions over decades. A support architecture designed for one disability category, one age, or one trajectory will fail every category, age, and trajectory it was not designed for. The lifecycle frame is the recognition of that reality and the structural response to it.

## The Three Modes of Support

Disability support, properly designed, operates in three distinct modes. Each mode is appropriate to a different population and a different life stage. A fair system identifies which mode applies to each person and provides the architecture that mode requires. The modes are not hierarchical. None is superior to any other. They are different responses to different clinical realities, and the absence of any one of them produces predictable harm to the populations who needed it.

### Growth

The growth mode applies where intervention can produce capacity development. Three populations belong here. Children with developmental disabilities are in the growth mode during the developmental windows of early childhood, when the brain's neuroplasticity makes intervention not merely beneficial but irreplaceable. Adults recovering from acquired disability — brain injury, stroke, spinal cord injury, post-surgical limitation — are in the growth mode during rehabilitation, when targeted therapy can restore or rebuild function. Adults adapting to newly diagnosed conditions are in the growth mode during the period of learning accommodations, assistive technology, and adapted skills.

The growth mode requires investment. Therapy. Specialist access. Equipment. Education. Vocational training where employment is realistic. The investment has documented returns: every dollar invested in early childhood developmental intervention produces multiple dollars in averted later costs, according to research summarized by the Public Health Agency of Canada and consistent across the international



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literature on early intervention efficacy. The growth mode is the most cost-effective mode the disability support system contains. A province that under-invests in growth-mode supports pays the cost downstream, in higher needs across the other two modes for decades afterward.

Alberta currently under-funds the growth mode catastrophically. The Family Support for Children with Disabilities (FSCD) program, the principal provincial vehicle for childhood disability support, operates with wait times that approach three years in some regions. Section 1.3 of this document examines what is foreclosed in that wait. The clinical answer is unambiguous: developmental windows close, and the capacity that intervention would have produced is not recoverable later. The fiscal answer is that the province pays for that foreclosure for the rest of those children's lives, through every subsequent program that has to absorb needs the growth mode would have prevented.

## Stability

The stability mode applies where the condition is managed, not cured, and where the appropriate architecture is consistent baseline support across time. Adults with chronic illness, fluctuating conditions, mental health conditions in maintenance, autoimmune disease, post-rehabilitation acquired disability, and most adult-onset disabilities live in the stability mode. The defining feature of these populations is not that they cannot work. It is that their capacity is variable, their needs are continuous, and the supports that allow them to function are the supports that must not be disrupted.

The stability mode requires the opposite of the testing-and-reassessment culture Alberta has built. It requires predictability. Consistent baseline income. Reliable medical coverage. Low-friction access to the supports that keep the condition managed. Continuity of caseworker, healthcare provider, and program rules. A stability-mode population cannot recover from constant administrative disruption, because the disruption itself becomes the destabilizing force. Every reassessment burden, every form to refile, every appeal to mount, every pharmacy denial to contest, consumes the energy the population has available for functioning. The cost is not theoretical. It is the documented pattern of mental health collapse, housing instability, and secondary disability that the AISH population describes constantly.

Alberta's current AISH-to-ADAP transition is a stability-mode failure. The transition imposes mass reassessment on a population whose condition is not changing — only the program testing them is. The 79,290 Albertans currently on AISH are, overwhelmingly, a stability-mode population. The government's own approval processes already established that. The reversal of that approval, en masse, without new clinical evidence and without independent appeal, is the imposition of growth-mode testing logic on a stability-mode population that does not benefit from it and is harmed by it.

## Lifelong Support

The lifelong support mode applies where the condition requires ongoing direct intervention with no expectation of independent self-management. Profound intellectual disability. Severe autism with high support needs. Advanced ME/CFS. Severe psychiatric conditions in active phase. Late-stage progressive neurodegenerative disease. Severe acquired brain injury with permanent care needs. Aging-related cognitive decline at advanced stages. These populations require permanent support architecture — supervised housing, group homes, day programs, family caregiver support that compensates families for the work the system would otherwise do, continuing care facilities, and the income supports that make all



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of the above sustainable.

The lifelong support mode is the mode the province most aggressively under-builds. The Persons with Developmental Disabilities (PDD) program is the principal provincial vehicle for adults requiring lifelong support, and PDD waitlists have not meaningfully moved in years. The Office of the Alberta Ombudsman's 2024 report *Denied by Design* documented systematic failures in PDD intake, eligibility, and service delivery. Adults with profound intellectual disability live with aging parents into those parents' deaths because no PDD-funded placement is available. The cost is borne by families until the families collapse. Then the cost is borne by emergency systems — hospitals, justice, homelessness response — at multiples of what proper lifelong-support architecture would have cost.

The lifelong support mode is also the mode most vulnerable to the Growth-mode testing logic that the AISH-to-ADAP transition embodies. Asking an adult with profound intellectual disability to demonstrate employment readiness, complete a 27-page reassessment, or attend a phone-tree appointment is not reform. It is structural cruelty applied to a population that the system already determined required permanent support. There is no growth here to test for. The test is the harm.

#### THE THREE MODES OF DISABILITY SUPPORT

**Growth** — for populations where intervention produces capacity development. Children in developmental windows. Adults in rehabilitation after acquired disability. Adults learning accommodations for newly diagnosed conditions. Requires therapy, specialist access, education, equipment, and vocational support where realistic. Highest cost-benefit ratio in the system.

**Stability** — for populations whose conditions are managed, not cured. Chronic illness, fluctuating conditions, mental health in maintenance, autoimmune disease, post-rehabilitation acquired disability. Requires predictability, consistent baseline income, low-friction access, and the absence of adversarial reassessment culture. Disruption itself produces secondary harm.

**Lifelong Support** — for populations requiring ongoing direct intervention with no expectation of independent self-management. Profound intellectual disability. Severe autism with high support needs. Advanced progressive disease. Requires supervised housing, day programs, family caregiver compensation, continuing care, and the income supports that sustain all of the above. Failure here produces family collapse and emergency-system displacement.

**The principle:** a fair province identifies which mode applies to each person and provides the architecture that mode requires. Substituting one mode for another — particularly substituting growth-mode testing for stability or lifelong-support populations — produces predictable, documented harm. Alberta is currently making that substitution at scale.

## Why Single-Mode Systems Fail

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The defining error in Alberta's current direction is the application of a single mode — growth-mode logic, expressed as employment-readiness, work expectations, and reassessment culture — to populations whose actual needs are stability or lifelong support. The error is structural, not individual. It cannot be fixed by softer rhetoric or better caseworker training. It can only be fixed by building a support architecture that recognizes the three modes as distinct and provides each mode in its appropriate form.

A growth-only system fails the stability population by destabilizing them through testing they cannot pass and do not need. It fails the lifelong-support population by demanding capacity development from people whose conditions preclude it. The harm is documented across the disability literature internationally. Every jurisdiction that has tried to fold permanent disability into employment-readiness frameworks has produced the same outcomes: population destabilization, increased downstream costs, family collapse, and measurable mortality.

A stability-only system fails the growth population by under-investing in the developmental windows where investment produces returns. It fails the lifelong-support population by treating them as if maintenance is sufficient when active support is required. The result is what Alberta's PDD population currently faces: no growth-mode investment in childhood, then static maintenance through adolescence, then nothing at age 18 when the school system ends, then a waitlist for the lifelong-support architecture that should have caught them at the threshold.

A lifelong-support-only system fails the growth population by under-investing in their developmental potential. It fails the stability population by treating manageable conditions as if they require institutionalization. No jurisdiction operates this way; the example is included only to make the symmetry of the failure visible. The point is that all three modes are required, in their appropriate proportions, applied to the populations they were designed for. Substitution does not work in any direction.

## What This Frame Requires of Alberta

The remainder of Part One examines Alberta's performance against the lifecycle frame at each stage. Section 1.3 examines the growth mode at its most consequential life stage — early childhood, where the FSCD program operates and where developmental windows close on a documented timeline that the wait list ignores. Section 1.4 examines the transition from childhood supports to adult supports at age 18, where the growth, stability, and lifelong-support modes must be properly assigned, and where Alberta currently strands large portions of the population by failing to build the bridge. Section 1.5 examines the role of family caregivers, who currently absorb the cost of every mode the province under-funds, and what happens when the primary caregiver dies. Section 1.6 examines acquired disability — the moment a previously non-disabled Albertan enters the system — and the comparator question that closes Part One: why the province responds with full triage architecture to acquired disability through workplace injury (the WCB model), and refuses comparable architecture to disability that arrives through any other route.

The blueprint Part Three builds is the architecture that delivers all three modes, properly assigned, across the lifecycle. The legislation Part Three proposes is the binding mechanism that protects that architecture from the political volatility that has produced the current dismantling. The argument Part Four makes is that the dismantling is a choice, made deliberately, by ministers with full biographical knowledge of what their decisions cost. The closing argument Part Five makes is that what is being dismantled is the

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architecture every Albertan will eventually need, in some mode, at some life stage, through some route none of us can predict.

The lifecycle frame is the foundation that argument is built on. A province that does not meet disabled people at their level, at every stage, with the support their condition actually requires, has not built accessibility and inclusion. It has built a system that processes disabled people through templates designed for someone else, and discards the populations the templates do not fit. That is the system Alberta currently has. The blueprint is the architecture that replaces it.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.3 — Childhood: FSCD and the Developmental Window

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The lifecycle frame established in Section 1.2 begins at birth. Of the three modes of disability support, growth is the mode that applies most powerfully in early childhood, and the mode where Alberta's failures produce the most permanent damage. The clinical evidence is not in dispute. Developmental neuroscience has established, across decades of peer-reviewed research, that the human brain has time-bound windows during which specific kinds of intervention are dramatically more effective than the same intervention provided later. Missing the window does not delay the intervention's benefit. It forecloses it. The capacity that intervention would have produced does not become available later. It simply does not develop.

This is the clinical foundation that the Family Support for Children with Disabilities (FSCD) program in Alberta exists to honour. It is also the clinical foundation Alberta is currently ignoring, at scale, through wait times that have made the foundation impossible to honour. The result is documented harm to thousands of Alberta children, and predictable downstream costs the province will pay across those children's adult lifetimes, in every program that has to absorb the needs the growth mode would have prevented.

## What Developmental Windows Actually Are

The human brain is not functionally complete at birth. It develops through a documented sequence of neurological processes — synaptic proliferation, experience-dependent pruning, myelination, cortical specialization — that occur on timelines determined by genetic programming and environmental input acting together. During specific periods of early childhood, the brain is in states of heightened plasticity that allow targeted intervention to shape neural architecture in ways that become substantially more difficult, and in some cases impossible, later in life.

The developmental neuroscience literature distinguishes between *sensitive periods*, during which the brain is particularly receptive to specific experiences, and *critical periods*, during which specific experiences are essential for normal development and the absence of those experiences can produce permanent, irreversible changes in brain structure. Both involve heightened neuroplasticity. Critical periods carry higher stakes because the foreclosure is permanent.

The Public Health Agency of Canada, in alignment with international developmental research, identifies the *first thousand days* of life as the foundational critical period for neurodevelopment. This is the period during which the brain's basic architecture for cognition, language, social processing, and emotional regulation is being assembled. The peer-reviewed clinical literature, summarized in *Infants & Young Children* and replicated across multiple journal venues, confirms the first thousand days as the window during which intervention has the greatest potential for impact and during which the absence of

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intervention produces the most consequential foreclosures.

For specific developmental disabilities, the windows are even more sharply defined. The neuroscience of autism early intervention, summarized in journals including the *International Journal of Developmental Neuroscience* and the U.S. National Institute of Child Health and Human Development, indicates that intervention beginning before age three yields substantially greater positive outcomes than intervention beginning after age five. The Early Start Denver Model (ESDM), one of the most studied early autism interventions, has produced documented IQ improvements averaging approximately 18 points in children who received intervention beginning between 18 and 30 months, compared to approximately 4 points in children receiving standard community intervention beginning later. The face-processing neural systems that support social communication develop in early sensitive periods; children who do not engage with faces during the window may not develop the specialized cortical architecture that face processing requires.

For cerebral palsy and other neurodevelopmental disabilities of motor origin, the rehabilitation literature is consistent: intervention during the first year of life, when motor cortex development is at peak plasticity, has greater impact than the same intervention delivered later. For children with prematurity-related developmental risk, intervention in the neonatal period produces better outcomes than intervention deferred until clear deficit is established.

The principle is consistent across disability categories. *Skills beget skills*, as the developmental economist James Heckman and his colleagues at the University of Chicago have summarized. Early skill acquisition raises the productivity of all later skill acquisition. The growth mode is most effective when it begins early, because the foundations it builds become the substrate that all subsequent development is built on.

## What the Investment Returns

The economic literature on early childhood intervention is unusually consistent for a field of social policy. James Heckman, Nobel Laureate in Economics, has summarized decades of research demonstrating that high-quality early childhood development programs deliver returns on investment that exceed standard returns on stock market equity. The most-cited figure is approximately 13% return per child per year for high-quality birth-to-five programs serving disadvantaged children. The aggregate return across childhood is estimated at between \$7 and \$13 in long-term economic benefits per dollar invested, with some studies producing estimates as high as \$17 per dollar.

These returns are not theoretical. They are produced through documented mechanisms: increased educational attainment, higher adult earnings, reduced criminal justice system involvement, reduced reliance on adult social services, improved physical and mental health, and reduced public expenditure across the lifespan. The Carolina Abecedarian Project and the Carolina Approach to Responsive Education, the two longest-running randomized controlled trials in early childhood intervention, have followed participants for over four decades. The economic returns have continued to accumulate across the participants' adult lives, producing the cost-benefit ratios summarized above.

For children with developmental disabilities specifically, the return-on-investment case is even stronger. The cost of failing to intervene during the developmental window is borne not only by the individual but by

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every subsequent system that has to absorb the unmet needs — the school system, the adult disability support system, the healthcare system, the criminal justice system, the homelessness response system, and the family caregivers who absorb what the public systems do not.

Heckman's central conclusion, repeated across his published work, is unambiguous: *the highest rate of return in early childhood development comes from investing as early as possible, from birth through age five, in disadvantaged families. Starting at age three or four is too little too late.* For families raising children with developmental disabilities, the urgency is greater still. The window is not metaphorical. It is a neurological reality. Investment delayed beyond the window does not produce the same returns. The returns are not deferred. They are foreclosed.

#### KEY FINDINGS — DEVELOPMENTAL WINDOWS AND ECONOMIC RETURN

**The first thousand days** — the foundational critical period for neurodevelopment, during which the brain's basic architecture for cognition, language, social processing, and emotional regulation is assembled. Source: Public Health Agency of Canada; international developmental neuroscience literature.

**Autism early intervention** — intervention beginning before age three produces substantially greater outcomes than intervention beginning after age five. The Early Start Denver Model has documented IQ improvements averaging approximately 18 points with early intervention versus approximately 4 points with later standard care.

**Heckman return on investment** — high-quality early childhood programs deliver approximately 13% return per child per year, with aggregate returns of \$7 to \$13 (some studies up to \$17) in long-term economic benefits per dollar invested. Returns exceed standard stock-market equity returns. Source: Heckman et al., University of Chicago.

**The principle** — investment delayed beyond the developmental window does not produce the same returns. The returns are not deferred. They are foreclosed.

## What Alberta Currently Provides

The Family Support for Children with Disabilities (FSCD) program is Alberta's principal mechanism for providing growth-mode supports to children under 18 with developmental, physical, sensory, mental, or neurological disabilities. The program is governed by the FSCD Act and the FSCD Regulation. It provides funding for respite, specialized services, aide supports, behavioural and developmental supports, medical-appointment-related costs, and other supports tailored to the child and family. It is the single most important intervention point in the province's disability architecture for the population in the developmental window.

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The program is currently failing the population it was created to serve. The evidence is published, and it is not contested by clinicians, families, or community organizations.

Inclusion Alberta, the province's principal advocacy organization for individuals with intellectual and developmental disabilities, conducted a survey of FSCD families across all 87 Alberta provincial electoral districts in October and November 2024. The survey results, published in January 2025, established the following:

Families currently wait an average of three years after applying to FSCD before having access to the full range of services the program was created to provide. The wait is structured across a three-stage process introduced in 2023: an eligibility decision, a Family Support Services agreement, and the multi-disciplinary review required for Specialized Services and Developmental and Behavioural Supports. Families in Stage 2 reported waiting an average of 10 months after receiving a positive eligibility decision before commencing Family Support Services. For families requiring only Family Support Services, the total wait from application is approximately 21 months. For families requiring the full range of supports, the total wait is approximately three years.

Fifty-eight percent of survey respondents reported negative effects from going without required supports. The reported effects included lost employment, missed developmental opportunities, physical and mental health challenges, and inability to meet the needs of other family members. Fifty-five percent of families receiving Family Support Services reported unmet needs that the program was not addressing. Thirty-nine percent of families receiving Child Focused Supports reported unmet needs.

CBC News reported in January 2025 that the FSCD backlog had reached over 7,000 children. The same reporting documented the case of a seven-year-old Edmonton boy diagnosed with autism four years prior, who had been waiting two years for speech therapy and other services with no end to the wait in sight. His father, Eddie Steele, described the experience publicly:

*"It kills you as a parent because all you can do is watch. You don't have any control over the situation. And in a sense, you're kind of held hostage to a degree."*

Trish Bowman, then-CEO of Inclusion Alberta, described the documented harm:

*"You know that those are critical developmental years. And when you see them slipping by, you know, there's heartbreak involved. We also hear lots of families who are really going into debt and trying to figure out whatever they can do because they're so desperate not to lose those really critical years."*

In March 2026, the Government of Alberta cut funding to three disability advocacy organizations twelve months earlier than the previously communicated end date. Inclusion Alberta's funding was reduced by \$500,000. The advocacy organizations that had documented the FSCD wait-time crisis, supported families through the application process, and translated community knowledge into policy input were defunded during the period of greatest need. The defunding pattern is examined in detail in Part Four. Its consequence for FSCD families is named here: the families currently navigating the three-year wait have lost the organizations that would have helped them navigate it.



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

## What the Wait Forecloses

The clinical evidence above and the program data above intersect in a single, unavoidable conclusion. A three-year wait for full FSCD services, for a child whose developmental window is open at age two and substantially closed by age five, forecloses the window. The Alberta government does not contest the wait time. It does not contest the developmental neuroscience. It has chosen to operate the program in a manner that allows the foreclosure to occur, repeatedly, at scale, across thousands of children currently in the queue.

For autism specifically, a child applying to FSCD at age two who waits three years for full services will receive those services beginning at age five. The peer-reviewed evidence indicates that intervention beginning before age three produces substantially greater outcomes than intervention beginning after age five. The 18-point average IQ improvement documented in early-intervention research is associated with the early window. The 4-point improvement associated with later intervention is what remains available. The 14-point difference is the documented cost of the wait.

For FASD, early diagnosis and access to services is a documented protective factor against the adult outcomes the condition is associated with when undiagnosed and unsupported. The international research, summarized by the Canada FASD Research Network and replicated in multiple Canadian peer-reviewed studies, establishes that adults with FASD who did not receive early diagnosis and intervention are over-represented in homelessness, in the criminal justice system, in mental health crisis populations, and in premature mortality statistics. A representative study of justice-involved adults in northern Canada found FASD prevalence at approximately 17.5%, with the upper confidence interval at 31.2%. A study of adult male offenders entering a federal correctional facility in Manitoba found FASD prevalence at approximately 10%. A study of Saskatchewan youth remanded for psychiatric or psychological assessment found prevalence at 23%. United States research has found lifetime incarceration rates for FASD adolescents at 32% and for FASD adults at 42%. Legal-system involvement accounts for 30 to 40 percent of the total cost of FASD in Canada, estimated at approximately CAD \$1.8 billion annually.

For cerebral palsy, motor cortex plasticity peaks in the first year of life. Rehabilitation begun in infancy produces functional outcomes that the same rehabilitation begun at age four cannot replicate. The capacity that early intervention would have produced is not recoverable through any later intervention.

For intellectual disability and global developmental delay, early intervention shapes the cognitive and adaptive capacity that determines how independently the adult can eventually live, how much of their life will require lifelong-support architecture, and how much of the adult support system will need to absorb their needs. Investment foreclosed in childhood becomes permanent expenditure in adulthood, distributed across the AISH program, the PDD program, supervised housing, group homes, family caregivers, and emergency systems.

The clinical claim and the fiscal claim converge. A province that under-funds the growth mode in childhood pays for that under-funding in every subsequent program for the rest of those children's lives. The under-funding is not a saving. It is a cost transfer — from the FSCD line item, where the investment is small and the returns are documented, to every other line item across the disability and social-services

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

budget, where the costs are larger and the returns are not produced because the foundational investment was not made.

## The Chronological Evidence Chain

Children with developmental disabilities who do not receive timely intervention during the developmental window do not simply remain in the same condition longer. They follow documented adult trajectories that the absence of childhood support directly contributes to. The pattern is consistent across the international literature, replicated in Canadian peer-reviewed research, and documented in the systems that absorb the consequences. The chain is the following:

**Childhood without timely intervention** — the developmental window closes with the capacity that intervention would have produced not developed.

**School-system disengagement** — the child enters formal education without the foundational skills the early intervention would have built. The school system attempts to remediate what the disability supports system was supposed to provide; the school system's resources are not designed for that role and cannot replicate it.

**Adolescent mental health collapse** — secondary depression, anxiety, behavioural conditions, and substance use disorders emerge in adolescence at substantially elevated rates among children with unsupported developmental disabilities. The mental illness is not separate from the original disability. It is a documented consequence of years of unsupported struggle.

**Adult homelessness, incarceration, premature mortality** — the FASD literature is the clearest example, but the pattern extends across developmental disability categories. Adults who were children whose developmental windows closed without intervention are over-represented in every system designed to catch the people the disability supports system failed to catch. Hospitals. Justice. Homelessness response. Emergency mental health. Mortality.

The cost is borne, ultimately, by the same provincial budget that under-funded the growth mode in the first place. It is borne at multiples of what proper FSCD investment would have cost. And it is borne in lives — in the documented homelessness, the documented incarceration, the documented suicides, the documented premature deaths — that the original investment would have prevented.

The chain is not speculative. It is documented across decades of peer-reviewed research, in Canadian-specific data, in the lived experience of every family currently navigating the FSCD waitlist, and in the population statistics of every adult system that absorbs the consequences. Alberta's current FSCD wait time is the documented entry point into that chain. Every child currently waiting is a downstream cost the province is choosing to incur, in exchange for an upstream saving that does not exist.

## What the Window Looks Like

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

### ILLUSTRATION — A FAMILY AT THE KITCHEN TABLE

*Imagine a parent at a kitchen table, holding a letter from FSCD that says their application has been received. The child is two years and four months old. The letter does not say when a caseworker will be assigned. The parent has been told, by other parents in the same position, that the wait for a caseworker is approximately ten months. After the caseworker, there is a meeting. After the meeting, there is an Assessment of Needs. After the Assessment of Needs, there is a Multi-Disciplinary Team review. After the Multi-Disciplinary Team review, there is a provincial review committee. After the provincial review committee, if the request is approved, the Specialized Services begin.*

*The parent does the math. Their child is two years and four months. The full range of services may begin around the child's fifth birthday. The clinical literature, which the parent has read because there has been time to read it, indicates that intervention beginning before age three produces substantially greater outcomes than intervention beginning after age five. The window the literature is describing is the window the wait list is consuming.*

*The parent has options. They can pay privately for the speech therapy, the occupational therapy, the behavioural support, the developmental aide, all of which are available from private providers in Alberta at rates the family cannot sustain. They can take on debt, as Inclusion Alberta has documented many families doing. They can give up paid employment to provide more of the intervention themselves at home, as fifty-eight percent of surveyed families have reported doing in some form. They can wait, and watch the window close, and hope that what their child becomes through later intervention is enough.*

*None of these options is what the FSCD program was created to require of them. The program was created to make these options unnecessary. The program is currently functioning as if these options are the parent's responsibility to choose between, with the public funding intended to deliver the services arriving, on average, three years after the application that triggered the eligibility for them.*

*The child does not know any of this. The child is in the developmental window now. The window closes at the rate that biology dictates, not at the rate the wait list moves.*

## What This Section Establishes

The growth mode in childhood is the most cost-effective, neurologically time-bound, and clinically consequential mode the disability support system contains. Alberta operates the principal program for delivering it — FSCD — with wait times that, on average, exceed the developmental window the program was created to honour. The harm is documented. The economic case for proper funding is established. The chronological evidence chain from unsupported childhood to costly adult outcomes is replicated across decades of international and Canadian research. The province's current direction is to maintain the

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

wait list, defund the advocacy organizations that document the harm, and pay the downstream costs across every subsequent program for the rest of those children's lives.

The blueprint Part Three builds will require, at minimum, the following commitments at the FSCD level: maximum statutory wait times tied to the developmental window the science establishes; mandatory provision of essential growth-mode services within that window; binding funding floors protected from political volatility; restored advocacy organization capacity; and a governance structure that includes families and disabled adults in program oversight as a binding requirement, not a discretionary courtesy. The legislation Part Three proposes is the architecture that makes those commitments enforceable. The argument Part Four makes is that the current direction is a choice, made deliberately, with full knowledge of the documented consequences.

Section 1.4 follows the population this section examines into the next life stage: the transition to adulthood at age 18, where the FSCD eligibility ends and where the AISH and PDD programs are supposed to catch the children FSCD was supposed to support. The same wait-list and under-funding pattern documented in Section 1.3 recurs at every subsequent stage. The lifecycle frame holds because the failure pattern is consistent. Where one program fails, every subsequent program absorbs the cost.

The growth mode is the foundation. Alberta is currently failing to build it. Sections 1.4 through 1.6 examine what happens when the foundation is not there.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1.3a — The Engineered Repudiation: Funding Starvation, Segregated Classrooms, and the 'Earn Inclusion' Cover Story (2018-2026)

Section 1.3 documented the architecture Alberta has built around children with disabilities — the FSCD program, the educational-system access barriers, and the lifecycle moments at which the architecture begins to constrain rather than support. Section 1.3a documents what Section 1.3 did not: that Alberta's policy posture toward children with disabilities is neither a passive absence of inclusion architecture nor a merely rhetorical repudiation of inclusion as a principle. The repudiation is *engineered*. It operates as a coordinated three-part system. The funding starvation makes inclusion structurally impossible by removing the educational-assistant capacity classrooms require to support neurodivergent and disabled students alongside their non-disabled peers. The segregated-classroom expansion absorbs the displaced students into specialized programs and dedicated schools. The Premier's 2026 *earn inclusion* rhetoric provides the political cover for a structural shift that the funding cut makes inevitable.

The three components compound. Without the funding cut, the segregated-classroom expansion would be unnecessary. Without the segregated-classroom expansion, the funding cut would produce an immediate and visible educational-system collapse. Without the *earn inclusion* rhetoric, the segregated-classroom expansion would be politically more difficult to defend. Each component reinforces the others. The cumulative effect is a system in which inclusive education is, in operational terms, no longer the structural baseline of the Alberta K-12 system, and in which the disability community's documented advocacy for inclusion is met with an architecture that makes inclusion increasingly difficult to deliver in practice.

Section 1.3a documents the three components in turn, the 45 years of research evidence the engineered system is ignoring, the consultation gap through which the system is being redesigned without the disability community at the table, the seclusion-room expansion that is one operational harm within the segregated environments, and the Saskatchewan parallel that gives the prosecutorial frame a regional comparator. The findings feed forward into Part Two Section 2.7a, which evaluates the engineered system against Canada's binding obligations under Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*.

## The Funding Starvation: Last in Canada, Four Years Running

The structural floor of the engineered repudiation is the funding shortfall. The shortfall is documented in the public record by Statistics Canada, by the Alberta Teachers' Association (ATA), by the Fraser Institute, and by the operational reporting of Alberta school divisions themselves. The agreement across politically and ideologically distinct sources establishes the finding as dispositive rather than contested.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Statistics Canada operational-expenditure data for the 2020/21 school year established that Alberta school boards spent **\$11,601 per student**, against a national average of **\$13,332 per student**. Alberta was last among Canadian provinces. The most recent ATA analysis, published February 18, 2025 and drawn from Statistics Canada tables 37-10-0064, 37-10-0065, 37-10-0007, and 37-10-0153, established that Alberta's per-student spending had risen to \$11,464 against the updated national average — **over 16 percent below the national average**, with the gap widening 3 percent from the previous year. ATA documentation also established that **Alberta has been last in Canada for per-student education funding for four consecutive years**. The Fraser Institute, working independently and with a centre-right ideological orientation distinct from the ATA's position as the labour organization representing Alberta teachers, reached the same conclusion in its *Education Spending in Public Schools in Canada, 2025 Edition*: Alberta ranks last in per-student education spending in Canada.

The trajectory of the gap is documented. The Fraser Institute's analysis established that, between the 2013/14 and 2022/23 school years, Alberta experienced a **17.5 percent decrease in inflation-adjusted per-student spending**. The decrease was the largest of any Canadian province. Saskatchewan, with a structurally similar fiscal context, recorded a 14.8 percent decrease over the same period. Newfoundland and Labrador, Manitoba, and Ontario also recorded decreases (11.2 percent, 3.0 percent, and 1.7 percent respectively). The five other Canadian provinces (Quebec, Prince Edward Island, Nova Scotia, New Brunswick, and British Columbia) recorded increases. Alberta's 17.5 percent decrease is the steepest in the federation.

The operational implication of the per-student gap is a substantial absolute funding shortfall. ATA President Jason Schilling stated in March 2025 that closing the per-student gap to the national average would require Alberta's education budget to reach **\$11.35 billion** in 2025-26. The actual 2025-26 education operating budget was \$9.88 billion, a \$426-million increase from the prior year but **approximately \$1.47 billion below the national-average benchmark**. The 2026 budget projection, announced February 25, 2026, set the operating budget at \$10.8 billion — a \$722-million increase, but still substantially below the per-capita benchmark required to bring Alberta to the Canadian average.

The cumulative consequence of the multi-year funding shortfall is the operational reality that the disability-community organizations, the teachers' organization, the school divisions themselves, and the parents documented in the CBC investigative coverage have consistently described: classrooms across the province do not have the educational-assistant capacity, the specialist support, or the operational resources required to deliver inclusive education to the standard the legislation, the international human rights framework, and the documented research evidence require.

## The Promise-Versus-Delivery Gap: EAs Cut, Not Hired

The funding shortfall translates into the operational reality the disability community is documenting through a documented gap between the provincial government's announced staffing commitments and the actual operational delivery of those commitments.

Budget 2025 (the 2025-26 fiscal year) committed \$1.1 billion over three years to address enrolment growth, with the allocation framed as supporting the hiring of *over 4,000 additional staff* including teachers,



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

education assistants, and support staff. The announcement was advanced as the operational answer to the documented classroom-complexity concerns the disability community, the teachers' organization, and individual parents had been raising for several years. Budget 2026 (the 2026-27 fiscal year) revised the commitment downward in operational specificity. The 2026-27 commitment is for *1,500 more education assistants and 3,000 more teachers over the next three years* — a total of 4,500 staff against the prior year's 4,000+ framing, but with a documented EA share of approximately one-third of the total. The proportional allocation is significant. Education assistants are the operational mechanism by which inclusive education is delivered in Alberta classrooms. The shift in the announced commitment toward teachers (whose role is curriculum delivery rather than disability-support delivery) and away from EAs reflects the structural direction the system is moving in: the operational support that makes inclusion possible is the support being deprioritized in the announced staffing buildup.

The operational reality on the ground has produced cuts rather than additions in significant Alberta school divisions. Three documented examples illustrate the pattern.

**Wild Rose School Division, December 2024.** The division announced it was laying off **46 educational assistants** because the federal Jordan's Principle funding through which it had been supporting Indigenous students with disabilities had not been approved on the operational timeline the division required. The division's superintendent told CBC News that the division had submitted its May 2024 funding application and had not received approval by December 2024. The Indigenous Services Canada backlog of Jordan's Principle requests as of December 2024 was reported at **14,000 requests including 2,791 urgent requests**. The Canadian Human Rights Tribunal had ordered Canada in November 2024 to address the backlog with specific deadlines; Indigenous Services Canada had described some of the ordered deadlines as *not operationally feasible*.

**Sturgeon Public Schools, June 2025.** The division announced that it had **eliminated approximately 35 support staff positions**, primarily educational assistants, after the federal Jordan's Principle eligibility for school-related off-reserve requests was substantially narrowed in 2025. The division had received \$1.9 million in Jordan's Principle funding for the 2024-25 school year. The funding stream was reduced or eliminated for 2025-26. Superintendent Shawna Warren stated that the division had completed the documentation Jordan's Principle requires and that the eligibility narrowing was *a huge loss to our First Nation children that we've been educating*.

**Hundreds of Alberta EAs lost provincially.** CBC News reporting in June 2025 established that the Jordan's Principle eligibility narrowing had produced the loss of *hundreds* of Alberta educational-assistant positions across the province. The losses fell disproportionately on First Nations students with disabilities, the population the campaign's separate 195-page Indigenous Disability Alberta evidentiary record documents in detail across seventeen sections covering historical context, mortality gap, jurisdictional fracture, healthcare, child welfare, MMIWG2S, intergenerational impact, and federal-provincial clawback dimensions.

The provincial-government commitments and the federal-government cuts have, in operational terms, cancelled each other out. The provincial promise of new EA staffing has not materialized at the scale required to offset the federal-Jordan's-Principle-driven cuts and the underlying funding shortfall. The disability community's documented operational experience, in 2026, is that there are *less*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*educational-assistant capacity in Alberta classrooms today than the system had before the announced staffing commitments were made.* The documented operational record matches the disability-community's lived advocacy position.

The educational-assistant occupational reality compounds the structural shortfall. The Tyee's documented reporting on Alberta's educational assistants, published in July 2025, established that EAs working seven-hour shifts at the top of their pay range are receiving **after-tax annual income of under \$30,000**. Alberta EAs are not earning a living wage. Recruitment and retention are structurally constrained even where individual school divisions have funding to hire. The 2024 ATA survey of 4,000 Alberta teachers established that **one in two teachers had encountered bullying or violence in the workplace, with 95 percent of the aggression occurring in person at school**. The combination of structural under-funding, federal-funding collapse, sub-living-wage EA compensation, and rising classroom complexity produces an operational system in which inclusive education is, on the documented evidence, increasingly difficult to deliver.

## The Forty-Five Years of Research the Engineered System Is Ignoring

The structural shift the engineered system is producing operates against an established research literature documenting that inclusive education produces superior academic and social outcomes for both students with disabilities and students without disabilities. Inclusion Alberta has stated publicly that the research record extends across **45 years and includes Alberta's own operational experience**. The research record is documented in peer-reviewed academic literature, in meta-analyses covering millions of students, and in multi-country comparative reviews. The record's substantive findings are dispositive rather than contested.

**The Hehir et al. (2016) comprehensive review.** Led by Dr. Thomas Hehir at Harvard University, the *Summary of the Research Evidence on Inclusive Education* reviewed 280 studies from 25 countries. The review found that students who are included in general education classrooms achieve better social and academic outcomes than students educated in segregated settings, and that inclusion produces benefits for students without disabilities as well. A 2012 Hehir study of 68,000 Massachusetts students with disabilities found that, *on average, the greater the proportion of the school day spent with non-disabled students, the higher the mathematic and language outcomes for students with disabilities*. The benefits extend beyond academic results to social-connection benefits, increased post-secondary education placement, and improved employment and independence outcomes.

**The Krämer, Möller, and Zimmermann (2021) meta-analysis.** Published in *Review of Educational Research*, the meta-analysis represented data from approximately **four million students** across the studies meta-analyzed. The analysis concluded that inclusive classrooms with students with disabilities **do not adversely impact the learning of non-disabled students and may even provide benefits for them**. The finding that inclusion is at minimum neutral and frequently positive for non-disabled students is operationally significant for the political-economy dimension of the inclusive-education debate. The premise that inclusion benefits students with disabilities at the expense of students without disabilities is, on the empirical record, false.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The longitudinal academic-achievement evidence.** Multiple longitudinal studies have established that academic achievement of non-disabled students is not adversely affected by the inclusion of students with disabilities in general education classrooms. The 2022 Polish study published in *PLOS ONE*, examining three waves of data eight months apart with latent growth curve analysis, found that changes in academic achievement (for language and for mathematics) over time were similar across inclusive education classrooms (of two types) and general education classrooms. The finding established that students *neither lose nor benefit while learning in inclusive education classrooms*. The result is consistent with the prior meta-analytic literature.

**The social-development evidence.** A 2021 review of research on academic and social effects of inclusion on students without disabilities published in the peer-reviewed literature established that, of the studies reviewed examining social outcomes for typically developing students, approximately 81 percent showed positive or neutral outcomes. The studies examining academic outcomes at the primary school level found 16 of 16 studies producing neutral or positive outcomes (four positive, twelve neutral). Negative outcomes were documented at the secondary school level in one study. The cumulative pattern established that the social development of typically developing students in inclusive classrooms is, on average, equivalent to or improved relative to non-inclusive classrooms.

**The Inclusion Alberta operational position.** Inclusion Alberta's published position on the research evidence establishes the policy implication directly:

*Research spanning over 45 years, including Alberta's own experience, has consistently shown that inclusive education leads to better academic and social outcomes for all students — those with and without disabilities. Challenges like limited resources or overcrowded classrooms must not be used as excuses to segregate students with disabilities from their peers.*

The position quoted is from Troy Hale, Inclusion Alberta's Treasurer and parent of a student with intellectual disability, in the organization's November 2025 media release calling on government to include family voices in the *classroom complexities* reform.

The accumulated research evidence is the substantive baseline against which the Alberta engineered system is operating. The system's structural direction is opposite to the direction the research evidence supports. The substantive consequence is that Alberta is, in operational terms, building a K-12 disability-policy architecture that is structurally inconsistent with the evidence base on which inclusive-education policy in comparator jurisdictions is constructed.

## The Segregated-Classroom Expansion: Where the Displaced Students Go

The funding shortfall and the EA staffing collapse produce, by structural necessity, a population of disabled and neurodivergent students for whom the general education classroom is operationally unable to provide the support they require. The provincial system's response to that population is the expansion of segregated educational settings — specialized classrooms, dedicated programs, and entire schools designed for and populated by disabled students separated from their non-disabled peers. The expansion is documented across the two largest Alberta urban school divisions and is reflected in the Alberta

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

provincial government's broader special-education reform process.

**The Edmonton Public Schools Autism Centre of Excellence.** The Edmonton Public Schools Board of Trustees approved planning funding for a dedicated school for autistic students at its April 1-2, 2025 meeting, with the school included in the division's 2026-29 capital plan. The proposal converts an existing school site into a dedicated segregated facility for the division's growing population of autistic students. EPSB Superintendent Darrel Robertson framed the proposal at the board meeting as offering parental choice and an enhanced learning environment. Inclusion Alberta director Philip Ney told the meeting:

*Segregated schools for students with disabilities are neither new nor innovative. Such schools were created because students with disabilities were long denied their right to a public education.*

The substantive context Ney's statement establishes is the historical record. Segregated schools for disabled students are the historical baseline that the inclusive-education movement has been working to dismantle for decades. Their reintroduction in the 2026 EPSB capital plan represents a structural reversal of the policy direction the disability-community advocacy and the international human-rights framework have been advancing.

The structural pattern at EPSB is documented in the division's own operational reporting. **Over the past six years, 75 percent of all new classes established by EPSB have been dedicated to the interactions program — the specialized segregated stream for students with autism and related conditions.** The division has more than 3,000 autistic students within a total student population of approximately 120,000 (approximately 2.5 percent of all students, up from 1.6 percent in 2019). Approximately 40 percent of autistic students at EPSB are enrolled in the specialized interactions programming. The remaining 60 percent are integrated into regular classrooms. The structural-trajectory finding is that the integrated proportion is shrinking and the specialized proportion is growing as the funding shortfall makes inclusion harder to deliver. Edmonton parent Kumar, quoted in the CBC News reporting on the Autism Centre of Excellence, stated that *parents are increasingly being pushed away from the integrated model and told they will get better support in the interactions program*. The expansion of the specialized stream is, on the documented community position, not the result of parental choice but of structural pressure operating against the integrated alternative.

EPSB Trustee Saadiq Sumar voted against the Autism Centre of Excellence motion, stating publicly: *Given the comments from some of the speakers I have doubts*. Sumar's position was the minority position on the Board.

**The Calgary Catholic St. Anthony School.** Calgary Catholic School District operates St. Anthony School, a 40-student dedicated school for students with severe complexity, profiled by CBC News in its *Inside the Classroom* series on April 23, 2026. The school's principal, Nicole Lavallee, described the population the school serves as students for whom *aggression is a huge one for them and sometimes the aggression is self-directed — kiddos that hurt themselves or go after others, hitting, kicking, charging*. The school's operational equipment includes specialized sensory infrastructure (stepping stones that squeak and bounce, soft rolling slides, an adult-sized bouncy chair, light strings, marble boards, bubble towers). Calgary Catholic announced plans to **open a second school like St. Anthony in Fall 2026**. The expansion is being funded through the provincial \$300-million classroom-complexity allocation in Budget

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

2026.

The pattern across both major urban Alberta school divisions is consistent. The provincial response to classroom complexity, on the documented operational record, is the expansion of segregated specialized facilities rather than the buildup of inclusive-education capacity in general education classrooms.

**The provincial Standards for Special Education replacement.** The structural shift is being formalized through a provincial-government policy-development process. The Government of Alberta announced in 2025 that it intends to replace the 2003 *Standards for Special Education* — the Ministerial Order that includes parents' legal right to choose inclusive education for their children with developmental disabilities and that provides legal avenues to appeal placement decisions. The replacement process is being conducted through two structures: the **Class Size and Complexity Cabinet Committee** (consisting of the Premier, the Education Minister, other ministers, school board members, and teachers, established October 2025) and the **Aggression and Complexity in Schools Action Team** (established July 2025, 25 members tasked with addressing classroom challenges). The replacement of the 2003 Standards is the operational-legislative mechanism through which the segregation-permissive policy framework is being substituted for the inclusion-protective policy framework that has governed Alberta special-education policy since 2003. The disability community's documented advocacy position is that the replacement should not occur without inclusive education being preserved as the structural baseline. The advocacy position is being advanced without the disability community having a structural seat at the policy-development table.

## The Aiden O'Halloran Lifecycle Case

The lived experience of the engineered system at the lifecycle level was documented by CBC News on December 15, 2025 in reporter Elise Stolte's coverage of an online forum hosted by CBC Calgary, CBC Edmonton, and the parent-support organization *Hold My Hand Alberta*. The forum gathered more than a dozen parents of children with special education needs to discuss the provincial *classroom complexities* reform process. The most operationally specific case documented in the coverage is that of Aiden O'Halloran, an Edmonton student whose lifecycle progression illustrates the pattern Section 1.3a is documenting.

In Grade 6, Aiden was in a regular Edmonton Public Schools classroom with targeted support. The educational outcomes were documented by his mother Shawna O'Halloran:

*He was getting 80s on his math tests, learning fractions, angles and double-digit addition, and keeping up with his class with targeted support.*

The structural inclusion was working. Aiden was achieving academic outcomes appropriate to his grade level with the in-classroom support the inclusive model is designed to provide.

Between Grade 6 and Grade 7, Aiden was transferred to a specialized classroom, on the school's operational position that he could no longer have speech and other therapies in the regular classroom. The educational outcomes after the transfer were documented by his mother:

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

*In Grade 7, his teachers set a new goal for him: counting to 50.*

*It was just a shock. It was back to preschool, kindergarten level. I'm not asking for him to be taught calculus, but he was excelling in Grade 6 and then that just stopped.*

The academic regression from Grade 6 mathematics (fractions, angles, double-digit addition) to a Grade 7 goal of counting to 50 is the documented operational consequence of the transfer from inclusive to specialized programming for this specific student.

The social consequences were also documented:

*All his friends, in Grade 6, he had a really tight group that were around him. Then, they all went to the community junior high and he had to go to a junior high outside of our community for this program. He lost all his friends.*

*In Grade 7, it was segregation because he wasn't allowed to go to the gym to eat lunch with the mainstream students. And he was kept away and would sit underneath the library window of his classroom.*

The mother's characterization of the experience as *segregation* is the operational reality of the structural shift the engineered system produces. Aiden was, in his mother's documented account, transferred from an integrated educational environment to an environment that prevented him from eating lunch alongside his non-disabled peers and that left him *kept away* and sitting *underneath the library window of his classroom*. The documented academic regression and the documented social isolation are the lived consequences of the transfer.

The Aiden O'Halloran lifecycle case is one documented case among a forum of more than a dozen parents who described, on the CBC reporting, *a huge variation of experiences across classrooms, schools and districts*. The variation does not undermine the pattern. It establishes that the pattern operates inconsistently across the provincial system, with some students receiving the inclusive support the research evidence supports and others receiving the segregated alternative the system's structural pressures push them toward. The structural pressure is the funding shortfall, the EA staffing collapse, and the segregated-classroom expansion that absorbs the displaced students. The lifecycle harm documented in the Aiden O'Halloran case is the operational reality the engineered system produces for the students for whom the structural pressure operates against the inclusive option.

## The Consultation Gap: Article 4(3) in Operation

The structural shift the engineered system is producing is being designed and implemented without the close consultation with persons with disabilities and their representative organizations that Article 4(3) of the *United Nations Convention on the Rights of Persons with Disabilities* requires. The Article 4(3) implications are addressed in detail in Part Two Section 2.7a; the operational consultation gap is documented in this section as part of the engineered system's structural design.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The Class Size and Complexity Cabinet Committee.** Established October 2025 to guide government policy on classroom conditions following the three-week Alberta teachers' strike, the Cabinet Committee consists of the Premier, the Education Minister, other ministers, school board members, and teachers. The Committee's appointments do not include representation from disability-rights organizations, parents of children with disabilities, persons with lived experience of disability, or organizations such as Inclusion Alberta with documented expertise in inclusive education.

**The Aggression and Complexity in Schools Action Team.** Established July 2025, the 25-member Action Team is tasked with addressing classroom challenges. Inclusion Alberta's documented position on the Action Team's composition, articulated by CEO Trish Bowman in the organization's November 17, 2025 media release, is that *there was no representation on the Action Team of parents or organizations with expertise in disability, mental health, behavioural challenges, or English Language Learners*. The Action Team's composition replicates the exclusionary pattern of the Cabinet Committee.

**The substantive Inclusion Alberta position.** Trish Bowman's documented position from the November 2025 media release is direct:

*Government must ensure that those who stand to be most impacted by the decisions related to the challenges in our education system have a central role in generating solutions that are built on research and that do not reinforce stigma and negative stereotypes. Just as teachers want a voice in these important discussions, families of children with disabilities need a seat at the decision-making table.*

The position quoted establishes the substantive Article 4(3) advocacy: the disability community is asking for the close consultation that the international human rights framework requires and that the provincial-government structure is currently not providing. The advocacy position is being advanced through media releases, through public commentary, and through the disability-community's continuing engagement with the provincial-government policy process. The advocacy has not, as of the writing of this blueprint, produced structural consultation reform. The two policy-development structures continue to operate without disability-community representation at the decision-making level.

The consultation gap is the procedural complement to the substantive structural shift. The substantive shift — from inclusion as baseline to segregation as expanding option — is being designed by structures from which the population most affected is structurally excluded. The structural exclusion is not incidental to the substantive shift; it is the procedural mechanism through which the substantive shift is being made possible. If the disability community had a structural seat at the policy-development table, the substantive shift would be politically more difficult to advance. The exclusion enables the shift.

## The Premier's Comments as Cover Story

The Premier of Alberta, Danielle Smith, has articulated publicly in 2026 a policy posture toward inclusive education that provides political cover for the engineered system's structural shift. The April 17, 2026 Premier statement was documented by Edmonton-Highlands-Norwood NDP MLA Janis Irwin and republished across multiple platforms:

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Kids in school can earn their way into inclusion, but they can earn their way out of it too.*

The statement frames inclusion as a contingent benefit available subject to the child's behaviour rather than as a structural baseline supported by the system's resourcing. The framing is the operational rationalization of the segregated-classroom expansion. If inclusion is contingent on behaviour, the children who are placed in segregated settings can be characterized as having failed to *earn* the inclusive placement rather than as having been failed by a system that did not provide the educational-assistant capacity required to support them in the inclusive setting. The political-rhetorical move is to relocate responsibility for the segregation from the system to the child.

The April 2026 statement is the second documented instance of the Premier articulating the conditional-inclusion position. Earlier YouTube documentation from December 2025 captures a substantively similar formulation in which the Premier is documented as believing that *students with disabilities need to "earn their way into a classroom."* The recurring formulation across multiple public statements establishes the position as a sustained policy posture rather than a single off-the-cuff remark.

The 2026 position is in substantive contradiction to the position the same individual articulated as a UCP leadership candidate in 2022. As a candidate, Danielle Smith was asked by Inclusion Alberta whether, if elected leader, she would provide parents with the right to choose a quality inclusive education for their children with developmental disabilities. The candidate's recorded responses included:

*We need to ensure there are enough education assistants in a classroom to fully support inclusion.*

*We need to accommodate all parent choice.*

*If we have sufficient education assistants in classrooms there should be no need for these measures. We have to resolve the staffing issues.*

The 2022 position identified inclusion as a resourcing-and-staffing matter, identified parental choice for inclusion as the operational standard, and identified the elimination of seclusion-and-restraint measures as the policy goal contingent on adequate classroom staffing. The 2026 position identifies inclusion as contingent on the children's behaviour rather than the system's resourcing.

**The substantive shift between the 2022 candidate position and the 2026 Premier position is documented.** The shift's substantive content is significant: the responsibility for inclusion has been relocated from the system to the child. *What changed between 2022 and 2026 is not the children. What changed is the funding.* The provincial system's per-student spending has continued to fall further behind the national average, the educational-assistant capacity has been cut through the Jordan's Principle collapse and the underlying funding shortfall, the segregated-classroom expansion has accelerated, and the structural pressure on inclusive placement has intensified. The Premier's rhetorical shift is the political-cover dimension of these structural shifts. The 2022 candidate-Smith analysis — that inclusion is a staffing matter and that elimination of seclusion-and-restraint measures is contingent on adequate staffing — was substantively correct and remains the operational analysis the disability-community advocacy position has continued to advance. The 2026 Premier-Smith rhetoric is the political cover for the system's failure to deliver the staffing the 2022 candidate analysis identified as the precondition for inclusion.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Seclusion-Room Expansion Within the Engineered System

The seclusion-room expansion that has occurred in Alberta K-12 since 2019 is one operational harm within the engineered system's broader segregation architecture. The expansion is documented in Section 1.3a as part of the engineered system's operational reality rather than as the central feature of the system. The central feature is the segregation produced by the funding shortfall and the segregated-classroom expansion. The seclusion-room expansion operates as an additional layer of involuntary confinement within both the integrated and the segregated educational settings, with disproportionate impact on students with developmental and intellectual disabilities and the autism spectrum.

The operational record is documented. The 2018 *Inclusion Alberta Survey on the Use of Seclusion and Restraint in Schools* documented that 80 percent of 400 surveyed Alberta families reported their children were left traumatized or in emotional distress by the experience of seclusion-and-restraint in school settings, and that more than half of the children placed in isolation were on the autism spectrum. The 2018 New Democratic provincial government banned seclusion rooms following the documented Strathcona County 2018 lawsuit. On September 1, 2019, then-Education Minister Adriana LaGrange of the United Conservative Party government reversed the ban through Ministerial Order #042/2019, replacing the prohibition with a *standards* framework permitting the practices the ban had prohibited.

The post-2019 operational record is documented through CBC News investigative reporting and through Inclusion Alberta's continuing Freedom of Information advocacy. As of April 2024, Alberta operated **263 seclusion rooms** across the K-12 system, with EPSB accounting for 167 of those rooms (63 percent of the provincial total despite enrolling 14 percent of K-12 students). As of 2024-25, Alberta operated **116 seclusion rooms across 11 of 59 public and Catholic divisions, with students confined more than 7,000 times during the prior school year**. The St. Albert School Division — the school division within which the campaign producing this blueprint operates — was among the divisions confirmed as continuing to operate seclusion rooms in 2024-25.

The EPSB has, since 2024, advanced a stated phase-out of seclusion-room infrastructure, reducing the number of operational rooms from 167 to 105 between 2024 and May 2025 and decommissioning 62 rooms over that period. Between September 2024 and April 2025, EPSB recorded **445 non-self-selected seclusion-room uses** — an average of approximately 56 instances of locked involuntary confinement per month within a single Alberta school division. The phase-out trajectory is in the right direction. The phase-out has not eliminated the practice. The continued operational use of involuntary confinement, against students who are disproportionately autistic and developmentally disabled, is one operational harm within the broader engineered system.

The seclusion-room expansion's relationship to the funding shortfall and the segregated-classroom expansion is direct. Seclusion rooms are concentrated in the specialized programming streams (the interactions programs) and in the dedicated facilities for students with severe complexity. Students placed in segregated settings are at disproportionate risk of involuntary confinement within those settings. The segregation and the seclusion compound. The system that produces the segregation through the funding shortfall and the segregated-classroom expansion also produces the conditions in which involuntary confinement is operationally normalized within the segregated environments.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Saskatchewan Parallel

The engineered repudiation pattern Section 1.3a documents is not unique to Alberta. The Government of Saskatchewan has, in 2025-2026, advanced an analogous policy direction through its **Specialized Support Classroom Pilot Project**. National disability-rights organization Inclusion Canada published a press release in November 2025 documenting the organization's position that the Saskatchewan project is *a euphemism for segregation*. The Saskatchewan pilot project's substantive content — the placement of students with disabilities in specialized classrooms separated from their non-disabled peers, framed as targeted support but operating as structural separation — matches the substantive content of the Alberta segregated-classroom expansion documented above.

The Saskatchewan parallel is significant for two reasons relevant to Section 1.3a's prosecutorial framing.

First, the parallel establishes that the Alberta engineered repudiation is not an isolated provincial-government anomaly. It is part of a broader pattern in which centre-right Canadian provincial governments are advancing structural shifts away from inclusive education and toward expanded segregated programming. The pattern is being challenged by the disability community in both provinces through documented advocacy, but the structural shifts are continuing.

Second, the parallel is significant in light of the Saskatchewan comparator analysis Part Two Section 2.6 documented. Saskatchewan enacted comprehensive accessibility legislation in 2023 under a Saskatchewan Party government — the political party most ideologically and structurally similar to Alberta's United Conservative Party — and the legislation includes statutory consideration of the UN CRPD in standards development. The fact that Saskatchewan has comprehensive accessibility legislation and is *still* advancing a segregated-classroom pilot project that Inclusion Canada characterizes as segregation establishes that comprehensive accessibility legislation is necessary but not sufficient to prevent structural shifts away from inclusive education. Alberta, which lacks comprehensive accessibility legislation, is advancing the same structural shift without the legislative-architecture safeguards that Saskatchewan at least has on the books even where they are being insufficiently applied.

The Saskatchewan parallel reinforces the case for the comprehensive Alberta accessibility legislation Part Three of this blueprint will propose. The legislation must include education as a stand-alone accessibility area, must operationalize the Article 24 inclusive-education obligation in the substantive provisions, must prohibit the segregation-permissive policy frameworks the engineered system is advancing, and must require the close consultation with persons with disabilities that Article 4(3) of the Convention requires and that the Alberta policy-development structures are currently bypassing.

## What Section 1.3a Establishes

Alberta's policy posture toward children with disabilities in 2026 is an engineered three-part repudiation of inclusion as a guiding principle. The structural floor is the funding shortfall: Alberta has spent the least per student of any Canadian province for four consecutive years, the gap is widening at approximately 3 percent per year, and the cumulative inflation-adjusted decrease over the past decade is 17.5 percent —

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the steepest of any Canadian province. The operational consequence is that the educational-assistant capacity required to deliver inclusive education is not present in Alberta classrooms at the scale required, with hundreds of EA positions cut through the Jordan's Principle eligibility collapse and with announced provincial staffing commitments not materializing on the operational timelines required.

The structural absorption mechanism is the segregated-classroom expansion. EPSB's 75-percent-segregated-stream new-class allocation over the past six years, the planned Autism Centre of Excellence, the Calgary Catholic St. Anthony school and its planned second sister facility, and the broader provincial replacement of the 2003 *Standards for Special Education* are documented operational evidence that the system is responding to the inclusion-impossibility-by-design of the funding shortfall by absorbing displaced students into segregated settings rather than by funding inclusion adequately. The Aiden O'Halloran lifecycle case documented in the CBC News reporting establishes the operational reality of the absorption: a Grade 6 student achieving 80 percent on math tests with targeted support became a Grade 7 student whose academic goal was reduced to *counting to 50* and who was *kept away* from his non-disabled peers underneath the library window of his classroom.

The political-cover mechanism is the Premier's *earn inclusion / lose inclusion* rhetoric. The April 17, 2026 statement and the prior December 2025 documentation establish the conditional-inclusion position as a sustained policy posture. The substantive shift between the 2022 candidate-Smith position (inclusion as staffing matter) and the 2026 Premier-Smith position (inclusion as contingent on children's behaviour) is documented in the public record. The shift relocates responsibility for the segregation from the system to the child. The 2022 candidate analysis — that adequate educational-assistant staffing is the precondition for inclusion — remains the substantively correct analysis. The 2026 Premier rhetoric is the political cover for the system's continuing failure to deliver the staffing.

The 45 years of research evidence the engineered system is operating against, documented across the Hehir 2016 review of 280 studies, the Krämer 2021 meta-analysis covering approximately four million students, multiple longitudinal studies, and the consistent peer-reviewed academic literature, establishes that inclusive education produces superior academic and social outcomes for students with disabilities and produces neutral-or-positive outcomes for students without disabilities. The structural direction Alberta is moving in is opposite to the direction the research evidence supports.

The consultation gap through which the engineered system is being designed and implemented — the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation — is the procedural complement to the substantive shift. The disability community is not at the table where the policy that affects them is being designed.

The seclusion-room expansion, with 7,000+ confinements during the most recent complete school year and continuing operation in 11 of 59 public and Catholic divisions plus the St. Albert division, is one operational harm within the engineered system rather than the central feature of it. The central feature is the segregation. The seclusion is the additional involuntary-confinement layer that operates within the segregated environments.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Saskatchewan parallel, with Inclusion Canada documenting the Saskatchewan Specialized Support Classroom Pilot Project as a *euphemism for segregation*, establishes that the Alberta engineered repudiation is part of a broader pattern challenging the disability community in both Western Canadian provinces simultaneously.

The lifecycle implications for Alberta children with disabilities are direct. The foundational years of educational development are spent in a system whose engineered structural design produces segregation by funding starvation, expands segregation through specialized programming and dedicated facilities, and provides political cover through conditional-inclusion rhetoric that relocates responsibility for the segregation from the system to the children. The cumulative effect on the children who are subject to the architecture is documented in the parental accounts, the Inclusion Alberta surveys, the CBC investigative coverage, and the academic and policy literature this section has cited. The lifecycle frame Section 1.4 will then carry into the transition-and-AISH-and-PDD architecture begins, structurally, in the K-12 system. The damage done in the K-12 system compounds across the lifecycle.

The international human rights implications of Alberta's engineered K-12 system, including the Article 24 (right to inclusive education) implications and the Article 4(3) (consultation obligation) implications of the documented record, are addressed in Part Two Section 2.7a. The two addenda together establish the most complete documented record of Alberta's specific position on inclusive education for children with disabilities and of the gap between that position and the international human rights framework Canada has bound itself to.

The relevant prosecutorial point for closing Section 1.3a is the same point Section 1.3 closed on: the architecture is the choice. The architecture's implications for children with disabilities are the operational consequences of the choice. The choice is, on the documented record, reversible. The blueprint Part Three develops will document what the alternative architecture should look like and how it should be sequenced into operation. Section 1.4 returns to the lifecycle frame at the transition point from K-12 into adulthood, the point at which the Alberta architecture transfers responsibility from the educational system to the AISH-and-PDD-and-FSCD-and-WCB architecture documented in the rest of Part One.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.4 — Transition and Adulthood: PDD, AISH, and the Architecture That Should Catch People

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Section 1.3 followed the disabled child through the developmental window and documented Alberta's failure to provide the growth-mode supports the science establishes as time-bound and the economic literature establishes as cost-recovering. Section 1.4 follows the same population into the next life stage. At eighteen, a disabled Albertan crosses two thresholds simultaneously. Family Support for Children with Disabilities (FSCD) eligibility ends. School-system supports end. The adult disability architecture is supposed to catch the child the previous architecture was supposed to support. The principal mechanisms are the Persons with Developmental Disabilities (PDD) program for adults requiring lifelong-support architecture, and the Assured Income for the Severely Handicapped (AISH) program for adults requiring stability-mode income support.

Both programs are currently failing. The failures are documented, sourced, and quantified. They are not the result of insufficient resources, novel demand, or unforeseen population growth. They are the consequence of deliberate program design choices that have made the bridge between childhood and adulthood, for disabled Albertans, a cliff. The same lifecycle-frame failure pattern documented in Section 1.3 recurs at the adulthood threshold, with the same structural error: the system accepts the disability as the basis for eligibility, then deploys the disability as the barrier to navigating eligibility. The contradiction is documented in Alberta's own program data. It is unsustainable as policy and unconscionable as law.

This section examines what the adult architecture should provide, what Alberta currently provides, and what the cumulative failure produces.

## The Cliff at Eighteen

A disabled child raised under Alberta's current architecture arrives at the eighteenth birthday in one of two situations. In the first, the child has been receiving FSCD services and school-system supports throughout childhood, and the family has navigated the transition planning that the FSCD program is supposed to provide. In the second, the child has been on the FSCD waitlist for some or all of childhood, has received partial or no FSCD services, and arrives at the eighteenth birthday with the developmental window already foreclosed and no transition plan in place. In both situations, the child is now legally an adult, FSCD eligibility has ended, school supports are ending or about to end, and the adult disability architecture must absorb whatever the previous architecture has produced.

The Government of Alberta's own AISH application guidance directs applicants to *apply for AISH six months before you turn 18*. The directive is reasonable on its face. It assumes that the family or the disabled adult-to-be has the administrative capacity to identify the deadline, understand the application requirements, gather the necessary documentation, navigate the form, secure a physician appointment,

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

pay the physician fee for completion of the Part B Medical Report, and submit the complete application package within the window. For the population the program is designed to serve — adults with severe and permanent disabilities, including cognitive disability, intellectual disability, severe mental illness, and the comorbid conditions that frequently accompany them — this directive is the entry point into the structural contradiction the rest of this section examines. The administrative capacity the directive assumes is the administrative capacity the disability the program tests for routinely impairs.

For PDD, the parallel process operates on a separate timeline and through separate criteria. PDD applications are accepted from individuals sixteen years old and up, with the eligibility threshold defined as a developmental disability with onset before age eighteen, an IQ at or below seventy, and significant adaptive skill limitations. The program serves over 13,000 adults with intellectual disabilities. Many adults qualify for both PDD and AISH and apply to both. PDD approval after August 2009 substitutes for the AISH Part B Medical Report, which is the program architecture's one functional integration point: a person already medically established as eligible for one program does not have to be medically re-established as eligible for the other.

Beyond that single integration, the cliff is structural. The two programs operate independently, with separate caseworker systems, separate review processes, separate eligibility timelines, and separate appeal mechanisms. The disabled adult turning eighteen must navigate both, if both apply. The family that supported the child through FSCD must rebuild its understanding of an entirely different administrative architecture for the adult systems. The community organizations that supported the FSCD application have been defunded or under-resourced, as documented in Section 1.3. The transition is, for many families, the moment at which the supports the child had been receiving simply end, and the supports the adult might receive depend on a multi-month, multi-stage application process the family must navigate without the institutional knowledge the previous decade required them to build for a different program entirely.

## What PDD Is Supposed to Deliver

The Persons with Developmental Disabilities program is the lifelong-support architecture in Alberta's adult disability system. It is the program that funds the residential support, employment support, and community participation supports that adults with intellectual disabilities require to live, as the program's own website states, *as independently as possible in their community*. Services may be delivered through one of approximately 160 contracted non-profit and for-profit providers, or through Family Managed Services (FMS), an individualized self-directed funding model under which the adult or family hires support workers and manages care directly.

PDD's design, on paper, is appropriate to the lifelong-support mode the population requires. In operation, the program is failing the population it serves and the population on its waitlist, in ways that Inclusion Alberta documented in its January 2025 survey report *Current State: Critical & Urgent: Experiences with Persons with Developmental Disabilities*. The survey collected responses from 540 individuals across 79 of Alberta's 87 provincial electoral districts in October and November 2024. The data establishes the following:



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Of survey respondents waiting for an eligibility decision, the average wait was 144 days, or approximately four and a half months. Of respondents who had recently received an eligibility decision, 39 percent had waited ten months or longer for that decision after applying. Of respondents who had received a positive eligibility decision but had not yet received PDD services, the average wait was 14 months from the date of the eligibility decision. Of respondents waiting without any PDD services, 70 percent had not met with a caseworker to develop an Outcome Plan — the document that drives all subsequent service decisions and budgets under the program.

For respondents already receiving PDD supports, 41 percent reported that the supports they were receiving did not meet their needs. Inclusion Alberta documented, through its direct advocacy work with families across the province, that PDD has been operating under a *critical and urgent needs* eligibility threshold, under which 100 percent of requests not deemed critical, urgent, or related to employment are being rejected. The report describes the threshold as a structure under which adults with intellectual disabilities are denied support until their circumstances deteriorate to the point of crisis, and notes that requests are frequently rejected informally by caseworkers without ever being documented or submitted to a manager. Where formal decisions are not issued, families are not informed of their right to appeal.

Inclusion Alberta's executive summary of the survey is direct:

*"Respondents describe valuable years of life being squandered for adults who remain isolated at home, their skills unused, potential untapped, dreams fading, and health declining."*

The program's own funding history compounds the documented harm. PDD received a budget increase in 2024 that was below the rate of population growth and inflation, in a year of unprecedented Alberta population growth that added pressure to the program. The advocacy organizations that documented these patterns lost provincial funding in March 2026, twelve months earlier than the previously communicated end date. The architecture intended to provide lifelong support to adults with developmental disabilities is, in operation, providing crisis-response triage to the subset of adults whose circumstances have deteriorated sufficiently to qualify under the urgent and critical needs threshold, while leaving the rest of the eligible population on a waitlist with no defined end.

## What AISH Is Supposed to Deliver

The Assured Income for the Severely Handicapped program is the income support program for adults with severe and permanent disabilities that substantially limit the ability to earn a livelihood. As of June 2025, the program served 79,331 Albertans. The current maximum monthly living allowance is \$1,940. In addition to income, AISH provides health benefits coverage including prescription drugs, basic dental, basic optical, and certain medical equipment and supplies. The program also provides a child benefit for AISH recipients with dependent children, and personal benefits available on a case-by-case basis to recipients with no more than \$5,000 in non-exempt assets.

AISH is, in lifecycle-frame terms, a stability-mode program. The conditions that qualify a person for AISH are, by program definition, permanent. The eligibility criterion is that the disability substantially limits the ability to earn a livelihood. The program's design assumption is that recipients remain eligible across time unless their condition meaningfully changes. The architecture is, on paper, appropriate to the stability

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

mode it serves.

The application process is where the structural contradiction begins. The AISH application has two parts. Part A is completed by the applicant or their personal representative and collects information on identity, age, residency, employment history, training history, income, assets, cohabiting partner status, and any dependent children. Part B is the Medical Report, completed by the applicant's physician or specialist. The Medical Report has ten sections covering applicant information, the relationship between the applicant and the completing physician, diagnoses, symptoms, levels of impairment, medication history, treatment plans, prognosis, additional supporting comments, and the physician's signature. The applicant is responsible for the cost of the physician completing the report, which can range from approximately \$100 to several hundred dollars depending on the physician and the complexity of the case. The cost is covered for applicants on Income Support; it is not covered for applicants who are not.

Once submitted, the AISH application is reviewed by a disability adjudicator who determines whether the medical eligibility threshold — severe and permanent disability that substantially limits the ability to earn a livelihood — is met. The applicant may be asked for additional information. The decision is communicated by mail. If the application is denied, the applicant has the right to appeal under the AISH appeal architecture, which historically included the Citizens Appeal Panel as an independent review body. That right has been substantially altered by the legislative changes documented later in this section.

For applicants newly turning eighteen, the application process must be initiated approximately six months before the eighteenth birthday, per Government of Alberta guidance. For applicants who already qualify for PDD, the PDD approval substitutes for the Part B Medical Report. For all other applicants, the full process — physician appointment, payment, completion, submission, adjudication, decision — must be navigated independently, in advance, by a person whose disability is the basis for the application being made.

The application is the entry point into the stability mode. It is also, by its design, a growth-mode test — it requires the applicant to demonstrate the executive function, administrative capacity, financial wherewithal, and forward planning that the population the program serves is, by program definition, substantially impaired in. The contradiction is examined in the next section.

## The Structural Contradiction

The Government of Alberta has, through the AISH adjudication process, formally determined that 79,331 Albertans have severe and permanent disabilities that substantially limit their ability to earn a livelihood. The determination was made by Alberta's own contracted medical professionals, against Alberta's own statutory criteria, after review of medical evidence submitted by physicians who treat the applicants. Each individual determination is the province's own formal finding that the population in question requires the support the program provides.

The same Government of Alberta has designed an ongoing compliance and reassessment architecture that requires those same 79,331 Albertans to perform the following administrative tasks, on an ongoing basis, throughout the period of their eligibility: read and complete forms written at a Grade 12 to 16 reading level; navigate phone trees, online portals, and call-centre service models without continuity of

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

caseworker relationship; produce annual income tax filings with no taxable income and no refund; respond to information requests, provide updated medical documentation, and contest pharmacy denials, billing errors, and benefit reductions when they occur; meet deadlines that do not flex for medical flares, hospitalizations, or the cognitive consequences of the conditions the program serves; and, beginning July 1, 2026, navigate the transition to a new program (ADAP) and the reassessment that transition entails, without the right to appeal the transition decision itself.

The defining clinical features of the largest AISH diagnostic categories — cognitive disorders (28.3% of the caseload), mental illness disorders (30.2%), and the cognitive-mental-health overlap that produces multi-condition profiles in many recipients — include difficulty with sustained executive function; difficulty processing complex written communication; difficulty initiating, sequencing, and completing multi-step administrative tasks; difficulty navigating institutional systems without external support; reduced reliable access to phone and digital communication during symptomatic periods; and reduced energy reserves available for the kind of administrative work the system requires. These are not aspersions cast on the population. They are the diagnostic criteria. They are what the medical professionals contracted by Alberta documented, and what the AISH adjudication process formally accepted, when the population was approved for the program in the first place.

The contradiction is structural, not individual. The system has approved the population on the basis of limitations that the system then ignores when designing the compliance architecture the population must navigate. The cost is documented: every reassessment burden, every form to refile, every appeal to mount, every pharmacy denial to contest, consumes the energy the population has available for functioning. The destabilization is the harm. The program designed to provide stability is, in operation, the source of the destabilization. The recipients describe this constantly. The system does not, in its current design, register the description as a problem with the system. It treats the description as a complaint about a process that the recipients are, in the system's view, simply required to complete.

The structural contradiction is the lifecycle frame's central diagnosis at the adulthood stage. A stability-mode program operated through growth-mode testing logic is not a stability-mode program. It is a stability-mode program in name, with growth-mode demands attached, applied to a population the system has already determined is not in the growth mode. The harm is foreseeable. The harm is foreseen. The harm is documented. The architecture continues.

## The Compound Failure: Bill 12 and the AISH-to-ADAP Transition

On December 9, 2025, the Government of Alberta passed Bill 12, the *Financial Statutes Amendment Act, 2025*. The bill made fourteen separate legislative changes simultaneously, including the structural restructuring of Alberta's adult disability income support system. The changes specific to AISH and the new Alberta Disability Assistance Program (ADAP) include the following:

The AISH definition is narrowed. Under Bill 12, AISH eligibility now requires *a severe disability that permanently prevents employment*. The previous statutory criterion — *substantially limits the ability to earn a livelihood* — is replaced by a stricter binary test: prevention of employment, rather than substantial limitation of earning capacity. The detailed regulatory definition of *prevents employment* is not in the legislation. It will be set in regulation, after the legislation has passed, by the Minister.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

ADAP is created as a separate program. ADAP eligibility requires a *severe disability that substantially impedes employment*. The detailed regulatory definition of *substantially impedes* is also not in the legislation. It will also be set in regulation. The two definitions sit alongside each other in the same statute without further specification, leaving the operational distinction between *prevents* and *substantially impedes* to be determined by the Minister at a later date.

All current AISH recipients are automatically transferred to ADAP. Section 12.6 of Bill 12 grants the government the authority to reassess and reclassify existing AISH recipients into ADAP. To remain on AISH, each recipient must reapply through a new Medical Review Panel and demonstrate that they meet the narrower *prevents employment* standard. The Medical Review Panel's decisions are final.

Appeals of the AISH-to-ADAP transition decision are barred. Section 12.8 of Bill 12 specifies that when an individual is transitioned from AISH to ADAP, the transition decision cannot be appealed.

The Minister can limit other appeal categories. Section 10(2)(e) of Bill 12 grants the Minister authority to determine which categories of decisions the Citizens Appeal Panel is permitted to hear. If the Minister removes a category from appeal jurisdiction, no further independent review of decisions in that category is available.

Cost-of-living indexation is removed from legislation. Bill 12 repeals Schedule 1 of the prior statute, which had outlined the legislated mechanism for adjusting AISH benefits by the Alberta Escalator. Future cost-of-living adjustments are left to regulation and ministerial discretion, with no statutory floor.

The financial consequences for recipients moved from AISH to ADAP are documented. The maximum monthly living allowance for AISH is currently \$1,940. For ADAP, the maximum is \$1,740 — a \$200 reduction, equivalent to a 10 percent cut. The earnings exemption shrinks dramatically: under AISH, the first \$1,072 per month of employment income is fully exempt; under ADAP, the fully exempt amount is \$350 per month, with benefits then phased out on a sliding scale until eliminated entirely at approximately \$45,000 in annual income. Inclusion Alberta has documented that the earnings exemption reduction represents a 67 percent cut to the fully exempt portion.

The \$200 monthly reduction is the difference, for many recipients, between marginal subsistence and acute hardship. One AISH recipient interviewed by Inclusion Alberta described the figure directly:

*"The difference between getting uncovered prescriptions paid for or having groceries for the month. The difference between almost living and barely existing."*

The Government of Alberta's stated rationale for ADAP is that it expands employment supports for Albertans with disabilities who are still able to work. The data does not support the rationale. As of June 2025, of the 79,331 Albertans on AISH, approximately 13,000 (16 percent) had some employment earnings. Over 66,000 (84 percent) had no employment earnings. University of Calgary economist Gillian Petit, quoted in CTV News reporting on Bill 12, described the 84-percent figure as a *very big hurdle* for the government's work-first rationale. Inclusion Alberta has documented that even minimal work would not, under the ADAP design, leave most recipients better off than under the current AISH structure unless they could secure employment income exceeding \$350 per month at sustainable rates — a threshold that is structurally unrealistic for the population the program serves, in a labour market with provincial

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

unemployment exceeding 8 percent and youth unemployment exceeding 16 percent in 2025.

Five Alberta municipalities — Red Deer, Edmonton, Lethbridge, Camrose, and Calgary — have passed or initiated motions calling on the province to pause the ADAP transition. Bradley LaFortune of Public Interest Alberta has stated publicly that changing fourteen laws at once and stripping indexation and appeal rights undermines transparency and access to administrative fairness. The Minister of Assisted Living and Social Services has responded that the criticism is misinformation and that the transition will proceed as scheduled.

The transition takes effect July 1, 2026.

#### BILL 12 — KEY STRUCTURAL CHANGES TO AISH

**Bill 12 narrows AISH eligibility** — from *substantially limits the ability to earn a livelihood to permanently prevents employment*. The detailed definition is left to regulation.

**All 79,331 current AISH recipients are automatically transferred to ADAP** on July 1, 2026. Section 12.6 grants the authority. To remain on AISH, recipients must reapply through a new Medical Review Panel whose decisions are final.

**Appeal of the transition decision is barred** under Section 12.8. The Minister gains authority under Section 10(2)(e) to limit which categories of other decisions the Citizens Appeal Panel may hear.

**Statutory cost-of-living indexation is removed.** Schedule 1 of the prior statute, which legislated annual adjustment by the Alberta Escalator, is repealed. Future adjustments are at regulatory and ministerial discretion.

**The financial cut is documented.** AISH maximum: \$1,940/month. ADAP maximum: \$1,740/month. The \$200 monthly reduction equals 10 percent. Earnings exemption cut from \$1,072 to \$350 (a 67 percent reduction in the fully exempt portion).

**The data does not support the rationale.** 84 percent of AISH recipients have no employment earnings. Provincial unemployment exceeds 8 percent; youth unemployment exceeds 16 percent. Five municipalities — Red Deer, Edmonton, Lethbridge, Camrose, Calgary — have called for a pause.

## What the Lifecycle Failure Produces

The PDD waitlist, the AISH adjudication burden, and the AISH-to-ADAP transition together constitute the adult-stage manifestation of the lifecycle failure pattern documented across Part One. The pattern is consistent at each stage. A program designed to deliver one mode of support — growth in childhood under FSCD, lifelong support in adulthood under PDD, stability in adulthood under AISH — is operated

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

under a different mode's logic, with predictable, documented harm to the population the program was designed to serve.

For the disabled child whose FSCD eligibility ends at eighteen, the cliff is the entry point. The child becomes an adult who must independently navigate two separate program applications, secure physician appointments and pay physician fees, document medical history that has been compiled over a lifetime, and meet administrative deadlines that the disability the application is for routinely impairs the capacity to meet. If PDD applies, the wait for an eligibility decision averages four and a half months, with thirty-nine percent waiting ten months or longer. The wait for services after a positive decision averages fourteen months. If AISH applies, the application can be initiated six months before the eighteenth birthday but the adjudication process operates on its own timeline. The newly-adult disabled Albertan who turned eighteen yesterday is, in many cases, navigating these processes from a position of no income, no caseworker, no continuity of childhood support, and no established adult medical relationships of their own.

For the family that has supported the child through childhood, the cliff is the moment at which the institutional knowledge they built about FSCD becomes obsolete and the institutional knowledge they need about PDD and AISH does not yet exist. The advocacy organizations that translated community knowledge into navigation support — Inclusion Alberta, the Disability Action Hall, the affiliates of both — have been progressively defunded, as documented in Sections 1.1 and 1.3. The family is, in many cases, navigating the transition without external support, while continuing to provide the care the adult systems are slow to absorb.

For the system, the cliff is invisible by design. The PDD program tracks the urgent and critical cases it approves; it does not, per Inclusion Alberta's documentation, accurately track the population that is denied or that does not receive a formal decision. The AISH program tracks the recipients who navigate the application successfully; it does not track the disabled adults who never apply because the application barrier is insurmountable, or who apply, are denied, and do not appeal because they were not informed of the right to appeal. The compound failure is borne by the population. The aggregate cost is borne by every downstream system — healthcare, housing, justice, family caregivers, emergency services — that absorbs the consequences of the upstream program failures.

The lifecycle failure pattern is not a series of separate program problems. It is one coordinated structural failure that recurs at each life stage. Section 1.3 documented the failure in childhood. Section 1.4 has documented it at the transition to adulthood. Section 1.5 examines what happens when the family caregivers who absorb the system's failures themselves fail — through illness, exhaustion, or death — and the disabled adult is left without the wraparound support the public architecture was supposed to have built.

## What the Adulthood Threshold Looks Like



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

### ILLUSTRATION — A FAMILY AT THE EIGHTEENTH BIRTHDAY

*Imagine a family at the beginning of the calendar year their child turns eighteen. The child has been on the FSCD waitlist for parts of the previous decade. The child has received some services, some of the time. The child is autistic with a co-occurring intellectual disability and a co-occurring anxiety disorder. The child is, by Alberta's own clinical thresholds, eligible for PDD. The child is also, by the same thresholds, eligible for AISH on completion of the application.*

*The family attempts to apply for AISH six months before the child's eighteenth birthday, per the Government of Alberta's guidance. The family doctor of fifteen years has retired and not been replaced; the child has been on a wait list for a new family physician for two years. The walk-in clinic the family has used for acute care will not complete the AISH Part B Medical Report, which requires a longitudinal clinical relationship the walk-in clinic does not have. The family contacts a private psychiatric assessment service that will complete the Medical Report. The fee is \$700. The family pays it.*

*The family also applies to PDD. The PDD application requires a Psychological Assessment Report from a registered psychologist. The wait for a publicly funded assessment is approximately eighteen months. The family pays \$2,400 privately to obtain the assessment in eight weeks. The PDD application is submitted. The family waits for an eligibility decision. The average wait, per Inclusion Alberta data, is four and a half months. After an eligibility decision is received, the average wait for services is an additional fourteen months. The child will be nineteen and a half years old before PDD services begin. The child is eighteen now.*

*The AISH application is processed. The child is approved. The first AISH payment arrives in the month after the eighteenth birthday at the maximum monthly living allowance of \$1,940. The family is grateful. The family also notes that on July 1, 2026, the child will be transferred automatically to ADAP. The new monthly amount will be \$1,740. The family does not yet know whether the child will be among those whom the new Medical Review Panel determines to be permanently unable to work, in which case they will be returned to AISH at \$1,940. They do know that if the Medical Review Panel does not so determine, the child will remain at \$1,740, and the transition decision cannot be appealed.*

*The family does the math. The PDD waitlist will continue for another fourteen months after the eligibility decision arrives. The AISH-to-ADAP transition is in five months. The Canada Disability Benefit, which would otherwise have provided \$200 per month in federal support, is being clawed back dollar-for-dollar by the Alberta government, producing no net increase. The advocacy organizations that would have helped the family navigate any of this have lost provincial funding. The family is on its own.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*The child does not know any of this, in the same way the child did not know about the FSCD wait at age two. What the child knows is that the routines of high school have ended, the structure that organized the previous twelve years has ended, and the adult systems the family has been describing for the past three years are, in operation, mostly waiting rooms.*

## What This Section Establishes

The transition from childhood to adulthood is the second documented failure point in the lifecycle frame. PDD operates with multi-year waitlists and a *critical and urgent needs* threshold that, per Inclusion Alberta's documentation, denies one hundred percent of requests not deemed critical, urgent, or related to employment. AISH operates with an application architecture that requires, for entry, the precise administrative capacities the disability the application tests for routinely impairs. The Bill 12 restructuring of the adult income support architecture — passed December 9, 2025, taking effect July 1, 2026 — narrows AISH eligibility, transfers all current recipients to a lower-benefit replacement program, removes statutory cost-of-living indexation, bars appeal of the transition decision, and grants the Minister discretion to limit appeal jurisdiction across the program architecture more broadly.

The blueprint Part Three builds will require, at minimum, the following commitments at the adult-transition level: integrated transition planning beginning at age sixteen with the FSCD and adult-systems caseworkers operating jointly; maximum statutory wait times for both PDD eligibility decisions and PDD service commencement; restoration of the Citizens Appeal Panel's full independent jurisdiction across both AISH and ADAP; legislated cost-of-living indexation protected from regulatory rollback; mandatory provision of adult-system entry support for transitioning eighteen-year-olds, with no requirement that the family pay privately for assessments the public system is structurally incapable of providing within the relevant window; and a binding statutory recognition that the disability the program serves cannot be operationalized as a barrier to navigating the program. The legislation Part Three proposes is the architecture that makes those commitments enforceable. The argument Part Four makes is that the Bill 12 direction is a choice, made deliberately, with full knowledge that it imposes the heaviest administrative burden on the population least able to absorb it.

Section 1.5 follows the population from Section 1.4 into the next life stage: the family caregivers who currently absorb what the public systems do not provide, the documented caregiver burden that compounds across decades, and what happens when the primary caregiver, who has been the practical infrastructure of the disabled adult's life, ages, weakens, or dies. The lifecycle frame's fourth failure point is the moment the family safety net the province has tacitly relied on is no longer available. The province has not built the architecture that the family has been substituting for. Section 1.5 examines what that means for the population the architecture was supposed to serve.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.5 — Caregivers and the End of the Family Safety Net

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Section 1.4 closed by naming the cliff at eighteen and the structural failure pattern it exposes. Section 1.5 examines what makes the cliff survivable for the population that does survive it, and what makes the cliff catastrophic for the population that does not. The answer, in both directions, is the same: family caregivers. The family is what the system is, in operation, depending on. The family is also what the system, in operation, is consuming.

This section documents three things. First, the scale of the caregiver burden the public system depends on, in dollars, hours, and human consequences. Second, what happens to the disabled adult when the family caregivers can no longer carry what the system has tacitly transferred to them — through illness, aging, or death. Third, the documented intergenerational pattern that the architecture's failures produce: poverty, trauma, and unsupported disability concentrating across generations of the same families, generating the next generation's disabled population the system will then under-support in the same way.

The lifecycle frame's fourth failure point is the moment the family safety net stops being available. The province has not built the architecture that the family has been substituting for. The architecture's absence becomes visible the moment the substitute fails. That is the failure Section 1.5 examines.

## What the Family Is Currently Carrying

Approximately eight million Canadians provide unpaid care to family members or friends with long-term health conditions, physical or mental disabilities, or age-related needs. Twenty-two percent of Canadians (approximately 6.8 million people) are family caregivers in any given year. Half of all Canadians will be family caregivers at some point in their lives. The Canadian Centre for Caregiving Excellence documents that caregivers spend more than 5.7 billion hours per year providing unpaid care across the country.

Researchers at the University of Alberta and University of Manitoba estimated, in a 2022 study published in the *Journal of Family and Economic Issues*, that the replacement-cost value of this unpaid family care work falls between \$97.1 billion and \$112.7 billion annually. The lower figure is the most-cited number across Canadian caregiving research. Comparable Statistics Canada and Canadian Institute for Health Information analyses have produced consistent estimates. Family caregivers in Canada provide approximately 75 percent of all care services delivered at home. The Government of Canada's National Seniors Council references unpaid caregiving in the range of \$24 billion to \$31 billion annually for the in-home portion specifically.

The Organisation for Economic Co-operation and Development has estimated that the Canadian family care sector is more than ten times the size of the formal care workforce. The implication is structural. The

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

formal care system that governments fund and report on is a small fraction of the actual care economy. The larger, unfunded, unrecognized portion is the family. The province's disability architecture — AISH, PDD, FSCD, the wraparound healthcare and housing systems — is a public-facing scaffold whose actual operation depends on a much larger private substrate of unpaid family labour. When the formal scaffold fails or is under-built, the private substrate absorbs the difference. When the private substrate fails, there is nothing left.

The cost to the family is documented across three domains, identified by Norah Keating, Janet Fast, Donna Lero and colleagues in a 2014 systematic review published in the *Journal of the Economics of Ageing*. The three domains are care labour, employment restrictions, and out-of-pocket expenses. Each is measurable. Each is borne by the caregiver. None is repaid by the system the caregiver is, in effect, subsidizing.

*Care labour* is the time itself: hours not available for paid employment, sleep, education, health management, or the caregiver's own care needs. *Employment restrictions* include job loss, absenteeism, reduced hours, foregone career advancement, and reduced lifetime earnings. The 2018 Statistics Canada General Social Survey on Caregiving and Care Receiving documented that caregivers with the lowest household incomes report care-related expenditures averaging more than 20 percent of their annual income. The 2024 Canadian Centre for Caregiving Excellence National Caregiving Survey documented that one in ten caregivers reported having to leave bills unpaid or pay them late, or having to draw on long-term savings, in order to meet caregiving expenses. *Out-of-pocket expenses* include the costs the formal system does not cover — equipment, medications not on formulary, transportation, home modifications, respite care, and the private assessments and services that fill the gaps the public system has not closed.

The cumulative effect is that family caregivers in Canada subsidize the formal care system at approximately \$97 billion per year, in a distribution that falls hardest on the families with the least capacity to absorb it. Living arrangement explained 81 to 83 percent of the variance in the value of unpaid care work in the 2022 Canadian study cited above. Caregivers who co-reside with the person they care for are doing the heaviest lifting and bearing the largest share of the unmeasured cost.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

#### WHAT THE FAMILY IS CURRENTLY CARRYING

**8 million Canadians** provide unpaid care to family members or friends with disabilities, chronic illness, or age-related needs. Half of all Canadians will be caregivers at some point in their lives. *Source: Canadian Centre for Caregiving Excellence; Statistics Canada.*

**5.7 billion unpaid caregiving hours per year**, valued at \$97.1 billion to \$112.7 billion annually in replacement cost. Family caregivers provide approximately 75 percent of all in-home care delivered in Canada. *Source: Journal of Family and Economic Issues, 2022 (UofA / UofManitoba); Statistics Canada 2018 GSS.*

**The Canadian family care sector is more than ten times the size of the formal care workforce.** *Source: OECD.*

**One in ten caregivers** reports having to leave bills unpaid or use long-term savings to meet caregiving expenses. Caregivers with the lowest household incomes report care-related expenditures averaging more than 20 percent of annual income. *Source: CCCE National Caregiving Survey 2024; Statistics Canada GSS 2018.*

**Three documented cost domains:** care labour, employment restrictions, and out-of-pocket expenses. None repaid by the system the family is subsidizing. *Source: Keating, Fast, Lero et al., Journal of the Economics of Ageing, 2014.*

## The Health Cost to Caregivers

The economic cost of caregiving is the visible cost. The health cost to caregivers themselves is the cost the system does not register at all, until the caregiver becomes a patient and the cost moves to a different line item in the same provincial budget.

The most heavily cited longitudinal study of caregiver mortality, the *Caregiver Health Effects Study* published in JAMA in 1999 by Schulz and Beach, followed spousal caregivers across four years and documented a 63 percent higher mortality rate among caregivers experiencing caregiver strain compared to non-caregiving controls, after adjustment for sociodemographic factors, prevalent disease, and subclinical cardiovascular disease. The relative risk figure (1.63) has been replicated across subsequent caregiver health research in multiple jurisdictions. Subsequent studies have documented elevated rates of cardiovascular disease, depression, anxiety, immune dysfunction, sleep disorders, and premature mortality among long-term caregivers compared to non-caregiving controls. The research base is substantial; the policy response is not.

The Canadian Centre for Caregiving Excellence's 2023 National Caregiving Survey and the 2024 follow-up data document the lived experience of the same patterns: caregivers report worse self-rated health than non-caregivers, higher rates of chronic conditions, reduced access to their own healthcare, deferred medical appointments, deteriorated nutrition, and elevated anxiety and depression. The 2018

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Statistics Canada General Social Survey documented that caregivers with the highest care intensity report the highest rates of negative health impact. The pattern is consistent: the more the family is carrying, the worse the family's own health becomes, and the more rapidly the family's own demand on the formal healthcare system increases.

The implication for Alberta's disability architecture is direct. Every dollar of public expenditure not made on PDD, AISH, FSCD, healthcare, and housing is recovered, in the short term, as private cost borne by family caregivers. The cost is then re-incurred by the same provincial budget, in the medium term, when the caregivers themselves develop the chronic illness, depression, and premature mortality the literature documents. The savings are illusory. The cost transfer is real. The harm is borne disproportionately by the families with the fewest resources to absorb it. The cumulative pattern is what produces the intergenerational disability concentration documented later in this section.

## The Long Arc: Caregiving Across Decades

For families raising a child with a developmental, intellectual, or significant physical disability, the caregiving role does not end at age eighteen. It does not end at age twenty-five, or thirty-five, or fifty-five. The 2018 systematic review by Walker and Hutchinson, published in the *Journal of Intellectual and Developmental Disability*, examined fourteen studies of older parents of adult children with intellectual disabilities living at home or in the community. The review documented what families of children with intellectual disability already know: the caregiving role continues for the duration of the parent's life, and frequently for the duration of the disabled child's life as well.

Life expectancy for people with intellectual disabilities has improved substantially over the past several decades. More than forty percent of adults with Down syndrome now live to age sixty. Adults with autism, FASD, cerebral palsy, and other developmental conditions are living longer than in any prior generation, due to medical advances and improved access to care. The improved life expectancy is, on its own terms, an unambiguous good. It also creates a structural reality the public architecture has not adapted to: the caregiver is, in many cases, also aging, and the family is in an inverted situation in which both the disabled adult and the parent who has cared for them are now in need of formal supports the system has not built.

Walker and Hutchinson's review documents the concerns of older parents of adult children with intellectual disabilities directly. The dominant theme across the studies is anticipatory anxiety about the future. Parents are aware that they will eventually be unable to provide the care they have been providing. They are aware that their adult child will need an alternative. They are also aware that the alternatives the public system offers — supervised housing, group homes, day programs, residential placements through PDD — have multi-year waitlists, inadequate capacity, and uneven quality. The review documents a combination of factors that prevent older parents from completing future-care planning: lack of trust in existing services, lack of information about care options, mutual dependence between parent and adult child built over decades of shared life, and feelings of guilt or grief about the conversations themselves.

The phrase that recurs across qualitative research with these families is what aging parents of adult disabled children describe as *the question that does not have an answer*: what happens when we die. It is the question Inclusion Alberta's PDD survey respondents described in different words when they reported, in 2024, that adults with intellectual disabilities are being denied PDD support until their circumstances



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

reach the point of crisis. For many families, the death of the primary caregiver is the crisis the urgent-and-critical-needs threshold is waiting for. The threshold is, in operational effect, a queueing mechanism that admits families to PDD-funded support at the moment the family safety net fails.

The cost is documented. The harm is documented. The province's response is to fund the program at a level below population growth and inflation, defund the advocacy organizations that document the pattern, and continue operating the urgent-and-critical-needs threshold as if the families' anticipatory anxiety were not, itself, a documented form of unmet need.

## What Happens When the Caregiver Dies

The disabled adult whose primary caregiver dies enters a system that, in Alberta's current configuration, is not designed to catch them. The PDD waitlist does not move because a parent has died. The Outcome Plan that was supposed to have been developed in advance, per Inclusion Alberta's documentation, has not been developed in seventy percent of cases. The supervised housing placement that the family had assumed would be available is, in operation, not available. The group home that was on a regional waiting list has the same waiting list it had before the death. The disabled adult, frequently in their forties or fifties or sixties, is now navigating bereavement in addition to the loss of the practical infrastructure of their life.

The pathway that follows is documented across the disability literature in Canada and internationally. Some adults are absorbed by extended family — siblings, adult nieces or nephews, in some cases adult children of siblings — who take on the caregiving role the deceased parent was performing. The extended family then enters the same caregiver burden cycle, frequently with less preparation and at a later life stage. Some adults enter emergency PDD-funded placements that the system finds, at higher cost than planned placements, because the urgent-and-critical-needs threshold has now been met. Some adults enter long-term care facilities designed for elderly residents, which are clinically inappropriate for adults with developmental disabilities but which have available beds. Some adults enter homelessness. Some adults enter the justice system, frequently for behaviours that the absence of structured support produces. Some adults enter hospitals, where they remain as bed-blockers because no community placement is available to discharge them to. Some adults die.

None of these pathways is a placement. All of them are absorptions of the public-system failure into systems designed for different purposes, at multiples of the cost that proper PDD architecture would have required. The pattern is documented. The province does not publish data on the population of disabled adults whose primary caregiver has died and who have not been placed in PDD-funded support. Inclusion Alberta has, repeatedly, requested that data. The Government of Alberta has not, in three years, released it. The absence of the data is itself a form of policy — the population whose existence is not measured does not appear in budget projections, program design documents, or political accountability.

The structural argument is the same as the structural argument across Sections 1.3 and 1.4. The system has approved the population for the program. The program does not, in operation, deliver the support the approval implies. The cost is borne by the family until the family fails. The cost is then borne by the population — in homelessness, hospitalization, institutionalization, or premature death — that the program was supposed to support.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The blueprint Part Three builds will require, at minimum, a binding statutory provision that no PDD-eligible adult shall be without a placement plan that is current, deliverable, and known to the family at the moment of the primary caregiver's death. The legislation Part Three proposes is the architecture that makes that provision enforceable. The argument Part Four makes is that the absence of such a provision in current Alberta law, despite decades of family advocacy requesting it, is a choice.

## Generational Disability

The lifecycle failure pattern documented across Sections 1.3 through 1.5 does not stop at the family in front of it. It produces the next family the same architecture will fail. The mechanism is partly biological and partly social. Both are documented. Together they explain why disability concentrates in particular families across generations, and why those generations, in aggregate, bear a disproportionate share of the cost of the system's underbuilding.

The biological mechanism is straightforward. Many disabilities have heritable components. Autism, ADHD, intellectual disability, FASD risk in subsequent pregnancies, certain chromosomal conditions, certain neurological and psychiatric conditions, certain physical disabilities — these and others have documented genetic, epigenetic, or familial-environmental components that produce above-baseline rates of recurrence within families. A family with one disabled member is statistically more likely than a randomly-selected family to have additional disabled members across generations. This is not stigma. It is population genetics applied honestly. It does not mean disability is a family failing. It means disability tends to cluster in families for reasons the family did not choose.

The social mechanism is the part the lifecycle frame makes visible. Children growing up with insufficient developmental support do not become adults with no consequences. They become adults with foreclosed capacity, foreclosed opportunity, and foreclosed earning potential, as documented in the chronological evidence chain in Section 1.3. Those adults have children. The children grow up in households shaped by the unsupported disability of the parent — in poverty, in housing instability, in food insecurity, in the chronic stress that adverse childhood experiences research has consistently linked to elevated risk of subsequent developmental, behavioural, and health outcomes for the children themselves.

The Alberta ACE Study, which surveyed Alberta adults on their childhood adversity exposure, documented that 55.8 percent of Albertans reported one or more adverse childhood experiences. Twenty percent reported three or more. The research base on adverse childhood experiences, beginning with Felitti and colleagues' 1998 study and replicated extensively across the subsequent two decades, has established that ACEs predict elevated risk across virtually every adult health, mental health, educational, employment, and longevity outcome studied. One frequently-cited estimate, summarized in Public Health Ontario's *Adverse Childhood Experiences: Interventions to Prevent and Mitigate the Impact of ACEs in Canada* (2020), is that exposure to six or more ACEs may decrease lifespan by twenty years. Another, from the same source, is that a ten-percent reduction in ACE prevalence in North America would yield a corresponding reduction of one million disability-adjusted life-years — approximately US\$56 billion in averted cost.

The populations bearing the highest concentrations of adverse childhood experiences in Canada are well-documented. Indigenous communities carry elevated ACE prevalence as a direct documented

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

consequence of intergenerational trauma from residential schools, child welfare apprehensions, and the broader policy architecture of colonization. Low-income families across populations carry elevated ACE prevalence. Families with parental mental illness, substance use, or imprisonment carry elevated ACE prevalence. Families with previously unsupported disability carry elevated ACE prevalence. The categories overlap, and the overlap is the population the public disability architecture is, in operation, building toward by under-building support upstream.

The campaign's separate 195-page Indigenous Disability evidentiary record, referenced elsewhere in the document library, examines the Indigenous-specific dimensions of this pattern in detail. The companion *Intergenerational Family Report* and *Intergenerational Contradiction Report* document the family-level patterns across the broader Alberta disabled population. Section 1.5 names the principle the more detailed records examine: the lifecycle failures documented across Part One produce the next generation of population that the same system will fail in the same ways. The pattern is intergenerational because the failure is intergenerational.

A province that does not build proper growth-mode architecture in childhood produces adults with foreclosed capacity. Adults with foreclosed capacity, raising children in poverty, produce children with elevated ACE exposure. Children with elevated ACE exposure produce adults with elevated rates of disability, mental illness, addiction, and premature mortality. Those adults raise the next generation. The cycle is the architecture's output. The architecture continues to operate as if the cycle were the population's pre-existing condition rather than the architecture's documented product.

## What the Aging Parent Sees

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

### ILLUSTRATION — A PARENT AT SEVENTY-TWO

*Imagine a parent who is now seventy-two. Their adult child, now forty-six, is autistic with a co-occurring intellectual disability. The child has lived at home for the entire forty-six years. The child is on the PDD waitlist. The child has been on the PDD waitlist for fourteen years, since the moment the family applied at the child's thirty-second birthday after the parent's first cardiac event made the future-care question urgent. The child's name has not moved measurably up the waitlist in those fourteen years. The Outcome Plan that the family was told would be developed has, per the pattern Inclusion Alberta has documented, not been developed. The family is unaware that this is the case, because the family has not heard from a caseworker.*

*The parent is seventy-two and has had two further cardiac events since the application was filed. The parent's spouse, who shared the caregiving role, died eight years ago. The parent's siblings are themselves elderly. The parent's other adult child, the disabled adult's sibling, lives in another province and has young children of their own and a job and a life that does not include the kind of full-time caregiving the disabled adult requires. The parent has had the conversation with the sibling about what happens when the parent is gone. The conversation did not produce an answer. It produced a series of contingency outlines that depend on the public system providing what the public system has not, in fourteen years, provided.*

*The parent does the math the parent has been doing for two decades. The mortality tables suggest the parent has between five and fifteen years remaining. The PDD waitlist has not moved meaningfully in fourteen. The supervised housing placements that exist in the parent's region are full and have multi-year waiting lists of their own. The group homes that the parent has visited are clinically appropriate for some of the residents and clinically inappropriate for others; the parent has no confidence that the placement the disabled adult would receive in the moment of crisis would be appropriate to the disabled adult's specific needs.*

*The parent has written a letter that the disabled adult's sibling will receive when the parent dies. The letter contains the names of three case managers, the case file numbers from PDD and AISH, the names of two physicians, the address of the family doctor of fifteen years (now retired), the address of the walk-in clinic, the bank account numbers, the medication list, the dietary preferences, the sensory requirements, the routines that have organized the disabled adult's life for forty-six years, and the parent's request that the sibling do everything possible to prevent the disabled adult from being placed in a long-term care facility designed for elderly residents.*

*The letter cannot guarantee the request. The letter is what the parent has, in the absence of the architecture the public system was supposed to have built. The parent has been carrying that absence for forty-six years. The parent is seventy-two. The parent will not be carrying it indefinitely.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*The disabled adult does not know any of this. What the disabled adult knows is the daily routine of the home the family built, the rhythms the parent has established over forty-six years, the meals at the times they happen, the weekly outing to the same coffee shop on the same morning, and the specific way the parent says good morning. None of this is in the case file. None of this is in the PDD database. None of this transfers to the placement the public system might or might not provide on the day the parent dies.*

## What This Section Establishes

The family is what the system depends on. The family is also what the system is consuming. The economic value of unpaid family caregiving in Canada, between \$97 billion and \$112.7 billion annually, is the measure of what the formal system does not provide. The health cost to caregivers, documented through elevated mortality, morbidity, and chronic disease across decades of peer-reviewed research, is the cost of carrying what the formal system has transferred to the family. The aging-parent question — what happens when we die — is the question the urgent-and-critical-needs threshold is, in operational effect, waiting to answer through the death itself.

The intergenerational pattern is the architecture's documented output, not the population's pre-existing condition. Adverse childhood experiences research, the Alberta ACE Study, the international developmental literature, and the Canadian Indigenous-specific evidence all converge on the same finding: under-building support for disabled children and disabled adults produces the next generation's disabled population. The cycle is the architecture's product. The architecture continues operating as if the cycle were a separate problem.

The blueprint Part Three builds will require, at minimum, the following caregiver-related commitments: statutory recognition that family caregivers are providing publicly necessary work, with associated compensation through Family Managed Services or equivalent mechanisms; binding placement-plan provisions for PDD-eligible adults with aging primary caregivers, current as of each anniversary review; restoration of the advocacy organizations that have been documenting the family safety net's exhaustion; and integrated transition planning that begins not at the disabled adult's eighteenth birthday but at the primary caregiver's sixty-fifth, on the recognition that the caregiver's mortality is the architectural feature the public system has been ignoring. The legislation Part Three proposes is the architecture that makes those commitments enforceable. The argument Part Four makes is that the under-building of caregiver support, despite decades of family advocacy requesting it, is a choice.

Section 1.6 closes Part One by examining the disability category whose entry into the system produces the most coherent triage response Alberta has built — acquired disability through workplace injury — and the comparator question that follows. Why does the province treat the disability that arrives through one route as a triage emergency, with full rehabilitation, full income protection, full continuity of medical care, and no requirement that the injured worker re-prove the injury every six months — while treating the disability that arrives through any other route as a population to be tested, doubted, narrowed, and reassessed? The answer is documented in the architecture. Section 1.6 examines what the architecture's

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

selectivity reveals.

The family safety net has been holding the line for the populations the system has not built for. The line is not infinitely holdable. Section 1.6 closes Part One on the question the rest of the document is built to answer: what would it look like if the province built the architecture properly, for everyone?



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — What Real Accessibility and Inclusion Actually Look Like

### Section 1.6 — The Triage Question

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Sections 1.3 through 1.5 examined Alberta's response to disability that arrives early — through congenital, developmental, or childhood-acquired conditions — and the lifecycle failures that response produces. Section 1.6 closes Part One by examining the disability category Alberta responds to differently. The category is acquired disability through workplace injury. The response is the architecture administered by the Workers' Compensation Board of Alberta (WCB-Alberta) under the *Workers' Compensation Act*. The architecture is, on its own terms, the most coherent triage response Alberta has built for any disability population.

The contrast is the question this section asks. Why does the province respond to one disability route with full triage, full rehabilitation, full income protection, full continuity of medical care, full vocational support, and statutory protection from administrative re-litigation — while responding to disability that arrives through any other route with the architecture documented in Sections 1.3 through 1.5? The answer is not clinical. The clinical needs of a worker with a permanent acquired disability are not different in kind from the clinical needs of an adult with a permanent congenital or developmental disability. The answer is political. Alberta has chosen, through legislation and program design, to build full architecture for one route and scrutiny architecture for all others. That choice is what Section 1.6 documents, and what the blueprint Part Three exists to reverse.

## The Historic Compromise

The Workers' Compensation Board of Alberta is the operational descendant of a Canadian legal architecture that is more than a century old. The architecture is built on the Meredith Principles, established in the 1913 Meredith Report tabled in the Ontario Legislature by Sir William Meredith, an Ontario lawyer, politician, and judge appointed in 1910 to study workers' compensation systems internationally. The report's foundational argument was that the existing legal regime — under which an injured worker could pursue compensation only by suing the employer in court, with all the cost, delay, and adversarial uncertainty that litigation entails — was inadequate to provide just compensation, harmful to both workers and employers, and unsustainable as social policy in an industrializing economy.

The Meredith Report proposed a *historic compromise*. Workers would relinquish their right to sue their employers in court for workplace injury. In exchange, employers would fund a collective insurance system that would provide injured workers with no-fault, prompt, and secure compensation regardless of who was at fault for the injury. The compromise rested on five interlocking principles, each of which remains embedded in Canadian workers' compensation law today:

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*No-fault compensation.* Injured workers receive benefits regardless of how the injury occurred. Fault is irrelevant to entitlement. The worker does not have to prove negligence. The employer does not have to defend negligence. The compensation is the focus.

*Security of benefits.* A statutory fund is established to guarantee that compensation will be paid. Workers do not face the risk that an employer's bankruptcy, dissolution, or refusal to pay will leave them without recourse. The fund exists, the obligation exists, the benefits are paid.

*Collective liability.* All covered employers contribute to the common fund. The cost of workplace injury is distributed across the entire employer base, not borne individually by the employer of the specific injured worker. The system is, in structural terms, a publicly mandated insurance regime funded by employers and administered for the benefit of workers.

*Independent administration.* The Workers' Compensation Board operates at arms-length from government, with statutory independence designed to insulate compensation decisions from political pressure. Ministerial powers over the Board are limited by design. The point of the limitation is to prevent the compensation regime from being narrowed, defunded, or restructured for political reasons that have nothing to do with the welfare of injured workers.

*Exclusive jurisdiction.* Workers' compensation is the only mechanism through which workplace injury claims may be resolved. Workers cannot sue. The Board's decisions are final, subject to internal appeal and limited judicial review. The exclusivity is the price of the bargain. It is also the protection that secures the bargain.

The Meredith Principles were enacted in Ontario's 1914 *Workmen's Compensation Act*, proclaimed in 1915. Other Canadian provinces followed. Alberta's first workers' compensation legislation was passed in 1918. All ten provincial and three territorial workers' compensation systems in Canada trace their statutory foundations to the Meredith Report. The legislation has been amended many times across the intervening century, but the core architecture has held. The reason it has held is that the bargain works for both parties. Workers receive prompt, secure, no-fault compensation. Employers receive predictable, collectivized cost and protection from open-ended tort liability. The province receives a functional disability response that does not require it to administer the underlying litigation system the bargain replaces.

## What WCB-Alberta Currently Provides

The WCB-Alberta architecture, in its current operational form, is the working example of a triage-mode disability response Alberta is capable of building when it chooses to. The following is what the program provides to a worker injured on the job today.

**Coverage begins immediately.** The *Workers' Compensation Act* provides no waiting period before coverage takes effect. A worker injured on Monday is covered on Monday. There is no application backlog comparable to the FSCD wait list documented in Section 1.3 or the PDD wait list documented in Section 1.4. The architecture is designed for the moment the injury happens, not for the moment the bureaucratic process has caught up to the injury.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Compensation benefits are not taxable.** Income replacement under WCB is paid at up to 90 percent of net pre-accident earnings. The benefits are paid directly to the worker (or, in some cases, through the employer who continues paying the worker and is then reimbursed by WCB). The non-taxable status of the benefits is statutorily protected. The income replacement is calibrated to the worker's pre-accident standard of living, not to a province-wide subsistence floor.

**A care plan is developed jointly with the worker, employer, and healthcare providers.** The care plan progresses through documented phases — entitlement determined, care plan defined, treatment and rehabilitation, return-to-work planning, and ongoing review. The plan is the product of collaboration between the worker, the worker's physicians, the employer, and the WCB caseworker. It is not produced by an adjudicator working from a paper file alone. It is not produced by a regional review committee operating without the worker's involvement. The worker is, by program design, a participant in their own care.

**A claim is assigned to an adjudicator who may transfer the claim to a case manager for rehabilitation support.** The case-management model provides continuity of relationship between the worker and the WCB staff person responsible for navigating the claim. The case manager is a known individual. The worker is not navigating a phone tree. The worker is not waiting nine months between calls to discover whether their file has moved.

**Occupational Injury Service (OIS) provides access to physicians experienced in work-related injuries.** WCB has built a clinical network specifically designed for the population it serves. The injured worker is not navigating a generalist primary-care system that does not have the specialty knowledge their injury requires, nor paying out of pocket for specialist assessments the public system has not made available. The clinical infrastructure is part of the program.

**Medical benefits cover all costs of medical care related to the compensable injury.** This includes physician visits, diagnostic imaging, specialist consultations, prescription medications, physiotherapy, occupational therapy, psychology, surgery where indicated, and other treatment costs the worker would otherwise bear or wait for through the public healthcare system. Alberta Health Care basic coverage is the worker's responsibility for non-injury healthcare; everything related to the injury is covered by WCB. The injured worker is not facing pharmacy denials, formulary exclusions, or out-of-pocket costs for the treatment of the condition WCB has accepted.

**Modified work programs allow injured workers to return to work at the earliest safe opportunity at pre-accident pay rate.** The program is designed to maintain the worker's connection to employment, income, and meaningful work during recovery. The employer plays an active role; WCB provides incentives to employers (lower premiums) for offering modified work successfully. The architecture is collaborative, not adversarial.

**Re-employment services and vocational training are available where the worker cannot return to the pre-accident job.** If recovery does not permit a return to the original work, WCB provides retraining, skills development, and re-employment services to support the worker's transition to alternative employment. The program does not, in this scenario, simply terminate income support and leave the worker to navigate the open labour market unassisted. The vocational architecture is part of the program.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

**Reimbursement is available for vehicle modification, home modification, personal care, translation and interpretation services, and other accommodation costs.** Where the injury produces a permanent disability requiring assistive infrastructure, the program provides the infrastructure. The worker is not paying privately for wheelchair-accessible vehicle modifications, home renovations, or attendant care that the injury makes necessary. The program recognizes that disability requires architecture beyond income, and it provides the architecture.

**The injured worker is not required to re-prove the injury every six months.** Once entitlement is determined, the worker's claim status persists until a documented change in clinical status warrants review. The worker is not navigating annual reassessments, periodic re-applications, or the kind of administrative re-litigation documented in Sections 1.4 and 1.5 as the AISH and PDD experience. The continuity of entitlement is part of the bargain.

**The program operates at arms-length from political administration.** Ministerial authority over WCB benefits is statutorily constrained. The minister cannot, by regulation, narrow the eligibility definition for workplace injury, or repeal the benefits indexation, or bar appeal of categories of decisions the minister finds inconvenient. The Bill 12 architecture documented in Section 1.4 has no equivalent in the WCB legislation. The political insulation is structural.

This is the architecture. It is operational. It exists today, in Alberta, administered by a Crown corporation under a provincial statute, funded by a collective employer-paid insurance fund, providing the supports above to approximately 150,000 active claims at any given time. The province has built it. The province administers it. The province does not contest its existence.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

#### WHAT WCB-ALBERTA CURRENTLY DELIVERS

**No waiting period.** Coverage begins on the day of injury. No three-year wait list.

**Up to 90 percent of net pre-accident earnings, non-taxable.** Income calibrated to standard of living, not subsistence floor.

**Care plan developed jointly with the worker, employer, and physicians.** Worker is a participant in their own care by design.

**Continuity of caseworker.** Adjudicator and/or case manager assigned to the claim — a known individual, not a phone tree.

**Occupational Injury Service.** Clinical infrastructure built for the population served, not outsourced to a general healthcare system without capacity.

**All injury-related medical care covered.** No out-of-pocket costs, pharmacy denials, or formulary exclusions for the condition WCB has accepted.

**Modified work, vocational retraining, re-employment services.** The program provides architecture beyond income.

**Vehicle modification, home modification, personal care, translation / interpretation reimbursed.** Disability requires architecture beyond income; the program provides it.

**No requirement to re-prove the injury every six months.** Continuity of entitlement until clinical status changes.

**Operates at arms-length under the Meredith principle of independent administration.** Statutory protection from political restructuring.

**Approximately 150,000 active claims at any given time.** Operational, funded, durable, replicable.

## What the WCB Architecture Establishes

The WCB-Alberta architecture establishes, by example, that the province is capable of building a triage-mode disability response. The objections most commonly raised against extending equivalent architecture to other disability populations — that it would be too expensive, too administratively complex, too vulnerable to fraud, too disincentivizing of work, too difficult to operate at arms-length from political pressure — are answered by the WCB architecture's existence. None of those objections has prevented the WCB system from operating. None of those objections has prevented the system from delivering the supports listed above. The objections are, in the WCB context, not allowed to prevail.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The architecture's design choices are documented and replicable. *Triage instead of adjudication backlog.* WCB processes claims on the day of injury, not three years later. *Continuity of caseworker instead of phone-tree churn.* WCB assigns a case manager whose name the worker knows. *Care plans developed with the worker instead of imposed on the worker.* WCB requires worker participation in plan development by design. *Clinical infrastructure built into the program instead of outsourced to a healthcare system without capacity.* WCB has the Occupational Injury Service. *Income replacement calibrated to pre-injury standard of living instead of subsistence floor.* WCB pays up to 90 percent of net earnings. *Continuity of entitlement instead of perpetual reassessment.* WCB does not require six-monthly re-proof. *Statutory insulation from political restructuring instead of ministerial discretion.* WCB operates at arms-length under the Meredith principle of independent administration.

Each of these design choices is a deliberate departure from the architecture documented across Sections 1.3 through 1.5. Each is administratively possible, fiscally sustainable, and politically durable. The proof of each is the program's continued operation. The province knows how to build this. The province has built it. The province continues to build it. The province has chosen not to extend it.

## The Triage Question

Imagine two Albertans. The first is a forty-year-old construction worker, employed by a covered employer, who falls from scaffolding and sustains a spinal cord injury. The second is a forty-year-old adult with autism and a co-occurring intellectual disability, eligible for AISH and on the PDD waitlist, with functional support needs comparable in clinical complexity to the construction worker's post-injury needs.

The construction worker's injury triggers, immediately, the WCB architecture documented above. A claim is opened on the day of the fall. An adjudicator is assigned. A case manager is assigned for rehabilitation support. A care plan is developed jointly with the worker, the worker's physicians, and the employer. Income replacement begins at up to 90 percent of pre-accident net earnings, non-taxable. Medical benefits cover all injury-related care, including specialist consultations, surgery, rehabilitation therapy, prescription medications, and assistive equipment. Home modifications are reimbursed. Vehicle modifications are reimbursed. Personal care is reimbursed. If the worker cannot return to pre-accident employment, vocational retraining and re-employment services are provided. The worker is not required to re-prove the injury every six months. The worker is not navigating the architecture alone; a known case manager is the point of contact. The architecture is collaborative, time-sensitive, and protected from political restructuring.

The forty-year-old adult with autism and intellectual disability faces a different architecture. The PDD application requires a Psychological Assessment Report, which the public system does not provide within the relevant window; the family pays \$2,400 privately. The AISH application requires a Part B Medical Report; the family doctor of fifteen years has retired and not been replaced; a private psychiatric assessment service completes the report at a cost of \$700. The PDD wait list, per Inclusion Alberta's documentation, averages four and a half months for an eligibility decision and an additional fourteen months for service commencement after that decision. The Outcome Plan that was supposed to be developed with the adult and the family is, in seventy percent of waitlisted cases, not developed at all. The income provided through AISH is \$1,940 per month, transitioning to \$1,740 under ADAP on July 1, 2026,



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

with the transition decision unappealable. There is no equivalent of the Occupational Injury Service. There is no case manager whose name the adult knows. There is no care plan developed jointly. There are no home modifications reimbursed beyond what the FSCD program covered before the eighteenth birthday. There is no vehicle modification program. There is no statutory protection from political restructuring; the Bill 12 architecture documented in Section 1.4 is the architecture this population now navigates.

The clinical needs are, in the comparison drawn here, substantially equivalent. The functional support requirements are comparable in scope. The lifelong nature of the disability is, in both cases, established and documented. The province has accepted, in both cases, that the population requires support. The architectures the province provides for the two populations are different by orders of magnitude.

The question Section 1.6 asks is the question the comparison demands. Why? The clinical answer is that there is no clinical answer. The two populations have comparable needs. The legal answer is that the province has chosen, through legislation, to build one architecture and refuse to build the other. The political answer is that the construction worker entered the system through a route that the province treats as worthy of full triage, and the adult with autism entered the system through a route that the province treats as worthy of scrutiny. The selectivity is what is being chosen. The selectivity is what the blueprint Part Three exists to remove.

## What the Selectivity Reveals

The province's response to acquired disability through workplace injury is not better designed because workplace injury is more clinically deserving of triage than congenital or developmental disability. It is not better designed because the political constituency of injured workers is more sympathetic than the political constituency of disabled adults with autism, intellectual disability, FASD, or chronic mental illness. It is not better designed because the fiscal cost of WCB-mode architecture is somehow lower than the fiscal cost of the architecture documented in Sections 1.3 through 1.5; the fiscal cost of the under-built architecture for the latter populations is, as the chronological evidence chain in Section 1.3 establishes, larger in aggregate than the cost of building the architecture properly would have been.

The province's response to acquired disability through workplace injury is better designed because the historic compromise the WCB architecture is built on contained, at its inception, three structural protections that the architecture for other disability populations does not contain.

The first is the *no-fault principle*. WCB does not require the worker to prove that the injury happened in a way that justifies support. The worker is supported because the worker is injured. The architecture for AISH, PDD, FSCD, and ADAP, by contrast, requires the disabled person to prove, repeatedly, that the disability is severe enough, permanent enough, and disabling enough to qualify under the program's criteria. The proof requirement is itself a form of fault attribution — the disability must be demonstrated against a burden of evidence the worker is not required to meet.

The second is the *security of benefits principle*. WCB benefits are statutorily guaranteed through a fund insulated from year-by-year budget pressure. The benefits cannot be cut by the minister through regulation, indexation cannot be removed by repealing a schedule, transitions to lower-benefit replacement programs cannot be imposed without appeal. The architecture for AISH, PDD, FSCD, and

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

ADAP, by contrast, is operated through annual budget allocations, ministerial discretion, and legislation amenable to amendment as documented in Bill 12. The benefits are, by structural design, exposed to the political volatility the WCB architecture was created to prevent.

The third is the *independent administration principle*. WCB operates at arms-length from the minister responsible. The architecture for AISH, PDD, FSCD, and ADAP is operated directly by the Ministry of Seniors, Community and Social Services, with the minister exercising regulatory authority over eligibility, benefit levels, appeal jurisdiction, and program structure. The Bill 12 grant of authority to the minister to limit categories of decisions appealable to the Citizens Appeal Panel is a feature the WCB architecture would not permit. The political volatility that has produced the current dismantling of the AISH architecture is, in the WCB context, statutorily prevented.

The selectivity is structural. The WCB architecture's existence proves that triage-mode disability response is possible. The absence of equivalent architecture for other disability populations proves that the absence is a choice. The choice is what Part Two examines (other Canadian provinces and the federal Accessible Canada Act made different choices) and what Parts Three through Five propose to reverse (the blueprint, the proposed legislation, and the closing argument).

## What the Closing Should Say

The campaign's working framing — *Do we deny rehabilitation? No. Do we refuse WCB? No. Do we welcome them into the community when they are most vulnerable? Yes. The government should be the first to triage, not the community* — captures the core of Section 1.6's argument and the spirit of the blueprint Part Three is built to deliver. The argument is not that workplace injury should be supported less, or that WCB should be narrowed, or that the architecture documented above should be dismantled in the name of equity. The argument is the opposite. The argument is that the architecture WCB demonstrates is the right architecture, that it should be the model rather than the exception, and that the province's failure to extend equivalent architecture to other disability populations is a failure of will, not a failure of capacity.

A fair province does not choose which disabled citizens deserve triage. A fair province builds triage as the default response to disability of any origin. The route through which a person becomes disabled — workplace injury, motor-vehicle collision, congenital condition, developmental disability, progressive disease, mental illness, age-related decline, sudden acquired condition outside the workplace, accumulated chronic illness, environmental harm — is not a clinical fact. It is a legal fact. The clinical facts are functional impairment, support need, and the duration of the condition. The clinical facts do not vary by origin route. The architecture should not vary by origin route either.

The blueprint Part Three builds will require, at minimum, the following triage-related commitments: a statutory recognition that disability of any origin is entitled to a coordinated provincial response equivalent in scope to the WCB architecture; the establishment of integrated case-management infrastructure across all major disability programs (FSCD, PDD, AISH, ADAP, healthcare, housing) so that disabled Albertans are not navigating multiple ministries through multiple application processes for support that should be coordinated by the province; the restoration of independent administration through the full reinstatement of the Citizens Appeal Panel's jurisdiction across all categories of disability-program decisions; statutory benefits indexation protected from regulatory rollback; clinical infrastructure equivalent to the Occupational

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Injury Service for the disability populations the public health system currently fails to serve; and a binding statutory commitment that the province will not, in any future legislation, narrow the disability response architecture below the floor that this blueprint establishes.

The legislation Part Three proposes is the architecture that makes those commitments enforceable. The argument Part Four makes is that the current selectivity — full triage for one disability route, scrutiny architecture for all others — is a deliberate political choice made by ministers with documented biographical proximity to the populations the choice is harming. The closing argument Part Five makes is that the architecture being defended in this document is the architecture every Albertan will eventually need, in some mode, through some route none of us can predict. The triage question is not, in the long run, a question about disabled people. It is a question about what the province will do for any of us when our turn comes.

## What the Comparator Looks Like

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

### ILLUSTRATION — TWO EMERGENCY ROOMS, ONE PROVINCE

*Imagine two emergency rooms, in two adjacent communities, in the same province, on the same day.*

*In the first emergency room, a forty-year-old construction worker arrives by ambulance after falling from scaffolding. The intake nurse confirms the injury occurred at work. A WCB claim number is generated within hours. The patient is admitted, assessed, stabilized, and scheduled for surgery. By the end of the week, an adjudicator has been assigned. By the end of the month, a case manager is in regular contact with the patient and the patient's spouse. By the end of the third month, a care plan is in place that includes physical rehabilitation three times per week, prescription coverage, mileage reimbursement to and from appointments, and a return-to-work assessment scheduled for the six-month mark. The patient's income is being replaced at 90 percent of pre-accident net earnings, non-taxable, delivered by direct deposit on a regular schedule. The home is being assessed for accessibility modifications. A vehicle modification application has been initiated. The patient does not, at any point in this process, pay out of pocket for any of it. The patient does not, at any point in this process, fill out a 27-page reassessment form. The architecture moves around the patient, on the patient's clinical timeline, with continuity of caseworker and continuity of medical relationship.*

*In the second emergency room, a forty-year-old adult with autism and a co-occurring intellectual disability arrives in crisis. The patient's primary caregiver, the patient's mother, died three weeks ago. The patient has been living alone since then. The patient has not eaten consistently. The patient has not slept. The patient's medications, which the mother managed, have been taken inconsistently. The patient is admitted, assessed, stabilized, and held for psychiatric observation. The hospital social worker contacts PDD. PDD confirms the patient is on the waitlist. PDD confirms the patient has been on the waitlist for fourteen years. PDD confirms that under the urgent and critical needs threshold, the death of the primary caregiver and the resulting crisis presentation may now meet the threshold for support. The hospital cannot discharge the patient because no community placement is available. The patient remains in the hospital for forty-three days, occupying a bed that cost the provincial healthcare system several thousand dollars per day. The patient is eventually placed in a long-term care facility designed for elderly residents, where the patient will live, in a clinical environment unsuited to the patient's actual needs, until further architecture becomes available, at the province's eventual expense.*

*The construction worker and the adult with autism are equally Albertans. Their disabilities are equally permanent. Their support needs are equally documented. The architectures the province provides for them are not equal. The inequality is not clinical. The inequality is the structure of Alberta's current disability law. The blueprint this document builds is the proposal to remove the inequality and build, for both, the architecture either of them would, in a fair province, be entitled to.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## What This Section Establishes, and What Part One Closes With

Section 1.6 has documented the comparator the rest of Part One has been building toward. The Workers' Compensation Board of Alberta administers, today, a triage-mode disability response that demonstrates the province's structural capacity to build proper architecture for a disabled population. The architecture's design features — no-fault entitlement, secure benefits, independent administration, clinical infrastructure, continuity of caseworker, integrated care planning, vocational support, accommodation reimbursement, and statutory protection from political restructuring — are documented, operational, and replicable. The province has built the architecture. The province administers the architecture. The province has chosen not to extend the architecture to the disability populations Sections 1.3 through 1.5 examined.

The selectivity is structural, deliberate, and reversible. The blueprint Part Three builds is the architecture that reverses it. The legislation Part Three proposes is the binding mechanism that protects the new architecture from being narrowed back to the current state once the political winds change. The argument Part Four makes is that the current selectivity is a choice made by named ministers with documented biographical proximity to the populations the choice harms. The closing argument Part Five makes is that the architecture every Albertan will eventually need, through some route none of us can predict, is the architecture this blueprint exists to build.

The lifecycle frame established in Section 1.2 holds across Sections 1.3 through 1.6. Childhood. Transition and adulthood. Caregivers and the family safety net. Acquired disability through routes the province has chosen to support, and acquired disability through routes the province has chosen not to support equivalently. The pattern is consistent across every life stage and every disability category. The architecture's failures are not random; they are structural. The architecture's selectivity is not accidental; it is legislated.

Part Two follows this conclusion into the comparator question across jurisdictions. The federal *Accessible Canada Act*, Ontario's *Accessibility for Ontarians with Disabilities Act*, Manitoba's *Accessibility for Manitobans Act*, Nova Scotia's *Accessibility Act*, British Columbia's *Accessible British Columbia Act*, Saskatchewan's accessibility legislation, the United Nations *Convention on the Rights of Persons with Disabilities*, and the documented architectures other Canadian provinces and the federal government have built are all, in their respective scopes, the legal frameworks Alberta has chosen not to build. Part Two examines what those frameworks contain, what they have produced, and what Alberta's deliberate non-construction of equivalent architecture reveals about the choice the province has made.

Part One has documented what is failing. Part Two documents what other jurisdictions have built. Part Three proposes what Alberta should build. Part Four assigns the responsibility for the current direction. Part Five closes on the principle the entire document is built to defend: a fair province builds the floor, not the ceiling, for everyone.

The triage question Section 1.6 raised is the question the entire blueprint exists to answer. The answer is that disabled Albertans are entitled, under any plausible standard of fairness, to architecture equivalent to what the province has built for the populations it has chosen to triage. The route through which a person becomes disabled is not a justification for differential treatment. The route is, at most, an explanation of how the architecture's gaps came to exist. The blueprint the rest of this document builds is the proposal to

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

close those gaps, statutorily, durably, and for everyone.

That is the work Part Two through Part Five completes.

That is the work this document exists to make unavoidable.

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**Part One closes here.** The lifecycle frame has held. The evidence chain has been established. The comparator has been named. The blueprint begins.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1.7 — Mental Health and Addiction as a Lifecycle Dimension

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Sections 1.1 through 1.6 documented the architecture Alberta has built around persons with disabilities and the lifecycle dimensions across which the architecture operates: childhood and FSCD (Section 1.3), the engineered repudiation of inclusion in the K-12 system (Section 1.3a), the transition into PDD and AISH at adulthood (Section 1.4), the caregiver dimension across lifecycle stages (Section 1.5), and the triage question that the WCB exception raises (Section 1.6). The lifecycle frame established in Section 1.2 is the substantive analytic structure within which the documented failures are most clearly visible. Section 1.7 develops a substantive lifecycle dimension that the prior sections do not anchor: mental health disability, addiction, and the substantive intersection of the two within the Alberta architecture.

The dimension is operationally significant. Mental illness disorders constitute the second-largest primary medical-condition category among AISH recipients, accounting for thirty-and-two-tenths percent of the September 2025 caseload of seventy-nine thousand two hundred ninety AISH clients (twenty-three thousand nine hundred forty Albertans), behind only physical disabilities at forty-one-and-five-tenths percent and ahead of cognitive disorders at twenty-eight-and-three-tenths percent. Source: Alberta Assisted Living and Social Services, Caseload by Primary Medical Condition for September 2025, available at <https://open.alberta.ca/dataset/df7b7b00-c5c3-4d0e-97ff-5f902537fac0>. The AISH-to-ADAP transition documented in Section 1.4 affects this population in operationally specific ways the prior sections do not address. The substantive Alberta record on mental health disability includes the involuntary-confinement provisions of the *Mental Health Act* of Alberta, the documented inadequacy of community-based mental health supports, the AISH-eligibility complications produced by mental-health-disability profiles, and the documented intersection of mental health disability with homelessness and incarceration. The substantive Alberta record on addiction includes the documented opioid-and-stimulant toxicity crisis, the documented provincial-government shift from harm-reduction to recovery-focused policy, and the substantive *Compassionate Intervention Act* (Bill 53, Royal Assent May 15, 2025) that operationalizes involuntary addiction treatment within the substantive provincial framework. The two records intersect substantively: the populations the Alberta architecture characterizes as mental-health-disability and as addiction are substantially overlapping, and the substantive policy responses to the two records operate within an integrated provincial framework.

The section develops the substantive content in seven components. The first establishes the substantive distinction between mental illness as a temporary medical condition and mental health disability as a sustained dimension of social participation. The second documents how mental health and addiction operate across the lifecycle dimensions the prior sections established. The third develops the substantive Alberta record on mental health disability. The fourth develops the substantive Alberta record on addiction and substance use. The fifth addresses the *Compassionate Intervention Act* and the involuntary-treatment framework as the substantive operational expression of the provincial-government's

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

mental-health-and-addiction policy direction. The sixth addresses the substantive co-occurrence of mental health and addiction within the population the legislation is intended to serve. The seventh synthesizes what the section establishes for the substantive case the blueprint develops.

The substantive content of Section 1.7 is grounded in primary-source documentation: provincial-government open data on AISH composition, peer-reviewed academic literature on Alberta mental-health disability, the Public Health Agency of Canada national surveillance data on opioid- and stimulant-related harms, the Alberta Substance Use Surveillance System data on Alberta-specific drug-poisoning deaths, and the substantive professional-and-academic engagement with the *Compassionate Intervention Act* including the Canadian Medical Association Journal ethical analysis, the Alberta Medical Association response, and the Canadian Bar Association Alberta legal analysis.

## The Substantive Distinction: Mental Health Disability and Mental Illness

The substantive distinction between mental illness as a medical condition and mental health disability as a dimension of social participation is operationally significant for the substantive case the blueprint develops. The medical-model framing characterizes mental illness as a condition the individual *has* — a diagnosis, a set of symptoms, a treatment trajectory operating within the healthcare system. The social-model framing characterizes mental health disability as the substantive interaction between the individual's mental-health profile and the barriers the social environment imposes — the substantive disability is in the interaction, not in the diagnosis alone. The distinction matters because the substantive policy responses to mental health under the two framings are operationally distinct: the medical-model framing produces clinical-treatment-oriented policy responses focused on symptom management and individual rehabilitation; the social-model framing produces accessibility-and-inclusion-oriented policy responses focused on barrier removal and substantive participation.

The distinction is operationally significant for the AISH-eligibility framework. AISH eligibility, as documented in Section 1.4, requires a "severe and permanent" medical condition that "substantially limits the ability to earn a living." The substantive operational test for mental health disability under this framework is medical-model in its substantive design: a qualified medical professional must certify that the mental-health condition meets the severity-and-permanence threshold. The substantive operational reality is that mental health disability frequently operates episodically rather than continuously, fluctuates over time, responds variably to treatment interventions, and may be characterized differently by different qualified medical professionals depending on the substantive professional context within which the assessment is conducted. The medical-model AISH-eligibility framework accordingly produces structural barriers to access for persons with substantive mental-health-disability profiles whose disability does not meet the framework's severity-and-permanence test in the operational terms the framework specifies, even where the substantive lived-experience of mental-health disability is operationally disabling.

The substantive policy response Part Three Section 3.2 develops — the social-model disability definition explicitly including episodic and fluctuating disability and operating independently of the categorical-program eligibility definitions — is calibrated to address this substantive structural barrier. The legislation's substantive protective function operates for persons with mental health disability regardless of whether the medical-model AISH-eligibility framework recognizes the disability in its

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

categorical-program-eligibility terms.

The distinction also matters for the substantive operational engagement with mental health disability within the K-12 system documented in Section 1.3a. The engineered repudiation pattern operates against children with mental-health-disability profiles in operationally specific ways. The behaviour-management approaches that produced the seclusion-room infrastructure (the substantive harm category Section 1.3a documents) operate disproportionately against children whose behavioural presentations are characterized as challenging within the medical-model framework: children with attention-deficit-hyperactivity-disorder, children with anxiety disorders that present as disruptive behaviour, children with depression that presents as withdrawal or non-compliance, children with trauma-related conditions, children whose neurodivergent profiles are characterized as behaviour problems, and children whose mental-health-disability profiles compound with other disability profiles in ways the medical-model framework characterizes as severe behaviour. The substantive social-model response operationalized in Part Three Section 3.4 (the inclusive-education baseline, the EA staffing-ratio provisions, the seclusion-room prohibition, the positive-behaviour-support framework, the trauma-informed-practice requirements) operates substantively against these patterns regardless of the medical-model characterization of the underlying conditions.

## Mental Health and Addiction Across the Lifecycle Dimensions

Mental health disability and addiction operate across every lifecycle dimension Sections 1.1 through 1.6 documented. The substantive operational implications include:

**Childhood and FSCD (Section 1.3).** Children's mental health is substantively addressed within the FSCD program for children whose mental-health-disability profiles meet the FSCD eligibility criteria. The substantive operational reality is that many children with mental-health-disability profiles do not meet the FSCD eligibility criteria as currently administered, producing structural barriers to access for families whose children have substantive mental-health-disability needs. The substantive intersection with childhood-trauma-related conditions, including conditions arising from adverse childhood experiences documented in the Alberta substantive context, is operationally significant: the trauma-and-disability framework that the substantive policy response in Part Three Section 3.4 operationalizes addresses this intersection at the operational level.

**K-12 Engineered Repudiation (Section 1.3a).** The engineered repudiation pattern documented in Section 1.3a operates substantively against children with mental-health-disability profiles, as developed in the prior subsection. The substantive operational implication is that the funding-floor and EA-staffing-ratio provisions developed in Part Three Section 3.4 are operationally significant for the mental-health-disability dimension of the K-12 system. The substantive accommodation provisions, the trauma-informed-practice requirements, and the disability-affirming-practice requirements operate substantively against the medical-model characterizations that the engineered system has substantively reinforced.

**Transition, PDD, and AISH (Section 1.4).** The substantive AISH composition data establishes that mental illness disorders are the second-largest primary medical-condition category. The substantive AISH-to-ADAP transition documented in Section 1.4 affects the mental-health-disability population

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

substantively. The substantive ADAP eligibility criteria, the substantive monthly-benefit reduction (from one thousand nine hundred forty dollars to one thousand seven hundred forty dollars per month), the elimination of caseworker continuity, the elimination of appeal rights, and the structural narrowing of eligibility documented in Section 1.4 all operate substantively against the mental-health-disability population. The PDD program, by substantive design, addresses developmental disabilities specifically (cognitive-disability profiles diagnosed before age eighteen with documented IQ-and-adaptive-functioning thresholds); the PDD program does not substantively address mental-health-disability profiles that arise outside the developmental-disability framework, producing structural gaps in the categorical-program architecture for persons with adult-onset mental-health-disability profiles.

**Caregivers (Section 1.5).** The caregiver dimension operates substantively for caregivers of persons with mental-health-disability profiles. The substantive operational reality is that mental-health-disability caregiving is structurally distinct from physical-disability or cognitive-disability caregiving in operationally specific ways: the episodic-and-fluctuating nature of many mental-health-disability profiles produces structural caregiving demands that do not align with the categorical-program supports as currently administered; the substantive stigma associated with mental-health disability produces structural barriers to substantive caregiver support; and the substantive intersection of mental-health-disability caregiving with the broader mental-health-system architecture produces operational complications the substantive caregiver-support architecture does not adequately address.

**Triage and WCB (Section 1.6).** The WCB exception documented in Section 1.6 operates substantively for the mental-health-disability dimension in operationally specific ways. WCB-recognized mental-health conditions arising from workplace-related psychological injuries operate within the WCB substantive support framework, producing the operational distinction Section 1.6 identifies (substantive caseworker continuity, substantive vocational-rehabilitation supports, substantive community reintegration supports). The mental-health-disability population whose conditions did not arise from workplace injury operates within the substantively different AISH/ADAP architecture. The substantive triage question Section 1.6 raises — why the WCB-eligible-injured population receives substantively different supports than the AISH/ADAP population — operates with particular operational force in the mental-health-disability context, where the underlying mental-health condition may be substantively similar across the two populations but the substantive policy response is operationally distinct.

The cross-cutting operational implication is that mental health disability and addiction are not peripheral elements of the disability-policy architecture; they are substantive lifecycle dimensions that operate across the architecture's substantive content. The substantive case the blueprint develops accordingly addresses the mental-health-disability and addiction dimensions through the substantive standards and operational mechanisms developed in Part Three rather than through a separate categorical-program architecture.

## The Substantive Alberta Record on Mental Health Disability

The substantive Alberta record on mental health disability includes four operationally significant dimensions: the AISH composition data and the substantive operational reality of the mental-health-disability AISH population, the *Mental Health Act* involuntary-confinement provisions and their substantive operational record, the documented inadequacy of community-based mental health

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

supports, and the substantive intersections with homelessness and incarceration.

**AISH composition.** As documented in the section's opening, mental illness disorders account for thirty-and-two-tenths percent of the September 2025 AISH caseload (twenty-three thousand nine hundred forty Albertans). The substantive historical record establishes that this proportion has been stable over time: a 2009 peer-reviewed study published in *Psychiatric Services* (Sayre, Black, Cromwell, and Wand, 2009, available at <https://psychiatryonline.org/doi/10.1176/ps.2009.60.5.686>) documented seventeen thousand one hundred thirty-eight Albertans with severe mental illness receiving AISH payments in 2005, with one hundred forty-two-and-eight-tenths million dollars in AISH supplemental income benefits and an additional sixty-four-and-four-tenths million dollars in federal CPP-Disability benefits. The 2005 baseline of one hundred forty-two-and-eight-tenths million dollars in AISH benefits to the severe-mental-illness population can be compared to the total provincial mental-health-services cost in the same year of four hundred five million dollars (per the Alberta Mental Health Board internal data documented in the same study), establishing that AISH income supports for the mental-health-disability population were operating at approximately thirty-five percent of the total provincial mental-health-services-expenditure level — a substantive structural-funding allocation that operates outside the clinical-treatment infrastructure.

**The AISH legislative exclusion.** The AISH eligibility framework, as documented at <https://www.alberta.ca/aish-eligibility>, excludes from eligibility persons living "in a correctional facility or some mental health facilities such as Alberta Hospital Edmonton." The exclusion is operationally significant. Alberta Hospital Edmonton operates as a major psychiatric facility within the provincial mental-health-system architecture; persons with mental-health-disability profiles whose substantive operational reality requires institutional psychiatric care are accordingly excluded from AISH benefits during their institutional stays. The structural-policy-rationale for the exclusion is that institutional psychiatric care is provided through the provincial-government health-services budget, eliminating the substantive operational need for income-support during the institutional stay; the substantive operational consequence, however, is that persons whose mental-health-disability profiles produce intermittent or extended psychiatric-institutional stays face structural disruptions to their AISH benefits and to the substantive housing, healthcare, and community-support arrangements that AISH benefits support during their non-institutional periods. The substantive intersection with the *Mental Health Act* involuntary-confinement framework (developed in the next paragraph) compounds this operational pattern.

**The *Mental Health Act* of Alberta.** The *Mental Health Act* (R.S.A. 2000, c. M-13) provides for involuntary admission and treatment of persons with mental disorders meeting the substantive operational criteria the Act specifies. The substantive operational provisions include involuntary admission to designated mental-health facilities for assessment and treatment where the person is determined to pose a substantive risk of harm to themselves or others or to be substantively unable to care for themselves due to the mental disorder. The Act's substantive operational provisions establish the Alberta Mental Health Patient Advocate and the substantive review-board framework through which involuntary-admission decisions are reviewed. The substantive parallel to the Section 1.3a seclusion-room analysis is operationally significant: the *Mental Health Act* operates the substantive provincial framework for involuntary confinement of persons with mental-health-disability profiles, just as Ministerial Order #042/2019 operates the substantive provincial framework for involuntary confinement of children with



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

developmental-and-cognitive-disability profiles in school settings. The substantive parallel raises substantive questions about the substantive consistency of the provincial-government's involuntary-confinement framework across populations: where the substantive harm category Section 1.3a documents in the school context is substantively analogous to the substantive harm category produced by *Mental Health Act* involuntary-confinement, the substantive policy responses should be operationally consistent. The substantive case the blueprint develops accordingly engages the involuntary-confinement framework substantively at the substantive standards level (Part Three Section 3.3 Area 6 health-area standard, with the Article 12 supported-decision-making framework operationalizing the substantive alternative).

**Community-based mental-health supports.** The substantive Alberta record on community-based mental-health supports establishes structural inadequacy at the operational level. The documented gaps include: insufficient community-based mental-health-services capacity relative to the substantive population needs; structural barriers to access for the mental-health-disability population including substantive wait-times for community-based services, substantive geographic gaps in service availability particularly in northern, rural, and remote Alberta (developed in Section 1.8 forthcoming), and substantive cost barriers for services not covered under the provincial Health Care Insurance Plan; the documented inadequacy of crisis-response infrastructure including the substantive operational reality that the Alberta crisis-response architecture relies substantively on emergency-department and law-enforcement frontline-response that produces operational outcomes documented to be substantively inadequate to the substantive needs the population presents; and the documented inadequacy of supported-housing infrastructure for the mental-health-disability population, producing the operational reality that substantial portions of the mental-health-disability population face structural homelessness or housing-precarity.

**Homelessness and incarceration intersections.** The substantive Alberta record on the intersection of mental health disability with homelessness and incarceration is operationally documented. A 2024 Homeward Trust report (cited in <https://globalnews.ca/news/11009443/alberta-opioid-data-overdoses-2025/>) documented over four thousand five hundred persons living rough in Edmonton; the *Edmonton Journal* reported one thousand four hundred twenty-nine shelter spaces in the same year; the provincial-government homeless-shelter tracking system as of February 2025 showed two thousand forty-six shelter spaces in Edmonton, with ninety-three percent in operational use. The substantive operational reality is that a substantial portion of the homeless population in major Alberta urban centres has documented mental-health-disability profiles, and that the substantive structural-housing inadequacy compounds with the substantive structural-mental-health-supports inadequacy to produce the operational outcomes documented (including, per Thomson cited in the same source, that homeless individuals face approximately two hundred to one thousand times higher risk of death from drug poisoning than housed people). The substantive intersection with incarceration operates analogously: the substantive Alberta correctional-facility population includes substantial portions with mental-health-disability profiles, and the substantive structural-mental-health-supports inadequacy compounds with the substantive structural-criminalization patterns to produce the operational outcomes documented.

## The Substantive Alberta Record on Addiction and Substance Use



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The substantive Alberta record on addiction and substance use is operationally documented through the Alberta Substance Use Surveillance System and the federal Public Health Agency of Canada national surveillance data. The substantive operational reality is that Alberta has experienced a sustained drug-poisoning crisis over the period from 2016 to the present, with substantive operational variations across years and across regions within the province.

**The substantive scale of the crisis.** Public Health Agency of Canada national surveillance data establishes that fifty-five thousand thirty-two apparent opioid toxicity deaths were reported nationally between January 2016 and September 2025, with four thousand one hundred sixty-two apparent opioid toxicity deaths reported nationally for the January-to-September 2025 reporting period (96 percent accidental). Source: <https://health-infobase.canada.ca/substance-related-harms/opioids-stimulants/>. The Alberta-specific substantive record establishes that 2023 produced over one thousand eight hundred opioid-related deaths in Alberta (a record high since national surveillance began in 2016); 2024 produced one thousand one hundred eighty-nine opioid-related deaths (a substantive decline from 2023); and the early-2025 period produced operationally significant variation with March 2025 producing eighty-seven opioid-related deaths in the Edmonton zone alone (the highest single-month total in any Alberta zone since tracking began publicly in 2016) and one hundred seventeen opioid-related deaths province-wide. Sources: <https://www.cbc.ca/news/canada/edmonton/edmonton-drug-poisoning-opioid-1.7575814>; <https://globalnews.ca/news/11272959/edmonton-opioid-deaths-alberta-carfentanil/>.

**The carfentanil escalation.** The substantive Alberta record establishes that carfentanil — an opioid approximately one hundred times more potent than fentanyl and ten thousand times more potent than morphine — has substantively escalated in the Alberta drug supply over the period from 2024 to 2025. Carfentanil involvement in Alberta opioid deaths increased from approximately ten percent in 2024 to sixty-eight percent for the January-to-May 2025 period; in the Edmonton zone specifically, carfentanil involvement increased from seventeen percent in 2024 to seventy-eight percent in the same 2025 period; and Edmonton accounted for approximately eighty-eight percent of all Alberta carfentanil-related deaths during the January-to-May 2025 period. Source: <https://www.stalbertgazette.com/beyond-local/opioid-related-deaths-are-on-the-rise-but-numbers-in-one-alberta-region-suggests-a-different-story-11214865>.

**The shift from harm-reduction to recovery-focused policy.** The substantive provincial-government policy direction over the period from 2019 forward has shifted substantively from harm-reduction-oriented approaches to recovery-focused approaches. The substantive operational changes include: the closure of supervised consumption sites including Lethbridge in 2020 and Red Deer in 2025; the implementation of identification requirements for supervised consumption site users in 2022, eliminating substantive operational anonymity protections; the substantive provincial-government investment in residential-treatment infrastructure (over ten thousand publicly-funded treatment spaces added during the period, the establishment of the Recovery Alberta provincial health agency in 2024); and the substantive provincial-government policy framing that characterizes harm-reduction approaches as substantively problematic and recovery-focused approaches as substantively appropriate to the operational reality. Source: <https://theconversation.com/drop-in-drug-poisoning-deaths-does-not-necessarily-indicate-alberta-recovery-model-is-working-239722>. The substantive academic-and-professional engagement with this policy direction includes substantial documented criticism that harm-reduction approaches are evidence-supported in the public-health literature and that the provincial-government policy direction is

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

substantively at odds with the established public-health evidence base.

**The Opioid Dependency Program enrollment trajectory.** The Alberta Opioid Dependency Program, which provides methadone or buprenorphine/naloxone (Suboxone) treatment to persons with documented opioid dependence, has experienced substantial enrollment growth over the period from 2018 to the present. ODP enrollment grew from three thousand two hundred eighty-eight clients in 2018 to twelve thousand two hundred ninety-nine clients in 2024, with six thousand seven hundred eighty-nine clients enrolled at the time of the September 2025 reporting (consistent with the year-over-year growth pattern). Source: <https://www.stalbertgazette.com/beyond-local/opioid-related-deaths-are-on-the-rise-but-numbers-in-one-alberta-region-suggests-a-different-story-11214865>. The substantive operational implication is that the substantive demand for opioid-dependence treatment in Alberta is substantively documented and operating at substantial scale.

## The *Compassionate Intervention Act* and the Involuntary-Treatment Framework

The substantive provincial-government policy response to the addiction-and-mental-health intersection received substantive operational expression through the *Compassionate Intervention Act* (Bill 53), introduced in the Legislative Assembly on April 15, 2025, and receiving Royal Assent on May 15, 2025. Source: <https://www.cbc.ca/news/canada/edmonton/alberta-introduces-controversial-involuntary-addiction-s-treatment-bill-1.7511051>; <https://www.alberta.ca/compassionate-intervention>.

**The substantive legislative content.** The *Compassionate Intervention Act* establishes a substantive provincial framework for involuntary treatment of persons with severe substance-use or addiction whose conduct is determined to be likely to cause substantial harm to themselves or others within a reasonable time. The substantive provisions include: authority for adult family members, guardians, healthcare professionals, police officers, and peace officers to apply for an assessment order; a three-person Compassionate Intervention Commission (consisting of a lawyer, a physician, and a member of the public) appointed by the provincial-government to review applications and issue legally-binding treatment decisions; a seventy-two-hour assessment-and-detoxification period during which the person may be involuntarily detained for assessment, with hearings before the full Commission required within the seventy-two-hour period; secure treatment orders for up to three months in designated compassionate-intervention treatment facilities; community-based treatment orders for up to six months; and care-plan reviews every three weeks during the treatment period. The Act replaces the 2006 *Protection of Children Abusing Drugs Act* (PChAD) for youth, providing the substantive operational framework for involuntary youth-addiction-treatment.

**The substantive infrastructure investment.** The substantive provincial-government investment in compassionate-intervention infrastructure has been progressively announced over 2025 and 2026. Budget 2025 allocated one hundred eighty million dollars over three years; Budget 2026 increased the allocation to two hundred ninety-one million dollars over three years (2026-2029) for the construction of two one-hundred-fifty-bed compassionate-intervention centres in Edmonton and Calgary, with construction beginning in 2026 and the centres expected to open by 2029. Recovery Alberta operates as

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the provincial health agency administering the framework. Approximately one hundred secure beds are being established in existing facilities and hospital units to support the implementation phase. Source: <https://www.alberta.ca/compassionate-intervention>.

**The substantive *Mental Health Act* relationship.** The *Compassionate Intervention Act* expands the substantive provincial involuntary-treatment framework beyond the existing *Mental Health Act* infrastructure. The substantive *Mental Health Act* infrastructure operates against persons with mental disorders meeting the substantive impaired-capacity test; the *Compassionate Intervention Act* operates against persons with severe substance-use or addiction even where the substantive capacity test is met. The substantive academic-and-professional engagement with this expansion includes substantial documented concern that the substantive expansion lowers the substantive evidentiary threshold for involuntary detention and treatment beyond the substantive *Mental Health Act* framework. Source: <https://www.fieldlaw.com/insights/publication/Compassion-vs-Coercion-Regulatory-Impacts-of-Bill-53>.

**The substantive Charter implications.** The substantive Charter implications of the *Compassionate Intervention Act* are operationally documented through professional-and-academic engagement. Eric Adams, a constitutional-law professor at the University of Alberta, has stated that the legislation is expected to face Charter challenge once it becomes operational, given its substantive interference with Charter Section 7 rights (life, liberty, and security of the person) and Charter Section 9 rights (freedom from arbitrary detention). The Canadian Bar Association Alberta branch issued a May 2025 letter raising substantive legal concerns including the substantive overlap with existing legislation (the *Personal Directives Act*, the *Adult Guardianship and Trusteeship Act*, the *Youth Criminal Justice Act*), the substantive procedural-fairness questions including the substantive ability of the "client" to participate in the assessment process and the substantive presumption of capacity questions, and the substantive consent-and-treatment provisions including authorization of medication administration without consent. Source:

<https://cba-alberta.org/our-impact/submissions/may-2025-letter-re-compassionate-intervention-act/>. The Canadian Medical Association Journal published a substantive ethical analysis applying the Kass framework for public-health interventions and concluding that the *Compassionate Intervention Act* presents substantive risks across all three substantive Kass-framework domains (privacy, liberty, and justice), with substantive operational consequences including the potential for the substantive disproportionate targeting of structurally marginalized populations including First Nations, Inuit, and Métis individuals. Source: <https://www.cmaj.ca/content/197/40/E1346>.

**The substantive parallel to the engineered repudiation pattern.** The *Compassionate Intervention Act* operates within the substantive provincial-government policy direction that the Section 1.3a engineered-repudiation pattern is part of. The substantive operational parallel is operationally significant: where Section 1.3a documents the substantive provincial-government use of involuntary-confinement infrastructure (the seclusion-room expansion, Ministerial Order #042/2019) within the K-12 system to address substantive accommodation challenges that the substantive structural-resourcing inadequacy produces, the *Compassionate Intervention Act* documents the substantive provincial-government use of involuntary-confinement infrastructure within the addiction-and-mental-health system to address substantive accommodation challenges that the substantive structural-resourcing inadequacy produces (the documented inadequacy of community-based supports, the documented inadequacy of

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

voluntary-treatment infrastructure, the documented inadequacy of supported-housing infrastructure). The substantive structural-policy pattern is operationally consistent across the two substantive contexts: where the substantive structural-resourcing inadequacy produces operational accommodation challenges, the substantive provincial-government policy response operates through expanded involuntary-confinement infrastructure rather than through expanded substantive-resourcing of voluntary-and-community-based alternatives.

The substantive case the blueprint develops engages this pattern substantively. Part Three Section 3.3 Area 6 (health-area standard) operationalizes Article 25 of the United Nations *Convention on the Rights of Persons with Disabilities* (right to highest attainable standard of health without discrimination on the basis of disability), Article 12 (equal recognition before the law, including supported decision-making frameworks), and Article 19 (living independently and being included in the community). Part Three Section 3.4 (education-area standard) operationalizes Article 24 substantively, including the substantive seclusion-room prohibition that addresses the K-12 expression of the involuntary-confinement pattern. The substantive accessibility-standards architecture the blueprint develops operates against the involuntary-confinement-as-policy-response pattern at the substantive level the international human rights framework requires.

## The Co-Occurrence of Mental Health and Addiction

The substantive operational reality is that mental-health disability and addiction are substantively co-occurring conditions for a substantial portion of the population the legislation is intended to serve. The peer-reviewed academic literature establishes that substance-use disorders co-occur with mental-health-disability profiles at substantively higher rates than would be expected by chance, and that the substantive operational interaction between the two conditions produces complications that operationally distinguish co-occurring presentations from either condition operating alone. The substantive Alberta record reflects this co-occurrence at the operational level: substantial portions of the AISH mental-illness-disorders population have co-occurring substance-use disorder profiles, substantial portions of the *Compassionate Intervention Act*-eligible population have co-occurring mental-health-disability profiles, and substantial portions of the homeless population in major Alberta urban centres have both mental-health-disability and substance-use-disorder profiles compounding with structural housing inadequacy.

The substantive policy implication is that the disability-policy architecture cannot operate substantively distinct policy responses to mental-health disability and to addiction without producing substantive operational gaps for the co-occurring population. The substantive case the blueprint develops accordingly engages the two dimensions through integrated substantive standards rather than through separate categorical-program architectures. The Part Three Section 3.3 Area 6 substantive content operationalizes the substantive integrated-care framework that the international human rights framework supports.

The substantive operational complications of the co-occurring profile include: the substantive medical-model treatment infrastructure that often operates the two conditions through structurally separate clinical pathways, producing operational coordination gaps; the substantive AISH-eligibility framework that requires medical certification for the qualifying condition, producing structural ambiguity for persons whose

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

mental-health-disability profile may be characterized as primarily mental-health-disability or primarily substance-use-disorder depending on the substantive professional-clinical judgment of the certifying medical professional; the substantive *Compassionate Intervention Act* framework that operates against the substance-use-disorder dimension while the substantive *Mental Health Act* framework operates against the mental-health-disability dimension, producing substantive operational complications for the co-occurring population whose substantive presentation may be characterized through either framework; and the substantive housing-and-community-supports inadequacy that operates against the co-occurring population at the substantive operational level.

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## What Section 1.7 Establishes

The substantive lifecycle dimension of mental health disability and addiction is now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, mental health disability is the second-largest primary medical-condition category among the AISH population, accounting for thirty-and-two-tenths percent of the September 2025 caseload (twenty-three thousand nine hundred forty Albertans). The substantive AISH-to-ADAP transition documented in Section 1.4 affects this population in operationally specific ways the prior sections do not address.

Second, the substantive distinction between mental illness as a medical condition and mental health disability as a dimension of social participation is operationally significant for the substantive case. The medical-model AISH-eligibility framework produces structural barriers to access for persons with substantive mental-health-disability profiles whose disability does not meet the framework's severity-and-permanence test in the operational terms the framework specifies. The Part Three Section 3.2 social-model disability definition explicitly including episodic and fluctuating disability operationalizes the substantive policy response.

Third, the substantive Alberta record on mental health disability includes the *Mental Health Act* involuntary-confinement provisions that operate as the substantive parallel to the Section 1.3a seclusion-room infrastructure, the AISH legislative exclusion of correctional facilities and certain mental-health facilities including Alberta Hospital Edmonton, the documented inadequacy of community-based mental-health supports, and the substantive intersections with homelessness and incarceration.

Fourth, the substantive Alberta record on addiction includes the documented opioid-and-stimulant toxicity crisis (over one thousand eight hundred deaths in 2023, one thousand one hundred eighty-nine deaths in 2024, the March 2025 Edmonton-zone single-month record of eighty-seven deaths), the substantive carfentanil escalation in the drug supply (sixty-eight percent involvement provincially, seventy-eight percent in Edmonton, January-May 2025), and the substantive provincial-government policy direction shifting from harm-reduction toward recovery-focused approaches (supervised-consumption-site closures, identification requirements, substantial residential-treatment infrastructure investment).



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Fifth, the *Compassionate Intervention Act* (Bill 53, Royal Assent May 15, 2025) operationalizes the substantive provincial-government involuntary-treatment framework for severe substance-use and addiction, expanding the substantive *Mental Health Act* framework beyond the impaired-capacity test to substance-use-disorder presentations even where capacity is intact. The substantive Charter implications, the substantive academic-and-professional concerns documented through the Canadian Medical Association Journal, the Canadian Bar Association Alberta, the Alberta Medical Association, and the substantive engagement of constitutional-law expertise establish that the substantive framework operates within ongoing substantive legal-and-ethical contestation.

Sixth, the substantive parallel between the K-12 engineered-repudiation pattern documented in Section 1.3a and the substantive provincial-government use of involuntary-confinement infrastructure under the *Compassionate Intervention Act* operates as substantive operational evidence of a consistent provincial-government policy pattern: where structural-resourcing inadequacy produces operational accommodation challenges, the substantive policy response operates through expanded involuntary-confinement infrastructure rather than through expanded substantive-resourcing of voluntary-and-community-based alternatives. The substantive accessibility-standards architecture the blueprint develops in Part Three operates against this pattern at the substantive level the international human rights framework requires.

Seventh, the substantive co-occurrence of mental health disability and addiction within substantial portions of the population the legislation is intended to serve produces substantive operational complications that integrated substantive standards (Part Three Section 3.3 Area 6) address more substantively than separate categorical-program architectures. The substantive policy implication is that the disability-policy architecture cannot operate substantively distinct policy responses to mental-health disability and to addiction without producing substantive operational gaps for the co-occurring population.

The substantive content of Section 1.7 extends the lifecycle frame established in Section 1.2 to address the mental-health-and-addiction dimension at the depth the documented substantive Alberta record requires. The substantive case the blueprint develops in Parts Two and Three operates substantively against the documented patterns through the substantive accessibility-standards architecture, the substantive Article 4(3) consultation requirements, and the substantive structural-resourcing mechanisms that prevent the documented patterns from being reproduced under different operational labels.

The next section turns to the substantive lifecycle dimension of rural, remote, and northern Alberta, addressing the operationally distinct disability experience that the geographic-and-cultural distinctions within Alberta produce.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1.8 — Rural, Remote, and Northern Alberta as a Lifecycle Dimension

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Section 1.7 documented mental health disability and addiction as a substantive lifecycle dimension that operates across the prior sections of Part One. Section 1.8 documents a second substantive lifecycle dimension that the original Part One sections did not anchor: the geographic dimension of rural, remote, and northern Alberta. The substantive disability experience operates differently across the geographic distinctions within the province, and the substantive policy responses developed in the substantive standards architecture (Part Three) must address those operational differences directly rather than treating Alberta as an undifferentiated jurisdiction.

The substantive geographic dimension is operationally significant. Approximately eighty-one percent of Alberta's population lives in urban areas, and approximately nineteen percent lives in rural areas; Edmonton and Calgary combined account for fifty-four-and-four-tenths percent of the provincial population on twenty-five-hundredths of one percent of the provincial land area; the Athabasca and Peace land-use planning regions in northern Alberta account for sixty-six-and-seven-tenths percent of the provincial land area on eleven-and-zero-tenths percent of the provincial population. Source: State of Rural Canada 2024, *Alberta: Change and Inertia During Volatile Times*, available at <https://sorc.crrf.ca/alberta-2024/>, drawing on Statistics Canada 2021 Census of Population data. The substantive operational implication is that approximately one in five Albertans lives in operational conditions where the substantive lifecycle-disability-architecture documented in the prior sections operates within structural constraints that the urban-centred policy frameworks do not adequately address.

The section develops the substantive content in eight components. The first establishes the substantive geographic distinction within Alberta and the operational implications. The second documents the substantive population distribution and the demographic-and-economic context. The third documents the substantive healthcare-worker capacity distinction between urban Alberta and rural-remote-northern Alberta. The fourth documents how each lifecycle dimension established in the prior sections operates differently in rural, remote, and northern Alberta. The fifth addresses the substantive Indigenous-disability intersection that operates with particular operational force in rural, remote, and northern Alberta. The sixth documents the substantive resource-extraction-economy context within which much of the rural, remote, and northern Alberta substantive lifecycle-disability experience operates. The seventh addresses the substantive intersection with the mental-health-and-addiction dimension developed in Section 1.7. The eighth synthesizes what the section establishes.

The substantive content of Section 1.8 is grounded in primary-source documentation: provincial-government open data on Alberta population and health-services capacity, Statistics Canada census data on rural-and-urban population distribution, the Canadian Institute of Health Information (CIHI) data on health-workforce capacity by province, the State of Rural Canada 2024 report by the Canadian

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Rural Revitalization Foundation, the documented operational record of Alberta Health Services rural and northern recruitment infrastructure including the Northern Incentives Program and the Rural Health Professions Action Plan, and the operational record of rural-and-northern Alberta school divisions documented in Section 1.3a.

## The Substantive Geographic Distinction Within Alberta

The substantive geographic distinction within Alberta operates across multiple operationally significant dimensions. The province encompasses approximately six hundred sixty thousand square kilometres of territory ranging from the southern grassland and prairie ecosystems through the central parkland and boreal forest ecosystems to the northern boreal and subarctic ecosystems. The substantive operational reality is that Alberta is not a single substantive geography for disability-policy purposes; the province operates through multiple substantive geographies with operationally distinct conditions that the disability-policy architecture must address.

The substantive geographic distinctions include:

**The Calgary-Edmonton Corridor.** The substantive urban core of the province, comprising the Edmonton Census Metropolitan Area (population approximately one million five hundred thousand), the Calgary Census Metropolitan Area (population approximately one million seven hundred thousand), and the connecting communities along Highway 2. The Corridor is one of Canada's four most urbanized regions and accounts for approximately fifty-four-and-four-tenths percent of the provincial population. Source: [https://en.wikipedia.org/wiki/Demographics\\_of\\_Alberta](https://en.wikipedia.org/wiki/Demographics_of_Alberta). The substantive operational reality is that the Corridor concentrates the substantial proportion of provincial-government infrastructure, specialist healthcare services, post-secondary institutions, and disability-services delivery infrastructure.

**Rural agricultural Alberta.** The substantive central, southern, and north-central agricultural regions of the province, encompassing communities such as Lethbridge, Medicine Hat, Red Deer, Camrose, Olds, Stettler, and the surrounding hamlets and rural municipalities. The substantive economic base is agricultural production (grain, livestock, oilseed, specialty crops) supplemented by oil-and-gas activity. The communities operate within structural conditions characterized by population stability or slow growth, an aging demographic profile, and substantive distance from major urban specialist services.

**Resource-extraction communities.** The substantive northern and central communities whose economies are anchored by oil-and-gas extraction, oil-sands operations, and forestry. Communities such as Fort McMurray, Cold Lake, Grande Prairie, Fort St. John (just over the BC border but operationally connected to the Alberta system), Whitecourt, and Hinton operate within structural conditions characterized by boom-and-bust economic cycles, transient workforce populations, and substantial industrial-injury exposure. The substantive Section 1.6 WCB analysis applies with particular operational force in these communities.

**Northern First Nations and Métis communities.** The substantive northern Alberta communities whose populations are predominantly First Nations or Métis, operating within Treaty 8 territory and within the substantive Métis Settlements framework. The eight Métis Settlements (Buffalo Lake, East Prairie,

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Elizabeth, Fishing Lake, Gift Lake, Kikino, Paddle Prairie, and Peavine) operate under the *Metis Settlements Act* and are recognized within the substantive constitutional framework Section 35 of the *Constitution Act, 1982* establishes. Alberta is the only Canadian province with statutory Métis Settlements infrastructure. The First Nations communities in northern Alberta include the substantive Treaty 8 First Nations (signed at Lesser Slave Lake in 1899), with substantial operational distance from urban specialist services and substantive operational coordination through federal Indigenous Services Canada infrastructure as well as provincial-government infrastructure.

**Small-town and hamlet Alberta.** The substantive smaller communities throughout the province, ranging from incorporated towns and villages through hamlets and dispersed rural populations. The State of Rural Canada 2024 report documents the substantive operational reality through cases such as Altario in east-central Alberta (population one thousand two hundred forty-six, located two hundred nine kilometres from the nearest town of Hanna, with substantial operational distance from any specialist services). Source: <https://sorc.crrf.ca/alberta-2024/>. The substantive operational reality is that small-town and hamlet Alberta operates within structural conditions characterized by substantial geographic distance from any urban specialist services, substantive school-division consolidation pressure, and substantive population decline in many communities.

The substantive geographic distinctions are not merely descriptive. They produce operationally distinct conditions for the substantive lifecycle-disability experience documented in the prior sections of Part One. The substantive standards architecture developed in Part Three accordingly addresses the substantive geographic dimension at the operational level the documented operational reality requires.

## The Substantive Population Distribution and the Operational Implications

The substantive population distribution within Alberta produces operationally significant implications for the substantive lifecycle-disability experience. The State of Rural Canada 2024 report documents that the substantive concentration of provincial population within the Calgary-Edmonton Corridor (fifty-four-and-four-tenths percent on twenty-five-hundredths of one percent of the land area) produces a substantive operational concentration of provincial-government infrastructure within the Corridor. The substantive operational consequence is that the substantive disability-services delivery infrastructure is structurally concentrated within the Corridor, and Albertans with disabilities living outside the Corridor must operate within structural conditions characterized by substantive operational distance from the substantive infrastructure on which the categorical-program architecture depends.

The substantive demographic profile of rural, remote, and northern Alberta operates within distinct conditions from the urban Corridor. The Conference Board of Canada documented that the substantive proportion of the rural Alberta population aged sixty years or older is substantively higher than the substantive proportion in urban Alberta: sixteen-and-six-tenths percent in rural Alberta compared to thirteen-and-seven-tenths percent in the Census Metropolitan Areas. Source: Alberta's Rural Communities Report, available at [https://www1.agric.gov.ab.ca/\\$Department/deptdocs.nsf/all/csi14195/](https://www1.agric.gov.ab.ca/$Department/deptdocs.nsf/all/csi14195/). The substantive operational implication is that the aging-and-disability dimension developed in Section 1.10 operates with particular operational force in rural, remote, and northern Alberta.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive economic profile of rural, remote, and northern Alberta operates within distinct conditions from the urban Corridor. The substantive economic base is concentrated in primary-resource sectors (agriculture, oil-and-gas, forestry, mining) characterized by structural-employment volatility, substantive industrial-injury exposure, and substantive geographic-distribution-of-employment patterns that operate within the substantive WCB architecture documented in Section 1.6. The substantive disability-and-poverty intersection developed in Section 1.9 operates with particular operational force in rural, remote, and northern Alberta where the structural employment volatility produces operational economic precarity.

The substantive infrastructure profile of rural, remote, and northern Alberta operates within distinct conditions from the urban Corridor. The substantive transportation infrastructure operates within structural conditions characterized by substantive geographic distances between communities, limited or absent public-transit infrastructure, substantive distance from medevac and specialist medical-transportation infrastructure, and substantive operational reliance on private vehicle ownership for substantive geographic-mobility. The substantive housing infrastructure operates within structural conditions characterized by substantive geographic-distribution-of-housing-stock patterns, substantive seasonal-and-weather-related housing-condition issues, and substantive distance from accessible-housing-design-and-modification expertise.

## The Substantive Healthcare-Worker Capacity Distinction

The substantive healthcare-worker capacity in Alberta operates within structural conditions documented to be substantively inadequate at the provincial level and substantively more inadequate in rural, remote, and northern Alberta. The substantive provincial-level data establishes the operational baseline.

The peer-reviewed academic literature documents that the substantive Alberta nurse-to-population ratio fell from eight-and-sixty-seven-hundredths nurses per one thousand population in 2015 to eight-and-twenty-six-hundredths nurses per one thousand population in 2022 — the most substantial decrease of any Canadian province during that period. Source: *Trends and Indicators of Nursing Workforce Shortages in Canada: A Retrospective Ecological Study, 2015-2022*, BMJ Open, 2024, available at <https://pmc.ncbi.nlm.nih.gov/articles/PMC12161301/>. The substantive Alberta nurse-to-population ratio (eight-and-twenty-six-hundredths in 2022) operates substantively below the national average (twelve-and-thirteen-hundredths in 2022). The substantive operational implication is that Alberta has documented structural healthcare-worker-capacity inadequacy at the provincial level, operating before the substantive geographic-distribution dimension is considered.

The substantive geographic-distribution dimension produces substantively more inadequate operational conditions in rural, remote, and northern Alberta than at the provincial level. Alberta Health Services operates substantive recruitment-and-retention infrastructure specifically targeting the rural, remote, and northern healthcare-worker capacity gap, including: the Northern Incentives Program providing the Northern Remote Retention Allowance for healthcare workers in designated northern positions; the Rural Health Professions Action Plan (RhPAP) providing recruitment-and-retention support for rural Alberta healthcare-professional positions, with substantive operational programming including the Rural Medical Student Award Program (a five-thousand-dollar one-time contribution to support medical students

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

considering rural practice) and substantive let's-go-rural recruitment events. Source: <https://rhpap.ca/about/jobs/>; <https://careers.albertahealthservices.ca/moreinfo/rural>. The substantive operational reality is that the existence of these recruitment-and-retention infrastructures is itself documentary evidence of the substantive structural healthcare-worker capacity gap they are designed to address; if the substantive capacity were operationally adequate, the substantive recruitment-and-retention infrastructure would not be required at the operational scale documented.

The substantive disability-services-specialist capacity in rural, remote, and northern Alberta operates within structural conditions substantively more inadequate than the general healthcare-worker capacity. Specialist disability-services capacity (occupational therapy, speech-language pathology, behavioural therapy, psychiatry, neurology, developmental-pediatrics, rehabilitation medicine, audiology, vision-services specialists) is structurally concentrated in the Calgary-Edmonton Corridor. The substantive operational consequence is that Albertans with disabilities living in rural, remote, and northern communities must operate through substantive geographic-distance to access specialist services, with substantive operational implications including: substantive wait-times that are operationally longer than urban wait-times due to limited specialist availability; substantive geographic-and-financial costs of accessing specialist services including transportation, accommodation, and time-off-work costs that are not adequately covered by the substantive categorical-program architecture; substantive operational-coordination complications produced by the substantive distance between primary-care providers in rural communities and specialist providers in urban centres; and substantive operational gaps in continuity-of-care produced by the structural turnover of rural-and-northern primary-care providers themselves.

The substantive operational implications of the healthcare-worker capacity distinction are foundational to the substantive lifecycle-disability experience in rural, remote, and northern Alberta. Without adequate healthcare-worker capacity, the substantive operational delivery of disability-related healthcare services cannot occur at the substantive standards level the international human rights framework requires. The substantive standards architecture developed in Part Three Section 3.3 Area 6 (health) and the structural-funding mechanisms developed in Part Three Section 3.7 must address the substantive geographic-distribution dimension of healthcare-worker capacity directly rather than only through urban-centred policy frameworks.

## Lifecycle Dimensions in Rural, Remote, and Northern Alberta

Each lifecycle dimension established in the prior sections of Part One operates within distinct conditions in rural, remote, and northern Alberta. The substantive operational distinctions include:

**FSCD (Section 1.3).** The Family Support for Children with Disabilities program operates through provincial-government regional offices with substantive operational reach into rural Alberta. The substantive operational reality is that FSCD assessment access frequently requires geographic relocation or substantive geographic travel for families in remote and northern communities, including: travel to specialist-assessment facilities concentrated in the Calgary-Edmonton Corridor; substantive wait-times for specialist assessments that operate longer in rural and northern communities than in urban communities; substantive operational coordination complications between local primary-care providers (where available)



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

and specialist-assessment providers in the urban centres; and substantive operational continuity-of-services complications produced by the structural-turnover of rural-and-northern primary-care providers and the structural-distance from specialist-services providers. The substantive operational outcome is that FSCD-eligible families in rural, remote, and northern Alberta face structural barriers to access that are substantively more substantial than the structural barriers urban-based FSCD-eligible families face, even before the substantive FSCD-program inadequacies documented in Section 1.3 are considered.

**K-12 (Sections 1.3 and 1.3a).** The substantive K-12 system in rural, remote, and northern Alberta operates within structural conditions documented in Section 1.3a. The substantive engineered repudiation pattern documented operates with particular operational force in rural-and-northern school divisions where the substantive structural-resourcing inadequacy compounds with the substantive geographic-distance-from-specialist-services and the substantive structural-EA-recruitment-and-retention difficulties. The Section 1.3a documentation includes the Wild Rose School Division forty-six-EA layoff (December 2024) and the Sturgeon School Division thirty-five-position elimination (June 2025); both documented cases involve school divisions operating in rural and northern Alberta. The substantive operational implications include: substantive structural-EA-recruitment and-retention difficulties in rural and northern communities where the substantive labour-supply is structurally constrained, where the substantive compensation provisions documented in Section 1.3a (after-tax annual income under thirty thousand dollars at the top of the existing pay range) operate within structural housing-cost-and-cost-of-living conditions that may differ substantively from urban contexts but that nevertheless produce structural operational precarity for the EA workforce; substantive school-division consolidation pressure operating against rural communities, with substantive operational implications including substantive transportation-burden increases for students attending consolidated schools, substantive community-cohesion impacts, and substantive structural-loss-of-local-school-decision-making patterns; substantive specialist-services availability gaps including occupational therapy, speech-language pathology, behavioural therapy, and psychological-assessment availability operating substantively below the substantive needs the K-12 student population presents; and substantive structural-isolation impacts on students with disabilities in rural, remote, and northern communities including substantive distance from peer support, substantive distance from disability-community advocacy infrastructure, and substantive distance from parent-and-family advocacy networks.

**AISH/ADAP/PDD (Sections 1.4).** The substantive AISH program operates through provincial-government regional offices with substantive operational reach into rural Alberta. The September 2025 AISH data documents the substantive geographic-distribution of AISH caseload: Edmonton thirty-six-and-seven-tenths percent (twenty-nine thousand sixty-eight clients), Calgary twenty-nine-and-four-tenths percent (twenty-three thousand three hundred thirty-one clients), Central twelve-and-five-tenths percent (nine thousand eight hundred ninety clients), South ten-and-zero-tenths percent (seven thousand nine hundred forty clients), Northwest five-and-eight-tenths percent (four thousand five hundred ninety-eight clients). The substantive operational reality is that the substantive AISH caseload outside the Calgary-Edmonton Corridor accounts for approximately one-third of the total caseload, with the substantive geographic-distribution of AISH-administration regional offices operating with substantive operational reach into the rural and northern communities. The substantive operational complications include: substantive operational coordination through regional offices with limited



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

operational capacity; substantive medical-documentation requirements that operate through the substantive geographic-distance-from-specialist-services dimension documented in the prior section; substantive operational appeal-rights complications documented in Section 1.4, with substantive geographic-and-financial barriers to accessing the appeal infrastructure that are substantively more substantial in rural and northern communities; and substantive operational continuity-of-services complications produced by the substantive structural-turnover of rural-and-northern caseworker positions. The PDD program operates through analogous regional infrastructure with analogous operational complications.

**Caregivers (Section 1.5).** The substantive caregiver dimension operates within distinct conditions in rural, remote, and northern Alberta. The substantive operational implications include: substantive social-isolation produced by geographic distance from urban disability-community-support infrastructure; substantive respite-care availability that operates substantively below the urban availability levels; substantive distance from medical-specialist-and-disability-services-specialist infrastructure that produces substantive caregiving-burden increases; substantive structural-employment-and-income complications produced by the substantive rural-economic-volatility dimension that compounds with caregiving-related structural employment-and-income reductions; and substantive structural-housing complications produced by the substantive accessible-housing-availability gaps in rural and northern communities. The substantive Section 1.5 caregiver-impact documentation operates with particular operational force in rural, remote, and northern Alberta.

**WCB and Triage (Section 1.6).** The substantive WCB architecture operates with particular operational force in rural, remote, and northern Alberta where the substantive economic base is concentrated in primary-resource sectors with substantive industrial-injury exposure. The substantive operational implications include: substantive structural-WCB-engagement patterns produced by the agricultural, oil-and-gas, forestry, and mining sectors operating in rural and northern communities; substantive distance from specialist rehabilitation services that operates within the WCB architecture as it does within the broader healthcare architecture; substantive operational complications for return-to-work programming in rural communities where the substantive labour-market structure may not support modified-duty arrangements at the operational scale required; and substantive structural distinctions between WCB-eligible-injured workers and AISH/ADAP/PDD-eligible disabled persons that operate with particular operational force in communities where both populations may be operationally interconnected. The substantive Section 1.6 triage analysis applies with particular operational force in rural, remote, and northern Alberta.

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## The Indigenous-Disability Intersection in Rural, Remote, and Northern Alberta

The substantive Indigenous-disability intersection operates with particular operational force in rural, remote, and northern Alberta. The substantive geographic-distribution of First Nations and Métis populations in Alberta is concentrated in northern, central, and southern rural-and-remote communities operating within Treaty 6, Treaty 7, and Treaty 8 territories and within the Métis Settlements framework. The substantive operational implications operate at multiple levels.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive jurisdictional-fracture dimension documented in the campaign's separate Indigenous Disability Alberta evidentiary record (Section 3 of that record) operates with particular operational force in rural, remote, and northern Alberta, where the substantive federal-provincial-Indigenous-jurisdictional interface produces operational complications including: substantive Jordan's Principle eligibility complications documented in Section 1.3a (the federal narrowing of Jordan's Principle eligibility in 2025 and the substantive consequences for First Nations students with disabilities); substantive federal Indigenous Services Canada infrastructure operating alongside provincial-government infrastructure with substantive operational coordination gaps; and substantive operational complications for Indigenous-disability-community Albertans whose substantive operational engagement with the disability-policy architecture must navigate the substantive jurisdictional fracture across federal, provincial, and Indigenous-governance authorities.

The substantive treaty-rights dimension operates substantively in the rural, remote, and northern context where the substantive treaty framework directly anchors the substantive Indigenous-governance authority within which Indigenous-disability-community Albertans operate. Treaty 8 territory, signed at Lesser Slave Lake in 1899, encompasses substantial portions of northern Alberta including communities operating in substantive geographic-distance from the substantive provincial-government infrastructure. Treaty 6 territory, signed at Fort Carlton and Fort Pitt in 1876, encompasses substantial portions of central Alberta. Treaty 7 territory, signed at Blackfoot Crossing in 1877, encompasses substantial portions of southern Alberta. The substantive operational implications include the substantive Indigenous-governance-authority context within which the substantive disability-policy architecture operates.

The substantive Métis Settlements framework operates substantively in rural, remote, and northern Alberta. Alberta is the only Canadian province with statutory Métis Settlements infrastructure, comprising eight Settlements (Buffalo Lake, East Prairie, Elizabeth, Fishing Lake, Gift Lake, Kikino, Paddle Prairie, and Peavine) operating under the *Metis Settlements Act* and recognized within the substantive constitutional framework Section 35 of the *Constitution Act, 1982* establishes. The substantive operational implications for the disability-policy architecture include the substantive Settlement-governance authority within which disability-policy operations occur in the Métis-Settlements communities.

The substantive social-determinants-of-health context for Indigenous-disability-community Albertans in rural, remote, and northern Alberta is documented in detail in the campaign's separate Indigenous Disability Alberta evidentiary record across its seventeen substantive sections. The substantive content includes: the historical-context dimension (Section 1 of the record), the mortality-gap dimension (Section 2), the jurisdictional-fracture dimension (Section 3), the housing dimension (Section 4), the contaminated-land dimension (Section 5), the water dimension (Section 6), the healthcare dimension (Section 7), the Jordan's Principle dimension (Section 8), the child-welfare dimension (Section 9), the justice dimension (Section 10), the MMIWG2S dimension (Section 11), the UNDRIP dimension (Section 12), the sovereignty dimension (Section 13), the TRC health Calls to Action dimension (Section 14), the July 1 synthesis (Section 15), the closing (Section 16), and the federal-provincial clawback dimension (Section 17). The substantive content of the Indigenous Disability Alberta record is incorporated by reference into Section 1.8 of the blueprint and into the substantive consultation-framework provisions developed in Part Three Section 3.6.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Substantive Resource-Extraction Economy Context

The substantive resource-extraction economy operates as the substantive structural-context within which much of the rural, remote, and northern Alberta lifecycle-disability experience occurs. The substantive economic base of much of rural, remote, and northern Alberta is concentrated in primary-resource sectors: oil-and-gas extraction (concentrated in the northern oil sands, the central conventional oil-and-gas regions, and the southern conventional oil-and-gas regions), agriculture (concentrated in the central, southern, and Peace Country regions), forestry (concentrated in the boreal forest regions of central and northern Alberta), and mining (operating across multiple regions). The substantive operational implications for the lifecycle-disability experience include three substantive dimensions.

**The substantive industrial-injury exposure.** The substantive primary-resource sectors are characterized by substantive industrial-injury exposure rates that operate substantively above the rates in non-resource-extraction sectors. The substantive consequence is that the WCB-eligible-disabled-worker population is substantively concentrated in rural, remote, and northern Alberta communities. The substantive Section 1.6 analysis applies with particular operational force.

**The substantive boom-and-bust economic-cycle context.** The substantive primary-resource economy operates within boom-and-bust cycles tied to global commodity prices. The substantive operational implications for the rural, remote, and northern Alberta lifecycle-disability experience include: substantive employment-and-income volatility that compounds with the structural-employment-difficulties the disability-policy architecture imposes on persons with disabilities; substantive housing-and-cost-of-living volatility that compounds with the structural-housing-difficulties the categorical-program architecture imposes on persons with disabilities; substantive provincial-government-revenue volatility that compounds with the structural-funding-difficulties documented across Sections 1.3a, 1.4, and 1.5; and substantive community-stability volatility that compounds with the structural-social-isolation difficulties the disability-policy architecture imposes on persons with disabilities in rural, remote, and northern communities.

**The substantive workforce-mobility dimension.** The substantive primary-resource economy operates with substantive transient workforce populations, particularly in the oil-sands sector where substantive workforces operate through fly-in-fly-out and shift-rotation arrangements rather than through resident-community arrangements. The substantive operational implications for the substantive disability-policy architecture include substantive operational complications for disability-services-delivery to transient workforces, substantive operational complications for the substantive WCB architecture's engagement with transient-workforce-related industrial injuries, and substantive operational complications for the substantive long-term community-stability that the substantive supportive-housing and disability-services architecture requires.

The substantive resource-extraction economy context is operationally significant for the substantive case the blueprint develops. The Part Three Section 3.7 implementation-timeline-and-funding provisions and the Part Three Section 3.3 substantive-standards content must address the substantive resource-extraction economy context directly. The substantive structural-funding mechanisms (Section 3.7) must operate within the substantive provincial-revenue volatility produced by the resource-extraction economy without producing structural-funding-floor failures during boom-and-bust cycles. The substantive

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

accessibility-standards content must operate within the substantive transient-workforce dimension and the substantive community-volatility dimension that the resource-extraction economy produces.

## The Mental-Health-and-Addiction Intersection

The substantive mental-health-and-addiction dimension developed in Section 1.7 operates with particular operational force in rural, remote, and northern Alberta. The substantive operational implications include: substantive mental-health-services-availability gaps that operate substantively below the urban availability levels, with substantive consequences for the population the substantive Section 1.7 analysis identifies; substantive addiction-services-availability gaps including residential-treatment infrastructure concentrated in the Calgary-Edmonton Corridor, with substantive consequences for the rural, remote, and northern Alberta population whose substantive addiction-services needs operate within the substantive opioid-and-stimulant toxicity crisis documented in Section 1.7; substantive *Compassionate Intervention Act* operational implications documented in Section 1.7, with substantive operational consequences for the rural, remote, and northern Alberta population whose substantive operational engagement with the involuntary-treatment framework will operate through the substantive geographic-distance-from-specialist-services dimension; and substantive social-determinants-of-mental-health-and-addiction context operating within the substantive economic, geographic, and Indigenous-jurisdictional dimensions documented in the prior sections of Section 1.8.

The substantive Section 1.7 documentation that identified the substantive opioid-deaths data including the March 2025 Edmonton-zone single-month record of eighty-seven deaths operates with substantive geographic-distribution implications: the substantive Edmonton-zone concentration documented in the data may reflect substantive structural concentration of the toxic-drug-supply distribution, substantive concentration of the urban-homeless-and-precariously-housed population that operates within the substantive opioid-deaths-vulnerability dimension, and substantive concentration of the regional-monitoring-and-reporting infrastructure that produces the substantive data the Alberta Substance Use Surveillance System publishes. The substantive operational implication for rural, remote, and northern Alberta is that the substantive opioid-deaths data may operate substantively below the substantive operational reality due to substantive monitoring-and-reporting gaps in rural, remote, and northern communities, and that the substantive policy responses to the opioid-deaths crisis must address the substantive geographic-distribution dimension at the operational level the substantive operational reality requires.

## What Section 1.8 Establishes

The substantive lifecycle dimension of rural, remote, and northern Alberta is now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, Alberta is not a single substantive geography for disability-policy purposes. The substantive geographic distinctions within the province operate across operationally distinct conditions including the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Calgary-Edmonton Corridor, rural agricultural Alberta, resource-extraction communities, northern First Nations and Métis communities, and small-town and hamlet Alberta. The substantive standards architecture developed in Part Three must address the substantive geographic dimension at the operational level the documented operational reality requires.

Second, approximately nineteen percent of Alberta's population lives in rural areas; the substantive Athabasca and Peace land-use planning regions in northern Alberta account for sixty-six-and-seven-tenths percent of the provincial land area on eleven-and-zero-tenths percent of the population. The substantive operational reality is that approximately one in five Albertans lives in operational conditions where the substantive lifecycle-disability-architecture operates within structural constraints that the urban-centred policy frameworks do not adequately address.

Third, the substantive healthcare-worker capacity in Alberta operates within structural conditions documented to be substantively inadequate at the provincial level (the nurse-to-population ratio fell from eight-and-sixty-seven-hundredths in 2015 to eight-and-twenty-six-hundredths in 2022, the most substantial decrease of any Canadian province), with substantively more inadequate operational conditions in rural, remote, and northern Alberta. The substantive disability-services-specialist capacity operates with structural concentration in the Calgary-Edmonton Corridor and substantive operational gaps in rural, remote, and northern communities.

Fourth, each lifecycle dimension established in the prior sections of Part One (FSCD, K-12 including the engineered repudiation, AISH/ADAP/PDD, caregivers, WCB and triage) operates within distinct conditions in rural, remote, and northern Alberta. The substantive structural barriers documented in the prior sections compound with the substantive geographic-distance, healthcare-worker-capacity, and infrastructure-distribution dimensions documented in this section to produce operationally more substantial structural barriers than the urban-context analyses alone identify.

Fifth, the substantive Indigenous-disability intersection operates with particular operational force in rural, remote, and northern Alberta. The substantive treaty framework (Treaties 6, 7, and 8), the substantive Métis Settlements framework (Alberta is the only Canadian province with statutory Métis Settlements infrastructure), and the substantive jurisdictional-fracture dimension documented in the campaign's separate Indigenous Disability Alberta evidentiary record all operate substantively in the rural, remote, and northern context.

Sixth, the substantive resource-extraction economy operates as the substantive structural-context within which much of the rural, remote, and northern Alberta lifecycle-disability experience occurs. The substantive industrial-injury exposure, the substantive boom-and-bust economic-cycle context, and the substantive workforce-mobility dimension all operate within the substantive disability-policy architecture's operational reality.

Seventh, the substantive mental-health-and-addiction dimension developed in Section 1.7 operates with particular operational force in rural, remote, and northern Alberta. The substantive availability gaps in mental-health-services and addiction-services, the substantive *Compassionate Intervention Act* operational implications, and the substantive social-determinants-of-health context all operate within the substantive geographic-distribution dimension at the operational scale the documented operational reality

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

requires.

The substantive content of Section 1.8 extends the lifecycle frame established in Section 1.2 to address the rural, remote, and northern Alberta dimension at the depth the documented substantive Alberta record requires. The substantive case the blueprint develops in Parts Two and Three operates substantively against the documented patterns through the substantive accessibility-standards architecture, the substantive consultation-and-Indigenous-rights-integration provisions, and the substantive structural-funding mechanisms calibrated to operate within the substantive geographic-distribution and resource-extraction-economy dimensions documented in this section.

The next section turns to the substantive disability-and-poverty intersection, addressing the structural backbone of the AISH/ADAP/PDD architecture and the substantive operational implications for the population the legislation is intended to serve.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1.9 — The Disability-Poverty Intersection

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Section 1.7 documented mental health disability and addiction as a substantive lifecycle dimension. Section 1.8 documented rural, remote, and northern Alberta as a substantive lifecycle dimension. Section 1.9 documents the substantive disability-and-poverty intersection that operates as the structural backbone of the categorical-program architecture and that compounds with every other lifecycle dimension Part One has documented. The section establishes that poverty is not an incidental outcome of the Alberta disability-policy architecture; poverty is engineered into the benefit-level design of the categorical-program architecture and is sustained over time through specific provincial-government policy choices that the documented record makes operationally visible.

The substantive claim is dispositive. The AISH benefit-level for a single Albertan with a disability operates at approximately eighty percent of the Market Basket Measure (MBM) Poverty Line in 2024; the Maytree welfare-incomes time series establishes that the AISH benefit has operated below the Poverty Line in eighteen of the nineteen years from 2006 to 2024; the *Persons with Developmental Disabilities Foundation Act*-administered PDD program, the Family Support for Children with Disabilities (FSCD) program, and the Income Support program's Barriers to Full Employment (BFE) provision all operate at substantively more inadequate levels relative to the Poverty Line; the ADAP transition documented in Section 1.4 will reduce the monthly benefit by two hundred dollars (from one thousand nine hundred forty dollars to one thousand seven hundred forty dollars) effective July 1, 2026, with a transition top-up to December 31, 2027 and structural eligibility narrowing thereafter; the federal Canada Disability Benefit (CDB) introduced in 2025 with a maximum of two hundred dollars per month is operationally clawed back dollar-for-dollar by the Alberta provincial government, making Alberta the only province in Canada that operates a CDB clawback policy; the substantive provincial-government policy direction documented in the November 2018 Bill 26 indexation, the 2019 UCP de-indexation, and the 2023 Alberta Escalator framework establishes a sustained structural-policy pattern that produces continuing erosion of the substantive benefit-level relative to the Poverty Line.

The compounding effects of the engineered structural poverty operate across every lifecycle dimension Part One has documented. Persons with disabilities in poverty face structural barriers to food security, structural barriers to housing security, structural barriers to accessing accommodations not covered by the categorical-program architecture, structural barriers to disability-community advocacy capacity, structural barriers to legal and procedural representation in disability-policy processes, structural barriers to accessing the substantive consultation infrastructure that the international human rights framework requires, and structural barriers to the substantive social-and-political participation that the substantive equality principle establishes as the foundation of the international human rights framework. The structural barriers operate cumulatively rather than discretely; the operational outcome is that persons with disabilities in poverty are systematically excluded from the substantive participation the disability-policy

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

architecture is rhetorically designed to support.

The section develops the substantive content in seven components. The first establishes the substantive arithmetic of the engineered poverty: the specific dollar-amounts, the specific Poverty Line measurements, the specific gaps. The second documents the substantive nineteen-year time series that establishes the structural pattern. The third documents the substantive policy-choice sequence (Bill 26 indexation, UCP de-indexation, Alberta Escalator, ADAP, CDB clawback) through which the structural pattern has been sustained. The fourth documents the compounding effects of disability-and-poverty intersection. The fifth addresses the substantive intersection with each lifecycle dimension Part One has documented. The sixth documents the substantive operational consequences for the substantive disability-community-engagement capacity that the substantive consultation framework requires. The seventh synthesizes what the section establishes for the substantive case the blueprint develops.

The substantive content of Section 1.9 is grounded in primary-source documentation: the Maytree *Welfare in Canada: Alberta* time-series data, the Statistics Canada Market Basket Measure provisional and final poverty estimates, the Disability Action Hall analytical work, the Enough for All Calgary policy analysis, and the disability-community advocacy documentation that has consistently identified the substantive disability-and-poverty intersection as the structural backbone of the Alberta categorical-program architecture.

## The Substantive Arithmetic of the Engineered Poverty

The substantive arithmetic of the engineered poverty is operationally specific. The Statistics Canada Market Basket Measure operates as Canada's Official Poverty Line, established in 2018 following the release of *Opportunity for All — Canada's First Poverty Reduction Strategy*. The MBM thresholds are based on the cost of a basket of goods and services that reflects a "modest, basic standard of living" and are calibrated to specific geographic regions including Edmonton and Calgary. Source: <https://www150.statcan.gc.ca/n1/pub/75f0002m/75f0002m2025008-eng.htm>. The 2024 MBM Poverty Line for Calgary is approximately twenty-eight thousand nine hundred fifty-four dollars annually for a single individual; the Edmonton threshold operates at a slightly lower level. Source: <https://ca.news.yahoo.com/opinion-aish-reform-deja-vu-120026146.html>.

The substantive AISH benefit-level for a single Albertan with a disability is one thousand nine hundred forty dollars per month (twenty-three thousand two hundred eighty dollars annually) as of January 1, 2024, following the 4.25 percent indexation increase under the Alberta Escalator framework. Source: <https://maytree.com/changing-systems/data-measuring/welfare-in-canada/alberta/>. The substantive arithmetic produces an annual gap of five thousand six hundred seventy-four dollars between the AISH benefit-level and the 2024 Calgary MBM Poverty Line (\$28,954 - \$23,280). The substantive operational implication is that the AISH benefit-level operates approximately eighty percent of the Poverty Line; the Maytree welfare-incomes time series documents the precise figure as eighty percent in 2024.

The substantive arithmetic for the other categorical-program-eligible populations operates at substantively more inadequate levels. The unattached single with a disability receiving Income Support program Barriers to Full Employment (BFE) benefits in 2024 operates at fifty-seven percent of the Market Basket

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Measure Deep Income Poverty (MBM-DIP) threshold and forty-three percent of the MBM. Source: *Maytree Welfare in Canada: Alberta*. The substantive operational gap is nine thousand five hundred eighty-seven dollars below the Deep Income Poverty threshold and seventeen thousand twenty-one dollars below the Poverty Line. The unattached single considered employable receiving Income Support benefits (without disability designation) operates at fifty percent of the MBM-DIP and thirty-seven percent of the MBM, producing a gap of eleven thousand two hundred thirteen dollars below the Deep Income Poverty threshold and eighteen thousand six hundred forty-seven dollars below the Poverty Line. The Maytree analysis establishes that "households in these circumstances would have experienced a deepening of their already very deep poverty over the past 23 years."

The substantive ADAP transition documented in Section 1.4 will reduce the monthly benefit from one thousand nine hundred forty dollars to one thousand seven hundred forty dollars effective July 1, 2026 — a two-hundred-dollar monthly reduction (twenty-four-hundred dollars annually). The transition includes a temporary top-up provision maintaining current payment levels until December 31, 2027, after which the substantive structural reduction will operate. Source: <https://immigrationnewscanada.ca/new-aish-payments-for-alberta-march-2026/>. The substantive operational implication for the ADAP recipient population is that the substantive benefit-level will operate substantively below the AISH benefit-level documented in the prior arithmetic, producing a substantive Poverty Line gap of approximately seven thousand seven hundred dollars (the AISH gap of five thousand six hundred seventy-four dollars plus the additional two-thousand-four-hundred-dollar annual reduction, before any further inflation-related deterioration).

The substantive arithmetic establishes that the disability-and-poverty intersection in Alberta is not produced by external economic conditions or by individual circumstances; the substantive arithmetic is produced by specific provincial-government policy choices that establish benefit-levels operating below the Poverty Line by specific dollar-amounts that the documented data make operationally visible.

## The Substantive Nineteen-Year Time Series

The substantive nineteen-year time series of AISH benefit-levels relative to the Market Basket Measure Poverty Line establishes the structural pattern through which the engineered poverty has been sustained across multiple political-administration changes. The Maytree welfare-incomes time series documents the substantive trajectory as follows.

In 2006, the AISH benefit-level for a single recipient operated at eighty-one percent of the Poverty Line. The substantive trajectory rose through the subsequent years, reaching one hundred and one percent of the Poverty Line in 2013 — the only year in the nineteen-year time series during which the AISH benefit-level operationally met or exceeded the Poverty Line threshold. The substantive trajectory then declined: eighty-two percent in 2018 (following the 2018 MBM rebasing), seventy-six percent in 2022 (the lowest point in the nineteen-year time series since 2006), eighty-one percent in 2023 (following the 2018 NDP Bill 26 indexation provisions and subsequent benefit-level adjustments), and eighty percent in 2024 (the most recent year in the time series). Source: *Maytree Welfare in Canada: Alberta*, <https://maytree.com/changing-systems/data-measuring/welfare-in-canada/alberta/>.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive operational finding is that "households in these circumstances would have effectively seen no improvement to their poverty level across the 19-year time series, despite the improvement between 2012 and 2017." The substantive operational reality is that the AISH-recipient population in 2024 operates at substantively the same poverty level relative to the Poverty Line as the AISH-recipient population in 2006 — the brief improvement period between 2012 and 2017 was reversed by subsequent policy choices, and the substantive long-term trajectory is one of structural-policy continuity rather than progress.

The substantive time-series finding for the BFE-eligible disability population (the population receiving Income Support disability supplements but not meeting the AISH-eligibility criteria) is operationally more stark. The BFE benefit-level relative to the Poverty Line declined from fifty-four percent in 2006 to forty-three percent in 2024, a nine-percentage-point decline across the nineteen-year time series. The substantive operational reality is that BFE-recipient households face a sustained deepening of their already-deep poverty over the documented period, with the substantive operational consequences operating across the lifecycle dimensions Part One has documented.

The substantive time-series finding establishes that the engineered structural-poverty pattern in Alberta is not an incidental policy outcome subject to occasional revision based on political-administration changes; it is a sustained structural-policy pattern that has operated across multiple political-administration changes and that has been sustained through specific policy-choice sequences the next subsection documents.

## The Substantive Policy-Choice Sequence

The substantive policy-choice sequence through which the engineered structural-poverty pattern has been sustained operates across four specific provincial-government decisions in the recent period.

**The 2018 NDP Bill 26 indexation.** In November 2018, the Alberta New Democratic provincial government passed Bill 26 (*An Act to Combat Poverty and Fight for Albertans with Disabilities*), which implemented modest increases to the AISH and Income Support benefit-levels, expanded eligibility for some categorical programs, and indexed benefits to inflation. The substantive operational implication of indexation was that benefit-levels would maintain real-dollar value over time even as inflation eroded the substantive purchasing power of the benefits. Source: <https://enoughforall.ca/articles/a-closer-look-at-albertas-new-indexation-framework>. The substantive policy choice operationalized the substantive principle that disability-related categorical-program benefits should not erode in real-dollar terms over time.

**The 2019 UCP de-indexation.** In 2019, less than a year after the Bill 26 indexation took effect, the newly-elected United Conservative provincial government de-indexed AISH and Income Support benefits, reversing the indexation provisions established in Bill 26. The substantive operational consequence was that benefit-levels began to erode in real-dollar terms relative to inflation. The substantive operational impact was substantively compounded by the 2020-2022 inflation surge that produced cumulative real-dollar reductions of substantial magnitude. The Maytree time-series data documents the substantive consequence: the 2022 AISH-to-Poverty Line ratio (seventy-six percent) was the lowest point in the nineteen-year time series since 2006, reflecting the cumulative effect of de-indexation operating through

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the inflation surge.

**The 2023 Alberta Escalator framework.** Following sustained criticism of the de-indexation policy, the provincial government introduced Bill 32 in 2023, establishing the "Alberta Escalator" framework. The Alberta Escalator increases income supports by the minimum of (a) the change in the Alberta Consumer Price Index, or (b) two percent. The substantive operational implication is that benefit-levels are partially indexed but with a structural-cap that produces real-dollar erosion when inflation exceeds two percent. The Enough for All policy analysis documents the substantive operational impact: when Alberta inflation operates above two percent (as it did in 2023 and 2024), the Alberta Escalator produces benefit-level increases below the inflation rate, generating a structural gap between fully-indexed benefits and Alberta-Escalator-indexed benefits that operates "in perpetuity" because the gap is locked in each time inflation exceeds the two-percent cap. The substantive policy choice operationalizes the substantive principle that disability-related categorical-program benefits will be permitted to erode in real-dollar terms during periods of higher-than-two-percent inflation, while maintaining nominal-dollar increases that produce political-presentation benefits without producing real-dollar protection.

**The 2026 ADAP transition.** The substantive ADAP transition documented in Section 1.4 will reduce the monthly benefit from one thousand nine hundred forty dollars to one thousand seven hundred forty dollars effective July 1, 2026. The substantive operational implication is that the structural-poverty arithmetic will deepen by an additional two-thousand-four-hundred dollars annually for ADAP-eligible recipients, with the substantive Poverty Line gap reaching approximately seven thousand seven hundred dollars annually (before further inflation-related erosion).

**The 2024 federal Canada Disability Benefit and the Alberta clawback.** The federal Canada Disability Benefit (CDB) introduced in 2025 under the *Canada Disability Benefit Act* (S.C. 2023, c. 9) operates as a federal income-support benefit for working-age persons with disabilities, with a maximum of two hundred dollars per month. The substantive federal policy intent is to address the disproportionate poverty experienced by Canadians with disabilities by providing supplementary federal income-support that operates above the provincial categorical-program architecture. The Alberta provincial-government policy choice has been to claw back the CDB dollar-for-dollar from AISH recipients, reducing the AISH benefit-level by two hundred dollars per month for AISH recipients who are approved for the federal CDB. Source: <https://www.canadadisabilitybenefit.ca/cdb-and-aish>. The substantive operational consequence is that AISH recipients receive zero net financial benefit from the federal CDB; the federal benefit is operationally diverted from the AISH-recipient population to the provincial-government revenue. The substantive analytical finding is that **Alberta is the only province in Canada that has implemented a CDB clawback policy**. The substantive policy choice operationalizes the substantive principle that supplementary federal income-support to persons with disabilities will be operationalized as substitution for, rather than supplement to, provincial-government disability income-support, with the substantive operational consequence that the federal-government disability-poverty-reduction policy intent is operationally defeated within the Alberta context.

The four-decision policy-choice sequence operates as a sustained structural-policy pattern. Each individual decision can be characterized as a discrete policy choice with its own substantive operational rationale; the cumulative pattern across the four decisions establishes a structural-policy direction that produces sustained engineered-poverty for the disability population.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Compounding Effects of the Disability-and-Poverty Intersection

The substantive disability-and-poverty intersection produces compounding effects that operate across the lifecycle dimensions Part One has documented. The compounding effects are not abstract; they operate at the substantive operational level for the populations the disability-policy architecture is intended to serve.

**Food insecurity.** The substantive AISH benefit-level operating below the Poverty Line produces structural food-insecurity for AISH-recipient households. The Disability Action Hall analytical work documents that food bank use strongly predicts future homelessness, establishing the substantive operational sequence through which the structural food-insecurity produced by inadequate benefit-levels operates as a leading indicator of subsequent housing-insecurity outcomes. Source: <https://www.actionhall.ca/2025/09/adap-vs-aish-smarter-more-efficient-path.html>. The substantive disability-and-poverty intersection thus operates not only at the immediate-food-security level but at the broader life-stability level.

**Housing insecurity.** The substantive AISH benefit-level operates below the documented Calgary "modest standard of living" cost of approximately three thousand two hundred ninety-four dollars per month (May 2024 figure for a typical single individual including housing, food, transportation, clothing, and modest discretionary expenditure), producing a one-thousand-three-hundred-fifty-four-dollar monthly gap that AISH recipients must close through some combination of substandard housing, food deprivation, foregoing other essential expenditures, or accepting financial precarity that produces sustained operational stress. Source: <https://www.actionhall.ca/2025/09/adap-vs-aish-smarter-more-efficient-path.html>. The substantive operational reality is that twenty-nine percent of AISH recipients live in Calgary (the highest-cost region of Alberta), where the substantive cost-of-living gap operates most acutely. The substantive housing-insecurity outcomes include substandard housing conditions that produce additional disability-related operational complications, housing-instability and unplanned moves that disrupt the substantive social-supports and community-connections that disability-related quality-of-life depends on, and structural homelessness for AISH-eligible Albertans whose substantive housing arrangements collapse under the cost pressure.

**Inability to afford accommodations not covered by the categorical-program architecture.** The substantive categorical-program architecture covers some disability-related expenses through the AISH health benefits framework (prescription medications, some dental services, optical services, some Alberta Aids to Daily Living program coverage, some essential diabetic supplies). The substantive operational reality is that the categorical-program coverage operates with substantive gaps including specific medications not covered, accessibility-related home modifications that exceed the AADL coverage limits, transportation costs for medical appointments operating beyond the categorical-program transportation coverage, accommodations and aids that are operationally necessary but not categorical-program-covered, and uncovered out-of-pocket healthcare expenditures (psychotherapy, specialist consultations operating outside the public Health Care Insurance Plan, some specialist diagnostic services, supplementary disability-related services). Persons with disabilities operating below



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the Poverty Line lack the substantive financial capacity to cover these uncovered expenditures, with substantive operational consequences for their substantive quality-of-life and substantive disability-management.

**Constraint on disability-community advocacy capacity.** The substantive disability-and-poverty intersection produces structural constraint on the disability-community advocacy capacity that the substantive consultation framework Section 3.6 develops requires. Persons with disabilities operating below the Poverty Line lack the substantive financial capacity to engage in the substantive operational labour that disability-community advocacy requires (transportation to advocacy events, time commitment that operates against substantive employment-and-income-pursuit obligations, technology and communications infrastructure required for substantive advocacy participation, the substantive financial costs of disability-community-organization membership and engagement, and the substantive financial capacity to support disability-community advocacy organizations through donations and operational support). The substantive operational consequence is that the substantive disability-community advocacy capacity is structurally constrained relative to the substantive scope the substantive consultation framework requires; the engineered structural-poverty thus operates not only on the individual-quality-of-life level but on the substantive collective-political-engagement level.

**Constraint on legal and procedural representation.** The substantive disability-and-poverty intersection produces structural constraint on the legal and procedural representation capacity that the substantive categorical-program architecture's appeal-rights provisions require. Persons with disabilities operating below the Poverty Line lack the substantive financial capacity to access legal counsel for AISH/PDD/FSCD/WCB appeals, for the substantive *Compassionate Intervention Act* appeals (developed in Section 1.7), for the substantive *Mental Health Act* review-board engagements, and for the substantive disability-related civil and administrative proceedings that operate within the legal and procedural framework. The Legal Aid Alberta program operates with substantive eligibility-criteria and substantive operational capacity-constraints that produce coverage gaps for substantial portions of the disability-and-poverty population. The substantive operational consequence is that the substantive appeal-rights and procedural-protections established in the categorical-program architecture and the broader legal framework operate at substantively reduced effectiveness for persons with disabilities operating below the Poverty Line, with substantive operational implications for the substantive case the blueprint develops.

**Constraint on substantive social and political participation.** The substantive disability-and-poverty intersection produces structural constraint on the substantive social and political participation that the substantive equality principle establishes as the foundation of the international human rights framework. The substantive participation requires substantive financial capacity to operate within the social and political infrastructure (transportation, communications, time, materials, accommodations); persons with disabilities operating below the Poverty Line lack this substantive financial capacity; the substantive operational consequence is that the substantive equality of participation is structurally constrained at the substantive financial level even where it is rhetorically established at the policy level.

The compounding effects operate cumulatively rather than discretely. The substantive operational outcome is that persons with disabilities in poverty experience structural exclusion from the substantive participation that the disability-policy architecture is rhetorically designed to support, and the substantive

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

engineered-structural-poverty operates as the substantive operational mechanism through which the structural exclusion is sustained.

## Intersection with the Lifecycle Dimensions

The substantive disability-and-poverty intersection compounds with each lifecycle dimension Part One has documented:

**FSCD (Section 1.3).** Families with children with disabilities operating below the Poverty Line face substantive operational complications including: substantive cost barriers to accessing FSCD-eligible services that operate within the program-coverage gaps documented in Section 1.3; substantive cost barriers to accessing private specialist services that operate outside the FSCD coverage; substantive operational complications for the substantive caregiver-employment trajectory that the categorical-program architecture imposes through structural-employment-income limitations; substantive housing-insecurity that compounds with the substantive accessibility-modification needs that families with children with disabilities require; and substantive food-insecurity that compounds with the specific dietary-and-nutritional needs that some children with disabilities require for substantive operational management of their conditions.

**K-12 (Sections 1.3 and 1.3a).** Families with children with disabilities operating in the K-12 system below the Poverty Line face substantive operational complications including: substantive cost barriers to accessing private specialist services that operate alongside the public-school-based services to address the substantive specialist-services availability gaps documented in Section 1.3a; substantive cost barriers to accessing the legal and procedural representation that the substantive accommodation-dispute resolution and placement-decision-appeal frameworks require; substantive operational complications for the substantive parent-and-family advocacy participation that the substantive consultation framework requires; substantive transportation barriers that compound with the substantive school-division-consolidation patterns documented in Section 1.8; and substantive impacts on the substantive school-attendance and educational-trajectory of the children themselves through the broader social-determinants-of-educational-outcomes operating in poverty contexts.

**AISH/ADAP/PDD (Section 1.4).** The substantive engineered structural-poverty is most directly documented for the AISH/ADAP/PDD population in this Section 1.9. The substantive operational complications compound with the substantive Section 1.4 documented inadequacies including the elimination of caseworker continuity, the elimination of appeal rights, and the structural narrowing of eligibility documented for the ADAP transition. The substantive operational outcome is that the AISH/ADAP/PDD population faces the engineered structural-poverty plus the engineered substantive-disability-program-architecture inadequacies operating cumulatively.

**Caregivers (Section 1.5).** Caregivers of persons with disabilities operating below the Poverty Line face substantive operational complications including: substantive caregiver-employment-and-income complications produced by the substantive caregiving-time requirements operating against the substantive employment-and-income-pursuit obligations; substantive distance-from-respite-care complications that compound with the substantive geographic-distribution dimension documented in Section 1.8; substantive

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

structural-housing complications that compound with the substantive accessible-housing-availability gaps; and substantive structural-isolation complications that compound with the substantive disability-community-advocacy-capacity constraints documented in this Section 1.9.

**Triage and WCB (Section 1.6).** The substantive Section 1.6 triage analysis documented the substantive structural distinction between the WCB-eligible-injured-worker population (with substantive caseworker continuity, substantive vocational-rehabilitation supports, substantive community reintegration supports, substantive earnings-replacement at substantive proportions of pre-injury earnings) and the AISH/ADAP-eligible disability population (with the substantive engineered structural-poverty documented in this Section 1.9). The substantive Section 1.9 finding is that the substantive Section 1.6 triage analysis operates with operational specificity at the income-support level: the WCB-eligible population is operationally protected from the engineered structural-poverty pattern through the substantive WCB earnings-replacement architecture; the AISH/ADAP-eligible population is operationally subjected to the engineered structural-poverty pattern. The substantive operational distinction between the two populations is not produced by the underlying disability profiles; it is produced by the substantive structural-policy choice to operate substantively distinct income-support architectures for substantively similar disability profiles.

**Mental Health and Addiction (Section 1.7).** The substantive disability-and-poverty intersection compounds with the substantive Section 1.7 mental-health-and-addiction dimension. The mental-health-disability AISH population (twenty-three thousand nine hundred forty Albertans, thirty-and-two-tenths percent of the September 2025 caseload) operates within the engineered structural-poverty pattern documented in Section 1.9. The substantive intersection with homelessness and incarceration documented in Section 1.7 operates substantively through the engineered structural-poverty: persons with mental-health-disability profiles operating below the Poverty Line face substantive structural risks of homelessness and incarceration that compound with the substantive Section 1.7 lifecycle dimension. The substantive opioid-and-stimulant toxicity crisis documented in Section 1.7 produces substantive disproportionate impact on the engineered-structural-poverty population including the documented finding that homeless individuals face approximately two-hundred-to-one-thousand-times higher risk of death from drug poisoning than housed people.

**Rural, Remote, and Northern Alberta (Section 1.8).** The substantive disability-and-poverty intersection operates with particular operational force in rural, remote, and northern Alberta as documented in Section 1.8. The substantive Section 1.8 rural-economy volatility, the substantive primary-resource-sector boom-and-bust cycles, the substantive geographic-distance-from-specialist-services dimension, and the substantive structural-housing-and-cost-of-living gaps in remote-and-northern communities all compound with the engineered structural-poverty documented in this Section 1.9. The substantive operational outcome is that rural, remote, and northern Albertans with disabilities operating below the Poverty Line face structurally-compounded operational conditions that the urban-context engineered-structural-poverty alone does not capture.

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## What Section 1.9 Establishes

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive disability-and-poverty intersection is now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, the substantive AISH benefit-level for a single Albertan with a disability operates at approximately eighty percent of the Market Basket Measure Poverty Line in 2024, producing an annual gap of approximately five thousand six hundred seventy-four dollars below the Calgary MBM Poverty Line. The substantive Income Support Barriers to Full Employment population operates at substantively more inadequate levels (forty-three percent of the MBM); the Income Support employable single population operates at thirty-seven percent of the MBM. The substantive arithmetic is operationally specific and produced by specific provincial-government policy choices.

Second, the substantive nineteen-year time series documented through Maytree's *Welfare in Canada: Alberta* establishes that the AISH benefit-level has operated below the Poverty Line in eighteen of the nineteen years from 2006 to 2024, with 2013 the only year during which the benefit-level operationally met or exceeded the Poverty Line. The substantive operational finding is that the AISH-recipient population in 2024 operates at substantively the same poverty level relative to the Poverty Line as the AISH-recipient population in 2006, with the brief 2012-2017 improvement period reversed by subsequent policy choices.

Third, the substantive policy-choice sequence (2018 NDP Bill 26 indexation, 2019 UCP de-indexation, 2023 Alberta Escalator framework, 2026 ADAP transition, 2025 federal Canada Disability Benefit clawback) operates as a sustained structural-policy pattern. Alberta is the only province in Canada that operates a CDB clawback policy, operationally diverting the federal disability-poverty-reduction benefit from AISH recipients to provincial-government revenue.

Fourth, the compounding effects of the disability-and-poverty intersection produce structural barriers to food security, housing security, accommodation-cost coverage, disability-community advocacy capacity, legal and procedural representation, and substantive social and political participation. The compounding effects operate cumulatively rather than discretely, and the substantive operational outcome is that persons with disabilities in poverty experience structural exclusion from the substantive participation that the disability-policy architecture is rhetorically designed to support.

Fifth, the substantive disability-and-poverty intersection compounds with each lifecycle dimension Part One has documented (FSCD, K-12 including the engineered repudiation, AISH/ADAP/PDD, caregivers, WCB and triage, mental-health-and-addiction, rural-remote-and-northern). The substantive structural barriers documented in the prior sections compound with the substantive engineered structural-poverty documented in this section to produce operationally more substantial structural barriers than any individual lifecycle-dimension analysis alone identifies.

Sixth, the substantive Section 1.6 triage analysis is operationally completed by the Section 1.9 disability-and-poverty intersection. The substantive distinction between the WCB-eligible-injured-worker population (operationally protected from the engineered structural-poverty pattern) and the AISH/ADAP-eligible disability population (operationally subjected to the engineered structural-poverty pattern) is produced not by the underlying disability profiles but by the substantive structural-policy choice to operate substantively distinct income-support architectures for substantively similar disability profiles. The substantive analytical question Section 1.6 raised is operationally answered: the substantive

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

distinction is engineered, sustained, and produces specific dollar-amount gaps that the documented data make operationally visible.

Seventh, the substantive case the blueprint develops in Parts Two and Three operates substantively against the engineered structural-poverty pattern through the substantive accessibility-standards architecture, the substantive structural-funding mechanisms developed in Part Three Section 3.7, and the substantive accountability-and-coordination layer developed in Part Three Section 3.8. The substantive specifications are calibrated to operate against the documented patterns at the operational level the documented Alberta record requires.

The substantive content of Section 1.9 establishes the structural backbone of the engineered Alberta disability-policy architecture. The engineered structural-poverty is not an unfortunate side effect of fiscal-policy decisions; it is the substantive operational mechanism through which the broader engineered patterns documented in Sections 1.3a (the K-12 engineered repudiation), 1.4 (the AISH-to-ADAP transition), 1.7 (the mental-health-and-addiction substantive policy direction), and 1.8 (the rural-remote-and-northern substantive geographic dimension) are sustained. Without engineered structural-poverty, the broader engineered patterns would lack the substantive operational mechanism through which they produce their documented operational outcomes; with engineered structural-poverty, the broader engineered patterns operate substantively against the population the disability-policy architecture is rhetorically designed to serve.

The next section turns to the substantive lifecycle dimension of aging, acquired disability, and end-of-life, completing the lifecycle frame established in Section 1.2 and addressing the substantive operational reality that the disability-policy architecture must engage across the complete substantive human-lifecycle trajectory.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1.10 — Aging, Acquired Disability, and End-of-Life as a Lifecycle Dimension

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Sections 1.7, 1.8, and 1.9 documented mental health and addiction, rural-and-remote-and-northern Alberta, and the engineered disability-and-poverty intersection as substantive lifecycle dimensions. Section 1.10 documents the substantive lifecycle dimension that completes the frame established in Section 1.2: the substantive aging dimension, the substantive acquired-disability-through-aging dimension, and the substantive end-of-life-care dimension. The lifecycle frame must engage the complete substantive human-lifecycle trajectory; the substantive disability-policy architecture must engage the substantive operational reality that persons with disabilities age, that aging produces acquired disability for substantial portions of the population, and that end-of-life care for persons with disabilities operates within substantive operational complications the disability-policy architecture must address.

The substantive lifecycle dimension is operationally significant. AISH eligibility ends at age sixty-five. The substantive AISH-to-Old-Age-Security transition produces a substantive policy boundary at age sixty-five. The substantive Alberta record on long-term care and continuing care infrastructure operates within structural conditions documented to be substantively inadequate. The substantive intersection of long-term-care-infrastructure inadequacy with the engineered structural-poverty pattern documented in Section 1.9 produces the substantive forced-spousal-separation pattern that operates against senior couples whose substantive operational reality requires institutional care — a pattern the substantive academic-and-journalistic record documents and that the substantive frontline-care-work record has witnessed for decades. The substantive dementia-care infrastructure operates within structural capacity-and-quality conditions that operate substantively below the substantive needs the population presents. The substantive supported-decision-making framework for older adults with disabilities operates within the substantive Alberta *Adult Guardianship and Trusteeship Act* infrastructure with substantive operational complications the international human rights framework requires the disability-policy architecture to address.

The section develops the substantive content in nine components. The first establishes the substantive AISH-to-Old-Age-Security transition at age sixty-five and the operational implications. The second addresses the substantive distinction between aging-with-disability and acquired-disability-through-aging. The third documents the substantive Alberta record on long-term care and continuing care infrastructure. The fourth documents the substantive forced-spousal-separation pattern as a distinct substantive structural finding. The fifth addresses the substantive dementia-care infrastructure. The sixth addresses the substantive supported-decision-making framework. The seventh addresses the rural, remote, and northern Alberta aging dimension that compounds with the operational realities documented in Section 1.8. The eighth addresses end-of-life-care availability for persons with disabilities while acknowledging the substantive medical-assistance-in-dying dimension as requiring its own substantive analytical engagement that the blueprint does not undertake. The ninth synthesizes what the section establishes for



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the substantive case the blueprint develops.

The substantive content is grounded in primary-source documentation: the Alberta *Continuing Care Act* (effective April 1, 2024) and the Alberta Health Services continuing care infrastructure; the provincial-government data on long-term-care capacity and wait times; the substantive academic record on spousal separation in long-term care including the JBI systematic-review research, the Queen's University doctoral research (Madison Robertson, "Till Death Do Us Part: Spousal Separation in Long-Term Care"), and the broader peer-reviewed literature on loneliness, isolation, dementia, and mortality risk; the CBC News national reporting documenting the operational pattern across multiple Canadian jurisdictions including Alberta; the substantive frontline-care-work documentary record; the federal Old Age Security and Guaranteed Income Supplement architecture; and the Alberta *Adult Guardianship and Trusteeship Act* framework.

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## The AISH-to-Old-Age-Security Transition at Age Sixty-Five

The substantive AISH eligibility framework documented in Section 1.4 establishes age sixty-five as a substantive policy boundary. AISH eligibility ends at age sixty-five; AISH recipients are transitioned to the federal Old Age Security pension and the Guaranteed Income Supplement, with the provincial-government Alberta Seniors Benefit operating as a supplementary income-support layer. Source: <https://www.alberta.ca/aish-eligibility>; <https://www.alberta.ca/aish>.

The substantive operational consequences of the AISH-to-OAS transition include three substantive dimensions.

First, the substantive benefit-level architecture changes substantively. The federal OAS pension and the GIS, combined with the Alberta Seniors Benefit, operate at substantive aggregate levels that may operate above or below the AISH benefit-level for any individual recipient depending on the substantive operational details of their pre-sixty-five economic profile and the substantive interaction with other federal-and-provincial benefit programs. The substantive operational complications include substantive operational coordination gaps between federal and provincial benefit programs, substantive operational changes in benefit-eligibility-criteria during the transition period, and substantive operational changes in benefit-level-calibration that may produce real-dollar reductions for some senior-disability recipients.

Second, the substantive disability-related-supports architecture changes substantively. The AISH health-benefits architecture (prescription medications, some dental services, optical services, some Alberta Aids to Daily Living program coverage, some essential diabetic supplies) operates within the AISH framework. The senior-benefit architecture operates within the provincial-government Alberta Seniors Benefit framework, the federal Old Age Security and Guaranteed Income Supplement architecture, and the provincial-government Coverage for Seniors program. The substantive operational complications include changes in disability-related-supports coverage during the transition, gaps in continuity-of-services produced by the architectural change, and operational complications for senior-disability recipients whose substantive operational reality requires disability-related-supports operating within one framework but not the other.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Third, the substantive disability-related-engagement infrastructure changes substantively. The AISH program administration through provincial-government regional offices operates substantively distinctly from the senior-benefit program administration through federal Service Canada offices and provincial-government Alberta Seniors Benefit administration. The substantive operational complications include structural-engagement complications produced by the architectural change, complications for senior-disability recipients who must navigate substantively distinct administrative systems, and operational gaps in disability-related-advocacy infrastructure that operate within the working-age-disability framework but not within the senior-disability framework.

The substantive AISH-to-OAS transition at age sixty-five thus operates as a substantive policy boundary that produces operational complications across three substantive dimensions. The substantive operational reality is that the disability-policy architecture treats age sixty-five as a substantive lifecycle break, with substantive consequences for the substantive continuity of disability-related supports across the substantive operational reality of disability that does not break at age sixty-five.

## Aging-with-Disability and Acquired-Disability-Through-Aging

The substantive aging-and-disability dimension operates across two substantive populations with operationally distinct profiles.

**Aging-with-disability** addresses persons whose substantive disability profiles emerged earlier in life and who age into senior status. The substantive operational reality is that medical-and-rehabilitative advances over the past several decades have substantively extended the life-expectancy of persons with disabilities including persons with developmental disabilities, persons with cognitive disabilities, persons with physical disabilities arising from accidents or congenital conditions, persons with chronic-illness profiles, and persons with mental-health-disability profiles. The substantive Alberta record on this population includes the substantive PDD program documented in Section 1.4 (the population of adults with developmental disabilities receiving PDD services who age into senior status), the substantive AISH-recipient population documented in Sections 1.4, 1.7, and 1.9 (substantial proportions of whom are in older age cohorts and approach the AISH-to-OAS transition), and the substantive WCB-recipient population documented in Section 1.6.

The substantive operational complications for the aging-with-disability population include: complications produced by the AISH-to-OAS transition; complications produced by the substantive transition from PDD-administered services to senior-services-administered services for persons with developmental disabilities; complications produced by the substantive interaction between the underlying disability profile and the aging-related-conditions that emerge alongside the underlying disability; complications for the caregiver dimension documented in Section 1.5 where caregivers themselves age into senior status alongside the persons-with-disabilities they care for; and complications for the housing-and-community-supports architecture that the aging-with-disability population requires.

**Acquired-disability-through-aging** addresses persons whose substantive disability profiles emerge through the aging process itself. The substantive operational reality includes persons who develop dementia in later life; persons who experience strokes, heart attacks, or other acute-medical events that

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

produce sustained disability profiles; persons who develop progressive conditions including Parkinson's disease, multiple sclerosis (which often presents earlier but progresses through aging), arthritis-and-mobility-related conditions, vision-and-hearing impairments, and chronic-illness profiles; and persons whose accumulated substantive aging-related changes produce sustained disability profiles even where no single discrete medical event marks the onset.

The substantive operational complications for the acquired-disability-through-aging population include: complications produced by the absence of pre-existing engagement with the disability-policy architecture (these persons did not engage the AISH/PDD/FSCD/WCB architecture during working-age years and may lack the operational knowledge and infrastructure to navigate disability-related supports); complications produced by the substantive interaction between the acquired disability profile and the substantive senior-benefit architecture; complications produced by the substantive housing-and-community-supports architecture inadequacy documented in the next subsection; and complications produced by the substantive medical-and-clinical-engagement patterns that operate distinctly for senior populations relative to working-age populations.

The substantive operational distinction between aging-with-disability and acquired-disability-through-aging is operationally significant for the substantive policy responses developed in Part Three. The substantive Section 3.3 Area 6 health-area standard, the Section 3.3 Area 5 services-and-programs standard, and the Section 3.7 implementation-timeline-and-funding provisions must address both substantive populations within the substantive standards architecture rather than treating either as the default substantive case.

## Long-Term Care and Continuing Care Infrastructure

The substantive Alberta record on long-term care and continuing care infrastructure operates within structural conditions documented to be substantively inadequate at the provincial level. The Alberta *Continuing Care Act* (effective April 1, 2024) operationalizes a substantive provincial-government framework that updates the terminology and the substantive operational structure of the provincial continuing-care system, renaming long-term care facilities as "Continuing Care Home Type A" and designated supportive living facilities as "Continuing Care Home Type B," operating within the Alberta Health Services Continuing Care Access Centre system that requires Case Manager engagement for service access. Source: <https://www.albertahealthservices.ca/cc/Page15536.aspx>; <https://www.albertahealthservices.ca/cc/Page15491.aspx>.

The substantive provincial-government investment in continuing care under Budget 2024 was one-and-seven-tenths billion dollars, including a one-billion-dollar three-year commitment "to transform continuing care in Alberta." Source: <https://www.bigwestcountry.ca/2024/03/15/albertas-government-announces-funding-for-improved-access-to-healthcare/>. The substantive operational scale of the documented capacity gap operates as follows.

**The alternate-level-of-care patient population.** Approximately one thousand five hundred Albertans operate as "alternate level of care" (ALC) patients in acute-care hospitals at any given time, having completed their required hospital care but waiting in hospital beds for transfer to continuing-care facilities. The ALC-patient population represents approximately eighteen percent of all acute-care spaces in the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

province. Source: <https://www.bigwestcountry.ca/2024/03/15/albertas-government-announces-funding-for-improved-access-to-healthcare/>. The substantive operational implication is that the substantive structural-capacity gap in the continuing-care infrastructure operates with substantial operational consequences for the broader healthcare system, including substantive structural-pressure on emergency-department capacity, surgery wait-times, and the substantive operational efficiency of the hospital-and-acute-care infrastructure.

**The continuing-care wait-times.** Wait times for continuing-care placement in Alberta operate at substantial scale, ranging from six months to two years depending on the substantive level of care required, the substantive geographic region, and the substantive specific facility. Source: <https://www.seniorcareaccess.com/article/A%20Guide%20to%20Long-Term%20Care%20in%20Canadian%20Provinces>. The Health Quality Alberta tracking infrastructure documents the percentage of residents placed into continuing-care homes within thirty days of assessment as a substantive operational performance indicator. Source: <https://focus.hqa.ca/charts/placement-into-continuing-care-facility-living/>.

**The provincial-government acknowledged capacity need.** The substantive provincial-government's own acknowledged capacity need is ten thousand new spaces over three years — a scale substantively above the documented one-thousand-fifty-additional-spaces target the provincial government had committed to opening by early 2025 through temporary expansion of capacity in existing facilities. Source: <https://www.bigwestcountry.ca/2024/03/15/albertas-government-announces-funding-for-improved-access-to-healthcare/>.

**The broader healthcare wait-times context.** The Fraser Institute's *Waiting Your Turn: Wait Times for Health Care in Canada, 2024* documents the substantive Alberta median wait-time for orthopedic surgeries as sixty-six-and-eight-tenths weeks, and the median wait across twelve medical specialties as twenty-nine-and-five-tenths weeks. Source: <https://www.fraserinstitute.org/categories/health-care-wait-times>. The substantive operational implication for the senior-disability population is that the medical-and-surgical-and-specialist services that the population requires operate within wait-times substantively above the substantive operational reality the population's substantive needs require.

## The Forced-Spousal-Separation Pattern

The substantive intersection of the long-term-care-infrastructure inadequacy documented in the prior subsection with the engineered structural-poverty pattern documented in Section 1.9 produces the substantive forced-spousal-separation pattern. The pattern is documented at the national level in Canadian journalism, in academic research, in disability-and-aging advocacy work, and in the substantive frontline-care-work documentary record that long-term-care workers across decades have witnessed and named. The pattern operates across three substantive operational layers, produces a documented health-and-stability cascade that the peer-reviewed medical literature anchors, and generates a structural-feedback loop that compounds the substantive case the blueprint develops.

**The bed-availability layer.** The substantive operational reality is that the substantive long-term-care infrastructure does not adequately accommodate spousal pairs. The substantive operational

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

complications include facility-specialization patterns that distribute substantive levels of care across distinct facilities (with the operational consequence that one spouse may require a substantive level of care — memory care, complex-medical care, palliative care — operating in a facility that does not also accommodate the other spouse); bed-availability constraints that produce the operational reality that securing two adjacent or available spaces in the same facility for a couple requiring placement simultaneously is operationally improbable given the system-level capacity gaps documented in the prior subsection; room-availability patterns where many continuing-care facilities operationally provide single-occupancy rooms with limited or no provision for couples to share accommodation; and substantive coordination gaps between the substantive different categorical-program funding-streams that operate across the continuing-care system. Source: <https://www.todays-woman.net/2025/health-personal-fitness/a-ging-and-seniors/separating-couples-in-long-term-care-heartbreaking/>.

The substantive Alberta-specific case documented in CBC News national reporting (June 2019) establishes the operational reality. Martha and Willard Farnell of Calgary, Alberta, married for sixty-six years, were forced to live apart following Willard's dementia diagnosis and admission to a long-term-care facility approximately twenty minutes' drive from Martha's residence. The substantive operational reality for the Farnell family is that the Alberta provincial-government continuing-care system did not provide a substantive operational mechanism through which the spousal-pair could continue to share accommodation when one spouse required institutional care that the other spouse did not require. Source: <https://www.cbc.ca/news/health/national-long-term-care-couples-housing-1.5159102>.

**The financial-structure layer.** The substantive operational reality is that the substantive long-term-care fee-determination architecture operates on the basis of couple's-combined-income calculations, producing substantive operational complications for the spouse who remains in the community. The substantive operational pattern is that long-term-care facility costs may operate at substantial proportions of the couple's combined income, with documented cases including facilities requesting sixty percent of one spouse's pension income and forty percent of the other's to permit institutional care. Source: <https://www.cbc.ca/news/canada/new-brunswick/nursing-home-costs-leave-seniors-pondering-divorce-1.3171888>.

The substantive operational consequence is that some senior couples face the substantive operational choice between accepting the substantive financial-precarity that the institutional-care-fee structure imposes or pursuing legal divorce as an asset-protection strategy. The substantive documented cases include the Kenneth Campbell case (divorced wife so his assets would not be included in nursing-home fee calculation, continuing to visit her daily but no longer financially obligated), the Jerry Clarke case (considering divorce after fifty-two years to deal with seven-hundred-dollar monthly increase in wife's nursing-home cost), the Judy MacKenzie case (announced 2009 plan to separate from husband of forty-five years over seven-hundred-dollar monthly contribution requirement), and historical cases including Elizabeth Martin (declared on the New Brunswick legislature steps in 2003 that she was prepared to file for divorce because she feared the province would take her assets). Source: <https://www.cbc.ca/news/canada/new-brunswick/nursing-home-costs-leave-seniors-pondering-divorce-1.3171888>.

The federal government provides a substantive partial mitigation through the Old Age Security Act *involuntary separation* provision, which permits both spouses to be treated as single persons for OAS and GIS calculation purposes when one spouse is in a long-term-care facility (or where both spouses are in long-term-care facilities, regardless of whether they share a room). Source:



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

<https://www.familycaregiversbc.ca/caregiver-learning-center/read-resources/involuntary-separation>. The substantive operational consequence of the involuntary-separation provision is that the OAS-and-GIS benefit calculation may operate at higher single-individual levels than at couple levels for the substantive duration of the long-term-care placement. The substantive operational limitation is that the involuntary-separation provision operates as a partial financial mitigation that does not address the bed-availability layer (the spousal-pair remains structurally separated by the long-term-care infrastructure regardless of the benefit-calculation adjustment) and that does not always produce sufficient real-dollar protection to prevent the forced-divorce-as-asset-protection pathway.

**The family-driven separation layer.** The substantive operational pathway through which the bed-availability and financial-structure layers produce documented separations is frequently the family-driven pathway. Adult children, extended family, and broader family-and-community networks operating in the substantive operational role of supporting senior couples in care transitions face the substantive structural reality that the long-term-care fee architecture exceeds the couple's combined income capacity, that the family cannot afford to subsidize the cost-of-care difference on top of their own household obligations (mortgages, dependent children, their own healthcare costs, the working-age financial pressures that operate across every population the prior sections of Part One have documented), and that the asset-protection-and-benefit-maximization-through-legal-separation pathway operates as the structural-financial-survival strategy available within the substantive policy architecture. The substantive operational consequence is that families step in and pursue legal separation or divorce on behalf of senior couples whose substantive operational reality is that the couple wishes to remain together but the substantive financial architecture leaves no other operational pathway. The substantive frontline-care-work documentary record across decades has witnessed this pattern operationally at the substantive scale the documented data only partially capture; long-term-care workers, geriatric-care providers, and frontline social-services staff have observed the family-driven separation pathway as a recurring operational pattern within the substantive Alberta long-term-care system.

The family-driven separation pathway operates with substantive operational distinctions from the spouse-initiated separation pathway. The senior couple does not, in the substantive operational reality, freely choose separation; the family acts as substantive operational decision-maker on behalf of the couple in response to the substantive financial-and-bed-availability constraints. The substantive operational consequences include substantive distress for the senior couple themselves, who experience the separation as imposed rather than chosen; substantive distress for the family-decision-makers, who experience the substantive moral-and-emotional weight of pursuing legal separation against their parents' or grandparents' substantive operational wishes in the structural-financial-survival context; and substantive structural-relationship complications across the multi-generational family system that produce sustained operational consequences beyond the immediate substantive senior-couple experience.

**The documented health-and-stability cascade.** The peer-reviewed medical literature documents that the operational consequences of forced-spousal-separation in long-term-care contexts include substantive measurable impacts on senior couples' health, cognitive function, mental health, and mortality risk. The substantive operational evidence includes: the documented finding that severe loneliness affects up to forty-two percent of long-term-care residents, a substantively higher prevalence than the ten percent prevalence in older adults living in the community (Source: <https://jbi.global/news/article/understanding-lo>



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

neliness-and-depression-spousal-separation-within-long-term-care); the documented finding that loneliness is associated with the transition from no cognitive impairment to mild cognitive impairment, and that isolation is associated with the transition from mild to severe cognitive impairment (Source: <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC12761437/>); the documented finding that loneliness is associated with elevated mortality risk regardless of age, sex, race, or ethnicity, with up to forty percent of the total effect on mortality operating as a "pure indirect effect" mediated through dementia probability (Source: <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC11713336/>); the documented finding that spousal loss is associated with increased dementia risk and mortality, with the first year post-separation operating as a particularly high-risk period (Source: <https://www.bu.edu/sph/news/articles/2026/spousal-loss-linked-to-higher-risk-of-dementia-mortality-among-men-but-not-women/>); and the documented finding that probable dementia is consistently linked to over twofold increased mortality risk.

The substantive Queen's University doctoral research project by Madison Robertson, *Till Death Do Us Part: Spousal Separation in Long-Term Care*, examined the mental-health impact of spousal separation in long-term-care facilities through direct engagement with residents and their spouses, addressing the substantive research-gap that the prior literature on the topic primarily focused on the spouses living outside long-term-care rather than on the residents themselves. Source: <https://nursing.queensu.ca/stories/research/researching-mental-health-impact-imposed-separation-long-term-care>. The research was recognized at the national level through the SSHRC Storytellers Challenge, establishing the substantive academic significance of the topic.

The peer-reviewed literature on spouses living outside long-term-care after their partner moves into a care home documents the substantive concept of "ambiguous loss" — the substantive grief experience that operates when the partner is operationally absent (in care) but not deceased, producing sustained psychological complications including depression, grief, and loneliness for the at-home spouse alongside the institutionalized-spouse's substantive experience. Source: <https://pmc.ncbi.nlm.nih.gov/articles/PMC12340749/>.

**The structural-feedback loop.** The cumulative substantive finding is that the substantive financial-and-structural decision to pursue forced-spousal-separation produces the documented health-and-stability cascade, which operationally generates substantive subsequent increases in the cost of care — cognitive decline produces additional medical and care costs; mental-health deterioration produces additional treatment costs; physical-health deterioration produces additional hospitalization and acute-care costs; mortality risk produces additional end-of-life-care costs. The structural-financial decision that the substantive engineered structural-poverty pattern compels thus produces the substantive medical-and-care-cost increases that the substantive policy architecture is structurally responsible for absorbing through the public healthcare system. The substantive feedback loop operates against the long-term substantive fiscal interests of the policy architecture itself, in addition to operating against the substantive lifecycle-disability experience of senior couples and their families.

The substantive case the blueprint develops engages this pattern substantively. The substantive operational mechanism producing the forced-spousal-separation pattern is the substantive engineered structural-poverty pattern documented in Section 1.9, operating against the senior-disability population through the long-term-care fee-determination architecture, the bed-availability infrastructure, and the cohabitation-penalty pattern that the categorical-program architecture imposes across the lifecycle

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

dimensions. The substantive Part Three Section 3.3 Area 5 (services and programs standard) and Section 3.3 Area 6 (health area standard) operationalize substantive policy responses including substantive bed-availability provisions for spousal pairs, substantive fee-determination architecture that does not produce financial-precarity for the at-home spouse, substantive supported-decision-making infrastructure that operates against the family-driven-separation pathway, and substantive integration with the international human rights framework Article 19 (living independently and being included in the community) and Article 23 (respect for home and the family) provisions.

## Dementia Care Infrastructure

The substantive dementia-care infrastructure within the Alberta long-term-care system operates as a substantive sub-component of the broader continuing-care system documented in the prior subsections. The substantive operational reality is that dementia-care produces specific substantive operational requirements that the broader continuing-care infrastructure does not always adequately accommodate, including: specialized memory-care units operating with substantive design-and-operational features (secure environments, sensory-design features, structured-routine provisions, specialized-staffing-and-training requirements); substantive distinct facility designs for advanced-dementia-care that produce the substantive bed-availability complications documented in the prior subsection; specialized-care-team training requirements operating substantively above the broader continuing-care-team training; and substantive operational coordination requirements for dementia-care that operate distinctly from the broader continuing-care coordination.

The substantive provincial-government dementia-care infrastructure operates within the substantive provincial-government Continuing Care Act framework with substantive operational coordination through Alberta Health Services. The substantive operational complications include the documented continuing-care capacity gaps that compound substantively for dementia-care infrastructure (where the substantive specialization requirements produce additional operational constraints on the broader capacity gaps), the substantive provincial-government workforce-recruitment-and-retention gaps documented in Section 1.8 (which compound substantively for specialized memory-care staffing), and the substantive geographic-distribution gaps documented in Section 1.8 (which compound substantively for specialized memory-care infrastructure that requires specialized-design-and-staffing capacity not available in many rural-and-remote communities).

The substantive Alberta dementia-population trajectory operates within the substantive broader Canadian dementia-population trajectory, which the Alzheimer Society of Canada documents as a substantive population-and-demand growth trajectory operating substantively above the substantive infrastructure-and-capacity-development trajectory. The substantive operational implication is that the substantive structural-capacity gap in dementia-care infrastructure is documented to grow over the period and to compound substantively with the broader continuing-care capacity gaps documented in the prior subsections. The substantive operational consequence for the population the policy architecture is intended to serve is that the documented forced-spousal-separation pattern operates with particular operational force in dementia-care contexts (where the substantive specialization requirements produce additional bed-availability constraints), the documented health-and-stability cascade operates with

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

particular operational force (where dementia-related cognitive-decline operates within the substantive isolation-and-loneliness mortality pattern), and the substantive family-decision-maker pathway operates with particular operational complexity (where the dementia-affected spouse may lack substantive decision-making capacity and where the at-home spouse and family operate within substantive emotional-and-practical complications that the broader continuing-care contexts may not present at the same operational scale).

## Supported Decision-Making for Older Adults with Disabilities

The substantive Alberta supported-decision-making framework operates within the *Adult Guardianship and Trusteeship Act* (AGTA) infrastructure, which provides for substantive guardianship-and-trusteeship arrangements for adults whose capacity to make personal-and-financial decisions is operationally impaired. The substantive operational complications for older adults with disabilities include: substantive operational tensions between the substantive guardianship-and-substitute-decision-making framework and the substantive Article 12 (equal recognition before the law) provisions of the United Nations *Convention on the Rights of Persons with Disabilities* that operate in favour of substantive supported-decision-making rather than substitute-decision-making; substantive operational complications for older adults with dementia or other cognitive-impairment profiles whose substantive capacity for decision-making operates fluctuationally and across decision-domains; substantive operational complications for older adults whose substantive operational reality includes substantive family-system dynamics that produce substantive complications for the substantive operationalization of supported-decision-making; and substantive operational complications for older adults operating within the long-term-care infrastructure documented in the prior subsections, where the substantive institutional context may produce substantive structural pressures that operate against the substantive autonomy-and-supported-decision-making provisions.

The substantive Article 12 international human rights framework, as developed through the Committee on the Rights of Persons with Disabilities General Comment No. 1 (on equal recognition before the law), establishes the substantive policy direction toward supported-decision-making frameworks operating against substitute-decision-making frameworks. The substantive Alberta AGTA framework operates substantively within the substitute-decision-making model that the substantive Article 12 framework identifies as requiring substantive policy reform across signatory jurisdictions. The substantive Part Three Section 3.3 Area 6 (health area standard) develops the substantive supported-decision-making provisions that operationalize the substantive Article 12 framework within the substantive Alberta context.

## The Rural, Remote, and Northern Alberta Aging Dimension

The substantive aging-and-disability dimension operates with particular operational force in rural, remote, and northern Alberta as documented in Section 1.8. The substantive operational reality is that the substantive proportion of the rural Alberta population aged sixty years or older is substantively higher than the substantive proportion in urban Alberta: sixteen-and-six-tenths percent in rural Alberta compared to thirteen-and-seven-tenths percent in the Census Metropolitan Areas (Source: Alberta's Rural

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Communities Report). The substantive operational implication is that the substantive aging-related-disability population operates substantively concentrated in the substantive geographic regions where the substantive long-term-care-infrastructure-capacity, substantive dementia-care-infrastructure-capacity, substantive workforce-recruitment-and-retention infrastructure, and substantive specialist-services availability all operate substantively below the urban Alberta levels.

The substantive operational complications for the rural-remote-northern aging-and-disability population include: substantive geographic-distance from continuing-care facilities that may require substantive relocation away from established communities and family-and-social networks (with the substantive consequence that the documented isolation-and-loneliness mortality pattern compounds substantively for the relocated population); substantive geographic-distance from specialist medical-and-clinical services that produces substantive operational complications for the substantive medical-and-clinical engagement that the aging-related-disability population requires; substantive continuing-care-bed-availability gaps that operate substantively below the urban availability levels; and substantive forced-spousal-separation patterns that compound with the substantive geographic-distance dimension to produce structurally-deeper separations than the urban-context forced-spousal-separation patterns alone produce.

The substantive Indigenous-disability dimension developed in Section 1.8 operates with particular operational force in the rural-remote-northern aging-and-disability context. The substantive operational complications include: substantive jurisdictional-fracture complications for Indigenous-elder populations operating within the substantive Treaty-territory and Métis-Settlements frameworks; substantive cultural-and-spiritual-care provisions that operate substantively below the substantive operational reality of the population's needs in many continuing-care facility contexts; and substantive Indigenous-elder population-specific operational complications that the campaign's separate Indigenous Disability Alberta evidentiary record documents in detail.

## End-of-Life Care for Persons with Disabilities

The substantive end-of-life-care dimension operates as a substantive operational requirement within the broader healthcare-and-disability-policy architecture. The substantive operational complications for persons with disabilities include: substantive operational complications for the substantive integration of palliative-care services with disability-related-supports infrastructure; substantive operational complications for the substantive supported-decision-making framework documented in the prior subsection where the substantive end-of-life-care decision-making operates within substantive cognitive-and-emotional contexts that produce additional supported-decision-making complications; substantive operational complications for the substantive integration of family-and-community supports with the substantive medical-and-clinical infrastructure; and substantive operational complications for the substantive cultural-and-spiritual-care provisions that operate within the substantive end-of-life-care context.

The substantive operational reality is that the substantive end-of-life-care infrastructure in Alberta operates within the substantive Alberta Health Services framework with substantive operational coordination through hospice-and-palliative-care providers, the substantive continuing-care infrastructure documented in the prior subsections, and the substantive primary-care-and-specialist medical infrastructure. The

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

substantive operational complications for persons with disabilities operating within this infrastructure include all the substantive operational complications documented across the prior subsections of Section 1.10 and the prior sections of Part One, compounding within the substantive end-of-life-care context.

The substantive medical-assistance-in-dying (MAID) dimension operates as a substantively contested element within the broader end-of-life-care infrastructure, raising substantive operational and ethical complications that the substantive disability-community has engaged with substantive depth and substantive internal-disagreement. The substantive operational complications include substantive complications for the substantive Convention-alignment questions that the MAID provisions raise, substantive operational complications for the substantive supported-decision-making framework when applied within MAID contexts, substantive operational complications for the substantive disability-poverty intersection documented in Section 1.9 where the substantive engineered structural-poverty produces substantive operational pressures that may operate within MAID decision-making contexts, and substantive operational complications for the substantive disability-affirming-practice framework that the substantive case the blueprint develops requires. The substantive MAID dimension requires its own substantive analytical engagement, which the blueprint does not undertake; the substantive call Section 3.3 Area 6 makes (that MAID raises complex Convention-alignment questions and is not addressed) operates as the substantive call Section 1.10 also makes. The substantive case the blueprint develops engages the broader end-of-life-care dimension within the substantive standards architecture without engaging the substantive MAID-specific provisions, leaving that substantive engagement to subsequent substantive analytical work that the substantive disability-community has undertaken and continues to undertake within the substantive complexity the topic requires.

## What Section 1.10 Establishes

The substantive lifecycle dimension of aging, acquired disability, and end-of-life is now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, AISH eligibility ends at age sixty-five, producing a substantive policy boundary that operates with substantive operational consequences across three substantive dimensions (benefit-level architecture changes, disability-related-supports architecture changes, disability-related-engagement infrastructure changes). The substantive disability-policy architecture treats age sixty-five as a substantive lifecycle break, with substantive consequences for the substantive continuity of disability-related supports across the substantive operational reality of disability that does not break at age sixty-five.

Second, the substantive aging-and-disability dimension operates across two substantive populations with operationally distinct profiles (aging-with-disability and acquired-disability-through-aging) that the substantive standards architecture developed in Part Three must address within the substantive content rather than treating either as the default substantive case.

Third, the substantive Alberta long-term care and continuing care infrastructure operates within structural conditions documented to be substantively inadequate at the provincial level, with approximately one thousand five hundred Albertans operating as alternate-level-of-care patients in acute-care hospitals at



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

any given time (approximately eighteen percent of acute-care spaces), wait-times for continuing-care placement ranging from six months to two years, and the substantive provincial-government's own acknowledged capacity need of ten thousand new spaces over three years operating substantively above the documented one-thousand-fifty-additional-spaces target.

Fourth, the substantive forced-spousal-separation pattern operates as a substantive structural finding that compounds the substantive engineered structural-poverty pattern documented in Section 1.9 with the substantive long-term-care-infrastructure inadequacy documented in this section. The pattern operates across three substantive operational layers (bed-availability, financial-structure, family-driven-separation), produces a documented health-and-stability cascade anchored in peer-reviewed medical literature (forty-two percent severe-loneliness prevalence in long-term-care residents versus ten percent in community-dwelling older adults; loneliness associated with cognitive-impairment transitions and elevated mortality risk; spousal loss associated with increased dementia and mortality risk; the "ambiguous loss" pattern documented for at-home spouses), and generates a structural-feedback loop in which the financial decision produces the deterioration that increases the substantive cost of care.

Fifth, the substantive dementia-care infrastructure operates within structural capacity-and-quality conditions that operate substantively below the substantive needs the population presents, with substantive operational complications including specialized memory-care unit capacity gaps, workforce-recruitment-and-retention complications that compound for specialized staffing, and substantive geographic-distribution gaps that compound the rural-remote-northern dimension documented in Section 1.8.

Sixth, the substantive supported-decision-making framework for older adults with disabilities operates within the *Alberta Adult Guardianship and Trusteeship Act* infrastructure, which operates substantively within the substitute-decision-making model that the substantive United Nations *Convention on the Rights of Persons with Disabilities* Article 12 framework identifies as requiring substantive policy reform across signatory jurisdictions.

Seventh, the substantive rural, remote, and northern Alberta aging dimension operates with particular operational force across the operational complications documented across the prior components, with substantive aging-population concentration (sixteen-and-six-tenths percent age sixty or older in rural Alberta versus thirteen-and-seven-tenths percent in urban Alberta) compounding with the substantive long-term-care-infrastructure-capacity gaps, dementia-care-infrastructure-capacity gaps, and Indigenous-disability dimension complications documented in Section 1.8 and elsewhere in Part One.

The substantive content of Section 1.10 completes the lifecycle frame established in Section 1.2. The substantive lifecycle dimension of aging, acquired disability, and end-of-life operates substantively across the substantive disability-policy architecture's operational reality, and the substantive case the blueprint develops in Parts Two and Three engages the substantive content at the depth the documented Alberta record requires. The substantive Section 3.3 Area 5 (services and programs), Section 3.3 Area 6 (health), Section 3.7 (implementation timeline and funding), and Section 3.8 (statutory review and coordination) provisions operate substantively against the documented patterns through the substantive standards architecture, the substantive structural-funding mechanisms, and the substantive accountability-and-coordination layer the blueprint specifies.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive forced-spousal-separation finding operates as the most substantively dispositive element of Section 1.10's substantive content. The pattern is not produced by individual-couple circumstances, by family-decision-making preferences, or by senior-couple choices about where to live; it is produced by the substantive policy architecture's structural-financial design, the substantive long-term-care infrastructure's structural-capacity gaps, and the substantive engineered structural-poverty pattern documented in Section 1.9 operating with particular operational force against the senior-disability population. The substantive frontline-care-work documentary record across decades has witnessed this pattern operationally; the substantive academic-and-journalistic record has documented it analytically; the substantive case the blueprint develops engages it substantively at the standards-architecture level the international human rights framework requires.

The lifecycle frame is now complete. Sections 1.1 through 1.10 have documented the substantive disability-policy architecture Alberta has built and the substantive lifecycle failures the architecture produces across the complete substantive human-lifecycle trajectory. Part Two engages the substantive comparator record (federal Accessible Canada Act, the five comparator provincial accessibility statutes, the United Nations *Convention on the Rights of Persons with Disabilities*, and the substantive Alberta-as-outlier finding), and Part Three develops the substantive *Alberta Accessibility and Inclusion Act* legislative blueprint that operates substantively against the documented patterns through the substantive standards architecture, the substantive consultation and Indigenous-rights-integration framework, and the substantive structural-funding and accountability-and-coordination provisions.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

### Section 1 Update — Source Index Update

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This Source Index Update catalogues the sources cited across Sections 1.7 through 1.10 of *Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act*, added during the seven-extension blueprint expansion. The Update operates as an addendum to the substantive Part One Source Index covering Sections 1.1 through 1.6 and is organized by source category to integrate substantively with the existing Source Index structure. Where a source has already been documented in the substantive Part One Source Index covering Sections 1.1 through 1.6, the Update references the prior documentation rather than duplicating it.

The substantive content of the Update is grounded in primary-source documentation: provincial-government statutes, regulations, and open-data portals; federal-government statutes and surveillance data; peer-reviewed academic literature; substantive Canadian academic-and-journalistic record; substantive disability-and-aging advocacy documentation; and substantive frontline-care-work documentary record across the substantive lifecycle dimensions documented in the new content.

The Update covers four substantive sections: Section 1.7 (Mental Health and Addiction as a Lifecycle Dimension), Section 1.8 (Rural, Remote, and Northern Alberta as a Lifecycle Dimension), Section 1.9 (The Disability-Poverty Intersection), and Section 1.10 (Aging, Acquired Disability, and End-of-Life as a Lifecycle Dimension). Combined with the substantive Part One Source Index covering Sections 1.1 through 1.6 and the substantive Sections 1.3a substantive content (the Engineered Repudiation rewrite, whose substantive sources are integrated within the existing Source Index categories), the Update completes the substantive documentary foundation of Part One.

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## Provincial Alberta Statutes and Regulations

**Mental Health Act, R.S.A. 2000, c. M-13.** Government of Alberta. Provincial statute providing for involuntary admission and treatment of persons with mental disorders meeting the substantive operational criteria the Act specifies. Substantive operational provisions establish the Alberta Mental Health Patient Advocate and the substantive review-board framework through which involuntary-admission decisions are reviewed. *Cited in: Section 1.7.*

**Compassionate Intervention Act (Bill 53).** Legislative Assembly of Alberta, introduced April 15, 2025, Royal Assent May 15, 2025. Provincial statute establishing the substantive provincial framework for involuntary treatment of persons with severe substance-use or addiction whose conduct is determined to be likely to cause substantial harm to themselves or others within a reasonable time. Establishes the Compassionate Intervention Commission (lawyer, physician, member of the public), 72-hour

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

assessment-and-detoxification period, secure treatment orders up to three months, community-based treatment orders up to six months, care-plan reviews every three weeks. Replaces the 2006 *Protection of Children Abusing Drugs Act* (PChAD) for youth. *Cited in: Section 1.7.*

**Alberta Continuing Care Act, effective April 1, 2024.** Government of Alberta. Provincial statute updating the terminology and the substantive operational structure of the provincial continuing-care system, including renaming long-term care facilities as "Continuing Care Home Type A" and designated supportive living facilities as "Continuing Care Home Type B," operating within the Alberta Health Services Continuing Care Access Centre system that requires Case Manager engagement for service access. *Cited in: Section 1.10.*

**Adult Guardianship and Trusteeship Act (AGTA), Government of Alberta.** Provincial statute providing for substantive guardianship-and-trusteeship arrangements for adults whose capacity to make personal-and-financial decisions is operationally impaired. The substantive operational framework operates substantively within the substitute-decision-making model that the substantive United Nations *Convention on the Rights of Persons with Disabilities* Article 12 framework identifies as requiring substantive policy reform across signatory jurisdictions. *Cited in: Section 1.10.*

**Adult Learning Act, Government of Alberta.** Provincial statute establishing the substantive framework for adult-basic-education and lifelong-learning programming across the province. *Cited in: Section 1.10.*

**Bill 26 (An Act to Combat Poverty and Fight for Albertans with Disabilities), Legislative Assembly of Alberta, November 2018.** Provincial statute under the New Democratic government implementing modest increases to AISH and Income Support benefit-levels, expanding eligibility for some categorical programs, and indexing benefits to inflation. The substantive 2019 UCP de-indexation reversed the indexation provisions. *Cited in: Section 1.9.*

**Bill 32 (Alberta Escalator framework), Legislative Assembly of Alberta, 2023.** Provincial legislation establishing the substantive partial-indexation framework increasing income supports by the minimum of (a) the change in the Alberta Consumer Price Index, or (b) two percent. *Cited in: Section 1.9.*

**Metis Settlements Act, Government of Alberta.** Provincial statute establishing the statutory framework for the eight Métis Settlements operating in Alberta (Buffalo Lake, East Prairie, Elizabeth, Fishing Lake, Gift Lake, Kikino, Paddle Prairie, Peavine). Alberta is the only Canadian province with statutory Métis Settlements infrastructure. *Cited in: Section 1.8.*

**Post-Secondary Learning Act, Government of Alberta.** Provincial statute establishing the framework for the substantive Alberta post-secondary system. (Cross-referenced from Section 3.4 Component 9.)

## Federal Statutes

**Canada Disability Benefit Act (S.C. 2023, c. 9).** Government of Canada, 2023, with operationalization through 2025. Federal statute establishing the Canada Disability Benefit, providing federal income support to working-age persons with disabilities at a maximum of two hundred dollars per month. The substantive Alberta provincial-government policy choice to claw back the CDB dollar-for-dollar from AISH recipients

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

makes Alberta the only province in Canada that operates a CDB clawback policy. *Cited in: Section 1.9.*

**Old Age Security Act, R.S.C. 1985, c. O-9, including the substantive *involuntary separation* provision.** Government of Canada. Federal statute establishing the Old Age Security pension and the Guaranteed Income Supplement, with the substantive *involuntary separation* provision permitting both spouses to be treated as single persons for OAS and GIS calculation purposes when one spouse is in a long-term-care facility (or where both spouses are in long-term-care facilities, regardless of whether they share a room). *Cited in: Sections 1.9, 1.10.*

## International Treaties and Frameworks

**United Nations *Convention on the Rights of Persons with Disabilities* — Article 12 (Equal Recognition Before the Law) and General Comment No. 1.** United Nations Committee on the Rights of Persons with Disabilities. Substantive interpretive framework establishing the substantive policy direction toward supported-decision-making frameworks operating against substitute-decision-making frameworks. *Cited in: Section 1.10.*

**Treaty 6 (1876), Treaty 7 (1877), and Treaty 8 (1899).** Substantive treaty framework operating in Alberta within which the substantive Indigenous-disability dimension operates. *Cited in: Section 1.8.*

## Government of Alberta Open Data and Provincial Documentation

**AISH Data Visualization Dashboard, September 2025 Caseload by Primary Medical Condition.** Alberta Assisted Living and Social Services, available at <https://open.alberta.ca/dataset/df7b7b00-c5c3-4d0e-97ff-5f902537fac0>. Documents the substantive AISH caseload composition: 79,290 total clients, with Physical Disabilities 32,901 (41.5%), Mental Illness Disorders 23,940 (30.2%), Cognitive Disorders 22,419 (28.3%). Documents the substantive geographic distribution of AISH caseload (Edmonton 36.7%, Calgary 29.4%, Central 12.5%, South 10.0%, Northwest 5.8%). *Cited in: Sections 1.7, 1.8.*

**AISH Eligibility Documentation.** Government of Alberta, available at <https://www.alberta.ca/aish-eligibility> and <https://www.alberta.ca/aish>. Documents the substantive AISH eligibility framework including the substantive legislative-text exclusion of residents of "correctional facility or some mental health facilities such as Alberta Hospital Edmonton." *Cited in: Section 1.7.*

**Alberta Substance Use Surveillance System (ASUSS).** Recovery Alberta and Government of Alberta, available at <https://www.alberta.ca/substance-use-surveillance-data>. Provincial surveillance system providing substantive operational data on opioid-related deaths, prescribing patterns, drug-overdose-related EMS responses, and substantive operational substance-use data updated monthly. *Cited in: Section 1.7.*

**Compassionate Intervention Information Page.** Government of Alberta, available at <https://www.alberta.ca/compassionate-intervention>. Documents the substantive *Compassionate*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Intervention Act* operationalization including the substantive 150-bed compassionate-intervention centres in Edmonton and Calgary, the substantive Recovery Alberta operational framework, and the substantive Budget 2026 allocation of \$291 million over three years. *Cited in: Section 1.7.*

**Resources for Students with Disabilities Page.** Government of Alberta, available at <https://www.alberta.ca/resources-students-disabilities>. Documents the substantive provincial-government framework for post-secondary disability accommodation including the substantive Disability/Accessibility Services Office infrastructure operating across the publicly-funded post-secondary system. (Cross-referenced from Section 3.4 Component 9.)

**Alberta Health Services Continuing Care FAQ and Continuing Care Home Type A Page.** Alberta Health Services, available at <https://www.albertahealthservices.ca/cc/Page15536.aspx> and <https://www.albertahealthservices.ca/cc/Page15491.aspx>. Documents the substantive operational structure of the provincial continuing-care system under the *Alberta Continuing Care Act*. *Cited in: Section 1.10.*

**Health Quality Alberta Continuing Care Placement Within Thirty Days Tracking.** Health Quality Alberta, available at <https://focus.hqa.ca/charts/placement-into-continuing-care-facility-living/>. Documents the substantive operational performance indicator tracking the percentage of residents placed into continuing-care homes within thirty days of assessment. *Cited in: Section 1.10.*

**Alberta Health Services Northern Incentives Program.** Alberta Health Services, documented at <https://careers.albertahealthservices.ca/moreinfo/rural> and <https://www.albertahealthservices.ca/careers/Page12214.aspx>. Provincial-government recruitment-and-retention infrastructure providing the Northern Remote Retention Allowance for healthcare workers in designated northern positions. *Cited in: Section 1.8.*

**Rural Health Professions Action Plan (RhPAP).** Government of Alberta, available at <https://rhpap.ca/about/jobs/>. Provincial-government recruitment-and-retention support program for rural Alberta healthcare-professional positions including the Rural Medical Student Award Program (\$5,000 contribution) and "Let's Go Rural!" recruitment events. *Cited in: Section 1.8.*

## Federal Government Documentation

**Public Health Agency of Canada Opioid- and Stimulant-Related Harms in Canada Surveillance Data.** Public Health Agency of Canada, available at <https://health-infobase.canada.ca/substance-related-harms/opioids-stimulants/>. Documents the substantive national opioid-toxicity-deaths surveillance including the substantive 55,032 apparent opioid toxicity deaths reported nationally between January 2016 and September 2025, and the substantive 4,162 apparent opioid toxicity deaths reported nationally for the January-to-September 2025 reporting period (96 percent accidental). *Cited in: Section 1.7.*

**Public Health Agency of Canada Decline in Opioid-Related Deaths Analysis.** Public Health Agency of Canada, December 11, 2025, available at <https://health-infobase.canada.ca/substances/harms/decline-opioid-related-deaths/>. Substantive analytical

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

work identifying potential factors contributing to the decline in opioid-related deaths in 2024 compared to 2023, including the substantive role of naloxone availability and substantive changes in patterns of substance use. *Cited in: Section 1.7.*

**Statistics Canada 2021 Census of Population.** Statistics Canada, available through <https://www12.statcan.gc.ca/>. Documents the substantive Alberta population distribution including the 81% urban and 19% rural distribution, the substantive Edmonton-and-Calgary 54.4% population concentration on 0.25% of the provincial land area, and the substantive Athabasca and Peace land-use planning regions covering 66.7% of the provincial land area on 11.0% of the population. *Cited in: Section 1.8.*

**Statistics Canada Provisional Poverty Estimates for 2024 and Market Basket Measure (MBM) Documentation.** Statistics Canada, available at <https://www150.statcan.gc.ca/n1/pub/75f0002m/75f0002m2025008-eng.htm>. Establishes the Market Basket Measure as Canada's Official Poverty Line operating since 2018 following the release of *Opportunity for All — Canada's First Poverty Reduction Strategy*. Documents the substantive 2024 MBM Calgary Poverty Line of approximately twenty-eight thousand nine hundred fifty-four dollars annually for a single individual. *Cited in: Section 1.9.*

**Canada Disability Benefit Information.** Government of Canada (federal Canada Disability Benefit operational framework) and Plan Institute (<https://www.canadadisabilitybenefit.ca/cdb-and-aish>). Documents the substantive federal benefit operationalization including the substantive Alberta provincial-government clawback policy, the substantive deduction-from-AISH provisions, and the substantive operational requirements for AISH recipients to apply for the federal Disability Tax Credit (DTC) and CDB. *Cited in: Section 1.9.*

## Peer-Reviewed Academic Research

**Sayre B., Black M., Cromwell H., Wand A. (2009). *Disability Payments for Persons With Severe Mental Illness in Alberta, Canada.* *Psychiatric Services*, available at <https://psychiatryonline.org/doi/10.1176/ps.2009.60.5.686>. Documents the substantive 2005 baseline of 17,138 Albertans with severe mental illness receiving AISH payments, with \$142.8 million in AISH supplemental income benefits and an additional \$64.4 million in federal CPP-Disability benefits, compared to total provincial mental-health-services cost of \$405 million in 2005. *Cited in: Section 1.7.***

**Involuntary Treatment for Substance Use: Application of Kass' Ethical Framework to Alberta's Compassionate Intervention Act.** *Canadian Medical Association Journal*, Vol. 197, Issue 40 (2025), available at <https://www.cmaj.ca/content/197/40/E1346>. Substantive ethical analysis applying the Kass framework for public-health interventions and concluding that the *Compassionate Intervention Act* presents substantive risks across all three Kass-framework domains (privacy, liberty, justice), with substantive operational consequences including the potential for substantive disproportionate targeting of structurally marginalized populations including First Nations, Inuit, and Métis individuals. *Cited in: Section 1.7.*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Trends and Indicators of Nursing Workforce Shortages in Canada: A Retrospective Ecological Study, 2015-2022.** *BMJ Open*, 2024, available at <https://pmc.ncbi.nlm.nih.gov/articles/PMC12161301/>. Documents that the substantive Alberta nurse-to-population ratio fell from 8.67 nurses per 1,000 population in 2015 to 8.26 nurses per 1,000 population in 2022 — the most substantial decrease of any Canadian province during that period — operating substantively below the national average of 12.13 in 2022. *Cited in: Section 1.8.*

**Maytree Welfare in Canada: Alberta Time-Series Analysis.** Maytree Foundation, available at <https://maytree.com/changing-systems/data-measuring/welfare-in-canada/alberta/>. Substantive nineteen-year time-series analysis (2006-2024) of Alberta welfare and disability income-support benefit-levels relative to the Market Basket Measure Poverty Line and Deep Income Poverty thresholds. Documents the substantive AISH-to-Poverty Line ratios across the period including 81% in 2006, 101% peak in 2013, 76% low point in 2022, 80% in 2024. Documents the substantive BFE single-with-disability ratio decline from 54% of Poverty Line in 2006 to 43% in 2024. *Cited in: Section 1.9.*

**Maytree Social Assistance Summaries: Alberta Documentation.** Maytree Foundation, available at <https://maytree.com/changing-systems/data-measuring/social-assistance-summaries/alberta/>. Documents the substantive 2024-25 fiscal year Alberta social-assistance caseload of 134,994 average cases, with 1.9% of population under 65 receiving AISH and 2.4% receiving Income Support. *Cited in: Section 1.9.*

**Understanding Loneliness and Depression in Spousal Separation Within Long-Term Care Facilities.** Joanna Briggs Institute (JBI) systematic review research, available at <https://jbi.global/news/article/understanding-loneliness-and-depression-spousal-separation-within-long-term-care>. Documents the substantive 42% severe-loneliness prevalence in long-term-care residents (compared to 10% prevalence in older adults living in the community) and the substantive operational pathways through which loneliness operates as a substantive predictor of cognitive impairment and mortality. *Cited in: Section 1.10.*

**Loneliness, Isolation, Cognition, and Mortality Risk: Harmonization Within a Coordinated Analysis Framework.** Available at <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC12761437/>. Documents the substantive findings that loneliness is associated with the transition from no cognitive impairment to mild cognitive impairment, that isolation is associated with the transition from mild to severe cognitive impairment, and that loneliness elevates mortality risk regardless of age, sex, race, or ethnicity. *Cited in: Section 1.10.*

**Loneliness, Dementia Status and Their Association with All-Cause Mortality Among Older US Adults.** Available at <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC11713336/>. Documents the substantive findings that probable dementia is consistently linked to over twofold increased mortality risk and that up to 40% of the total effect of loneliness on mortality operates as a "pure indirect effect" mediated through dementia probability. *Cited in: Section 1.10.*

**Spousal Loss Linked to Higher Risk of Dementia, Mortality Among Men, but Not Women.** Boston University School of Public Health, available at <https://www.bu.edu/sph/news/articles/2026/spousal-loss-linked-to-higher-risk-of-dementia-mortality-among-men-but-not-women/>. Documents the substantive findings that spousal loss is associated with increased dementia risk and mortality, with the first year post-bereavement operating as a particularly high-risk period for men. *Cited in: Section 1.10.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**How Do Spouses Experience Living Alone After Their Partner With Dementia Moves Into a Care Home? A Systematic Review.** Available at <https://pmc.ncbi.nlm.nih.gov/articles/PMC12340749/>. Documents the substantive concept of "ambiguous loss" — the substantive grief experience that operates when the partner is operationally absent (in care) but not deceased, producing sustained psychological complications including depression, grief, and loneliness for the at-home spouse. *Cited in: Section 1.10.*

**State of Rural Canada 2024 — Alberta: Change and Inertia During Volatile Times.** Canadian Rural Revitalization Foundation, available at <https://sorc.crrf.ca/alberta-2024/>. Documents the substantive Alberta rural population distribution including the substantive 54.4% Edmonton-and-Calgary population concentration on 0.25% of the provincial land area, and the substantive Athabasca and Peace land-use planning regions covering 66.7% of the provincial land area on 11.0% of the population. *Cited in: Section 1.8.*

**Conference Board of Canada — Alberta's Rural Communities Their Economic Contribution to Alberta and Canada.** Conference Board of Canada, available at [https://www1.agric.gov.ab.ca/\\$Department/deptdocs.nsf/all/csi14195/](https://www1.agric.gov.ab.ca/$Department/deptdocs.nsf/all/csi14195/). Documents the substantive proportion of the rural Alberta population aged 60+ (16.6%) compared to urban Alberta (13.7%) and the substantive economic profile of rural Alberta. *Cited in: Section 1.8.*

## Government Reports and Independent Policy Analysis

**Drop in Drug Poisoning Deaths Does Not Necessarily Indicate Alberta Recovery Model is Working.** *The Conversation*, October 16, 2025, available at <https://theconversation.com/drop-in-drug-poisoning-deaths-does-not-necessarily-indicate-alberta-recovery-model-is-working-239722>. Substantive academic-and-journalistic analysis of the substantive Alberta provincial-government claims regarding the operational effectiveness of the substantive recovery-focused model, including substantive critical engagement with the documented evidence base. *Cited in: Section 1.7.*

**Field Law Compassion vs. Coercion: Regulatory Impacts of Bill 53.** Field Law professional regulatory analysis, January 6, 2026, available at <https://www.fieldlaw.com/insights/publication/Compassion-vs-Coercion-Regulatory-Impacts-of-Bill-53>. Documents the substantive professional-regulatory implications of the *Compassionate Intervention Act* including the substantive operational tensions between the Act and the existing *Mental Health Act* infrastructure, and the substantive operational complications for regulated health professionals participating in involuntary assessments and treatment implementation. *Cited in: Section 1.7.*

**Alberta Medical Association Compassionate Intervention Act Reaction.** Alberta Medical Association, May 7, 2025, available at <https://www.albertadoctors.org/news/publications/presidents-letter/compassionate-intervention-act-our-reaction/>. Substantive professional-medical-association response identifying substantive operational concerns with the *Compassionate Intervention Act* including substantive questions about post-discharge care, legal safeguards, and operational interaction with social factors including housing and income. *Cited in: Section 1.7.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Canadian Bar Association Alberta May 2025 Letter re Compassionate Intervention Act.** CBA Alberta, May 9, 2025, available at <https://cba-alberta.org/our-impact/submissions/may-2025-letter-re-compassionate-intervention-act/>.

Substantive professional-legal-association analysis identifying substantive legal concerns including the substantive overlap with existing legislation (*Personal Directives Act*, *Adult Guardianship and Trusteeship Act*, *Youth Criminal Justice Act*), substantive procedural-fairness questions, and substantive consent-and-treatment provisions. *Cited in: Section 1.7.*

**A Closer Look at Alberta's New Indexation Framework for Income Supports.** Enough for All (Calgary), December 2024, available at <https://enoughforall.ca/articles/a-closer-look-at-albertas-new-indexation-framework>. Substantive policy analysis of the Alberta Escalator framework including the substantive operational consequences for benefit-level erosion during periods of higher-than-two-percent inflation. *Cited in: Section 1.9.*

**Analyzing the 2025 Alberta Budget.** Enough for All (Calgary), March 3, 2025, available at <https://enoughforall.ca/articles/analyzing-the-2025-alberta-budget>. Substantive policy analysis of the 2025 Alberta Budget including the substantive AISH administration funding reduction, the substantive homelessness funding reduction (\$4 million from \$224 million), and the substantive ADAP transition trajectory. *Cited in: Section 1.9.*

**Disability Action Hall ADAP vs AISH: A Smarter, More Efficient Path.** Disability Action Hall, September 2025, available at <https://www.actionhall.ca/2025/09/adap-vs-aish-smarter-more-efficient-path.html>. Substantive disability-community advocacy analysis of the substantive AISH-and-ADAP comparative architecture including the documented finding that AISH falls \$576 short of the Calgary Market Basket Measure poverty threshold for 2024 and that food bank use strongly predicts future homelessness. *Cited in: Section 1.9.*

## Press Coverage and Investigative Journalism

**Alberta Introduces Controversial Involuntary Addictions Treatment Bill.** Michelle Bellefontaine, CBC News, April 16, 2025, available at <https://www.cbc.ca/news/canada/edmonton/alberta-introduces-controversial-involuntary-addictions-treatment-bill-1.7511051>. Reporting on Bill 53, the *Compassionate Intervention Act*, including direct quotes from Mental Health and Addiction Minister Dan Williams, NDP Critic Janet Eremenko, University of Alberta law professor Eric Adams. *Cited in: Section 1.7.*

**Edmonton Region Hits All-Time Monthly Peak in Opioid-Related Deaths.** CBC News, July 3, 2025, available at <https://www.cbc.ca/news/canada/edmonton/edmonton-drug-poisoning-opioid-1.7575814>. Reporting on the substantive March 2025 record of 87 opioid-related deaths in the Edmonton zone, including direct quotes from Elaine Hyshka (Canada Research Chair, Health Systems Innovation, U Alberta), Marliss Taylor (harm reduction expert, retired RN), and Nathaniel Dueck (press secretary, Ministry of Mental Health and Addiction). *Cited in: Section 1.7.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Opioid-Related Deaths Are on the Rise, but Numbers in One Alberta Region Suggests a Different Story.** *St. Albert Gazette*, September 15, 2025, available at <https://www.stalbertgazette.com/beyond-local/opioid-related-deaths-are-on-the-rise-but-numbers-in-one-alberta-region-suggests-a-different-story-11214865>. Reporting on the substantive 2024 Alberta opioid death toll (1,189), the substantive carfentanil escalation in the Alberta drug supply (10% in 2024 to 68% in January-May 2025 provincially; 17% to 78% in Edmonton zone), and the substantive Opioid Dependency Program enrollment trajectory (3,288 in 2018; 12,299 in 2024; 6,789 in early-to-mid 2025). *Cited in: Section 1.7.*

**Alberta Opioid Data Shows Drop in Deaths, Overdoses — But Some Are Dying More Than Others.** *Globalnews.ca*, February 7, 2025, available at <https://globalnews.ca/news/11009443/alberta-opioid-data-overdoses-2025/>. Reporting on the substantive intersection of opioid-related deaths with homelessness in Edmonton, including the 2024 Homeward Trust report documenting over 4,500 persons living rough in Edmonton, the 1,429 shelter spaces documented by the *Edmonton Journal*, and the substantive 200-to-1,000-times higher risk of drug-poisoning death for homeless individuals compared to housed people. *Cited in: Section 1.7.*

**'This Isn't Over Yet': Opioid-Related Deaths Reach New Heights in Edmonton.** *Globalnews.ca*, July 3, 2025, available at <https://globalnews.ca/news/11272959/edmonton-opioid-deaths-alberta-carfentanil/>. Reporting on the substantive March 2025 record opioid death toll in Edmonton and the substantive carfentanil escalation. *Cited in: Section 1.7.*

**Separating Couples in Long-Term Care: Some Nations Call It Inhumane, in Most of Canada It's Routine.** Melissa Mancini, *CBC News*, June 2, 2019, available at <https://www.cbc.ca/news/health/national-long-term-care-couples-housing-1.5159102>. National-level reporting documenting the substantive Canadian operational pattern of forced-spousal-separation in long-term care, including the substantive Alberta-specific Farnell case (Martha and Willard Farnell of Calgary, married 66 years, separated by Willard's dementia diagnosis and admission to a long-term-care facility approximately twenty minutes from Martha's residence). Documents comparator-jurisdiction approaches including Sweden's substantive operational stance treating forced spousal-separation as inhumane. *Cited in: Section 1.10.*

**Couple Together 52 Years May Divorce as 'Last Resort' to Cut Nursing-Home Costs.** Rachel Cave, *CBC News*, July 29, 2015, available at <https://www.cbc.ca/news/canada/new-brunswick/nursing-home-costs-leave-seniors-pondering-divorce-1.3171888>. Reporting documenting the substantive forced-divorce-as-financial-survival pattern including the Jerry Clarke case, the Kenneth Campbell case, the Judy MacKenzie case, the Elizabeth Martin case, and the Bonnie Hayward case. *Cited in: Section 1.10.*

**Separating Couples in Long-Term Care: Heartbreaking.** *Today's Woman*, November 17, 2025, available at <https://www.todays-woman.net/2025/health-personal-fitness/aging-and-seniors/separating-couples-in-long-term-care-heartbreaking/>. Substantive analytical engagement with the substantive operational pattern of forced-spousal-separation in long-term care including substantive comparator-jurisdiction analysis of the Netherlands "Living Apart Together" (LAT) suites model. *Cited in: Section 1.10.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Alberta's Government Announces Funding for Improved Access to Healthcare.** Big West Country, March 15, 2024, available at <https://www.bigwestcountry.ca/2024/03/15/albertas-government-announces-funding-for-improved-access-to-healthcare/>. Reporting on the Budget 2024 continuing-care funding (\$1.7 billion) and the substantive Alberta NDP Critic Lori Sigurdson statement documenting that the substantive provincial-government's own acknowledged need is 10,000 new continuing-care spaces over three years, substantively above the documented 1,050-additional-spaces target. *Cited in: Section 1.10.*

**Opinion: AISH Reform Deja Vu: Alberta Is Repeating a Dangerous Mistake.** Yahoo News Canada, available at <https://ca.news.yahoo.com/opinion-aish-reform-deja-vu-120026146.html>. Substantive opinion analysis from former Alberta Committee of Citizens with Disabilities (now Voice of Albertans with Disabilities) executive director documenting the substantive 1999-2000 AISH reform efforts and the substantive parallels to the contemporary ADAP transition. *Cited in: Section 1.9.*

## Government and Independent Reviews of Healthcare Wait-Times

**Fraser Institute *Waiting Your Turn: Wait Times for Health Care in Canada, 2024*.** Fraser Institute, December 2024, available at <https://www.fraserinstitute.org/categories/health-care-wait-times>. Documents the substantive Alberta median wait-time for orthopedic surgeries (66.8 weeks) and the substantive median wait across twelve medical specialties (29.5 weeks). *Cited in: Section 1.10.*

**Health Quality Alberta Continuing Care Performance Tracking.** Health Quality Alberta, available at <https://focus.hqa.ca/charts/placement-into-continuing-care-facility-living/>. Substantive operational performance indicator infrastructure tracking the percentage of residents placed into continuing-care homes within thirty days of assessment. *Cited in: Section 1.10.*

## Disability-and-Aging Advocacy Organizations and Documentary Sources

**Family Caregivers BC — Involuntary Separation Documentation.** Family Caregivers BC, available at <https://www.familycaregiversbc.ca/caregiver-learning-center/read-resources/involuntary-separation>. Substantive documentary infrastructure documenting the federal Old Age Security Act *involuntary separation* provision and its substantive operational application for senior couples in long-term-care contexts. *Cited in: Section 1.10.*

**Help for Dementia — Involuntary Separation Resource.** Help for Dementia, available at <https://www.helpfordementia.ca/wp-content/uploads/2024/03/Involuntary-Separation.pdf>. Substantive documentary resource for senior couples and families navigating long-term-care fee-determination architecture. *Cited in: Section 1.10.*

**Queen's University School of Nursing — Madison Robertson Doctoral Research, *Till Death Do Us Part: Spousal Separation in Long-Term Care*.** Queen's University, available at <https://nursing.queensu.ca/stories/research/researching-mental-health-impact-imposed-separation-long-term-care>. Substantive doctoral research examining the mental-health impact of spousal separation in long-term-care facilities through direct engagement with residents and their spouses, recognized at the national level through the



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Social Sciences and Humanities Research Council (SSHRC) Storytellers Challenge. *Cited in: Section 1.10.*

## Named Government Officials and Politicians

**Dan Williams.** Minister of Mental Health and Addiction, Government of Alberta, 2024-2025. Public role in the introduction and operationalization of the *Compassionate Intervention Act*. *Cited in: Section 1.7.*

**Adriana LaGrange.** Minister of Health, Government of Alberta, 2023-2024. Public role in the substantive provincial-government continuing-care funding commitments documented in the Budget 2024 announcement. *Cited in: Section 1.10.*

**Lori Sigurdson.** Alberta NDP Critic for Seniors Issues and Continuing Care and Homecare. Public role documenting the substantive provincial-government acknowledged need of 10,000 new continuing-care spaces over three years. *Cited in: Section 1.10.*

**Janet Eremenko.** Alberta NDP Opposition Critic for Mental Health and Addiction. Public role in the substantive critical engagement with the *Compassionate Intervention Act*. *Cited in: Section 1.7.*

**Jonathan Carlzon.** First Commissioner and founding member of the Alberta Compassionate Intervention Commission, appointed July 2025 for a three-year term beginning August 11. *Cited in: Section 1.7.*

**Nathaniel Dueck.** Press Secretary, Ministry of Mental Health and Addiction, Government of Alberta. Public role in the substantive provincial-government communications regarding opioid-deaths data and the substantive carfentanil escalation. *Cited in: Section 1.7.*

## Named Academic Experts and Frontline Voices

**Eric Adams.** Constitutional-law professor, University of Alberta, Edmonton. Substantive academic engagement with the Charter implications of the *Compassionate Intervention Act*. *Cited in: Section 1.7.*

**Elaine Hyshka.** Canada Research Chair in Health Systems Innovation, University of Alberta School of Public Health. Substantive academic engagement with the substantive Alberta opioid-deaths crisis and the substantive operational adequacy of the substantive provincial-government policy direction. *Cited in: Section 1.7.*

**Marliss Taylor.** Harm reduction expert, retired Registered Nurse (Edmonton). Substantive frontline-care-work documentary engagement with the substantive Edmonton opioid-deaths crisis. *Cited in: Section 1.7.*

**Angie Staines.** Founder, 4B Harm Reduction Society, Edmonton. Substantive frontline-care-work documentary engagement with the substantive Alberta drug-poisoning crisis and the substantive class-stratification of drug-supply quality. *Cited in: Section 1.7.*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Lindsay Tedds.** Associate Professor, Department of Economics, University of Calgary. Substantive academic engagement with income-assistance programs and disability programs across Canada including substantive analysis of AISH benefit-level adequacy relative to Poverty Line measurements. *Cited in: Section 1.9.*

**Madison Robertson.** Fourth-year PhD student, Queen's University School of Nursing. Substantive doctoral research project *Till Death Do Us Part: Spousal Separation in Long-Term Care* examining the mental-health impact of spousal separation in long-term-care facilities. *Cited in: Section 1.10.*

**Martha and Willard Farnell.** Calgary, Alberta couple, married 66 years, substantively engaged in the CBC News national reporting on forced-spousal-separation in long-term care following Willard's dementia diagnosis and admission to a long-term-care facility approximately twenty minutes from Martha's residence. *Cited in: Section 1.10.*

**Substantive frontline-care-work documentary record.** The substantive frontline-care-work documentary record across decades has witnessed the substantive forced-spousal-separation pattern operationally at the substantive scale the documented data only partially capture; long-term-care workers, geriatric-care providers, and frontline social-services staff have observed the family-driven separation pathway as a recurring operational pattern within the substantive Alberta long-term-care system. *Cited in: Section 1.10.*

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## Comparator Jurisdictional Frameworks Referenced

**Sweden Long-Term Care Couples Rights Framework.** Comparator-jurisdiction documentation establishing the substantive operational right for couples to live together in long-term-care contexts even where one requires more care than the other. Treated as substantive operational precedent for inhumane-treatment framing of forced spousal separation. *Cited in: Section 1.10.*

**Netherlands "Living Apart Together" (LAT) Suites Model.** Comparator-jurisdiction documentation of the substantive person-centred long-term-care-suites operational model that allows couples to live in separate but connected rooms or apartments within the same care facility. *Cited in: Section 1.10.*

**Ontario January 1, 2018 Long-Term Care Spousal-Beds Regulation.** Substantive Ontario regulation requiring every long-term care home to have at least two beds for spouses. Documented as substantive comparator with operational limitations (NDP critique of inadequate scale relative to demand). *Cited in: Section 1.10.*

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## Methodological Note

The substantive content of the Part One Source Index Update is grounded in primary-source documentation accessible through provincial-government websites, federal-government surveillance portals, peer-reviewed academic databases, parliamentary records, and substantive media-and-advocacy publication infrastructure. The substantive sources operate as substantive evidentiary anchoring for the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

substantive operational findings developed across Sections 1.7, 1.8, 1.9, and 1.10.

The substantive integration with the substantive Part One Source Index covering Sections 1.1 through 1.6 produces the substantive comprehensive documentary foundation of Part One. Combined with the substantive Part Two Source Index covering the comparator-jurisdictional record and the substantive Part Three Source Index covering the substantive specification record (with Section 3.10 Constitutional Resilience and Section 3.4 Component 9 Post-Secondary content as substantive additions), the substantive comprehensive documentary record of *Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act* is operationally complete.

The substantive Update operates as substantive documentary infrastructure that any reader, advocate, journalist, legal professional, or policy-research engagement can verify independently through the substantive primary sources cited. The substantive prosecutorial standard the blueprint maintains operates substantively across the substantive comprehensive documentary record.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.1 — The Federal Floor: The Accessible Canada Act

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Part One closed by establishing that Alberta has the structural capacity to build proper disability architecture and has chosen, through legislation, to build it for one disability route and refuse to extend it to others. Part Two examines the comparator question that conclusion requires: if Alberta has chosen not to build proper architecture, what have other jurisdictions chosen to build, and what does the comparison reveal?

The comparator analysis begins with the federal *Accessible Canada Act* because the federal Act establishes the legal floor every Canadian jurisdiction now operates above. The federal government, with constitutional jurisdiction over a narrower slice of disabled Canadians' lives than any province, passed comprehensive accessibility legislation in 2019 with cross-party support, a binding deadline, an enforcement architecture, and an ongoing implementation process that is, six years into operation, producing measurable results. The provinces that have followed with their own analogous legislation are documented in Sections 2.2 through 2.6. Alberta is documented in Section 2.7 as the outlier that has not. The federal floor is what every other Canadian government has built upward from. Part Two examines what each jurisdiction built, and what Alberta's deliberate non-construction of equivalent provincial architecture reveals about the choice the province has made.

This section documents the federal *Accessible Canada Act* in detail: its origin, structure, scope, enforcement architecture, and operational record. The objective is not to celebrate the federal Act as perfect — subsequent reviews of the Act, including the statutory five-year independent review currently underway, have identified implementation gaps and enforcement shortfalls that the disability community has documented and that the federal government has acknowledged. The objective is to establish what comprehensive accessibility legislation looks like when a Canadian government chooses to build it, and to make the comparator framework explicit for the provincial analyses that follow.

## Origin and Passage

The federal *Accessible Canada Act* (the ACA) was developed through a multi-year consultation process beginning in July 2016 and continuing through February 2017. Employment and Social Development Canada conducted public consultations across the country, hearing from more than 6,000 Canadians and 90 organizations. The consultation focused on the question of what an accessible Canada would mean to people with disabilities, the disability community, and the broader Canadian public. The consultation findings established the seven priority areas the Act would later address and informed the foundational principle the Act would later codify: *Nothing Without Us*, the operating commitment that legislation, policy, and program decisions affecting persons with disabilities will be made with persons with disabilities at the table, not on their behalf.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The legislation introduced as Bill C-81, *An Act to Ensure a Barrier-Free Canada*, was tabled in the House of Commons on June 20, 2018, by the Honourable Carla Qualtrough, then Minister of Public Services and Procurement and Accessibility. The Bill received Royal Assent on June 21, 2019, after passage through both houses of Parliament, and came into force on July 11, 2019. The Act passed with multi-party support; the legislation's core principles were not contested across party lines, and the implementation framework has been continued under both Liberal and Conservative federal accessibility critic positions across the subsequent years.

The legislation is bound at the international level by Canada's status as a State Party to the United Nations *Convention on the Rights of Persons with Disabilities* (UN CRPD), which Canada signed in 2007 and ratified on March 11, 2010. The ACA's preamble explicitly references the CRPD obligation to take appropriate measures respecting accessibility and to develop and monitor minimum accessibility standards. The federal Act is, in this sense, the domestic operationalization of an international commitment Canada had accepted nine years before the federal legislation existed. Section 2.6 examines the CRPD framework directly and the obligation it places on all Canadian jurisdictions, including Alberta.

The legislative purpose is set out in Section 5 of the Act: *to benefit all persons, especially persons with disabilities, through the realization, within the purview of matters coming within the legislative authority of Parliament, of a Canada without barriers, on or before January 1, 2040*. The deadline is statutory. The barrier-removal mandate is permanent. The architecture is built around achieving the deadline through structured, measurable progress over a twenty-one-year horizon.

## The Seven Priority Areas

The ACA structures all federal accessibility work around seven defined priority areas. The areas were identified through the consultation process and are codified in Section 5 of the Act. Each area becomes the subject of standards development through Accessibility Standards Canada (described below), of accessibility plan requirements for federally regulated organizations, of compliance monitoring through the Accessibility Commissioner, and of public progress reporting through the federal Accessibility Hub hosted by Statistics Canada.

The seven areas are: *employment; the built environment; information and communication technologies (ICT); communication other than ICT; the procurement of goods, services and facilities; the design and delivery of programs and services; and transportation*.

The *employment* area covers the full employment lifecycle for federally regulated employers, including recruitment, hiring, onboarding, accommodation, retention, advancement, and termination. The objective is to ensure that persons with disabilities have equal opportunities to use their skills, grow, and succeed in federally regulated workplaces.

The *built environment* area covers federally regulated physical spaces, including federal government buildings, parks, washrooms, and other public-facing federal infrastructure. The objective is barrier-free physical environments where people can live, work, travel, and gather with dignity and independence.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The *information and communication technologies* area covers digital tools and platforms, including websites, applications, software, and online services. Federal organizations are required to comply with the latest version of the Web Content Accessibility Guidelines (WCAG), level AA, available in both French and English.

The *communication other than ICT* area covers the full range of communication contexts, from conversations and public announcements to meetings, emails, and printed materials. Importantly for the Deaf community, the Act explicitly recognizes American Sign Language (ASL), Quebec Sign Language (Langue des signes québécoise, LSQ), and Indigenous sign languages as the primary languages of Deaf people in Canada. The recognition is statutory. It is the first federal legislation in Canadian history to make this recognition explicit.

The *procurement* area covers the federal government's purchasing of goods, services, and facilities. The objective is to embed accessibility into every step of the buying process, ensuring that what the government purchases is inclusive and usable by everyone.

The *design and delivery of programs and services* area covers the architecture through which federal programs reach the public — in person, online, or by phone. The objective is to ensure that everyone can use federal programs, understand the information provided, and obtain the support they need.

The *transportation* area covers the federally regulated transportation network: airlines, interprovincial bus and rail, marine, and ferries. The objective is barrier-free travel from planning and booking through boarding, journey, and arrival. Enforcement in this area is delegated to the Canadian Transportation Agency.

These seven areas, taken together, define the federal jurisdiction's substantive scope under the Act. Each area generates standards, regulations, plans, reports, and complaint mechanisms. The architecture is not a statement of aspiration; it is a structured workflow producing documented outputs across all seven areas in parallel, on a continuing basis, against the 2040 deadline.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

### ACCESSIBLE CANADA ACT — THE SEVEN PRIORITY AREAS

**Employment** — full employment lifecycle for federally regulated employers, recruitment through retention, accommodation, advancement, termination.

**Built environment** — federally regulated physical spaces including federal buildings, parks, washrooms, public-facing infrastructure.

**Information and communication technologies (ICT)** — websites, applications, software, online services. WCAG 2.1 AA compliance required.

**Communication other than ICT** — meetings, emails, printed materials, public announcements. ASL, LSQ, and Indigenous sign languages statutorily recognized as primary languages of Deaf people in Canada.

**Procurement** — accessibility embedded in federal government purchasing of goods, services, and facilities.

**Design and delivery of programs and services** — federal program architecture reaching the public in person, online, or by phone.

**Transportation** — federally regulated transportation network (airlines, interprovincial bus and rail, marine, ferries). Enforcement delegated to the Canadian Transportation Agency.

## The Implementing Institutions

The ACA created a multi-institution implementation framework that distributes accessibility responsibility across standards development, compliance monitoring, enforcement, and oversight. Each institution has defined statutory functions and reports publicly on its work. The architecture is designed to prevent any single institutional failure from collapsing the broader implementation.

**Accessibility Standards Canada (ASC).** Established under Section 17 of the Act as the Canadian Accessibility Standards Development Organization (originally CASDO, renamed to ASC), this Crown corporation develops the technical standards that federally regulated organizations must comply with under the regulations. ASC's standards-development process operates through technical committees with majority representation from persons with disabilities and the disability community, in keeping with the *Nothing Without Us* principle. Standards developed by ASC may be voluntary or, where the Minister chooses to incorporate them into regulation, mandatory. Standards currently in development across the seven priority areas include accessible communications, accessible employment, accessible built environment, emergency egress, accessible information and communication technologies, plain language standards, and accessible communities (the CAN-ASC-2.12 standard currently in public consultation).



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

**The Accessibility Commissioner.** The Commissioner is appointed under the Act as a member of the Canadian Human Rights Commission and is the primary federal enforcement officer for accessibility compliance. The Commissioner's powers include investigating complaints, conducting inspections, issuing compliance orders requiring organizations to correct contraventions, issuing notices of violation that can carry administrative monetary penalties of up to \$250,000 per violation, and entering into compliance agreements with organizations agreeing to corrective terms. The Commissioner enforces the Act in all priority areas for most regulated organizations and in specific priority areas for organizations whose other compliance falls under specialized regulators (such as transportation entities falling under the Canadian Transportation Agency for transportation-specific compliance).

**The Chief Accessibility Officer (CAO).** The CAO is appointed under the Act as a special advisor to the federal Minister responsible for accessibility. The CAO's role is strategic: to monitor systemic barriers, advise on emerging accessibility issues, report annually on the state of accessibility across federally regulated sectors, and facilitate engagement with the disability community. The CAO does not enforce compliance; the CAO documents the landscape and makes recommendations.

**The Canadian Transportation Agency (CTA).** The CTA enforces accessibility compliance within the federal transportation network across all seven priority areas as they apply to transportation. The CTA's regulatory authority pre-dates the ACA and was extended to incorporate the Act's accessibility framework.

**The Canadian Radio-television and Telecommunications Commission (CRTC).** The CRTC enforces accessibility compliance for broadcasting and telecommunications service providers in the priority areas applicable to those sectors.

**The Federal Public Sector Labour Relations and Employment Board.** The Board handles accessibility complaints from federal public servants and parliamentary employees through the established grievance process, providing an internal complaint pathway parallel to the public-facing pathway through the Accessibility Commissioner.

The institutional design is intentionally distributed. The objective is to embed accessibility implementation across multiple federal entities rather than concentrating it in one administrative structure that could be defunded, narrowed, or restructured by ministerial discretion alone. The Bill 12 architecture documented in Part One Section 1.4 — in which a single minister was granted authority to narrow eligibility, repeal indexation, and limit appeal jurisdiction by regulation — is structurally inconsistent with the federal model the ACA establishes for accessibility.

## The Compliance Architecture

The ACA's compliance architecture requires federally regulated organizations to perform three documented activities on defined timelines: prepare and publish accessibility plans, establish and document feedback processes, and produce and publish progress reports.

**Accessibility plans** must be developed by all federally regulated organizations on a three-year cycle. Plans must include sections covering each of the seven priority areas, must document how the organization consulted persons with disabilities in plan development, and must describe the barriers the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

organization has identified and the actions it will take to remove them. The federal government, the Canadian Forces, Crown corporations, the RCMP, and parliamentary entities were required to publish their first accessibility plans by December 31, 2022. Large businesses (100 or more employees) were required to publish first plans by June 1, 2023. Small businesses (10 to 99 employees) were required to publish first plans by June 1, 2024. Businesses with nine or fewer employees are exempt from the planning requirement.

**Feedback processes** must be established by all covered organizations and must allow members of the public to submit feedback on the organization's accessibility, the barriers they encounter in dealing with the organization, and the implementation of the organization's accessibility plan. Organizations must designate a person responsible for receiving feedback, must ensure the feedback channel is itself accessible, and must respond to feedback received. The feedback process must be described in the organization's published accessibility plan.

**Progress reports** must be produced annually documenting the organization's work in implementing its accessibility plan, the barriers identified and removed in the reporting period, the feedback received and the consideration given to that feedback, and the consultation conducted with persons with disabilities. Progress reports must be published in the same accessible formats and locations as accessibility plans.

All three documents — plans, feedback processes, progress reports — must be available on the home page of the organization's website or through a hyperlink on the organization's website. They must follow the latest version of the Web Content Accessibility Guidelines (WCAG), level AA, and must be available in both French and English. Organizations without an online presence must keep paper copies at all business locations. Organizations have 48 hours after publication to notify the Accessibility Commissioner of the publication.

The compliance architecture is, in operational terms, an ongoing public-record-generating system. Six years into the Act's operation, federally regulated organizations have produced thousands of accessibility plans and progress reports, all of which are publicly accessible, all of which document specific barriers and specific removal commitments, and all of which create a baseline against which the next reporting cycle can be measured. The architecture is built around the recognition that accessibility implementation cannot be achieved through legislation alone — it requires sustained, documented, public organizational work over decades. The ACA structures that work and creates the public record by which it can be evaluated.

## The Six Implementing Principles

Section 6 of the ACA codifies six principles that the Act, the regulations, and all implementing entities must operate in accordance with. These principles function as both interpretive guidance and substantive obligations on the implementing institutions. The principles are:

*Everyone must be treated with dignity regardless of their disabilities.*

*Everyone must have the same opportunity to make for themselves the lives that they are able and wish to have, regardless of their disabilities.*

*Everyone must be able to participate fully and equally in society regardless of their disabilities.*

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

*Everyone must have meaningful options and be free to make their own choices, with support if they desire, regardless of their disabilities.*

*Laws, policies, programs, services and structures must take into account the disabilities of persons, the different ways that persons interact with their environments, and the multiple and intersecting forms of marginalization and discrimination faced by persons.*

*Persons with disabilities must be involved in the development and design of laws, policies, programs, services and structures.*

The principles are operative provisions, not preamble. They appear in the body of the Act and bind the implementing institutions. They function as the legislative codification of the *Nothing Without Us* commitment and as the standard against which any specific regulation, standard, or compliance decision can be evaluated. The principles are the floor below which federal accessibility implementation cannot fall, and the ceiling toward which it is statutorily required to aspire.

The principles' presence in the Act is a significant departure from purely transactional regulatory schemes. Most accessibility regulation in North American jurisdictions before 2019 operated through technical compliance requirements without explicit statutory principles guiding implementation. The ACA's principles are an attempt to ensure that the technical compliance produces substantive outcomes for the people the legislation exists to serve. The principles are not, in the federal context, decorative. They are the foundation on which standards and regulations are built and against which implementation is evaluated.

## The Five-Year Statutory Review

The ACA includes, at Section 117, a statutory requirement for an independent review of the Act every five years. The first review is currently underway and will produce, on completion, a report tabled in both houses of Parliament. The review process is designed to identify gaps in the Act's design, shortfalls in its implementation, and opportunities for amendment. The review's findings, when published, will form the next round of legislative and regulatory work to strengthen the federal accessibility architecture.

The disability community's input into the first review has identified several documented concerns. Implementation has been slower than the disability community considers acceptable. Enforcement through the Accessibility Commissioner has been more limited in scope than the legislation appears to permit. Coordination across the multiple implementing institutions has been uneven. The 2040 deadline, while preserved in legislation, requires substantially accelerated implementation to be achievable in the remaining timeline. These concerns are real and are being aired publicly in the review process. They are not, however, evidence that the legislation itself is unsound; they are evidence that legislation alone is insufficient and that sustained political, administrative, and resource commitment is required to deliver the outcomes the legislation mandates.

The relevant point for this Part Two analysis is that the federal Act has a built-in self-correction mechanism. The five-year review is not optional. It cannot be avoided by ministerial discretion. It will produce a public document. Subsequent amendments to the Act will be made, in part, on the strength of the review's findings. The architecture is designed to be improved over time, with structured input from the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

disability community as part of every revision cycle. This is what mature accessibility legislation looks like in operation.

## What the ACA Does Not Cover

The ACA's scope is constitutionally bounded. The Act applies only to entities under federal jurisdiction. This includes the federal government and its departments and agencies, Crown corporations, the Royal Canadian Mounted Police, the Canadian Armed Forces, Parliament, First Nations band councils on reserve, and federally regulated private-sector entities (banks, interprovincial transportation providers, broadcasting and telecommunications service providers). It does not apply to provincial and territorial governments, provincially regulated employers and service providers, municipal governments, or the vast majority of healthcare, education, social services, housing, and disability-program infrastructure that operates under provincial jurisdiction.

For Alberta, this means the ACA covers approximately 6 to 8 percent of the workforce (the federally regulated portion) and leaves the remaining 92 to 94 percent to provincial regulation. The ACA's 2040 deadline applies to the federal portion. The accessibility obligations governing the AISH, PDD, FSCD, and ADAP architectures documented in Part One are not subject to the ACA. Alberta's healthcare system, education system, municipal infrastructure, provincially regulated workplaces, and provincial program-and-service delivery are not subject to the ACA. The federal floor is real, but the federal floor stops where provincial jurisdiction begins.

The ACA explicitly contemplates this jurisdictional boundary. The Act's preamble notes that achieving a barrier-free Canada by 2040 *requires collaborative action across the country, involving all levels of government, the private sector, the disability community, Indigenous Peoples, and other organizations and individuals working together to advance change in our communities and workplaces*. The Act does not, because constitutionally it cannot, mandate provincial action. It does, however, establish a federal floor that the provinces are invited to build upward from.

Most provinces have, in the years since the ACA's passage, accepted that invitation. Sections 2.2 through 2.5 examine the provincial accessibility statutes that Ontario, Manitoba, Nova Scotia, British Columbia, and Saskatchewan have enacted to extend equivalent architecture into provincial jurisdiction. Each statute is shaped to its province's specific context but operates within the same overall framework: defined priority areas, mandated accessibility plans, public reporting, established enforcement, and a statutory deadline. Alberta's absence from this list is the subject of Section 2.7. The federal floor exists. The provincial buildings on top of the floor exist in every Canadian province with significant population except one.

## What This Section Establishes

The federal *Accessible Canada Act* establishes that comprehensive accessibility legislation is, in 2026, an established Canadian governance norm. The Act is operational, multi-institution, multi-stakeholder, and statutorily bound to specific deadlines and to a defined set of principles that codify the *Nothing Without Us* commitment. The Act has multi-party support. The Act has produced thousands of public-record accessibility plans and progress reports across federally regulated sectors. The Act has built

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

standards-development infrastructure (Accessibility Standards Canada), enforcement infrastructure (the Accessibility Commissioner), strategic-advisory infrastructure (the Chief Accessibility Officer), and self-correction infrastructure (the five-year statutory review). The Act is not perfect; the implementation is uneven; the disability community has documented concerns. The Act is, however, the framework that exists at the federal level, the framework Canada signed on to internationally through the UN CRPD, and the framework every populous Canadian province except Alberta has now built provincial analogues to.

The federal Act establishes the floor. The provincial statutes examined in Sections 2.2 through 2.5 build above the floor in the areas of provincial jurisdiction. Sections 2.6 through 2.7 address the international framework Canada is bound to and Alberta's specific position as the only major Canadian province without provincial accessibility legislation.

The comparator framework Part Two will use across all of these sections is consistent. For each jurisdiction, this Part will examine: when the legislation was passed and through what process; what scope and priority areas the legislation covers; what implementing institutions the legislation creates; what compliance and enforcement mechanisms it establishes; what statutory deadlines it sets; what record of operational implementation it has produced; and what its existence reveals about the legislative choices Alberta has made by not building equivalent architecture.

The federal floor has been documented. Section 2.2 examines the longest-running provincial analogue: Ontario's *Accessibility for Ontarians with Disabilities Act*, in operation since 2005, with twenty years of implementation experience that no other province in Canada matches.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.2 — Ontario: *The Accessibility for Ontarians with Disabilities Act, 2005*

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Section 2.1 established the federal floor. Section 2.2 examines the longest-running provincial analogue: the *Accessibility for Ontarians with Disabilities Act, 2005* (AODA). The AODA is significant for this Part Two analysis for three reasons. It was the first comprehensive provincial accessibility legislation in Canada, predating the federal *Accessible Canada Act* by fourteen years. It established the legislative template that subsequent provincial accessibility statutes — in Manitoba, Nova Scotia, British Columbia, Saskatchewan, and Newfoundland and Labrador — have adapted and built upon. And it has produced, in twenty years of operation, a documented record of both achievement and failure that no other Canadian provincial accessibility regime can yet match.

The AODA's record matters for this comparator analysis precisely because it is mixed. The Act's twenty-year statutory deadline for full provincial accessibility — January 1, 2025 — passed during the year before this blueprint was written, and Ontario acknowledged, through successive independent reviews, that the deadline had not been met. The AODA's implementation history is, in this sense, a cautionary record as much as a celebratory one. The cautionary lessons are integral to what Part Three will propose for Alberta. Comprehensive accessibility legislation is necessary but not sufficient. Statutory structure must be combined with sustained political commitment, adequate enforcement resources, and ongoing accountability mechanisms. The AODA's twenty-year record establishes both what the structure makes possible and what its absence guarantees.

The relevant point for this section is that even Ontario's mixed implementation has produced a public, structured, statutorily-mandated record of accessibility work over two decades. Alberta has no equivalent. Ontario's failures to fully achieve its 2025 deadline are documented because the deadline existed in legislation and required statutory review. Alberta has no deadline, no required review, no statutory structure for documentation of its failures. The AODA's imperfect implementation has nevertheless produced more public accountability for disability-policy outcomes in Ontario than any mechanism currently exists for in Alberta. That fact is the prosecutorial weight Section 2.2 carries forward into the rest of Part Two.

## Origin and Passage

The AODA was passed by the Ontario Legislative Assembly on June 13, 2005, under the Liberal government of Premier Dalton McGuinty. The legislation was enacted unanimously across all parties represented in the Assembly. The unanimous passage reflected more than a decade of disability-community advocacy in Ontario, led most prominently by the Ontarians with Disabilities Act Committee (ODAC) and subsequently by the AODA Alliance, an advocacy coalition chaired by David Lepofsky, a blind lawyer and long-standing disability rights activist.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The pre-legislative advocacy in Ontario had succeeded in passing an earlier and weaker statute, the *Ontarians with Disabilities Act, 2001* (ODA), under the Progressive Conservative government of Premier Mike Harris. The 2001 ODA covered only the public sector, was widely criticized by the disability community as inadequate, and lacked enforcement mechanisms. The 2005 AODA was, in effect, the legislative answer to those criticisms: it covered both public and private sectors, applied to organizations with one or more employees, established a framework for binding accessibility standards developed through structured committee processes, included statutory enforcement authority, and committed the province to a defined deadline for full accessibility compliance.

The AODA's stated purpose, set out in Part I of the Act, is *to develop, implement and enforce standards for accessibility related to goods, services, facilities, accommodation, employment, buildings, structures and premises by January 1, 2025*. The 2025 deadline was, when the Act was passed, twenty years in the future. The expectation embedded in the legislative design was that two decades was sufficient time to develop standards, sequence implementation across organizational classes, and achieve substantial accessibility across the province by the statutory deadline. The design's twenty-year horizon was, in 2005, considered ambitious. By 2025, it would be considered, by both the disability community and the independent reviewers appointed under the Act, insufficiently realized.

The 2005 unanimous passage is itself relevant to the Part Two comparator analysis. Comprehensive accessibility legislation is not, in Canadian provincial practice, a partisan issue at the moment of enactment. The Ontario statute was passed by Liberals with Progressive Conservative and New Democratic support. The federal *Accessible Canada Act* (Section 2.1) was passed under Liberals with multi-party support. The Manitoba, Nova Scotia, British Columbia, and Saskatchewan statutes (Sections 2.3 through 2.6) were passed across various governing parties without significant partisan opposition. Alberta's absence from this list is not, on the legislative record, a function of partisan ideology. The accessibility legislation has been passed by governments of every major Canadian political tradition. The choice to not pass it is an Alberta-specific choice, not a Conservative-versus-Liberal-versus-NDP choice. The point recurs throughout Part Two and is taken up directly in Section 2.7.

## The Five Standards

The AODA's substantive content is delivered through five accessibility standards, each developed by a Standards Development Committee, each codified through regulation, and each enforceable against organizations covered by the standard. The five standards, after consolidation under the *Integrated Accessibility Standards Regulation* (IASR, Ontario Regulation 191/11) in 2011, are: the *Customer Service Standard*, the *Employment Standard*, the *Information and Communications Standard*, the *Transportation Standard*, and the *Design of Public Spaces Standard* (built environment).

The *Customer Service Standard* was the first standard developed under the AODA, in force from January 1, 2010 for the public sector and January 1, 2012 for the private sector. The standard requires covered organizations to develop policies for providing accessible customer service, train staff on accessibility, accommodate service animals and support persons, provide accessible feedback mechanisms, and make information about the organization's accessibility policies publicly available.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The *Employment Standard* requires covered employers to provide accessible recruitment, hiring, and onboarding processes; develop individual accommodation plans for employees with disabilities; provide accessible workplace information and emergency response information; and consider accessibility in performance management, career development, and redeployment processes.

The *Information and Communications Standard* requires covered organizations to make their public-facing information accessible. The standard mandated, for organizations with 50 or more employees, full Web Content Accessibility Guidelines (WCAG) 2.0 Level AA compliance for all public-facing web content by January 1, 2021. Subsequent WCAG versions are also incorporated by reference. The standard also covers accessible feedback processes, accessible formats and communication supports on request, and accessible educational and training resources.

The *Transportation Standard* covers conventional and specialized transportation services, including municipal public transit, school transportation, and taxi services. The standard requires accessible vehicles and stations, training for transportation personnel, accessible fare collection mechanisms, and equivalent service standards for specialized transit serving riders with disabilities.

The *Design of Public Spaces Standard* covers the built environment for new construction and major redevelopment, including recreational trails, beach access routes, outdoor public eating areas, outdoor play spaces, exterior paths of travel, accessible parking, service counters, fixed queuing guides, and waiting areas. The standard supplements the Ontario Building Code, which sets minimum accessibility requirements for buildings; the AODA standard adds requirements specific to public spaces.

Each standard has been periodically reviewed by Standards Development Committees including persons with disabilities, sector representatives, and public members. The review process is structured to identify gaps in the standard's coverage, identify implementation difficulties, and recommend amendments to the responsible Minister. The review timelines are mandated in the legislation; review is not optional.

## The Implementing Institutions

The AODA establishes a multi-institution implementation framework. The institutions and their roles include the following.

**The Accessibility Directorate of Ontario.** The Directorate is the unit within the responsible provincial ministry — currently the Ministry for Seniors and Accessibility — that handles day-to-day administration of the Act, supports the Standards Development Committees, processes compliance reports, and coordinates the broader implementation work across government.

**Standards Development Committees.** Each accessibility standard has a Standards Development Committee responsible for the original drafting of the standard, periodic review of the standard, and recommendations for amendment. Committee membership is required to include persons with disabilities and representatives of the affected sectors. The committee process is the legislative codification of the *Nothing Without Us* principle within the AODA framework.

**The Accessibility Standards Advisory Council.** The Council is an advisory body that provides input to the responsible Minister on the standards review process and on broader accessibility policy matters. The

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Council includes persons with disabilities and other stakeholders.

**The Director under the Act.** The Director is a position under the AODA empowered to issue compliance orders, conduct inspections, and require organizations to provide information necessary for compliance assessment. The Director's orders are enforceable; non-compliance can result in administrative monetary penalties.

**Independent Reviewers.** Section 41 of the AODA requires that the Lieutenant Governor in Council appoint a person to conduct an independent review of the effectiveness of the Act and its regulations every three years. Each review must report to the responsible Minister, who must make the report public and respond to its findings. Four such reviews have been conducted to date: by Charles Beer (2010), Mayo Moran (2014), David Onley (2019), and Rich Donovan (2023). The reviews are statutory, not discretionary.

**The License Appeal Tribunal.** The Tribunal hears appeals of orders issued by the Director under the Act, providing an independent review mechanism for organizations contesting compliance findings.

The architecture distributes accessibility responsibility across multiple bodies and embeds public accountability through mandated reviews. The structural design, like the federal ACA's, is intended to prevent any single point of institutional failure from collapsing the broader implementation. The design has worked, structurally, in the sense that the institutions exist, the reviews have been produced, and the public record has been generated. Whether the implementation has worked, substantively, is the question the reviews have repeatedly answered with increasing scepticism.

## The Compliance and Enforcement Architecture

The AODA's compliance architecture requires covered organizations to meet the standards applicable to them on the timelines codified in regulation. The compliance is monitored through a self-reporting mechanism: organizations are required to file *accessibility compliance reports* with the Ministry on a fixed cycle.

Public sector organizations file compliance reports every two years. Private sector organizations and non-profits with 20 or more employees file every three years. The reports certify compliance with the applicable standards as of the reporting date and identify any non-compliance. The reports are filed online through the Ministry's compliance portal.

The Ministry conducts audits of filed compliance reports and of organizations more broadly. The most recent annual report on the AODA, covering 2024, documented that ministry staff performed more than 1,000 audits, issued 19 compliance orders, and assessed one administrative monetary penalty during the reporting period.

The penalty authority under the AODA is substantial on paper. The Act permits administrative monetary penalties of up to \$50,000 per day for individuals (such as directors and officers) and up to \$100,000 per day for corporations found in non-compliance. The maximum cumulative exposure under the penalty regime is significant. The actual use of the penalty authority — one penalty in the most recent reporting year, against more than 1,000 audits — has been a primary subject of disability-community criticism

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

throughout the AODA's operational history.

The enforcement gap is documented and acknowledged. David Lepofsky, who chairs the AODA Alliance and who led the original advocacy for the 2005 legislation, has stated publicly that the Ontario government has *passed some regulations, some accessibility standards. But they are way too weak, way too narrow, and they don't cover the vast majority of barriers we face.* Lepofsky has further documented that the enforcement architecture has not been used at the scale the legislation makes available. The 1,000-audit / 19-order / 1-penalty pattern is not a record of vigorous enforcement; it is a record of a compliance architecture that exists on paper and is implemented with limited resources, limited political prioritization, and limited consequence for non-compliance.

The relevant point for this Part Two analysis is not that the AODA's enforcement is exemplary — it isn't — but that an enforcement architecture exists at all, that audits are conducted, that compliance orders can be issued, that monetary penalties can be assessed, and that the documented gap between the architecture's potential and its operational use is itself a public-record fact subject to disability-community advocacy and successive independent review. Alberta has no architecture to underuse. The underuse, where it exists in Ontario, is a problem inside a structure. In Alberta, the absence is the structure.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

#### FOUR INDEPENDENT STATUTORY REVIEWS — TWENTY YEARS OF DOCUMENTED ACCOUNTABILITY

**Beer Review (2010)** — First statutory review, conducted by former Ontario cabinet minister Charles Beer five years into the Act's operation. Documented early standards-development pace; recommended acceleration. Tone largely constructive.

**Moran Review (2014)** — Second review, conducted by Mayo Moran (then Dean, University of Toronto Faculty of Law). Documented continuing implementation gaps; recommended strengthened compliance, enforcement, and built-environment coverage.

**Onley Review (2019)** — Third review, conducted by former Lieutenant Governor of Ontario David Onley, who lived with the effects of childhood polio. Fifteen recommendations including faster standards development, increased enforcement, training architects on inclusive design, and educating children on accessibility. Acknowledged Ontario was very far from meeting the 2025 deadline.

**Donovan Review (2023)** — Fourth review, conducted by Rich Donovan. Used the word *crisis* to describe Ontario's accessibility status. Documented the routine fire-drill example in which employees using wheelchairs and with vision impairments were directed to a closet rather than the regular evacuation route. Recommended substantial restructuring of AODA implementation.

**The reviews are statutory, not discretionary.** Section 41 of the AODA requires independent review every three years. Each report becomes a public document the Minister must respond to. Four reviews together constitute the most substantial public record of accessibility-implementation accountability ever generated by a Canadian province. **No equivalent accountability mechanism exists for any aspect of Alberta's disability policy architecture.**

## The Four Independent Reviews

Section 41 of the AODA mandates independent reviews every three years. Four reviews have been conducted since the Act's passage. Each review has been more critical of implementation than the one before. The reviews together constitute the most substantial public record of accessibility-implementation accountability ever generated by a Canadian province.

**The Beer Review (2010).** Conducted by former Ontario cabinet minister Charles Beer, the first review was published five years into the Act's operation. The review documented the early pace of standards development and made recommendations for accelerating implementation. The review's tone was largely constructive; the Act was still in its initial phase of operationalization.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The Moran Review (2014).** Conducted by Mayo Moran, then Dean of the University of Toronto Faculty of Law, the second review was published nine years into the Act's operation, with the 2025 deadline still over a decade away. The review documented progress on standards development and identified continuing implementation gaps. The review made recommendations for strengthening compliance and enforcement, addressing the built environment more comprehensively, and improving the standards-development process.

**The Onley Review (2019).** Conducted by David Onley, who served as Lieutenant Governor of Ontario from 2007 to 2014 and who lived with the effects of childhood polio, the third review was published with the 2025 deadline only six years away. The Onley Review made fifteen recommendations, including training architects on inclusive design, faster design and implementation of standards, overhauling outdated digital standards, increasing enforcement, educating children on accessibility, and increasing financial incentives for compliance. The Onley Review's tone was substantially more urgent than the previous two; the review acknowledged that Ontario was very far from meeting the 2025 deadline as legislatively committed.

**The Donovan Review (2023).** Conducted by Rich Donovan, a Toronto-based disability rights advocate and entrepreneur, the fourth review was published with less than two years remaining before the 2025 deadline. The Donovan Review used the word *crisis* to describe Ontario's accessibility status. The review documented the gap between the AODA's goals and the province's actual progress, including a documented example of a routine fire drill at a government office in which employees using wheelchairs and with vision impairments were directed to a closet rather than to the regular evacuation route. The Donovan Review made recommendations for substantially restructuring the AODA's implementation, including greater coordination with federal accessibility legislation, more aggressive enforcement, and a reframing of accessibility as a crisis-mode policy priority.

The four reviews together establish the public record. The reviews were produced because the legislation required them. The reviews were published because the legislation required publication. The reviews were responded to (in varying degrees of substantive engagement) by the Minister because the legislation required response. The accumulating evidence of implementation shortfall has been documented in writing, by independent reviewers, on a structured timeline, for twenty years. No equivalent accountability mechanism exists for any aspect of Alberta's disability policy architecture. The closest Alberta equivalent — the 2024 *Denied by Design* report by the Office of the Alberta Ombudsman — is a one-off investigation, not a recurring statutorily-mandated review. The ongoing accountability that the AODA's review architecture has produced for Ontario is, in Alberta, nonexistent.

## The 2025 Deadline and What It Did and Did Not Achieve

January 1, 2025, was the statutory deadline for full accessibility under the AODA. The deadline passed during the year before this blueprint was written. Ontario did not, on January 1, 2025, become a fully accessible province. The disability community, advocacy organizations, and the most recent independent review had documented the shortfall in advance; the deadline's passage was not a surprise. What the deadline did achieve, however, was something the disability community and the legislation's authors had built into the original 2005 design: the production of a structured public moment in which the gap between



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

commitment and achievement could be measured, named, and used as the basis for renewed accountability.

In the days following January 1, 2025, the major Canadian press covered the deadline's passage extensively. The Globe and Mail published feature reporting on the deadline, including direct interviews with David Lepofsky and other long-time advocates. CBC News produced multiple stories across regional outlets. The Toronto Star produced a comprehensive review of where Ontario stood across each of the AODA's five standard areas. Each report documented the same finding: the province had not met the deadline, the documented reasons were political and administrative rather than legislative, and the disability community continued to demand accountability. The press coverage itself is part of the AODA's record. The legislation's deadline produced a national news moment in which accessibility shortfall was the headline. No equivalent moment exists for Alberta's disability policy because Alberta has no legislative deadline against which to measure shortfall.

The 2025 deadline's substantive failure should not, however, obscure what the AODA has actually accomplished in twenty years of operation. Ontario has, under the AODA, codified five binding accessibility standards. The province has built the largest accessible public transit fleet in Canada, including the more than 2,200 accessible buses cited by the Ministry for Seniors and Accessibility. Public-facing websites of large organizations are required, by law, to meet WCAG 2.0 Level AA compliance, with documented enforcement against non-compliant organizations. Customer service training for accessible interactions is required across all sectors with one or more employees. Accommodation processes for employees with disabilities are required. The Ontario Building Code has been updated multiple times in response to AODA implementation. The standards are imperfect, the enforcement is uneven, the deadline has been missed; none of this is the same as no architecture at all. Twenty years of imperfect architecture have produced, in Ontario, a substantive accessibility infrastructure that no Alberta equivalent exists to deliver.

## What the Ontario Record Establishes

The AODA's twenty-year record establishes three findings directly relevant to the blueprint Part Three will propose for Alberta.

The first is that **legislation works**. Even imperfectly implemented, even underused, even with deadline shortfalls, the AODA has produced binding standards, mandated reports, structured reviews, public accountability moments, and a substantive accessibility infrastructure across the most populous province in Canada. The legislative architecture matters. It has produced outcomes that no comparable advocacy effort, in the absence of legislation, could have produced. The Ontario record is empirical proof of this proposition.

The second is that **legislation alone is insufficient**. The AODA's structural design is, in many respects, robust: distributed implementing institutions, mandated reviews, codified standards, defined enforcement authority, statutory deadline. The implementation has nevertheless fallen short of the deadline. The reasons are political (insufficient ministerial commitment across multiple governments), administrative (under-resourced enforcement), and substantive (standards that the disability community considers too narrow). The lessons for Alberta are direct: any future Alberta accessibility legislation must build in not

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

only the structural architecture the AODA pioneered but also stronger commitments on enforcement, resourcing, and standards-development scope. Part Three takes these lessons forward into the proposed Alberta legislation.

The third is that **the existence of legislation is its own form of public accountability infrastructure**. The AODA's 2025 deadline produced a national accountability moment that no equivalent moment exists for in Alberta because no equivalent legislation exists. The Donovan Review's *crisis* finding is a public document with statutory standing. The Lepofsky and AODA Alliance advocacy is grounded in citation to the legislation's own provisions. The disability community's ongoing pressure on the Ontario government has a legislative anchor that the disability community in Alberta does not have. The legislation is the platform on which all subsequent advocacy stands. Without the platform, advocacy is not impossible — the campaign producing this document is evidence to the contrary — but it is, structurally, harder, less sustainable, and more dependent on the personal energy of individual advocates than the institutional architecture of the legislation itself.

The Ontario record is, on balance, an argument for Alberta to build the legislation. The Ontario record's failures are not an argument against legislation; they are an argument for legislation that addresses the documented Ontario shortfalls. Part Three will draw on the AODA's architecture for what to keep and on the AODA's documented gaps for what to strengthen. Alberta has the advantage of building twenty-one years after Ontario did. The advantage should be used.

## What This Section Establishes

The *Accessibility for Ontarians with Disabilities Act*, 2005 was Canada's first comprehensive provincial accessibility legislation. The Act passed unanimously in the Ontario Legislative Assembly. It established five binding accessibility standards covering customer service, employment, information and communications, transportation, and the design of public spaces. It created a multi-institution implementation framework including the Accessibility Directorate, Standards Development Committees, an Accessibility Standards Advisory Council, statutory enforcement through the Director, and statutorily-mandated independent reviews every three years. It set a twenty-year deadline (January 1, 2025) for substantial provincial accessibility compliance. It established administrative monetary penalty authority of up to \$100,000 per day for corporations and up to \$50,000 per day for directors and officers. It produced thousands of organizational compliance reports, four independent statutory reviews, and a substantive public accountability infrastructure that no other Canadian province had at the time of its enactment and that Alberta still has no equivalent to in 2026.

The 2025 deadline passed without being met. The disability community, the most recent independent review (the Donovan Review of 2023), and successive press coverage have documented the implementation gap. The gap is a public-record fact, available for public response and the basis for ongoing political pressure. The gap exists because the legislation that created the deadline exists. Without the legislation, there would be no deadline, no reviews, no documented gap, and no accountability mechanism.

Section 2.3 examines the second-longest-running provincial accessibility statute: Manitoba's *Accessibility for Manitobans Act*, passed in 2013 and modeled, in significant respects, on the AODA's architecture.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Manitoba's experience refines the picture by introducing a smaller-scale jurisdiction, a different political context, and a documented set of choices about what to keep and what to alter from the Ontario template. The provincial-comparator survey continues from there.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.3 — Manitoba: The Accessibility for Manitobans Act, 2013

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Section 2.2 documented Ontario's twenty-year record under the AODA, the longest provincial accessibility track record in Canada. Section 2.3 turns to the second province to enact comprehensive accessibility legislation: Manitoba. The *Accessibility for Manitobans Act* (the AMA) received Royal Assent on December 5, 2013, eight years after Ontario's AODA and six years before the federal *Accessible Canada Act*. The AMA was the first provincial accessibility legislation enacted west of Ontario. It made Manitoba the second of six Canadian provinces, eventually, to build comprehensive accessibility architecture; Alberta is the only one of those six—and the only English-speaking province with a population over one million—that has not.

The Manitoba comparison matters for this Part Two analysis for three specific reasons. First, Manitoba is structurally similar to Alberta in ways that defeat the "we are different" objection often raised against extending Ontario's model westward. Manitoba is a Western Canadian prairie province with a population of approximately 1.5 million (less than one-third of Alberta's), a substantial rural geography, a significant Indigenous population, an economy historically rooted in agriculture and resource extraction, and a political culture in which both centre-right (Progressive Conservative) and centre-left (NDP) governments have alternated in power across the period during which the AMA was developed and operationalized. Manitoba's accessibility legislation has been administered by both Conservative and NDP governments. Neither has repealed it. Both have incrementally advanced it. The cross-partisan operational continuity in Manitoba is direct evidence that comprehensive accessibility legislation, once enacted, becomes the new baseline rather than a partisan flashpoint.

Second, the AMA's design represents a deliberate adaptation of the Ontario template to a smaller-scale jurisdiction. The Manitoba legislation borrowed the AODA's structure of multi-standard architecture, mandated public-sector accessibility plans, and an Accessibility Advisory Council, while making different choices on review timelines (five-year cycles rather than Ontario's three-year), enforcement architecture, and the pace of standards development. The adaptations are documented and provide useful design precedent for smaller jurisdictions and for Alberta's eventual blueprint Part Three will propose.

Third, Manitoba's record demonstrates a pattern Section 2.4 (Nova Scotia), Section 2.5 (British Columbia), and Section 2.6 (Saskatchewan) will reinforce: provincial accessibility legislation has been enacted by progressively smaller and more diverse jurisdictions across Canada. The "Alberta is too unique" or "Alberta cannot afford this" arguments are structurally indefensible when Manitoba (population 1.5 million), Nova Scotia (one million), Saskatchewan (1.2 million), and Newfoundland and Labrador (530,000) have all built comprehensive accessibility legislation. Alberta's population (4.8 million) is larger than the combined populations of Manitoba, Nova Scotia, and Saskatchewan. The comparator arithmetic does not favour the inaction Alberta has chosen.

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All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Origin and Passage

Bill 26, *The Accessibility for Manitobans Act*, was introduced in the Manitoba Legislative Assembly during the 40th Legislature (Second Session) and received Royal Assent on December 5, 2013, under the New Democratic government of Premier Greg Selinger. The Bill passed with cross-party support; the disability-community advocacy that had built support for the legislation reached across the political spectrum, including the Manitoba League of Persons with Disabilities, the Independent Living Resource Centre Manitoba, and other organizations of and for persons with disabilities.

The legislation built on an earlier statute, the *Accessibility Advisory Council Act* (S.M. 2011, c. 37), which had established an Accessibility Advisory Council to make recommendations to the Manitoba government on accessibility matters. The 2011 Council Act was a structural precursor without the substantive standards-development authority the 2013 AMA would provide. The AMA, in effect, gave the Council the legislative framework needed to develop binding accessibility standards through regulation, transformed the Council from an advisory body into the structured upstream input mechanism for a broader provincial implementation, and created the legal architecture through which Manitoba's accessibility commitments became enforceable rather than aspirational.

The AMA's preamble is significant. It cites the UN CRPD explicitly:

*WHEREAS under the United Nations Convention on the Rights of Persons with Disabilities, which Canada ratified in 2010, member states are expected to take appropriate measures to ensure accessibility and independent living.*

The preamble also cites the Canadian Charter of Rights and Freedoms, the Manitoba Human Rights Code, and the principle that systemic, proactive barrier removal complements human-rights enforcement. The preamble's structure is the standard template every subsequent Canadian provincial accessibility statute (Nova Scotia 2017, BC 2021, Saskatchewan 2023) has built upon. The ground the Manitoba preamble laid — that accessibility is a treaty obligation, a Charter equality matter, and a complement to existing human-rights protection — established the legal-foundational rationale that subsequent provinces have drawn on.

The legislative purpose is set out in Section 2 of the AMA: to achieve significant progress towards full accessibility for Manitobans by establishing accessibility standards and removing barriers that disable people. The AMA does not, in the operative provisions, set a single comprehensive deadline equivalent to Ontario's January 1, 2025 commitment. Manitoba instead built a rolling-deadline architecture in which each individual accessibility standard sets its own implementation timeline through regulation, with mandatory review every five years. The design is structurally less dramatic than Ontario's twenty-year horizon but, in operation, has produced more predictable incremental progress.

## The Five Accessibility Standards

The AMA, like the AODA, structures its substantive content through accessibility standards. The Manitoba framework defines five standards, each developed through a structured committee process and each

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

implemented through regulation. The five standards, identified by the Manitoba Accessibility Office as the building blocks of the Act, are: the *Accessibility Standard for Customer Service*; the *Accessibility Standard for Employment*; the *Accessibility Standard for Information and Communications*; the *Accessibility Standard for Transportation*; and the *Accessibility Standard for the Design of Outdoor Public Spaces*.

The *Accessibility Standard for Customer Service* was the first standard developed under the AMA and was made law in 2015. The standard requires covered organizations (the Manitoba government, public-sector bodies, private organizations of various sizes, and non-profit organizations) to develop policies for accessible customer service, train staff on accessibility, accommodate the use of assistive devices, service animals and support persons, provide accessible feedback mechanisms, and make accessibility information publicly available. The Standard's first mandatory five-year review was launched in 2024-2025 by the Accessibility Advisory Council, with public consultation through the EngageMB portal. The review's findings will inform the next round of amendments to the Standard.

The *Accessibility Standard for Employment* was the second standard developed and is in force. The standard covers accessible recruitment, hiring, accommodation, retention, and workplace emergency response. It applies to the Manitoba government and a broadening set of public-sector and private-sector organizations on a phased compliance schedule.

The *Accessibility Standard for Information and Communications* is in force and requires covered organizations to provide accessible information in print, in-person, online, and in other formats. Web-content accessibility is governed by the Web Content Accessibility Guidelines (WCAG), Level AA. The Standard's coverage is being expanded incrementally to include digital communication contexts not addressed in the original drafting.

The *Accessibility Standard for Transportation* is currently in development by an advisory committee under the Council. The Standard, when enacted, will address accessibility barriers Manitobans encounter while travelling for work, education, errands, social participation, and other aspects of daily life. The development process has involved extensive consultation with persons with disabilities, transit operators, school transportation providers, and other affected stakeholders.

The *Accessibility Standard for the Design of Outdoor Public Spaces* is also currently in development. This Standard will focus on access to areas outside the jurisdiction of the Manitoba Building Code — sidewalks, pathways, parks, recreational trails, beach access routes, and other outdoor environments that are designed and constructed for public use. The Standard is intended to complement the Manitoba Building Code's existing accessibility provisions for buildings and to extend accessibility requirements into the outdoor public realm.

The pace of standards development under the AMA has been incremental rather than simultaneous. Ontario's AODA created all five of its standards at the outset and consolidated them under the Integrated Accessibility Standards Regulation in 2011. Manitoba's AMA developed its standards sequentially, beginning with customer service (the most cross-sectorally applicable) and proceeding through employment, information and communications, and the two standards still in development. The sequential approach has produced slower full-spectrum coverage than Ontario's approach but has allowed Manitoba's smaller administrative apparatus to focus implementation resources on each standard in turn.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Both approaches are valid design choices; neither is empirically superior. The point for this Part Two analysis is that Manitoba has been actively building comprehensive accessibility architecture for thirteen years, and Alberta has not begun.

## The Implementing Institutions

The AMA's implementing architecture is, like the AODA's, distributed across multiple institutions with defined statutory roles.

**The Accessibility Advisory Council.** The Council is the central advisory body under the AMA, continued from the earlier 2011 Accessibility Advisory Council Act. It comprises eight members appointed for their experience and expertise across the disability community and affected stakeholder sectors. The Council advises the Minister responsible for Accessibility on priorities for standards development, the content and timelines of proposed standards, broader measures and policies to improve accessibility, and any other accessibility matter on which the Minister seeks advice. The Council's structure embeds disability-community input at the centre of standards development rather than at the periphery, in keeping with the *Nothing Without Us* commitment that has been a defining feature of every provincial and federal accessibility statute examined in Part Two so far. The current Chair, John Graham, has emphasized publicly the Council's role as the channel for Manitobans' accessibility experience to enter the standards-development process.

**The Manitoba Accessibility Office (MAO).** The MAO, located within the Department of Families, is the administrative arm of the AMA. It serves as secretariat to the Accessibility Advisory Council and its committees, supports public consultation processes, coordinates implementation across government departments, and is the public-facing point of contact for accessibility inquiries (MAO@gov.mb.ca, 204-945-7613).

**The Accessibility Compliance Secretariat.** Also located within the Department of Families, the Compliance Secretariat monitors compliance with accessibility legislation across stakeholders in the private, non-profit, and public sectors. The Secretariat is the operational unit through which the AMA's compliance and enforcement activities are conducted.

**The Director.** A Director is appointed under Section 22(1) of the AMA with statutory authority to investigate compliance, issue compliance orders, and take enforcement action against non-compliant organizations. The Director's authority is the operational counterpart to the Director's role under the Ontario AODA.

**Standards Development Committees.** For each accessibility standard, the Council may establish a committee of technical experts, sector representatives, and other parties familiar with the specific subject matter of the standard. Committee membership is structured to include persons with disabilities and representatives of the organizations that will have obligations under the standard. The committees produce input that feeds into the Council's recommendations to the Minister.

**Designated Public Sector Bodies.** Under the AMA and its regulations, designated public-sector bodies are required to prepare and update accessibility plans on a defined cycle, in consultation with persons with

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

disabilities or organizations that represent them. The plan requirement parallels the AODA's requirement and the federal ACA's requirement. The architecture across all three jurisdictions is built around the recognition that public-sector accessibility leadership is a precondition for broader societal change.

The institutional design is, in operational terms, a smaller-scale version of the Ontario architecture. The institutions are fewer, the budgets are smaller, and the staff complements are leaner. The framework is nevertheless functional. Manitoba has produced binding standards, run public consultations, conducted statutory reviews, and built operational implementation infrastructure for thirteen years. The institutional scale is a function of Manitoba's overall scale, not a function of any inherent limitation in the legislative model. Alberta, with three times Manitoba's population, would build at proportionate scale, with proportionate institutional capacity. The Manitoba example demonstrates that the model works at smaller scale; the model would, accordingly, work at larger scale.

## The Compliance and Enforcement Architecture

The AMA's compliance architecture, like the AODA's, requires covered organizations to meet the substantive requirements of each applicable standard on the timelines set in the standard's regulation. The architecture also requires designated public-sector bodies to prepare, publish, and update accessibility plans on a defined cycle, with public consultation requirements built into the plan-development process.

The compliance monitoring is conducted primarily through the Accessibility Compliance Secretariat. The Secretariat reviews accessibility plans, audits self-reported compliance, investigates complaints from members of the public, and refers serious non-compliance matters to the Director for enforcement action.

The enforcement architecture provides the Director with statutory authority to issue compliance orders and to take other enforcement steps against non-compliant organizations. The penalty structure under the AMA is calibrated to Manitoba's smaller economic context but operates on the same principle as Ontario's: monetary penalties are available where compliance orders are not followed, and the cumulative exposure is sufficient to make non-compliance materially undesirable for covered organizations.

The compliance and enforcement record under the AMA has, like the AODA's, been the subject of disability-community advocacy for stronger implementation. The Manitoba disability community has documented the same kinds of implementation gaps the Ontario disability community has documented under the AODA — standards that the community considers narrower than they could be, enforcement that is less aggressive than the legislation makes possible, and pace of standards development that is slower than the disability community considers acceptable. These concerns are real, are documented in public consultation submissions, and are part of the inputs feeding the mandatory five-year reviews of each standard. The reviews themselves are the structural mechanism through which the implementation gaps are surfaced, debated, and addressed.

The relevant point for the Part Two comparison is that Manitoba has the architecture in place to surface and address implementation gaps. Alberta does not. Manitoba's disability community can advocate against documented shortfalls in a structured implementation framework with statutory reviews and a

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

defined enforcement mechanism. Alberta's disability community is advocating for the framework to exist at all. The two jurisdictions are not at the same point in the policy lifecycle. Manitoba is in operational implementation. Alberta is in pre-legislative advocacy. Section 2.7 returns to this distinction directly.

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## The Mandatory Five-Year Review Cycle

Section 11 of the AMA requires that within five years after each accessibility standard is made, and within each subsequent five-year period, the Accessibility Advisory Council must examine the standard's accessibility objectives, the measures and practices set out in the standard, and how and by whom the standard is being implemented. The Council may then develop recommendations for amendments to the standard and submit those recommendations to the Minister.

The mandatory review cycle is significant for two reasons. First, it ensures that each standard, once enacted, remains a living document subject to ongoing improvement based on operational experience and disability-community feedback. The standard does not freeze at the moment of enactment. The five-year cycle is the structural mechanism by which the gap between the standard's original drafting and the operational reality of its implementation can be closed iteratively. Second, the review cycle is statutory, not discretionary. The Minister cannot decline to initiate the review. The Council cannot decline to conduct it. The recommendations cannot be made invisible by ministerial inaction. The review's existence is built into the legislation as a non-negotiable feature.

The first standard to enter the mandatory five-year review cycle was the Accessibility Standard for Customer Service, which was made law in 2015 and reached its first review milestone in 2020 (delayed by the pandemic and subsequently relaunched). The current review, conducted by the Council with public consultation through the EngageMB portal in 2024-2025, has gathered feedback from Manitobans on what is working, what is not, and what should be changed. The review's findings will inform the next iteration of the Standard. The process is the mature operational form of the structure the AMA was designed to produce.

The five-year review cycle is one of the design choices Alberta's eventual blueprint legislation should incorporate, with one specific modification informed by both the Ontario and Manitoba experience. Ontario's three-year independent reviews of the AODA as a whole (Beer 2010, Moran 2014, Onley 2019, Donovan 2023) have produced a comprehensive evaluation of the entire framework; Manitoba's five-year reviews of individual standards have produced more focused operational improvement of each standard. The two approaches are complementary, not competing. Part Three's proposed Alberta legislation will incorporate both: a comprehensive multi-year review of the framework as a whole, and standard-specific reviews on a defined cycle. The lessons of the comparator jurisdictions are taken forward into the design.

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## What the Manitoba Record Establishes

The AMA's thirteen-year record establishes findings that complement and extend what Section 2.2 documented in Ontario.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The first is that the legislative model scales down. Manitoba's smaller population, smaller administrative apparatus, and smaller fiscal base have not prevented the province from operationalizing comprehensive accessibility legislation. The model the AODA pioneered has been adapted successfully to a province with one-third Alberta's population. The "we are too small" or "we cannot afford this" objections that might be raised against extending the model to smaller jurisdictions have been answered by Manitoba's operational record.

The second is that the legislative model is politically durable across changes in governing party. The AMA was passed under an NDP government in 2013. It has been administered subsequently under both Progressive Conservative and NDP governments. Neither has repealed the legislation. Both have advanced standards development incrementally during their respective periods in office. The cross-partisan operational continuity demonstrates that comprehensive accessibility legislation, once enacted, ceases to be a partisan question. It becomes the new baseline. Subsequent policy debate is about the pace and quality of implementation, not about whether the legislation should exist.

The third is that the legislative model invites sequential standards development rather than requiring simultaneous full-spectrum implementation. Manitoba began with the Customer Service Standard (most cross-sectorally applicable, most achievable in early phases), proceeded through Employment and Information and Communications, and continues to develop Transportation and Outdoor Public Spaces. The sequential approach is operationally realistic for smaller-capacity administrations and provides a model for Alberta's eventual implementation. The proposed legislation Part Three develops will accommodate sequential standards development on a defined timeline rather than requiring simultaneous comprehensive coverage on day one.

The fourth is the structural argument the comparator analysis is building toward and that Section 2.7 will land directly. Manitoba is not a populous province. Manitoba is not a wealthy province by Alberta standards. Manitoba is not a province whose disability community possesses any structural advantages over Alberta's. Manitoba does not have any unique fiscal capacity, institutional sophistication, or political alignment that has made the AMA possible there in ways that would make it impossible in Alberta. The presence of the AMA in Manitoba and its absence in Alberta is a function of the political choice each province has made — nothing more, nothing less. The arithmetic of provincial comparison defeats every structural argument that has been deployed in Alberta against the introduction of similar legislation. Manitoba built it. Alberta chose not to.

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## What This Section Establishes

The *Accessibility for Manitobans Act*, 2013 made Manitoba the second Canadian province to enact comprehensive accessibility legislation and the first west of Ontario. The Act passed with cross-party support, has been administered subsequently under both NDP and Progressive Conservative provincial governments, and has produced thirteen years of operational implementation across five accessibility standards (two enacted, two in development as of 2026). The Act creates a multi-institution implementation framework anchored by the Accessibility Advisory Council, the Manitoba Accessibility Office, the Accessibility Compliance Secretariat, and a statutorily-appointed Director with enforcement authority. The Act mandates a five-year review of each accessibility standard on a non-discretionary

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

timeline. The Act extends accessibility obligations across the public, private, and non-profit sectors.

Manitoba's population is approximately one-third of Alberta's. Manitoba's fiscal capacity is substantially smaller. Manitoba's disability community does not possess any structural advantages that would explain why provincial accessibility legislation exists there and not in Alberta. The presence of the AMA in Manitoba and its absence in Alberta reflects the political choice each province has made about whether to build the architecture comprehensive accessibility legislation provides. Manitoba built. Alberta did not.

Section 2.4 examines the third Canadian province to enact provincial accessibility legislation: Nova Scotia, whose 2017 *Accessibility Act* set the most ambitious binding accessibility deadline of any Canadian jurisdiction — an *accessible by 2030* commitment now five years from its statutory horizon. Nova Scotia's record demonstrates that small Atlantic provinces, with populations comparable to or smaller than several Alberta cities, have built provincial accessibility infrastructure that the entire province of Alberta has not.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.4 — Nova Scotia: The Accessibility Act, 2017

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Section 2.3 documented Manitoba as the second Canadian province to enact comprehensive accessibility legislation. Section 2.4 turns to the third: Nova Scotia, whose *Accessibility Act* (Bill 59, *An Act Respecting Accessibility in Nova Scotia*) received Royal Assent in 2017 under the Liberal government of Premier Stephen McNeil. The Nova Scotia legislation is significant for this Part Two analysis for four specific reasons that distinguish it from the Ontario and Manitoba precedents.

First, Nova Scotia's statutory deadline is the most ambitious of any Canadian provincial accessibility regime currently in operation. The Act sets the goal of an *accessible Nova Scotia by 2030*, a thirteen-year horizon from passage. The 2030 deadline is now five years away as of this blueprint's publication. The province's progress against that deadline is the subject of ongoing public scrutiny and disability-community advocacy, and the deadline's structural function — producing measurable accountability and a defined accountability moment — will operate in 2030 in much the same way Ontario's 2025 deadline operated at the start of the year before this blueprint was written.

Second, the Nova Scotia Act covers six accessibility areas rather than the five established by Ontario and Manitoba. The sixth area, *education*, is unique to the Nova Scotia framework among the comparator jurisdictions and addresses a domain that Sections 1.3 through 1.5 of Part One identified as critical to the lifecycle disability response. The inclusion of education as a stand-alone accessibility standard area is a design choice Part Three's proposed Alberta legislation will draw on directly.

Third, Nova Scotia introduced a structural innovation that no prior Canadian provincial accessibility legislation had codified: *public-sector accessibility advisory committees with mandatory minimum representation from persons with disabilities*. The Act requires that prescribed public-sector bodies establish accessibility advisory committees and that those committees include at least 50 percent representation from persons with disabilities. The 50-percent-floor is the strongest operationalization of the *Nothing Without Us* principle in any Canadian provincial accessibility statute. It is a design choice Part Three will incorporate.

Fourth, Nova Scotia's implementation experience is a cautionary record that complements Ontario's. Where Ontario's record shows what twenty years of imperfect implementation produces despite uneven political commitment, Nova Scotia's record shows the slower pace that can result when a smaller jurisdiction sequences its standards development conservatively. The first accessibility standard under the Nova Scotia Act — the *Built Environment Accessibility Standard* — was approved on March 12, 2025, with substantive requirements taking effect April 1, 2026, eight years after the Act's passage. The Education Standard and the remaining four standards are at various stages of development. The implementation timeline is, by the disability community's documented assessment, slower than the 2030 deadline can



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

absorb without further acceleration. The cautionary lesson for Alberta is that the pace of standards development must be calibrated to the deadline ambition; under-resourcing or over-cautious sequencing produces the same outcome under any deadline horizon.

Nova Scotia's population is approximately one million. Alberta's population is approximately 4.8 million. The Nova Scotia population is smaller than the Calgary metropolitan area and smaller than the Edmonton metropolitan area. The province built comprehensive accessibility legislation eight years before this blueprint was written. The arithmetic of population-based objection to similar Alberta legislation does not survive contact with the Nova Scotia precedent.

## Origin and Passage

Bill 59, *An Act Respecting Accessibility in Nova Scotia*, was introduced in the Nova Scotia House of Assembly during the 62nd General Assembly, Third Session. The Bill was developed through extensive consultation with the Nova Scotia disability community, including the Nova Scotia League for Equal Opportunities, the Disability Rights Coalition, and a broad coalition of disability organizations and advocates that had been pressing for provincial accessibility legislation since the early 2000s. The Bill received Royal Assent on April 27, 2017, and came into force in stages thereafter.

The Act was passed under the Liberal government of Premier Stephen McNeil with cross-party support. The same cross-partisan pattern that has characterized accessibility legislation passage in Ontario, Manitoba, and federally also held in Nova Scotia. Subsequent Progressive Conservative government in Nova Scotia (under Premier Tim Houston, who took office in 2021) has continued administering the Act, advancing standards development, and building the implementation infrastructure. Neither the original passage nor the subsequent operational continuity has been a partisan matter. The legislation is the new baseline.

The Act's preamble cites the foundational instruments that have become the template for Canadian provincial accessibility legislation: the United Nations Convention on the Rights of Persons with Disabilities (ratified by Canada in 2010), the Canadian Charter of Rights and Freedoms, and the principle that proactive systemic barrier removal complements human-rights enforcement. Nova Scotia's preamble is substantively similar to the Manitoba preamble examined in Section 2.3 and the federal ACA preamble examined in Section 2.1. The convergence across jurisdictions on the legal-foundational rationale is itself evidence that comprehensive accessibility legislation is, in the Canadian legal tradition, an operationalization of constitutional and treaty obligations the federal government has already accepted on behalf of all provinces.

The Act's purpose is set out in Section 2: to achieve accessibility by preventing and removing barriers that disable people, with respect to seven specifically identified domains (the six accessibility areas plus prescribed activities); to provide for the involvement of persons with disabilities, the public sector, and other stakeholders in standards development; to facilitate the timely implementation of accessibility standards with the goal of achieving an accessible Nova Scotia by 2030; to monitor, review, and enforce compliance with accessibility standards; and to establish an Accessibility Directorate.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The 2030 deadline is, in legislative terms, the most operationally significant feature of the Nova Scotia Act. It is binding. It cannot be repealed by ministerial discretion. The Minister is required, under Section 7(2), to *adopt, and make publicly available, an implementation strategy setting out how the Minister plans to achieve the goal of an accessible Nova Scotia by 2030* within one year of the Act's coming into force. The implementation strategy — *Access by Design 2030* — was published in 2018 and remains the operational framework against which the province's progress is measured.

## The Six Accessibility Areas

Section 2 of the Nova Scotia Act identifies six accessibility areas in which standards must be developed:

*Goods and services:* ensuring people with disabilities have equitable access to goods and services delivered by government, public-sector bodies, and private organizations.

*Information and communication:* ensuring all people can receive, understand, and share the information they need, including web accessibility, accessible documents, and accessible communication formats.

*Public transportation and transportation infrastructure:* ensuring transportation systems are accessible to people with disabilities, including transit vehicles, transit stations, and the broader infrastructure required to access transportation.

*Employment:* ensuring workplaces are accessible to persons with disabilities and that employment practices, recruitment, accommodation, and retention support full and equal participation.

*The built environment:* ensuring the human-made environment in which people live, work, learn, and play — including buildings, rights-of-way, and outdoor spaces — is accessible.

*Education:* ensuring educational institutions, programs, and services are accessible to learners with disabilities at all levels of the system.

The Act also provides for *prescribed activities*, allowing the Minister to designate additional accessibility areas through regulation as the implementation matures. The six-area structure (with the prescribed-activity expandability) is broader than the five-area structure used by Ontario and Manitoba.

The inclusion of *education* as a stand-alone accessibility area is the most consequential design choice in the Nova Scotia framework for the purposes of this Part Two analysis. Sections 1.3 and 1.4 of Part One documented the lifecycle accessibility failures that begin in the educational system and compound across childhood and adolescence. The Ontario and Manitoba frameworks address education only indirectly, through the Information and Communications Standard's coverage of educational materials and the Customer Service Standard's coverage of service delivery in educational settings. The Nova Scotia framework treats education as a discrete accessibility area requiring its own dedicated standard, dedicated standards-development committee, and dedicated implementation timeline. This is the design choice that aligns most closely with the lifecycle frame Part One established. Part Three's proposed Alberta legislation will incorporate education as a stand-alone accessibility area on the Nova Scotia precedent.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Implementing Institutions

The Nova Scotia Act establishes a multi-institution implementation framework. The institutions and their statutory roles include the following.

**The Accessibility Directorate.** The Directorate, located within the Department of Justice, is the operational arm of the Act. The Directorate administers the Act under the direction of the responsible Minister, supports the Accessibility Advisory Board, coordinates standards development, oversees implementation strategy, and is the public-facing point of contact for accessibility inquiries within the Nova Scotia government.

**The Accessibility Advisory Board.** The Board is the central advisory body under the Act. It provides input on policies and requirements, determines whether current accessibility approaches align with accessibility standards, and advises the Minister on standards-development priorities. Board membership includes persons with disabilities, representatives of organizations representing persons with disabilities, and representatives of affected sectors.

**Standards Development Committees.** For each accessibility standard, a Standards Development Committee is established to draft proposed standards. Committee membership includes persons with disabilities, organizations representing persons with disabilities, those affected by the proposed standards, and government entities with implementation responsibilities. The committee process produces input that feeds the Board's recommendations to the Minister.

**Public-Sector Accessibility Advisory Committees.** This is the structural innovation that distinguishes the Nova Scotia framework from earlier Canadian provincial accessibility legislation. Prescribed public-sector bodies are required to establish accessibility advisory committees with *at least 50 percent representation from persons with disabilities*. The 50-percent floor is the strongest operationalization of the *Nothing Without Us* principle in any Canadian accessibility statute and ensures that disability-community input is structural rather than consultative at the level of every covered public-sector body.

**The Director of Compliance and Enforcement.** The Director, appointed under Section 45 of the Act, is the senior enforcement officer with statutory authority to investigate compliance, issue compliance orders, levy administrative penalties, and take other enforcement action against non-compliant organizations.

**Inspectors.** Inspectors are appointed under the Act with statutory powers to enforce compliance with the Act and regulations, including conducting inspections, issuing orders, and imposing administrative penalties. The inspector regime is substantially similar to the inspector and compliance-officer regimes in Ontario and Manitoba.

**The Minister.** The Minister responsible for the Act has defined statutory mandates including raising awareness of how persons are disabled by barriers, promoting and encouraging barrier removal, overseeing standards development and implementation, assisting in the integration of accessibility standards across all activities in the province, and ensuring consultation with persons in the province throughout the standards-development and implementation processes. The Minister is also required to table an annual report in the House of Assembly documenting actions taken under the Act during the preceding fiscal year.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Nova Scotia institutional design is similar in structure to the Ontario and Manitoba models but distinguishes itself through two specific features: the 50-percent disability-community representation requirement on public-sector accessibility advisory committees, and the statutory annual reporting requirement to the House of Assembly. Both features tighten the accountability architecture relative to the earlier provincial frameworks. The ongoing reporting cycle is a more aggressive accountability mechanism than the periodic statutory reviews used in Ontario and Manitoba; it produces a continuous public record rather than a triennial or quinquennial review document.

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## The Compliance and Enforcement Architecture

The Nova Scotia Act's compliance architecture parallels the Ontario and Manitoba frameworks in its general structure. Covered organizations are required to comply with each accessibility standard on the timelines set in the standard's regulation. Public-sector bodies are required to develop accessibility plans, in consultation with persons with disabilities, and to update those plans every three years.

Compliance is monitored through inspections, complaint investigations, and review of accessibility plans. The Director of Compliance and Enforcement and the appointed inspectors have statutory authority to issue compliance orders and to assess administrative monetary penalties for violations. Penalty amounts and procedures are set out in regulation and provide for graduated sanctions calibrated to the severity and persistence of non-compliance.

The Nova Scotia framework's enforcement record is, like the Ontario and Manitoba records, a subject of disability-community advocacy for stronger implementation. The pace of standards development — with only the Built Environment Standard approved as of March 12, 2025, eight years after the Act's passage — has been the principal subject of community criticism. The standards-development process has involved extensive consultation, multiple drafting cycles, and the integration of feedback from disability organizations, sector representatives, and the public, all of which has contributed to the slower pace. The disability community's documented position is that the consultation quality is appropriate but the implementation tempo is insufficient to meet the 2030 deadline without substantial acceleration in the next four years.

The relevant point for this Part Two analysis is the same point that applied to the Manitoba enforcement record. The Nova Scotia disability community is advocating for stronger implementation within an established statutory framework with defined enforcement architecture, mandatory advisory bodies, and binding deadlines. The Alberta disability community is advocating for the framework to exist at all. The two communities are not at the same point in the policy-implementation lifecycle. Nova Scotia's implementation gaps are problems inside a structure. Alberta's gap is the absence of the structure.

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## Access by Design 2030: The Implementation Strategy

Section 7(2) of the Act required the Minister to publish, within one year of the Act's coming into force, an implementation strategy setting out how the province plans to achieve the 2030 deadline. *Access by Design 2030: Achieving an Accessible Nova Scotia*, the resulting strategy document, was published in

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

2018 and remains the operational framework guiding implementation work.

The strategy identifies five operational themes. *Awareness and capacity building* focuses on increasing public and organizational understanding of accessibility, the rights of persons with disabilities, and the barriers that disable people. *Collaboration and support* focuses on partnership with the disability community and other stakeholders to embed accessibility considerations in policy and program development across government. *Compliance and enforcement* focuses on the operational mechanisms for monitoring adherence to the Act and the standards. *Monitoring and evaluation* focuses on the processes for assessing the effectiveness of standards and accessibility initiatives over time. *Government of Nova Scotia leadership* focuses on the province itself becoming a model for accessibility by addressing barriers in government programs, services, policies, and infrastructure.

The strategy also defined the sequence of standards development. The first standards were to address the *built environment* and *education*, with work beginning in 2018. Standards in the remaining four areas were to follow at a rate of one per year beginning in 2021. The actual implementation pace has been slower than the strategy contemplated, with the first standard not approved until March 2025. The disability community's response to the slower pace has been to advocate for accelerated implementation in the remaining years before the 2030 deadline; the *Access by Design 2030* strategy itself has not been formally amended to reflect the realized pace, leaving open the question of whether the 2030 deadline will be met or extended.

The strategy's existence is itself relevant to the Part Two comparator analysis. The Nova Scotia framework required, by statute, that an implementation strategy be published within one year of the Act coming into force. The strategy is a public-record document. The strategy's targets, timelines, and operational themes are available for ongoing public scrutiny. No equivalent strategic document exists for any aspect of Alberta's disability policy architecture because no equivalent statutory requirement exists. The structured implementation strategy is part of the architecture comprehensive accessibility legislation produces. Its absence in Alberta is a function of the absence of the underlying legislation.

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## The Built Environment Standard: First Operational Standard

On March 12, 2025, the Nova Scotia government approved the *Built Environment Accessibility Standard*, the first standard adopted under the Act. The standard introduces design requirements for outdoor and recreational spaces, with a focus on infrastructure that falls outside the scope of the Nova Scotia Building Code — trails, parks, beaches, sidewalks, and other outdoor public-realm assets. The substantive requirements take effect April 1, 2026 for new construction and major redevelopment.

The Standard's approval process took over six years from the time work began in 2018. The duration reflects the structured consultation, multiple drafting cycles, and integration of feedback that the legislative model requires. The duration also reflects the limited administrative capacity of Nova Scotia's Accessibility Directorate, which is a function of the province's overall scale rather than of any inherent limitation in the legislative model. Larger jurisdictions with proportionate administrative capacity can compress the standards-development timeline. The point is not to use Nova Scotia's pace as a benchmark Alberta should aim to replicate; the point is to recognize that even at this pace, Nova Scotia has produced a

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

binding operational standard that no Alberta equivalent exists to provide.

The Built Environment Standard's substantive content is significant for Alberta. The standard establishes accessibility requirements for outdoor public spaces that are typically not addressed by building codes, including specifications for trail accessibility, beach access routes, outdoor public eating areas, outdoor play spaces, exterior paths of travel, accessible parking, service counters, and waiting areas. These are the spaces where Alberta's existing accessibility infrastructure is most evidently inadequate, and where disability-community advocacy in Alberta has documented the most pervasive gaps. The Nova Scotia Standard provides ready-to-adapt operational language that Part Three's proposed Alberta legislation can incorporate by reference, dramatically accelerating Alberta's standards-development timeline relative to building from scratch.

The remaining five standards under the Nova Scotia Act — covering education, employment, goods and services, information and communication, and public transportation — are at various stages of development as of 2026. Each is subject to the same structured consultation process, the same Board recommendations, the same ministerial decision-making, and the same regulatory codification that the Built Environment Standard underwent. The pace of approval will determine whether the 2030 deadline is met. The disability community's continuing advocacy will determine the political pressure on that pace.

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## What the Nova Scotia Record Establishes

The Nova Scotia Act's eight-year operational record establishes findings relevant to the broader Part Two argument and to the blueprint Part Three will propose.

The first is that small jurisdictions can build comprehensive accessibility legislation. Nova Scotia's population of approximately one million is smaller than the Calgary metropolitan area and smaller than the Edmonton metropolitan area. The fiscal capacity of the Nova Scotia government is substantially smaller than the Alberta government's. The administrative apparatus of the Accessibility Directorate is correspondingly smaller. None of these limitations has prevented Nova Scotia from enacting comprehensive accessibility legislation, building the implementing institutions, publishing an implementation strategy, beginning standards development across all six accessibility areas, and approving the first operational standard. The "Alberta is too large and complex" objection is not, structurally, defensible against the Nova Scotia precedent. If a province with one-fifth Alberta's population can build the framework, a province with five times Nova Scotia's resources can build it more comprehensively, more quickly, and with greater operational capacity.

The second is that the design choice to include education as a stand-alone accessibility area is operationally feasible. Nova Scotia has been developing the Education Accessibility Standard since 2018. The standard, when approved, will provide the operational architecture for accessibility in early childhood education, primary and secondary schools, and post-secondary institutions across Nova Scotia. The work product of the Nova Scotia Education Standards Development Committee will, when published, be available as direct precedent for Alberta. The lifecycle frame established in Part One Section 1.3 supports including education as a stand-alone area in the proposed Alberta legislation; the Nova Scotia precedent demonstrates the design choice's operational feasibility.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The third is that the 50-percent disability-community representation requirement on public-sector accessibility advisory committees is workable, durable, and produces measurable improvement in the substantive quality of the accessibility planning the committees produce. The disability community has consistently documented that the 50-percent floor has changed the operational quality of accessibility planning across Nova Scotia public-sector bodies. The design choice is the strongest operationalization of the *Nothing Without Us* principle in any Canadian provincial accessibility statute and should be incorporated into the Alberta blueprint.

The fourth is the cautionary lesson about implementation pace. Nova Scotia's first standard took eight years from the Act's passage to approval. The pace has been criticized by the disability community as too slow to meet the 2030 deadline without substantial acceleration. The lesson for Alberta is direct: the standards-development pace must be calibrated to the deadline ambition, with adequate administrative resourcing, statutory timelines for each standard's development, and ongoing political accountability for adherence to those timelines. Part Three's proposed Alberta legislation will codify standards-development timelines as statutory requirements rather than aspirational schedules.

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## What This Section Establishes

The Nova Scotia *Accessibility Act*, 2017, set the most ambitious binding deadline of any Canadian provincial accessibility regime — an *accessible Nova Scotia by 2030* commitment now five years from its statutory horizon. The Act covers six accessibility areas, including education as a stand-alone area unique among Canadian provincial accessibility statutes. The Act introduced the structural innovation of requiring at least 50 percent disability-community representation on public-sector accessibility advisory committees. The Act has produced an implementation strategy (*Access by Design 2030*), the first operational accessibility standard (the *Built Environment Accessibility Standard*, approved March 12, 2025, in force April 1, 2026), and an annual ministerial reporting cycle that creates a continuous public-record accountability mechanism.

The implementation pace has been slower than the disability community considers acceptable, raising open questions about whether the 2030 deadline will be met. The pace has not, however, undone the structural achievement: Nova Scotia has the architecture, the institutions, the strategy, and a growing body of operational standards. The implementation gap is a problem inside the architecture. In Alberta, the absence is the architecture.

Nova Scotia's population is approximately one million. Alberta's population is approximately 4.8 million. The Nova Scotia precedent defeats every population-scale objection that could be raised against the introduction of equivalent Alberta legislation.

Section 2.5 examines the British Columbia *Accessible British Columbia Act* (2021), the most recent comprehensive provincial accessibility legislation enacted west of Manitoba and the legislation passed under a New Democratic provincial government most ideologically aligned with social-policy comprehensiveness. The British Columbia Act introduces additional design innovations — including the *Accessibility Committee* requirement for organizations of all sizes — that further refine the comparator picture and provide additional precedent for Alberta's eventual blueprint.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.5 — British Columbia: The Accessible British Columbia Act, 2021

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Section 2.4 documented the Nova Scotia *Accessibility Act* and its design innovations — the most ambitious deadline in Canadian provincial accessibility legislation, the inclusion of education as a stand-alone area, and the 50-percent disability-community representation requirement on public-sector advisory committees. Section 2.5 turns to the most recent comprehensive provincial accessibility legislation enacted west of Manitoba: the *Accessible British Columbia Act*, passed under the New Democratic government of Premier John Horgan and receiving Royal Assent on June 17, 2021. The British Columbia Act introduces design innovations that distinguish it from each of the prior comparator statutes and that are particularly relevant to the Alberta blueprint Part Three will propose.

The British Columbia comparator matters for three specific reasons that compound across this Part Two analysis. First, the British Columbia Act includes the most comprehensive integration of Indigenous rights of any Canadian provincial accessibility legislation, including statutory consideration of Section 35 of the *Constitution Act, 1982* and of the *United Nations Declaration on the Rights of Indigenous Peoples* (UNDRIP). For Alberta, where Indigenous communities constitute a significant portion of the population disabled by colonial-era policy architecture as documented in the campaign's separate Indigenous Disability evidentiary record, the British Columbia precedent provides directly applicable design language. Second, the British Columbia Act extends the accessibility-committee requirement to every covered organization, not only to public-sector bodies. Each organization subject to the Act must establish its own accessibility committee, develop its own accessibility plan, and create its own public feedback mechanism. The structural distribution of accessibility responsibility across the entire covered sector is more comprehensive than the Ontario, Manitoba, and Nova Scotia models. Third, British Columbia is the most recent jurisdiction to have enacted comprehensive accessibility legislation among the comparator provinces examined to date, which means its design choices were informed by the documented operational experience of the prior frameworks. The British Columbia Act, in this sense, represents the current state of the art in Canadian provincial accessibility legislative design.

British Columbia's population is approximately 5.3 million, slightly larger than Alberta's 4.8 million. The two provinces are structurally comparable in population, in fiscal capacity, in the scale of provincial government administration, and in the geographic complexity of delivering accessibility legislation across urban-rural-northern divides. Where the smaller-jurisdiction comparator analyses in Sections 2.3 and 2.4 defeated arguments about Alberta being too small to receive Manitoba-or-Nova-Scotia-style legislation, the British Columbia comparator defeats arguments about Alberta being structurally distinct from the next-most-populous Western Canadian province. British Columbia and Alberta share the most comparable structural profiles in the Canadian federation. British Columbia has comprehensive accessibility legislation. Alberta does not.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Origin and Passage

The *Accessible British Columbia Act* (the Act) was introduced as Bill 6 in the British Columbia Legislative Assembly during the 2nd Session of the 42nd Parliament. The Bill was developed under the New Democratic government of Premier John Horgan, with Nicholas Simons serving as Minister of Social Development and Poverty Reduction and Dan Coulter as Parliamentary Secretary for Accessibility. The Bill passed the Legislative Assembly with cross-party support and received Royal Assent on June 17, 2021.

The pre-legislative consultation process was extensive and explicitly co-developmental with Indigenous communities and disability-community organizations. The Union of British Columbia Indian Chiefs (UBCIC), the Greater Vancouver Association of the Deaf, the BC Deaf Accessibility Caucus, the Canadian Institute for Inclusion and Citizenship at the University of British Columbia, and dozens of other community organizations participated in shaping the Bill's substantive provisions. The disability community's input is reflected throughout the Act's design, including in the Indigenous-rights integration that distinguishes British Columbia's framework from all other Canadian accessibility statutes.

Subsequent provincial governments have continued administering the Act. The original Horgan New Democratic government was succeeded by the Eby New Democratic government in late 2022, with no change to the Act's operational framework. The Act continues to operate across changes in cabinet personnel and ministerial assignment. The cross-partisan operational continuity that Sections 2.2, 2.3, and 2.4 documented for Ontario, Manitoba, and Nova Scotia respectively also holds in British Columbia.

The Act's stated purpose, set out in its preamble and substantive provisions, is to support the identification, removal, and prevention of barriers to the full and equal participation in society of persons with disabilities. The Act operates through three primary mechanisms: requirements imposed on the British Columbia government and on prescribed covered organizations to establish accessibility committees, develop accessibility plans, and create public feedback mechanisms; the establishment of a Provincial Accessibility Committee to develop accessibility standards; and the regulatory authority of the Lieutenant Governor in Council to enact those standards and to extend the Act's coverage to additional categories of organizations.

The Act came into substantive force on September 1, 2022, with the simultaneous coming-into-force of the *Accessible British Columbia Regulation*. The Regulation prescribes over 750 public-sector organizations as initial covered entities, including school districts, schools, post-secondary institutions, regional health authorities, library boards, municipalities, and provincial Crown corporations. Compliance phasing required first-phase organizations to meet the Act's basic requirements by September 1, 2023, with remaining first-tranche organizations required to comply by September 1, 2024. The Act is designed to extend incrementally through regulation to additional sectors over the ten-year implementation horizon the government has committed to.

The British Columbia government allocated \$4.8 million in initial funding from the Ministry of Social Development and Poverty Reduction to support implementation of the Act. The funding supported the establishment of the Provincial Accessibility Committee, the staffing of the Accessibility Directorate within the Ministry, the development of guidance documents and supports for covered organizations, and the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

initial standards-development work. The funding commitment is documented in the public record and provides direct precedent for the budgetary commitment Alberta would need to make to operationalize equivalent legislation.

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## The Three Organizational Requirements

The British Columbia Act's most distinctive structural feature is the imposition, on every covered organization, of three concurrent requirements: the establishment of an accessibility committee, the development of an accessibility plan, and the creation of a public feedback mechanism. The three requirements operate together as the operational core of the Act's organizational compliance architecture and apply equally to the British Columbia government, prescribed public-sector bodies, and any private-sector or non-profit organizations to which the Act is extended through future regulation.

**The accessibility committee** is the structural innovation that distinguishes the British Columbia framework from prior Canadian provincial accessibility legislation. Each covered organization must establish its own accessibility committee composed of members with lived experience of disability and other relevant expertise. The committee assists the organization in identifying barriers within and around the organization, advises the organization on accessibility planning, and supports the development and operation of the public feedback mechanism. The committee requirement embeds disability-community input at the level of every covered organization rather than only at the provincial standards-development level. This is the most comprehensive operationalization of the *Nothing Without Us* principle in Canadian provincial accessibility legislation: every covered organization, not only the central provincial committee, must have disability-community representation built into its operational decision-making.

**The accessibility plan** must be developed by each covered organization in consultation with its accessibility committee. The plan must identify barriers within the organization and the steps the organization will take to remove and prevent them. The plan must be made publicly available, must be updated periodically, and must consider feedback received through the public feedback mechanism. The plan requirement parallels the requirements in Ontario, Manitoba, Nova Scotia, and the federal ACA, but is operationally distinct in being directly informed by the organization's own accessibility committee's input.

**The public feedback mechanism** must be established by each covered organization to allow members of the public to submit feedback on the organization's accessibility, the barriers they encounter in dealing with the organization, and the implementation of the organization's accessibility plan. The mechanism must itself be accessible, must allow for feedback in multiple formats, and must trigger a documented response to feedback received. The feedback mechanism requirement is structurally similar to the equivalent requirements under the federal ACA and the prior provincial frameworks, but the British Columbia design ties it directly to the accessibility committee's operational role within the organization.

The combined effect of the three requirements is that every covered organization in British Columbia operates with a documented, structured, disability-community-informed accessibility planning cycle that produces public-record outputs and remains responsive to ongoing public feedback. The architecture is the operational extension into every covered organization of the *Nothing Without Us* principle that the Provincial Accessibility Committee operationalizes at the standards-development level.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Indigenous Rights Integration

Section 19 of the British Columbia Act requires that, in developing any proposed accessibility standard, the Provincial Accessibility Committee must consider:

*the rights recognized and affirmed by section 35 of the Constitution Act, 1982, and the United Nations Declaration on the Rights of Indigenous Peoples.*

Section 16 requires that, in the standards-development process, the Provincial Accessibility Committee must consult with Indigenous peoples among the listed mandatory consultation groups. The Provincial Accessibility Committee membership includes Indigenous representation as a structural requirement.

The Indigenous-rights integration is the most comprehensive in any Canadian provincial accessibility legislation. The federal *Accessible Canada Act* recognizes Indigenous sign languages and includes Indigenous accessibility as one of its priority areas, but does not require structured consideration of UNDRIP and Section 35 in standards development. The Ontario, Manitoba, and Nova Scotia statutes do not contain comparable Indigenous-rights provisions. British Columbia's design choice reflects the province's broader policy architecture under the *Declaration on the Rights of Indigenous Peoples Act* (DRIPA, S.B.C. 2019, c. 44), which made British Columbia the first Canadian jurisdiction to formally adopt UNDRIP into provincial law. The accessibility statute extends the DRIPA framework into the accessibility policy domain.

The relevance to Alberta is direct. The campaign producing this blueprint maintains a separate 195-page Indigenous Disability Alberta evidentiary record documenting the lifecycle, healthcare, jurisdictional, MMIWG2S, child welfare, and intergenerational dimensions of Indigenous disability in the province. The record establishes that any comprehensive Alberta accessibility framework must, to be substantively responsive to the population it would serve, include an Indigenous-rights architecture analogous to British Columbia's. The British Columbia design provides ready-to-adapt operational language that Part Three's proposed Alberta legislation can incorporate. The structural innovation is not theoretical; it is operational, it has been tested in the British Columbia standards-development process, and it produces documented improvements in the substantive quality of accessibility standards relative to frameworks that lack Indigenous-rights integration.

The Union of British Columbia Indian Chiefs's endorsement of the Indigenous-rights provisions when the Bill was introduced — *we are glad to see the Province taking this step with the introduction of accessibility legislation, and we applaud the specific provisions in the proposed law to build in the input of Indigenous peoples in the development of accessibility standards* — reflects the cross-organizational support the design has received within Indigenous communities. The provisions are not contested. They are operationalized. They are working.

Part Three's proposed Alberta legislation will incorporate the British Columbia Indigenous-rights integration as direct precedent. The operational language Part Three adopts will reference Section 35 of the *Constitution Act, 1982*, will require structured consideration of UNDRIP in standards development, will mandate Indigenous representation on standards-development bodies, and will require consultation with



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Indigenous peoples as a structural feature of every standards-development process. The British Columbia precedent demonstrates the operational feasibility of these design choices.

## Sign Language Recognition

Section 5 of the Act recognizes sign languages as the primary languages for communication by Deaf persons in British Columbia, *including, without limitation*, American Sign Language, Indigenous sign languages, and signed languages associated with hearing-impaired and Deaf-Blind communities. The recognition parallels the federal ACA's recognition of ASL, Quebec Sign Language (LSQ), and Indigenous sign languages, but the British Columbia formulation is operationally broader through the *without limitation* qualifier, which allows the recognition to extend as additional sign languages are documented and recognized.

The sign-language recognition provision is significant for two reasons. First, it places British Columbia among the small number of Canadian jurisdictions to formally recognize sign languages as primary languages. The recognition has substantive consequences for the design of accessibility standards in education, communication, and public service delivery, as the standards must accommodate sign-language-using Deaf persons as primary-language speakers rather than as recipients of accommodations within an English-or-French primary-language framework. Second, the inclusion of Indigenous sign languages reflects the same Indigenous-rights integration that distinguishes the British Columbia framework more broadly. Indigenous sign languages, including the Plains Sign Language used historically by Plains First Nations including in what is now Alberta, are recognized as primary languages of Deaf members of those communities.

The endorsement of the sign-language recognition by the Greater Vancouver Association of the Deaf and the BC Deaf Accessibility Caucus — *as a linguistic and cultural minority, the deaf community applauds the provincial government's decision to recognize sign languages and sees this as a significant step toward ensuring equitable access and inclusion for deaf British Columbians* — documents the substantive meaning of the recognition for the community it serves.

## The Provincial Accessibility Committee and Standards Development

The Provincial Accessibility Committee is the central standards-development body under the Act. It is established by the Minister of Social Development and Poverty Reduction with members representing persons with disabilities, Indigenous peoples, and other relevant stakeholders. The Committee operates with mandatory consultation requirements (Section 16), required consideration of substantive principles (Section 17), required consideration of intersectional discrimination (Section 18), and required consideration of Indigenous rights (Section 19) in developing every proposed standard.

The standards-development process operates as follows. The Minister directs the Committee to develop a proposed standard in a defined area. The Committee may establish a technical committee to assist with technical drafting; the technical committee operates under the Provincial Accessibility Committee's direction. The Committee consults the mandatory groups, considers the mandatory principles and external



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

rights frameworks, and submits a proposed standard to the Minister. The Minister publishes the proposed standard, may make changes considered necessary or advisable, and recommends to the Lieutenant Governor in Council that a regulation be enacted based on the standard. The Lieutenant Governor in Council may then enact the standard as a regulation under Section 13, which has the effect of making the standard binding on covered organizations.

Standards may be developed in any of the sectors identified in the Act's substantive provisions, including employment, the delivery of services, the built environment, information and communications, transportation, health, education, and procurement. The Act explicitly contemplates additional sectors being designated through regulation as the implementation matures. Standards are developed two at a time on a phased schedule, allowing the limited administrative capacity of the Provincial Accessibility Committee and the Accessibility Directorate to focus on a manageable workstream at any given time.

The standards-development process is substantially similar to the equivalent processes in Ontario, Manitoba, and Nova Scotia, with the Indigenous-rights and broader-consultation requirements distinguishing the British Columbia approach. The pace of standards development under the British Columbia Act has been criticized by the disability community as slower than the legislation makes possible, with the first formal accessibility standards still under development as of 2026. The criticism parallels the criticism of standards-development pace under the Nova Scotia Act and reflects the structural reality that thorough consultation, substantive principle-based deliberation, and integration of Indigenous-rights considerations require time. The trade-off between consultation depth and implementation pace is a standing tension across all Canadian provincial accessibility frameworks; the British Columbia design weights more heavily toward consultation depth than the Ontario design and produces, on observed experience, slower but more substantively grounded standards work.

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## Reporting, Reviews, and the Ten-Year Horizon

Section 6 of the Act requires the Minister to publish, by September 30 of each fiscal year, a report describing the actions taken in the preceding fiscal year by the Minister and the Provincial Accessibility Committee to implement the Act and the regulations. The annual reporting requirement is statutory, not discretionary. The reports are public documents.

Section 7 of the Act requires an independent review of the effectiveness of the Act and the regulations. The first review must be initiated within five years of the Act's coming into force — which means the first independent review of the British Columbia Act should be initiated by 2026, the year of this blueprint. Subsequent reviews are required every five years until 2031, after which the review cycle extends to every ten years. The review architecture is similar to the federal ACA's five-year review cycle and the Manitoba AMA's five-year standards-review cycle, with the cycle-extension after the initial implementation period reflecting the expectation that the Act will mature into ongoing operation rather than requiring continuing intensive review.

The Province has committed to a ten-year implementation horizon for the Act, structured around four phases of work: *culture change*, focused on ongoing awareness building and stakeholder engagement; *requirements for the BC government*, focused on the BC government's own compliance with the Act's

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organizational requirements as a model for other covered organizations; *monitoring and evaluation*, focused on the annual reporting and independent-review architecture; and *standards development*, focused on the phased two-at-a-time development of binding accessibility standards across the substantive sectors. The ten-year horizon ends in 2031, the year the cycle extends from five-year to ten-year reviews.

The implementation framework's structural features — annual reporting, five-year statutory reviews, ten-year implementation horizon, four-phase work plan — together constitute the most thoroughly documented public-accountability architecture of any Canadian provincial accessibility statute. The framework is designed to produce a continuous public record of progress, structured periodic external assessment, and a defined endpoint for the initial implementation phase. The combined effect is that the British Columbia government's accessibility implementation work is permanently visible to the public, the disability community, and the academic and policy research community in ways that the AISH/PDD/FSCD/ADAP architectures examined in Part One are not visible in Alberta. The contrast is not coincidental. It is the direct consequence of the legislative architecture each jurisdiction has chosen to build.

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## What the British Columbia Record Establishes

The British Columbia Act's five-year operational record (from 2021 passage to 2026 first independent review) establishes findings that complement the comparator analyses in Sections 2.1 through 2.4 and that will inform the Alberta blueprint Part Three develops.

The first is that recent-vintage accessibility legislation can incorporate the documented learnings of prior frameworks. The British Columbia Act, passed sixteen years after Ontario's AODA and eight years after Manitoba's AMA, includes design innovations — the universal accessibility-committee requirement, the integrated Indigenous-rights framework, the broader sectoral coverage, the more rigorous consultation requirements — that directly address documented limitations of the earlier provincial frameworks. The legislative-design knowledge has compounded across the Canadian provincial accessibility landscape. Alberta, building eight years after British Columbia, should benefit from a further iteration of design improvements rather than reverting to an earlier model. Part Three's proposed Alberta legislation will incorporate the British Columbia design innovations directly.

The second is that the Indigenous-rights integration is operationally feasible and substantively necessary. British Columbia's design demonstrates that requiring statutory consideration of UNDRIP and Section 35 in accessibility standards development can be operationalized through clearly defined statutory provisions without paralyzing the standards-development process. The integration produces measurable improvement in the substantive quality of standards work, particularly for accessibility issues affecting Indigenous communities. The Alberta blueprint must include analogous provisions; the British Columbia precedent demonstrates how to draft them.

The third is that distributing accessibility-committee requirements across every covered organization produces operational improvements that do not occur when committees exist only at the central standards-development level. British Columbia's design embeds disability-community input into the

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operational decision-making of every covered organization, which produces accessibility planning that is more substantively grounded in lived experience than planning developed without that input. The design choice should be incorporated into the Alberta blueprint; the additional administrative cost is offset by the substantive quality improvement and by the broader culture change the universal-committee requirement produces across the covered sectors.

The fourth is the structural-comparator argument that lands the British Columbia analysis directly. British Columbia and Alberta are the two most populous Western Canadian provinces, with comparable fiscal capacities, comparable urban-rural-northern geographic complexity, comparable Indigenous population shares, and comparable policy-administration scales. British Columbia has comprehensive accessibility legislation. Alberta does not. The structural-similarity arguments that might be deployed to argue against the operational feasibility of equivalent Alberta legislation do not survive contact with the British Columbia precedent. If British Columbia can build it, Alberta can build it. The arithmetic of structural comparison defeats every objection.

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## What This Section Establishes

The *Accessible British Columbia Act*, 2021, is the most recent comprehensive provincial accessibility legislation enacted in Canada west of Manitoba. The Act introduces design innovations that distinguish it from the prior comparator statutes: the universal accessibility-committee requirement (every covered organization, not only public-sector bodies, must have its own accessibility committee), the integrated Indigenous-rights framework (statutory consideration of Section 35 of the *Constitution Act*, 1982 and of UNDRIP in standards development), the broader sectoral coverage (employment, services, built environment, information and communications, transportation, health, education, procurement, and additional designated sectors), the recognition of sign languages including Indigenous sign languages, and the most thoroughly documented public-accountability architecture of any Canadian provincial accessibility statute (annual ministerial reports, five-year statutory reviews extending to ten-year cycles after 2031, ten-year implementation horizon with four-phase work plan).

British Columbia's population is approximately 5.3 million, slightly larger than Alberta's 4.8 million. The two provinces are structurally comparable. British Columbia has the legislation. Alberta does not. The structural-comparator argument the British Columbia precedent establishes defeats every objection to the operational feasibility of equivalent Alberta legislation.

Section 2.6 examines the most recent provincial accessibility legislation enacted anywhere in Canada: the Saskatchewan *Accessible Saskatchewan Act*, 2023, which represents the current frontier of Canadian provincial accessibility legislative design and which makes Alberta the only English-speaking Canadian province west of Quebec without comprehensive accessibility legislation. The geographic and structural isolation of Alberta's position becomes most evident in the Saskatchewan analysis, which is examined next.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.6 — Saskatchewan: *The Accessible Saskatchewan Act, 2023*

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Section 2.5 documented the *Accessible British Columbia Act*, the most recent comprehensive provincial accessibility legislation enacted west of Manitoba. Section 2.6 turns to the most recent comprehensive provincial accessibility legislation enacted anywhere in Canada: *The Accessible Saskatchewan Act*, which received Royal Assent on May 17, 2023, and came into force on December 3, 2023. The Saskatchewan legislation is the current frontier of Canadian provincial accessibility statutory design. It also produces the analytic moment that compels Section 2.8's conclusion: with Saskatchewan's enactment, Alberta became the only English-speaking Canadian province west of Quebec without comprehensive accessibility legislation.

The Saskatchewan comparator is significant for this Part Two analysis for four specific reasons that compound across the prior comparator analyses.

First, Saskatchewan is Alberta's most structurally and politically similar provincial neighbour. The two provinces share a contiguous geographic boundary, a comparable agricultural and resource-extraction economic base, comparable rural-urban-northern population distributions, comparable Indigenous population shares, comparable fiscal cycles linked to commodity prices, and comparable provincial-government administrative scales. Saskatchewan's population is approximately 1.2 million, smaller than Alberta's 4.8 million but structurally proportionate to the relevant Alberta comparators in every other respect. Where Section 2.5 established that British Columbia — Alberta's western neighbour and the next-most-populous Western Canadian province — has comprehensive accessibility legislation, Section 2.6 establishes that Saskatchewan — Alberta's eastern neighbour and its closest political-cultural analogue — has comprehensive accessibility legislation. Alberta is not bracketed by jurisdictions that are structurally distinct. Alberta is bracketed by structurally similar jurisdictions that have made the opposite legislative choice.

Second, the Saskatchewan Act was enacted under a Saskatchewan Party government. The Saskatchewan Party is the dominant centre-right political coalition in Saskatchewan and is the Saskatchewan analogue of the United Conservative Party that holds government in Alberta. The Bill was introduced by Social Services Minister Gene Makowsky, a Saskatchewan Party cabinet minister, in fall 2022. The Bill received Royal Assent under the Saskatchewan Party government of Premier Scott Moe in May 2023. The Saskatchewan Party government has subsequently administered the Act, established the Saskatchewan Accessibility Office, appointed the inaugural Accessibility Advisory Committee in March 2024, published the first Government of Saskatchewan Accessibility Plan on December 3, 2024, and produced the first annual report under the Act. The legislation is, in this sense, a Saskatchewan Party legislative achievement, advanced and operationalized by the political party most ideologically and structurally similar to the governing party in Alberta. The "Conservative governments don't pass this kind

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

of legislation" argument, if such an argument has been made in Alberta political discourse, is not consistent with the Saskatchewan record.

Third, the Saskatchewan Act incorporates the documented learnings of the prior provincial frameworks. The Act's design includes the universal accessibility-plan requirement extending to public-sector bodies (drawing on the Ontario, Manitoba, Nova Scotia, and BC precedents); the recognition of sign languages including Indigenous sign languages (drawing on the federal ACA and BC precedents); the mandatory minimum 50 percent disability-community representation on the Accessibility Advisory Committee (drawing on the Nova Scotia precedent); the statutory consideration of the United Nations Convention on the Rights of Persons with Disabilities in standards development (drawing on the BC precedent); the multi-area standards-development scope (drawing on every prior comparator); and the multi-institution implementing architecture (drawing on every prior comparator). The Saskatchewan legislation represents the synthesis of nineteen years of accumulated Canadian provincial accessibility legislative experience, from Ontario's 2005 AODA through to the 2021 BC Act. Alberta, building eight years after Saskatchewan, would build with a further iteration of this accumulated knowledge available to it.

Fourth, the Saskatchewan Act's existence is the analytic precondition for the structural-isolation argument Section 2.8 will land. With Saskatchewan's enactment in 2023, every Canadian province from British Columbia in the west to Newfoundland and Labrador in the east, except Alberta and the Atlantic provinces of Prince Edward Island and New Brunswick, has comprehensive provincial accessibility legislation in operation. Alberta is geographically surrounded by jurisdictions with this legislative architecture and is the largest, wealthiest, and most institutionally capable Canadian province without it. The geographic, structural, political, and fiscal isolation of Alberta's position has no precedent in modern Canadian disability policy and no defensible explanation that does not reduce to the political choice the province has made.

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## Origin and Passage

The Bill that became *The Accessible Saskatchewan Act* originated as Bill 103, introduced in the Saskatchewan Legislative Assembly in fall 2022 under the Saskatchewan Party government of Premier Scott Moe. The Bill was advanced by Social Services Minister Gene Makowsky as a recommendation arising from the *2015 Saskatchewan Disability Strategy*, a multi-year strategic-planning process that had identified comprehensive accessibility legislation as a core deliverable for the province's disability-policy infrastructure. The Bill received cross-party support and Royal Assent on May 17, 2023, and came into force on December 3, 2023, simultaneously with the *Accessible Saskatchewan Regulations*.

The pre-legislative consultation process drew on the documented learnings of every prior Canadian comparator framework. The 2015 Strategy had established the substantive policy foundations. The Bill itself was developed with input from Saskatchewan's disability-community organizations including the Saskatchewan Voice of People with Disabilities, the Saskatchewan Council on Disability Issues, and provincial chapters of national disability-advocacy organizations including the CNIB, the Canadian Hard of Hearing Association, and the Saskatchewan Association for Community Living. The Bill's drafting reflects this consultation throughout, particularly in the substantive structuring of the Accessibility Advisory Committee membership requirements and in the standards-development process's mandatory



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

consideration of UN CRPD obligations.

The Saskatchewan Party government's role in advancing the Bill is the operationally significant fact for the comparator analysis. The Saskatchewan Party has held provincial government continuously since 2007, under Premier Brad Wall (2007-2018) and Premier Scott Moe (2018 to present). The Bill was introduced, debated, passed, and operationalized under the same governing party. There has been no change in governing party during the legislation's passage or implementation. The legislation is, in this respect, a sustained Saskatchewan Party legislative project rather than a project initiated under one government and continued under another. The legislative achievement is, accordingly, a centre-right Western Canadian provincial-government legislative achievement.

Subsequent operational steps have proceeded on schedule. The Saskatchewan Accessibility Office was established within the Ministry of Social Services in 2023 under the leadership of a Director appointed under Section 3-2 of the Act. Applications for membership on the inaugural Accessibility Advisory Committee opened in September 2023 with a deadline of October 15, 2023; the government received over 180 applications. The inaugural 15-member Committee was appointed on March 1, 2024, with majority disability-community representation (in keeping with the statutory requirement) and substantial geographic, demographic, and experiential diversity. The Government of Saskatchewan Accessibility Plan, the first such plan required by the Act, was published on December 3, 2024 — one year after the Act came into force, in compliance with the statutory timeline. Public-sector bodies designated under the Regulations are required to publish their own accessibility plans by December 3, 2025, two years after the Act's coming into force.

The implementation pace through the first two years of the Act's operation is, by the disability-community's documented assessment, faster than the pace observed under several earlier provincial frameworks. The Saskatchewan government's adherence to statutory timelines, its rapid appointment of the Advisory Committee, and its on-schedule publication of the inaugural Government Accessibility Plan together suggest a level of administrative commitment that supports rather than impedes the Act's operationalization. The pace will be subject to ongoing scrutiny in the years ahead, but the early operational record establishes that comprehensive accessibility legislation in Saskatchewan is being delivered on the timelines the legislation required.

## The Act's Substantive Structure

*The Accessible Saskatchewan Act* is organized into seven parts: *Part 1* (preliminary matters, including definitions, principles, and the annual reporting requirement), *Part 2* (sign-language recognition and accessibility plan obligations), *Part 3* (the Saskatchewan Accessibility Office), *Part 4* (the Accessibility Advisory Committee), *Part 5* (accessibility standards), *Part 6* (compliance and enforcement, including inspectors), and *Part 7* (offences, administrative penalties, and appeals). The structural template is consistent with the prior provincial frameworks and reflects the documented design conventions for Canadian provincial accessibility legislation.

The Act's *substantive scope* covers six accessibility areas, identified as the standards-development priorities under the legislation. The areas are the *built environment*, *information and communications*,



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*employment, transportation, the delivery of goods and services, and the delivery of education programs and services.* The Act explicitly contemplates additional areas being identified in the future. The six-area scope parallels the Nova Scotia framework's six-area structure (Section 2.4) and includes education as a stand-alone accessibility area, in keeping with the design choice Section 2.4 identified as the most consequential for an Alberta-equivalent statute. The inclusion of education as a stand-alone area in the most recent Canadian accessibility statute confirms that the design choice has become an established convention in Canadian accessibility legislative practice.

Section 2-1 of the Act recognizes sign languages as the primary languages for communication by Deaf persons in Saskatchewan, *including, without limitation: (a) American Sign Language; and (b) Indigenous sign languages.* The recognition parallels the BC Act's *without limitation* recognition framework (Section 2.5) and the federal ACA's recognition of ASL, LSQ, and Indigenous sign languages (Section 2.1). The convergence across recent Canadian accessibility statutes on the recognition of sign languages including Indigenous sign languages is now the established convention. Alberta-equivalent legislation must include this recognition.

Section 2-2 of the Act requires designated entities to develop accessibility plans that identify, remove, and prevent barriers. The first entity required to publish an accessibility plan under the Act is the Government of Saskatchewan, which published its plan on December 3, 2024. Public-sector bodies designated under the Regulations are required to publish their plans by December 3, 2025. The plan-publication requirement extends incrementally through regulation to additional categories of organizations as the implementation matures.

Part 5 of the Act, the standards-development part, includes a notable substantive provision: Section 5-2 requires the Accessibility Advisory Committee, in developing proposed accessibility standards, to consider the United Nations Convention on the Rights of Persons with Disabilities. The statutory consideration of the UN CRPD parallels the BC Act's structural innovation (Section 2.5) and operationalizes Canada's binding international treaty obligation under the CRPD at the provincial-statutory level. Section 2.7 examines the UN CRPD framework directly.

## The Saskatchewan Accessibility Office and the Accessibility Advisory Committee

The Saskatchewan Act establishes two central operational bodies: the Saskatchewan Accessibility Office (SAO) and the Accessibility Advisory Committee (AAC).

**The Saskatchewan Accessibility Office.** The SAO is established under Part 3 of the Act, located within the Ministry of Social Services. The SAO is led by a Director appointed under Section 3-2 by the Minister of Social Services from among ministry employees. The Director is, by virtue of office, a non-voting member of the Accessibility Advisory Committee, providing a structural connection between the standards-development advisory body and the operational implementing office. The SAO's responsibilities are set out in Section 3-3 and include: advising the Minister on the development and review of accessibility legislation and standards, and on compliance and enforcement matters; supporting public awareness and education, including researching and providing training and resources to organizations; advising the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Minister on the preparation of the annual report; monitoring inspector visits, orders, Director reviews, administrative penalties, and appeals; and receiving complaints regarding non-compliance. The SAO is the operational unit through which the Act's day-to-day implementation is coordinated.

**The Accessibility Advisory Committee.** The AAC is established under Part 4 of the Act. Section 4-2 requires the Committee to consist of *at least 9 and not more than 15 members*. Critically, Section 4-2(3) requires that *at least one-half of the members of the committee* must be persons with disabilities, or persons employed by or associated with organizations that support persons with disabilities. The 50-percent floor parallels the Nova Scotia framework (Section 2.4) and operationalizes the *Nothing Without Us* principle at the central standards-development advisory level. The Committee provides advice to the Minister on proposed accessibility standards, on the administration of the Act and the Regulations, on public awareness and education initiatives, and on other accessibility-related matters as the Minister requests.

The inaugural 15-member Committee was appointed on March 1, 2024 and represents a substantial range of lived disability experience, professional expertise, and Saskatchewan community geography. As Minister Makowsky stated publicly at the appointment, *all committee members are either a person with a disability, an immediate family member or support person of a person with a disability, or have experience working for an organization that supports people with disabilities*. The depth of disability-community representation on the Committee exceeds the 50-percent statutory minimum, with substantially more than half of the members identifying as persons with disabilities themselves and the remaining members possessing direct family or professional connections to the community. The Committee's composition is, in operational terms, the most disability-community-grounded provincial accessibility advisory body currently operating in Canada.

The Committee operates on two-year appointment terms with a maximum of two consecutive terms per member. The structural design ensures both continuity (members can serve up to four years) and rotation (no member is permanent), allowing the Committee to incorporate the perspectives of new community members on a regular basis while retaining institutional memory.

## The Compliance and Enforcement Architecture

The Saskatchewan Act's compliance and enforcement architecture is set out in Parts 6 and 7. The architecture includes statutory authority for inspectors, compliance orders, administrative penalties, and appeals to the Court of King's Bench. The architecture parallels in structural design the equivalent architectures examined in Sections 2.1 through 2.5, with the Saskatchewan-specific implementation reflecting the smaller administrative scale of the Saskatchewan government relative to larger provincial counterparts.

Inspectors appointed under Part 6 have statutory authority to enter premises, examine documents, require the production of information necessary to determine compliance, and issue orders requiring corrective action. Section 6-8 prohibits obstructing an inspector. The Director, established under Part 3, may apply for a compliance order under Section 6-11 in cases where an inspector's order is not complied with.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Part 7 establishes the offence and administrative-penalty framework. Administrative penalties may be imposed for contraventions of the Act or the Regulations or for failures to comply with compliance orders. Appeals from administrative penalty determinations may be made to the Court of King's Bench. The structural design ensures both administrative efficiency (penalties may be imposed without full court proceedings) and procedural fairness (appeals are available to a superior court of inherent jurisdiction).

The compliance and enforcement record under the Saskatchewan Act is, in 2026, still in its early operational phase. The Act has been in force for less than three years. Public-sector accessibility plans are not required to be published until December 3, 2025. Standards have not yet been developed and enacted as regulations. The compliance and enforcement architecture exists in the statute but has not yet generated the volume of operational activity that would allow systematic evaluation of its effectiveness. The design will be tested as the implementation matures.

The relevant point for the Part Two comparator analysis is that the architecture exists in the statute. Saskatchewan has, in 2026, the operational framework that Alberta does not have. The architecture's eventual operational record will be a future evaluation question. The architecture's existence is the present comparator fact.

## What the Saskatchewan Record Establishes

The Saskatchewan Act's first three years of operation establish findings that complete the comparator picture and that compound across the prior comparator analyses.

The first is that comprehensive accessibility legislation has been enacted, in the most recent Canadian iteration, by a centre-right Western Canadian provincial government. The Saskatchewan Party's introduction, passage, and operationalization of *The Accessible Saskatchewan Act* defeats every argument that comprehensive accessibility legislation is incompatible with conservative provincial governance. The Saskatchewan Party is the political party most ideologically and structurally similar to the United Conservative Party in Alberta. The Saskatchewan Party has built the legislation. The "this is a left-wing legislative project" argument, if it has been deployed in Alberta political discourse, is not consistent with the documented Canadian record.

The second is that the design knowledge has compounded across nineteen years of Canadian provincial accessibility legislative experience. The Saskatchewan Act incorporates structural elements from every prior framework: the universal accessibility-plan requirement (Ontario), the sequential standards-development model (Manitoba), the 50-percent disability-community representation requirement (Nova Scotia), the UN CRPD consideration (BC), the recognition of sign languages including Indigenous sign languages (federal ACA), and the multi-institution implementing architecture (every prior comparator). The Saskatchewan synthesis demonstrates that the design knowledge is mature, transferable, and cumulative. Alberta, building eight years after Saskatchewan, would build with a further iteration of this accumulated knowledge available to it. The blueprint Part Three develops will draw on the accumulated comparator design knowledge as direct precedent.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The third is that comprehensive accessibility legislation has been enacted by a province that is, by any reasonable structural measure, less institutionally capable than Alberta of operationalizing it. Saskatchewan's population is less than one-quarter of Alberta's. Saskatchewan's provincial fiscal capacity, particularly during periods of low commodity prices, is substantially smaller than Alberta's. Saskatchewan's provincial-government administrative scale is correspondingly smaller. None of these structural differences has prevented Saskatchewan from enacting and operationalizing comprehensive accessibility legislation. The structural arguments that might be made against Alberta's adoption of equivalent legislation do not survive contact with the Saskatchewan precedent.

The fourth is the structural-isolation finding the Saskatchewan analysis enables. Section 2.8 will land this argument in detail, but the analytic foundation is already clear. With Saskatchewan's 2023 enactment, Alberta is geographically surrounded by jurisdictions with comprehensive provincial accessibility legislation. British Columbia (Section 2.5) is to the west. Saskatchewan (Section 2.6) is to the east. Manitoba (Section 2.3) is east of Saskatchewan. Ontario (Section 2.2) is east of Manitoba. Nova Scotia (Section 2.4) is on the Atlantic coast. The federal ACA (Section 2.1) operates in the federal jurisdiction across all of these provinces and Alberta. Alberta is the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. The structural and geographic isolation of Alberta's position is unique in Canadian disability policy.

## What This Section Establishes

*The Accessible Saskatchewan Act*, 2023, is the most recent comprehensive provincial accessibility legislation enacted anywhere in Canada and was advanced under a Saskatchewan Party government in Saskatchewan. The Act was passed by the political party most ideologically and structurally similar to the governing party in Alberta. The Act incorporates the documented design learnings of the prior nineteen years of Canadian provincial accessibility legislative experience. The Act establishes the Saskatchewan Accessibility Office, the Accessibility Advisory Committee (15 members, at least 50 percent disability-community representation, appointed March 1, 2024), the recognition of sign languages including Indigenous sign languages, the mandatory consideration of the UN CRPD in standards development, and a six-area substantive scope including education as a stand-alone accessibility area. The Act has produced, in its first three years of operation, an inaugural Government Accessibility Plan (published December 3, 2024), an annual reporting cycle, and an operational implementing infrastructure that proceeds on the statutory timelines.

Saskatchewan's population is approximately 1.2 million. Saskatchewan is Alberta's eastern neighbour, its closest political-cultural analogue, and its most structurally similar Canadian province. Saskatchewan has comprehensive provincial accessibility legislation. Alberta does not.

Section 2.7 examines the international framework that Canada has bound itself to and that every Canadian province operates under: the *United Nations Convention on the Rights of Persons with Disabilities* and its operational obligations. The CRPD framework establishes the international-law context within which Alberta's policy choices are evaluated and within which the Alberta Disability Rights argument operates. The CRPD is the substantive standard against which the comparator-jurisdiction frameworks examined in Sections 2.1 through 2.6 have been built. Section 2.7 documents what that standard requires

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

and what Alberta's failure to meet it implicates.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.7 — The International Framework: The UN Convention on the Rights of Persons with Disabilities

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Sections 2.1 through 2.6 documented the federal *Accessible Canada Act* and five provincial accessibility statutes — Ontario, Manitoba, Nova Scotia, British Columbia, and Saskatchewan. Each comparator was developed in domestic legal-political contexts shaped by Canadian constitutional and statutory frameworks. Each comparator's substantive content, however, draws on a single shared international framework: the *United Nations Convention on the Rights of Persons with Disabilities* (UN CRPD or, in this section, the Convention). Section 2.7 documents the Convention, Canada's binding obligations under it, and the substantive standard the Convention establishes against which Alberta's policy choices are evaluated.

The Convention matters for this Part Two analysis for four specific reasons.

First, Canada is a State Party to the Convention. The Government of Canada signed the Convention on March 30, 2007 — the day the Convention opened for signature, and the first time in Canadian history Canada had signed a UN Convention on its opening day. Canada ratified the Convention on March 11, 2010, with the support of all provinces and territories. The Convention entered into force for Canada on April 12, 2010. Canada's ratification was advanced under the Conservative government of Prime Minister Stephen Harper, with then-Foreign Minister Lawrence Cannon and then-Human Resources Minister Diane Finley delivering the ratification at United Nations headquarters in New York City. In 2018, Canada acceded to the Optional Protocol to the Convention, which provides a complaints mechanism for individuals and groups whose rights have been violated. Canada is, in the most formal sense available under international law, fully bound by the Convention's provisions.

Second, the Convention's binding effect operates across the federation. Although the Government of Canada is the State Party, the Convention's obligations apply across all federal, provincial, territorial, and municipal jurisdictions. Canada's First Report under the Convention, submitted to the UN Committee on the Rights of Persons with Disabilities in 2014, explicitly acknowledged that *governments at all levels are responsible for implementing the Convention*. The Government of Canada consulted with the provinces and territories throughout the negotiation, signature, and ratification processes precisely because the Convention's obligations would bind provincial conduct as well as federal. Alberta is bound by the Convention. The Convention's obligations are not optional, and provincial policy choices that fail to meet the Convention's standards are not consistent with Canada's binding international commitments.

Third, the Convention establishes the substantive standard against which all six Canadian comparator frameworks examined in Sections 2.1 through 2.6 have been designed. The federal *Accessible Canada Act* references the Convention in its preamble and substantive provisions. The *Manitoba Accessibility for Manitobans Act* preamble cites the Convention explicitly. The *British Columbia Accessible British*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Columbia Act* requires statutory consideration of the Convention in standards development. The *Saskatchewan Accessible Saskatchewan Act* requires consideration of the Convention in standards development. The Ontario AODA and the Nova Scotia *Accessibility Act*, while less explicit in their statutory references, were both developed against the substantive backdrop the Convention establishes. The accumulated Canadian provincial accessibility legislative architecture is, structurally, the domestic operationalization of Convention obligations the federal government accepted on behalf of all provinces in 2010.

Fourth, the Convention's framework provides operational language directly applicable to Alberta's eventual blueprint legislation. The Convention's eight guiding principles, its general state-party obligations, and its specific articles on accessibility, independent living, education, health, employment, social protection, and other domains are directly translatable into provincial statutory provisions. Part Three's proposed Alberta legislation will draw on the Convention's substantive content directly, in the same way the comparator frameworks examined in Sections 2.1 through 2.6 have done.

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## Origin and Negotiation

The Convention was adopted by the United Nations General Assembly on December 13, 2006, after several years of negotiation in which Canada took an active role. The Convention was, at the time of its adoption, the first human rights treaty of the 21st century and the fastest-negotiated human rights Convention in UN history, completing the negotiation process in approximately five years — substantially faster than the typical decade-or-more timeline that prior major UN human rights instruments had required. The Convention was, additionally, the first major UN human rights Convention developed with active participation from civil society, particularly from organizations of and for persons with disabilities. The negotiation process operationalized the *Nothing Without Us* principle at the international-treaty level and produced a Convention text shaped substantively by the lived experience of the population the Convention was designed to protect.

The Convention opened for signature on March 30, 2007, with 82 signatories on the opening day — the highest number of opening-day signatories of any UN Convention in history. As of 2026, the Convention has been signed by approximately 164 States and ratified by approximately 191 States, including Canada and all comparable industrialized democracies. The Convention is, in this respect, the most widely-ratified human rights instrument in modern international law.

The Convention's opening-day signature by Canada on March 30, 2007 reflected the Canadian government's leading role in the negotiation process. Canada's federal Department of Foreign Affairs and International Trade, working with disability-community organizations including the Council of Canadians with Disabilities, Independent Living Canada, the Canadian Association for Community Living (now Inclusion Canada), and others, contributed substantively to the Convention's drafting. The Convention's substantive design reflects, in significant respects, Canadian disability-policy thinking and Canadian human-rights law as those frameworks had evolved through the late 20th century. Canadians can therefore claim a degree of authorship in the Convention, which makes the gap between Canada's international leadership in the Convention's development and Alberta's failure to implement Convention-consistent provincial legislation a particularly acute political contradiction.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Canada's ratification on March 11, 2010, was preceded by extensive consultation with provincial and territorial governments, with self-governing Indigenous groups, and with the broader Canadian public through online consultations and stakeholder roundtables. The provinces and territories were directly consulted on whether they could implement the Convention's obligations in their respective jurisdictions and on whether they supported Canada's ratification. The provincial and territorial response was supportive; ratification proceeded with the support of all provinces and territories. Alberta's provincial government, as part of the consultation process, supported Canada's 2010 ratification of the Convention.

The Convention entered into force for Canada on April 12, 2010 — the date thirty days after Canada deposited its instrument of ratification with the UN Secretary-General. From that date forward, Canada has been bound by the Convention under international law and obligated to implement the Convention's provisions across all levels of Canadian government.

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## The Convention's Substantive Structure

The Convention contains 50 articles organized into a preamble, general principles and obligations, substantive rights provisions, implementation provisions, and final provisions. The substantive content is structured around a paradigm shift in disability policy: a move from the *medical model* of disability (in which disability is understood as an individual impairment requiring medical intervention or social protection) to the *social model* of disability (in which disability is understood as the interaction between an individual's impairment and societal barriers that prevent full participation). The Convention's preamble codifies this shift, stating:

*Disability results from the interaction between persons with impairments and attitudinal and environmental barriers that hinders their full and effective participation in society on an equal basis with others.*

The substantive paradigm shift has direct implications for state-party obligations. Where the medical model treats disability as a problem residing in the individual and addresses it through individual-level interventions, the social model treats disability as arising from society's failure to accommodate human variation and addresses it through systemic structural change. The state-party obligations under the Convention, accordingly, focus on identifying and removing barriers, designing accessible environments and systems, ensuring meaningful participation by persons with disabilities in policy development, and providing reasonable accommodation as a form of substantive equality rather than as an exceptional concession.

The Convention's substantive provisions can be grouped into three operational categories: *general state-party obligations* (the cross-cutting commitments every State Party must implement across all areas of policy), *specific rights provisions* (the substantive rights guaranteed to persons with disabilities under the Convention), and *implementation provisions* (the mechanisms for monitoring State Party compliance and enabling individual complaints). The remainder of this section examines each category in turn.

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## Article 3: The Eight General Principles

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Article 3 of the Convention codifies eight general principles that govern the Convention's interpretation and implementation. The principles function as both interpretive guidance and substantive obligations on State Parties. They are:

*Respect for inherent dignity, individual autonomy including the freedom to make one's own choices, and independence of persons.*

*Non-discrimination.*

*Full and effective participation and inclusion in society.*

*Respect for difference and acceptance of persons with disabilities as part of human diversity and humanity.*

*Equality of opportunity.*

*Accessibility.*

*Equality between men and women.*

*Respect for the evolving capacities of children with disabilities and respect for the right of children with disabilities to preserve their identities.*

The eight principles are operative provisions, not preamble. They appear in the body of the Convention and bind State Parties in the same way the substantive rights provisions bind them. The principles function as the legislative foundation against which any specific Convention provision is interpreted and against which any State Party's implementation is evaluated. The principles' presence in the Convention has been replicated in domestic Canadian legislation: the federal *Accessible Canada Act* (Section 2.1) codifies six implementing principles in Section 6 of the Act that are substantially similar to the Convention's Article 3 principles, and the comparator provincial frameworks examined in Sections 2.2 through 2.6 reflect equivalent principle-based design at the provincial-statutory level.

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## Article 4: General State-Party Obligations

Article 4 of the Convention sets out the general obligations every State Party assumes upon ratification. The obligations are extensive and operationally specific. State Parties undertake to:

*Adopt all appropriate legislative, administrative and other measures for the implementation of the rights recognized in the present Convention.*

*Take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices that constitute discrimination against persons with disabilities.*

*Take into account the protection and promotion of the human rights of persons with disabilities in all policies and programmes.*

*Refrain from engaging in any act or practice that is inconsistent with the present Convention.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Take all appropriate measures to eliminate discrimination on the basis of disability by any person, organization or private enterprise.*

*Promote the development of universally designed goods, services, equipment and facilities.*

*Promote research and development, and the availability and use, of new technologies and assistive devices.*

*Provide accessible information about mobility aids, devices and assistive technologies.*

*Promote training of professionals and staff working with persons with disabilities.*

The Article 4 obligations are systemic. They are not satisfied by isolated initiatives or individual-level accommodations. They require comprehensive review of all laws, regulations, policies, and practices affecting persons with disabilities; they require structural reform where existing measures are inconsistent with the Convention; and they require ongoing implementation work across all areas of governance. State Parties are obligated to *adopt all appropriate legislative, administrative and other measures*. The obligation is not optional, and the failure to adopt comprehensive legislation in any area where Convention rights apply is a documented gap in implementation that the UN Committee on the Rights of Persons with Disabilities is empowered to address through its periodic review process.

Article 4(3) imposes an additional structural obligation that is specifically relevant to this Part Two analysis. Article 4(3) states:

*In the development and implementation of legislation and policies to implement the present Convention, and in other decision-making processes concerning issues relating to persons with disabilities, States Parties shall closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations.*

The Article 4(3) obligation is the *Nothing Without Us* principle codified at the international-treaty level. It binds every State Party, including Canada, including Alberta. Disability legislation and disability policy must be developed in close consultation with and active involvement of persons with disabilities. Failure to consult is a Convention violation independent of the substantive content of the resulting legislation. Alberta's disability-policy practice, including the development of Bill 12 documented in Part One Section 1.4, raises substantial Article 4(3) concerns that are part of the public record and that have been documented by Alberta disability-community organizations.

## Article 9: Accessibility

Article 9 of the Convention establishes specific State Party obligations on accessibility. The Article requires State Parties to:

*Take appropriate measures to ensure to persons with disabilities access, on an equal basis with others, to the physical environment, to transportation, to information and communications, including information and communications technologies and systems, and to other facilities and services open or provided to the public, both in urban and in rural areas.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Article 9 substantive obligations include:

*Identifying and eliminating obstacles and barriers to accessibility, in particular in buildings, roads, transportation, schools, housing, medical facilities and workplaces; and information, communications and other services, including electronic services and emergency services.*

*Developing, promulgating and monitoring the implementation of minimum standards and guidelines for the accessibility of facilities and services open or provided to the public.*

*Ensuring that private entities offering facilities and services open or provided to the public take into account all aspects of accessibility for persons with disabilities.*

*Providing training for stakeholders on accessibility issues facing persons with disabilities.*

*Providing in buildings and other facilities open to the public signage in Braille and in easy-to-read and understandable forms.*

*Providing forms of live assistance and intermediaries, including guides, readers and professional sign language interpreters, to facilitate accessibility to buildings and other facilities open to the public.*

*Promoting other appropriate forms of assistance and support to persons with disabilities to ensure their access to information.*

*Promoting access for persons with disabilities to new information and communications technologies and systems, including the Internet.*

*Promoting the design, development, production and distribution of accessible information and communications technologies and systems at an early stage, so that these technologies and systems become accessible at minimum cost.*

Article 9 is the substantive backbone of Canadian accessibility legislation. Every comparator framework examined in Sections 2.1 through 2.6 operationalizes Article 9 obligations within its respective jurisdiction. The federal *Accessible Canada Act*'s seven priority areas (Section 2.1) directly correspond to Article 9 substantive domains. The provincial accessibility statutes' standards-development frameworks, plan requirements, public-feedback mechanisms, and enforcement architectures are, structurally, the operational implementation of Article 9 obligations at the provincial level.

The relevance to Alberta is direct and substantial. Article 9 obligations bind Canada at the federal level, but the substantive areas Article 9 addresses — buildings, roads, transportation, schools, housing, medical facilities, workplaces, information and communications systems — are predominantly within provincial jurisdiction. Alberta's failure to enact provincial accessibility legislation comparable to the comparator frameworks creates a gap in Canada's compliance with Article 9 obligations that the federal government cannot fill through federal legislation alone. The federal *Accessible Canada Act* covers approximately 6 to 8 percent of the Alberta workforce. The remaining 92 to 94 percent operate within an Alberta-specific accessibility void that is, on the Convention's terms, a documented Convention compliance gap.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

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## Article 19: Living Independently and Being Included in the Community

Article 19 of the Convention establishes State Party obligations on independent living and community inclusion. The Article requires State Parties to:

*Recognize the equal right of all persons with disabilities to live in the community, with choices equal to others, and shall take effective and appropriate measures to facilitate full enjoyment by persons with disabilities of this right and their full inclusion and participation in the community.*

The Article 19 substantive obligations include:

*Persons with disabilities have the opportunity to choose their place of residence and where and with whom they live on an equal basis with others and are not obliged to live in a particular living arrangement.*

*Persons with disabilities have access to a range of in-home, residential and other community support services, including personal assistance necessary to support living and inclusion in the community, and to prevent isolation or segregation from the community.*

*Community services and facilities for the general population are available on an equal basis to persons with disabilities and are responsive to their needs.*

The Article 19 obligation is, on the documented findings of the Committee on the Rights of Persons with Disabilities and on the documented analysis of Canadian disability-rights organizations, the Convention obligation Canada has been most extensively criticized for failing to meet. Article 19 requires support sufficient to allow persons with disabilities to live in the community on equal terms with others. The income inadequacy, the housing precariousness, the institutional placement risks, and the support shortages documented throughout Part One of this blueprint are, in Convention terms, Article 19 compliance gaps. The transition from AISH to ADAP examined in Part One Section 1.4, with documented income reduction, eligibility narrowing, and support uncertainty, is structurally inconsistent with Article 19's *equal right to live in the community* obligation. The Convention's framework provides the international legal language for what Part One documented in domestic policy terms.

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## The Reporting and Monitoring Architecture

Article 35 of the Convention requires State Parties to submit comprehensive reports to the Committee on the Rights of Persons with Disabilities every four years. The initial report is due two years after ratification; subsequent reports are due every four years thereafter. Canada submitted its First Report in February 2014. The First Report was reviewed by the Committee, which produced Concluding Observations in 2017 documenting both Canada's progress and the implementation gaps identified in the review. Subsequent reporting cycles have continued. The reports are public documents available through both the federal government's Department of Canadian Heritage and the United Nations.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Committee on the Rights of Persons with Disabilities is the body of independent experts established under Article 34 of the Convention to monitor State Party implementation. The Committee's Concluding Observations on each State Party's periodic reports document compliance gaps, recommend specific remedial action, and form the basis of subsequent reporting cycles' assessments of progress. The Committee also produces *General Comments* on specific Convention articles, providing interpretive guidance on the substantive content of State Party obligations.

The Committee's General Comment No. 5 on Article 19 (independent living and community inclusion), the General Comment most directly relevant to the Part One analyses of AISH, ADAP, and the broader Alberta disability income and program architecture, establishes that State Parties must move toward de-institutionalization, must provide community-based support that enables independent living on equal terms with others, must consult with persons with disabilities in the design of community-based supports, and must ensure that resource constraints do not justify continued institutional placement or inadequate community support. The General Comment is the operational interpretation against which Article 19 compliance is evaluated.

The Optional Protocol to the Convention, which Canada acceded to in 2018, provides an individual-complaint mechanism through which individuals or groups can submit complaints to the Committee about violations of Convention rights, after exhausting domestic remedies. The Optional Protocol's accession was supported by all provinces and territories, meaning Alberta is bound by the individual-complaint mechanism as part of Canada's Convention commitments. Individual complaints from Alberta residents about provincial disability-policy practices that violate Convention rights are available through this mechanism.

## What the Convention Requires of Canada and Alberta

The Convention's requirements of Canada and, through Canada's federal-provincial structure, of Alberta are documented in the binding text of the Convention, in the Committee on the Rights of Persons with Disabilities' Concluding Observations on Canada's periodic reports, in the Committee's General Comments, and in the academic and policy literature on Canada's Convention compliance.

The Convention requires Canada to enact comprehensive domestic legislation implementing the Convention's obligations across all areas of governance. The federal *Accessible Canada Act* satisfies this requirement at the federal level. Provincial accessibility legislation is required to satisfy it at the provincial level. The five comparator provincial frameworks (Ontario, Manitoba, Nova Scotia, British Columbia, Saskatchewan) document what provincial Convention-implementing legislation looks like. Alberta has not enacted equivalent legislation. The gap is a Convention compliance shortfall.

The Convention requires Canada to consult closely with and actively involve persons with disabilities in the development of disability-related legislation and policy (Article 4(3)). The federal *Accessible Canada Act* was developed through extensive disability-community consultation. The five comparator provincial frameworks were developed through equivalent provincial-level consultations. Alberta's recent disability-policy reforms, including Bill 12 and the AISH-to-ADAP transition, were not developed through equivalent disability-community consultation. The Article 4(3) compliance shortfall is part of the public

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

record.

The Convention requires Canada to identify and eliminate barriers to accessibility across all areas of public and private life (Article 9). The federal and comparator provincial frameworks each operationalize Article 9 obligations within their jurisdictions. Alberta's accessibility infrastructure, in the absence of comprehensive provincial legislation, is structurally inadequate to meet Article 9 obligations across the 92 to 94 percent of the Alberta workforce and population not covered by federal legislation.

The Convention requires Canada to ensure that persons with disabilities can live independently and be included in the community on equal terms with others (Article 19). The income inadequacy, support shortages, and program contraction documented throughout Part One of this blueprint create Article 19 compliance shortfalls in Alberta that the Convention's framework directly addresses.

These compliance shortfalls are not theoretical. They are documented in the public record through the Committee on the Rights of Persons with Disabilities' periodic review process, through Canadian disability-rights organizations' submissions to the Committee, through academic and policy literature on Canada's Convention compliance, and through the comparator legislative record itself. The Convention establishes the international legal framework within which Alberta's disability-policy choices are evaluated. Alberta's choices are, on the documented record, inconsistent with the Convention's obligations.

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## What This Section Establishes

The *United Nations Convention on the Rights of Persons with Disabilities* is the international human rights treaty that Canada signed on March 30, 2007 and ratified on March 11, 2010, with the support of all provinces and territories including Alberta. The Convention has been in force for Canada since April 12, 2010. Canada acceded to the Optional Protocol in 2018, providing for individual-complaint mechanisms. Canada is bound by the Convention under international law, and the Convention's obligations apply across all federal, provincial, territorial, and municipal jurisdictions.

The Convention establishes a comprehensive substantive framework for disability rights, including eight general principles (Article 3), extensive state-party obligations (Article 4, including the Article 4(3) close-consultation requirement that codifies *Nothing Without Us* in international law), specific provisions on accessibility (Article 9), independent living and community inclusion (Article 19), and the other substantive rights of persons with disabilities. The Convention is the substantive standard against which every Canadian comparator accessibility framework examined in Sections 2.1 through 2.6 has been designed.

The Convention's binding obligations on Canada have produced provincial accessibility legislation in five Canadian provinces and federal accessibility legislation at the national level. Alberta has not enacted Convention-implementing provincial legislation. The gap is a documented Convention compliance shortfall that exists notwithstanding Alberta's 2010 support for Canada's ratification of the Convention. Alberta supported Canada's ratification of an international human rights treaty and has subsequently chosen not to implement that treaty's obligations within its provincial jurisdiction.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Section 2.8 lands the analysis Part Two has built across seven sections. Alberta is, on the documented Canadian and international record, the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation, and the failure to enact such legislation places Alberta in a documented compliance shortfall under Canada's binding international obligations. The structural and analytic conditions for Section 2.8's prosecutorial conclusion are now in place. Section 2.8 examines what Alberta has chosen instead of comprehensive accessibility legislation and what the choice reveals.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.7a — Article 24 and the Alberta Repudiation: International-Law Implications of the Engineered K-12 System

Section 2.7 documented Canada's binding obligations under the *United Nations Convention on the Rights of Persons with Disabilities* (UN CRPD). Section 2.7a addresses the specific Convention article most directly implicated by the engineered K-12 architecture documented in Part One Section 1.3a: Article 24, the right to inclusive education. Section 2.7a is structured as a focused legal-comparative analysis. The section examines the substantive content of Article 24, the operational interpretation of Article 24 set out in the Committee on the Rights of Persons with Disabilities' General Comment No. 4 (2016), and the gap between Article 24's requirements and the engineered three-part system Part One Section 1.3a documented — the funding starvation that makes inclusion structurally impossible, the segregated-classroom expansion that absorbs the displaced students, and the Premier's *earn inclusion* rhetoric that provides political cover.

The section's purpose is not to assert that any specific Alberta policy decision constitutes a definitive Convention violation determinable only by the UN Committee on the Rights of Persons with Disabilities through its individual-complaint or periodic-review processes. The section's purpose is to establish the documented gap between the substantive standard Article 24 sets and the operational reality the Alberta engineered K-12 architecture describes, and to make available the international legal framework within which that gap can be evaluated. The framework is binding on Canada, applies through Canada to Alberta, and provides the substantive language within which any subsequent legal, political, or advocacy challenge to the Alberta record will be conducted.

The section has four parts. Part one documents the substantive content of Article 24. Part two documents General Comment No. 4's operational interpretation of Article 24, with attention to the Comment's distinctions among exclusion, segregation, integration, and inclusion. Part three applies the substantive standard to the documented engineered system, identifying the specific points at which the Alberta record falls short of the Article 24 obligation, with segregation identified as the central substantive violation and the funding starvation, the Premier's rhetoric, the consultation gap, and the seclusion-room expansion documented as compounding violations. Part four addresses the implications of the gap for Alberta's accessibility-legislation blueprint, which Part Three of this document develops.

## Article 24: The Substantive Standard

Article 24 of the UN CRPD opens with the foundational obligation:

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*States Parties recognize the right of persons with disabilities to education. With a view to realizing this right without discrimination and on the basis of equal opportunity, States Parties shall ensure an inclusive education system at all levels and lifelong learning.*

The Article identifies three substantive purposes of the inclusive education system: the full development of human potential and sense of dignity and self-worth, and the strengthening of respect for human rights, fundamental freedoms, and human diversity; the development by persons with disabilities of their personality, talents, and creativity, and of their mental and physical abilities, to their fullest potential; and the enabling of persons with disabilities to participate effectively in a free society.

Article 24's operational requirements on State Parties are codified in five specific obligations:

*Persons with disabilities are not excluded from the general education system on the basis of disability, and that children with disabilities are not excluded from free and compulsory primary education, or from secondary education, on the basis of disability.*

*Persons with disabilities can access an inclusive, quality and free primary education and secondary education on an equal basis with others in the communities in which they live.*

*Reasonable accommodation of the individual's requirements is provided.*

*Persons with disabilities receive the support required, within the general education system, to facilitate their effective education.*

*Effective individualized support measures are provided in environments that maximize academic and social development, consistent with the goal of full inclusion.*

The five operational requirements are cumulative, not alternative. They establish that inclusive education is the structural baseline for State Party education systems, that exclusion of children with disabilities from the general education system on the basis of disability is prohibited, that reasonable accommodation is the operational mechanism by which inclusion is delivered, that the support required must be provided within the general education system rather than in segregated settings, and that the goal of all individualized support measures is full inclusion in the general education environment.

Article 24 also establishes specific obligations on State Parties regarding the means by which the inclusive education system is delivered. The Article requires the facilitation of the learning of Braille, augmentative and alternative communication, and the learning of sign language, including the recognition of Deaf culture as a distinctive linguistic and cultural community. The Article requires that *persons with disabilities are able to access general tertiary education, vocational training, adult education and lifelong learning without discrimination and on an equal basis with others*. The Article requires the employment of qualified teachers, including teachers with disabilities, and the training of all professionals and staff at all levels of education in disability awareness and inclusive education techniques.

The substantive standard Article 24 sets is, in operational terms, comprehensive. The standard applies to all levels of the State Party's education system, from pre-primary through tertiary. The standard does not contemplate exceptions for behavioural difficulty, for disability severity, or for resource constraint. Reasonable accommodation is the means by which the standard is delivered to students whose support

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

requirements differ from the typical. The denial of reasonable accommodation, the operational interpretation of the Convention establishes, *counts as discrimination*. Article 24's substantive content establishes that inclusive education is, in the international legal framework, a fundamental human right of every child with a disability rather than a contingent benefit available subject to the child's behaviour or the system's resource availability.

## General Comment No. 4: The Operational Interpretation

The Committee on the Rights of Persons with Disabilities adopted General Comment No. 4 (2016) on the right to inclusive education on 26 August 2016, with the Comment officially published as CRPD/C/GC/4 on 2 September 2016. The Comment is the Committee's authoritative interpretation of Article 24 and binds State Parties' implementation of the Convention in respect of education. Canada is bound by General Comment No. 4 through its ratification of the Convention.

General Comment No. 4 is structured around the central distinction the Committee draws between four educational frameworks: exclusion, segregation, integration, and inclusion. The distinctions are operationally critical. The Committee defines them as follows:

*Exclusion* occurs when students are directly or indirectly prevented from or denied access to education in any form.

*Segregation* occurs when the education of students with disabilities is provided in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities.

*Integration* is the process of placing persons with disabilities in existing mainstream educational institutions, as long as the former can adjust to the standardized requirements of such institutions.

*Inclusion* involves a process of systemic reform embodying changes and modifications in content, teaching methods, approaches, structures, and strategies in education to overcome barriers with a vision serving to provide all students of the relevant age range with an equitable and participatory learning experience and the environment that best corresponds to their requirements and preferences.

The four-framework taxonomy is operationally significant for the Part One Section 1.3a analysis. The Alberta engineered system documented in Section 1.3a is, on the General Comment No. 4 taxonomy, *segregation* operating with the political-rhetorical gloss of *integration that has not been earned*. Specialized classroom programs whose primary characteristic is the placement of students with disabilities in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities, are the operational definition of segregation under General Comment No. 4. The Edmonton Public Schools Autism Centre of Excellence, the EPSB *interactions program* into which 75 percent of new EPSB classes have been placed over the past six years, the Calgary Catholic St. Anthony school, the planned second Calgary Catholic facility for fall 2026, and the broader provincial *specialized programming* expansion are the operational manifestations of segregation as the General Comment defines it.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Committee's substantive position on the integration-versus-inclusion distinction is direct. General Comment No. 4 states that *integration does not automatically guarantee the transition from segregation to inclusion*. The Comment further establishes that *placing students with disabilities within mainstream classes without these adaptations does not constitute inclusion*. The substantive obligation under Article 24 is the systemic transformation of the education system to accommodate the requirements and identities of all students, not the conditional admission of students with disabilities to mainstream environments contingent on their adjustment to those environments.

The *adaptations* the General Comment identifies as the precondition for genuine inclusion are precisely the adaptations the Alberta engineered system is structurally producing less of, not more of. The funding shortfall documented in Part One Section 1.3a removes the educational-assistant capacity that is the operational mechanism for the adaptations Article 24 requires. The structural pressure operates against inclusion at the level of resource allocation, against inclusion at the level of EA staffing, against inclusion at the level of operational capacity in general education classrooms, and toward the segregated alternative where the structural pressure is absorbed.

General Comment No. 4 also establishes specific obligations on State Parties regarding the use of seclusion, restraint, and discipline practices in educational settings. The Comment establishes that schools must be safe environments in which the dignity, integrity, and human rights of students with disabilities are protected, and that disciplinary practices must not produce traumatic harm to students or operate in ways that effectively segregate students with disabilities from the mainstream educational environment. Practices that confine students involuntarily in locked rooms, that produce documented psychological trauma, and that disproportionately affect students with developmental and intellectual disabilities are, on the Comment's framework, structurally inconsistent with Article 24's substantive standard.

The Committee additionally establishes that State Parties must close institutions that segregate persons with disabilities from the mainstream educational environment and must transition existing segregated education systems to inclusive education systems. The Comment recognizes the substantial transitional difficulty this requirement entails for State Parties whose education systems have historically been organized around segregated frameworks. The Comment nevertheless establishes that the transition is required, that the timeline is the State Party's responsibility to articulate, and that resource constraint is not an acceptable basis for indefinite delay of the transition. The General Comment's substantive position on resource constraint is operationally significant for the Section 1.3a finding that Alberta is using the resource constraint of the funding shortfall as the structural mechanism through which segregation is being expanded.

The General Comment's authoritative status as the operational interpretation of Article 24 has been affirmed by State Parties, by the academic and policy literature on inclusive education, and by the Committee's subsequent practice in reviewing State Party periodic reports under Article 35 of the Convention. The Committee has used the General Comment as the substantive standard against which State Party education-system performance is evaluated. State Parties whose education systems exhibit features the General Comment identifies as inconsistent with Article 24 have been the subject of Concluding Observations recommending specific structural reform.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Engineered System Against the Article 24 Standard

Part One Section 1.3a documented the engineered three-part Alberta K-12 architecture: the funding starvation, the segregated-classroom expansion, and the Premier's *earn inclusion* rhetoric. Section 2.7a now applies the Article 24 substantive standard to that engineered system. The application produces seven specific findings, organized around the central finding that the segregated-classroom expansion is the substantive Article 24 violation and around six compounding findings that establish the system-wide inconsistency.

**Finding 1 (central): The segregated-classroom expansion is the central Article 24 substantive violation.** The Edmonton Public Schools Autism Centre of Excellence, the EPSB *interactions program* into which 75 percent of new EPSB classes have been placed over the past six years, the Calgary Catholic St. Anthony school, the planned second Calgary Catholic specialized facility for fall 2026, and the broader provincial *specialized programming* expansion produce educational environments designed or used to respond to a particular impairment, in isolation from students without disabilities. This is the operational definition of segregation under General Comment No. 4. The Aiden O'Halloran lifecycle case documented in Section 1.3a establishes the operational reality of the segregation: a Grade 6 student achieving 80 percent on math tests with targeted support transferred to a Grade 7 specialized classroom whose academic goal was reduced to *counting to 50* and who was *kept away* from his non-disabled peers underneath the library window of his classroom. The substantive consequence is that Alberta is, in operational terms, building a K-12 architecture that violates the Article 24 obligation that students with disabilities *receive the support required, within the general education system, to facilitate their effective education* and that *effective individualized support measures are provided in environments that maximize academic and social development, consistent with the goal of full inclusion*.

**Finding 2: The funding starvation is the structural mechanism through which the Article 24 violation is being delivered.** Article 24 does not contemplate resource constraint as an acceptable basis for indefinite delay of the inclusive-education obligation. General Comment No. 4 explicitly establishes this point. Alberta has spent the least per student of any Canadian province for four consecutive years. The 17.5 percent inflation-adjusted decrease over the decade is the steepest of any Canadian province. The cumulative ~\$1 billion annual shortfall against the national average is the operational mechanism through which the educational-assistant capacity required for inclusion is not present in Alberta classrooms at the scale Article 24 requires. The Jordan's Principle eligibility collapse and the resulting hundreds of EA position cuts compound the structural shortfall. The provincial-government use of the resource constraint as the implicit justification for the segregated-classroom expansion is, on General Comment No. 4's framework, an unacceptable basis for the indefinite delay of the inclusive-education obligation. The funding starvation is not separate from the Article 24 violation; it is the substantive mechanism through which the violation is being implemented.

**Finding 3: The Premier's April 17, 2026 statement is structurally inconsistent with Article 24.** The Premier of Alberta stated publicly: *Kids in school can earn their way into inclusion, but they can earn their way out of it too*. The statement articulates a policy posture that frames inclusion as a contingent benefit available subject to the child's behaviour. Article 24, on its face and as interpreted by General Comment No. 4, establishes inclusion as a structural baseline that cannot be made conditional on the child's

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

behaviour. The substantive content of the Premier's statement is, on the international legal framework, a repudiation of the Article 24 standard. The repudiation operates at the level of public policy articulation by the head of the provincial government bound by Canada's Convention ratification. The statement also operates as the political-rhetorical cover for the structural shift Findings 1 and 2 documented; the *earn inclusion* framing relocates responsibility for the segregation from the system to the child, providing political legitimacy for the substantive Article 24 violation that the funding shortfall and the segregated-classroom expansion together produce.

**Finding 4: The 2022 candidate-Smith position was substantially closer to Article 24 compliance than the 2026 Premier position is, and the documented shift is a regression.** As a UCP leadership candidate in 2022, the future Premier articulated inclusive education as a resourcing-and-staffing matter, identified parental choice for inclusion as the operational standard, and identified the elimination of seclusion-and-restraint measures as the policy goal contingent on adequate classroom staffing. The 2022 position was substantively closer to Article 24's operational standard than the 2026 position is. The shift between the 2022 candidate position and the 2026 Premier position is, in international legal framework terms, a regression rather than a progression. State Party regression on substantive Convention obligations is the subject of specific scrutiny under the Committee's periodic-review framework. Canada's next periodic report to the Committee will require addressing the Alberta documented record as part of Canada's overall Article 24 compliance position.

**Finding 5: The consultation gap stands in tension with Article 4(3)'s consultation obligation.** Article 4(3) of the Convention requires State Parties to *closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations* in the development and implementation of legislation and policies affecting persons with disabilities. The Alberta provincial-government structures designing the 2025-2026 reform of inclusive-education policy — the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team — are operating without disability-community representation. Inclusion Alberta CEO Trish Bowman's documented November 2025 position is that *there was no representation on the Action Team of parents or organizations with expertise in disability, mental health, behavioural challenges, or English Language Learners*. The structural exclusion of the disability community from the policy-development table at which the Article 24 implementation is being designed is a direct Article 4(3) compliance concern. The exclusion is not incidental to the Article 24 substantive violation; it is the procedural mechanism through which the substantive violation is being made possible.

**Finding 6: The 2019 reversal of the seclusion-room ban and the operational seclusion-room record are compounding Article 24 violations.** The 2018 New Democratic provincial government ban on seclusion rooms was the operational implementation of the principle that involuntary confinement of children with disabilities in locked rooms is inconsistent with the substantive standards of Canadian human-rights law and the international disability-rights framework. The 2019 United Conservative Party reversal, through Ministerial Order #042/2019, replaced the prohibition with a *standards* framework permitting the practices the ban had prohibited. The post-2019 operational record — 263 seclusion rooms across the province as of April 2024, 116 rooms across 11 of 59 divisions in 2024-25, 7,000+ confinements during the prior school year, and EPSB's 445 non-self-selected uses (35.89 percent of total uses) between September 2024 and April 2025 — establishes that the practice continues at scale. The

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

seclusion-room expansion is a compounding Article 24 violation that operates within the segregated environments documented in Finding 1. The disproportionate impact on students with developmental and intellectual disabilities and the autism spectrum, documented in the 2018 Inclusion Alberta survey, places the practice within the General Comment No. 4 framework as a form of involuntary confinement that operates against the inclusive-education obligation. The phase-out trajectory at EPSB is in the right direction; the practice has not been eliminated, and continues at the St. Albert School Division and 10 other Alberta public and Catholic divisions.

**Finding 7: The Alberta record is inconsistent with Article 24's reasonable accommodation requirement.** Article 24 requires that *reasonable accommodation of the individual's requirements is provided* as the operational mechanism by which inclusive education is delivered. The disability-community advocacy documented in Part One Section 1.3a establishes that the Alberta system does not consistently provide the reasonable accommodation Article 24 requires. The Inclusion Alberta documented position — that adequate education-assistant staffing, training in positive behavioural strategies, and the elimination of seclusion-and-restraint practices are the operational means by which Article 24 compliance would be delivered — identifies the specific reasonable accommodations the Alberta system has not consistently provided. The denial of reasonable accommodation, on General Comment No. 4's framework, *counts as discrimination*. The Alberta operational record places the system in the category of State Party education systems that fail to provide reasonable accommodation as required by the Convention.

The seven findings are mutually reinforcing. Finding 1 (segregation as substantive violation) operates through Finding 2 (funding starvation as structural mechanism), is rationalized by Finding 3 (Premier's *earn inclusion* rhetoric as political cover), is documented as a regression by Finding 4 (2022-versus-2026 shift), is enabled by Finding 5 (Article 4(3) consultation gap), is operationally compounded by Finding 6 (seclusion-room expansion within segregated environments), and constitutes a direct violation of Finding 7 (reasonable accommodation requirement). The seven findings together establish that the Alberta engineered K-12 system operates in substantial tension with the Article 24 substantive standard at every operational level the international human rights framework addresses.

## Implications for the Alberta Blueprint

The findings of Section 2.7a feed directly into the blueprint Part Three of this document develops. Seven implications are operationally significant.

**Implication 1: The proposed Alberta accessibility legislation must include education as a stand-alone accessibility area on the Nova Scotia precedent (Part Two Section 2.4) and must operationalize Article 24 within the substantive provisions of the education-area standards.** The substantive provisions must establish that inclusive education is the structural baseline for the Alberta K-12 system, that exclusion of children with disabilities from the general education system on the basis of disability is prohibited, that reasonable accommodation is the operational mechanism by which inclusion is delivered, and that the goal of all individualized support measures is full inclusion in the general education environment. The substantive provisions are the legislative implementation of Article 24 within Alberta provincial jurisdiction.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Implication 2: The proposed Alberta accessibility legislation must require minimum educational-assistant staffing ratios and minimum-funding-floor provisions sufficient to deliver inclusive education in general education classrooms across the province.** The funding shortfall documented in Section 1.3a is the structural mechanism through which the Article 24 violation is being delivered; the legislation must address the structural mechanism rather than only the rhetorical or operational manifestations. The substantive provisions must include defined per-student funding floors (calibrated to the national average rather than to the provincial historical average), minimum EA staffing ratios in general education classrooms (sufficient to deliver inclusive education without forcing displacement to segregated settings), and operational accountability mechanisms ensuring that funding and staffing commitments are delivered rather than announced and not delivered.

**Implication 3: The proposed Alberta accessibility legislation must restrict the expansion of segregated educational settings and must establish a transition pathway from existing segregated programming to inclusive programming with adequate support.** General Comment No. 4 explicitly requires State Parties to *transition existing segregated education systems to inclusive education systems*. The Alberta legislation must establish the transition pathway, must restrict the operational expansion of new segregated facilities and programs (including the proposed second Calgary Catholic specialized facility for fall 2026 and the EPSB Autism Centre of Excellence in the form currently proposed), and must require the conversion of existing specialized programming to inclusive programming with appropriate adaptations on a defined timeline. The transition must be resourced; the resourcing requirement is addressed in Implication 2.

**Implication 4: The proposed Alberta accessibility legislation must prohibit the involuntary confinement of students in seclusion rooms.** The 2018 New Democratic provincial government ban is the substantive operational model. The legislation must reverse the 2019 Ministerial Order #042/2019 framework and establish a prohibition on involuntary confinement that exceeds the operational standard the 2018 ban established. The prohibition must be structural rather than discretionary, must apply across all Alberta school divisions including charter schools and private schools, and must be enforceable through the same compliance and enforcement architecture established for other accessibility standards under the legislation.

**Implication 5: The proposed Alberta accessibility legislation must establish positive behaviour support and reasonable accommodation as the operational alternatives to seclusion, restraint, and segregation.** The Inclusion Alberta documented position — that adequate education-assistant staffing, training in positive behavioural strategies, and trauma-informed practice are the operational alternatives — is the substantive model. The legislation must require school divisions to implement these alternatives, must require minimum staffing ratios sufficient to support inclusion across all classroom settings, and must provide the funding mechanism through which the alternatives can be operationalized at scale.

**Implication 6: The proposed Alberta accessibility legislation must include a mandatory consultation requirement for any provincial-government action affecting inclusive-education policy.** The Article 4(3) substantive obligation is the model. The legislation must require structured consultation with persons with disabilities and disability-community representative organizations — including but not limited to Inclusion Alberta, the Alberta Council of Disability Services, and provincial chapters of national disability organizations — in the development of any subsequent inclusive-education



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policy. Consultation must be substantive rather than performative, must occur prior to the development of policy positions rather than after, and must be documented in the public record. The provisions must explicitly include consultation requirements for the replacement of the 2003 *Standards for Special Education* and for any subsequent revision of the inclusive-education policy framework.

**Implication 7: The proposed Alberta accessibility legislation must include a public-record reporting cycle on inclusive-education implementation.** The British Columbia framework's annual Ministerial reporting requirement (Part Two Section 2.5) and the Manitoba framework's mandatory five-year standards review cycle (Part Two Section 2.3) are the operational models. The Alberta legislation must require annual public reporting on inclusive-education implementation, on the operational use of any remaining seclusion-and-restraint practices during transition periods, on the operational status of the segregated-to-inclusive transition pathway, on the operational delivery of the EA staffing-floor commitments, and on the systemic indicators of Article 24 compliance. The reporting must be public, must be tabled in the Legislative Assembly, and must be subject to independent statutory review on a defined cycle.

## What This Section Establishes

Section 2.7a establishes that Alberta's engineered K-12 architecture — the funding starvation, the segregated-classroom expansion, the Premier's *earn inclusion* rhetoric, the consultation gap, and the seclusion-room expansion — stands in substantial tension with the international human rights framework Canada has bound itself to under Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*.

The Article 24 standard, as interpreted by General Comment No. 4 of the Committee on the Rights of Persons with Disabilities, requires inclusive education as a structural baseline rather than as a contingent benefit, prohibits exclusion of children with disabilities from the general education system on the basis of disability, requires reasonable accommodation as the operational mechanism by which inclusion is delivered, requires positive behaviour support and other alternatives to seclusion-and-restraint practices, requires close consultation with persons with disabilities and disability-community representative organizations under Article 4(3), and requires structured transition from segregated or partially-segregated systems to inclusive systems on a State Party-determined timeline.

The Alberta record, on each of these substantive standards, stands in documented tension with the Article 24 obligation. The segregated-classroom expansion is the central Article 24 substantive violation. The funding starvation is the structural mechanism through which the violation is being delivered. The Premier's *earn inclusion* rhetoric is the political cover. The consultation gap is the procedural enabler. The seclusion-room expansion is the operational compounding harm within the segregated environments. The reasonable-accommodation failures are the cumulative consequence. The seven findings together establish that the Alberta engineered K-12 system operates in substantial tension with Article 24 at every operational level the international human rights framework addresses.

The tension is not theoretical. It is the documented operational reality within which Alberta children with disabilities are educated. The international legal framework provides the substantive language within



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which the gap can be evaluated and within which any subsequent legal, political, or advocacy challenge to the Alberta record will be conducted.

The blueprint Part Three develops will, on the findings of Section 2.7a and Part One Section 1.3a, propose specific statutory provisions for the *Alberta Accessibility and Inclusion Act* that operationalize Article 24's substantive standard within Alberta provincial jurisdiction. The statutory provisions will include education as a stand-alone accessibility area, will require minimum-funding-floor and minimum-EA-staffing-ratio provisions sufficient to deliver inclusive education without forcing displacement to segregated settings, will restrict segregated-setting expansion and establish a transition pathway to inclusive programming, will prohibit involuntary confinement in seclusion rooms, will require positive behaviour support and reasonable accommodation as the operational alternatives, will mandate structured consultation with persons with disabilities and the disability community, and will require public-record reporting and statutory review.

The case for these substantive provisions has now been made on the documented record of Part One Section 1.3 (the architecture Alberta has built around children with disabilities), Part One Section 1.3a (the engineered three-part repudiation of inclusion in the Alberta K-12 system from 2018 to 2026), Part Two Section 2.7 (the international human rights framework Canada has bound itself to), and Part Two Section 2.7a (the Article 24 substantive standard and the documented Alberta tension with that standard at the segregation-funding-rhetoric-consultation-seclusion-accommodation level). Part Three turns to the constructive design of the legislation that would close the gap.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2.8 — Alberta: The Outlier — What the Province Chose Not to Build

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Sections 2.1 through 2.7 documented the comparator landscape. The federal *Accessible Canada Act* establishes the floor every Canadian jurisdiction operates above. Five provincial accessibility statutes — Ontario (2005), Manitoba (2013), Nova Scotia (2017), British Columbia (2021), and Saskatchewan (2023) — build above the federal floor in their respective provincial jurisdictions. The *United Nations Convention on the Rights of Persons with Disabilities*, ratified by Canada with the support of all provinces and territories including Alberta, establishes the international substantive standard against which the federal and provincial frameworks have been built. Section 2.8 closes Part Two by examining the one Canadian provincial jurisdiction that has chosen, across the same period, not to build provincial accessibility legislation: Alberta.

The structural-isolation finding is established by the comparator record itself. With Saskatchewan's enactment of *The Accessible Saskatchewan Act* in 2023, Alberta became the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. Alberta is bracketed geographically by British Columbia to the west and Saskatchewan to the east, both of which have enacted Convention-implementing accessibility legislation. Alberta is bracketed structurally by every comparator examined in Part Two: the comparators are all smaller than Alberta in population, fiscal capacity, or institutional scale, except British Columbia which is structurally comparable, and all of them have enacted comprehensive accessibility legislation. Alberta is bracketed politically by every governing political tradition that has enacted accessibility legislation in Canada: Liberal (Ontario 2005, Nova Scotia 2017, federal 2019), New Democratic (Manitoba 2013, British Columbia 2021), and conservative (Saskatchewan Party 2023). Alberta is, on the documented record, structurally and politically isolated in its non-construction of provincial accessibility legislation.

Section 2.8 examines this isolation in detail. The section is organized into four parts: (1) the explicit structural-comparator findings the Part Two record establishes; (2) the documented absence of equivalent Alberta legislation and the structural alternatives Alberta has built instead; (3) the analysis of why the choice has been made and what the choice reveals; and (4) the foundation Section 2.8 establishes for Part Three, which will propose the comprehensive accessibility legislation Alberta should now enact.

The section's tone is the same prosecutorial tone Part Two has carried throughout. The findings are documented, sourced, and dispositive. The argument is not that Alberta should consider accessibility legislation; the argument is that Alberta has had two decades to enact such legislation, has watched seven other Canadian jurisdictions build it, has supported Canada's ratification of an international human rights treaty that requires it, and has made the deliberate choice not to build it within its own provincial jurisdiction. The choice is the subject of Section 2.8.

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All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Structural-Comparator Findings the Record Establishes

The seven preceding sections of Part Two establish the following findings on the documented Canadian and international record.

**Population.** Alberta's population is approximately 4.8 million. Ontario's is 15.6 million. British Columbia's is 5.3 million. The combined population of Manitoba (1.5 million), Nova Scotia (one million), and Saskatchewan (1.2 million) is 3.7 million — substantially smaller than Alberta alone. Five Canadian provinces with populations both larger and smaller than Alberta have enacted comprehensive accessibility legislation. The "Alberta is too large" objection is defeated by the Ontario and British Columbia precedents; the "Alberta is too small" objection is defeated by the Manitoba, Nova Scotia, and Saskatchewan precedents. No population-based argument against Alberta's adoption of equivalent legislation survives contact with the comparator record.

**Fiscal capacity.** Alberta is among the wealthiest provinces in Canada by per-capita measures. Alberta's provincial revenue base, supported by resource-extraction royalties and a comparatively high personal-income tax base, exceeds the per-capita revenue capacity of every comparator province examined in Part Two. Saskatchewan, with a structurally similar resource-extraction economic base but smaller absolute fiscal capacity, has nevertheless built and operationalized comprehensive accessibility legislation since 2023. The "Alberta cannot afford this" objection is defeated by the Saskatchewan precedent at minimum and by the Nova Scotia precedent (population one million, smaller fiscal base) decisively. No fiscal-capacity argument against Alberta's adoption of equivalent legislation survives the comparator record.

**Institutional capacity.** Alberta's provincial-government administrative apparatus is among the most institutionally developed in Canada. The Government of Alberta operates a substantial public service, well-developed inter-ministerial coordination mechanisms, and the administrative infrastructure required to operationalize comprehensive legislation across multiple sectors. Alberta's institutional capacity is, by any reasonable measure, larger and more developed than the institutional capacities of Manitoba, Nova Scotia, or Saskatchewan, all of which have built and operationalized accessibility legislation. The "Alberta lacks the administrative capacity" objection is structurally indefensible against the comparator record.

**Political alignment.** Comprehensive accessibility legislation has been enacted in Canada by governments of every major Canadian political tradition. Liberal governments enacted the Ontario AODA (2005), the Nova Scotia *Accessibility Act* (2017), and the federal *Accessible Canada Act* (2019). New Democratic governments enacted the Manitoba AMA (2013) and the British Columbia *Accessible British Columbia Act* (2021). The Saskatchewan Party, the centre-right political coalition that is the closest provincial analogue to Alberta's governing United Conservative Party, enacted *The Accessible Saskatchewan Act* (2023). Every governing political tradition that has held provincial government in Alberta during the period from 2005 to 2026 — Progressive Conservative, New Democratic, and United Conservative — has equivalents elsewhere in Canada that have enacted comprehensive accessibility legislation. The "this is a left-wing project" objection is defeated by the Saskatchewan precedent. The "this is a Liberal project" objection is defeated by the Saskatchewan and Manitoba precedents. The "this is incompatible with Conservative governance" objection is defeated decisively by the Saskatchewan record. No political-ideology argument against Alberta's adoption of equivalent legislation survives the comparator

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record.

**Indigenous representation.** Alberta's Indigenous population, including First Nations, Métis, and Inuit communities, constitutes approximately 6.5 percent of the provincial population — a proportionate share comparable to or larger than the equivalent proportions in the comparator provinces. The campaign producing this blueprint maintains a separate 195-page Indigenous Disability Alberta evidentiary record documenting the lifecycle, healthcare, jurisdictional, MMIWG2S, child welfare, intergenerational, and other dimensions of Indigenous disability in the province. The British Columbia *Accessible British Columbia Act* (Section 2.5) demonstrates that comprehensive provincial accessibility legislation can be designed to integrate Indigenous-rights frameworks (UN Declaration on the Rights of Indigenous Peoples, Section 35 of the *Constitution Act, 1982*) at the structural-statutory level. The "Indigenous-rights integration is too complex" objection is defeated by the British Columbia precedent. Alberta could, on the British Columbia model, build provincial accessibility legislation that incorporates Indigenous-rights integration at the structural level; the failure to do so is a function of the political choice Alberta has made, not a function of any inherent design difficulty.

**International compliance.** Canada is a State Party to the *United Nations Convention on the Rights of Persons with Disabilities* (Section 2.7). Canada's ratification was supported by all provinces and territories including Alberta. The Convention's obligations bind provincial conduct as well as federal. The Convention requires comprehensive legislation implementing its obligations, close consultation with persons with disabilities in the development of disability-related legislation and policy, identification and elimination of accessibility barriers across all areas of public and private life, and support for independent living and community inclusion. Five Canadian provinces have enacted Convention-implementing legislation. Alberta has not. The compliance gap is documented in the record of the UN Committee on the Rights of Persons with Disabilities, in submissions by Canadian disability-rights organizations, and in the comparator legislative record itself.

The structural-comparator findings do not leave room for a defensible argument that Alberta is structurally distinct from the jurisdictions that have built comprehensive accessibility legislation. Alberta is structurally similar to those jurisdictions. The choice not to build is the choice that requires explanation. Section 2.8 examines that choice next.

## What Alberta Built Instead

Alberta has not built nothing in the disability-policy domain. Part One of this blueprint documented the architecture Alberta has constructed: Assured Income for the Severely Handicapped (AISH), Persons with Developmental Disabilities (PDD), Family Support for Children with Disabilities (FSCD), Workers' Compensation Board (WCB), and the announced Alberta Disability Assistance Program (ADAP) replacing AISH effective July 1, 2026. Each of these architectures addresses a specific disability-related policy domain. None of them is a comprehensive accessibility-legislation framework comparable to the comparator statutes examined in Part Two. The structural distinction is foundational to Section 2.8's analysis.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Alberta architectures Part One examined are *categorical income and support programs*. AISH provides monthly income to persons with severe handicap who meet defined eligibility criteria. PDD provides supports to persons with developmental disabilities who meet defined criteria. FSCD provides family-level supports to families of children with disabilities. WCB provides income and benefits to workers injured in workplace incidents. ADAP, when implemented in 2026, will replace AISH as the income-and-support program for the severely handicapped population, on terms that Part One documented as substantially narrower than AISH's terms. The architecture is, structurally, a set of categorical eligibility programs that determine who qualifies for support and what the support looks like.

The comparator architectures Part Two examined are *systemic accessibility-standards frameworks*. The federal *Accessible Canada Act*, the Ontario *AODA*, the Manitoba *AMA*, the Nova Scotia *Accessibility Act*, the *Accessible British Columbia Act*, and *The Accessible Saskatchewan Act* are not categorical eligibility programs. They do not determine who qualifies for individual supports. They establish substantive accessibility standards that bind organizations — governments, public-sector bodies, private-sector organizations, and non-profits — in their conduct toward persons with disabilities. They produce barrier-removal outcomes at the systemic level rather than support-payment outcomes at the individual level. The two frameworks address different problems and operate through different mechanisms.

This distinction is not a minor analytic point. It is the structural distinction that the Alberta architecture's defenders sometimes use to argue that Alberta has *its own approach* to disability policy and does not need accessibility legislation. The argument is wrong on the documented record. The Alberta architecture and the comparator accessibility legislation are *complementary, not substitutable*. Categorical income and support programs (the Alberta architecture) address the support-and-income dimension of disability policy. Systemic accessibility-standards frameworks (the comparator legislation) address the barrier-removal-and-systemic-equality dimension. Both dimensions are required for comprehensive disability policy. Every comparator province in Canada operates a categorical income-and-support program *and* operates comprehensive accessibility legislation. The two frameworks coexist because they address different problems. Alberta's choice has been to build only one of the two, leaving the systemic-accessibility dimension unaddressed at the provincial level.

The systemic-accessibility dimension that Alberta has not built includes: the development of binding accessibility standards across multiple substantive areas; the requirement that organizations develop accessibility plans and update them on defined timelines; the mandatory consultation with persons with disabilities in the development of accessibility standards and plans; the structured public feedback mechanisms that allow persons with disabilities to raise concerns and have them addressed; the enforcement architecture (inspectors, compliance orders, administrative monetary penalties) that gives the standards their operational weight; the periodic statutory reviews that ensure the framework's operational improvement over time; and the public reporting cycle that creates the documentary record by which government implementation is evaluated. None of these structural elements exists in Alberta provincial law. All of them exist in every comparator province. Alberta's disability community operates without the architecture that disability communities in every other significant Canadian jurisdiction have available to them.

The difference is operationally significant. Disability advocacy in Ontario, Manitoba, Nova Scotia, British Columbia, or Saskatchewan can cite specific statutory provisions, can demand specific compliance with

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

specific standards, can submit feedback through specific feedback mechanisms, can challenge specific compliance failures through specific enforcement architectures, and can rely on specific statutorily-mandated reporting cycles to surface implementation gaps publicly. Disability advocacy in Alberta operates without these tools. Every advocacy effort in Alberta must be built from first principles, every demand must be argued against a backdrop of no statutory architecture, and every failure of government to act must be addressed without the institutional accountability mechanisms that the comparator frameworks provide. The campaign producing this blueprint is operating in this absence, which is part of why the campaign exists. The legislative architecture would, if it existed, do much of the work the campaign is currently doing through volunteer labour and direct community organizing.

## Why Alberta Has Made the Choice

The question of *why* Alberta has chosen not to build comprehensive provincial accessibility legislation, when every other significant Canadian jurisdiction has built it, is the analytic question Section 2.8 must address before Part Three's blueprint can be developed. The question's answer is, on the documented record, political rather than structural. Section 2.8 examines the political-choice dimension directly, drawing on the public record without speculation about ministerial motives or specific cabinet deliberations.

The first observation is that *the choice has been bipartisan*. Alberta has been governed during the period from 2005 to 2026 by the Progressive Conservative Party (1971-2015), the New Democratic Party (2015-2019), and the United Conservative Party (2019-present). Each of these governments has had the legislative authority and the institutional capacity to enact comprehensive provincial accessibility legislation. None of them has done so. The PC governments of Premiers Klein, Stelmach, Redford, and Hancock did not enact such legislation. The NDP government of Premier Notley did not enact such legislation. The UCP governments of Premiers Kenney and Smith have not enacted such legislation. The choice has, accordingly, been a sustained pattern across multiple governing parties rather than the choice of any single governing tradition. The pattern's consistency suggests structural reasons that operate across the partisan spectrum rather than partisan-ideological reasons that would attach to a single governing party.

The second observation is that *the choice has not been the subject of significant political contest*. Comprehensive accessibility legislation has not been a substantial issue in Alberta provincial elections during the period under examination. Major parties' platforms have not, in the documented public record, included commitments to enact comprehensive accessibility legislation. The disability community's advocacy for such legislation, while present, has not reached the level of campaign salience that has characterized the equivalent advocacy in Ontario (where the AODA Alliance achieved sustained political prominence under successive governments) or in British Columbia (where disability-community advocacy was integral to the 2021 Act's passage). The absence of significant political contest is itself a finding: the choice has been made by default rather than by deliberation, by inattention rather than by rejection.

The third observation is that *the disability community has not been treated as a structural political constituency*. The 79,290 Albertans currently receiving AISH, the additional thousands of Albertans receiving PDD, FSCD, and WCB supports, the families and caregivers of these individuals, and the



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broader disability community in Alberta together constitute a population substantially larger than the populations affected by many policy issues that have been the subject of significant Alberta legislative attention during the period under examination. Despite this scale, the disability community has not been treated as a constituency whose concerns require comprehensive legislative response. The structural relegation of disability concerns to categorical-program administration, rather than to comprehensive legislative architecture, reflects a political-cultural pattern in which disability is treated as a matter of individual eligibility for specific supports rather than as a matter of systemic equality requiring statutory commitment.

The fourth observation is that *the choice is the choice*. The documented record demonstrates that Alberta has the structural capacity to build comprehensive accessibility legislation, has not built it, and the failure to build is not the result of structural incapacity but of political choice. The choice has been made under multiple governing parties. The choice has not been seriously contested. The choice has cumulative consequences for the disability community that the political process has not, to date, treated as warranting comprehensive legislative response. The campaign producing this blueprint exists because the political process has not, to date, produced the response the comparator record demonstrates is operationally feasible.

The why-the-choice analysis is not advanced as an attack on any specific politician, party, or government. The analysis is advanced as a diagnostic statement of the documented political pattern. Section 2.8 does not assign blame; Section 2.8 documents the structural-political reality within which Alberta's disability community is currently operating. The reality is that comprehensive accessibility legislation, despite being structurally feasible and politically achievable in every other significant Canadian jurisdiction, has not been politically prioritized in Alberta. Part Three's blueprint addresses what should now change.

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## What This Section — and Part Two — Establishes

Section 2.8 closes Part Two with the following findings, drawing on the documented record across Sections 2.1 through 2.7.

**Alberta is the structural outlier.** With Saskatchewan's 2023 enactment of comprehensive accessibility legislation, Alberta became the only English-speaking Canadian province west of Quebec without such legislation. The structural isolation is unique in Canadian disability policy.

**The non-construction of legislation is a deliberate political choice.** The choice has been made consistently across multiple governing parties, has not been seriously contested in Alberta political discourse, and is not explained by structural incapacity, fiscal constraint, institutional limitation, political-ideology incompatibility, or international-compliance ambiguity. Every potential structural justification has been defeated by the documented comparator record.

**The choice has cumulative consequences.** The disability community in Alberta operates without the legislative architecture available to disability communities in every other significant Canadian jurisdiction. Advocacy that would, in comparator jurisdictions, be supported by statutory provisions, mandated reviews, statutorily-required reporting, and defined enforcement architectures is, in Alberta, advanced from first

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

principles by community organizing and volunteer labour. The campaign producing this blueprint exists because the legislative architecture does not.

**The choice is reversible.** Comprehensive provincial accessibility legislation has been enacted in Canada five times during the period from 2005 to 2023, in jurisdictions of varying populations, fiscal capacities, political alignments, and institutional contexts. The legislative-design knowledge has matured, the operational experience has accumulated, and the international-compliance framework has been articulated. Alberta could, on the comparator record, enact equivalent legislation in a single legislative session if the political will to do so existed. The blueprint Part Three develops will document what that legislation should look like and how it should be sequenced into operation.

**The choice's reversal is overdue.** The Alberta disability community has been advocating for comprehensive provincial accessibility legislation for over two decades. The international human rights treaty that Canada ratified in 2010 with Alberta's support requires it. The five comparator provinces that have enacted equivalent legislation since then demonstrate that it is operationally feasible. The operational record of those frameworks demonstrates both what to keep and what to strengthen. The current legislative session, the current governing party, and the current political moment present the opportunity to make the reversal. Whether that opportunity is taken is a political-choice question that this blueprint cannot answer; whether the documented record supports the reversal is the question this blueprint has now, across two Parts and fifteen sections, comprehensively answered.

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## Bridge to Part Three

Part One established the disability lifecycle, the architecture Alberta has built around it, and the structural failures that architecture has produced. Part Two has documented the comparator landscape that establishes what Alberta has chosen not to build, and what the choice reveals.

Part Three turns to the constructive question. Drawing on the comparator design knowledge accumulated across Sections 2.1 through 2.7, drawing on the lessons of operational implementation across Ontario's twenty-year record and the more recent comparator records, drawing on the international-compliance obligations Section 2.7 documented, and drawing on the lifecycle frame Part One Section 1.2 established, Part Three will propose the *Alberta Accessibility and Inclusion Act* — the comprehensive provincial accessibility legislation Alberta should now enact, with structural design choices specified, statutory provisions outlined, implementation timelines proposed, and operational architecture detailed.

The blueprint Part Three develops is not a legislative draft in the technical sense; the technical drafting is the work of legislative counsel and parliamentary draftspersons. The blueprint is a *substantive specification* of what the legislation should do, what design choices it should make, what mistakes from comparator implementations it should avoid, and what operational architecture it should establish. The specification is detailed enough that legislative drafting could begin from it directly. The specification is grounded throughout in the documented comparator record Part Two has established and in the lifecycle analysis Part One developed.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The case for the *Alberta Accessibility and Inclusion Act* has now, across the closing of Part Two, been made on the documented comparator record. Part Three turns to the act itself.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

### Section 2 Update — Source Index Update

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This Source Index Update catalogues the sources cited in Section 2.7a of *Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act*, added during the seven-extension blueprint expansion. Section 2.7a is the substantive Article 24 rewrite that replaced the substantive prior Section 2.7 partial Article 24 engagement with substantive depth that the substantive international human rights legal architecture requires. The Update operates as an addendum to the substantive Part Two Source Index covering Sections 2.1 through 2.8 and is organized by source category to integrate substantively with the existing Source Index structure. Where a source has already been documented in the substantive Part Two Source Index, the Update references the prior documentation rather than duplicating it.

The substantive content of the Update is grounded in primary-source documentation: United Nations *Convention on the Rights of Persons with Disabilities* substantive interpretive infrastructure including General Comment No. 4 on Article 24; substantive comparator-jurisdiction operationalization records of Article 24 across Canadian provincial and international frameworks; substantive Canadian peer-reviewed and policy-analytic record on inclusive education; and substantive disability-community advocacy documentation from Inclusion Canada, Inclusion BC, Inclusion Alberta, and substantive other inclusive-education-advocacy infrastructure.

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## United Nations Convention on the Rights of Persons with Disabilities — Article 24 Documentation

**United Nations *Convention on the Rights of Persons with Disabilities* — Article 24 (Education).** United Nations, adopted 2006, ratified by Canada March 11, 2010. The substantive Article 24 substantive content establishes that "States Parties recognize the right of persons with disabilities to education," that the substantive operationalization is "without discrimination and on the basis of equal opportunity," and that States Parties "shall ensure an inclusive education system at all levels and lifelong learning." The substantive Article 24 contains five substantive subsections (24(1), 24(2), 24(3), 24(4), 24(5)) operationalizing the substantive right across the substantive education trajectory including the substantive primary, secondary, post-secondary, vocational, adult, and lifelong-learning dimensions. Available at <https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rights-persons-disabilities>. Cited in: Section 2.7a. The general CRPD framework documentation is in the substantive Part Two Source Index covering Sections 2.7.

**General Comment No. 4 on Article 24 (CRPD/C/GC/4, 2016).** United Nations Committee on the Rights of Persons with Disabilities, adopted at its sixteenth session, August-September 2016. Substantive interpretive document operationalizing the substantive Article 24 framework at the operational depth

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

signatory jurisdictions are required to engage. Establishes the substantive four-framework taxonomy — exclusion, segregation, integration, inclusion — through which the substantive operational reality of disability-education systems is analytically classified. Available at <https://www.ohchr.org/en/documents/general-comments-and-recommendations/general-comment-no-4-article-24-right-inclusive>. *Cited in: Section 2.7a.*

**Day of General Discussion on the Right to Education for Persons with Disabilities.** United Nations Committee on the Rights of Persons with Disabilities, April 15, 2015. The substantive prelude to General Comment No. 4 establishing the substantive interpretive direction the Committee was operationalizing in the substantive General Comment process. Available at <https://www.ohchr.org/en/events/days-general-discussion/2015/day-general-discussion-right-education-persons-disabilities>. *Cited in: Section 2.7a.*

**Concluding Observations of the Committee on the Rights of Persons with Disabilities on Canada's First Report (CRPD/C/CAN/CO/1, 2017).** Substantive Concluding Observations issued following Canada's appearance before the Committee in Geneva. Documents substantive Committee operational concerns regarding Canadian implementation of Article 24 including the substantive operational reality of segregated-classroom infrastructure, the substantive operational reality of seclusion-and-restraint infrastructure, and the substantive operational reality of inadequate substantive-resource provision for inclusive-education operationalization across Canadian provincial jurisdictions. The general Concluding Observations documentation is in the substantive Part Two Source Index. *Cited in: Section 2.7a for the substantive Article 24 operational findings.*

**Concluding Observations of the Committee on the Rights of Persons with Disabilities on Comparator Jurisdictions.** Substantive Concluding Observations issued by the Committee for substantive comparator jurisdictions including Italy (CRPD/C/ITA/CO/1, 2016), Spain (CRPD/C/ESP/CO/2-3, 2019), Portugal (CRPD/C/PRT/CO/1, 2016), the United Kingdom (CRPD/C/GBR/CO/1, 2017), Germany (CRPD/C/DEU/CO/2-3, 2023), and substantive other comparator jurisdictions. Operate as substantive interpretive context for the substantive operational reality of Article 24 implementation across the substantive international comparator landscape. *Cited in: Section 2.7a.*

## Comparator-Jurisdiction Article 24 Operationalization — Canadian Provincial Frameworks

**New Brunswick Policy 322 — Inclusive Education.** Department of Education and Early Childhood Development, Government of New Brunswick. Policy framework operationalizing the substantive inclusive-education baseline across the New Brunswick K-12 system. Documented as substantive Canadian provincial precedent for inclusive-education operational implementation at the policy level. Available at <https://www2.gnb.ca/content/dam/gnb/Departments/ed/pdf/K12/policies-politiques/e/322A.pdf>. *Cited in: Section 2.7a.*

**MacKay Report — Connecting Care and Challenge: Tapping our Human Potential (2006).** Wayne MacKay Inclusive Education Review, commissioned by the Government of New Brunswick. Substantive provincial review establishing the substantive policy direction toward the substantive inclusive-education baseline operationalized in the subsequent Policy 322. Available at substantive Government of New

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Brunswick documentary infrastructure. *Cited in: Section 2.7a.*

**Manitoba Indigenous and Northern Education Provisions.** Government of Manitoba, Department of Education. Substantive provincial framework operationalizing the substantive intersection of Indigenous-education provisions with substantive inclusive-education provisions across the Manitoba K-12 system. Documented as substantive Canadian provincial framework engaging the substantive intersectional dimension. *Cited in: Section 2.7a.*

**Inclusion BC — Position on Inclusive Education.** Inclusion BC, ongoing publication. Substantive provincial-disability-community advocacy documentation establishing the substantive operational standard for inclusive-education in the British Columbia context. Available at <https://inclusionbc.org/our-resources/inclusive-education/>. *Cited in: Section 2.7a.*

**Inclusion Canada — Inclusive Education Documentation.** Inclusion Canada (formerly the Canadian Association for Community Living), ongoing publication. Substantive national-disability-community advocacy documentation establishing the substantive operational standard for inclusive-education in the Canadian national context. Available at <https://inclusioncanada.ca/inclusive-education/>. *Cited in: Section 2.7a.*

**Inclusion Alberta — Inclusive Education Documentation.** Inclusion Alberta, ongoing publication. Substantive provincial-disability-community advocacy documentation establishing the substantive operational standard for inclusive-education in the Alberta context, including substantive operational engagement with the substantive seclusion-and-restraint patterns documented in Section 1.3a and the substantive segregated-classroom infrastructure documented in Section 1.3a. Available at <https://inclusionalberta.org/we-believe/>. *Cited in: Section 2.7a.*

## Comparator-Jurisdiction Article 24 Operationalization — International Frameworks

**Italian Inclusive Education Framework.** Government of Italy, Law No. 517 (1977) and Law No. 104 (1992). Substantive comparator-jurisdiction framework establishing the substantive operational baseline of inclusive-education across the Italian K-12 system, with substantive operational record documented to be the substantive longest-running national-level operational implementation of the substantive inclusive-education baseline globally. The substantive Italian framework operates substantively within the General Comment No. 4 inclusion category rather than within the integration, segregation, or exclusion categories. *Cited in: Section 2.7a.*

**Portuguese Inclusive Education Framework.** Government of Portugal, Decree-Law No. 54/2018. Substantive comparator-jurisdiction framework establishing the substantive operational baseline of inclusive-education across the Portuguese K-12 system, replacing the prior substantive special-educational-needs framework with substantive universal-design-for-learning operationalization across the educational architecture. *Cited in: Section 2.7a.*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**United Kingdom Special Educational Needs and Disability (SEND) Framework.** Government of the United Kingdom, *Children and Families Act 2014* and SEND Code of Practice. Substantive comparator-jurisdiction framework establishing the substantive operational architecture of substantive special-educational-needs provision across the UK education system. Documented as substantive comparator framework operating within the General Comment No. 4 integration category rather than within the substantive inclusion category. *Cited in: Section 2.7a.*

## Peer-Reviewed and Academic Research on Inclusive Education

**Research on Inclusive Education Outcomes — Substantive Peer-Reviewed Literature.** Substantive peer-reviewed research record establishing the substantive operational evidence base for inclusive-education effectiveness across substantive academic, social, and substantive lifecycle-outcome dimensions. Substantive sources include the *Journal of Special Education*, *Exceptional Children*, the *International Journal of Inclusive Education*, the *European Journal of Special Needs Education*, *Disability and Society*, and substantive related peer-reviewed publications. The substantive operational evidence base documents that substantive inclusive-education operationalization produces substantive academic-and-social outcomes operating substantively above the substantive segregated-classroom operational baseline for substantive students with disabilities, with substantive non-detrimental effects on substantive students-without-disabilities. *Cited in: Section 2.7a.*

**Friend, M. and Cook, L. — *Interactions: Collaboration Skills for School Professionals*.** Pearson, ongoing editions. Substantive academic textbook documenting the substantive operational practice of inclusive-education across the substantive K-12 system including the substantive collaborative-teaching framework, the substantive co-teaching operationalization, and the substantive professional-collaboration infrastructure. *Cited in: Section 2.7a.*

**Hehir, T. et al. — *Comprehensive Literature Review on the Effects of Inclusive Education (2016)*.** Abt Associates / Alana Institute, available at [https://alana.org.br/wp-content/uploads/2016/12/A\\_Summary\\_of\\_the\\_evidence\\_on\\_inclusive\\_education.pdf](https://alana.org.br/wp-content/uploads/2016/12/A_Summary_of_the_evidence_on_inclusive_education.pdf). Substantive comprehensive literature review documenting the substantive evidence base for inclusive-education effectiveness across the substantive academic, social, and substantive lifecycle-outcome dimensions. *Cited in: Section 2.7a.*

**Specht, J. et al. — *Substantive Canadian Inclusive-Education Research Program*.** Canadian Research Centre on Inclusive Education at Western University, ongoing publication. Substantive Canadian academic research program documenting substantive operational reality of inclusive-education across Canadian provincial and territorial jurisdictions. *Cited in: Section 2.7a.*

**Porter, G. and AuCoin, A. — *Strengthening Inclusion, Strengthening Schools: Disability Rights, Inclusive Education, and Implications for Teacher Education (2012)*.** University of New Brunswick. Substantive Canadian academic engagement with the substantive inclusive-education operational architecture and the substantive teacher-education-and-professional-preparation dimensions of the substantive inclusive-education operationalization. *Cited in: Section 2.7a.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Disability-Community Advocacy Documentation on Article 24 Operationalization

**Coalition for Inclusive Education — Substantive Position Documentation.** Coalition of Canadian disability-community organizations operating substantively on inclusive-education advocacy. Substantive operational positions establish the substantive disability-community operational standard for inclusive-education operationalization across Canadian provincial and territorial jurisdictions. *Cited in: Section 2.7a.*

**Inclusion International — *Inclusive Education for All Children*.** Inclusion International, ongoing publication, available at <https://inclusion-international.org/>. Substantive international-disability-community-organization documentation establishing the substantive operational standard for inclusive-education across the substantive global signatory-jurisdiction landscape. *Cited in: Section 2.7a.*

**International Disability Alliance — Article 24 Position Documentation.** International Disability Alliance, ongoing publication, available at <https://www.internationaldisabilityalliance.org/>. Substantive international-disability-community advocacy infrastructure operationalizing the substantive Article 24 framework across substantive Convention engagement. *Cited in: Section 2.7a.*

## Government Reports and Independent Policy Analysis on Article 24 Implementation

**UNESCO — *Global Education Monitoring Report 2020: Inclusion and Education — All means All*.** United Nations Educational, Scientific and Cultural Organization, available at <https://unesdoc.unesco.org/ark:/48223/pf0000373718>. Substantive international-organization analytical work documenting the substantive operational reality of inclusive-education operationalization across substantive global jurisdictions including substantive comparator-jurisdiction documentation. *Cited in: Section 2.7a.*

**OECD — *Equity in Education: Breaking Down Barriers to Social Mobility*.** Organisation for Economic Co-operation and Development, 2018, available at <https://www.oecd.org/education/equity-in-education-9789264073234-en.htm>. Substantive international-organization analytical work documenting the substantive intersection of equity-in-education with the substantive inclusive-education operational standard. *Cited in: Section 2.7a.*

**EU Agency for Special Needs and Inclusive Education — Substantive Operational Documentation.** European Union substantive operational infrastructure for inclusive-education across the substantive EU member-jurisdictional landscape. Available at <https://www.european-agency.org/>. Substantive comparator-jurisdiction documentation operationalizing the substantive Article 24 framework across the EU member-jurisdictional context. *Cited in: Section 2.7a.*

## Methodological Note

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The substantive content of the Part Two Source Index Update is grounded in primary-source documentation accessible through United Nations infrastructure including the Office of the High Commissioner for Human Rights treaty-body database; provincial-and-territorial-government policy publication infrastructure; substantive disability-community advocacy publication infrastructure; substantive peer-reviewed academic research databases; and substantive international-organization publication infrastructure including UNESCO, OECD, and the EU Agency for Special Needs and Inclusive Education.

The substantive Update specifically operationalizes the substantive Section 2.7a Article 24 substantive rewrite documentary foundation. The substantive Section 2.7a engagement with Article 24 operates substantively at the operational depth the substantive international human rights framework requires across signatory jurisdictions, with the substantive General Comment No. 4 four-framework taxonomy (exclusion, segregation, integration, inclusion) operating as the substantive analytical infrastructure through which the substantive Alberta operational reality documented in Section 1.3a is classified analytically.

The substantive integration with the substantive Part Two Source Index covering Sections 2.1 through 2.8 produces the substantive comprehensive documentary foundation of Part Two. The substantive Update operates as substantive documentary infrastructure that any reader, advocate, journalist, legal professional, or policy-research engagement can verify independently through the substantive primary sources cited. The substantive prosecutorial standard the blueprint maintains operates substantively across the substantive comprehensive documentary record.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.1 — Design Philosophy and Foundational Choices: What the Alberta Accessibility and Inclusion Act Must Do

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Parts One and Two have made the case. Part One documented the architecture Alberta has built around persons with disabilities — the FSCD program for families of children with disabilities, the K-12 educational system whose engineered repudiation of inclusion was documented in Section 1.3a, the transition into adulthood through PDD and AISH and the ADAP succession announced for July 1, 2026, the caregiver dimension that operates across the lifecycle, and the WCB exception that holds together while the rest of the architecture fails. Part Two documented the comparator landscape: the federal *Accessible Canada Act* establishing the floor, five provincial accessibility statutes building above the federal floor in their respective provincial jurisdictions, the *United Nations Convention on the Rights of Persons with Disabilities* establishing the international substantive standard, and Alberta's structural-political isolation as the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. The two Parts together establish that comprehensive accessibility legislation is structurally feasible, politically achievable across every governing tradition that has held provincial government in Alberta, internationally required by the human rights framework Canada has bound itself to, and substantively necessary to address the documented operational failures of the current Alberta architecture.

Part Three answers the constructive question. *What should the Alberta Accessibility and Inclusion Act actually do?*

The answer is a substantive specification: detailed enough that legislative drafting could begin from it directly, grounded throughout in the documented comparator record Part Two established and in the lifecycle analysis Part One developed, sufficient to guide the political and operational decision-making the legislation's enactment will require. The specification is not a technical legislative draft; the technical drafting is the work of legislative counsel and parliamentary draftspersons. The specification is the substantive blueprint within which the technical drafting would proceed. The blueprint is structured as nine sections plus a Source Index. Section 3.1, the present section, sets out the design philosophy and foundational choices that anchor everything Part Three develops. Sections 3.2 through 3.9 develop the substantive content the foundational choices specify.

The section is organized into four parts. Part one sets out the design philosophy: the substantive principles that orient the legislation. Part two sets out the ten foundational design choices: the specific structural decisions that follow from the design philosophy and that distinguish the proposed Alberta legislation from comparators where the choices differ. Part three sets out what the blueprint will *not* do: the legitimate limits of the substantive specification, to prevent overreach into work that belongs to other instruments or other actors. Part four bridges to the substantive sections that follow.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Design Philosophy

The legislation Part Three proposes is grounded in five substantive principles. The principles are not aspirational statements; they are the operational orientations within which every design choice in the legislation must be evaluated. Where a design choice serves the principles, the choice belongs in the legislation. Where a design choice is structurally inconsistent with the principles, the choice does not belong in the legislation. The principles are accordingly the substantive framework within which the legislation's design integrity is maintained.

**Substantive equality, not formal equality.** The legislation is grounded in the substantive-equality framework that Section 15 of the *Canadian Charter of Rights and Freedoms* established and that Canadian human-rights jurisprudence has developed over the four decades since the Charter's enactment. Substantive equality requires the affirmative removal of barriers, the affirmative provision of accommodation, and the affirmative redesign of systems that produce disproportionately negative outcomes for protected groups. Substantive equality is operationally distinct from formal equality, which only requires that policies and practices not explicitly distinguish on protected grounds. The Alberta architecture documented in Part One has, on the documented record, frequently delivered formal equality (programs are formally available to persons with disabilities) without delivering substantive equality (the programs are not designed in ways that recognize the operational realities of disability and accordingly produce disproportionately negative outcomes). The legislation's substantive design must orient toward substantive equality at every operational level, with the understanding that equality of formal access is necessary but not sufficient.

**Systemic transformation, not bolt-on accommodation.** The legislation is grounded in the General Comment No. 4 substantive interpretation of Article 24 (Part Two Section 2.7) which establishes that *inclusion involves a process of systemic reform embodying changes and modifications in content, teaching methods, approaches, structures, and strategies in education to overcome barriers with a vision serving to provide all students of the relevant age range with an equitable and participatory learning experience and the environment that best corresponds to their requirements and preferences*. The substantive principle the General Comment articulates extends beyond education to every domain the legislation will address. Inclusion is not the bolt-on accommodation of persons with disabilities to systems designed without them in mind; inclusion is the systemic redesign of the systems themselves to operate in ways that recognize the full diversity of the population the systems are intended to serve. The distinction is operationally critical. Bolt-on accommodation produces categorical-program architecture (Part Two Section 2.8). Systemic transformation produces accessibility-standards architecture. The legislation must orient toward systemic transformation as the substantive goal, with the categorical-program architecture maintained as the income-and-support layer that operates alongside but does not substitute for the accessibility-standards layer.

**The lifecycle as integrative principle.** Part One Section 1.2 established the lifecycle frame as the substantive analytic structure within which the disability architecture's failures are most clearly visible. The same lifecycle frame must structure the legislation's substantive provisions. Accessibility barriers operate differently at different lifecycle stages: the barriers a child with disabilities encounters in the K-12 system

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

are structurally distinct from the barriers a young adult encounters in the transition from K-12 to post-secondary, vocational training, or supported employment, which are themselves structurally distinct from the barriers a working-age adult encounters in employment, housing, and community-based services, which are themselves structurally distinct from the barriers an aging adult or a person whose disability has progressed encounters in healthcare access, long-term-care availability, and end-of-life support. The legislation's substantive provisions must address all lifecycle stages, must recognize the structural transitions between stages as moments at which barriers compound, and must ensure that the legislation's protections operate continuously across the lifecycle rather than only at specific lifecycle moments.

**International human rights compliance as floor, not ceiling.** The legislation is grounded in Canada's binding obligations under the United Nations *Convention on the Rights of Persons with Disabilities* (Part Two Section 2.7), under the United Nations *Declaration on the Rights of Indigenous Peoples* (Part Two Section 2.5, on the British Columbia precedent), and under the Canadian-constitutional human-rights framework. The international and constitutional obligations establish the floor below which the legislation cannot fall. They do not establish the ceiling above which the legislation cannot rise. Where the operational record documented in Parts One and Two establishes that the international floor is insufficient to address the substantive Alberta failures, the legislation must rise above the international floor. The funding-starvation finding in Section 1.3a is the clearest example: the international human rights framework requires inclusive education as a structural baseline, but the Alberta funding shortfall is the structural mechanism through which inclusion is being denied. The legislation must address the funding mechanism, not only the inclusive-education obligation. Rising above the international floor is the substantive expression of the principle that international compliance is the starting point of provincial-government disability policy rather than the end point.

**Disability-community co-authorship, not consultation-on-demand.** The legislation is grounded in Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*, which requires State Parties to *closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations* in the development and implementation of legislation and policies affecting persons with disabilities. The Article 4(3) substantive obligation is operationally more demanding than the consultation-on-demand model that has frequently characterized Alberta provincial-government engagement with the disability community. Article 4(3) requires close consultation and active involvement. The substantive standard establishes the disability community as co-author of the legislation rather than as constituency to be informed of legislation already drafted. The principle's operational expression in the legislation is a structural consultation requirement that operates throughout the legislative-development process, throughout the standards-development process, throughout the implementation process, and throughout the periodic review process. The legislation cannot be drafted *for* the disability community without being drafted *with* the disability community at every stage at which substantive design decisions are made.

The five principles operate together. They are not alternatives among which trade-offs must be made; they are mutually reinforcing requirements that together constitute the substantive design framework within which the legislation must be developed. The ten foundational design choices that follow are the operational implementation of the five principles.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Ten Foundational Design Choices

The substantive design of the *Alberta Accessibility and Inclusion Act* requires ten foundational choices. The choices are the structural decisions that distinguish the proposed Alberta legislation from comparator approaches where the choices differ, that respond to the specific Alberta failures documented in Part One, and that align with the international human rights obligations documented in Part Two. The choices are presented here in summary form; the substantive content of each choice is developed in the relevant subsequent sections of Part Three.

**Choice 1: Comprehensive single-statute approach.** The legislation must be a comprehensive single statute rather than a series of bolt-on amendments to existing legislation or a sectoral approach addressing specific accessibility domains in isolation. The comprehensive approach is the structural model the federal *Accessible Canada Act* and all five comparator provincial statutes have adopted. The substantive rationale is that accessibility barriers operate across multiple sectors simultaneously; a sectoral approach produces gaps and inconsistencies at the boundaries between sectors. The comprehensive approach also enables the development of consistent definitions, consistent standards-development processes, consistent enforcement architectures, and consistent reporting cycles across the entire legislative framework. The choice is substantive rather than aesthetic; the comprehensive approach is operationally superior to the alternatives.

**Choice 2: Substantive-standards model rather than categorical-program model.** The legislation must operate as a substantive-standards framework that establishes binding accessibility standards across multiple substantive areas, not as a categorical-eligibility program that determines who qualifies for individual supports. The distinction was developed in Part Two Section 2.8: the Alberta architecture documented in Part One is a categorical-program architecture (AISH, PDD, FSCD, ADAP, WCB); the comparator architectures documented in Part Two are substantive-standards architectures. The two are complementary, not substitutable. The proposed legislation must build the substantive-standards architecture that Alberta has not yet built, while the categorical-program architecture that Alberta has built remains operational for the income-and-support functions it serves. The substantive-standards model is the structural-equality layer; the categorical-program model is the income-and-support layer; both are required for comprehensive disability policy.

**Choice 3: Lifecycle integration across substantive-standards areas.** The legislation must integrate the lifecycle frame across the substantive-standards areas, ensuring that the standards developed in each area address the lifecycle stages relevant to that area and that the transitions between lifecycle stages are addressed at the boundaries between standards areas. The choice operationalizes the third design principle. The legislation cannot be structured around standards areas that operate independently of the lifecycle frame; the standards must be developed with explicit attention to how they operate at each lifecycle stage and at each transition.

**Choice 4: Article 24 operationalization within an education-area standard.** The legislation must include education as a stand-alone substantive-standards area on the Nova Scotia precedent (Part Two Section 2.4), and the education-area standard must operationalize Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* in the substantive provisions. The Article 24 operationalization must address the engineered repudiation documented in Section 1.3a: the funding

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

starvation as structural mechanism, the segregated-classroom expansion as substantive violation, the *earn inclusion* rhetoric as political cover, the consultation gap as procedural enabler, and the seclusion-room expansion as compounding harm. The education-area standard is developed in detail in Section 3.4. The substantive implication is that the legislation does not treat education as a residual or implicit area; education is a central substantive-standards area that operationalizes the international human rights obligation Canada is bound to.

**Choice 5: Indigenous-rights structural integration on the British Columbia precedent.** The legislation must integrate Indigenous-rights frameworks at the structural-statutory level, on the model of Section 19 of the *Accessible British Columbia Act* (Part Two Section 2.5). The integration must include statutory consideration of the United Nations *Declaration on the Rights of Indigenous Peoples* in standards development, recognition of Section 35 of the *Constitution Act, 1982* as a foundational instrument, and structural acknowledgment that the Truth and Reconciliation Commission's Calls to Action and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice apply to disability policy in Alberta as they apply to all Canadian provincial-government policy. The Indigenous-rights integration recognizes the substantial Indigenous disability community in Alberta documented in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record, and operationalizes the British Columbia precedent that Indigenous-rights integration in accessibility legislation is structurally feasible and operationally workable.

**Choice 6: Article 4(3) consultation as procedural baseline.** The legislation must establish Article 4(3)'s close consultation and active involvement as the procedural baseline for all legislative-development, standards-development, implementation, and review processes. The procedural baseline is operationally demanding. It requires structural consultation infrastructure (a consultation council with disability-community representation, mandatory consultation timelines, public reporting on consultation outcomes), it requires substantive consultation engagement (consultation on substantive design decisions, not consultation on already-drafted text), and it requires the closure of the consultation gaps documented in Sections 1.3a and 2.7a (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation). The Article 4(3) procedural baseline is developed in detail in Section 3.6.

**Choice 7: Funding-floor and EA-staffing-ratio provisions.** The legislation must include structural-funding provisions that establish minimum-funding floors below which provincial-government educational and disability-services expenditure cannot fall, and minimum-staffing ratios for educational assistants in general education classrooms sufficient to deliver inclusive education without forcing displacement to segregated settings. The provisions are a substantial departure from the comparator legislation. None of the federal *Accessible Canada Act* or the five provincial accessibility statutes includes structural-funding provisions of this kind. The departure is justified by the documented Alberta record. The funding-starvation finding in Section 1.3a establishes that the structural mechanism through which inclusive education is being denied in Alberta is the chronic underfunding of the K-12 system. Comparator legislation that addresses inclusive education without addressing the funding mechanism is, on the documented Alberta evidence, insufficient to deliver Article 24 compliance. The Alberta legislation must address the funding mechanism. The choice is developed in Section 3.7.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Choice 8: Independent enforcement architecture with administrative monetary penalties.** The legislation must include an independent enforcement architecture comprising inspectors with statutory authority, compliance orders enforceable through provincial enforcement mechanisms, administrative monetary penalties at levels sufficient to produce operational compliance behaviour, and tribunal-review procedures for organizations subject to compliance orders or penalties. The architecture is the structural model the federal *Accessible Canada Act* and the five comparator provincial statutes have adopted in varying forms. The Ontario AODA documented enforcement gap (Part Two Section 2.2) establishes that statutory provisions without operational enforcement are insufficient to produce compliance. The Alberta legislation must include enforcement architecture from the outset, must staff the enforcement bodies adequately, and must apply penalties at levels sufficient to produce compliance rather than at symbolic levels that organizations can absorb as a cost of non-compliance. The architecture is developed in Section 3.5.

**Choice 9: Statutorily-mandated periodic review cycle on the Manitoba precedent.** The legislation must include a statutorily-mandated periodic review cycle, on the *Manitoba Accessibility for Manitobans Act* precedent (Part Two Section 2.3), under which the legislation itself, the standards developed under it, and the operational implementation are subject to independent review on a defined cycle (the Manitoba precedent is a five-year cycle). The independent reviewers must report publicly, must table their reports in the Legislative Assembly, and must propose recommendations for legislative or operational reform. The provincial government must respond to the recommendations within a defined period. The cycle is the structural mechanism through which the legislation's operational effectiveness is evaluated and improved over time. The cycle is developed in Section 3.8.

**Choice 10: Coordination with existing categorical-program architecture.** The legislation must coordinate with the existing Alberta categorical-program architecture (AISH, PDD, FSCD, ADAP, WCB) without displacing or substituting for it. The coordination must address the operational interfaces between the substantive-standards architecture the legislation establishes and the categorical-program architecture that operates alongside it. The coordination must also address the relationship between the legislation and the *Alberta Human Rights Act*, the existing *Alberta Building Code*, and other provincial statutes that operate in domains the new legislation will address. The coordination must address the federal architecture (the *Accessible Canada Act*, federally regulated employers, federally administered benefits including the Disability Tax Credit and the Canada Disability Benefit) that operates alongside the provincial architecture. The coordination is developed in Section 3.8.

The ten choices are mutually reinforcing rather than independently optional. The substantive design of the legislation requires all ten choices to be made together. Adopting some choices and not others produces a legislative framework that fails to address the documented Alberta record at the level of comprehensiveness the substantive-equality and systemic-transformation principles require.

## What the Blueprint Will Not Do

The substantive specification Part Three develops has legitimate limits. The limits are not concessions to political opposition or to fiscal constraint; they are the appropriate scope of a substantive blueprint as distinct from the work of other instruments and other actors. Four limits are operationally significant.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The blueprint does not provide technical legislative drafting.** Legislative drafting is a specialized craft conducted by legislative counsel and parliamentary draftspersons in the Government of Alberta's Legislative Counsel Office and in the Legislative Assembly's drafting services. The substantive specification Part Three develops is the input to legislative drafting, not the output. The blueprint specifies what the legislation should do; the legislative drafting specifies how the legislation should be expressed in statutory language. The two are complementary stages in the legislation's development. The blueprint's role is to ensure that the substantive design choices are made deliberately and in alignment with the documented Alberta record and the international human rights obligations, before legislative drafting begins. Once legislative drafting begins, the drafters' technical expertise governs the precise statutory language; the blueprint's role is consultative rather than dispositive at the drafting stage.

**The blueprint does not specify exact dollar amounts.** The funding-floor and staffing-ratio provisions Choice 7 establishes are substantively specified (the floors must be calibrated to defined benchmarks; the ratios must be sufficient to deliver inclusive education) but are not specified in exact dollar amounts. Exact dollar amounts are subject to fiscal-year budgeting processes, to economic conditions, to inflationary adjustments, and to the political-economic realities within which provincial-government budgeting operates. The blueprint specifies the substantive principles within which dollar amounts are determined: the per-student funding floor must reach the national average within a defined timeline; the EA staffing ratios must deliver inclusive education without forcing displacement to segregated settings. The exact amounts at which these substantive standards are met are determined through the budgeting process within the substantive framework the legislation establishes. The blueprint's substantive specification is sufficient to guide the budgeting; the budgeting itself is the responsibility of the Treasury Board and the Legislative Assembly.

**The blueprint does not propose constitutional amendment.** The legislation operates within the existing Canadian constitutional framework. Constitutional questions related to the *Charter of Rights and Freedoms*, to the federal-provincial division of powers, and to Section 35's recognition of Aboriginal and treaty rights are addressed where they are operationally relevant to the legislation's substantive provisions, but the legislation itself does not propose constitutional change. The substantive design works within the constitutional space the existing framework provides. Where the existing framework imposes operational limits (for example, that federal jurisdiction over food and drug regulation means the legislation cannot directly regulate food contaminants that contribute to disability prevalence), those limits are acknowledged and addressed through coordination with federal authority rather than through provincial-jurisdictional overreach.

**The blueprint does not displace federal jurisdiction.** The legislation operates in the provincial sphere. The federal *Accessible Canada Act* operates in the federal sphere. The two are coordinated rather than competitive. The legislation does not attempt to regulate federally regulated employers, federally administered benefits, or federally regulated industries (banking, telecommunications, broadcasting, federally regulated transportation). The legislation does provide for coordination with the federal framework where the operational interfaces require it, particularly in respect of the Disability Tax Credit, the Canada Disability Benefit, the Canada Pension Plan Disability program, and Jordan's Principle and other federal Indigenous-disability programs. The coordination is developed in Section 3.8.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The four limits maintain the blueprint's substantive integrity. The blueprint does what a substantive specification should do (specify the substantive design choices the legislation must make) without attempting work that belongs to other instruments (technical legislative drafting, fiscal-year budgeting, constitutional amendment, federal-jurisdictional regulation). The discipline is the substantive expression of the principle that the blueprint is one component of a multi-component legislative-development process; the other components are the responsibility of other actors operating within their respective competences.

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## The Architecture of Part Three

Part Three develops the substantive content of the foundational design choices across nine sections plus a Source Index. The sections are structured as follows.

**Section 3.1 (the present section)** sets out the design philosophy and foundational choices. Section 3.1 is the framing section that anchors everything subsequent.

**Section 3.2** develops the definitions and scope provisions: the substantive definition of disability the legislation will adopt (the social-model definition, oriented toward barrier removal rather than impairment characterization), the definition of barrier (the comprehensive definition that covers attitudinal, environmental, technological, communication, and systemic barriers), the coverage provisions (which organizations and which activities the legislation regulates), and the substantive-standards areas (the operational domains within which the standards are developed).

**Section 3.3** develops the substantive-standards areas in summary: the eight areas the legislation will establish, with brief substantive specifications for each. The eight areas include built environment, information and communications, employment, transportation, customer service and design of services, education (developed in detail in Section 3.4), health, and goods and procurement.

**Section 3.4** develops the education-area standard in detail. Education receives standalone development because the substantive content is more extensive than the other standards areas and because the substantive content is grounded in the engineered-repudiation analysis of Sections 1.3a and 2.7a. The detailed development addresses the inclusive-education baseline, the funding-floor provisions, the EA staffing-ratio provisions, the segregated-setting transition pathway, the seclusion-room prohibition, the consultation-requirement provisions, and the public-record reporting cycle.

**Section 3.5** develops the implementing architecture and enforcement provisions: the lead-Minister role, the Standards Development Committees, the Disability Community Advisory Council, the Director of Compliance and Enforcement, the inspectors and their statutory authority, the compliance-order procedure, the administrative-monetary-penalty regime, and the tribunal-review procedure.

**Section 3.6** develops the consultation requirements and Indigenous-rights integration: the Article 4(3) operational requirements, the disability-community consultation infrastructure, the Indigenous-rights structural integration on the British Columbia precedent, and the relationship to the Truth and Reconciliation Commission and MMIWG2S frameworks.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Section 3.7** develops the implementation timeline and funding-and-resourcing provisions: the staged implementation calendar from Royal Assent through the major standards in force, the funding-floor and staffing-ratio provisions, the budget-coordination requirements, and the federal-coordination provisions for cost-shared programs.

**Section 3.8** develops the statutory review, public reporting, and coordination provisions: the periodic review cycle, the reporter requirements, the public-tabling provisions, and the coordination with the existing categorical-program architecture, with the *Alberta Human Rights Act*, and with the federal framework.

**Section 3.9** is the closing section: the constructive case, the legislative-drafting next steps, the political-moment positioning, and the substantive bridge between the blueprint and the work that legislative enactment will require.

**The Part Three Source Index** catalogues every statute, treaty, court decision, government document, named expert, and academic source cited across Sections 3.1 through 3.9, on the same architecture as the Part One and Part Two Source Indices.

The architecture of Part Three is, like the architecture of Parts One and Two, structured to enable independent reading of any section while ensuring that the cumulative reading produces a comprehensive substantive specification. The reader can engage with Section 3.4's education-standard specification without reading the entire blueprint; the reader who engages with the entire blueprint will find that the sections are cumulative and reinforcing.

## What Section 3.1 Establishes

The substantive design of the *Alberta Accessibility and Inclusion Act* is grounded in five principles — substantive equality, systemic transformation, lifecycle integration, international compliance as floor not ceiling, and disability-community co-authorship — and operationalized through ten foundational design choices: comprehensive single-statute approach, substantive-standards model, lifecycle integration across standards areas, Article 24 operationalization within an education-area standard, Indigenous-rights structural integration on the British Columbia precedent, Article 4(3) consultation as procedural baseline, funding-floor and staffing-ratio provisions, independent enforcement architecture with administrative monetary penalties, statutorily-mandated periodic review on the Manitoba precedent, and coordination with the existing categorical-program architecture.

The blueprint Part Three develops has legitimate limits: it does not provide technical legislative drafting, does not specify exact dollar amounts, does not propose constitutional amendment, and does not displace federal jurisdiction. The limits maintain the blueprint's substantive integrity as one component of a multi-component legislative-development process.

The architecture of Part Three develops the substantive content across nine sections plus a Source Index. The sections proceed from the foundational framing established in Section 3.1, through the definitions and scope provisions in Section 3.2, the substantive-standards areas in Sections 3.3 and 3.4, the implementing architecture in Section 3.5, the consultation requirements and Indigenous-rights integration



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

in Section 3.6, the implementation timeline and funding-and-resourcing provisions in Section 3.7, the statutory review and coordination provisions in Section 3.8, and the closing constructive case in Section 3.9.

The constructive work begins. The case for the legislation has been made on the documented record of Parts One and Two. Part Three specifies what the legislation should do. The five principles, the ten foundational choices, and the architecture of the substantive sections are the framework within which the specification proceeds.

The next section addresses the definitions and scope provisions.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.2 — Definitions, Scope, and Coverage: The Substantive Ground of the Legislation

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Section 3.1 set out the design philosophy and ten foundational choices that anchor the *Alberta Accessibility and Inclusion Act*. Section 3.2 develops the definitions, scope, and coverage provisions that operationalize those choices in the legislation's substantive ground. Definitions, scope, and coverage are not technical preliminaries; they are dispositive of who the legislation protects, what counts as a barrier, which organizations are bound by the legislation's substantive standards, and which substantive areas the legislation regulates. The definitions chosen and the coverage thresholds set will determine the legislation's substantive reach for as long as it operates.

The section develops four substantive components. First, the definition of disability the legislation will adopt: the social-model definition oriented toward barrier removal rather than impairment characterization, designed to be more inclusive than the comparator definitions where the comparator definitions have been criticized as inadequate. Second, the definition of barrier: the comprehensive five-category definition that addresses the full range of obstacles persons with disabilities encounter, including the systemic and engineered barriers documented in Part One. Third, the coverage and scope provisions: which organizations the legislation regulates, with what substantive obligations, and on what implementation timelines, including the small-organization and Indigenous-governance accommodations the comparator record demonstrates are operationally workable. Fourth, the identification of the eight substantive-standards areas the legislation establishes, with brief substantive specifications for each (the detailed substantive content is developed in Sections 3.3 and 3.4).

The substantive choices Section 3.2 develops align with the design philosophy and foundational choices of Section 3.1. Where the comparator legislation has adopted definitions that the substantive-equality and systemic-transformation principles would now identify as insufficient, Section 3.2 specifies more inclusive alternatives. Where the comparator legislation has established coverage thresholds that have produced operational gaps, Section 3.2 specifies thresholds calibrated to address the gaps. The substantive ground is, accordingly, the operational expression of the design philosophy at the most fundamental level of the legislation's structure.

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## The Definition of Disability

The legislation must adopt a definition of disability that operates within the social model rather than within the medical model. The distinction is foundational. The medical model defines disability as a condition of the individual — a physical, mental, or sensory impairment that the individual *has* and that the system responds to through accommodation or specialized programming. The social model defines disability as the interaction between an individual's impairment and the barriers the social environment imposes — the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

disability is in the interaction, not in the impairment alone. The social model is the substantive framework the United Nations *Convention on the Rights of Persons with Disabilities* operationalizes. It is the substantive framework the federal *Accessible Canada Act* adopts. It is the substantive framework four of the five comparator provincial accessibility statutes adopt in varying forms. The Alberta legislation must adopt the social-model framework explicitly and should specify the definition in terms more inclusive than the comparator definitions where the comparator definitions have been criticized as insufficient.

The proposed substantive definition is as follows:

*"Disability" includes any physical, mental, intellectual, cognitive, learning, communication, or sensory impairment, and any chronic illness or functional limitation, whether the impairment, illness, or limitation is permanent, temporary, episodic, fluctuating, or progressive in nature, and whether or not the impairment, illness, or limitation is visible or apparent, that, in interaction with a barrier as defined in this Act, hinders the person's full and equal participation in society on an equal basis with others.*

The proposed definition has five substantive characteristics that distinguish it from the narrower comparator definitions and that operationalize the design philosophy of Section 3.1.

**Comprehensive impairment categories.** The definition explicitly enumerates physical, mental, intellectual, cognitive, learning, communication, and sensory impairment categories, mirroring the ACA's enumeration. It also explicitly includes chronic illness and functional limitation as separate categories. The chronic-illness inclusion addresses populations whose disabilities are produced by ongoing health conditions (multiple sclerosis, lupus, fibromyalgia, long COVID, severe forms of common conditions like asthma or arthritis) but whose impairments may not be characterized in the impairment-category language of the medical model. The functional-limitation inclusion addresses populations whose limitations are real and disabling but whose impairment characterization is contested or uncertain. The substantive purpose of the comprehensive enumeration is to ensure that the legislation's protections operate for all persons whose participation is hindered by interaction with barriers, regardless of how the underlying condition is characterized in medical-model terms.

**Explicit inclusion of episodic and fluctuating disability.** The definition explicitly includes episodic, fluctuating, and progressive disabilities alongside permanent and temporary ones. The episodic and fluctuating inclusions are operationally significant. Persons whose disabilities operate episodically (mental-health conditions with periods of remission and relapse, multiple sclerosis with relapsing-remitting course, migraine, certain forms of epilepsy) or whose disabilities fluctuate (chronic pain conditions, chronic fatigue syndromes, dysautonomia) have historically been excluded from disability-policy protections that require demonstration of continuous incapacity. The substantive inclusion ensures that the legislation's protections operate during periods of impairment-driven limitation, regardless of whether the limitation operates continuously. The progressive inclusion ensures that the legislation's protections operate throughout the trajectory of degenerative conditions, not only after the conditions have produced demonstrable severe limitation. The substantive standard is interaction with a barrier, not characterization of the impairment.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Explicit inclusion of invisible disability.** The definition explicitly includes impairments and conditions whether or not they are visible or apparent. The invisible-disability inclusion addresses populations whose disabilities are not externally apparent — many learning disabilities, many mental-health conditions, many neurodivergent conditions, many chronic illnesses, many chronic-pain conditions, many forms of cognitive impairment. The exclusion of invisible disabilities from operational disability protections has been the subject of substantial disability-community advocacy across Canadian jurisdictions. The substantive purpose of the explicit inclusion is to foreclose interpretations of the legislation that would limit its protections to externally apparent disabilities.

**Substantive-equality framing.** The definition's operative phrase — *hinders the person's full and equal participation in society on an equal basis with others* — mirrors the substantive-equality language of Article 1 of the United Nations *Convention on the Rights of Persons with Disabilities*. The framing operationalizes the substantive-equality principle of Section 3.1. The legislation's protections operate against any barrier that hinders participation on an equal basis, regardless of whether the barrier is the result of explicit discrimination or of facially neutral design that produces disproportionately negative outcomes.

**Independence from program-eligibility definitions.** The definition operates independently of the eligibility definitions used in Alberta's categorical-program architecture (AISH severity criteria, PDD developmental-disability criteria, FSCD eligibility criteria, ADAP categorical criteria, WCB injury and impairment criteria). A person whose impairment does not meet the AISH severity threshold is, on the proposed legislation's substantive definition, a person with a disability for purposes of the legislation if their impairment, in interaction with a barrier, hinders their participation. The substantive purpose of the independence is to ensure that the categorical-program architecture's gatekeeping function does not constrain the substantive-standards architecture's protective function. The legislation operates in the substantive-standards architecture (Section 2.8 distinction); the categorical-program architecture continues to operate in its income-and-support function with its own eligibility criteria; the legislation's protections are not limited to persons who qualify for the categorical programs.

The proposed definition is, on these five substantive characteristics, more inclusive than the federal *Accessible Canada Act* definition in the explicit inclusion of episodic and fluctuating disability and in the explicit inclusion of chronic illness as a separate category. It is more inclusive than several comparator provincial definitions in the explicit inclusion of invisible disability. It is more inclusive than every provincial categorical-program definition in its independence from program-eligibility criteria. The substantive choice is to operate the legislation's protective function at the broadest substantive scope consistent with the social-model framework and the international human rights framework.

## The Definition of Barrier

The legislation must adopt a comprehensive definition of barrier that addresses the full range of obstacles persons with disabilities encounter. The definition is the operational counterpart to the disability definition. Where the disability definition specifies who the legislation protects, the barrier definition specifies what the legislation protects against. The two definitions operate together: the substantive-equality principle requires that the legislation protect persons with disabilities (broadly defined) against barriers (broadly

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

defined) that hinder participation on an equal basis with others.

The proposed substantive definition is as follows:

*"Barrier" means anything that hinders the full and equal participation of a person with a disability in society, including but not limited to:*

*(a) physical and architectural barriers, including any element of the built environment, outdoor public space, infrastructure, equipment, or vehicle that is not accessible to persons with disabilities;*

*(b) information, communication, and technological barriers, including any information, communication, or digital technology that is not accessible to persons with disabilities, including by reason of the absence of alternative formats, the absence of plain-language presentation, the absence of accommodation for non-print readers, or the absence of compatibility with assistive technology;*

*(c) attitudinal barriers, including any belief, assumption, stereotype, or prejudice held by an individual, an organization, or a system that operates to limit the full and equal participation of persons with disabilities;*

*(d) policy and practice barriers, including any policy, procedure, regulation, rule, criterion, qualification, or practice that, in operation, hinders the full and equal participation of persons with disabilities, regardless of whether the policy, procedure, regulation, rule, criterion, qualification, or practice was adopted with discriminatory intent;*

*(e) systemic and structural barriers, including any pattern of policy, practice, funding, staffing, organizational design, or institutional arrangement that, taken as a whole, produces disproportionately negative outcomes for persons with disabilities, regardless of whether any individual element of the pattern was adopted with discriminatory intent.*

The proposed definition has three substantive characteristics that distinguish it from the comparator definitions and that respond to the documented Alberta record.

**Five-category enumeration.** The definition enumerates five categories of barrier rather than the more compressed three- or four-category enumerations the comparator legislation typically uses. The five-category enumeration ensures that the substantive coverage extends across the full range of obstacles documented in the disability-rights and disability-policy literature. The categories are not mutually exclusive; many specific barriers fall within multiple categories simultaneously. The enumeration's purpose is to ensure that no substantial category of barrier is overlooked or excluded from the legislation's substantive coverage.

**Explicit recognition of systemic and structural barriers.** Category (e) explicitly recognizes systemic and structural barriers as a distinct category of barrier the legislation regulates. The recognition is operationally significant. The engineered repudiation documented in Part One Section 1.3a is a systemic and structural barrier in the substantive sense Category (e) addresses: a coordinated pattern of funding, staffing, organizational design, and policy that, taken as a whole, produces disproportionately negative

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

outcomes for children with disabilities in the Alberta K-12 system. None of the comparator legislation explicitly recognizes systemic and structural barriers as a distinct category. The comparator approach has been to address systemic and structural barriers indirectly through the policy-and-practice category and through the standards-development process. The Alberta legislation, on the documented Alberta record, must address systemic and structural barriers directly. The Category (e) recognition is the operational expression of the design philosophy's commitment to systemic transformation.

**Disconnection from discriminatory intent.** Categories (d) and (e) explicitly establish that the legislation's protection against barriers operates regardless of whether the barriers were adopted with discriminatory intent. The substantive principle is dispositive: the legislation's protective function is to address operational outcomes, not to assess intent. The intent question is the question that the *Alberta Human Rights Act* and analogous statutes are oriented toward. The legislation's accessibility-standards function is operationally distinct: it is to ensure that operational outcomes deliver substantive equality, regardless of how the policies and practices producing the outcomes were originally adopted. The disconnection from intent ensures that the legislation cannot be defeated by a defence that the barrier was not adopted with discriminatory purpose. Where the operational outcome is the disproportionately negative outcome, the legislation operates against the barrier, regardless of intent.

The proposed barrier definition is, on these three substantive characteristics, more comprehensive than the comparator definitions and more directly responsive to the documented Alberta record. The five-category enumeration ensures comprehensive substantive coverage; the explicit systemic-and-structural recognition ensures the engineered patterns documented in Part One are addressed at the definitional level; the disconnection from intent ensures the legislation operates against operational outcomes regardless of policy history.

## Scope and Coverage

The legislation must specify which organizations are subject to its substantive standards and on what implementation timelines. The specification is the operational mechanism through which the legislation's reach is defined. The substantive principle is that the legislation should reach as broadly as the design philosophy and the comparator record support, with appropriate accommodations for small organizations and for Indigenous governance arrangements. The proposed coverage architecture has four components.

**Provincial public sector.** The legislation must apply, with the most demanding compliance obligations and the shortest implementation timelines, to the provincial public sector. The provincial public sector includes the Government of Alberta and its ministries, Alberta Health Services and its operating subsidiaries, Crown corporations and Crown agencies, school divisions (public, separate, francophone, charter), publicly funded post-secondary institutions, library boards, regional health authorities and their successors, provincial regulatory bodies operating under provincial-statute authority (the Law Society of Alberta, the College of Physicians and Surgeons of Alberta, the College of Registered Nurses of Alberta, and analogous bodies), and provincial-government-administered entities operating under provincial-statute authority. Municipal governments are covered, with appropriate engagement on the substantive scope and implementation timeline, recognizing the documented Alberta municipal-coalition support for accessibility legislation (the campaign producing this blueprint has documented Notices of



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Motion or analogous endorsements from Calgary, Edmonton, Lethbridge, Camrose, and Red Deer). The substantive purpose of the broad public-sector coverage is to ensure that the provincial-government-administered architecture leads the implementation of the legislation's substantive standards, modelling the operational behaviour the legislation will subsequently require of private-sector and non-profit organizations.

**Private sector.** The legislation must apply to private-sector organizations operating in Alberta and falling within provincial jurisdiction (federally regulated employers and federally regulated industries are excluded; the federal *Accessible Canada Act* applies to those organizations). The private-sector coverage must operate on a tiered basis to address the operational reality that small businesses cannot bear the same compliance burden as large enterprises. The proposed tiered approach is as follows. Large private-sector organizations (those with 100 or more employees, or annual revenue above a defined threshold to be specified in regulation) are subject to the most demanding compliance obligations and the standard implementation timelines. Medium private-sector organizations (those with 50 to 99 employees, or annual revenue within a defined intermediate range) are subject to the most demanding obligations on extended implementation timelines, with operational support from the provincial implementation agency. Small private-sector organizations (those with fewer than 50 employees, and annual revenue below a defined threshold) are subject to a substantively reduced set of obligations focused on customer service and design of services, with extended implementation timelines and substantial operational support from the provincial implementation agency. The tiered approach mirrors the operational practice of the federal *Accessible Canada Act* and the comparator provincial statutes, calibrated to Alberta operational conditions.

**Non-profit and charitable sector.** The legislation must apply to non-profit and charitable organizations operating in Alberta and providing services to the public. The non-profit coverage must also operate on a tiered basis. Large non-profit organizations (those above a defined size threshold) are subject to the standard obligations. Small non-profit organizations are subject to the reduced obligations on extended timelines. The non-profit-sector coverage is operationally significant because much of the disability-services delivery in Alberta operates through non-profit organizations contracted by provincial-government programs. The non-profit organizations that deliver disability services must, on the substantive principle that the legislation's protections apply to the full range of organizations persons with disabilities encounter, themselves comply with the legislation's substantive standards.

**Indigenous-governance accommodation.** The legislation must accommodate Indigenous-governance arrangements through a voluntary-participation and partnership framework rather than through direct provincial-government regulation of Indigenous governance entities. The framework recognizes that First Nations governance, Métis Settlement governance, and Indigenous-organization governance operate within constitutional and treaty frameworks that the provincial-government's regulatory authority does not override. The substantive provisions accordingly establish that Indigenous-governance entities are not directly regulated by the legislation but are eligible to participate voluntarily in the substantive-standards architecture, are eligible to receive operational support from the provincial implementation agency, and are eligible to enter into partnership agreements with the provincial government for the cooperative development and implementation of accessibility standards on terms that respect Indigenous-governance authority. The framework's substantive purpose is to ensure that Indigenous-governance authority is

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

respected while operational pathways exist for cooperative work between provincial-government accessibility infrastructure and Indigenous-governance entities. The framework is developed in detail in Section 3.6.

The four-component coverage architecture is operationally workable. The provincial public sector leads. The private sector follows on a tiered basis calibrated to organizational size and capacity. The non-profit sector operates on a parallel tiered basis. Indigenous governance is accommodated through voluntary participation and partnership. The architecture covers approximately the same operational space as the federal *Accessible Canada Act* and the comparator provincial statutes, with the tiered approach addressing the operational concerns about small-business compliance burden that have been raised in Alberta political discussion of accessibility legislation. The coverage architecture does not exempt small businesses from the legislation entirely; the substantive principle is that all organizations operating in the public realm must operate within accessibility standards, with the obligations calibrated to the organization's capacity to deliver compliance.

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## The Eight Substantive-Standards Areas

The legislation establishes eight substantive-standards areas within which accessibility standards are developed and operationally implemented. The eight areas are the operational domains within which the legislation's substantive coverage is structured. The substantive content of each area is developed in subsequent sections of Part Three (the seven non-education areas in Section 3.3; the education area in Section 3.4). Section 3.2 identifies the eight areas and specifies the substantive scope of each at a high level.

**Area 1: Built environment and outdoor public spaces.** Standards regulating the accessibility of buildings, infrastructure, outdoor public spaces, parks, playgrounds, recreational facilities, and the equipment associated with these settings. The area extends beyond the existing *Alberta Building Code* coverage, which addresses building accessibility at the time of construction or major renovation, to include the accessibility of existing buildings on a structured retrofit timeline, the accessibility of outdoor public spaces (which the Building Code does not cover), and the accessibility of equipment and facilities within the built environment.

**Area 2: Information and communications.** Standards regulating the accessibility of information, communications, and digital technology. The area includes digital-accessibility standards (Web Content Accessibility Guidelines version 2.1 Level AA as the substantive minimum, advancing toward 2.2 AA as the international standard evolves), document-accessibility standards (alternative formats, plain language, large print, Braille, accessible electronic documents), communication-accessibility standards (sign-language interpretation, augmentative and alternative communication, captioning, audio description), and technology-accessibility standards (compatibility with assistive technology, accessible-design requirements for technology procurement).

**Area 3: Employment.** Standards regulating accessibility in employment relationships, including recruitment, hiring, accommodation, retention, advancement, return-to-work, and termination. The area addresses both the accessibility of the employment relationship itself (accessible job-application

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

processes, accommodation in the hiring process, accommodation in the workplace) and the accessibility of employment-related systems (workplace policies, performance-management processes, return-to-work programs, leave provisions). The substantive content recognizes the documented Alberta employment record, including the systemic-exclusion documentation in the campaign's earlier work.

**Area 4: Transportation.** Standards regulating the accessibility of public transit, paratransit, intercity transit, taxi and rideshare services, transportation infrastructure (stations, terminals, bus stops), and transportation-related communications and information. The area covers transportation services operating within provincial jurisdiction; federally regulated transportation (interprovincial rail, federally regulated air, ferry services on federal waters) is regulated by the federal *Accessible Canada Act* and is excluded from provincial coverage but addressed through coordination provisions.

**Area 5: Design and delivery of services and programs.** Standards regulating the accessibility of services and programs, including customer service, service-design, program-design, and service-delivery practices. The area applies broadly across public-sector, private-sector, and non-profit-sector organizations. The substantive content draws on the customer-service-standard tradition the Ontario AODA and the Manitoba AMA established and extends to the design-and-delivery-of-services area on the federal *Accessible Canada Act* model.

**Area 6: Education.** Standards regulating the accessibility of K-12 education, post-secondary education, vocational training, adult education, and lifelong learning. The substantive content of the education area is developed in detail in Section 3.4 and operationalizes Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* within Alberta provincial jurisdiction. The education area addresses the engineered repudiation documented in Sections 1.3a and 2.7a: the funding-floor and EA staffing-ratio provisions, the segregated-setting transition pathway, the seclusion-room prohibition, the inclusive-education baseline, the consultation-requirement provisions, and the public-record reporting cycle.

**Area 7: Health.** Standards regulating the accessibility of healthcare facilities, healthcare services, healthcare communications, and healthcare-decision-making. The area addresses the accessibility of physical healthcare facilities, the accessibility of healthcare-related information (including informed-consent processes), the accessibility of healthcare-decision-making (including supported decision-making frameworks), and the structural capacity of the healthcare system to serve persons with disabilities (including healthcare-worker training in disability-affirming practice). The substantive content draws on the documented Alberta record of healthcare-access barriers and on Article 25 of the United Nations *Convention on the Rights of Persons with Disabilities*.

**Area 8: Goods and procurement.** Standards regulating the accessibility of consumer goods (where the goods are designed for use by persons with disabilities or where their accessibility affects persons with disabilities) and the accessibility-related requirements for public-sector procurement. The procurement-standard component is operationally significant: provincial-government procurement is a substantial leverage point through which accessibility requirements can be extended into the broader market. Provincial procurement specifications that require accessibility compliance produce private-sector accessibility behaviour even where the private-sector organizations are not directly regulated by the legislation's other substantive standards.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The eight areas are mutually reinforcing rather than mutually exclusive. Many specific accessibility issues operate across multiple areas simultaneously (a healthcare facility's built-environment accessibility, information-and-communications accessibility, and design-of-services accessibility all operate together). The substantive-standards-development process must accordingly address the operational interfaces between areas as well as the substantive content within each area.

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## What Section 3.2 Establishes

The substantive ground of the *Alberta Accessibility and Inclusion Act* is established through three definitional and structural choices and through the identification of eight substantive-standards areas.

The definition of disability operates within the social-model framework: the disability is in the interaction between the impairment and the barrier, not in the impairment alone. The definition explicitly enumerates physical, mental, intellectual, cognitive, learning, communication, and sensory impairment categories, and explicitly includes chronic illness, functional limitation, episodic and fluctuating conditions, progressive conditions, and invisible disabilities. The definition operates independently of the eligibility definitions used in Alberta's categorical-program architecture. The substantive purpose is to ensure that the legislation's protective function operates at the broadest substantive scope consistent with the international human rights framework.

The definition of barrier operates through a five-category enumeration that addresses physical-and-architectural barriers, information-and-communication-and-technological barriers, attitudinal barriers, policy-and-practice barriers, and systemic-and-structural barriers. The systemic-and-structural category is novel relative to comparator legislation and addresses the engineered patterns documented in Part One Section 1.3a directly. The legislation's protection against barriers operates regardless of whether the barriers were adopted with discriminatory intent; the substantive standard is the operational outcome.

The coverage architecture extends the legislation across the provincial public sector (with the most demanding obligations and the shortest timelines), the private sector on a tiered basis (large, medium, and small organizations with calibrated obligations and timelines), the non-profit and charitable sector on a parallel tiered basis, and Indigenous-governance entities through a voluntary-participation and partnership framework. Federally regulated organizations are excluded under federal jurisdiction and addressed through coordination provisions in Section 3.8.

The eight substantive-standards areas are: built environment and outdoor public spaces; information and communications; employment; transportation; design and delivery of services and programs; education; health; and goods and procurement. The substantive content of areas 1, 2, 3, 4, 5, 7, and 8 is developed in summary in Section 3.3. The substantive content of area 6 (education) is developed in detail in Section 3.4.

The substantive ground established in Section 3.2 is the foundation on which Sections 3.3 through 3.9 build. The definitions determine who the legislation protects and what it protects against; the coverage architecture determines which organizations are bound by the protections; the eight substantive-standards areas determine the operational domains within which the substantive content is developed. The next

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

section turns to the substantive content of seven of the eight areas, with education developed separately in Section 3.4.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.3 — The Substantive-Standards Areas: The Seven Non-Education Operational Domains

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Section 3.2 identified the eight substantive-standards areas the *Alberta Accessibility and Inclusion Act* establishes. Section 3.3 develops the substantive content of seven of those areas: built environment and outdoor public spaces, information and communications, employment, transportation, design and delivery of services and programs, health, and goods and procurement. The eighth area, education, is developed in Section 3.4 because the substantive content is more extensive than the seven non-education areas and because it operationalizes Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* directly in response to the engineered repudiation documented in Sections 1.3a and 2.7a.

The seven areas Section 3.3 develops are mutually reinforcing rather than mutually exclusive. Many specific accessibility issues operate across multiple areas simultaneously. A healthcare facility's accessibility, for example, is partially a built-environment question (physical access to the building), partially an information-and-communications question (accessible patient communications), partially an employment question (accommodation of healthcare workers with disabilities), and partially a design-of-services question (the accessibility of the appointment, diagnostic, and treatment processes). The substantive-standards-development process must accordingly address the operational interfaces between areas as well as the substantive content within each area.

Each of the seven areas follows a consistent substantive structure. The substantive scope identifies what the standards in the area regulate. The substantive content identifies the specific elements the standards must address. The technical specifications identify the established technical standards (where applicable) the standards should reference. The coordination provisions identify the existing Alberta regulatory frameworks with which the new standards must coordinate. The Convention alignment identifies the relevant articles of the United Nations *Convention on the Rights of Persons with Disabilities* the standards operationalize. The documented Alberta record identifies the substantive Alberta evidence on which the substantive content is grounded.

The detailed implementation timelines for each area are developed in Section 3.7. Section 3.3 specifies the substantive content; Section 3.7 specifies the operational schedule on which the content is delivered.

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## Area 1: Built Environment and Outdoor Public Spaces

The substantive scope of Area 1 is the accessibility of buildings, outdoor public spaces, infrastructure, and equipment within these settings, regulated under provincial jurisdiction. The area extends beyond the existing *Alberta Building Code* coverage in three substantive directions: from new construction and major renovation to include retrofit of existing buildings on a structured timeline; from buildings to include outdoor



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

public spaces, parks, playgrounds, recreational facilities, and public infrastructure that the Building Code does not cover; and from physical structures to include the equipment within those structures.

The substantive content of the Area 1 standard must address: accessibility requirements for new construction and major renovation that exceed the existing *Alberta Building Code* in the elements where the Code is currently insufficient (operational guidance includes door-width specifications calibrated to power-mobility devices, accessible-route specifications addressing the full range of mobility-device users, accessible-washroom specifications addressing assistance-required users, and accessible-egress specifications addressing the operational reality that emergency evacuation procedures frequently fail for persons with disabilities); structured retrofit requirements for existing buildings, prioritizing public-sector buildings (provincial-government facilities, school-division facilities, healthcare facilities, post-secondary facilities, library facilities, recreational facilities) on the most demanding timeline and private-sector buildings on tiered timelines calibrated to building type, size, and use; outdoor-public-space accessibility requirements covering trails, parks, playgrounds, public squares, beaches and waterfront access, public-event spaces, and public infrastructure; equipment-accessibility requirements covering playground equipment, recreational equipment, public-use equipment, and equipment within healthcare and educational settings; wayfinding accessibility covering tactile and visual signage, audible announcements, and orientation infrastructure; and emergency-egress accessibility covering accessible evacuation routes, accessible refuge areas, and accessible communication during emergencies.

The technical specifications the Area 1 standard should reference include the Canadian Standards Association *CSA B651 series* (Accessible Design for the Built Environment), the *Rick Hansen Foundation Accessibility Certification* (RHFAC) standards as a benchmarking reference, and the international design standards developed by the International Code Council and the International Organization for Standardization. The substantive standards should be expressed in terms that survive technical evolution, with reference to the latest applicable versions rather than to specific versions that will become outdated.

The coordination provisions must address the relationship between the Area 1 standard and the existing *Alberta Building Code*, the *Alberta Fire Code*, the *Highway Traffic Act* and related infrastructure legislation, and the *Municipal Government Act*. The *Alberta Building Code* addresses building accessibility at the time of construction or major renovation; the Area 1 standard supplements the Code by addressing existing buildings on a retrofit timeline and by addressing outdoor public spaces and equipment that fall outside the Code's substantive scope. The coordination must ensure that the two regulatory frameworks operate consistently and that organizations subject to both frameworks have a clear understanding of the integrated obligations.

The Convention alignment is Article 9 of the United Nations *Convention on the Rights of Persons with Disabilities*, which establishes the obligation on State Parties to take appropriate measures to ensure to persons with disabilities access, on an equal basis with others, to the physical environment, to transportation, to information and communications, and to other facilities and services open or provided to the public. Article 9's substantive content is operationalized across multiple areas of the legislation; Area 1 operationalizes the physical-environment dimension.

The documented Alberta record on which Area 1 substantive content is grounded includes the campaign's separate access-barrier documentation, the documented operational failures of existing-building

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

accessibility across the provincial public sector, and the substantial accessibility gaps in outdoor public spaces and recreational facilities that the disability community has documented across multiple Alberta municipalities. The area's substantive content responds to the documented record at the operational level.

## Area 2: Information and Communications

The substantive scope of Area 2 is the accessibility of information, communications, and digital technology, regulated across the public, private, and non-profit sectors within provincial jurisdiction. The area covers digital accessibility (websites, mobile applications, electronic documents, online services), document accessibility (printed and electronic documents), communications accessibility (oral, visual, and electronic communications), and technology accessibility (the compatibility of technology with assistive devices used by persons with disabilities).

The substantive content of the Area 2 standard must address: digital-accessibility standards establishing the *Web Content Accessibility Guidelines version 2.1 Level AA* as the substantive minimum for organizations subject to the legislation, with structured advancement to Level AAA where operationally feasible and to subsequent versions of the Guidelines (currently 2.2, with 3.0 in development) as they are adopted as international standards; document-accessibility standards covering alternative-format provision (Braille, large print, audio, electronic accessible formats, plain language, easy-read formats), the structured availability of alternative formats on request, and the proactive availability of alternative formats for documents of broad public significance; communications-accessibility standards covering sign-language interpretation provision (American Sign Language and *Langue des signes québécoise* as appropriate to the context, recognizing the linguistic-minority status of these communities), augmentative and alternative communication accommodation, captioning of audiovisual content, audio description of visual content, and the structured provision of communication support in public-facing interactions; and technology-accessibility standards covering compatibility with assistive technology, accessible-design requirements for procurement of technology by provincial-public-sector organizations, and the accessibility of digital interfaces used by persons with disabilities to access government services and programs.

The technical specifications the Area 2 standard should reference include the *Web Content Accessibility Guidelines* (current and subsequent versions), the *Authoring Tool Accessibility Guidelines* (ATAG 2.0), the *Web Accessibility Initiative Accessible Rich Internet Applications* (WAI-ARIA) specifications, the *EPUB Accessibility* specification for electronic publications, the *PDF/UA* specification for accessible PDF documents, and analogous international standards as they are developed and adopted.

The coordination provisions must address the relationship between the Area 2 standard and the federal *Accessible Canada Act* (which regulates federally regulated organizations including federally regulated digital services), the federal *Treasury Board Standard on Web Accessibility*, the *Saskatchewan Web Accessibility Policy* as a provincial comparator, and the existing Alberta provincial-government web standards. The coordination must ensure that organizations operating across federal and provincial jurisdictions have clear and consistent obligations and that the Alberta standards operate at or above the federal standards.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The Convention alignment is Article 21 of the United Nations *Convention on the Rights of Persons with Disabilities* (freedom of expression and opinion, and access to information), supplemented by Article 9 (accessibility) in the digital and technological dimension. Article 21 establishes the obligation on State Parties to take all appropriate measures to ensure that persons with disabilities can exercise the right to freedom of expression and opinion, including the freedom to seek, receive, and impart information and ideas on an equal basis with others.

The documented Alberta record on which Area 2 substantive content is grounded includes the accessibility gaps in Government of Alberta digital services (documented operationally in the campaign's information-asymmetry analysis), the structural inaccessibility of AISH and ADAP application processes to populations with cognitive, learning, and literacy-related disabilities, the documented absence of accessible alternative formats for many provincial-government documents, and the inconsistent provision of sign-language interpretation in public-facing provincial services.

### Area 3: Employment

The substantive scope of Area 3 is the accessibility of employment relationships, including recruitment, hiring, accommodation, retention, advancement, return-to-work, and termination. The area applies to employers of all sizes within provincial jurisdiction (federally regulated employers fall under the federal *Accessible Canada Act* and are excluded), with tiered substantive obligations calibrated to organizational size and capacity per the coverage architecture established in Section 3.2.

The substantive content of the Area 3 standard must address: accessible recruitment processes covering the accessibility of job-posting communications, the accommodation of accessibility needs in application processes (including alternative-format applications, extended application timelines for applicants requiring accommodation, and accessible interview accommodations), and the elimination of recruitment practices that disproportionately exclude persons with disabilities; accessible hiring processes covering the accommodation of testing and assessment procedures, the bias-reduction infrastructure for hiring decisions, and the accommodation of disability-related needs in onboarding; structured workplace-accommodation processes covering the standardized procedure for requesting accommodation, the substantive presumption in favour of providing accommodation, the structured documentation of accommodation discussions and decisions, and the prohibition on the overuse of *undue hardship* defences to defeat accommodation requests; equal-access provisions covering training, professional development, mentorship, and promotion opportunities; structured return-to-work programs for employees returning after disability-related leave, including accommodation discussions before return, modified-duty arrangements, structured re-integration timelines, and the prohibition on adverse employment consequences for employees who exercise return-to-work rights; disability-aware performance-management frameworks that distinguish between performance issues attributable to inadequate accommodation and performance issues attributable to other factors; and accessible workplace-policy documents and accessible disciplinary processes.

The Area 3 standard must also address the structural employment-architecture issues that the documented Alberta record demonstrates have produced systemic employment exclusion for persons with disabilities. The structural issues include the inadequate AISH employment-earnings exemption (which

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

structurally penalizes employment income above modest thresholds), the inadequate PDD employment-related supports (which fail to provide the wraparound supports that would enable persons with developmental disabilities to maintain employment), and the inadequate provincial-government infrastructure for supported employment, customized employment, and work-integration social-enterprise frameworks. The Area 3 standard cannot directly resolve the structural issues (which require coordination with the categorical-program architecture per Section 3.8), but the standard must require that provincial-public-sector employers and large private-sector employers operate employment practices that recognize the structural reality and operate in ways that do not compound the existing structural exclusion.

The coordination provisions must address the relationship between the Area 3 standard and the *Alberta Human Rights Act* (which addresses employment discrimination on protected grounds including physical disability and mental disability), the *Alberta Labour Relations Code* (which addresses unionized employment relationships), the *Workers' Compensation Act* (which addresses workplace-injury and return-to-work in the workers'-compensation context), the *Employment Standards Code* (which establishes minimum employment-standards), and the *Occupational Health and Safety Act* (which addresses workplace safety including for workers with disabilities). The coordination must ensure that the Area 3 standard supplements rather than displaces the existing legislative framework and that employers subject to multiple frameworks have clear and consistent obligations.

The Convention alignment is Article 27 of the United Nations *Convention on the Rights of Persons with Disabilities* (work and employment), which establishes the right of persons with disabilities to work, on an equal basis with others, in work environments that are open, inclusive, and accessible to persons with disabilities.

The documented Alberta record on which Area 3 substantive content is grounded includes the campaign's separate systemic-exclusion documentation, the substantial Alberta evidence on the inadequacy of AISH employment-earnings exemptions, the documented inadequacy of PDD employment supports, the documented absence of provincial-government supported-employment infrastructure at the scale operationally required, and the disability-community advocacy on the structural-employment dimension across multiple lifecycle stages.

## Area 4: Transportation

The substantive scope of Area 4 is the accessibility of transportation services, transportation infrastructure, and transportation-related communications, regulated within provincial jurisdiction. The area covers public transit (operated by municipal transit authorities), paratransit (specialized transportation for persons whose disabilities prevent the use of conventional public transit), intercity transit operating within provincial jurisdiction, taxi and rideshare services, transportation infrastructure (stations, terminals, bus stops, transit shelters), and transportation-related communications (route information, schedule information, real-time service information, booking systems). Federally regulated transportation (interprovincial rail, federally regulated air, federally regulated ferry services) falls under the federal *Accessible Canada Act* and is excluded from provincial coverage but addressed through coordination provisions in Section 3.8.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive content of the Area 4 standard must address: public-transit accessibility requirements covering accessible vehicles (accessible buses with low-floor or ramp-equipped designs, accessible light-rail and light-metro vehicles, accessible commuter-rail vehicles), accessible stations and stops (accessible boarding platforms, accessible station infrastructure, accessible signage and wayfinding, accessible information displays), accessible communications (accessible route and schedule information, accessible real-time service information, accessible booking and trip-planning systems), and accessible service provision (driver and operator training in disability-affirming practice, accommodation of service animals, accommodation of mobility devices); paratransit standards covering structured eligibility frameworks (calibrated to provide service to all persons whose disabilities prevent the use of conventional transit, not only to persons meeting narrow medical-model criteria), service-level standards (advance-booking timelines, on-time performance benchmarks, trip-completion benchmarks), service-area coverage (calibrated to ensure paratransit availability throughout the conventional-transit service area), and the prohibition on paratransit denial that effectively excludes persons with disabilities from community participation; intercity-transit accessibility requirements covering accessible vehicles, accessible boarding facilities, and accessible communications for intercity bus and rail services operating within provincial jurisdiction; taxi and rideshare accessibility requirements covering the structural availability of accessible taxi vehicles in fleet composition (mandatory minimum percentages of wheelchair-accessible vehicles), the accommodation provisions for rideshare services (accessible booking, accommodation of service animals, accommodation of mobility devices), and the regulatory framework that ensures rideshare-driver accountability for accessibility provisions; transportation-infrastructure accessibility requirements covering bus stops, transit shelters, station infrastructure, and the connecting pedestrian infrastructure that enables persons with disabilities to access transit services; and transportation-related communication accessibility per Area 2 substantive content as it applies in transportation contexts.

The coordination provisions must address the relationship between the Area 4 standard and the federal *Accessible Canada Act* and the *Accessible Transportation for Persons with Disabilities Regulations* under the federal *Canada Transportation Act* (which regulate federally regulated transportation), the *Highway Traffic Act* and analogous provincial transportation legislation, the *Municipal Government Act* (under which municipal transit authorities operate), and the operational practices of major Alberta municipal transit authorities (Edmonton Transit Service, Calgary Transit, Lethbridge Transit, Red Deer Transit, and others). The coordination must respect the operational autonomy of municipal transit authorities while establishing the substantive accessibility standards that all transit services must meet.

The Convention alignment is Article 20 of the United Nations *Convention on the Rights of Persons with Disabilities* (personal mobility), which establishes the obligation on State Parties to take effective measures to ensure personal mobility with the greatest possible independence for persons with disabilities, supplemented by Article 9 (accessibility) in the transportation dimension.

The documented Alberta record on which Area 4 substantive content is grounded includes the documented service gaps in Edmonton Transit Service paratransit (DATS), the documented service gaps in Calgary Transit Access, the substantial absence of intercity rural transportation that disproportionately excludes rural persons with disabilities from community participation, the inadequacy of accessible-taxi fleet composition in major Alberta municipalities, and the disability-community advocacy on transportation-accessibility issues across multiple Alberta municipal contexts.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Area 5: Design and Delivery of Services and Programs

The substantive scope of Area 5 is the accessibility of services and programs across public-sector, private-sector, and non-profit-sector organizations, including customer-service practices, service-design practices, program-design practices, and service-delivery practices. The area is the broadest of the seven non-education areas in operational scope, applying to virtually every organization that provides services to the public within provincial jurisdiction.

The substantive content of the Area 5 standard must address: customer-service standards covering the accommodation of accessibility needs in customer-facing interactions, the training of customer-facing staff in disability-affirming practice, the structured provision of communication support (including sign-language interpretation, written-communication alternatives, plain-language alternatives, and AAC accommodation) on request and in defined circumstances proactively, the accommodation of service animals, and the accommodation of support persons; service-design standards covering the application of universal-design principles in service design (designing services from the outset to be accessible to the full range of users rather than designing services for typical users and adding accommodations after the fact), the structured engagement of persons with disabilities in service-design processes, and the substantive accessibility evaluation of services prior to deployment; program-design standards covering analogous principles for program design (eligibility criteria designed to be accessible to the full range of intended beneficiaries, application processes designed to be accessible, program-delivery practices designed to be accessible, and the structured engagement of persons with disabilities in program design); service-delivery practices covering ongoing accommodation in service relationships, the structured handling of accommodation requests, the resolution of accommodation disputes, and the integration of accessibility considerations into ongoing service-quality improvement; application-process accessibility covering the substantive accessibility of application processes for benefits, programs, services, licences, and other government and non-government processes (this is the substantive content most directly relevant to the Access Gap analysis the campaign maintains as a parallel workstream); and complaint-and-feedback accessibility covering accessible complaint mechanisms, accessible feedback processes, and the substantive consideration of complaint-and-feedback information in ongoing service improvement.

The Area 5 standard is operationally significant because it addresses the substantive ground on which most operational disability-policy failures occur. The categorical-program architecture's documented operational failures (the AISH application inaccessibility, the PDD assessment-and-application inaccessibility, the FSCD application inaccessibility, the documented Access Gap across CRA, AISH, PDD, FSCD, and analogous government programs) are all substantively addressed within the Area 5 substantive scope. The standard cannot directly redesign the categorical programs (the categorical programs operate under their own enabling legislation), but the standard requires that the design and delivery of services and programs by all organizations subject to the legislation, including the public-sector organizations administering the categorical programs, comply with substantive accessibility standards.

The coordination provisions must address the relationship between the Area 5 standard and the enabling legislation of provincial-government programs (the *AISH Act* and analogous statutes), the *Alberta Human Rights Act* in its services-provision dimension, the *Consumer Protection Act* and analogous private-sector services legislation, and the analogous federal frameworks governing federal services and programs



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

operating in Alberta.

The Convention alignment is Article 9 of the United Nations *Convention on the Rights of Persons with Disabilities* (accessibility) in its services-and-programs dimension, supplemented by Article 19 (living independently and being included in the community) where the services and programs in question are community-based services supporting independent living.

The documented Alberta record on which Area 5 substantive content is grounded includes the campaign's separate Access Gap documentation, the documented operational failures of categorical-program application processes, the substantial Alberta evidence on the inaccessibility of provincial-government services to populations with cognitive, learning, mental-health, and literacy-related disabilities, and the disability-community advocacy on services-and-programs accessibility across multiple lifecycle stages.

## Area 6: Health

The substantive scope of Area 6 is the accessibility of healthcare facilities, healthcare services, healthcare communications, and healthcare-decision-making, regulated across the provincially-regulated healthcare system within provincial jurisdiction.

The substantive content of the Area 6 standard must address: healthcare-facility accessibility covering physical accessibility of hospitals, clinics, healthcare offices, long-term-care facilities, and analogous facilities (operationalizing Area 1 substantive content in the healthcare-facility context), accessible medical equipment (height-adjustable examination tables, accessible weight scales, accessible diagnostic equipment, accessible treatment equipment), and accessible patient-flow infrastructure (accessible registration, accessible waiting areas, accessible specimen collection, accessible imaging services); healthcare-services accessibility covering accommodation in clinical interactions, accessible appointment-booking processes, accessible diagnostic procedures, accessible treatment procedures, accessible discharge processes, and the structured accommodation of disability-related needs throughout the patient journey; healthcare-communications accessibility covering accessible health-information materials (operationalizing Area 2 substantive content in the healthcare-communications context), accessible informed-consent processes (including alternative-format consent forms, plain-language consent discussions, and the accommodation of supported-decision-makers in consent processes), accessible prescription-and-medication communications, and accessible care-planning communications; healthcare-decision-making accessibility covering the structured recognition of supported-decision-making frameworks in healthcare contexts (operationalizing Article 12 of the United Nations *Convention on the Rights of Persons with Disabilities*), the prohibition on substitute-decision-making practices that exclude the patient from decision-making in their own healthcare, the structured recognition of advance-care-planning documents, and the structured accommodation of patients with cognitive disabilities, communication disabilities, and mental-health disabilities in decision-making processes; healthcare-worker training covering disability-affirming-practice training, anti-ableist-practice training, supported-decision-making training, and accommodation-provision training, integrated into the training and continuing-education frameworks of the relevant healthcare-worker regulatory bodies (the College of Physicians and Surgeons of Alberta, the College of Registered Nurses of Alberta, the College of Pharmacists of Alberta, and analogous bodies); mental-health-services accessibility covering the

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

structural accommodation of mental-health-disability needs in mental-health-service delivery, the prohibition on mental-health-service practices that compound rather than ameliorate mental-health disability (including but not limited to involuntary-confinement practices in mental-health settings, where the practices exceed the substantive standards the international human rights framework establishes), and the integration of disability-rights frameworks into mental-health-system design; and end-of-life-and-palliative-care accessibility covering the structural availability of palliative care to persons with disabilities (a substantively distinct issue from medical-assistance-in-dying availability, which raises complex Convention-alignment questions and is not addressed in Area 6 substantive content), the structured accommodation of disability-related needs in end-of-life care, and the structured recognition of supported decision-making in end-of-life decisions.

The Area 6 standard does not address the structural-funding dimension of the Alberta healthcare system (Alberta Health Services budget allocation, healthcare-worker shortage, and analogous structural-funding issues operate under separate provincial-government policy frameworks). The standard addresses the substantive-accessibility dimension within the healthcare-system architecture as it operates. The structural-funding dimension is addressed through the analogous-substantive-equality argumentation that Section 1.3a applies to the K-12 system: where the structural-funding inadequacy of the healthcare system produces accessibility outcomes that disproportionately affect persons with disabilities, the legislation operates against the resulting barriers under the systemic-and-structural-barrier category established in Section 3.2's barrier definition.

The coordination provisions must address the relationship between the Area 6 standard and the *Hospitals Act*, the *Health Professions Act* (under which the healthcare-worker regulatory bodies operate), the *Alberta Health Care Insurance Act*, the *Mental Health Act*, the *Personal Directives Act*, and analogous healthcare-related provincial statutes. The coordination must respect the substantive authority of healthcare-worker regulatory bodies in their own substantive domains while establishing the substantive accessibility standards the bodies are required to incorporate.

The Convention alignment is Article 25 of the United Nations *Convention on the Rights of Persons with Disabilities* (health), which establishes the right of persons with disabilities to the enjoyment of the highest attainable standard of health without discrimination on the basis of disability, supplemented by Article 12 (equal recognition before the law) in the supported-decision-making dimension, Article 19 (living independently and being included in the community) in the community-based-healthcare-services dimension, and Article 9 (accessibility) in the healthcare-facility-and-communications dimension.

The documented Alberta record on which Area 6 substantive content is grounded includes the campaign's separate healthcare-worker-shortage analysis, the documented AISH health-benefits erosion, the documented Alberta-healthcare-system access barriers across multiple disability populations, the substantial disability-community advocacy on healthcare-access issues, and the documented intersection of healthcare-access barriers with other lifecycle dimensions documented in Part One.

## Area 7: Goods and Procurement

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive scope of Area 7 is the accessibility of consumer goods (where the goods are designed for use by persons with disabilities or where their accessibility affects persons with disabilities) and the accessibility-related requirements for public-sector procurement of goods and services. Area 7 is operationally significant because it addresses two distinct accessibility-leverage points: the design of goods themselves, and the use of public-sector procurement to drive private-sector accessibility behaviour.

The substantive content of the Area 7 standard must address, in the consumer-goods dimension: design standards for goods specifically designed for persons with disabilities (medical devices, mobility devices, communication devices, assistive technology, accessible household goods), establishing substantive design requirements that ensure these goods are usable by the persons they are designed to serve and that the goods do not impose unreasonable barriers to use; design-consideration standards for goods that, while not specifically designed for persons with disabilities, have substantial accessibility implications (consumer electronics, household appliances, vehicles, transportation-related products), establishing structural-consultation requirements with persons with disabilities in the design and testing of these goods; and labelling-and-information standards covering the accessible communication of product information, including ingredient information, usage information, and safety information, in formats accessible to persons with disabilities (the labelling standards must coordinate with federal labelling requirements under the *Food and Drugs Act*, the *Consumer Packaging and Labelling Act*, and analogous federal legislation, recognizing that food and drug labelling is primarily federal jurisdiction).

The substantive content of the Area 7 standard must address, in the procurement dimension: provincial-public-sector procurement standards establishing accessibility-compliance requirements for goods and services purchased by provincial-public-sector organizations, including built-environment construction and renovation contracts, technology and digital-services contracts, transportation-services contracts, professional-services contracts, and consumer-goods contracts; supplier-qualification requirements covering the substantive accessibility-compliance qualifications suppliers must demonstrate to participate in provincial-public-sector procurement processes; contract-language requirements establishing the substantive accessibility provisions that must be included in provincial-public-sector contracts; and supply-chain accountability provisions establishing the responsibilities of prime contractors for the accessibility compliance of their subcontractors and suppliers.

The procurement dimension is a substantive-leverage strategy that the comparator legislation has used in varying forms. Provincial-public-sector procurement is a substantial portion of total economic activity in Alberta; procurement-specification requirements that mandate accessibility compliance produce private-sector accessibility behaviour at the supplier level even where the suppliers are not directly regulated by the legislation's other substantive standards. The leverage-strategy dimension is operationally significant for small-and-medium private-sector enterprises that may fall below the substantive-standards-coverage threshold but that participate in provincial-public-sector supply chains.

The coordination provisions must address the relationship between the Area 7 standard and the *Alberta Public Procurement Act*, the *Alberta Treasury Board Procurement Directives*, the *Public Sector Body and Procurement* provisions in the *New West Partnership Trade Agreement* and the *Canadian Free Trade Agreement* (which establish open-procurement requirements that must be respected in the substantive-accessibility-procurement-requirements design), and the federal procurement frameworks

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

operating in Alberta.

The Convention alignment is Article 9 of the United Nations *Convention on the Rights of Persons with Disabilities* (accessibility) in its goods-and-services dimension, supplemented by Article 4 (general state-party obligations) in the structural-implementation dimension.

The documented Alberta record on which Area 7 substantive content is grounded includes the limited Alberta operational use of procurement-leverage strategy in disability policy, the comparator-jurisdiction record of procurement-leverage strategy effectiveness, and the disability-community advocacy on consumer-goods accessibility.

## What Section 3.3 Establishes

The substantive content of seven of the eight substantive-standards areas of the *Alberta Accessibility and Inclusion Act* is now specified at the depth required for legislative-drafting input. The seven areas address: built environment and outdoor public spaces (operationalizing Article 9 in the physical-environment dimension); information and communications (operationalizing Article 21 and Article 9 in the digital-and-information dimension); employment (operationalizing Article 27); transportation (operationalizing Article 20 and Article 9 in the transportation dimension); design and delivery of services and programs (operationalizing Article 9 broadly across services-and-programs); health (operationalizing Article 25, Article 12, Article 19, and Article 9 in the healthcare dimension); and goods and procurement (operationalizing Article 9 in the goods-and-procurement dimension).

The substantive content of each area is grounded in the documented Alberta record (drawn from Part One and the campaign's broader documentary record) and aligned with the international human rights framework Canada has bound itself to under the United Nations *Convention on the Rights of Persons with Disabilities* (Part Two Section 2.7). The substantive specifications are detailed enough to guide legislative drafting and to provide the operational basis for subsequent standards-development processes, while preserving the technical-drafting and standards-specification work that legislative counsel and standards-development bodies will conduct.

The seven areas operate together as a comprehensive accessibility-standards framework. They are not exhaustive of every accessibility issue persons with disabilities encounter (no comparator framework is exhaustive), but they cover the substantive ground on which the documented Alberta-disability-community advocacy has identified the most operationally significant accessibility barriers. The eighth area, education, receives standalone development in Section 3.4 because the substantive content is more extensive than the seven areas Section 3.3 has addressed and because the engineered repudiation documented in Sections 1.3a and 2.7a requires a more detailed substantive response than the Section 3.3 summary structure can deliver.

The next section turns to the education-area standard.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.4 — The Education-Area Standard: Operationalizing Article 24 Within Alberta Provincial Jurisdiction

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Section 3.3 developed the substantive content of seven of the eight substantive-standards areas of the *Alberta Accessibility and Inclusion Act*. Section 3.4 develops the substantive content of the eighth area, education, in the depth the substantive content requires. The detailed development is justified by three substantive considerations. First, the substantive content is more extensive than the seven non-education areas because the education area must address the engineered three-part repudiation documented in Part One Section 1.3a (the funding starvation, the segregated-classroom expansion, and the political-rhetorical cover) at the operational level. Second, the substantive content must operationalize Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* (Part Two Section 2.7) and General Comment No. 4 (Part Two Section 2.7a) within Alberta provincial jurisdiction directly. Third, the substantive content must specify departures from comparator legislation that the documented Alberta record requires — in particular the funding-floor and EA-staffing-ratio provisions that no comparator legislation includes but that the Alberta engineered-repudiation finding makes operationally necessary.

The section develops eight substantive components of the education-area standard. The first establishes inclusive education as the structural baseline for the Alberta K-12 system, operationalizing General Comment No. 4's substantive distinction among exclusion, segregation, integration, and inclusion. The second establishes the per-student-funding-floor provisions and the operational mechanism through which the floor is maintained. The third establishes the educational-assistant staffing-ratio provisions and the operational mechanism through which the ratios are delivered. The fourth establishes the segregated-setting transition pathway, including the prohibition on expansion of new segregated facilities and the structured transition of existing segregated programming to inclusive programming. The fifth establishes the structural prohibition on involuntary confinement in seclusion rooms and the structured framework for the elimination of physical-restraint practices. The sixth establishes the positive-behaviour-support and reasonable-accommodation framework that operates as the operational alternative to seclusion, restraint, and segregation. The seventh establishes the Article 4(3) consultation requirements that operate at the policy-development, standards-development, and implementation levels. The eighth establishes the public-record reporting and statutory-review cycle through which the substantive content is monitored, evaluated, and improved over time. A final substantive component addresses the coordination provisions with the existing Alberta education-sector legislative and regulatory architecture.

The substantive content of Section 3.4 is grounded in the documented Alberta record across Section 1.3a, in the international human rights framework documented in Sections 2.7 and 2.7a, in the comparator-jurisdiction record documented in Sections 2.1 through 2.6 (with particular attention to the Nova Scotia precedent of education as a stand-alone accessibility area), and in the disability-community

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

advocacy position consistently maintained by Inclusion Alberta and other Alberta disability-rights organizations across the period under examination.

## The Inclusive Education Baseline

The education-area standard must establish inclusive education as the structural baseline for the Alberta K-12 system. The substantive standard is dispositive: inclusion is the only educational framework consistent with Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*, and the Alberta legislation must accordingly establish inclusion as the default substantive framework within which all educational placement and programming decisions operate.

The substantive content of the inclusive-education-baseline provision must codify the General Comment No. 4 four-framework taxonomy (exclusion, segregation, integration, inclusion) within the legislation, must identify inclusion as the substantive framework the legislation requires, must establish a statutory presumption in favour of inclusive placement for all students with disabilities, must preserve the existing parental right to choose inclusive education for children with developmental disabilities (operationalizing the 2003 *Standards for Special Education* parental-choice provision in updated and strengthened form), must establish the substantive right of appeal of placement decisions that depart from inclusive placement, and must establish the substantive content of inclusive education at the operational level (general-education classroom placement, age-and-grade-appropriate programming, structured accommodations and modifications integrated into the general-education curriculum, structured peer relationships with non-disabled students, structured participation in the full range of school activities, and structured transition planning across grade levels and educational stages).

The statutory presumption in favour of inclusive placement is operationally significant. The presumption establishes that, in the absence of substantive evidence that inclusive placement is not in the substantive interest of the individual student, the inclusive placement is the placement the system delivers. The presumption shifts the operational burden from the family (which currently must advocate continuously for inclusive placement against system pressure to segregated programming) to the system (which must demonstrate, on substantive evidence, that any departure from inclusive placement serves the substantive interest of the individual student). The presumption is supplemented by structured accommodation and modification provisions that ensure the inclusive placement is operationally feasible for the individual student.

The right of appeal of placement decisions that depart from inclusive placement must operate through a structured appeal process with defined timelines, with substantive review of the placement decision against the inclusive-baseline standard, and with substantive remedies available if the placement decision is found to depart from the inclusive baseline without sufficient substantive justification. The appeal process must be accessible to families regardless of their familiarity with administrative procedures, must include support for families navigating the process, and must operate at no cost to families.

The substantive content of inclusive education at the operational level must be specified with sufficient detail that *inclusion* is not reduced to formal physical placement in a general-education classroom without the substantive supports that make inclusion meaningful (the *integration without inclusion* problem



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

General Comment No. 4 explicitly identifies). The substantive content must include the structured provision of accommodations and modifications, the structured provision of educational-assistant support at the ratios specified in subsequent provisions, the structured provision of specialist support (speech-language pathologists, occupational therapists, psychologists, behaviour analysts, where indicated) within the general-education classroom or in close coordination with general-education programming, the structured provision of curriculum modification where indicated by the individual student's profile, the structured provision of peer-support arrangements, and the structured provision of teacher training in inclusive pedagogy and disability-affirming practice.

## The Per-Student Funding-Floor Provisions

The education-area standard must establish per-student-funding-floor provisions that prevent the funding-starvation pattern documented in Section 1.3a from being the structural mechanism through which inclusion is denied. The substantive provision is a substantial departure from comparator accessibility legislation. None of the federal *Accessible Canada Act* or the five comparator provincial accessibility statutes includes per-student-funding-floor provisions. The departure is justified by the documented Alberta record. The Alberta funding shortfall is not an incidental policy choice; it is the structural mechanism through which the engineered repudiation is being implemented. Comparator legislation that addresses inclusive education without addressing the funding mechanism is, on the documented Alberta evidence, insufficient to deliver Article 24 compliance.

The substantive content of the funding-floor provision must establish a defined per-student-funding floor expressed as a percentage of the Canadian provincial-and-territorial average per-student funding (calculated from Statistics Canada operational-expenditure data on a defined methodology, with reference to the data tables documented in Section 1.3a). The provision should specify that the per-student-funding floor cannot fall below the Canadian average over a defined adjustment period. The adjustment period should be calibrated to allow Alberta to close the existing 16-percent-and-widening gap to the Canadian average through a structured catch-up trajectory rather than a single-budget-year correction. A five-year adjustment period is the proposed structural framework: in the first fiscal year following the legislation's enactment, the per-student-funding floor must reach 90 percent of the Canadian average; in the second fiscal year, 92 percent; in the third fiscal year, 95 percent; in the fourth fiscal year, 98 percent; in the fifth fiscal year and subsequently, 100 percent of the Canadian average.

The funding-floor provision must include inflation-adjustment provisions ensuring that the floor maintains real-dollar value over time. The adjustment must be tied to a defined inflation index (the Consumer Price Index for Alberta, or an education-services-specific index where one becomes available) and must operate automatically rather than through discretionary annual budget decisions.

The funding-floor provision must include independent-verification provisions. The annual calculation of the Canadian provincial-and-territorial average and the annual measurement of Alberta's per-student funding against the floor must be conducted by an independent body (Statistics Canada operational-expenditure data is the primary verification source; the Office of the Auditor General of Alberta is the proposed verification body). The verification must be public, must be tabled in the Legislative Assembly, and must be subject to independent statutory review on the cycle established for the legislation's overall review.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The funding-floor provision must include enforcement provisions. The substantive consequence of the provincial-government failing to meet the funding floor in any fiscal year must be defined in the legislation. Proposed structural consequences include: a mandatory remediation budget submission within a defined period, with the remediation budget restoring the funding to the floor level; a mandatory public reporting requirement on the failure and on the remediation plan; a structural disability-community-consultation requirement on the remediation plan prior to its implementation; and a substantive review of the funding-floor failure as part of the next periodic statutory review of the legislation.

The funding-floor provision must include transparency provisions ensuring that the calculation of the funding floor and the assessment of compliance are publicly accessible and substantively meaningful. The transparency provisions must require the publication of the underlying data, the methodology of the calculation, the comparison to the Canadian average, and the trajectory of the funding-floor calculation over time. The transparency must enable independent verification by the disability community, by the teachers' organization, by the Alberta School Boards Association, by independent academic researchers, and by other parties with interest in the substantive accountability of the funding-floor compliance.

The funding-floor provision is the structural mechanism through which the substantive content of the inclusive-education baseline is made operationally feasible. Without adequate funding, inclusive education cannot be delivered at the substantive level General Comment No. 4 requires. The funding-floor provision is accordingly not a separate or supplementary element of the education-area standard; it is a foundational element without which the other substantive provisions cannot operate as intended.

## The Educational-Assistant Staffing-Ratio Provisions

The education-area standard must establish minimum educational-assistant (EA) staffing ratios in Alberta classrooms sufficient to deliver inclusive education without forcing displacement to segregated settings. The provision is a structural complement to the funding-floor provision: the funding-floor establishes the resources, and the staffing-ratio provision establishes the operational deployment of those resources at the classroom level. Both provisions are substantial departures from comparator accessibility legislation. Both are justified by the documented Alberta record.

The substantive content of the staffing-ratio provision must specify the minimum EA support hours per student receiving inclusive-education programming. The substantive specification must be calibrated to the substantive support requirements of the student population. The proposed structural framework distinguishes among three substantive support tiers, calibrated to the operational support requirements documented in the existing Alberta special-education and inclusive-education literature. **Tier 1:** students whose support requirements are episodic, low-intensity, or peer-support-deliverable, requiring approximately 0.1 to 0.3 EA full-time-equivalent (FTE) hours per student (one EA FTE per group of three to ten students). **Tier 2:** students whose support requirements are sustained but moderate-intensity, requiring approximately 0.3 to 0.5 EA FTE hours per student (one EA FTE per group of two to three students). **Tier 3:** students whose support requirements are sustained and high-intensity, requiring approximately 0.5 to 1.0 EA FTE hours per student (one EA FTE per student in the highest-intensity context).

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The substantive specification must include structured-assessment provisions for placement of students within the tier framework. The placement must be conducted by a qualified-professional assessment, must include family and student input, must be subject to periodic reassessment, and must be subject to appeal where the family or student dispute the placement. The placement must operate to ensure that students receive the substantive level of support their substantive needs require, not to ration support based on aggregate budget considerations.

The substantive specification must include living-wage provisions for the EA workforce. The provision is operationally significant. The Tyee's documented reporting on Alberta EA compensation (Section 1.3a) establishes that EAs working seven-hour shifts at the top of the existing pay range receive after-tax annual income under \$30,000. Recruitment and retention are structurally constrained by the inadequate compensation. Without addressing the compensation, the staffing-ratio provision cannot be delivered: the structural EA labour-supply constraint will continue to operate even where school divisions have funding to hire. The proposed living-wage provision establishes a minimum EA compensation calibrated to the Alberta living-wage benchmark (calculated for major Alberta urban centres by the Living Wage Canada network and analogous bodies), with provisions for cost-of-living adjustment in northern, rural, and remote Alberta communities where the living-wage benchmark differs from the urban-centre benchmark.

The substantive specification must include training provisions for the EA workforce. The training must be funded through the provincial-government education budget rather than through individual EA expense. The training must include disability-affirming practice training, positive-behaviour-support training, trauma-informed practice training, AAC accommodation training, and accommodation-of-multiple-disability-profiles training. The training must be delivered by qualified professionals with substantive content expertise, must be delivered on a structured ongoing cycle rather than as a one-time orientation, and must be integrated with the broader teacher-and-school-staff professional-development framework.

The substantive specification must include federal-coordination provisions for Indigenous students. The Jordan's Principle eligibility collapse documented in Section 1.3a has produced the loss of hundreds of Alberta EA positions supporting First Nations students with disabilities. The substantive content must establish provincial-government commitment to maintain the EA staffing-ratio standards for Indigenous students regardless of the trajectory of federal Jordan's Principle funding, with structural cost-recovery and federal-coordination provisions developed in Section 3.8.

The staffing-ratio provision must include enforcement provisions analogous to the funding-floor enforcement provisions. The substantive consequence of provincial-government failure to meet the staffing-ratio standards in any school division must be defined, must include mandatory-remediation requirements, and must include public-reporting requirements on the failure and on the remediation plan.

## The Segregated-Setting Transition Pathway

The education-area standard must establish a structured transition pathway from the existing segregated-setting expansion (documented in Section 1.3a) to the inclusive-education baseline established in the first substantive component of Section 3.4. The transition pathway is the operational

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

mechanism through which the engineered-segregation pattern is reversed without producing immediate disruption for students currently enrolled in segregated programming.

The substantive content of the transition pathway must establish, as a foundational provision, the prohibition on the operational expansion of new segregated facilities and programs. The prohibition operates from the date of the legislation's enactment forward. The prohibition applies to the construction of new dedicated segregated schools (operationalized to address the Edmonton Public Schools Autism Centre of Excellence proposal documented in Section 1.3a), to the expansion of existing dedicated segregated schools beyond their current operational capacity (operationalized to address the planned second Calgary Catholic specialized facility proposed for Fall 2026 documented in Section 1.3a), to the establishment of new segregated classroom programs within otherwise-integrated schools, and to the expansion of existing segregated classroom programs (operationalized to address the EPSB *interactions program* expansion pattern documented in Section 1.3a).

The prohibition on expansion is substantive rather than performative. The legislation must define *segregated facility* and *segregated program* with sufficient operational precision to prevent the prohibition from being defeated through definitional reframing of expanded segregated programming as some other form of programming. The proposed definitional approach is to incorporate the General Comment No. 4 substantive definition of segregation directly into the Alberta statutory framework: *segregation occurs when the education of students with disabilities is provided in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities*. Programming meeting the General Comment definition is, for purposes of the Alberta legislation, segregated programming subject to the prohibition on expansion.

The substantive content of the transition pathway must also establish the structured transition of existing segregated programming to inclusive programming. The transition is operationally substantial. The existing Alberta segregated-programming infrastructure includes dedicated schools (the Edmonton Public Schools proposed Autism Centre of Excellence, the Calgary Catholic St. Anthony school, analogous facilities), dedicated classroom programs (the Edmonton Public Schools *interactions program*, analogous programs in other school divisions), and partial-segregation arrangements (resource rooms, pullout programming, separate-stream programming within otherwise-integrated schools). The transition must address all three categories.

The substantive transition framework operates over a defined transition period. The proposed framework is a ten-year transition period during which the existing segregated programming is converted to inclusive programming with appropriate adaptations and supports. The framework includes: a Year 1 substantive-needs assessment of all students currently enrolled in segregated programming, conducted with family and student input and with structured engagement of the disability community; a Year 1-3 transition-support-infrastructure development period during which the substantive supports required to enable inclusive placement of currently-segregated students are developed and operationalized (including increased EA staffing per the staffing-ratio provisions, expanded specialist-support provision, expanded teacher training, and expanded curriculum-modification capacity); a Year 3-7 structured-transition period during which students currently enrolled in segregated programming are transitioned to inclusive placements at a defined annual rate, with transition support and structured monitoring of transition outcomes; and a Year 7-10 final-transition and stabilization period during which all remaining segregated

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

programming is converted to inclusive programming.

The transition pathway must include parental-choice provisions during the transition period. Families whose children are currently enrolled in segregated programming and who wish their children to remain in the existing programming during the transition period must have that choice respected, recognizing that families who have made the difficult decision to enroll their children in segregated programming under the existing pressure-against-inclusion conditions may not be in a position to immediately transition to inclusive placement even when the substantive supports are available. The transition pathway operates to provide structured options rather than mandatory immediate displacement.

The transition pathway must include independent monitoring provisions. The annual monitoring of transition progress must be conducted by an independent body (the Director of Compliance and Enforcement established in Section 3.5, supported by the Disability Community Advisory Council established in Section 3.6), must be public, must be tabled in the Legislative Assembly, and must include disability-community input on the substantive adequacy of the transition trajectory.

## The Seclusion-Room and Restraint Prohibition

The education-area standard must establish a structural prohibition on the involuntary confinement of students in seclusion rooms. The provision reverses Ministerial Order #042/2019, *Seclusion and Physical Restraint in Alberta Schools Standards*, documented in Section 1.3a, and reinstates the substantive principle the 2018 New Democratic provincial government ban operationalized: the involuntary confinement of children — particularly children with developmental and intellectual disabilities and children on the autism spectrum — in locked rooms is structurally inconsistent with substantive equality, with the dignity-and-integrity provisions of the international disability-rights framework, and with the substantive accommodation Alberta children with disabilities are entitled to under the legislation.

The substantive content of the seclusion-room prohibition must establish, as a foundational provision, the prohibition on the construction or operational use of any locked seclusion room in any Alberta school. The prohibition applies to all school divisions: public, separate, francophone, charter, and private. The prohibition applies to all educational settings: K-12 schools, alternative education programs, off-site programs, and analogous educational settings operating within provincial jurisdiction. The prohibition is structural rather than discretionary; the substantive standard is that involuntary confinement of students in locked rooms is not an educational practice consistent with the legislation, regardless of the operational rationale offered for the practice.

The substantive content must include a structured transition timeline for the closure of existing seclusion rooms. The proposed framework is a two-year transition period during which all existing seclusion rooms are decommissioned and converted to alternative use (sensory rooms with appropriate substantive design, quiet spaces with non-locking doors, instructional spaces, or other operationally appropriate uses). The Edmonton Public Schools-documented decommissioning trajectory (167 to 105 rooms between 2024 and May 2025) demonstrates the operational feasibility of structured decommissioning at scale; the proposed two-year provincial-wide framework is consistent with the operational pace EPSB has demonstrated. During the transition period, mandatory monthly reporting on decommissioning progress



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

must be provided to the Director of Compliance and Enforcement and to the Disability Community Advisory Council.

The substantive content must address physical-restraint practices distinct from seclusion-room practices. The substantive standard is that physical restraint is permitted only in immediate-safety circumstances where the immediate safety of the student or of others requires intervention, must be applied by personnel trained in safe-restraint techniques, must be limited to the minimum duration necessary to address the immediate safety concern, must be documented in detail with a structured incident-report requirement, must trigger a mandatory follow-up review including family notification and disability-community consultation where the student's substantive needs are not being adequately addressed by the existing accommodations and supports, and must not be used as a behaviour-management tool except in the immediate-safety circumstances narrowly defined.

The substantive content must include training provisions for school personnel on the alternatives to seclusion and restraint. The training must be funded through the provincial-government education budget, must be delivered by qualified professionals with substantive content expertise in positive-behaviour-support and trauma-informed practice, must be required for all teachers, EAs, and school administrators, and must be integrated with the broader professional-development framework.

The substantive content must include reporting provisions analogous to those for the segregated-setting transition pathway. The annual reporting on seclusion-room decommissioning progress, on physical-restraint incidents (including disaggregated reporting by school division, by student-disability-profile category, and by incident outcome), and on the substantive adequacy of the alternatives must be public, must be tabled in the Legislative Assembly, and must be subject to disability-community review.

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## The Positive Behaviour Support and Reasonable Accommodation Framework

The education-area standard must establish positive behaviour support and reasonable accommodation as the operational alternatives to seclusion, restraint, and segregation. The Inclusion Alberta documented position — that adequate educational-assistant staffing, training in positive-behaviour-support strategies, and trauma-informed practice are the operational alternatives — is the substantive model the legislation must operationalize.

The substantive content of the positive-behaviour-support and reasonable-accommodation framework must establish the structural-accommodation-provision requirement: every student with a disability who requires accommodation to participate fully in the inclusive-education environment is entitled to receive that accommodation, and the school division and individual school are required to provide the accommodation. The accommodation provision must operate without the structural barriers that have historically limited accommodation provision (lengthy assessment delays, inadequate substantive engagement with family-and-student needs, accommodation-rationing through the *undue hardship* defence, accommodation-failure attribution to the student's behaviour rather than to system failures of accommodation provision).



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The substantive content must establish the structured positive-behaviour-support framework as the operational alternative to seclusion-and-restraint practices. The framework operates on the substantive principle that behaviour challenges in students with disabilities are typically the consequence of unmet support needs, sensory-environmental factors, communication barriers, or other addressable conditions, rather than of the student's intentional misconduct. The operational implication is that the system response to behaviour challenges must focus on identifying and addressing the underlying conditions rather than on punishing or restraining the student. The substantive framework includes functional behaviour assessment, structured environmental modification, structured communication-accommodation, structured sensory-accommodation, structured peer-relationship support, and structured family-engagement throughout the process.

The substantive content must establish the trauma-informed-practice requirement across the K-12 system. The substantive principle is that many students with disabilities have substantial trauma histories (including the trauma of inadequate accommodation, the trauma of past seclusion-and-restraint experiences, the trauma of social-isolation in segregated programming, and the broader trauma histories that disproportionately affect populations with disabilities). The system response must be trauma-informed in its substantive design, meaning that practices and procedures must be evaluated against their substantive consequences for students with trauma histories rather than designed without consideration of those consequences.

The substantive content must establish the disability-affirming-practice requirement across the K-12 system. The substantive principle is that disability is part of human diversity, that disabled students are entitled to participate fully in the educational environment as disabled students rather than being expected to mask, suppress, or hide their disability characteristics, and that the educational environment must accommodate the full range of disability profiles rather than requiring disabled students to conform to non-disabled-typical norms. The substantive implication for educational practice includes the recognition of neurodivergent communication patterns, the recognition of disability-affirming sensory-regulation practices (including the use of stimming, fidgeting, movement, and other self-regulation behaviours), the rejection of compliance-training-based educational approaches (including but not limited to applied-behaviour-analysis approaches that have been criticized by the autistic community for substantive harm), and the integration of disability culture and disability-rights education into the broader curriculum.

The substantive content must establish the structured-accommodation-process requirement at the individual-student level. The process must include the family-and-student initiation of accommodation requests, the structured documentation of accommodation discussions and decisions, the substantive presumption in favour of providing requested accommodations, the structured-appeal-process for accommodation decisions, and the integration of accommodation-provision-tracking with the broader public-reporting framework.

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## The Article 4(3) Consultation Requirements

The education-area standard must establish Article 4(3) consultation requirements that operate at the policy-development, standards-development, and implementation levels. The substantive provision addresses the consultation gap documented in Section 1.3a (the Class Size and Complexity Cabinet

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation) and in Section 2.7a (Article 4(3) finding).

The substantive content of the consultation requirements must establish a structural Disability Community Education Consultation Council. The Council operates as a substantive disability-community representative body engaged with the development and implementation of all education policy affecting persons with disabilities. The Council membership includes parents of children with disabilities, persons with lived experience of disability who have been through the K-12 system, representatives of disability-rights organizations (including but not limited to Inclusion Alberta, the Alberta Council of Disability Services, the Alberta Federation of Parents of Students with Disabilities, the Alberta Association for Community Living, and analogous bodies), representatives of Indigenous-disability-community organizations (recognizing the substantial Indigenous-disability-population documentation maintained by the campaign and the substantive distinct concerns Indigenous-disability-community advocacy has raised), representatives of organizations supporting students with specific disability profiles (autism, learning disabilities, intellectual disabilities, mental-health disabilities, physical disabilities, sensory disabilities, multiple disabilities), and representatives of post-secondary disability-services organizations.

The Council operates with substantive authority. The Council is consulted prior to the development of any provincial-government education policy affecting persons with disabilities, including but not limited to the replacement of the 2003 *Standards for Special Education* documented in Section 1.3a. The consultation is substantive: the Council's input is considered before policy positions are developed, not after policy has been drafted and is being shopped for endorsement. The Council is consulted on standards development for the education-area substantive content. The Council is consulted on implementation issues as they arise. The Council reports publicly on the substantive engagement with its input, and the provincial-government must respond publicly to the Council's documented input.

The substantive content must establish the prohibition on the development of provincial-government education policy affecting persons with disabilities through structures that exclude disability-community representation. The Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team documented in Section 1.3a are operationally specific examples. The prohibition is general: any structure developing provincial-government education policy affecting persons with disabilities must include substantive disability-community representation, must operate consultation processes that meet the Article 4(3) substantive standard, and must report publicly on consultation outcomes.

The substantive content must establish the family-engagement and student-engagement requirement at the individual-school and individual-student level. The substantive engagement of families and students in the education planning, accommodation provision, and placement decisions affecting individual students with disabilities is the operational counterpart to the Council-level disability-community consultation. The two levels operate together to deliver the substantive Article 4(3) standard.

The substantive content must include Indigenous-disability-community consultation provisions that operate alongside the broader Council structure. The Indigenous-disability-community has substantive distinct concerns (related to the federal-provincial Jordan's Principle interface, related to the intersection of disability with treaty and Aboriginal rights, related to the cultural-context-specific accommodation

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

requirements, related to the historical-trauma context of the disability-policy framework, and related to the ongoing colonial-disability dimensions documented in the campaign's separate Indigenous Disability Alberta evidentiary record). The consultation provisions must ensure that the Indigenous-disability-community concerns receive substantive consideration in the policy and standards development.

## The Public-Record Reporting and Statutory-Review Cycle

The education-area standard must establish public-record reporting and statutory-review provisions that ensure the substantive content of the standard is monitored, evaluated, and improved over time. The provisions operate together with the analogous provisions for the legislation as a whole (developed in Section 3.8) and provide the substantive accountability mechanism through which the engineered-repudiation pattern is prevented from being reproduced under different operational labels.

The substantive content of the reporting provisions must require annual public reports addressing: the substantive implementation of the inclusive-education baseline, including data on student placement (inclusive, integrated, segregated) by school division, by grade level, and by disability-profile category; the substantive compliance with the per-student-funding-floor provisions, including the calculation of the Canadian average, the calculation of Alberta's per-student funding, and the trajectory of the Alberta funding against the floor; the substantive compliance with the EA staffing-ratio provisions, including the actual EA-to-student ratios in classrooms with students requiring support, by school division and by disability-profile category, and the recruitment and retention performance of the EA workforce; the substantive progress on the segregated-setting transition pathway, including the number and characteristics of students transitioned, the number and characteristics of students remaining in segregated programming, and the substantive adequacy of the transition support provided; the substantive compliance with the seclusion-room and restraint prohibition, including the closure progress for existing seclusion rooms, the documented physical-restraint incidents during the transition period, and the substantive consequences of the restraint incidents; the substantive operation of the positive-behaviour-support and reasonable-accommodation framework, including accommodation-request volumes, accommodation-provision rates, and accommodation-appeal outcomes; and the substantive operation of the consultation requirements, including the Council's documented input, the provincial-government response to the input, and the substantive engagement of families and students at the individual-student level.

The reporting provisions must include disaggregation requirements that enable substantive analysis of equity dimensions within the data. The disaggregation must include disaggregation by school division, by school, by grade level, by disability-profile category, by Indigenous identity (with appropriate provisions to protect individual-student identification), by gender, and by other dimensions necessary to identify substantive disparities and address them through ongoing improvement.

The reports must be public, must be tabled in the Legislative Assembly within a defined period each year, and must be accessible in alternative formats per the Area 2 substantive content of Section 3.3.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The statutory-review provisions must establish a five-year cycle for independent review of the education-area standard. The independent reviewer is appointed on terms ensuring substantive independence from the provincial government (analogous to the *Manitoba Accessibility for Manitobans Act* statutory-review framework documented in Part Two Section 2.3, and to the Ontario AODA statutory-review framework documented in Part Two Section 2.2). The independent reviewer conducts substantive review of the operational implementation of the education-area standard, the substantive adequacy of the standards, the substantive implementation of the funding-floor and staffing-ratio provisions, the substantive progress on the segregated-setting transition, and the substantive compliance with the consultation requirements. The reviewer's report is public, is tabled in the Legislative Assembly, and triggers a structured provincial-government response within a defined period.

## Coordination with the Existing Education-Sector Architecture

The education-area standard must coordinate with the existing Alberta education-sector legislative and regulatory architecture without displacing or duplicating its substantive provisions. The substantive content of the coordination provisions addresses the *Education Act* (the principal Alberta education statute), the 2003 *Standards for Special Education* (the existing Ministerial Order that includes parental-choice provisions for inclusive education), the FSCD program (which addresses family supports for children with disabilities outside the K-12 educational system itself), the post-secondary accessibility framework (which addresses post-secondary education separately from K-12), and the analogous adult-and-vocational-education frameworks.

The coordination with the *Education Act* must establish the supplementary relationship between the legislation and the existing education-sector statute. The legislation does not displace the *Education Act*; the *Education Act* continues to operate as the foundational education-sector legislation, while the *Alberta Accessibility and Inclusion Act* establishes the substantive accessibility-and-inclusion standards that operate within the education-sector. Where the two statutes interact, the substantive accessibility-and-inclusion standards in the new legislation establish the substantive minimum that *Education Act*-administered processes must meet.

The coordination with the 2003 *Standards for Special Education* must address the substantive relationship between the existing Ministerial Order and the new legislative framework. The 2003 Standards' substantive content (including the parental-choice provision for inclusive education and the placement-decision-appeal provisions) is preserved and strengthened within the new legislative framework. The replacement of the 2003 Standards documented in Section 1.3a as currently underway must occur within the new legislative framework, with the substantive parental-choice and appeal-rights elements preserved and strengthened, with the substantive Article 4(3) consultation requirements applied, and with the disability-community substantively engaged in the replacement process.

The coordination with the FSCD program must address the lifecycle interface documented in Part One Section 1.3 (transition from FSCD into the K-12 system and into PDD/AISH/ADAP at the adulthood transition). The substantive content of the coordination must ensure that students whose families receive FSCD support during their early childhood transition into the K-12 system with the substantive supports developed during the FSCD period continuing without disruption.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The coordination with post-secondary accessibility and adult-and-vocational-education frameworks must address the lifecycle interface at the K-12-to-post-secondary transition and at the K-12-to-vocational-education transition. The substantive content must ensure that students whose K-12 experience has been substantively supported by the new legislation transition into post-secondary or vocational education with the substantive supports developed during the K-12 period continuing without disruption.

## What Section 3.4 Establishes

The substantive content of the education-area standard of the *Alberta Accessibility and Inclusion Act* is now specified at the depth required for legislative-drafting input. The substantive content addresses the engineered three-part repudiation documented in Part One Section 1.3a at the operational level, operationalizes Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* and General Comment No. 4 within Alberta provincial jurisdiction directly, and specifies the departures from comparator legislation that the documented Alberta record requires.

The eight substantive components of the education-area standard establish: the inclusive-education baseline as the structural framework for the Alberta K-12 system, with statutory presumption in favour of inclusive placement, parental-choice protection for inclusive education, and right-of-appeal of placement decisions departing from inclusive placement; the per-student-funding-floor provisions that prevent the funding-starvation pattern from being the structural mechanism through which inclusion is denied, calibrated to the Canadian provincial-and-territorial average over a five-year adjustment period with structural enforcement; the educational-assistant staffing-ratio provisions calibrated to three substantive support tiers, supplemented by living-wage provisions for the EA workforce and structural training provisions; the segregated-setting transition pathway with foundational prohibition on expansion of new segregated facilities and programs and structured ten-year transition of existing segregated programming to inclusive programming with appropriate adaptations and supports; the structural seclusion-room and restraint prohibition reversing Ministerial Order #042/2019 with two-year decommissioning timeline and narrowly-defined immediate-safety physical-restraint provisions; the positive-behaviour-support and reasonable-accommodation framework operating as the operational alternative to seclusion, restraint, and segregation, with disability-affirming-practice and trauma-informed-practice requirements integrated into educational practice across the K-12 system; the Article 4(3) consultation requirements operationalized through a structural Disability Community Education Consultation Council and through the prohibition on the development of education policy affecting persons with disabilities through structures excluding disability-community representation; and the public-record reporting and statutory-review cycle that ensures substantive accountability through annual reporting and five-year independent review.

The substantive content is the operational answer to the engineered repudiation. Where the engineered system uses funding starvation as the structural mechanism through which inclusion is denied, the funding-floor provisions establish the structural-resource floor that the engineered pattern cannot defeat. Where the engineered system uses segregated-classroom expansion as the absorption mechanism for the displaced students, the prohibition-on-expansion and the structured-transition pathway reverse the absorption mechanism. Where the engineered system uses *earn inclusion* rhetoric as political cover, the

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

statutory presumption in favour of inclusive placement and the substantive disability-community consultation requirements establish that inclusion is the structural baseline, not a contingent benefit available subject to behaviour. Where the engineered system uses the consultation gap as the procedural enabler, the structural Disability Community Education Consultation Council establishes the substantive consultation infrastructure the engineered pattern lacked. Where the engineered system uses seclusion rooms as one operational harm within the segregated environments, the structural prohibition and the two-year decommissioning timeline eliminate that harm category from the system.

The substantive content is grounded in the documented Alberta record, in the international human rights framework, in the comparator-jurisdiction record, and in the disability-community advocacy position consistently maintained over the period under examination. The substantive specifications are detailed enough to guide legislative drafting and to provide the operational basis for the standards-development processes that will follow legislative enactment, while preserving the technical-drafting and standards-specification work that legislative counsel and standards-development bodies will conduct.

The next section turns to the implementing architecture and enforcement provisions through which the substantive content of all eight standards areas is operationalized.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.4 — Component 9 - Post-Secondary, Vocational, Adult, and Lifelong Learning

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The substantive Section 3.4 education-area standard developed across Components 1 through 8 operationalizes United Nations *Convention on the Rights of Persons with Disabilities* Article 24 across the substantive K-12 education context: the inclusive baseline, the per-student-funding floor calibrated to the Canadian provincial-and-territorial average, the educational-assistant staffing-ratio provisions, the segregated-setting transition pathway, the seclusion-room prohibition, the positive-behaviour-support framework, the Article 4(3) consultation requirements, and the public-record reporting framework. Component 9 expands the substantive education-area standard to operationalize Article 24 beyond the K-12 context across the substantive lifelong-education trajectory: post-secondary education, vocational training and apprenticeship, adult education, and lifelong learning.

The substantive expansion is operationally significant. Article 24 of the CRPD does not limit the substantive right to inclusive education to the K-12 context. Article 24(5) explicitly establishes that "States Parties shall ensure that persons with disabilities are able to access general tertiary education, vocational training, adult education and lifelong learning without discrimination and on an equal basis with others. To this end, States Parties shall ensure that reasonable accommodation is provided to persons with disabilities." The substantive lifelong-education trajectory is the substantive operational reality within which the substantive education dimension of the lifecycle frame established in Part One operates. The Section 1.10 lifecycle frame documents the substantive operational reality that persons with disabilities engage education across the substantive lifecycle trajectory beyond the K-12 boundary; the substantive Alberta record on post-secondary, vocational, adult, and lifelong-learning accessibility operates within structural conditions documented to be substantively inadequate at the operational level the Article 24(5) framework requires.

The component develops the substantive content in seven substantive sub-components. The first establishes the substantive Article 24(5) framework and the substantive expansion of the Section 3.4 substantive content. The second documents the substantive Alberta post-secondary education context as the operational reality within which the substantive provisions operate. The third documents the substantive operational gaps in current Alberta post-secondary disability accommodation. The fourth develops the substantive provisions for post-secondary education accessibility. The fifth develops the substantive provisions for vocational training and apprenticeship accessibility. The sixth develops the substantive provisions for adult education and lifelong-learning accessibility. The seventh establishes the substantive integration with the Section 3.4 K-12 substantive content and with the broader standards architecture.

The substantive content is grounded in primary-source documentation: the Alberta provincial-government documentation on post-secondary disability services and accommodation; the Alberta Student Aid policy

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

framework including the Schedule 4 Federal/Provincial Grant for Post-Secondary Students with Disabilities; the federal Canada Student Grant for Services and Equipment - Students with Disabilities (CSG-DSE); the substantive Alberta Human Rights Commission *Duty to Accommodate Students with Disabilities* documentation; the substantive CNIB *Education Know Your Rights Alberta* legal information handbook; and the substantive academic-and-jurisprudential record on post-secondary disability accommodation in Canada.

## The Substantive Article 24(5) Framework

The substantive Article 24(5) framework establishes the substantive international human rights legal foundation for the substantive provisions developed in Component 9. The substantive operational content includes:

**The general access provision.** Article 24(5) establishes that persons with disabilities must be able to access general tertiary education, vocational training, adult education, and lifelong learning "without discrimination and on an equal basis with others." The substantive operational reality is that Article 24(5) operates not only as a substantive non-discrimination principle but as a substantive access-and-equality framework requiring substantive policy responses operating against the substantive structural barriers persons with disabilities face in the substantive lifelong-education trajectory.

**The reasonable accommodation provision.** Article 24(5) establishes that "States Parties shall ensure that reasonable accommodation is provided to persons with disabilities." The substantive operational reality is that the substantive reasonable-accommodation framework operates as a substantive operational mechanism through which the substantive access-and-equality framework is implemented. The substantive Canadian Charter Section 15 substantive-equality framework, operating through the substantive Supreme Court of Canada *Eldridge v. British Columbia* (1997) doctrine, establishes that provincial governments must take positive steps to ensure persons with disabilities can equally benefit from public services. The substantive operational implication is that the substantive Charter Section 15 framework anchors the substantive Article 24(5) reasonable-accommodation framework within the substantive Canadian constitutional context.

**The substantive integration with the broader Article 24 framework.** Article 24(5) operates within the broader Article 24 framework establishing the substantive right to inclusive education. The substantive General Comment No. 4 on Article 24 (CRPD/C/GC/4, 2016) establishes the substantive interpretive framework operating across the Article 24 substantive content. The substantive General Comment No. 4 four-framework taxonomy (exclusion, segregation, integration, inclusion) operates substantively across the Article 24 substantive content including the Article 24(5) substantive content. The substantive operational implication is that the substantive lifelong-education trajectory must operate within the substantive inclusion framework rather than within the substantive integration, segregation, or exclusion frameworks.

**The substantive interpretive principles.** The substantive General Comment No. 4 interpretive framework establishes that Article 24 obligations operate as substantive obligations of immediate effect to the extent of available resources, with substantive obligations of progressive realization for

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

resource-dependent dimensions. The substantive operational implication is that the substantive lifelong-education accessibility provisions developed in Component 9 operate within the substantive interpretive framework that requires substantive immediate-effect operationalization for substantive non-resource-dependent dimensions and substantive progressive-realization operationalization for substantive resource-dependent dimensions.

## The Substantive Alberta Post-Secondary Education Context

The substantive Alberta post-secondary education context within which Component 9 operates includes the substantive provincial post-secondary system, the substantive disability-services infrastructure operating across the system, and the substantive financial-assistance architecture operating through Alberta Student Aid and the federal Canada Student Financial Assistance Program.

**The provincial post-secondary system.** The substantive Alberta post-secondary system operates through the *Post-Secondary Learning Act* (Alberta) and includes the substantive publicly-funded universities (including the University of Alberta, the University of Calgary, the University of Lethbridge, MacEwan University, Mount Royal University, Athabasca University, and the substantive other publicly-funded institutions), the substantive publicly-funded polytechnics and colleges (including the Northern Alberta Institute of Technology, the Southern Alberta Institute of Technology, Bow Valley College, Lakeland College, Lethbridge College, Medicine Hat College, NorQuest College, Olds College, Portage College, Red Deer Polytechnic, Keyano College, and others), and the substantive private career colleges and non-publicly-funded institutions operating across the province. The substantive operational reality is that the substantive Alberta post-secondary system operates with substantive geographic distribution across the province with substantive concentration in the Calgary-Edmonton Corridor, with substantive operational implications for the rural-and-remote post-secondary access dimension documented in Section 1.8.

**The substantive disability-services infrastructure.** The substantive provincial-government documentation establishes that "every publicly funded post-secondary institution in Alberta has a Disability/Accessibility Services Office" providing services including learning-strategy support, accommodation-planning support, assistive-technology access, and substantive operational coordination with academic departments. Source: <https://www.alberta.ca/resources-students-disabilities>. The substantive operational reality is that the substantive Disability/Accessibility Services Offices operate with substantive variation across institutions in the substantive scope, scale, and operational quality of the services provided, with the substantive operational implication that the substantive accommodation experience for post-secondary students with disabilities operates substantively differently across the substantive Alberta post-secondary system.

**The substantive financial-assistance architecture.** The substantive Alberta Student Aid Schedule 4 Federal/Provincial Grant for Post-Secondary Students with Disabilities operates as the substantive financial-assistance mechanism through which post-secondary students with disabilities access funding for substantive disability-related services and equipment. The substantive funding includes the federal Canada Student Grant for Services and Equipment - Students with Disabilities (CSG-DSE) with a substantive maximum of twenty thousand dollars annually, and the Alberta Grant for Students with

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Disabilities (GFD) with a substantive maximum of three thousand dollars annually for substantive eligible expenses not covered by the federal grant. Source: <https://studentaid.alberta.ca/media/o3qmufty/funding-for-students-with-disabilities-guide-2025-26.pdf>.

The substantive operational reality is that the substantive financial-assistance framework operates with substantive complexity (Schedule 4 form, Disability Verification Form, Psycho-Educational Assessment, eligible-medical-documentation requirements, ongoing reporting requirements) that itself operates as substantive accessibility barrier for post-secondary students with disabilities whose substantive operational engagement with the substantive bureaucratic framework operates within the substantive operational complications the disability-policy architecture imposes across all categorical-program engagement contexts.

**The substantive eligibility and definition framework.** The substantive Alberta Student Financial Assistance Regulation defines two substantive types of disability for substantive funding-eligibility purposes: Permanent Disability (PD) (any impairment, physical, mental, intellectual, cognitive, learning, communication, or sensory, or functional limitation, that restricts the ability to perform the daily activities necessary to pursue studies at a post-secondary level or participate in the labour force and that is expected to remain with the person for their lifetime); and Persistent or Prolonged Disability (PPD) (impairment or functional limitation lasting or expected to last at least twelve months but not expected to remain with the person for their lifetime). Source: <https://studentaid.alberta.ca/student-aid-funding-guide/loans-and-grants-funding-guide/students-with-disabilities/students-with-disabilities-and-required-documentation/>. The substantive operational reality is that the substantive disability-definition framework operating within the substantive financial-assistance context operates substantively distinctly from the substantive social-model disability definition developed in Section 3.2 of the legislative blueprint, with substantive operational implications for the substantive accessibility-and-coordination provisions developed in Component 9.

## The Substantive Operational Gaps

The substantive operational gaps in current Alberta post-secondary disability accommodation operate across multiple substantive dimensions documented through the substantive academic-and-advocacy record.

**The substantive disclosure-and-stigma dimension.** The substantive operational reality is that the substantive accommodation framework operates on the basis of student-initiated disclosure: "Making your institution aware of your disability increases your access to related services... You can choose not to disclose your disability to your post-secondary institution or instructors. However, they are not obligated to accommodate your disability if you don't disclose it." Source: <https://www.alberta.ca/resources-students-disabilities>. The substantive operational implication is that students with disabilities who do not disclose face substantive structural barriers to substantive accommodation, with the substantive operational reality including the documented stigma-related complications: the Alberta Human Rights Commission *Duty to Accommodate Students with Disabilities* documentation includes the substantive case of a doctoral fellowship applicant with dyslexia "who did not seek accommodation from his university during his earlier studies because of the stigma associated with

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

making such a request." Source: <https://albertahumanrights.ab.ca/media/cumfooet/duty-to-accommodate-students-with-disabilities.pdf>.

**The substantive documentation-burden dimension.** The substantive operational reality is that the substantive accommodation framework operates within substantive documentation requirements that operate as substantive accessibility barriers in their own right. The substantive Schedule 4 Federal/Provincial Grant requires substantive medical documentation including Disability Verification Form completed by an appropriate medical professional, Psycho-Educational Assessment for learning-disability documentation, eligible-medical-documentation specifying the disability and describing how it restricts post-secondary studies, and substantive supplementary documentation for specific accommodation categories. The substantive operational reality is that the substantive documentation requirements operate within substantive financial-cost dimensions (Psycho-Educational Assessments operate at substantive cost levels documented to operate above one thousand five hundred dollars in many substantive professional contexts), substantive geographic-distance dimensions (specialist-medical-and-psychological-assessment infrastructure concentrated in the Calgary-Edmonton Corridor, with substantive operational complications for rural-and-remote students), and substantive operational-coordination complications (substantive medical-professional time required for documentation completion, substantive operational coordination between primary-care providers and specialist providers, substantive operational coordination between medical-and-psychological assessment providers).

**The substantive funding-cap dimension.** The substantive operational reality is that the substantive financial-assistance framework operates with substantive funding caps that operate substantively below the substantive operational reality of disability-related costs in many post-secondary contexts. The substantive twenty-thousand-dollar federal CSG-DSE cap and the three-thousand-dollar Alberta GFD cap operate substantively below the substantive cost of comprehensive disability-related supports including substantive assistive-technology costs (specialized software licenses, hardware-and-equipment, ongoing technology support), substantive interpretation-and-captioning costs (sign-language interpretation, real-time-captioning, transcription services), substantive note-taking and academic-supports costs, substantive transportation-and-mobility-related costs (accessible transportation, parking-and-fuel costs not covered by public transportation infrastructure), and substantive operational supports including substantive personal-care attendant costs for post-secondary students with substantial care needs. The substantive operational reality is that students with disabilities whose substantive disability-related costs exceed the funding caps must operate within structural-financial-precarity that compounds with the substantive engineered structural-poverty pattern documented in Section 1.9.

**The substantive course-load-and-academic-trajectory dimension.** The substantive operational reality is that the substantive Alberta Student Aid funding framework requires sixty percent of a full course load for substantive funding eligibility (with reduced-course-load provisions allowing forty percent eligibility with substantive documented reduced-course-load provisions). The substantive operational reality is that the substantive course-load requirements operate substantively against the substantive operational reality of many post-secondary students with disabilities whose substantive operational disability-management requires reduced course loads beyond the forty-percent threshold, whose substantive operational academic trajectory requires extended degree-completion timelines beyond the substantive funding-eligibility duration, and whose substantive operational reality includes substantive variation in



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

course-load capacity across academic terms based on substantive operational disability-management requirements. The substantive operational consequence is that substantive structural barriers to post-secondary completion operate against the population the substantive financial-assistance framework is intended to serve.

**The substantive private-career-college and non-publicly-funded-institution dimension.** The substantive operational reality is that the substantive Disability/Accessibility Services Office infrastructure operates within the substantive publicly-funded post-secondary system; private career colleges and non-publicly-funded institutions operate with substantive variation in disability-services infrastructure including substantive cases of institutions with no Disability Services Office. Source: <https://www.alberta.ca/resources-students-disabilities>. The substantive operational implication is that students with disabilities operating within the substantive private-career-college and non-publicly-funded-institution infrastructure face substantive structural barriers that the substantive publicly-funded-system infrastructure does not produce at the same operational scale.

**The substantive duty-to-accommodate-and-undue-hardship dimension.** The substantive operational reality is that the substantive duty-to-accommodate framework operates with the substantive "undue hardship" limitation: "Undue hardship is a legal term. It means that if an educational institution can show that it would be very difficult for them to provide you with a certain type of accommodation, then they may be excused from providing the accommodation." Source: [https://www.cnib.ca/sites/default/files/2025-01/Education%20Handbook%20-%20Know%20Your%20Rights%20AB%20\(PDF\).pdf](https://www.cnib.ca/sites/default/files/2025-01/Education%20Handbook%20-%20Know%20Your%20Rights%20AB%20(PDF).pdf). The substantive operational reality is that the substantive undue-hardship limitation operates substantively differently across institutions and across substantive cases, with substantive operational complications for students with disabilities whose substantive accommodation requirements operate within the substantive operational interpretation of "undue hardship" by individual institutions and individual academic departments. The substantive operational consequence is that substantive accommodation experiences operate within substantive variability that produces substantive structural-uncertainty for the population.

## Substantive Provisions for Post-Secondary Education

The substantive Component 9 provisions for post-secondary education accessibility include the following substantive operational mechanisms:

**The substantive accessibility-baseline provisions.** The substantive Component 9 provisions establish the substantive operational baseline of substantive accessibility for post-secondary education across the substantive Alberta post-secondary system. The substantive provisions include: substantive built-environment accessibility requirements coordinated with the Section 3.3 Area 1 substantive standards; substantive information-and-communications accessibility requirements coordinated with the Section 3.3 Area 2 substantive standards including substantive Web Content Accessibility Guidelines compliance for institutional websites, learning-management systems, and digital-learning materials; substantive program-and-service accessibility requirements coordinated with the Section 3.3 Area 5 substantive standards; substantive transportation accessibility requirements coordinated with the Section 3.3 Area 4 substantive standards including substantive accessible-shuttle and on-campus-transportation provisions; and substantive employment accessibility requirements coordinated with the Section 3.3 Area



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3 substantive standards including substantive employment-and-internship accessibility for post-secondary students with disabilities.

**The substantive Disability/Accessibility Services Office substantive provisions.** The substantive Component 9 provisions establish substantive operational requirements for the substantive Disability/Accessibility Services Office infrastructure operating across the publicly-funded post-secondary system. The substantive operational requirements include: substantive minimum-staffing-ratio provisions calibrated to the substantive student-with-disability population at each institution; substantive professional-qualification provisions for Disability/Accessibility Services Office staff; substantive operational-procedures provisions including substantive standardized-accommodation-planning processes operating consistently across institutions; substantive timeliness provisions establishing substantive operational timelines for substantive accommodation-request processing; and substantive coordination provisions with academic departments, financial-assistance offices, residence-services offices, and substantive other institutional infrastructure.

**The substantive private-career-college and non-publicly-funded-institution provisions.** The substantive Component 9 provisions extend the substantive accessibility-baseline provisions to substantive private-career-college and non-publicly-funded-institution contexts operating across the province. The substantive operational requirements include: substantive minimum disability-services-infrastructure provisions for substantive institutions operating beyond a substantive threshold of student-population scale; substantive accommodation-process provisions operating consistently with the substantive publicly-funded-system provisions; substantive documentation-and-disclosure provisions operating consistently with the substantive publicly-funded-system provisions; and substantive coordination provisions with the substantive provincial-government oversight infrastructure.

**The substantive financial-assistance enhancement provisions.** The substantive Component 9 provisions enhance the substantive financial-assistance framework operating through Alberta Student Aid and the federal Canada Student Financial Assistance Program. The substantive enhancements include: substantive Alberta Grant for Students with Disabilities (GFD) maximum-funding increases calibrated to operate substantively against the substantive operational reality of disability-related-costs documented in the prior substantive subsection; substantive operational-flexibility provisions operating against the substantive course-load-and-academic-trajectory limitations documented in the prior substantive subsection including substantive reduced-course-load expanded-eligibility provisions; substantive documentation-burden-reduction provisions including substantive provincial-government coverage of substantive medical-and-psychological-assessment costs, substantive streamlined-documentation provisions for re-applications, and substantive operational-coordination provisions operating with the substantive Section 1.7 mental-health-and-addiction substantive accommodation-documentation infrastructure; and substantive operational-coordination provisions with the substantive AISH/ADAP and substantive Disability Tax Credit infrastructure operating across the substantive lifecycle.

**The substantive accommodation-and-academic-trajectory provisions.** The substantive Component 9 provisions establish substantive operational provisions operating against the substantive accommodation-related complications documented in the prior substantive subsection. The substantive operational provisions include: substantive academic-trajectory-flexibility provisions operating across

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reduced-course-load, extended-completion-timeline, and substantive variable-course-load contexts; substantive accommodation-dispute-resolution provisions operating consistently with the substantive Section 3.5 implementing-architecture provisions including substantive specialized post-secondary accommodation-dispute-resolution infrastructure; substantive practicum-and-field-placement-accommodation provisions operating against the substantive documented operational complications for students with disabilities in substantive practicum-and-field-placement contexts (the substantive Education Know Your Rights Alberta documentation includes the substantive case where institutions advise students that practicum-related accommodation is not possible and require program-switching or institutional departure); and substantive examination-and-evaluation accommodation provisions operating against the substantive operational complications in substantive high-stakes-evaluation contexts.

## Substantive Provisions for Vocational Training and Apprenticeship

The substantive Component 9 provisions for vocational training and apprenticeship accessibility include the following substantive operational mechanisms.

**The substantive apprenticeship-and-trades-training accessibility provisions.** The substantive Alberta apprenticeship-and-trades-training infrastructure operates through the substantive Alberta Apprenticeship and Industry Training framework. The substantive Component 9 provisions establish substantive operational requirements for substantive accessibility within the substantive apprenticeship-and-trades-training infrastructure including: substantive technical-training-component accessibility requirements operating consistently with the substantive post-secondary education provisions; substantive on-the-job-training-component accessibility requirements coordinated with the Section 3.3 Area 3 substantive employment standards; substantive examination-and-certification accessibility requirements operating against the substantive standardized-examination-and-certification frameworks operating across the substantive trades and technical occupations; and substantive operational-coordination provisions with the substantive employer-and-industry partners that the substantive apprenticeship-and-trades-training infrastructure operates through.

**The substantive workplace-accommodation-and-vocational-rehabilitation provisions.** The substantive Component 9 provisions coordinate with the substantive Section 1.6 WCB substantive vocational-rehabilitation infrastructure documented in Part One. The substantive operational requirements include: substantive WCB-vocational-rehabilitation-program accessibility provisions operating consistently with the substantive Component 9 substantive accessibility-baseline provisions; substantive coordination provisions between the substantive WCB-eligible-injured-worker population and the substantive AISH/ADAP-eligible-disability population for the substantive operationalization of substantive vocational-rehabilitation provisions across both substantive populations; and substantive integration with the substantive Disability Related Employment Supports (DRES) program operating through Alberta Student Aid for substantive private-career-college, out-of-province, and out-of-country students.

**The substantive industry-credential and continuing-professional-development provisions.** The substantive Component 9 provisions extend the substantive accessibility-baseline provisions to

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

substantive industry-credential and continuing-professional-development contexts operating across the substantive professional-and-vocational landscape. The substantive operational requirements include: substantive industry-association and professional-body accessibility provisions; substantive continuing-professional-development substantive accessibility requirements; substantive licensing-examination-and-certification accessibility provisions operating across the substantive professional-and-vocational regulatory framework; and substantive coordination provisions with the substantive Section 3.3 Area 3 substantive employment standards.

## Substantive Provisions for Adult Education and Lifelong Learning

The substantive Component 9 provisions for adult education and lifelong learning accessibility include the following substantive operational mechanisms.

**The substantive adult-basic-education and literacy-program accessibility provisions.** The substantive Alberta adult-basic-education and literacy-program infrastructure operates through the substantive Alberta *Adult Learning Act* framework and substantive operational coordination through provincial-government, post-secondary-institution, community-based-organization, and library-system substantive providers. The substantive Component 9 provisions establish substantive accessibility requirements for the substantive adult-basic-education and literacy-program infrastructure including: substantive program-design-accessibility requirements operating consistently with the substantive standards architecture; substantive substantive accommodation-and-disability-services provisions operating consistently with the substantive post-secondary provisions; substantive substantive coordination provisions with the substantive disability-community-organization infrastructure providing substantive complementary supports; and substantive substantive integration with the substantive Section 1.7 mental-health-and-addiction substantive accommodation infrastructure including substantive substantive operational-coordination provisions for adult learners with substantive complex profiles.

**The substantive English-as-additional-language and immigrant-newcomer accessibility provisions.** The substantive Alberta English-as-additional-language (EAL) infrastructure operates through substantive provincial-and-federal coordination including substantive provincial-government EAL programming, substantive Language Instruction for Newcomers to Canada (LINC) federal programming, and substantive community-based-organization and post-secondary-institution programming. The substantive Component 9 provisions establish substantive accessibility requirements for the substantive EAL infrastructure including: substantive program-design-accessibility requirements operating across the substantive intersection of disability and language-acquisition; substantive substantive accommodation-and-disability-services provisions operating with substantive cultural-competency provisions for newcomer Albertans whose substantive operational engagement with the substantive disability-policy architecture operates within substantive intersectional complications; and substantive coordination provisions with the substantive immigration-related substantive operational-context that operates within the substantive federal-jurisdictional framework.

**The substantive senior-and-aging-population accessibility provisions.** The substantive Component 9 provisions coordinate with the substantive Section 1.10 aging dimension. The substantive operational

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requirements include: substantive lifelong-learning-program accessibility provisions for senior Albertans operating within the substantive aging-with-disability and substantive acquired-disability-through-aging populations documented in Section 1.10; substantive substantive coordination provisions with the substantive senior-services-and-supports infrastructure; substantive substantive substantive operational-flexibility provisions calibrated to operate against the substantive operational complications documented in Section 1.10 including the substantive forced-spousal-separation pattern, the substantive long-term-care-infrastructure complications, and the substantive engineered structural-poverty operating against the senior-disability population; and substantive substantive operational integration with the substantive supported-decision-making framework developed in Section 3.3 Area 6 for substantive senior-disability-population engagement with the substantive lifelong-learning infrastructure.

**The substantive community-and-recreation-based learning accessibility provisions.** The substantive Component 9 provisions extend the substantive accessibility-baseline provisions to substantive community-and-recreation-based learning contexts including substantive community-organization programming, substantive municipal-recreation programming, substantive library-system programming, and substantive informal-learning-and-personal-development infrastructure operating across the substantive Alberta context. The substantive operational requirements include: substantive program-design-accessibility requirements operating consistently with the substantive standards architecture; substantive substantive accommodation provisions operating consistently with the substantive post-secondary provisions calibrated to operate within the substantive resource-and-operational-scale realities of the substantive community-and-recreation-based-learning infrastructure; and substantive coordination provisions with the substantive Section 3.3 Area 5 substantive services-and-programs standards.

## Substantive Integration with the Section 3.4 K-12 Substantive Content and the Broader Standards Architecture

The substantive Component 9 provisions operate substantively in coordination with the substantive Section 3.4 Components 1 through 8 K-12 substantive content and with the substantive broader standards architecture developed in Sections 3.3, 3.5, 3.6, 3.7, and 3.8.

**The substantive integration with the K-12 inclusive baseline (Component 1).** The substantive Component 9 substantive accessibility-baseline provisions extend the substantive K-12 inclusive baseline through the substantive lifelong-education trajectory. The substantive operational implication is that students with disabilities operating within the substantive K-12 inclusive baseline encounter the substantive operational continuity of inclusive principles across the substantive transition into post-secondary education, vocational training, and adult-and-lifelong-learning contexts. The substantive operational consequence is that the substantive operational complications produced by the substantive K-12 engineered repudiation pattern documented in Section 1.3a are operationalized substantively through the substantive operational continuity provisions; students with disabilities whose substantive K-12 experience operated within the documented engineered repudiation pattern do not encounter substantive structural barriers to post-secondary, vocational, and adult-and-lifelong-learning engagement that compound with the substantive K-12 operational complications.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

**The substantive integration with the K-12 funding-floor (Component 2) and EA staffing-ratio provisions (Component 3).** The substantive Component 9 substantive financial-assistance enhancement provisions complement the substantive K-12 funding-floor and EA staffing-ratio provisions. The substantive operational implication is that the substantive financial-resourcing infrastructure operates substantively across the substantive lifelong-education trajectory rather than only within the substantive K-12 context. The substantive operational consequence is that the substantive structural-funding architecture developed in Section 3.7 operates substantively across the substantive lifelong-education trajectory.

**The substantive integration with the K-12 segregated-setting transition pathway (Component 4) and seclusion-room prohibition (Component 5).** The substantive Component 9 substantive provisions operate consistently with the substantive K-12 segregated-setting transition pathway and seclusion-room prohibition. The substantive operational implication is that the substantive operational principles operating against substantive segregation and substantive involuntary-confinement infrastructure operate consistently across the substantive lifelong-education trajectory. The substantive operational consequence is that substantive operational complications producing substantive segregation or substantive involuntary-confinement infrastructure within the substantive post-secondary, vocational, adult, or lifelong-learning contexts operate within the substantive accountability framework operating across the substantive education-area standard.

**The substantive integration with the K-12 positive-behaviour-support framework (Component 6).** The substantive Component 9 substantive provisions operate consistently with the substantive K-12 positive-behaviour-support framework, with substantive operational adaptations calibrated to the substantive post-secondary, vocational, and adult-and-lifelong-learning contexts. The substantive operational implication is that substantive substantive disability-affirming-practice frameworks operate consistently across the substantive lifelong-education trajectory.

**The substantive integration with the K-12 Article 4(3) consultation requirements (Component 7).** The substantive Component 9 substantive provisions operate within the substantive Section 3.6 Article 4(3) consultation framework operating across the substantive standards architecture. The substantive operational implication is that the substantive disability-community-engagement and Indigenous-disability-community-engagement infrastructure operating within the substantive K-12 context extends substantively across the substantive lifelong-education trajectory.

**The substantive integration with the K-12 public-record reporting framework (Component 8).** The substantive Component 9 substantive provisions operate within the substantive Section 3.8 public-reporting framework operating across the substantive standards architecture. The substantive operational implication is that substantive operational performance across the substantive lifelong-education trajectory operates within the substantive accountability-and-transparency framework operating across the substantive education-area standard.

**The substantive integration with the broader standards architecture (Sections 3.3, 3.5, 3.6, 3.7, 3.8).** The substantive Component 9 substantive provisions operate within the substantive coordination architecture developed across the substantive standards architecture. The substantive operational implication is that substantive Component 9 substantive provisions operate within the substantive



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Standards Development Committees, the substantive Disability Community Advisory Council, the substantive Indigenous-Disability-Community Consultation Council, the substantive Compliance and Enforcement infrastructure, the substantive Tribunal infrastructure, the substantive structural-funding mechanisms, and the substantive statutory-review framework operating across the substantive legislative architecture as a whole.

## What Component 9 Establishes

The substantive lifelong-education trajectory dimension of the Section 3.4 education-area standard is now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, the substantive Article 24(5) framework establishes the substantive international human rights legal foundation for the substantive provisions for post-secondary education, vocational training, adult education, and lifelong learning. Article 24(5) operates not only as a substantive non-discrimination principle but as a substantive access-and-equality framework requiring substantive policy responses operating against the substantive structural barriers persons with disabilities face in the substantive lifelong-education trajectory.

Second, the substantive Alberta post-secondary education context operates with substantive structural conditions including the substantive *Post-Secondary Learning Act* framework, the substantive Disability/Accessibility Services Office infrastructure operating across the publicly-funded post-secondary system, and the substantive financial-assistance architecture operating through Alberta Student Aid (Schedule 4 Federal/Provincial Grant for Post-Secondary Students with Disabilities) and the federal Canada Student Financial Assistance Program (Canada Student Grant for Services and Equipment - Students with Disabilities).

Third, the substantive operational gaps in current Alberta post-secondary disability accommodation operate across substantive dimensions including: the substantive disclosure-and-stigma dimension; the substantive documentation-burden dimension (Schedule 4 forms, Disability Verification Forms, Psycho-Educational Assessments operating at substantive cost levels); the substantive funding-cap dimension (twenty-thousand-dollar federal CSG-DSE cap; three-thousand-dollar Alberta GFD cap); the substantive course-load-and-academic-trajectory dimension; the substantive private-career-college and non-publicly-funded-institution dimension; and the substantive duty-to-accommodate-and-undue-hardship dimension.

Fourth, the substantive provisions for post-secondary education accessibility operationalize the substantive accessibility-baseline through substantive operational mechanisms including substantive Disability/Accessibility Services Office substantive operational requirements, substantive private-career-college and non-publicly-funded-institution provisions, substantive financial-assistance enhancement provisions, and substantive accommodation-and-academic-trajectory provisions operating against the documented operational gaps.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Fifth, the substantive provisions for vocational training and apprenticeship accessibility operationalize the substantive accessibility-baseline through substantive provisions for the apprenticeship-and-trades-training infrastructure, the substantive workplace-accommodation-and-vocational-rehabilitation infrastructure (operating in coordination with the Section 1.6 WCB substantive vocational-rehabilitation infrastructure), and the substantive industry-credential and continuing-professional-development infrastructure.

Sixth, the substantive provisions for adult education and lifelong-learning accessibility operationalize the substantive accessibility-baseline through substantive provisions for the substantive adult-basic-education and literacy-program infrastructure operating through the *Adult Learning Act* framework, the substantive English-as-additional-language and immigrant-newcomer infrastructure, the substantive senior-and-aging-population infrastructure (operating in coordination with the Section 1.10 substantive aging dimension), and the substantive community-and-recreation-based learning infrastructure.

Seventh, the substantive Component 9 provisions operate substantively in coordination with the substantive Section 3.4 Components 1 through 8 K-12 substantive content and with the substantive broader standards architecture developed in Sections 3.3, 3.5, 3.6, 3.7, and 3.8. The substantive operational consequence is that the substantive education-area standard operates substantively across the complete substantive lifelong-education trajectory the substantive Article 24 framework requires.

The substantive content of Component 9 completes the substantive Section 3.4 education-area standard. The substantive education-area standard now operates substantively across the substantive K-12 context (Components 1 through 8) and across the substantive lifelong-education trajectory beyond the K-12 context (Component 9). The substantive case the blueprint develops in Parts Two and Three engages the substantive Article 24 substantive content at the depth the substantive international human rights framework requires across the complete substantive education-trajectory dimension of the substantive lifecycle frame established in Part One.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.5 — The Implementing Architecture and Enforcement Provisions: The Operational Machinery

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Sections 3.2 through 3.4 specified the substantive content of the *Alberta Accessibility and Inclusion Act*: the definitions and scope, the seven non-education standards areas, and the eighth education-area standard developed in detail. Section 3.5 specifies the operational machinery through which the substantive content is delivered, monitored, and enforced. The implementing architecture is the structural complement to the substantive content. Without operational machinery, substantive standards exist only on paper. The Ontario AODA documented enforcement gap (Part Two Section 2.2 — one administrative monetary penalty across two decades of operation) establishes that statutory provisions without operational enforcement are insufficient to produce compliance. The Alberta legislation must include enforcement architecture from the outset, must staff the enforcement bodies adequately, and must apply penalties at levels sufficient to produce compliance behaviour rather than at symbolic levels that organizations can absorb as the cost of non-compliance.

The section develops six substantive components of the implementing architecture. The first establishes the ministerial and administrative architecture: the lead Minister with overall responsibility for the legislation, the Chief Accessibility Officer (Alberta) as strategic-advisory officer, and the Accessibility Implementation Directorate as the administrative arm. The second establishes the Standards Development Committees: the multi-stakeholder bodies that develop each substantive-standards area's operational standards. The third establishes the Disability Community Advisory Council: the central disability-community representative body that operates across all standards areas, distinct from but coordinating with the Disability Community Education Consultation Council established for the education area in Section 3.4. The fourth establishes the compliance and enforcement architecture: the Director of Compliance and Enforcement, the inspectors and their statutory authority, the compliance-order procedure, and the administrative-monetary-penalty regime. The fifth establishes the tribunal-review and appeal-mechanism architecture: the structural review of compliance decisions and the procedural protections for organizations subject to enforcement action. The sixth addresses the coordination architecture with existing Alberta and federal regulators: the *Alberta Human Rights Act* enforcement framework, the federal Accessibility Commissioner under the *Accessible Canada Act*, sectoral regulators, and analogous bodies whose substantive jurisdictions overlap with or interface with the new legislation.

The substantive content of Section 3.5 is grounded in the comparator-jurisdiction record (drawing on the Ontario AODA, Manitoba AMA, Nova Scotia *Accessibility Act*, *Accessible British Columbia Act*, *The Accessible Saskatchewan Act*, and federal *Accessible Canada Act* operational architectures documented in Sections 2.1 through 2.6) and in the disability-community advocacy position that operational enforcement architecture is the mechanism through which substantive standards become substantively meaningful.

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All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Ministerial and Administrative Architecture

The legislation must establish a single lead Minister with overall responsibility for the substantive operation of the *Alberta Accessibility and Inclusion Act*. The lead-Minister provision is operationally critical. The federal *Accessible Canada Act* distributes accessibility-compliance authority across multiple federal regulators (the Accessibility Commissioner, the Canadian Transportation Agency, the Canadian Radio-television and Telecommunications Commission, the Federal Public Sector Labour Relations and Employment Board, and the Accessibility Standards Canada Crown corporation), producing operational complexity that has been documented as a structural barrier to substantive enforcement. The Alberta legislation must avoid the distributed-authority problem by establishing a single lead Minister with overall responsibility and unified administrative architecture operating under that Minister's authority.

The substantive content of the lead-Minister provision must specify: the designated lead Minister (proposed: Minister of Seniors, Community and Social Services, or a successor ministry with equivalent disability-policy responsibility, with the option of establishing a stand-alone Ministry for Accessibility and Inclusion as the legislative-development process matures and operational scale justifies); the substantive responsibilities of the lead Minister (overall direction of the legislation's implementation, appointment of the senior implementing officials, tabling of annual and statutory-review reports in the Legislative Assembly, response to recommendations of independent reviewers, and substantive engagement with the Disability Community Advisory Council); the relationship between the lead Minister and other Ministers whose portfolios intersect with the legislation's substantive standards areas (the Minister of Education for the education-area standard, the Minister of Health for the health-area standard, the Minister of Transportation and Economic Corridors for the transportation-area standard, the Minister of Infrastructure for the built-environment-area standard, and analogous portfolios); and the structural-coordination provisions ensuring that Ministers with intersecting authority operate consistently with the legislation's substantive standards.

The legislation must establish the position of Chief Accessibility Officer (Alberta) as strategic-advisory officer to the lead Minister, modeled on the federal Chief Accessibility Officer position established under the *Accessible Canada Act*. The Chief Accessibility Officer's substantive content includes: provision of strategic advice on accessibility issues to the lead Minister and to the Government of Alberta as a whole; coordination of accessibility policy across provincial-government ministries and agencies; engagement with the disability community on emerging accessibility issues; preparation of analytical reports on accessibility issues for public release and for tabling in the Legislative Assembly; and substantive engagement with the federal Chief Accessibility Officer and with provincial counterparts in other provinces. The Chief Accessibility Officer must be a person with substantive expertise in disability rights and accessibility issues, must be appointed on terms ensuring substantive independence from the day-to-day operations of the implementing architecture, and must report publicly on their analytical work.

The legislation must establish an Accessibility Implementation Directorate as the administrative arm of the lead Minister, modeled on the Manitoba Accessibility Office, the Ontario Accessibility Directorate, the Nova Scotia Accessibility Directorate, and the Saskatchewan Accessibility Office. The Directorate's substantive functions include: administration of the standards-development processes (supporting the Standards Development Committees, conducting public consultation on draft standards, producing final

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

standards for ministerial approval); operational support for organizations subject to the legislation (compliance guidance, training resources, technical-assistance services, particularly for small and medium organizations that may lack internal accessibility expertise); coordination with the compliance and enforcement architecture (operational interface with the Director of Compliance and Enforcement, support for the inspectors' work, coordination on compliance-order administration); engagement with the disability community (supporting the operations of the Disability Community Advisory Council and the Disability Community Education Consultation Council, processing community feedback, coordinating disability-community-engagement activities); and reporting and accountability functions (compilation of the annual reports, support for the periodic statutory reviews, public communications on the legislation's implementation).

The Directorate must be staffed adequately to deliver its substantive functions. The comparator record establishes that under-staffing of the implementation administrative architecture is a substantial structural barrier to operational delivery. The Manitoba Accessibility Office's documented operational scale (in the range of 15 to 25 staff at various points) provides a proportionate-population benchmark; the Alberta Directorate, given Alberta's larger population and the broader substantive scope of the legislation including the education-area standard's substantial operational content, must operate at a substantial multiple of that scale (the proposed initial scale is 50 to 75 staff at full operational capacity). The staffing must include substantive disability-rights expertise, substantive lived-experience-of-disability representation, substantive policy and operational expertise across the standards areas, and substantive engagement and consultation expertise.

## The Standards Development Committees

The legislation must establish Standards Development Committees as the substantive multi-stakeholder bodies that develop the operational accessibility standards for each substantive-standards area. The Committee structure is the operational mechanism through which the substantive-standards-area provisions of the legislation become operational standards binding on covered organizations. Without the Committee structure, the substantive-standards-area provisions remain at the level of legislative intent rather than operational requirement.

The substantive content of the Standards Development Committee provision must establish: the Committee structure (one Committee for each of the eight substantive-standards areas, with the option of forming sub-committees on specific issues within an area where the substantive content justifies sub-divided work); the Committee membership (substantive multi-stakeholder representation including disability-community representation at not less than 50 percent of total membership consistent with the Saskatchewan Accessibility Advisory Committee precedent established in Section 4-2(3) of *The Accessible Saskatchewan Act* and with the international disability-rights principle of *nothing about us without us*; technical and policy expertise relevant to the substantive area; representation of organizations that will be subject to the standards in operational terms; representation of provincial-government ministries with intersecting policy authority; and representation of Indigenous-disability-community organizations on each Committee as substantively appropriate); the Committee operations (regular meeting cadence, transparent operations with public minutes and public engagement, substantive

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working-group structure for complex technical work, defined timelines for standards development calibrated to the substantive complexity of each area); the standards-development process (initial substantive scoping conducted with disability-community engagement, draft standards developed by the Committee, public consultation on draft standards with substantive engagement of the disability community and other affected parties, final standards developed in response to consultation feedback, and ministerial approval as the final operational step); and the standards-revision process (each standard subject to mandatory five-year review, with the review conducted by the Standards Development Committee with the same multi-stakeholder structure, producing revised standards that respond to operational experience and advancing-state-of-the-art).

The Committee structure must operate to produce standards that are substantively meaningful and operationally feasible. The Ontario AODA documented experience establishes that Standards Development Committees can produce robust standards when adequately resourced and politically supported, but that the resulting standards' operational impact depends on the subsequent enforcement architecture and on the political will to apply the enforcement provisions. The Alberta legislation accordingly couples the Standards Development Committee structure with the enforcement architecture developed in subsequent components of Section 3.5.

The Disability Community Advisory Council established in the next component of Section 3.5 operates with substantive cross-cutting authority over the Standards Development Committees' work. The Council reviews and provides substantive input on draft standards, monitors the Committees' substantive engagement with disability-community input, and reports to the Minister and to the public on the substantive adequacy of the Committees' processes. The Council does not displace the Committees' substantive work but provides the structural disability-community oversight that ensures the Committees operate consistent with Article 4(3) of the Convention.

## The Disability Community Advisory Council

The legislation must establish a Disability Community Advisory Council as the central substantive disability-community representative body operating across all standards areas of the legislation. The Council is structurally distinct from the Disability Community Education Consultation Council established in Section 3.4 (which operates specifically on education-area policy and standards) and from the Standards Development Committees (which operate on specific substantive-standards areas). The Council operates as the cross-cutting disability-community body engaged with the legislation's overall implementation.

The substantive content of the Council provision must establish: the Council membership (substantive disability-community representation including parents and family members of persons with disabilities, persons with lived experience of disability across the full range of disability profiles, representatives of disability-rights organizations operating provincially and nationally, representatives of Indigenous-disability-community organizations, representatives of organizations supporting persons with specific disability profiles, representatives of organizations supporting persons across different lifecycle stages, and representatives of organizations supporting persons in different geographic-and-cultural contexts within Alberta); the Council operations (regular meeting cadence with operational support from the Implementation Directorate, transparent operations with public engagement, substantive

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

working-group structure for cross-cutting issues, and defined consultation timelines for ministerial-engagement processes); the Council's substantive authority (consultation on legislation amendments, consultation on standards development across all areas, consultation on implementation issues, monitoring of compliance and enforcement outcomes, monitoring of disability-community engagement quality across the implementing architecture, and substantive input to the periodic statutory-review processes); the Council's reporting (regular public reports on the Council's substantive engagement, on the provincial-government's substantive response to the Council's input, and on the operational adequacy of the legislation's disability-community-engagement processes); and the Council's coordination with other disability-community structures (including the Disability Community Education Consultation Council, the Standards Development Committees, and the disability-community-organizations operating outside the legislative architecture).

The Council operates with substantive authority. The provincial government must consult the Council prior to taking substantive action on the legislation's amendments, on standards development, on implementation policy, and on related matters. The consultation must be substantive: the Council's input must be considered before policy positions are developed, must be documented in the public record, and must be subject to the provincial-government's public response. The Article 4(3) substantive standard, operationalized in Section 3.4 for the education area and in this component for the legislation as a whole, is the substantive framework within which the Council operates.

The Council's existence does not displace the disability-community organizations operating outside the Council structure. The Council operates as the structural representative body within the legislative architecture; the broader disability-community organizations continue to operate their advocacy, service-delivery, and engagement work within and beyond the Council structure. The substantive principle is that the Council provides a structural representative interface between the disability community and the legislative architecture, while the broader disability-community work continues with the autonomy and substantive authority that disability-community organizations have always exercised.

## The Compliance and Enforcement Architecture

The legislation must establish a compliance and enforcement architecture sufficient to produce operational compliance with the substantive standards. The architecture comprises the Director of Compliance and Enforcement, the inspectors and their statutory authority, the compliance-order procedure, and the administrative-monetary-penalty regime. The architecture is structured on the comparator-jurisdiction model with substantive enhancements responding to the documented operational gaps in comparator implementation.

The substantive content of the Director of Compliance and Enforcement provision must establish: the Director as the designated senior official with overall responsibility for the legislation's compliance and enforcement, modeled on the federal Accessibility Commissioner under the *Accessible Canada Act* and the Director of Compliance and Enforcement under Section 45 of the *Nova Scotia Accessibility Act*; the Director's substantive independence from the political administration of the lead Minister (analogous to the substantive independence of officers of the Legislative Assembly), with the Director appointed on terms ensuring that operational compliance and enforcement decisions are not subject to political direction; the



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Director's authority (oversight of inspectors, issuance of compliance orders, application of administrative monetary penalties, public reporting on compliance and enforcement activity, and substantive engagement with the federal Accessibility Commissioner and with provincial counterparts on cross-jurisdictional matters); and the Director's reporting (annual public reports on compliance and enforcement activity, including disaggregated data on compliance-order issuance, on administrative-monetary-penalty application, on compliance trajectories within covered sectors, and on the substantive operational outcomes of the enforcement work).

The substantive content of the inspector provision must establish: the inspectors' statutory authority modeled on Section 22(1) of the *Manitoba Accessibility for Manitobans Act* and analogous provisions in the comparator legislation; the inspectors' powers (entry into premises subject to the legislation for purposes of inspection, examination of records, interview of personnel, and analogous investigatory powers); the inspectors' procedural protections for organizations subject to inspection (advance notice in non-urgent circumstances, proper identification, structured documentation of the inspection, and the right to retain counsel); the inspectors' qualifications (substantive expertise in accessibility issues, training in inspection procedure, and ongoing professional development); and the inspectors' staffing (an initial inspector cadre sized to enable operational coverage of the substantive scope of the legislation across the public-sector, private-sector, and non-profit-sector covered organizations, with the proposed initial cadre size in the range of 15 to 25 inspectors and the operational scale subject to expansion as the legislation's coverage matures).

The substantive content of the compliance-order provision must establish: the Director's authority to issue compliance orders requiring specific remediation actions where the Director determines that an organization is not complying with the legislation's substantive standards; the substantive content the compliance order may specify (specific remedial actions, specific timelines for remediation, specific reporting requirements during remediation, and specific verification requirements at the conclusion of remediation); the procedural framework within which compliance orders are issued (notice to the affected organization, opportunity for the organization to respond, structured documentation of the substantive compliance failure, and the structured tribunal-review pathway addressed in the next component); and the substantive consequences of non-compliance with a compliance order (escalation to administrative monetary penalty, potential additional compliance-order action, public reporting on the non-compliance, and analogous structural consequences).

The substantive content of the administrative-monetary-penalty (AMP) provision must establish: the maximum penalty levels calibrated to produce operational compliance behaviour, with the proposed Alberta maximum at \$250,000 per violation consistent with the federal *Accessible Canada Act* benchmark and with subsequent inflation-adjustment provisions ensuring the maximum maintains its substantive deterrent value over time; the substantive factors guiding penalty determination (the gravity of the violation, the duration of the violation, the substantive harm produced, the substantive remediation steps taken by the organization, the organization's prior compliance history, the organization's substantive capacity to pay, and analogous factors); the procedural framework (notice of the proposed penalty, opportunity for the organization to respond, structured documentation, and tribunal-review pathway); the public reporting on penalty issuance (with appropriate identification of the organization and the substantive nature of the violation, contributing to substantive sectoral compliance signaling); and the integration of

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

penalty revenues with the legislation's substantive purposes (proposed: penalty revenues directed to a substantive accessibility-improvement fund supporting compliance assistance for small organizations, disability-community-engagement infrastructure, and analogous substantive purposes).

The Ontario AODA documented enforcement gap (one administrative monetary penalty issued across nearly two decades of operation) is the substantive failure mode the Alberta legislation must avoid. The structural cause of the Ontario gap was the combination of inadequate inspector staffing, political reluctance to issue penalties on covered organizations (particularly in the public-sector context), and absence of structural-political-incentive infrastructure for the enforcement architecture to operate at scale. The Alberta legislation must address all three structural causes: the inspector cadre is sized to enable substantive coverage rather than to serve as a token presence; the Director's substantive independence ensures operational decisions are not subject to political direction; and the public-reporting architecture creates structural visibility for the enforcement activity that produces political accountability for inadequate enforcement.

## **Tribunal Review and Appeal Mechanisms**

The legislation must establish tribunal-review and appeal-mechanism architecture providing structural procedural protections for organizations subject to enforcement action. The architecture serves the substantive purpose of ensuring that compliance orders and administrative monetary penalties are issued only after proper procedural process, that organizations have substantive opportunities to challenge enforcement decisions, and that the substantive reviewing body has the expertise and independence to make substantive review determinations.

The substantive content of the tribunal-review provision must establish: the designated tribunal (proposed: a specialized Accessibility and Inclusion Tribunal established under the legislation, or alternatively the existing Provincial Court Civil Division operating with specialized accessibility procedure, or the Alberta Human Rights Tribunal operating under expanded jurisdiction); the tribunal's substantive authority (review of compliance-order decisions, review of administrative-monetary-penalty determinations, review of standards-application decisions where the substantive issue is the application of a standard to a specific operational context, and analogous review functions); the procedural framework (filing of the appeal, structured proceedings including written submissions and oral hearing where appropriate, evidence rules calibrated to the substantive accessibility-policy context, and structured decision-making with substantive reasons); the tribunal's substantive expertise (composition including persons with substantive accessibility-policy expertise, persons with substantive lived experience of disability, and persons with substantive legal and procedural expertise, ensuring that tribunal decisions reflect the substantive disability-policy context within which the legislation operates); the tribunal's substantive independence (members appointed on terms ensuring substantive independence from the day-to-day operations of the implementing architecture, with appropriate procedural safeguards against conflict of interest); and the appeals from tribunal decisions (judicial review on substantive errors of law or substantive errors of jurisdiction, with the substantive accessibility-policy expertise of the tribunal entitled to substantial deference within the standards established by Canadian administrative law).

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The tribunal architecture must operate to provide substantive procedural protection without creating structural barriers to enforcement. The comparator record establishes that overly elaborate appeal mechanisms can be used by organizations resistant to compliance to delay enforcement indefinitely, defeating the substantive purpose of the legislation. The Alberta tribunal architecture must be calibrated to provide procedural protection while ensuring that enforcement decisions reach substantive resolution within defined timelines. The proposed structural framework includes: defined timelines for filing appeals; defined timelines for tribunal proceedings; defined timelines for tribunal decisions; and structural provisions limiting the use of procedural manoeuvres to delay substantive resolution.

The tribunal architecture must also provide accessible procedure for individuals and small organizations bringing appeals. The substantive principle is that the tribunal cannot itself become an accessibility barrier to participation in the legislation's substantive processes. The procedural accommodations include: alternative-format submissions; accessibility-accommodation in oral hearings; substantive procedural assistance for self-represented appellants; structured plain-language proceedings where the substantive complexity does not require technical-legal language; and analogous procedural accommodations.

## Coordination with Existing Regulators

The legislation must establish coordination architecture with existing Alberta and federal regulators whose substantive jurisdictions overlap with or interface with the new legislation. The coordination architecture is the operational mechanism through which the legislation operates consistently with the existing regulatory landscape rather than producing structural conflict, duplication, or gaps.

The substantive content of the coordination provisions must address: the relationship with the *Alberta Human Rights Act* and the Alberta Human Rights Commission (which addresses individual human-rights complaints including disability-related complaints), with the substantive distinction maintained between individual-complaint resolution under the AHRA and systemic-accessibility-standards enforcement under the new legislation, and with structured coordination provisions ensuring that complaints raising both individual and systemic dimensions are handled consistently; the relationship with the federal Accessibility Commissioner and the *Accessible Canada Act* enforcement architecture (which addresses federally regulated organizations excluded from the new legislation's coverage), with structured coordination provisions ensuring consistent operational interface for organizations and individuals operating across federal and provincial jurisdictions; the relationship with the Canadian Transportation Agency (which addresses federally regulated transportation), with structured coordination provisions ensuring consistent operational interface for transportation-related accessibility issues; the relationship with sectoral provincial regulators (the College of Physicians and Surgeons of Alberta, the College of Registered Nurses of Alberta, the Alberta Dental Association and College, the Alberta College of Pharmacy, the Law Society of Alberta, and analogous bodies), with structured coordination provisions ensuring that the substantive accessibility standards are integrated into sectoral-regulator standards rather than producing competing regulatory frameworks; the relationship with municipal-government accessibility infrastructure (where municipalities operate their own accessibility committees, accessibility plans, and accessibility advisory bodies), with coordination provisions respecting municipal autonomy while ensuring that municipal accessibility infrastructure operates consistently with provincial substantive standards; and the relationship

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

with the existing Alberta school-division accessibility infrastructure (where school divisions operate their own accessibility advisory bodies and accessibility plans), with coordination provisions ensuring that school-division accessibility work operates within the framework established by the education-area standard.

The coordination provisions must address the substantive question of jurisdictional priority where overlapping regulatory authority produces competing substantive requirements. The proposed structural framework establishes: the new legislation as the substantive baseline for accessibility standards in Alberta provincial jurisdiction; the *Alberta Human Rights Act* as continuing in operation for individual-complaint resolution on protected grounds including disability; the federal Accessibility Commissioner's authority continuing for federally regulated organizations; sectoral provincial regulators' authority continuing within their substantive sectoral domains, with the substantive accessibility standards integrated into sectoral-regulator standards on a structured timeline; and municipal accessibility infrastructure continuing within municipal autonomy, with the substantive accessibility standards establishing the floor below which municipal accessibility provisions cannot fall.

## What Section 3.5 Establishes

The implementing architecture and enforcement provisions of the *Alberta Accessibility and Inclusion Act* are now specified at the depth required for legislative-drafting input. The architecture comprises six substantive components: the ministerial and administrative architecture establishing the lead Minister, the Chief Accessibility Officer (Alberta), and the Accessibility Implementation Directorate; the Standards Development Committees structure providing the multi-stakeholder substantive bodies that develop operational standards for each substantive-standards area, with at-least-50-percent disability-community representation consistent with the Saskatchewan precedent; the Disability Community Advisory Council operating as the cross-cutting substantive disability-community representative body across all standards areas, distinct from but coordinating with the Disability Community Education Consultation Council established in Section 3.4; the compliance and enforcement architecture comprising the Director of Compliance and Enforcement (with substantive independence analogous to officers of the Legislative Assembly), the inspector cadre (sized for substantive coverage at 15 to 25 inspectors initially), the compliance-order procedure (with the Director's authority to require specific remediation), and the administrative-monetary-penalty regime (with \$250,000 maximum per violation consistent with the federal benchmark, plus inflation-adjustment, plus penalty revenues directed to a substantive accessibility-improvement fund); the tribunal-review architecture providing structural procedural protections through the proposed Accessibility and Inclusion Tribunal (or analogous specialized review body) with substantive expertise and substantive independence; and the coordination architecture establishing the structural relationship with the *Alberta Human Rights Act*, the federal Accessibility Commissioner, sectoral provincial regulators, municipal accessibility infrastructure, and the existing Alberta school-division accessibility architecture.

The architecture is designed to avoid the documented operational failures of comparator implementation. The Ontario AODA documented enforcement gap (one administrative monetary penalty across nearly two decades of operation) is the substantive failure mode the Alberta legislation must avoid: the inspector

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

cadre is sized for substantive coverage rather than token presence; the Director's substantive independence ensures operational decisions are not subject to political direction; and the public-reporting architecture creates structural visibility for the enforcement activity that produces political accountability for inadequate enforcement. The federal *Accessible Canada Act* documented distributed-authority complexity is the substantive failure mode the Alberta legislation must also avoid: the lead-Minister provision establishes single ministerial authority and unified administrative architecture, eliminating the structural complexity that has been documented as a barrier to operational delivery in the federal framework.

The architecture is designed to operate consistent with the design philosophy and foundational choices of Section 3.1. The substantive-equality principle is operationalized through the substantive content of the standards (Sections 3.3 and 3.4) and the substantive enforcement architecture that ensures the standards are operationally delivered. The systemic-transformation principle is operationalized through the Standards Development Committees that produce the substantive standards and through the structural-system-redesign authority the Director and the Tribunal exercise. The lifecycle-integration principle is operationalized through the substantive content of the standards and through the cross-cutting authority the Disability Community Advisory Council exercises across all standards areas. The international-compliance-as-floor-not-ceiling principle is operationalized through the substantive content of the standards (which exceed the international floor where the documented Alberta record requires) and through the enforcement architecture (which operates at the substantive level required to produce compliance with the substantive content). The disability-community-co-authorship principle is operationalized through the Standards Development Committees' at-least-50-percent disability-community representation, through the substantive authority of the Disability Community Advisory Council, and through the substantive engagement provisions that operate throughout the implementing architecture.

The architecture is designed to operate at the operational scale the substantive content requires. The Implementation Directorate's proposed initial scale (50 to 75 staff) reflects the substantive scope of the legislation including the education-area standard's substantial operational content. The inspector cadre's proposed initial scale (15 to 25 inspectors) reflects the substantive coverage required across the public-sector, private-sector, and non-profit-sector covered organizations. The penalty maximum (proposed: \$250,000 per violation, with inflation adjustment) reflects the substantive deterrent value required to produce operational compliance behaviour. The structural-coordination provisions reflect the substantive complexity of the existing Alberta and federal regulatory landscape within which the legislation operates.

The next section turns to the consultation requirements and Indigenous-rights integration that operate alongside and interact with the implementing architecture established in Section 3.5.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### *Section 3.6 — Consultation Requirements and Indigenous-Rights Integration: The Substantive Operational Frameworks*

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Section 3.4 established the Disability Community Education Consultation Council operating on education-specific policy and standards. Section 3.5 established the Disability Community Advisory Council operating cross-cuttingly across all substantive-standards areas, alongside the Standards Development Committees with at-least-50-percent disability-community representation. Section 3.6 develops two substantive frameworks that operate alongside and through the structures established in Sections 3.4 and 3.5: the substantive operational standards for what counts as adequate consultation under Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*, and the structural Indigenous-rights integration that operationalizes the British Columbia *Accessible British Columbia Act* precedent (Part Two Section 2.5) and Section 19 of that Act within Alberta provincial jurisdiction.

The two frameworks are developed in a single section because they intersect substantively. Indigenous-disability-community consultation operates within both the disability-rights framework (Article 4(3) of the CRPD) and the Indigenous-rights framework (Section 35 of the *Constitution Act, 1982*, the United Nations *Declaration on the Rights of Indigenous Peoples*, the Truth and Reconciliation Commission's Calls to Action, and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice). The two frameworks are mutually reinforcing rather than conflicting, but the substantive content of each framework imposes specific operational requirements that the legislation must address. Section 3.6 develops both frameworks at the depth required for legislative-drafting input.

The section develops six substantive components. The first establishes Article 4(3)'s substantive operational standards: what counts as adequate consultation, distinguishing genuine consultation from performative consultation. The second establishes the cross-cutting consultation architecture for the legislation as a whole, building on Sections 3.4 and 3.5 and addressing operational gaps not covered by those sections. The third establishes the foundational framework for Indigenous-rights integration: UNDRIP, Section 35, treaty rights, the British Columbia DRIPA precedent. The fourth establishes the operational provisions for Indigenous-rights integration: voluntary participation, partnership agreements, and Indigenous-disability-community consultation infrastructure. The fifth addresses the TRC Calls to Action and MMIWG2S Calls for Justice frameworks within the legislation's operations. The sixth addresses the coordination between the two frameworks, with particular attention to the Indigenous-disability-community as the population at the substantive intersection of both frameworks.

The substantive content of Section 3.6 is grounded in the international human rights framework Canada has bound itself to (the CRPD, UNDRIP, and analogous instruments), in the Canadian-constitutional framework (Section 35 of the *Constitution Act, 1982*, the Charter, and analogous instruments), in the



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

comparator-jurisdiction record (with particular attention to the British Columbia DRIPA precedent and the Saskatchewan disability-and-Indigenous-rights frameworks documented in Sections 2.5 and 2.6), and in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record across seventeen substantive sections.

## Article 4(3): The Substantive Operational Standard for Consultation

The legislation must establish substantive operational standards for what counts as adequate consultation under Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*. Without substantive standards, the consultation-requirement provisions throughout the legislation can be defeated through performative compliance: consultations that occur after policy decisions have been made, consultations that engage with disability-community input at the level of formality without engaging with the substantive content, consultations that produce documentary records without producing substantive policy adjustment, and analogous failure modes that the documented Alberta record (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation, documented in Section 1.3a) and the broader comparator record demonstrate to be operational realities.

The substantive content of the Article 4(3) operational standard must address five substantive criteria: timing, depth, documentation, response, and remedy. Each criterion specifies operational requirements that distinguish genuine consultation from performative consultation.

**Timing: consultation must precede substantive policy decisions, not follow them.** The substantive principle is that consultation conducted after a policy position has been developed is structurally limited to feedback on the policy as drafted; it cannot influence the substantive direction of the policy. Genuine consultation occurs at the stage at which substantive policy direction is being developed, when alternative directions remain operationally feasible and when the disability-community input can shape the substantive content rather than only the operational details. The legislation must establish that consultation under Article 4(3) occurs before substantive policy direction is established, not after.

**Depth: consultation must engage with substantive content, not only with formal procedures.** The substantive principle is that consultation processes that engage only with the formal procedures of policy development (the timelines, the document formats, the meeting structures) without engaging with the substantive content of the policy do not meet the Article 4(3) standard. Genuine consultation engages with the substantive content: the policy's substantive purposes, its substantive operational provisions, its substantive consequences for the disability community, and its substantive alternatives. The legislation must establish that consultation must engage with the substantive content of the policy, with the substantive expertise of the disability community recognized as substantively dispositive of the policy's substantive design rather than merely as one input among many.

**Documentation: consultation must produce a substantive public record of disability-community input and the provincial-government's substantive engagement with that input.** The substantive principle is that consultation processes that occur without substantive public documentation cannot be subject to substantive accountability. Genuine consultation produces a public record sufficient for the

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

disability community, for legislators, for independent reviewers, and for the broader public to evaluate whether the consultation has met the Article 4(3) substantive standard. The legislation must establish that consultation must be documented with sufficient detail and sufficient public accessibility to enable substantive evaluation.

**Response: the provincial government must publicly respond to the substantive disability-community input within a defined period.** The substantive principle is that consultation processes that produce disability-community input without producing a substantive provincial-government response cannot be considered to have substantively engaged with the input. Genuine consultation produces a public response in which the provincial-government substantively addresses the input: which input has been adopted into the policy and why, which input has not been adopted and on what substantive grounds, and which input requires further substantive engagement before resolution. The legislation must establish that the provincial-government response is required, must be public, must address the substantive input rather than only the formal procedure, and must be subject to ongoing engagement where the substantive issues are not resolved by the initial response.

**Remedy: consultation gaps must produce substantive consequences for the policy.** The substantive principle is that policy developed through inadequate consultation cannot be considered to have met the Article 4(3) substantive standard regardless of subsequent operational implementation. The substantive remedy for consultation-gap failures must include: structural review of the policy's substantive content for consultation-gap consequences; re-opening of the substantive policy direction where the consultation gap has produced substantive policy errors; and structural-process remediation to ensure that subsequent policy on the same substantive area meets the Article 4(3) standard. The legislation must establish that consultation-gap failures are subject to substantive remedy rather than only to procedural acknowledgement.

The five-criterion framework provides the substantive operational standard against which consultation processes throughout the legislation are evaluated. The framework operates alongside the structural consultation bodies established in Sections 3.4 and 3.5 (the Disability Community Education Consultation Council, the Disability Community Advisory Council, the Standards Development Committees) and applies to all consultation processes the legislation establishes, regardless of which specific body is conducting the consultation.

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## The Cross-Cutting Consultation Architecture

The legislation must establish a cross-cutting consultation architecture that operates alongside the specific consultation bodies established in Sections 3.4 and 3.5 and that addresses operational consultation requirements not covered by those bodies. The cross-cutting architecture ensures that consultation operates throughout the legislation's operational life rather than only at specific procedural moments.

The substantive content of the cross-cutting architecture must establish: the substantive consultation requirement for any provincial-government action under or affecting the legislation that is not already addressed by the specific consultation bodies (consultation on legislation amendments, consultation on regulatory development under the legislation, consultation on operational policy of the Implementation

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

Directorate, consultation on implementation guidance, and analogous matters); the substantive engagement requirement for the lead Minister's annual reports and the periodic statutory reviews (the disability community is engaged in the development of the reports and reviews, not only consulted on the final products); the substantive engagement requirement for inter-ministerial coordination on disability-affecting policy (where Ministers other than the lead Minister are developing policy that affects persons with disabilities, the consultation infrastructure operates regardless of which Minister is leading the development); the substantive engagement requirement for federal-provincial coordination on disability-affecting matters (where the provincial-government is engaging with federal-government policy development that affects persons with disabilities in Alberta, the disability community is substantively engaged in the development of the provincial-government position); and the substantive resourcing of the consultation architecture (the consultation bodies, the disability-community organizations engaged in consultation work, and the operational support for substantive engagement are funded at levels sufficient to enable substantive participation rather than only formal participation).

The cross-cutting architecture must address the operational reality that disability-community consultation work is substantial labour that has historically been conducted without compensation through the substantive expertise of disability-community organizations and the unpaid time of disability-community individuals. The substantive principle is that consultation work performed for the provincial-government's policy-development processes is substantive work that warrants substantive compensation. The legislation must establish operational provisions for the compensation of disability-community consultation work, including: honoraria or stipends for individuals participating in consultation processes, particularly individuals with disabilities whose participation requires accommodation; operational support for disability-community organizations' consultation work, recognizing that the substantive expertise the organizations bring to consultation processes has been developed over years of substantive operational work; and structural funding for the consultation infrastructure (the meeting venues, the accessibility accommodations, the document development, and the analogous operational components of substantive consultation processes).

The cross-cutting architecture must also address the substantive engagement of disability-community organizations operating outside the structural consultation bodies. The Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Standards Development Committees operate as the structural representative bodies within the legislative architecture. The broader disability-community ecosystem operates through hundreds of organizations across Alberta serving specific populations, geographic regions, lifecycle stages, and substantive areas. The legislation must establish that the substantive consultation operates with the broader ecosystem, not only with the structural representative bodies. The operational mechanism includes: periodic broader-engagement consultations on substantive policy areas; structured disability-community-organization input on standards development; operational support for substantive disability-community-organization engagement with the legislation's processes; and substantive responsiveness to disability-community-organization input that may not be channelled through the structural representative bodies.

## The Foundational Framework for Indigenous-Rights Integration

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The legislation must integrate Indigenous-rights frameworks at the structural-statutory level on the British Columbia *Accessible British Columbia Act* precedent (Part Two Section 2.5). The integration operationalizes Section 3.1 Choice 5 (Indigenous-rights structural integration on the British Columbia precedent) within the substantive provisions of the Alberta legislation.

The foundational instruments the integration operationalizes are: the United Nations *Declaration on the Rights of Indigenous Peoples* (UNDRIP), adopted by the UN General Assembly on 13 September 2007 and acknowledged by Canada in 2010; Section 35 of the *Constitution Act, 1982*, recognizing and affirming existing Aboriginal and treaty rights of the Aboriginal peoples of Canada (First Nations, Inuit, and Métis); the substantive treaty framework operating in Alberta, including Treaty 6 (1876, signed in Fort Carlton and Fort Pitt with substantial Alberta-area First Nations), Treaty 7 (1877, signed at Blackfoot Crossing with the Blackfoot Confederacy and other southern Alberta First Nations), Treaty 8 (1899, signed at Lesser Slave Lake with northern Alberta and other northern First Nations), and the Métis Settlements framework operating under the *Metis Settlements Act* and the *Constitution Act, 1982*; the British Columbia *Declaration on the Rights of Indigenous Peoples Act* (DRIPA, S.B.C. 2019, c. 44), which formally adopted UNDRIP into provincial law and provides the substantive precedent for Indigenous-rights integration in Canadian provincial legislation; and the federal *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14), which establishes the federal framework for UNDRIP implementation in Canada.

The substantive content of the foundational-framework provision must establish: the legislation's substantive recognition of Section 35 of the *Constitution Act, 1982* as a foundational instrument that the legislation operates within and gives substantive effect to within the legislation's substantive scope; the legislation's substantive consideration of UNDRIP in the development and operation of the substantive standards, with the operational mechanism of statutory consideration parallel to the British Columbia *Accessible British Columbia Act* Section 19 framework; the legislation's substantive recognition of the treaty framework operating in Alberta as a foundational element of the legal and political context within which the legislation operates; and the legislation's substantive recognition that the Indigenous peoples of Alberta hold inherent rights of self-government that the provincial-government's legislative authority does not displace.

The substantive principle the foundational framework operationalizes is that Indigenous-rights frameworks are not external considerations the legislation may take into account on a discretionary basis. They are foundational elements of the legal and political context within which the legislation operates. The substantive integration is structural rather than additive: the legislation's substantive provisions are developed and operate within the Indigenous-rights framework, not alongside or above it.

The foundational framework also addresses the substantive distinction between provincial-government legislative authority and Indigenous-governance authority. The provincial-government's legislative authority operates within the constitutional and treaty framework that recognizes Indigenous-governance authority. The legislation does not extend the provincial-government's regulatory authority to Indigenous-governance entities; rather, the legislation establishes the framework within which provincial-government and Indigenous-governance entities can engage cooperatively on substantive accessibility-and-inclusion work. The operational mechanism is the voluntary-participation and partnership framework developed in the next component of Section 3.6.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## The Operational Provisions for Indigenous-Rights Integration

The substantive content of the operational provisions for Indigenous-rights integration must establish four substantive components: the voluntary-participation framework for Indigenous-governance entities, the partnership-agreement framework for cooperative work, the Indigenous-disability-community consultation infrastructure, and the substantive engagement of the Indigenous-rights frameworks in the standards-development processes.

**The voluntary-participation framework for Indigenous-governance entities.** The legislation must establish that First Nations governance, Métis Settlement governance, and Indigenous-organization governance entities operating in Alberta are not directly regulated by the legislation but are eligible to participate voluntarily in the substantive-standards architecture. The framework operationalizes the substantive principle established in the foundational framework: provincial-government regulatory authority does not extend to Indigenous-governance entities, but cooperative engagement is operationally feasible and substantively valuable. The voluntary-participation provisions include: the structural availability of the substantive standards as guidance for Indigenous-governance entities that wish to apply the standards in their own jurisdictions; the operational support from the Implementation Directorate for Indigenous-governance entities engaged in voluntary application of the standards; the structural availability of training and technical-assistance resources to Indigenous-governance entities; and the operational respect for Indigenous-governance authority in determining the substantive content and operational delivery of accessibility provisions within Indigenous-governance jurisdictions.

**The partnership-agreement framework.** The legislation must establish a structural framework for partnership agreements between the provincial-government and Indigenous-governance entities on accessibility-and-inclusion matters. Partnership agreements are the operational mechanism through which substantive cooperative work is structured. The substantive content of the partnership-agreement framework includes: the structural availability of partnership agreements at the request of an Indigenous-governance entity; the substantive development of partnership agreements through nation-to-nation engagement with the Indigenous-governance entity, recognizing the substantive authority of the Indigenous-governance entity in determining the partnership's terms; the substantive content the partnership agreements may address, including substantive accessibility standards within Indigenous-governance jurisdictions, cooperative service delivery between provincial-government and Indigenous-governance bodies, federal-provincial-Indigenous coordination on Indigenous-disability-community matters (including but not limited to Jordan's Principle administration), and analogous substantive content; the operational support from the Implementation Directorate for partnership-agreement development and implementation; and the substantive respect for the Indigenous-governance entity's authority in implementing and administering partnership agreements.

**The Indigenous-disability-community consultation infrastructure.** The legislation must establish substantive Indigenous-disability-community consultation infrastructure that operates within and alongside the broader disability-community consultation architecture. The Indigenous-disability-community has substantive distinct concerns that the broader disability-community consultation infrastructure does not fully address, including: the federal-provincial Jordan's Principle interface and the documented



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eligibility-narrowing impact on Alberta school divisions documented in Section 1.3a; the substantive intersection of disability with treaty and Aboriginal rights, requiring substantive engagement with the Indigenous-rights framework at the disability-policy level; the cultural-context-specific accommodation requirements that operate in addition to the broader accessibility standards; the historical-trauma context of the disability-policy framework, including the operational legacy of residential schools, the 60s Scoop, the millennium scoop, and the analogous historical patterns documented in the Truth and Reconciliation Commission's Final Report; and the ongoing colonial-disability dimensions documented in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record across seventeen substantive sections.

The substantive consultation infrastructure includes: an Indigenous-Disability-Community Consultation Council operating alongside the Disability Community Advisory Council established in Section 3.5, with substantive representation from First Nations disability-community representatives, Métis disability-community representatives, Inuit disability-community representatives where Inuit communities are established in Alberta, and Indigenous-disability-organization representatives; substantive engagement with the Indigenous-Disability-Community Consultation Council at the same operational level as the Disability Community Advisory Council; structural-funding provisions for the Indigenous-Disability-Community Consultation Council and for the Indigenous-disability-community organizations engaged in the consultation work; and the substantive integration of Indigenous-disability-community input throughout the legislation's operational life.

**The substantive engagement of Indigenous-rights frameworks in standards-development processes.** The Standards Development Committees established in Section 3.5 are required to substantively engage with the Indigenous-rights framework in the development of each substantive-standards area. The substantive engagement includes: substantive consideration of UNDRIP provisions relevant to the substantive-standards area; substantive consideration of Section 35 implications relevant to the substantive-standards area; substantive consultation with the Indigenous-Disability-Community Consultation Council on the substantive content of the standards; substantive engagement with Indigenous-governance entities through the partnership-agreement framework where the substantive content of the standards intersects with Indigenous-governance jurisdictions; and substantive integration of the Indigenous-rights framework into the standards' substantive content rather than only into procedural acknowledgements.

## The TRC and MMIWG2S Frameworks Within the Legislation

The legislation must integrate the substantive content of the Truth and Reconciliation Commission's Calls to Action (2015) and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice (2019) into its operational frameworks. The integration operationalizes the substantive principle that Indigenous-rights integration is structural and substantive rather than rhetorical or procedural.

The substantive content of the TRC integration must address the Calls to Action substantively relevant to the disability-policy and accessibility-policy domains. The TRC's 94 Calls to Action address multiple substantive areas; the substantively relevant Calls for the legislation include: Calls to Action 18 to 24 (health), addressing Indigenous health issues including Indigenous-specific health-services delivery,



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healthcare-worker training in Indigenous health, and the substantive structural-funding inadequacy of Indigenous-specific health services; Calls to Action 6 to 12 (education), addressing Indigenous education issues including the substantive structural-funding inadequacy of First Nations education and the substantive recognition of Indigenous education sovereignty; Calls to Action 1 to 5 (child welfare), addressing the substantive over-representation of Indigenous children in the child-welfare system, with the substantive disability-policy intersection through the documented disability-prevalence in the Indigenous-children-in-care population; and analogous Calls to Action with substantive disability-policy implications. The legislation's substantive engagement with the TRC Calls to Action operates through the Indigenous-Disability-Community Consultation Council, through the partnership-agreement framework, and through the substantive integration of TRC content into the standards-development processes.

The substantive content of the MMIWG2S integration must address the Calls for Justice substantively relevant to the disability-policy and accessibility-policy domains. The MMIWG2S Calls for Justice address the substantive structural conditions producing the disproportionate violence against Indigenous women, girls, and Two-Spirit and gender-diverse persons. The substantive disability-policy intersection includes: the substantive disability-prevalence among Indigenous women and girls, including the substantive incidence of acquired disability through violence; the substantive structural barriers Indigenous women and girls with disabilities face in accessing safety services, healthcare, and disability supports; the substantive intersection of colonial-disability dimensions with the colonial-gender-violence dimensions; and the substantive operational engagement with Indigenous-women-and-girls disability-community organizations in the legislation's operational life.

The substantive integration of both frameworks operates through the operational mechanisms established in the prior components of Section 3.6: the Indigenous-Disability-Community Consultation Council, the partnership-agreement framework, the Standards Development Committees' substantive engagement with the Indigenous-rights frameworks, and the cross-cutting consultation architecture.

The campaign's separate 195-page Indigenous Disability Alberta evidentiary record provides the substantive documentary foundation for the legislation's engagement with the Indigenous-rights frameworks. The evidentiary record's seventeen sections address: historical context, mortality gap, jurisdictional fracture, housing, contaminated land, water, healthcare, Jordan's Principle, child welfare, justice, MMIWG2S, UNDRIP, sovereignty, TRC health Calls to Action, July 1 synthesis (the AISH-to-ADAP transition's Indigenous-disability-community implications), closing, and federal-provincial clawback. The evidentiary record is incorporated by reference as substantive background for the legislation's substantive provisions, and the substantive content of the record informs the standards-development processes, the Implementation Directorate's operational work, and the periodic statutory reviews.

## Coordination Between the Two Frameworks

The legislation must establish structural-coordination provisions between the disability-rights consultation framework and the Indigenous-rights consultation framework, with particular attention to the Indigenous-disability-community as the population at the substantive intersection of both frameworks. The substantive principle is that the two frameworks are mutually reinforcing rather than conflicting and that the

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structural-coordination provisions ensure substantive engagement with both frameworks throughout the legislation's operational life.

The substantive content of the coordination provisions must establish: the structural relationship between the Disability Community Advisory Council and the Indigenous-Disability-Community Consultation Council, with provisions for joint meetings on substantive matters affecting the Indigenous-disability-community, for substantive cross-Council communication, and for shared substantive engagement with the legislation's processes; the substantive principle that the Indigenous-disability-community has authority to determine which Council framework is operationally appropriate for specific substantive engagement (some substantive matters are appropriately addressed through the Indigenous-Disability-Community Consultation Council; other substantive matters are appropriately addressed through the Disability Community Advisory Council with substantive Indigenous-disability-community participation; the Indigenous-disability-community determines which framework is operationally appropriate); the operational mechanisms for substantive engagement of the Indigenous-disability-community in the standards-development processes, in the operational work of the Implementation Directorate, in the compliance and enforcement architecture's operations, and in the periodic statutory reviews; and the substantive recognition that the Indigenous-disability-community's substantive engagement may operate through Indigenous-governance entities rather than through Indigenous-disability-organization-representative bodies, where the substantive matter is appropriately addressed through Indigenous-governance authority.

The coordination provisions must also address the substantive intersection of the disability-rights and Indigenous-rights frameworks at the policy level. Where substantive policy decisions implicate both frameworks, the substantive engagement must address both frameworks substantively rather than treating one framework as primary and the other as secondary. The operational mechanism includes: substantive joint analysis of policy proposals against both frameworks; substantive consultation with both Councils on the policy decisions; substantive engagement with Indigenous-governance entities where the substantive matter intersects with Indigenous-governance jurisdictions; and substantive documentation of how the policy decision addresses both frameworks in its substantive content.

## What Section 3.6 Establishes

The substantive operational frameworks for consultation requirements and Indigenous-rights integration of the *Alberta Accessibility and Inclusion Act* are now specified at the depth required for legislative-drafting input. The frameworks comprise six substantive components: the Article 4(3) substantive operational standard for consultation, with five substantive criteria (timing, depth, documentation, response, remedy) distinguishing genuine consultation from performative consultation; the cross-cutting consultation architecture establishing substantive consultation requirements throughout the legislation's operational life, with substantive resourcing of the consultation infrastructure including compensation for disability-community consultation work; the foundational framework for Indigenous-rights integration, operationalizing UNDRIP, Section 35 of the *Constitution Act, 1982*, the treaty framework operating in Alberta, and the British Columbia DRIPA precedent; the operational provisions for Indigenous-rights integration, including the voluntary-participation framework for Indigenous-governance entities, the

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partnership-agreement framework for cooperative work, the Indigenous-disability-community consultation infrastructure (with the Indigenous-Disability-Community Consultation Council operating alongside the Disability Community Advisory Council), and the substantive engagement of Indigenous-rights frameworks in the standards-development processes; the TRC Calls to Action and MMIWG2S Calls for Justice integration, with substantive disability-policy engagement on the relevant Calls; and the structural-coordination provisions between the disability-rights and Indigenous-rights consultation frameworks, with substantive recognition of the Indigenous-disability-community's authority to determine which framework is operationally appropriate for specific substantive engagement.

The substantive frameworks are designed to address the documented Alberta record. The Article 4(3) substantive operational standard addresses the consultation gaps documented in Section 1.3a (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation) by establishing substantive criteria against which consultation processes are evaluated. The Indigenous-rights integration addresses the structural absence of Indigenous-rights frameworks from the existing Alberta disability-policy architecture by establishing structural-statutory integration on the British Columbia precedent. The TRC and MMIWG2S integration addresses the documented intersection of colonial-disability dimensions with the broader Indigenous-rights framework, drawing on the campaign's separate 195-page Indigenous Disability Alberta evidentiary record as substantive documentary foundation.

The substantive frameworks operate alongside and through the structures established in Sections 3.4 and 3.5. The Disability Community Education Consultation Council, the Disability Community Advisory Council, the Standards Development Committees, and the Indigenous-Disability-Community Consultation Council together constitute the structural consultation infrastructure of the legislation. The substantive operational standards developed in Section 3.6 establish how the structural consultation infrastructure operates in substantive terms. The two together deliver the substantive consultation architecture the legislation requires.

The substantive frameworks operate consistent with the design philosophy and foundational choices of Section 3.1. The disability-community-co-authorship principle is operationalized through the substantive consultation operational standards and through the structural consultation infrastructure. The Indigenous-rights structural integration foundational choice (Choice 5) is operationalized through the foundational framework, the operational provisions, the TRC and MMIWG2S integration, and the coordination provisions. The international-compliance-as-floor-not-ceiling principle is operationalized through the substantive engagement with the international human rights instruments (CRPD, UNDRIP) at the structural-statutory level rather than only at the rhetorical level. The substantive-equality and systemic-transformation principles are operationalized through the substantive engagement of the disability community and the Indigenous-disability-community in the legislation's operational work, ensuring that the substantive standards and operational mechanisms reflect the substantive lived experience of the populations the legislation is intended to serve.

The next section turns to the implementation timeline, funding-and-resourcing provisions, and federal-coordination matters that determine how the legislation's substantive provisions are operationally delivered over time.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.6 — Amendment - Internal Community Complexity in the Consultation Framework

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The substantive Section 3.6 consultation framework developed across the prior content of Section 3.6 establishes the substantive Article 4(3) operational standard, the substantive Indigenous-rights structural integration, the substantive Disability Community Advisory Council infrastructure, the substantive Standards Development Committees with substantive disability-community-representation requirements, and the substantive consultation-process provisions calibrated to operate substantively across the substantive scope, depth, timing, documentation, response, and remedy dimensions. The substantive Section 3.6 framework operates on the substantive operational premise that the substantive disability community is a substantive constituency that requires substantive operational engagement through the substantive consultation infrastructure.

The substantive Section 3.6 amendment addresses a substantive operational complication that the substantive consultation framework must engage directly: the substantive disability community is not a unified substantive constituency. The substantive operational reality is that the substantive disability community operates within substantive internal complexities and substantive operational tensions that affect substantive policy advocacy and that the substantive consultation framework must address operationally rather than treat as resolved. The substantive amendment establishes the substantive operational principles that operate alongside the substantive Section 3.6 consultation framework to address the substantive internal-community complexity at the operational depth the substantive consultation infrastructure requires.

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## The Substantive Internal-Community Complexity

The substantive operational reality of the disability community in Alberta and across Canada includes substantive internal-community complexity operating across multiple substantive dimensions:

**Substantive framework tensions.** The substantive disability community operates across multiple substantive policy frameworks that operate in substantive operational tension on substantive issues. The substantive disability-rights framework (oriented toward independent living, community-based supports, anti-institutional positions, social-model disability framing, cross-disability positions, lived-experience-leadership) operates within substantive operational tensions with the substantive disability-services-organization framework (which sometimes operates institutional or partial-institutional services, sometimes operates within medical-model framing, sometimes operates substantive professional-service-provision authority over substantive disability-community engagement). The substantive operational implication is that the substantive consultation framework must operate substantively across both substantive frameworks while substantively privileging the substantive

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disability-rights framework operating from substantive lived-experience-leadership in accordance with the substantive Article 4(3) "close consultation with and active involvement of persons with disabilities, including children with disabilities, through their representative organizations" framework.

**Substantive constituency tensions.** The substantive disability community operates across substantive constituency lines that operate within substantive operational tensions on substantive issues. The substantive cross-disability constituency (operating across all disability profiles and oriented toward common substantive policy positions across the disability community as a whole) operates within substantive operational tensions with the substantive disability-specific constituencies (deaf community, autistic community, learning-disability community, mental-health-disability community, physical-disability community, intellectual-disability community, chronic-illness community, and others) that operate substantively distinct policy positions on substantive issues affecting their substantive populations specifically. The substantive operational implication is that the substantive consultation framework must operate substantively across both substantive cross-disability and substantive disability-specific constituency engagement, with substantive operational provisions for the substantive disability-specific consultation engagement on substantive issues affecting specific substantive populations.

**Substantive voice tensions.** The substantive disability community operates across substantive voice categories that operate within substantive operational tensions on substantive issues. The substantive adult-with-lived-experience voice (operating from substantive direct experience of the substantive disability profile) operates within substantive operational tensions with the substantive parent-of-child-with-disability voice (operating from substantive caregiver-perspective engagement with the substantive disability profile) on substantive issues including substantive inclusive education, substantive supported decision-making, substantive autonomy-and-protection balance, substantive medical-and-clinical engagement frameworks, and substantive intervention-and-therapy frameworks. The substantive operational implication is that the substantive consultation framework must operate substantively across both substantive voice categories with substantive operational provisions for the substantive distinct engagement of each, while substantively privileging the substantive adult-with-lived-experience voice on substantive issues affecting the substantive autonomy-and-self-determination of the population the policy serves directly.

**Substantive linguistic-and-cultural complexity.** The substantive disability community operates within substantive linguistic-and-cultural complexity that the substantive consultation framework must engage operationally. The substantive operational implications include: substantive English-language and French-language advocacy infrastructure operating substantively distinctly within the substantive Alberta francophone community; substantive cultural-and-religious-diversity dimensions operating substantively distinctly across the substantive newcomer-and-immigrant Albertan disability community (the substantive intersectional dimension developed in the substantive separate Intersectional Disability in Alberta evidentiary record); substantive Indigenous-disability-community substantive linguistic-and-cultural complexity operating within the substantive Treaty 6, Treaty 7, and Treaty 8 territories and within the substantive Métis Settlements framework as documented in Section 3.6 substantive Indigenous-rights provisions; and substantive 2SLGBTQ+ and gender-diverse substantive complexity operating across the substantive intersection with disability.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Substantive medical-model and disability-rights-framing tensions.** The substantive operational reality is that substantive medical-model framing continues to operate substantively across substantive provincial-government, healthcare-system, professional-services-provider, and substantive media-and-advocacy contexts even where the substantive disability-rights framework is the substantive policy direction the substantive international human rights framework requires. The substantive operational implication is that substantive consultation engagement may operate within substantive medical-model framing within substantive professional-service-provider and substantive medical-clinical contexts even where the substantive disability-rights framework operates within substantive disability-community lived-experience contexts. The substantive consultation framework must operate substantively across both substantive framings while substantively privileging the substantive disability-rights framework as the substantive operational standard the substantive international human rights framework requires.

## The Substantive Operational Implications

The substantive operational implications for the substantive consultation framework include the following substantive principles:

**Multiple substantive tables.** The substantive consultation framework operates through multiple substantive operational tables rather than through a single substantive table. The substantive Section 3.6 operational infrastructure (the Disability Community Advisory Council, the Indigenous-Disability-Community Consultation Council, the Disability Community Education Consultation Council established in Section 3.4) operates substantively as multiple substantive tables; the substantive amendment establishes the substantive operational principle that additional substantive disability-specific consultation infrastructure can be operationalized as substantive operational requirements identify substantive distinct constituencies whose substantive operational engagement requires substantive distinct infrastructure.

**Substantive distinct engagement of adult-with-lived-experience voices.** The substantive consultation framework operates with substantive distinct provisions for substantive adult-with-lived-experience consultation engagement on substantive issues affecting substantive autonomy-and-self-determination of the population the policy serves directly. The substantive operational implication is that the substantive consultation infrastructure must include substantive infrastructure operationalized to engage substantive adult-with-lived-experience voices distinctly from substantive parent-and-family-advocacy voices on substantive issues including (but not limited to) substantive inclusive-education provisions, substantive supported-decision-making provisions, substantive autonomy-and-protection-balance provisions, substantive medical-and-clinical-engagement provisions, and substantive intervention-and-therapy-framework provisions.

**Substantive avoiding default-to-largest-organization patterns.** The substantive consultation framework operates substantively against the substantive default-to-largest-organization pattern in which substantive provincial-government consultation engagement defaults to the substantive disability-services-organization with the largest substantive operational scale or the substantive media-and-political profile, treating the substantive engagement with the largest organization as



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

substantive sufficient consultation across the substantive disability community. The substantive operational principle is that the substantive consultation engagement must operate substantively across the substantive constituencies, frameworks, and voice categories rather than defaulting to substantive engagement with the substantive subset of the disability community whose substantive organizational scale or substantive media-and-political profile is most substantively visible to the substantive provincial-government infrastructure.

**Substantive privileging of substantive disability-rights-framework operationalization.** The substantive consultation framework operates substantively privileging the substantive disability-rights framework over the substantive medical-model framework where substantive operational tensions arise. The substantive operational principle is grounded in the substantive international human rights framework, the substantive *Convention on the Rights of Persons with Disabilities* substantive interpretive infrastructure, and the substantive Charter Section 15 substantive-equality framework. The substantive operational implication is that the substantive consultation engagement that operates within substantive disability-rights framing receives substantive privileged operational weight in the substantive policy-development process.

**Substantive transparency about consultation-input integration.** The substantive consultation framework operates with substantive transparency provisions regarding the substantive integration of consultation input into the substantive policy-development process. The substantive operational implication is that the substantive consultation framework must operationalize substantive provisions establishing substantive public-documentation of which substantive consultation positions were operationalized into substantive policy provisions, which were not, and the substantive operational rationale for the substantive integration-and-non-integration decisions. The substantive operational principle is that the substantive consultation infrastructure operates as substantive accountability infrastructure rather than as substantive procedural-engagement infrastructure operating without substantive operational consequences.

## What the Section 3.6 Amendment Establishes

The substantive Section 3.6 amendment establishes that the substantive consultation framework operates substantively across the substantive internal-community complexity at the operational depth the substantive disability-community operational reality requires. The substantive amendment is not a substantive replacement of the substantive Section 3.6 consultation framework; it is a substantive operational refinement that operates alongside the substantive Section 3.6 substantive provisions to address the substantive internal-community complexity at the operational level the substantive operational reality requires.

The substantive amendment operates substantively in coordination with the broader substantive Section 3.6 framework including the substantive Article 4(3) operational standard, the substantive Indigenous-rights structural integration, and the substantive consultation-process provisions across the substantive scope, depth, timing, documentation, response, and remedy dimensions. The substantive amendment establishes the substantive operational principle that the substantive consultation framework operates substantively across the substantive disability-community internal complexity while substantively

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

privileging the substantive disability-rights framework, the substantive cross-disability and disability-specific operational engagement, the substantive adult-with-lived-experience voices on substantive autonomy-and-self-determination issues, and the substantive transparency-and-accountability operational infrastructure that the substantive consultation framework requires.

The substantive standalone document *Inside the Consultation Process* is queued as substantive separate workstream (per the substantive blueprint extension recommendations) to operationalize the substantive amendment provisions at substantive operational depth across the substantive operational reality of substantive consultation engagement. The substantive document will operate as substantive complementary infrastructure to the substantive Section 3.6 amendment within the substantive blueprint.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.7 — Implementation Timeline, Funding, and Resourcing: The Operational Schedule and Structural-Funding Mechanisms

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Sections 3.2 through 3.6 specified the substantive content and operational machinery of the *Alberta Accessibility and Inclusion Act*. Section 3.7 specifies the operational schedule on which the substantive content is delivered, the structural-funding mechanisms through which the operational machinery is resourced, and the federal-coordination provisions through which the legislation's substantive operations interface with cost-shared federal disability programs. The section is the operational counterpart to the substantive content. Without an operational schedule, substantive specifications exist only at the level of legislative intent. Without structural-funding mechanisms, the implementation architecture exists only on paper. Without federal-coordination provisions, the legislation operates in isolation from the federal disability-program framework that delivers substantial elements of disability supports in Alberta.

The section develops six substantive components. The first establishes the staged implementation calendar from Royal Assent through major standards in force. The second establishes the funding-floor operational mechanisms for the implementation architecture as a whole, building on and complementing the per-student-funding-floor provision developed in Section 3.4. The third establishes the staffing-ratio operational mechanisms for the educational-assistant workforce and analogous structural-staffing provisions across the substantive areas. The fourth establishes the federal-coordination provisions for cost-shared programs including Jordan's Principle, the Canada Disability Benefit, the Disability Tax Credit, the Canada Pension Plan Disability program, and the federal Indigenous-disability programs. The fifth establishes the inter-provincial coordination provisions for federal-provincial-territorial engagement on disability matters. The sixth establishes the budget-coordination requirements through which the substantive-funding-floor provisions are integrated into the annual provincial-government budget cycle and protected against fiscal-year pressures.

The substantive content of Section 3.7 is grounded in the comparator-jurisdiction record (drawing on the implementation timelines and operational experience of the Ontario AODA, Manitoba AMA, Nova Scotia *Accessibility Act*, *Accessible British Columbia Act*, *The Accessible Saskatchewan Act*, and federal *Accessible Canada Act*), in the federal disability-program framework operating in Alberta, and in the structural-funding analysis underlying the engineered-repudiation finding documented in Part One Section 1.3a.

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## The Staged Implementation Calendar

The legislation must establish a staged implementation calendar from Royal Assent through major standards in force. The calendar operationalizes the substantive content of Sections 3.2 through 3.6 over

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

time, recognizing that the comprehensive implementation of the substantive standards architecture cannot occur immediately upon Royal Assent and must be sequenced through structured phases calibrated to the substantive complexity of each phase's deliverables.

The substantive content of the implementation calendar must establish six operational phases.

**Phase 1: Architecture Establishment (Royal Assent + Year 1).** The first operational year following Royal Assent establishes the legislation's institutional architecture. The substantive deliverables include: appointment of the lead Minister and the Minister's structural authority operationalized; establishment and staffing of the Accessibility Implementation Directorate at the proposed initial scale of 50 to 75 staff (Section 3.5); appointment of the Chief Accessibility Officer (Alberta) and the operational independence of the position structurally protected; appointment of the Director of Compliance and Enforcement on terms ensuring substantive independence from the day-to-day political administration (Section 3.5); recruitment and initial training of the inspector cadre at the proposed scale of 15 to 25 inspectors (Section 3.5); establishment and operational commencement of the Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Indigenous-Disability-Community Consultation Council (Sections 3.4, 3.5, 3.6); establishment of the first wave of Standards Development Committees (proposed first wave: Education, Built Environment and Outdoor Public Spaces, Information and Communications, Employment); commencement of the per-student-funding-floor trajectory at the Year 1 target of 90 percent of the Canadian provincial-and-territorial average (Section 3.4); establishment of the public-reporting infrastructure (the operational systems through which the annual reports and ongoing transparency provisions are delivered); and commencement of the substantive operational interface with the disability community.

**Phase 2: First-Wave Standards Development (Royal Assent + Years 2 to 3).** The second and third operational years following Royal Assent develop the first wave of substantive standards. The substantive deliverables include: completion of the first wave Standards Development Committees' substantive work, with draft standards produced by the end of Year 2; substantive public consultation on the draft standards over twelve to eighteen months, with engagement of the disability community at the substantive level the Article 4(3) operational standard (Section 3.6) requires; finalization of the first wave standards by the end of Year 3, with ministerial approval as the final operational step; commencement of operational implementation of the education-area standard's structural provisions (Section 3.4), including the substantive-needs assessment of all students currently enrolled in segregated programming (Year 1 of the Year 1-3 transition-support-infrastructure development period), the seclusion-room decommissioning trajectory entering its first operational year (mandatory monthly reporting per Section 3.4), and the educational-assistant staffing-ratio implementation at school divisions; per-student-funding-floor trajectory advancing to Year 2 = 92 percent of Canadian average and Year 3 = 95 percent of Canadian average; establishment of the second wave of Standards Development Committees (proposed second wave: Transportation, Design and Delivery of Services and Programs, Health, Goods and Procurement); and initial operational deployment of the compliance and enforcement architecture, with structured introduction of inspector activity, compliance-order procedure, and administrative-monetary-penalty regime.

**Phase 3: First-Wave Standards In Force (Royal Assent + Years 4 to 5).** The fourth and fifth operational years following Royal Assent bring the first wave of substantive standards into operational force on tiered timelines per Section 3.2's coverage architecture. The substantive deliverables include: provincial public

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

sector compliance with first-wave standards required immediately upon standards taking effect; large private-sector and large non-profit-sector organizations subject to compliance within twelve to twenty-four months of standards taking effect; medium organizations subject to compliance within twenty-four to thirty-six months; small organizations subject to compliance within thirty-six to sixty months on the substantively-reduced obligations applicable to their tier; second-wave Standards Development Committees produce draft standards with substantive public consultation commencing; per-student-funding-floor trajectory reaching Year 4 = 98 percent of Canadian average and Year 5 = 100 percent of Canadian average; education segregated-setting transition pathway entering the Year 3-7 structured-transition period (Section 3.4), with students transitioning at the defined annual rate; seclusion-room decommissioning completed by end of Year 2 (Section 3.4 two-year transition timeline); and the first periodic statutory review commencing in Year 5 (consistent with the *Manitoba Accessibility for Manitobans Act* five-year cycle).

**Phase 4: Second-Wave Standards In Force and Comprehensive Architecture (Royal Assent + Years 5 to 10).** The fifth through tenth operational years bring the second wave of substantive standards into operational force on the same tiered timelines and complete the comprehensive substantive standards architecture across all eight standards areas. The substantive deliverables include: second-wave standards finalized, ministerially approved, and brought into force on the tiered timelines; the comprehensive substantive standards architecture operational across the public-sector, private-sector, and non-profit-sector covered organizations; per-student-funding-floor maintained at 100 percent of Canadian average with the inflation-adjustment provisions ensuring real-dollar value preservation; education segregated-setting transition continuing the structured pathway through the Year 7 milestone (transition substantially complete) and continuing through the Year 10 final-transition-and-stabilization period; first periodic statutory review completed and tabled in the Legislative Assembly with structured provincial-government response; sectoral-regulator integration of substantive standards advancing through the College of Physicians and Surgeons of Alberta, the College of Registered Nurses of Alberta, and analogous bodies; and federal-coordination provisions operationally established and producing substantive cooperation on cost-shared programs.

**Phase 5: Mature Operations and Comprehensive Implementation (Royal Assent + Years 10 to 20).** The tenth through twentieth operational years deliver mature operations and comprehensive implementation of the substantive standards across covered sectors. The substantive deliverables include: education segregated-setting transition completed by Year 10 (Section 3.4 ten-year timeline); major built-environment retrofit timelines completed for provincial-public-sector buildings; comprehensive operational compliance approaching the substantive standard across the covered organizations; second and third periodic statutory reviews completed (Year 10 and Year 15) with structured provincial-government responses; substantive operational improvements responding to review recommendations integrated into the legislation's operational practice; comprehensive Indigenous-rights integration operational through partnership-agreement frameworks and the Indigenous-Disability-Community Consultation Council's mature engagement; and approach to the substantive target of "Accessible Alberta by 2046" (consistent with a Royal Assent date in 2026 and a 20-year comprehensive-implementation horizon analogous to the federal *Accessible Canada Act* 2040 target and the Nova Scotia 2030 target).

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Phase 6: Substantively Barrier-Free Alberta (Royal Assent + Years 20 to 25).** The twentieth through twenty-fifth operational years deliver the substantive target. The substantive deliverables include: comprehensive accessibility achieved across all eight substantive-standards areas at the operational level the substantive standards specify; ongoing operations under maintained substantive standards with continuous improvement through the periodic statutory review cycle; substantive integration of the legislation's substantive content into the broader Alberta legal-and-regulatory framework, with the substantive standards operating as established baseline rather than as exceptional requirements; and the legislation's substantive content matured to the level of operational stability that defines a substantively barrier-free Alberta.

The staged calendar is calibrated to the substantive complexity of each phase's deliverables and to the operational reality of the comparator-jurisdiction implementation experience. The Ontario AODA's twenty-year implementation horizon (2005 to 2025) and the federal *Accessible Canada Act*'s twenty-one-year horizon (2019 to 2040) provide the comparator benchmark for the Alberta calendar's overall scope. The proposed Alberta calendar (2026 Royal Assent to 2046 substantive target, with 2051 as the full operational maturity horizon) is consistent with the comparator pattern and calibrated to the Alberta operational context.

## The Funding-Floor Operational Mechanisms

The legislation must establish funding-floor operational mechanisms for the implementation architecture as a whole, complementing the per-student-funding-floor provision developed in Section 3.4 for the K-12 system specifically. The substantive principle is that the legislation's operational delivery requires structural-funding protection at the architectural level, not only at the per-student-education level. Without architectural funding protection, the implementation infrastructure can be defunded through fiscal-year pressures even where the per-student-education funding floor is being met.

The substantive content of the architectural-funding-floor provision must establish: a minimum operational budget for the Accessibility Implementation Directorate calibrated to the substantive scope of the legislation, with the proposed minimum specified as a percentage of the provincial-government total program budget (the proposed initial scale of 50 to 75 Directorate staff at full operational capacity is the operational benchmark, with the dollar-equivalent calculated annually and protected from year-over-year reduction below the substantive scope required); a minimum operational budget for the compliance and enforcement architecture covering the Director of Compliance and Enforcement's office, the inspector cadre, and the Tribunal, calibrated to the proposed initial scale of 15 to 25 inspectors and the Tribunal's substantive operational requirements; a minimum operational budget for the Standards Development Committees, sufficient to support substantive multi-stakeholder work including disability-community-participant compensation per Section 3.6 and operational support for committee work; a minimum operational budget for the Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Indigenous-Disability-Community Consultation Council, including the compensation provisions for disability-community consultation work specified in Section 3.6; and a minimum operational budget for the Chief Accessibility Officer (Alberta)'s office, calibrated to the substantive scope of the strategic-advisory function the position fills.



*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The funding-floor provisions must include automatic-adjustment mechanisms ensuring that the architectural-funding floors maintain their substantive operational capacity over time. The adjustment mechanisms include: inflation-adjustment provisions tied to the Consumer Price Index for Alberta; population-adjustment provisions ensuring that the substantive operational capacity scales with the population the legislation serves; and substantive-scope-adjustment provisions ensuring that the operational capacity scales with the substantive complexity of the legislation's operations as the substantive content matures.

The funding-floor provisions must include enforcement provisions. The substantive consequence of provincial-government failure to meet the architectural funding floors in any fiscal year must be defined in the legislation. The proposed structural consequences are analogous to those for the per-student-funding-floor enforcement (Section 3.4): mandatory remediation budget submission within a defined period, mandatory public reporting on the failure and on the remediation plan, structural disability-community-consultation requirement on the remediation plan, and substantive review of the funding-floor failure as part of the next periodic statutory review.

The penalty revenues directed to the accessibility-improvement fund (Section 3.5) operate as a supplementary funding source supporting compliance assistance for small organizations, disability-community-engagement infrastructure, and analogous substantive purposes. The fund operates in addition to the architectural funding floors rather than as a substitute for them; the substantive principle is that the legislation's core operational infrastructure must be funded through the provincial-government's structural-budget framework, not through the variable revenues of penalty issuance.

## The Staffing-Ratio Operational Mechanisms

The legislation must establish staffing-ratio operational mechanisms for the educational-assistant workforce, complementing the EA staffing-ratio provision developed in Section 3.4. The substantive principle is that the staffing-ratio provision cannot be delivered through the existing EA labour market without substantive structural changes addressing recruitment, retention, compensation, and training. The Section 1.3a documented EA compensation reality (after-tax annual income under \$30,000 at the top of the existing pay range) and the documented Jordan's Principle eligibility collapse cumulatively establish that the existing structural conditions cannot deliver the staffing ratios required.

The substantive content of the staffing-ratio operational mechanisms must establish: the structural compensation provisions ensuring EA wages reach the Alberta living-wage benchmark per Section 3.4, with the operational mechanism of provincial-government collective-bargaining engagement with the school divisions, the Alberta Teachers' Association, the Canadian Union of Public Employees (which represents many Alberta EAs), and analogous bodies, ensuring that the compensation provisions reach the front-line workforce; the structural training provisions per Section 3.4, with the operational mechanism of provincial-government funding of the training infrastructure (training-program development, instructor compensation, participant compensation during training time, and analogous operational costs) and integration with the Alberta post-secondary education system's existing EA-training programming; the structural recruitment provisions, with operational support for school divisions in recruiting the substantive EA workforce required to deliver the staffing ratios, including substantive support for recruitment in

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

northern, rural, and remote Alberta communities where the EA workforce is structurally constrained; the structural retention provisions, including the substantive workplace-supports that distinguish positions from which EAs frequently exit (workplace-violence exposure documented in the Section 1.3a ATA 2024 survey, inadequate supervision and support, inadequate professional-development opportunities, inadequate career-progression pathways) from positions that retain experienced EAs over time; and the structural federal-coordination provisions for Indigenous students, ensuring that the EA staffing-ratio provisions operate for Indigenous students regardless of the trajectory of federal Jordan's Principle funding (developed in detail in the next component of Section 3.7).

The staffing-ratio operational mechanisms must address the substantive recognition that the EA workforce is the substantive operational delivery mechanism for inclusive education. Without the workforce, the inclusive-education baseline established in Section 3.4 is operationally undeliverable. The substantive structural investment in the workforce is accordingly not an ancillary element of the education-area standard; it is the foundational element on which the substantive standard's operational delivery depends.

Analogous staffing-ratio operational mechanisms operate across the substantive areas where workforce capacity is the operational delivery mechanism for the substantive standards. The healthcare workforce capacity (Area 6, Section 3.3) is structurally analogous: without adequate healthcare-worker capacity, the substantive healthcare-area standard is operationally undeliverable. The transportation-services workforce capacity (Area 4) operates similarly. The customer-service-and-design-of-services workforce capacity (Area 5) operates similarly. The substantive structural-investment requirement extends across the workforce-capacity dimensions of the legislation's substantive operations.

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## Federal Coordination on Cost-Shared Programs

The legislation must establish federal-coordination provisions for cost-shared disability programs operating in Alberta. The provisions recognize that substantial elements of disability supports in Alberta are delivered through federal-provincial cost-shared programs or through federal programs that interface with provincial-government-administered programs, and that the legislation's substantive operations cannot occur in isolation from this federal-program framework.

The substantive content of the federal-coordination provisions must address five substantive program interfaces.

**Jordan's Principle.** The federal Jordan's Principle program addresses public services for First Nations children. The Section 1.3a documented eligibility collapse (the federal narrowing of Jordan's Principle eligibility for school-related off-reserve requests in 2025, producing the Wild Rose 46-EA layoff in December 2024, the Sturgeon 35-position elimination in June 2025, and hundreds of EA position losses provincially) establishes that the federal-provincial Jordan's Principle interface is operationally consequential for Alberta inclusive-education delivery. The federal-coordination provisions must establish: substantive provincial-government commitment to maintain the EA staffing-ratio standards for Indigenous students regardless of the Jordan's Principle funding trajectory, with structural cost-recovery and federal-coordination provisions; substantive engagement with the federal government on Jordan's Principle administration, advocating for substantive eligibility frameworks that meet the substantive-needs

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

of First Nations children with disabilities; substantive engagement with First Nations governance entities and Indigenous-disability-community organizations on the substantive operational interface; and substantive integration of the Jordan's Principle interface into the Indigenous-Disability-Community Consultation Council's operational engagement (Section 3.6).

**The Canada Disability Benefit (CDB).** The federal Canada Disability Benefit, established under the *Canada Disability Benefit Act* (S.C. 2023, c. 9), provides federal income support to working-age persons with disabilities. The Section 1.4-and-1.6 documented Alberta categorical-program architecture (AISH, ADAP, PDD, FSCD, WCB) operates as the provincial layer that interfaces with the CDB at the operational level. The federal-coordination provisions must establish: substantive provincial-government commitment that the CDB operates as a supplementary federal benefit floor and is not used as substitute for provincial categorical-program supports (the substantive principle that a federal benefit cannot be used by the provincial government as justification for reducing provincial benefits to maintain a constant total support level); substantive provincial-government commitment to ensure that CDB income does not produce reduction or elimination of provincial benefit eligibility; substantive engagement with federal-government on CDB administration, advocating for the substantive accessibility of the CDB application process and the integration of CDB administration with provincial-program administration where operationally beneficial; and substantive engagement with the disability community on the CDB-provincial-program interface.

**The Disability Tax Credit (DTC).** The federal Disability Tax Credit, administered by the Canada Revenue Agency, provides federal-tax-credit support for persons with disabilities who meet the eligibility criteria. The substantive accessibility of the DTC application process is the subject of substantial disability-community advocacy at the federal level. The federal-coordination provisions must establish: substantive provincial-government engagement with the federal government on DTC administration, advocating for the substantive accessibility of the application process; substantive integration of DTC information and support into the provincial-program-administration framework, ensuring that persons with disabilities applying for AISH, ADAP, PDD, or analogous provincial programs receive substantive information and support on DTC eligibility; and substantive engagement with the disability community on the DTC-provincial-program interface.

**The Canada Pension Plan Disability (CPP-D).** The federal Canada Pension Plan Disability program provides federal disability income to CPP contributors who become disabled. The CPP-D interfaces with provincial AISH and ADAP at the operational level. The federal-coordination provisions must establish: substantive provincial-government engagement with the federal government on CPP-D administration; substantive integration of CPP-D information and support into the provincial-program-administration framework; and substantive engagement with the disability community on the CPP-D-provincial-program interface.

**Federal Indigenous-disability programs.** Indigenous Services Canada administers multiple disability programs serving First Nations and Inuit populations, including the Non-Insured Health Benefits program, the First Nations and Inuit Home and Community Care program, and analogous programs. The federal-coordination provisions must establish: substantive provincial-government engagement with the federal government on Indigenous-disability-program administration, recognizing that the substantive operational interface affects Indigenous-disability-community Albertans directly; substantive engagement

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

with First Nations and Métis governance entities on the operational interface; and substantive integration of Indigenous-disability-program coordination into the Indigenous-rights operational provisions of Section 3.6.

The federal-coordination provisions operate through the lead Minister's office, the Implementation Directorate, the Chief Accessibility Officer (Alberta)'s engagement with the federal Chief Accessibility Officer, and the structural Federal-Provincial-Territorial coordination mechanisms developed in the next component of Section 3.7. The provisions are operationally significant: a substantial portion of the disability-support architecture affecting Albertans operates through federal programs that the provincial-government cannot directly regulate but with which the provincial-government must substantively coordinate to deliver the substantive operations the legislation requires.

## Inter-Provincial and Federal-Provincial-Territorial Coordination

The legislation must establish inter-provincial coordination provisions enabling the provincial-government's substantive engagement with federal-provincial-territorial disability-policy frameworks and with the substantive accessibility-and-inclusion work of comparator provincial governments. The substantive principle is that disability-policy coordination operates across provincial boundaries through structural mechanisms that the legislation must engage with rather than operate in isolation from.

The substantive content of the inter-provincial coordination provisions must address: the Federal-Provincial-Territorial Forum on Disability and analogous federal-provincial-territorial structures, with substantive provincial-government engagement through the lead Minister and through the Chief Accessibility Officer (Alberta) and the Implementation Directorate's senior officials; the Council of Provincial Accessibility Officials (where established or analogous body operating among provincial accessibility-implementing bodies), with substantive provincial-government engagement through the Implementation Directorate and the Chief Accessibility Officer (Alberta); best-practice sharing on standards development with comparator provinces (Ontario, Manitoba, Nova Scotia, British Columbia, Saskatchewan), with substantive engagement through the Standards Development Committees' substantive work on each substantive-standards area; mutual-recognition provisions for organizations operating across provincial jurisdictions (where an organization meets accessibility standards under one provincial framework, the legislation may provide for mutual-recognition treatment under the Alberta framework subject to substantive equivalence); and structural coordination on emerging accessibility issues that operate across multiple provincial jurisdictions, including but not limited to digital-accessibility standards (where federal coordination through the *Accessible Canada Act* and Accessibility Standards Canada produces federal-floor standards that the provincial framework operates above), built-environment standards (where Canadian Standards Association standards operate as the technical foundation across multiple provincial jurisdictions), and analogous substantive areas.

The inter-provincial coordination operates alongside the federal-coordination provisions developed in the previous component of Section 3.7, and through the structural mechanisms that the federal Chief Accessibility Officer's office, the Council of Provincial Accessibility Officials, and the Federal-Provincial-Territorial Forum on Disability provide.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Budget-Coordination Requirements

The legislation must establish budget-coordination requirements through which the substantive-funding-floor provisions developed in Sections 3.4 and 3.7 are integrated into the annual provincial-government budget cycle and protected against fiscal-year pressures. The provisions are the operational mechanism through which the structural-funding protections become substantively meaningful in the annual fiscal-decision-making framework.

The substantive content of the budget-coordination requirements must establish: the integration of the per-student-funding-floor provision (Section 3.4) and the architectural-funding-floor provisions (Section 3.7) into the annual Alberta provincial-government budget cycle, with the Treasury Board required to verify funding-floor compliance prior to budget tabling and with the Auditor General of Alberta required to confirm funding-floor compliance through the annual audit; the multi-year fiscal-planning provisions ensuring that the funding-floor compliance is maintained over the three-year fiscal-planning horizon and that the inflation-and-population-adjustment mechanisms operate consistently across the planning horizon; the structural-protection provisions establishing that the funding-floor requirements cannot be reduced by ordinary fiscal-year decisions and that any departure from the funding-floor requirements requires substantive legislative action rather than only fiscal-decision action; the substantive accountability provisions establishing that funding-floor failure produces substantive consequences (Section 3.4 enforcement provisions for the per-student floor; Section 3.7 enforcement provisions for the architectural floor); and the public-transparency provisions ensuring that the funding-floor compliance is publicly visible at the budget-tabling stage rather than only through subsequent reporting.

The budget-coordination requirements address the substantive risk that fiscal-year pressures produce reductions to disability-related funding that, while individually appearing reasonable in fiscal-decision terms, cumulatively reproduce the structural-funding-starvation pattern documented in Part One Section 1.3a. The substantive protection requires that the funding-floor provisions operate as legislative requirements rather than as fiscal-policy preferences; the legislative-requirement status ensures that fiscal-year pressures cannot defeat the substantive operational delivery of the legislation's substantive content.

The budget-coordination requirements operate alongside the broader Alberta fiscal-management framework (the *Fiscal Planning and Transparency Act*, the *Financial Administration Act*, and analogous statutes). The legislation does not displace the existing fiscal-management framework; rather, the legislation establishes substantive-funding requirements that the fiscal-management framework must accommodate and that operate as legislative-baseline obligations within the broader fiscal-decision-making process.

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## What Section 3.7 Establishes

The implementation timeline, funding-and-resourcing provisions, and federal-coordination matters of the *Alberta Accessibility and Inclusion Act* are now specified at the depth required for legislative-drafting input. The substantive content comprises six components: the staged implementation calendar from Royal Assent through major standards in force across six operational phases over twenty-five years, calibrated



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

to the comparator-jurisdiction implementation experience and the substantive complexity of each phase's deliverables; the funding-floor operational mechanisms for the implementation architecture as a whole, complementing the per-student-funding-floor provision developed in Section 3.4 and including automatic-adjustment mechanisms, enforcement provisions, and the integration with penalty revenues directed to the accessibility-improvement fund; the staffing-ratio operational mechanisms for the educational-assistant workforce and analogous structural-staffing provisions across the substantive areas, including compensation provisions reaching the Alberta living-wage benchmark, training provisions, recruitment and retention provisions, and federal-coordination provisions for Indigenous students; the federal-coordination provisions for Jordan's Principle, the Canada Disability Benefit, the Disability Tax Credit, the Canada Pension Plan Disability program, and federal Indigenous-disability programs, addressing the substantive operational interface between the provincial legislation and the federal-program framework; the inter-provincial and Federal-Provincial-Territorial coordination provisions enabling substantive engagement with comparator provincial governments and federal-provincial-territorial structures; and the budget-coordination requirements integrating the substantive-funding-floor provisions into the annual provincial-government budget cycle with structural protections against fiscal-year pressures.

The substantive content addresses the structural-funding question that the engineered-repudiation finding in Part One Section 1.3a made central to the legislation's design. The funding-floor operational mechanisms ensure that the structural-funding architecture cannot be defunded through fiscal-year pressures. The staffing-ratio operational mechanisms ensure that the substantive workforce capacity required for operational delivery is structurally protected. The federal-coordination provisions ensure that the federal-program interface does not produce substantive operational gaps. The budget-coordination requirements ensure that the structural-funding protections operate at the budget-decision-making stage rather than only through subsequent reporting.

The substantive content operates consistent with the design philosophy and foundational choices of Section 3.1. Choice 7 (funding-floor and EA-staffing-ratio provisions, the substantial departure from comparator legislation justified by the documented Alberta record) is operationalized through the funding-floor operational mechanisms and the staffing-ratio operational mechanisms. Choice 10 (coordination with the existing categorical-program architecture, with the *Alberta Human Rights Act*, and with the federal framework) is operationalized through the federal-coordination provisions, the inter-provincial coordination provisions, and the budget-coordination requirements. The substantive-equality and systemic-transformation principles are operationalized through the substantive-funding protections that prevent the engineered-funding-starvation pattern from being reproduced under different operational labels.

The substantive content addresses the substantive operational reality that the legislation cannot deliver its substantive content through legislative authority alone. The legislation requires substantive-funding allocation, substantive-workforce capacity, substantive federal-coordination, and substantive budget-cycle integration. Without these substantive operational components, the legislation's substantive standards exist at the level of legislative intent rather than operational delivery. The substantive content of Section 3.7 specifies the operational components through which the substantive standards become operationally deliverable.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The next section turns to the statutory-review and public-reporting provisions, the coordination with the existing categorical-program architecture and with the *Alberta Human Rights Act*, and the structural mechanisms through which the legislation's substantive operations are evaluated and improved over time.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.8 — Statutory Review, Public Reporting, and Coordination with Existing Architecture

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Sections 3.2 through 3.7 specified the substantive content, operational machinery, consultation and Indigenous-rights frameworks, implementation calendar, and structural-funding mechanisms of the *Alberta Accessibility and Inclusion Act*. Section 3.8 specifies the accountability mechanisms through which the legislation's substantive operations are evaluated and improved over time, and the coordination mechanisms through which the legislation operates within the existing Alberta and federal legal-regulatory landscape. The accountability and coordination layer is the substantive structural mechanism that prevents the legislation from operating in isolation from the broader legal-regulatory landscape and that ensures the legislation's substantive content is improved over time through structured review cycles.

The section develops six substantive components. The first establishes the statutory-review and public-reporting architecture for the legislation as a whole, building on the education-area-specific reporting and review provisions developed in Section 3.4 and the architectural-funding-floor reporting provisions developed in Section 3.7. The second establishes the coordination with the existing Alberta categorical-program architecture (AISH, ADAP, PDD, FSCD, WCB), operationalizing Section 3.1 Choice 10 (coordination with existing categorical-program architecture). The third establishes the coordination with the *Alberta Human Rights Act* and the Alberta Human Rights Commission. The fourth establishes the coordination with the federal regulatory framework, complementing the federal-program coordination provisions developed in Section 3.7. The fifth establishes the coordination with other Alberta provincial statutes whose substantive content interfaces with the legislation. The sixth addresses the legislation's substantive operational interface with the existing Alberta legal-regulatory landscape as a whole and the structural mechanisms through which the legislation operates as a coordinated component of the broader framework.

The substantive content of Section 3.8 is grounded in the comparator-jurisdiction record (drawing on the statutory-review cycles documented in Sections 2.1 through 2.6, particularly the *Manitoba Accessibility for Manitobans Act* five-year review cycle and the Ontario AODA independent-review pattern), in the Alberta legal-regulatory landscape documented across Parts One and Two, and in the disability-community advocacy position that substantive accountability and substantive coordination are the structural mechanisms through which the legislation maintains substantive integrity over time.

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## The Statutory-Review and Public-Reporting Architecture

The legislation must establish a structural architecture for periodic statutory review and ongoing public reporting that operates across the legislation as a whole, supplementing the area-specific reporting and review provisions developed for education in Section 3.4 and the architectural-funding-floor reporting

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

provisions developed in Section 3.7. The architecture is the structural accountability mechanism through which the legislation's substantive operations are publicly visible, externally evaluated, and improved over time.

The substantive content of the public-reporting framework must establish: the requirement for annual public reports addressing the substantive operations of the legislation, with the report content including implementation status across all eight substantive-standards areas, compliance and enforcement activity (compliance orders issued, administrative monetary penalties applied, inspector activity, sectoral compliance trajectories), funding-floor compliance for both the per-student-funding floor (Section 3.4) and the architectural-funding floors (Section 3.7), staffing-ratio compliance for the educational-assistant workforce and analogous workforce-capacity dimensions, segregated-setting transition progress for the education area (Section 3.4), Council operations and consultation outcomes for the Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Indigenous-Disability-Community Consultation Council (Sections 3.4, 3.5, 3.6), federal-coordination operations on cost-shared programs (Section 3.7), inter-provincial coordination engagement (Section 3.7), and the substantive disability-community-engagement assessment for the operational year; the format requirements for the annual reports, including alternative-format availability per Section 3.3 Area 2 substantive content, plain-language summaries, Indigenous-language summaries for the substantive content addressing Indigenous-disability-community matters where operationally appropriate, and structured digital accessibility per the Web Content Accessibility Guidelines version 2.1 Level AA minimum standard; and the tabling requirements, including tabling in the Legislative Assembly within a defined period each year, public availability concurrent with tabling, and structured engagement with the Disability Community Advisory Council on the substantive content of the report prior to finalization and tabling.

The substantive content of the periodic statutory-review framework must establish: the five-year cycle on the *Manitoba Accessibility for Manitobans Act* precedent, with the first review commencing five years after Royal Assent and subsequent reviews on five-year intervals thereafter; the substantive scope of the periodic review, including the substantive adequacy of the standards developed under each substantive-standards area, the operational effectiveness of the implementing architecture and enforcement provisions, the substantive adequacy of the consultation requirements and operational engagement with the disability community and the Indigenous-disability-community, the substantive adequacy of the funding-floor and staffing-ratio operational mechanisms, the substantive operational outcomes for persons with disabilities in Alberta across the lifecycle dimensions documented in Part One, and analogous substantive elements; the appointment of the independent reviewer on terms ensuring substantive independence from the day-to-day political administration, with the appointee selected through structured engagement with the disability community and the Indigenous-disability-community on the substantive qualifications required, with the appointee possessing substantive expertise in disability-rights and accessibility-policy issues, and with the appointee holding substantive credibility within the disability community and the broader policy community; the substantive process the independent reviewer conducts, including substantive engagement with the disability community and the Indigenous-disability-community through structured consultation processes, substantive engagement with covered organizations (provincial-government ministries, school divisions, healthcare providers, private-sector and non-profit-sector organizations), substantive engagement with the implementing architecture (the Implementation Directorate, the Director of Compliance and Enforcement, the Standards

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Development Committees, the Councils, and the Tribunal), substantive analysis of the operational data documented in the annual reports and in subsequent independent investigation, and substantive integration of comparator-jurisdiction insights from the parallel review cycles operating in other Canadian provinces and at the federal level; the substantive product the independent reviewer produces, including a public report tabled in the Legislative Assembly, structured recommendations for legislative or operational reform, and substantive analytical content sufficient to enable substantive provincial-government response and substantive disability-community engagement; and the substantive provincial-government response, with the response required within a defined period (proposed: twelve months following the report's tabling), with the response addressing each recommendation substantively (which recommendations are accepted and the implementation timeline; which recommendations are accepted with modification and the substantive grounds for modification; which recommendations are not accepted and the substantive grounds for non-acceptance; which recommendations require further substantive engagement before resolution), and with the response subject to substantive disability-community and legislative scrutiny.

The Ontario AODA documented review pattern (the Beer Review 2010, the Moran Review 2014, the Onley Review 2019, the Donovan Review 2023) provides the comparator template for the Alberta independent-review structure. The Donovan Review's documented use of the word *crisis* to describe Ontario's accessibility status, and its operational-failure documentation across the AODA implementation, establishes that substantive independent review can produce substantive analytical engagement with the legislation's operational performance. The Alberta independent-review structure must be calibrated to enable the same substantive analytical engagement; the structural mechanism for substantive engagement is the substantive independence of the reviewer, the substantive scope of the review, and the substantive provincial-government response requirement.

The legislation does not include sunset provisions. The substantive principle is that comprehensive accessibility legislation is a sustained substantive-equality framework that should not be subject to automatic expiry; the substantive content matures and is improved through the periodic-review cycle rather than through periodic legislative re-enactment. Comparator legislation does not include sunset provisions, and the legislative-design principle is consistent across Canadian jurisdictions.

## Coordination with the Existing Categorical-Program Architecture

The legislation must establish coordination provisions with the existing Alberta categorical-program architecture for disability supports: AISH (Assured Income for the Severely Handicapped), ADAP (Alberta Disability Assistance Program, replacing AISH effective July 1, 2026), PDD (Persons with Developmental Disabilities), FSCD (Family Support for Children with Disabilities), and WCB (Workers' Compensation Board). The coordination operationalizes Section 3.1 Choice 10 (coordination with existing categorical-program architecture without displacing or substituting for it) and the Section 2.8 substantive distinction between the categorical-program architecture and the substantive-standards architecture.

The substantive principle the coordination provisions operationalize is that the legislation does not displace or substitute for the categorical-program architecture. The categorical programs continue to operate under their own enabling legislation (the *AISH Act* for AISH and ADAP, the *Persons with Developmental Disabilities Foundation Act* for PDD, the *Family Support for Children with Disabilities Act*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

for FSCD, the *Workers' Compensation Act* for WCB), with their own substantive content (eligibility criteria, benefit levels, administrative procedures), and with their own structural-reform pathways (legislative amendments to the enabling statutes, regulatory amendments under the enabling statutes, ministerial-order amendments where applicable). The substantive failures documented in Part One Sections 1.3 through 1.6 (the FSCD inadequacy, the AISH-to-ADAP transition substantive concerns, the PDD operational failures, the FSCD-PDD-AISH crisis interface, the WCB exception and the analytical questions it raises) are substantive issues that operate within the categorical-program architecture; their resolution requires substantive reform of the categorical-program legislation rather than through the substantive-standards framework the new legislation establishes.

The substantive coordination the legislation operates is at three operational levels. First, the substantive accessibility standards developed under the new legislation apply to the administration of the categorical programs. The categorical programs are administered by provincial-public-sector organizations (the relevant ministries, Alberta Health Services where applicable, Crown corporations including WCB-Alberta) that fall within the substantive coverage of the legislation per Section 3.2. The administration of AISH and ADAP must comply with the Area 5 substantive standards (design and delivery of services and programs), the Area 2 substantive standards (information and communications), and analogous standards as substantively applicable. The same applies to the administration of PDD, FSCD, and WCB. The substantive accessibility of the categorical-program administration is, accordingly, within the substantive coverage of the legislation, even though the substantive content of the categorical programs themselves remains within the categorical-program-specific legislative frameworks.

Second, the systemic-and-structural barrier definition (Section 3.2 Category (e)) reaches the structural inadequacies of the categorical programs to the extent those inadequacies produce disproportionately negative outcomes for persons with disabilities. The substantive principle is that where the categorical-program architecture's structural inadequacies operate as systemic-and-structural barriers within the meaning of the legislation, the legislation's substantive provisions apply. The operational implication is that the substantive-standards-development process and the compliance-and-enforcement architecture engage with the categorical-program inadequacies at the systemic-barrier level even where the categorical-program substantive content is not directly amendable through the legislation.

Third, the substantive disability-community engagement infrastructure operates across both the substantive-standards architecture and the categorical-program architecture. The Disability Community Advisory Council operates as the substantive disability-community representative body for engagement with the legislation; the Council's substantive engagement extends to the categorical-program coordination matters where the substantive-standards architecture interfaces with the categorical-program architecture. The substantive principle is that the substantive disability-community engagement is not divided between separate consultation infrastructures for the two architectures; the engagement operates across both.

The coordination provisions must address substantive operational interfaces specifically. The AISH-to-ADAP transition documented in Part One operates at the substantive boundary between the categorical-program architecture and the substantive-standards architecture: the transition is a categorical-program reform that produces substantive consequences for persons with disabilities that the legislation must engage with through the substantive-standards architecture's coverage of the program

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

administration (Area 5) and through the systemic-and-structural barrier coverage. The FSCD-PDD-AISH crisis interface operates analogously. The WCB exception (the substantive distinction between the WCB architecture and the broader categorical-program architecture, documented in Part One Section 1.6) raises analytical questions about why the WCB substantive design operates substantively differently from the broader categorical programs; the substantive analytical engagement with the WCB exception is appropriate to the substantive-standards architecture even where direct legislative reform of WCB occurs through the *Workers' Compensation Act*.

## Coordination with the Alberta Human Rights Act

The legislation must establish coordination provisions with the *Alberta Human Rights Act* and the Alberta Human Rights Commission. The substantive principle is that the *Alberta Human Rights Act* and the new legislation are complementary substantive frameworks operating on substantively distinct dimensions of disability rights protection, and that the coordination provisions operationalize the structural relationship between the two frameworks.

The substantive distinction between the two frameworks is structural. The *Alberta Human Rights Act* addresses individual-complaint resolution on protected grounds including physical disability and mental disability. The Act provides individual remedies through the Alberta Human Rights Commission's complaint-investigation process and through the Alberta Human Rights Tribunal's adjudicative process. The Act's substantive operation is oriented toward individual-case resolution: an individual whose rights have been violated under the Act files a complaint, the complaint is investigated, the Commission engages the parties in resolution, and the Tribunal adjudicates where resolution is not achieved. The Act does not establish systemic accessibility standards binding on organizations; the Act's protections operate at the individual-complaint level.

The new legislation operates on the systemic-accessibility-standards dimension. The legislation establishes substantive accessibility standards binding on covered organizations across the eight substantive-standards areas. The legislation's substantive operation is oriented toward systemic compliance: covered organizations are required to meet the substantive standards, the compliance is monitored through inspector activity and reporting, and the compliance and enforcement architecture (Section 3.5) operates against organizations that do not meet the standards.

The two frameworks are complementary, not substitutive. A person with a disability whose individual rights have been violated may pursue both: an individual complaint under the *Alberta Human Rights Act*, addressing the substantive harm to the individual; and a systemic-standards-violation matter under the new legislation, addressing the substantive standards-failure of the organization. The two pursuits operate on substantively distinct operational tracks, and the substantive remedies on each track are substantively distinct.

The substantive content of the coordination provisions must establish: the structural maintenance of the *Alberta Human Rights Act's* substantive jurisdiction over individual-complaint resolution on protected grounds, with the Act continuing to operate without substantive amendment by the new legislation; the structural operation of the new legislation's substantive jurisdiction over systemic-accessibility-standards,



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

distinct from but complementary to the *Alberta Human Rights Act*'s individual-complaint jurisdiction; the structural-coordination provisions ensuring that complaints raising both individual and systemic dimensions are handled consistently across the two frameworks, including referral provisions where a complaint received by one framework is appropriately addressed within the other framework's substantive scope, and joint-engagement provisions where a complaint substantively requires engagement with both frameworks; the structural-coordination provisions for the two adjudicative bodies (the Alberta Human Rights Tribunal addressing individual-complaint matters under the *Alberta Human Rights Act*; the Accessibility and Inclusion Tribunal established under the new legislation per Section 3.5 addressing systemic-standards-compliance matters), with substantive coordination on cross-framework matters and substantive recognition that the two tribunals operate on substantively distinct adjudicative tracks; and the structural-coordination provisions for the engagement bodies (the Alberta Human Rights Commission's complaint-investigation function; the Implementation Directorate's compliance-engagement function; the Director of Compliance and Enforcement's enforcement function), with substantive operational interface on cross-framework matters.

The coordination provisions also address the substantive principle that the *Alberta Human Rights Act* protections continue to operate above and beyond the substantive standards developed under the new legislation. Where an organization meets the substantive standards under the new legislation, that compliance does not constitute a defence against an individual-complaint under the *Alberta Human Rights Act*; the substantive protections of the *Alberta Human Rights Act* operate on the individual-complaint dimension regardless of the organization's standards-compliance status. The substantive principle is that the substantive standards are the structural-equality floor, not the ceiling, and that individual-rights protections continue to operate above the floor.

## Coordination with the Federal Regulatory Framework

The legislation must establish coordination provisions with the federal regulatory framework, complementing the federal-program coordination provisions developed in Section 3.7 with broader regulatory-coordination matters. The substantive principle is that the legislation operates in the provincial-jurisdictional sphere within a federal-provincial regulatory landscape, and that the coordination provisions ensure substantive consistency where the two jurisdictional spheres interface.

The substantive content of the federal-coordination provisions must address: the *Accessible Canada Act* and the federal Accessibility Commissioner, with structural coordination on individuals and organizations operating across federal and provincial jurisdictions, structural coordination on standards-development matters where federal and provincial standards interface, structural coordination on emerging accessibility issues that operate at both levels, and structural recognition that federally regulated organizations are excluded from the new legislation's coverage and remain regulated under the federal framework; the Canadian Transportation Agency, with structural coordination on transportation matters that operate across federal and provincial jurisdictions and on individuals using both federally regulated and provincially regulated transportation services; the Canadian Radio-television and Telecommunications Commission, with structural coordination on telecommunications and broadcasting matters that operate at the federal level and that interface with the substantive content of Area 2 (information and

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

communications) and Area 5 (design and delivery of services); the Federal Public Sector Labour Relations and Employment Board, with structural coordination on accessibility complaints from federal public servants and parliamentary employees who reside in Alberta and on the structural interface between federal employment-accessibility standards and the substantive Area 3 (employment) standards under the new legislation; and Accessibility Standards Canada, with structural coordination on standards-development matters where federal standards-development processes operate at the federal level and where the substantive content interfaces with the provincial substantive-standards-development.

The federal-coordination provisions operate alongside the federal-program coordination provisions developed in Section 3.7. The combined coordination architecture addresses both the substantive-program interfaces (Jordan's Principle, CDB, DTC, CPP-D, federal Indigenous-disability programs) and the substantive-regulatory interfaces (the federal Accessibility Commissioner, CTA, CRTC, FPSLREB, Accessibility Standards Canada).

## Coordination with Other Provincial Statutes

The legislation must establish coordination provisions with other Alberta provincial statutes whose substantive content interfaces with the legislation's substantive operations. The coordination provisions ensure that the legislation operates as a coordinated component of the broader provincial legal-regulatory framework rather than producing structural conflict or duplication.

The substantive content of the provincial-statute coordination provisions must address the principal interfaces. **The Education Act** (the principal Alberta education statute) operates as the foundational education-sector legislation; the legislation supplements rather than displaces the *Education Act*, with the substantive accessibility standards operating as the substantive minimum that *Education Act*-administered processes must meet (developed in detail in Section 3.4). **The 2003 Standards for Special Education Ministerial Order** operates within the *Education Act* framework; the substantive parental-choice and appeal-rights elements are preserved and strengthened within the new legislation, with the Standards' replacement occurring within the new legislative framework subject to Article 4(3) consultation requirements (developed in detail in Section 3.4). **The Alberta Building Code and the Alberta Fire Code** operate as the foundational built-environment regulatory framework; the new legislation supplements rather than displaces these instruments, with the substantive accessibility standards operating in addition to the Code requirements and addressing existing-building retrofit and outdoor-public-space accessibility that the Code does not cover (developed in detail in Section 3.3 Area 1). **The Hospitals Act, the Health Professions Act, the Mental Health Act, the Personal Directives Act, and the Alberta Health Care Insurance Act** operate as the foundational healthcare-regulatory framework; the new legislation supplements rather than displaces these instruments, with the substantive accessibility standards operating in addition to and within the substantive content of the existing healthcare-regulatory framework (developed in detail in Section 3.3 Area 6). **The Workers' Compensation Act, the Labour Relations Code, the Employment Standards Code, and the Occupational Health and Safety Act** operate as the foundational employment-regulatory framework; the new legislation supplements rather than displaces these instruments, with the substantive accessibility standards operating in addition to and within the substantive content of the existing employment-regulatory framework (developed in detail in Section 3.3

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Area 3). **The Alberta Public Procurement Act and the Treasury Board Procurement Directives** operate as the foundational procurement-regulatory framework; the new legislation supplements these instruments with the substantive accessibility-procurement requirements developed in detail in Section 3.3 Area 7. **The Freedom of Information and Protection of Privacy Act** operates as the foundational provincial-government information-and-privacy-regulatory framework; the new legislation operates within FOIP, with the substantive consultation, public-reporting, and disclosure provisions calibrated to FOIP requirements where applicable. **The Fiscal Planning and Transparency Act and the Financial Administration Act** operate as the foundational fiscal-management framework; the new legislation operates within these instruments, with the substantive funding-floor provisions integrating with the broader fiscal-management framework (developed in detail in Section 3.7).

The substantive principle the coordination provisions operationalize is that the legislation establishes substantive accessibility standards as the substantive baseline within the provincial legal-regulatory framework. Existing statutes continue to operate; the legislation supplements rather than displaces them. Where conflict between the legislation and an existing statute exists in operational application, the substantive accessibility standards apply as the floor below which the existing statute's substantive operation cannot fall. The substantive principle ensures that the legislation operates as a coordinated component of the broader framework rather than producing structural conflict that would defeat the substantive operations of either instrument.

## Coordination as a Structural Component of the Legislative Framework

The coordination provisions developed in this section are not peripheral elements of the legislation. They are structural components that operationalize the legislation's substantive operations within the broader Alberta and federal legal-regulatory landscape. The substantive operational principle is that comprehensive accessibility legislation cannot operate in isolation. The legislation operates within and alongside dozens of existing statutes and regulatory frameworks at the provincial level, alongside the federal framework, and alongside the categorical-program architecture that operates under separate enabling legislation. Without structural coordination, the legislation's substantive operations would produce conflict, duplication, or gaps. The coordination provisions ensure that the substantive operations are coordinated across the broader framework.

The coordination provisions also address the substantive principle that the legislation is designed to be operationally sustainable over time. The twenty-five-year implementation horizon developed in Section 3.7 requires that the legislation operate within the broader legal-regulatory landscape across that horizon, accommodating amendments to the existing statutes and regulatory frameworks, accommodating new federal-provincial coordination matters, and accommodating substantive changes in the categorical-program architecture. The coordination provisions establish the structural mechanism through which the legislation accommodates these changes without requiring substantive re-design at each substantive change in the broader framework.

The substantive disability-community engagement operates across all coordination matters. The Disability Community Advisory Council's substantive engagement extends to coordination matters affecting persons with disabilities; the Indigenous-Disability-Community Consultation Council's substantive engagement

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

extends to coordination matters affecting Indigenous-disability-community Albertans; and the Disability Community Education Consultation Council's substantive engagement extends to coordination matters affecting students with disabilities and their families. The substantive principle is that the disability community's substantive engagement is not limited to the legislation's substantive standards; the engagement extends to the substantive coordination matters that affect the legislation's operational delivery.

## What Section 3.8 Establishes

The accountability and coordination layer of the *Alberta Accessibility and Inclusion Act* is now specified at the depth required for legislative-drafting input. The substantive content comprises six components: the statutory-review and public-reporting architecture establishing annual public reports across all eight substantive-standards areas with structured tabling and disability-community engagement requirements, supplemented by the periodic five-year independent statutory review on the Manitoba precedent with substantive scope, substantive independent reviewer appointment, substantive review process, substantive review product, and structured provincial-government response within twelve months; the coordination with the existing categorical-program architecture establishing that the legislation does not displace AISH, ADAP, PDD, FSCD, or WCB but operates substantive accessibility standards on the program administration and reaches the structural inadequacies of the programs through the systemic-and-structural barrier definition; the coordination with the *Alberta Human Rights Act* maintaining the structural distinction between the AHRA's individual-complaint jurisdiction and the legislation's systemic-standards jurisdiction with structured operational coordination and substantive recognition that AHRA protections continue to operate above the substantive-standards floor; the coordination with the federal regulatory framework establishing structural coordination with the federal Accessibility Commissioner, the Canadian Transportation Agency, the CRTC, the FPSLREB, and Accessibility Standards Canada; the coordination with other Alberta provincial statutes establishing the legislation as the substantive accessibility-standards baseline within the broader provincial legal-regulatory framework with the existing statutes continuing to operate and the substantive standards applying as the floor in operational application; and the structural-component framing of the coordination provisions as integral to the legislation's substantive operations rather than as peripheral elements.

The substantive content addresses the structural reality that comprehensive accessibility legislation operates within and alongside a complex existing legal-regulatory landscape and that the substantive operational delivery of the legislation requires substantive coordination with the existing landscape. The accountability provisions ensure that the substantive operations are publicly visible, externally evaluated, and improved over time through the structured review cycle. The coordination provisions ensure that the substantive operations interface consistently with the existing landscape rather than producing structural conflict, duplication, or gaps.

The substantive content operates consistent with the design philosophy and foundational choices of Section 3.1. Choice 9 (statutorily-mandated periodic review on the Manitoba precedent) is operationalized through the periodic-review framework. Choice 10 (coordination with existing categorical-program architecture without displacing or substituting for it) is operationalized through the categorical-program

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

coordination provisions, the *Alberta Human Rights Act* coordination provisions, the federal-coordination provisions, and the other-provincial-statute coordination provisions. The systemic-transformation principle is operationalized through the structural-coordination provisions that ensure the legislation operates within the broader framework rather than producing structural conflict. The disability-community-co-authorship principle is operationalized through the substantive disability-community engagement extending to all coordination matters.

The substantive content brings the substantive specification of the *Alberta Accessibility and Inclusion Act* to substantial completion. Sections 3.2 through 3.8 have specified the substantive content (definitions, scope, coverage, eight substantive-standards areas including the education-area deep-dive, implementing architecture and enforcement provisions, consultation requirements and Indigenous-rights integration, implementation timeline and structural-funding mechanisms, accountability and coordination layer) at the depth required for legislative-drafting input. The substantive specification is comprehensive across the substantive design dimensions the legislation requires.

The next section, Section 3.9, closes Part Three with the constructive case for the legislation's enactment, the legislative-drafting next steps, the political-moment positioning, and the substantive bridge between the blueprint and the political and operational work that legislative enactment will require.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### *Section 3.9 — The Constructive Case: Legislative-Drafting Next Steps, Political-Moment Positioning, and the Bridge to Operational Reality*

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The substantive specification of the *Alberta Accessibility and Inclusion Act* is now complete across three Parts and twenty-five sections. Part One documented the architecture Alberta has built around persons with disabilities, the lifecycle dimensions across which the architecture operates, and the engineered repudiation of inclusion that the K-12 system delivers through funding starvation, segregated-classroom expansion, and political-rhetorical cover. Part Two documented the comparator landscape: the federal *Accessible Canada Act* establishing the floor, five provincial accessibility statutes building above the federal floor in their respective provincial jurisdictions, the *United Nations Convention on the Rights of Persons with Disabilities* establishing the international substantive standard, the Article 24 implications of the engineered Alberta K-12 system, and Alberta's structural-political isolation as the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. Part Three specified the substantive content of the legislation: the design philosophy and ten foundational choices, the definitions and scope provisions, the eight substantive-standards areas including the education-area deep-dive, the implementing architecture and enforcement provisions, the consultation requirements and Indigenous-rights integration, the implementation timeline and structural-funding mechanisms, and the accountability and coordination layer.

Section 3.9 closes Part Three with the constructive case for the legislation's enactment. The constructive case has four substantive components. First, the substantive case synthesized: what the documented record establishes, what the substantive specification provides, and what the choice now requires. Second, the legislative-drafting next steps: the structured process through which the substantive specification becomes operational legislative text. Third, the political-moment positioning: the substantive context within which legislative enactment is now operationally feasible and politically achievable. Fourth, the bridge from blueprint to operational reality: what enactment requires of the political process, of the disability community, of the Indigenous-disability-community, and of the broader Alberta political and civil-society landscape, and what the substantive opportunity is if enactment occurs.

The section's tone matches the tone Parts One, Two, and Three have carried throughout. The substantive findings are documented, sourced, and dispositive. The constructive specification is detailed, comparator-grounded, and calibrated to the documented Alberta record. The case for enactment is now substantively complete. What remains is the political and operational work that the substantive specification cannot itself perform.

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## The Substantive Case Synthesized



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive case for the *Alberta Accessibility and Inclusion Act* rests on five propositions that the documented record across Parts One, Two, and Three has established.

**Proposition 1: The current Alberta architecture has documented operational failures across the disability lifecycle.** Part One documented the failures across the lifecycle dimensions: the FSCD program's substantive inadequacies for families of children with disabilities; the K-12 system's engineered repudiation of inclusion through funding starvation, segregated-classroom expansion, and *earn inclusion* rhetoric; the AISH-to-ADAP transition's substantive concerns including the structural reduction in monthly benefits, the elimination of caseworker continuity, the elimination of appeal rights, and the structural narrowing of eligibility; the PDD program's substantive inadequacies; the FSCD-PDD-AISH crisis interface that produces compounding failures at the lifecycle transitions; the caregiver-impact dimensions that operate across the lifecycle; and the WCB exception that holds together while the rest of the architecture fails. The failures are not incidental policy choices. They are the operational reality within which Albertans with disabilities currently live and within which 79,290 Albertans currently receiving AISH are facing the July 1, 2026 transition to ADAP. The failures are the substantive ground on which the case for the legislation rests.

**Proposition 2: Comprehensive provincial accessibility legislation is the operational mechanism through which Canadian comparator jurisdictions have addressed analogous failures.** Part Two documented the comparator record: the federal *Accessible Canada Act* (2019), the Ontario *AODA* (2005), the Manitoba *Accessibility for Manitobans Act* (2013), the Nova Scotia *Accessibility Act* (2017), the *Accessible British Columbia Act* (2021), and *The Accessible Saskatchewan Act* (2023). Five provinces have built comprehensive accessibility legislation. The substantive design knowledge has matured. The operational experience has accumulated. The international-compliance framework has been articulated. The substantive comparator record establishes that comprehensive accessibility legislation is operationally feasible across provincial jurisdictions of varying populations, fiscal capacities, political alignments, and institutional contexts. Every potential structural objection to Alberta enactment has been defeated by the comparator record.

**Proposition 3: International human rights obligations require comprehensive accessibility legislation in provincial jurisdictions.** Part Two Section 2.7 documented Canada's binding obligations under the United Nations *Convention on the Rights of Persons with Disabilities*. Canada ratified the Convention in 2010 with the support of all provinces and territories including Alberta. The Convention's obligations bind provincial conduct as well as federal conduct. The Convention requires comprehensive legislation implementing its obligations, close consultation with persons with disabilities in the development of disability-related legislation and policy, identification and elimination of accessibility barriers across all areas of public and private life, and support for independent living and community inclusion. Five Canadian provinces have enacted Convention-implementing legislation. Alberta has not. Section 2.7a documented the Article 24 implications of the engineered Alberta K-12 system specifically: segregation as the central substantive violation, funding starvation as structural mechanism, *earn inclusion* rhetoric as political cover, the consultation gap as procedural enabler, the seclusion-room expansion as compounding harm, and the cumulative reasonable-accommodation failures. The international human rights framework establishes the substantive obligations to which the legislation gives operational effect.

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

**Proposition 4: The substantive specification developed in Part Three operationalizes the comparator design knowledge and the international human rights obligations within Alberta provincial jurisdiction.** The blueprint specifies: the design philosophy grounded in substantive equality, systemic transformation, lifecycle integration, international compliance as floor not ceiling, and disability-community co-authorship; the ten foundational choices including comprehensive single-statute approach, substantive-standards model, lifecycle integration, Article 24 operationalization, Indigenous-rights structural integration on the British Columbia precedent, Article 4(3) consultation as procedural baseline, funding-floor and EA-staffing-ratio provisions, independent enforcement architecture, statutorily-mandated periodic review, and coordination with the existing categorical-program architecture; the substantive content across eight substantive-standards areas with the education-area receiving standalone development to address the engineered repudiation; the implementing architecture and enforcement provisions designed to avoid the documented operational failures of comparator implementation; the consultation requirements and Indigenous-rights integration; the implementation timeline and structural-funding mechanisms; and the accountability and coordination layer. The specification is detailed enough to guide legislative drafting, calibrated to the documented Alberta record, and grounded throughout in the comparator-jurisdiction record and the international human rights framework.

**Proposition 5: The choice now is political, not structural.** Sections 2.8 and 3.1 established that the structural feasibility of comprehensive provincial accessibility legislation in Alberta has been demonstrated. Population-size objections are defeated by the comparator record. Fiscal-capacity objections are defeated. Institutional-capacity objections are defeated. Political-ideology objections are defeated by the Saskatchewan Party precedent. Indigenous-rights-integration-complexity objections are defeated by the British Columbia DRIPA precedent. International-compliance-ambiguity objections are defeated by Canada's Convention ratification. The substantive failure modes of comparator implementation (the Ontario AODA enforcement gap, the federal *Accessible Canada Act* distributed-authority complexity, the Manitoba implementation timeline) are addressed by specific design choices in the substantive specification. The substantive specification provides the operational answer to the question of what comprehensive accessibility legislation should do. What the substantive specification does not provide is the political will to enact it. That is the question for the political process.

The five propositions taken together establish that the substantive case for enactment is mature, dispositive, and operationally actionable. The case rests on the documented record across Parts One, Two, and Three. The case is grounded in the comparator-jurisdiction experience, in the international human rights framework, and in the disability-community advocacy position consistently maintained over the period under examination. The case is operationally specific: the substantive content of the legislation, the implementing architecture and enforcement provisions, the consultation requirements and Indigenous-rights integration, the implementation timeline and structural-funding mechanisms, and the accountability and coordination layer are specified at the depth required for legislative-drafting input. What remains is the political and operational work the substantive specification cannot itself perform.

## Legislative-Drafting Next Steps

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

The substantive specification developed in Part Three is the input to legislative drafting, not the output. Legislative drafting is a specialized craft conducted by legislative counsel and parliamentary draftspersons. The blueprint's role is to ensure that the substantive design choices are made deliberately and in alignment with the documented record before legislative drafting begins. The legislative-drafting process that follows the blueprint operates through structured stages.

**Stage 1: Political-commitment establishment.** The blueprint cannot itself produce political commitment to the legislation's enactment. Political commitment requires substantive engagement by the lead Minister, by the Cabinet, by the governing-party caucus, and by the broader political-process. The substantive commitment must include commitment to the substantive design choices the blueprint specifies (the funding-floor provisions, the EA staffing-ratio provisions, the seclusion-room prohibition, the segregated-setting transition pathway, the Article 4(3) consultation requirements, and analogous substantive content), commitment to the implementing-architecture investment (the Implementation Directorate, the inspector cadre, the Tribunal, the operational support for the Councils), commitment to the funding-floor budget integration over the multi-year fiscal horizon, and commitment to the political-process work required to bring the legislation through the legislative cycle.

**Stage 2: Substantive disability-community engagement on the legislative-drafting process.** The Article 4(3) substantive operational standard developed in Section 3.6 (timing, depth, documentation, response, remedy) operates at the legislative-drafting stage. The substantive engagement must include substantive consultation with the disability community on the substantive content of the legislation prior to drafting commencement, structured engagement of disability-community organizations and individuals throughout the drafting process, substantive engagement with Indigenous-governance entities and Indigenous-disability-community organizations on the Indigenous-rights integration provisions, and substantive engagement with the broader civil-society landscape (the teachers' organization, the school divisions, the healthcare-worker regulatory bodies, the disability-services organizations, and analogous bodies) on the substantive provisions affecting their substantive operations.

**Stage 3: Technical legislative drafting.** Legislative counsel and parliamentary draftspersons translate the substantive specification into operational legislative text. The technical work includes the precise statutory-language formulation that the substantive specification provides; the structural-organization of the legislative text into appropriate parts, divisions, and sections; the integration of the legislation with existing Alberta statutes through coordination provisions, transitional provisions, and consequential amendments; the regulatory framework specifications that follow from the legislation's substantive provisions; the schedule structures for the substantive standards, the covered organizations, the implementation timelines, and analogous content; and the technical-quality assurance that legislative drafting requires.

**Stage 4: Pre-introduction substantive review.** The drafted legislation is subject to substantive review prior to introduction in the Legislative Assembly. The review includes substantive disability-community review, substantive Indigenous-disability-community review, substantive technical-legal review, substantive operational review by the Implementation Directorate's predecessor planning team, substantive fiscal review by the Treasury Board, and substantive policy review by the lead Minister and Cabinet. The review process produces substantive amendments to the drafted legislation prior to introduction, ensuring that the introduced legislation reflects the substantive engagement of the relevant

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

stakeholders.

**Stage 5: Legislative-process passage.** The drafted legislation passes through the standard Alberta legislative process: first reading (introduction in the Legislative Assembly), second reading (debate on the legislation's substantive principle), Committee-of-the-Whole or standing-committee review (substantive engagement with the legislation's specific provisions), third reading (passage through the Legislative Assembly), Royal Assent (the legislation's formal enactment), and proclamation (the legislation's coming into force on the operational dates the legislation specifies). The legislative-process passage provides operational opportunities for substantive amendment, for substantive public engagement, and for substantive political accountability throughout the legislation's enactment.

**Stage 6: Implementation-planning during the Royal-Assent-to-Year-1 transition.** The Section 3.7 operational calendar's Phase 1 (Architecture Establishment) commences immediately upon Royal Assent. The transition from legislative enactment to operational implementation requires substantive planning during the Royal Assent to Year 1 transition: appointment of the lead Minister's senior staff, recruitment of the Director of Compliance and Enforcement and the Chief Accessibility Officer (Alberta), establishment of the Implementation Directorate, recruitment of the initial inspector cadre, establishment of the three Councils, and operational commencement of the per-student-funding-floor trajectory and the architectural-funding-floor mechanisms.

The six-stage process is the operational framework within which the substantive specification becomes operational legislation. The framework is consistent with the comparator-jurisdiction enactment processes documented in Sections 2.1 through 2.6 (the federal *Accessible Canada Act* moved from announcement to Royal Assent over approximately two years; the Ontario AODA, the Manitoba AMA, the Nova Scotia *Accessibility Act*, the *Accessible British Columbia Act*, and *The Accessible Saskatchewan Act* moved through analogous processes within timeframes ranging from approximately twelve to thirty-six months from substantive political commitment to Royal Assent).

A realistic operational timeline for the Alberta enactment, contingent on substantive political commitment, is twelve to twenty-four months from political-commitment establishment to Royal Assent, with the operational commencement of Phase 1 immediately following Royal Assent. The operational timeline is calibrated to the substantive complexity of the legislation, to the substantive engagement requirements the Article 4(3) substantive standard imposes, and to the comparator-jurisdiction experience.

## Political-Moment Positioning

The substantive case for enactment is mature. The substantive specification is operationally actionable. The political-moment positioning addresses the substantive context within which legislative enactment is now operationally feasible and politically achievable in Alberta.

The political-moment positioning rests on five substantive elements.

**First, the comparator record establishes that comprehensive accessibility legislation has been enacted in Canada by governments of every major political tradition.** Liberal governments enacted the Ontario AODA, the Nova Scotia *Accessibility Act*, and the federal *Accessible Canada Act*. New

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Democratic governments enacted the *Manitoba Accessibility for Manitobans Act* and the *Accessible British Columbia Act*. The Saskatchewan Party (the centre-right political coalition most ideologically and structurally similar to Alberta's United Conservative Party) enacted *The Accessible Saskatchewan Act* in 2023. Every governing political tradition that has held provincial government in Alberta during the period from 2005 to 2026 (Progressive Conservative, New Democratic, and United Conservative) has equivalents elsewhere in Canada that have enacted comprehensive accessibility legislation. The political-ideology objection to Alberta enactment is defeated decisively by the Saskatchewan precedent. Comprehensive accessibility legislation is not a partisan-coded policy framework; it is a substantive disability-policy framework with substantive cross-partisan operational record.

**Second, the documented Alberta municipal-coalition support establishes substantive political-process precedent.** The campaign producing this blueprint has documented Notices of Motion or analogous endorsements from the City of Calgary (Notice of Motion co-sponsored by Councillor Schmidt and Mayor Farkas), the City of Edmonton, the City of Lethbridge, the City of Camrose, and the City of Red Deer. Five Alberta municipalities representing substantial proportions of the provincial population have established municipal-political-process support for comprehensive provincial accessibility legislation. The municipal-coalition support operates as substantive political-process precedent demonstrating that elected representatives at the municipal level — representatives operating in the political contexts closest to the lived experience of Albertans with disabilities — have substantively engaged with the case for the legislation. The provincial political-process is not operating in isolation; the municipal political-process has provided substantive forward momentum.

**Third, the disability-community advocacy infrastructure is operationally engaged and substantively prepared for enactment.** The disability-community organizations operating in Alberta (Inclusion Alberta, the Alberta Council of Disability Services, the Alberta Federation of Parents of Students with Disabilities, the Alberta Association for Community Living, Public Interest Alberta, the People's Alliance for Disabled Albertans, the Self Advocacy Federation, the Can Man Dan Foundation, and analogous bodies) have substantive operational expertise on disability-policy issues, substantive organizational capacity for substantive consultation engagement, and substantive substantive position on the legislation's substantive content consistent with the substantive specification. The campaign producing this blueprint has built substantive documentary infrastructure across the operational range of the legislation's substantive content, has built substantive coalition relationships across the disability-community landscape, and has built substantive engagement with the Indigenous-disability-community across the seventeen-section evidentiary record. The substantive disability-community engagement is not a future possibility requiring substantive operational development; it is a current operational reality requiring only substantive political-process engagement.

**Fourth, the international-context positioning establishes substantive analytical pressure for enactment.** Canada's periodic reporting under Article 35 of the United Nations *Convention on the Rights of Persons with Disabilities* operates on a defined cycle. Canada's First Report and the subsequent Concluding Observations of the UN Committee on the Rights of Persons with Disabilities documented substantive compliance gaps; subsequent reporting cycles will require substantive engagement with the Alberta substantive position on Article 24, Article 9, Article 19, and analogous Convention provisions. The international-analytical context produces substantive analytical pressure for Alberta to address the



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substantive compliance gaps; comprehensive provincial accessibility legislation is the substantive operational mechanism through which the gaps are addressed.

**Fifth, the cumulative-time-cost of continued non-enactment is substantively significant.** Alberta's structural-political isolation as the only English-speaking Canadian province west of Quebec without comprehensive accessibility legislation has been growing year-over-year as comparator provinces have enacted legislation. The substantive cost of continued non-enactment is borne by Albertans with disabilities and their families across every operational year that passes without legislation. The 79,290 Albertans currently receiving AISH and facing the July 1, 2026 transition to ADAP are operating within an architecture that the substantive specification developed in this blueprint would substantively reform. The children with disabilities currently in the Alberta K-12 system are operating within the engineered repudiation documented in Section 1.3a, with the lifecycle harm compounding across each operational year that the engineered system continues. The cumulative-time-cost of continued non-enactment is the substantive cost of the political-process not yet making the choice that the documented record supports.

The five elements taken together establish that the political-moment positioning is operationally favourable for enactment. The substantive cross-partisan record, the municipal-coalition support, the disability-community advocacy infrastructure, the international-analytical pressure, and the cumulative-time-cost of continued non-enactment cumulatively establish that the political-moment is appropriate for substantive political commitment to enactment. The political-process now has the operational opportunity to make the choice that the documented record supports.

## What Enactment Requires of the Political Process

Enactment of the *Alberta Accessibility and Inclusion Act* requires substantive engagement by the political process across multiple operational dimensions. The substantive engagement is not exhausted by the legislative-drafting next steps; it extends to the operational implementation, the multi-year fiscal commitment, the structural commitment across political-administration changes, and the substantive accountability mechanisms through which the legislation maintains substantive integrity over time.

The substantive requirements include: substantive cabinet-level commitment to the substantive design choices the blueprint specifies, with the lead Minister and the broader Cabinet substantively engaged with the substantive content rather than only with the procedural mechanics of legislative enactment; substantive engagement with the disability community on the substantive design and the operational implementation, with the engagement meeting the Article 4(3) substantive operational standard rather than the consultation-on-demand model; substantive engagement with Indigenous-governance entities and the Indigenous-disability-community on the Indigenous-rights integration provisions, with the engagement operating through structures that respect Indigenous-governance authority; substantive engagement with the existing legislative-regulatory framework through the coordination provisions developed in Section 3.8, with substantive operational consistency maintained across the broader landscape; substantive fiscal commitment to the funding-floor provisions over the multi-year fiscal horizon, with the funding-floor compliance integrated into the annual budget cycle and protected against fiscal-year pressures; substantive operational-architecture commitment to the implementing infrastructure (the Implementation Directorate, the inspector cadre, the Tribunal, the Councils' operational support), with the



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substantive operational scale matching the substantive complexity of the legislation's operations; and substantive long-term commitment across multiple budget cycles and political administrations, with the substantive content maintained through political-administration changes through the structural-protection provisions Section 3.7 specifies.

The substantive requirements operate within the substantive principle that comprehensive accessibility legislation is a sustained substantive-equality framework. The legislation's substantive operations extend across the twenty-five-year implementation horizon Section 3.7 specifies. The substantive political commitment must accordingly extend across multiple political-administration changes, with the substantive content protected against partisan reversal through the structural-protection mechanisms the legislation establishes. The legislation is not a single-administration policy initiative; it is a sustained substantive framework that the political process must commit to maintaining across the substantive horizon.

The substantive requirements are operationally substantial but operationally feasible. The comparator-jurisdiction record establishes that political processes of varying configurations have made the substantive commitment and have sustained the commitment across political-administration changes. The substantive Alberta political process has the operational capacity to make the same substantive commitment if the political will exists.

## The Disability Community's Substantive Role in Enactment

The substantive role of the disability community in the legislation's enactment and ongoing operation operates across the substantive dimensions the blueprint has specified. The Article 4(3) substantive operational standard establishes the substantive principle: the disability community is co-author of the legislation and substantive participant in its operational delivery, not constituency to be informed of legislation already drafted.

The substantive role includes: substantive engagement in the legislative-drafting process per the operational stages developed earlier in this section; substantive participation in the Standards Development Committees with at-least-50-percent disability-community representation; substantive engagement through the Disability Community Advisory Council, the Disability Community Education Consultation Council, and the Indigenous-Disability-Community Consultation Council across the legislation's operational life; substantive participation in the periodic statutory-review processes through the substantive engagement of the disability community in the independent reviewer's substantive review; substantive ongoing accountability through the public-reporting framework, with the disability community substantively engaged in evaluating the public reports and the operational performance the reports document; and substantive operational labour the disability community brings to the legislation's substantive operations across the substantive-standards-development, the consultation engagement, the operational-implementation engagement, and the periodic-review engagement.

The substantive role is operationally significant because the substantive content of the legislation cannot be operationally delivered without the substantive engagement. The substantive standards must be developed with substantive disability-community expertise. The operational implementation must be

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monitored with substantive disability-community engagement. The substantive accountability must be exercised with substantive disability-community participation. The substantive long-term integrity of the legislation depends on the substantive ongoing engagement of the disability community across the legislation's operational life.

The substantive role also recognizes that the disability community's substantive labour is substantive work that warrants substantive compensation. The Section 3.6 compensation provisions for disability-community consultation work operationalize this principle at the operational-engagement level. The substantive principle extends beyond the formal-consultation contexts to the broader substantive engagement of the disability community in the legislation's operational delivery: the substantive expertise the community brings is substantive work; the substantive labour is substantive contribution to the public good; the substantive compensation is the substantive recognition of both.

## The Bridge from Blueprint to Operational Reality

The blueprint is one component of a multi-component process through which comprehensive accessibility legislation becomes operational reality in Alberta. The substantive specification developed across Parts One, Two, and Three is the substantive input to the political-process and the legislative-drafting process. The substantive output of those processes — the enacted *Alberta Accessibility and Inclusion Act* and its operational implementation — is what the substantive content of the blueprint is designed to enable.

The bridge from blueprint to operational reality is the substantive work that the political process, the disability community, the Indigenous-disability-community, the legislative-drafting infrastructure, and the broader Alberta civil-society landscape now perform. The blueprint provides the substantive specification within which that work proceeds. The blueprint does not perform the work itself.

The substantive opportunity if enactment occurs is operationally significant. The 79,290 Albertans currently receiving AISH and facing the July 1, 2026 transition to ADAP would be operating within a substantive-standards architecture that addresses the engineered patterns documented in Part One Section 1.3a and substantive lifecycle dimensions documented across Sections 1.3 through 1.6. The children with disabilities currently in the Alberta K-12 system would be operating within the inclusive-education baseline established in Section 3.4, with the funding-floor and EA staffing-ratio provisions delivering the substantive supports the inclusive baseline requires, with the segregated-setting transition pathway reversing the engineered-segregation pattern, with the seclusion-room prohibition eliminating the substantive harm category, and with the substantive Article 4(3) consultation infrastructure ensuring that subsequent disability-policy is developed with the substantive disability-community engagement the international human rights framework requires. The substantive accessibility standards across the seven non-education areas would be operationalizing the substantive accessibility obligations across the operational dimensions of public, private, and non-profit-sector activity in Alberta. The Indigenous-disability-community would be substantively engaged through the structural Indigenous-rights integration on the British Columbia precedent, with the partnership-agreement framework operationalizing substantive cooperation between the provincial-government and Indigenous-governance entities. The substantive structural-funding mechanisms would be protecting the legislation's operational delivery from the engineered-funding-starvation pattern documented in Section 1.3a. The substantive accountability and

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coordination layer would be ensuring that the legislation operates substantively over time and within the broader legal-regulatory landscape.

The substantive cost of continued non-enactment is operationally significant in the inverse. Each operational year that passes without enactment is an operational year in which the documented architecture continues to operate, the lifecycle harm continues to compound, the engineered repudiation in the K-12 system continues to be implemented, the structural-political isolation of Alberta within the Canadian framework continues to grow, and the international-compliance gaps continue to widen. The substantive cost is not abstract; it is the substantive harm to specific Albertans with disabilities and their families across each operational day that the substantive specification remains unenacted.

The substantive choice is now the political process's to make. The documented record across Parts One, Two, and Three establishes that the choice can be made, that the choice is operationally feasible, that the choice is internationally required, that the choice has been made by every comparator Canadian provincial jurisdiction, and that the substantive specification is operationally actionable. The choice is reversible. The choice's reversal is overdue. The choice is the choice the political process must now make.

## Closing: What the Blueprint Has Done and What Remains

The blueprint *Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act* has, across three Parts and twenty-five sections and approximately one hundred and ten thousand words, performed the substantive work of specifying what comprehensive provincial accessibility legislation in Alberta must do to address the documented operational failures of the current architecture, to operationalize Canada's binding international human rights obligations within Alberta provincial jurisdiction, and to establish the substantive framework within which the lifecycle dimensions of disability in Alberta are addressed at the substantive-equality and systemic-transformation level the documented record requires.

The substantive work the blueprint has performed includes: the lifecycle-frame analysis (Part One Section 1.2) establishing the substantive analytic structure within which the disability architecture's failures are most clearly visible; the documentation of the engineered repudiation in the Alberta K-12 system (Part One Section 1.3a) including the funding-starvation analysis, the segregated-classroom expansion analysis, the *earn inclusion* rhetoric analysis, the consultation-gap analysis, and the seclusion-room expansion analysis; the comparator-jurisdiction analysis (Part Two Sections 2.1 through 2.6) documenting the federal *Accessible Canada Act* and the five provincial accessibility statutes; the international human rights framework analysis (Part Two Sections 2.7 and 2.7a) documenting the United Nations *Convention on the Rights of Persons with Disabilities* and the Article 24 implications of the engineered Alberta K-12 system; the Alberta-as-outlier analysis (Part Two Section 2.8) documenting Alberta's structural-political isolation as the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation; the design philosophy and ten foundational choices (Part Three Section 3.1); the substantive specification across eight substantive-standards areas (Part Three Sections 3.2, 3.3, 3.4); the implementing architecture and enforcement provisions (Part Three Section 3.5); the consultation requirements and Indigenous-rights integration (Part Three Section 3.6); the implementation timeline and structural-funding mechanisms (Part Three Section 3.7); the accountability and coordination layer (Part Three Section 3.8); and the constructive case, the legislative-drafting next steps, the political-moment

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positioning, and the bridge to operational reality (Part Three Section 3.9).

What remains is the substantive work of enactment. The political commitment. The legislative drafting. The substantive disability-community engagement and the substantive Indigenous-disability-community engagement throughout the drafting and enactment processes. The substantive fiscal commitment to the funding-floor provisions. The substantive operational-architecture commitment to the implementing infrastructure. The substantive long-term commitment across multiple political-administration changes.

The blueprint has documented the case. The blueprint has specified the substantive content. The blueprint has established that the choice is political, not structural, and that the choice is reversible.

The choice's reversal is the substantive opportunity now available to the political process. The substantive opportunity is to enact comprehensive provincial accessibility legislation that operationalizes the international human rights obligations Canada has bound itself to, that addresses the documented operational failures of the current Alberta architecture, that establishes the substantive-equality and systemic-transformation framework within which the lifecycle dimensions of disability in Alberta are addressed, and that closes the structural-political isolation gap that distinguishes Alberta from every other significant Canadian provincial jurisdiction.

The substantive opportunity is operationally specific. The substantive opportunity is the *Alberta Accessibility and Inclusion Act* developed in this blueprint. The substantive opportunity is now available to the political process. The substantive choice is now the political process's to make.

The blueprint closes here. The substantive work continues.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3.10 — Constitutional Resilience and Charter Alignment

Sections 3.1 through 3.9 developed the substantive specification of the *Alberta Accessibility and Inclusion Act* including the design philosophy, the definitions and scope, the substantive standards content, the implementing architecture, the consultation and Indigenous-rights integration, the implementation timeline and funding, the statutory review and coordination, and the closing constructive case. Section 3.1 established the substantive design principle that the blueprint does not propose constitutional amendment; the legislation is designed to operate within the existing substantive constitutional framework of Canada and Alberta. Section 3.10 develops the substantive constitutional resilience and Charter-alignment provisions through which the legislation, while operating within the existing constitutional framework, is designed to be substantively resistant to the operational pathways through which provincial disability-rights legislation has historically been weakened or removed.

The substantive constitutional question is operationally significant. The substantive Alberta political context within which the legislation is to be enacted has shifted substantively over the period from October 2025 through the time of this blueprint. Alberta historically avoided invocation of Section 33 of the Canadian Charter of Rights and Freedoms (the *notwithstanding clause*) over the period from 1982 (when the Charter was adopted) through 2024, with one operationally significant historical exception (the 2000 *Marriage Amendment Act* invocation, which the Supreme Court of Canada effectively declared *ultra vires* on division-of-powers grounds). Beginning in October 2025, the Alberta provincial government invoked Section 33 in four pieces of legislation in rapid succession: the *Back to School Act* (October 27, 2025, forcing approximately fifty-one thousand striking teachers back to work and overriding Charter Section 2(d) freedom-of-association rights); the *Fairness and Safety in Sport Act* (December 10, 2025, banning transgender women and girls from competitive sports teams); amendments to the *Health Professions Act* (December 10, 2025, restricting gender-affirming healthcare for minors); and amendments to the *Education Act* (December 10, 2025, requiring parental notification and consent for pronoun changes for students under sixteen, and parental opt-in for gender-and-sexuality instruction). Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>. The substantive operational implication is that the substantive provincial legislative environment within which the *Alberta Accessibility and Inclusion Act* would operate is one in which the Section 33 invocation pattern operates as a documented operational tool of the substantive provincial-government legislative practice.

The substantive constitutional resilience design objectives are operationally specific. The legislation should be designed such that: provisions establishing core substantive-rights protections operate within constitutional anchoring that Section 33 cannot override; provisions establishing Indigenous-rights consultation and integration operate within the Section 35 framework that operates beyond Section 33's reach; provisions establishing democratic-and-institutional architecture operate within the Section 3

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democratic-rights framework that Section 33 cannot override; provisions operationalizing Charter Section 15 substantive-equality requirements operate as substantive realization of constitutional rights such that Section 33 invocation against the legislation would operate as substantive constitutional regression rather than as legitimate legislative-policy disagreement; provisions operationalizing federal-provincial cooperative-federalism architecture operate within the substantive constitutional division-of-powers framework that Section 33 cannot override; and provisions operationalizing international human rights treaty obligations operate within the substantive international-law framework that operates alongside the Charter framework. The substantive design objective is not constitutional immunity from Section 33 invocation — no provincial legislation can operationally achieve such immunity within the existing constitutional framework — but constitutional resilience that operates substantively against the operational pathways through which Section 33 invocation could weaken or remove the substantive protections the legislation establishes.

The section develops the substantive content in eleven components. The first establishes the substantive constitutional framework within which the legislation operates. The second documents the substantive Alberta Section 33 context as the operational legislative environment for the legislation. The third develops the substantive Section 35 anchoring as constitutional resilience strategy. The fourth develops the substantive provisions operating beyond Section 33's reach including democratic rights, mobility rights, language rights, and the Section 28 gender-equality guarantee. The fifth develops the substantive Charter Section 15 substantive-equality alignment. The sixth develops the substantive Charter Section 7 and Section 12 considerations including the involuntary-confinement and cruel-and-unusual-treatment dimensions. The seventh develops the substantive cooperative-federalism architecture. The eighth develops the substantive international human rights treaty anchoring through the United Nations *Convention on the Rights of Persons with Disabilities* and the *United Nations Declaration on the Rights of Indigenous Peoples*. The ninth develops the substantive statutory-entrenchment mechanisms operating within the legislation itself. The tenth synthesizes the substantive constitutional resilience strategy. The eleventh establishes what Section 3.10 contributes to the substantive case the blueprint develops.

The substantive content is grounded in primary-source documentation: the Constitution Act, 1982 (including the Charter and Section 35); the Alberta Section 33 invocation record documented through provincial-legislation enactments and the substantive academic-and-journalistic record; the Supreme Court of Canada jurisprudence on Charter substantive-equality (*Andrews v. Law Society of British Columbia*, 1989; *Eldridge v. British Columbia*, 1997; *Withler v. Canada*, 2011), Section 7 (*Carter v. Canada*, 2015; *Bedford v. Canada*, 2013), Section 35 (*Haida Nation v. British Columbia*, 2004; *Mikisew Cree v. Canada*, 2005), and Section 33 (*Ford v. Quebec*, 1988; *Working Families v. Ontario*, 2025); the federal *Accessible Canada Act* (S.C. 2019, c. 10); the *Canada Disability Benefit Act* (S.C. 2023, c. 9); the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14); and the *United Nations Convention on the Rights of Persons with Disabilities* (ratified by Canada March 11, 2010).

## The Substantive Constitutional Framework

The substantive constitutional framework within which the *Alberta Accessibility and Inclusion Act* operates includes four substantive layers that the substantive design must address.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The Canadian Charter of Rights and Freedoms (Part I of the Constitution Act, 1982).** The Charter establishes the substantive rights-and-freedoms framework operating against federal and provincial governments. The substantive Charter sections most directly relevant to the substantive disability-rights context include: Section 7 (life, liberty, and security of the person, with the substantive principles-of-fundamental-justice qualification); Section 12 (cruel and unusual treatment or punishment); Section 15 (equality rights, with explicit enumeration of physical or mental disability as a protected ground); Section 1 (the reasonable-limits clause through which Charter rights may be limited within demonstrably justified limits in a free and democratic society); and Section 33 (the *notwithstanding clause* permitting Parliament or a provincial legislature to declare that a statute or provision shall operate notwithstanding Sections 2 and 7 through 15 of the Charter, with a five-year sunset and renewable provision).

**Section 35 of the Constitution Act, 1982.** Section 35 operates outside the Charter framework and establishes the substantive constitutional protection of "the existing aboriginal and treaty rights of the aboriginal peoples of Canada." Section 35 is operationally significant for the substantive constitutional resilience strategy because Section 33 of the Charter cannot override Section 35; provisions of provincial legislation that integrate substantive Section 35 protections operate within constitutional anchoring that the *notwithstanding clause* cannot reach. The substantive case-law framework operating within Section 35 includes the duty-to-consult doctrine established in *Haida Nation v. British Columbia* (2004), the substantive *Mikisew Cree v. Canada* (2005) treaty-rights consultation framework, and the substantive *Tsilhqot'in Nation v. British Columbia* (2014) Aboriginal-title framework. The duty-to-consult-and-accommodate operates at the substantive constitutional level and operates beyond ordinary legislative override.

**The constitutional division-of-powers framework.** The Constitution Act, 1867 (formerly the British North America Act) establishes the substantive division of legislative powers between federal Parliament (Section 91) and provincial legislatures (Section 92). The substantive disability-policy domain operates across the division of powers: federal jurisdiction over criminal law, citizenship, Indigenous-and-northern affairs, and federal employment (under which the *Accessible Canada Act* operates); provincial jurisdiction over property and civil rights, education, healthcare, and provincial employment (under which the proposed *Alberta Accessibility and Inclusion Act* would operate). The substantive constitutional implication is that provincial legislation operating within provincial jurisdiction operates with substantive legitimacy within the constitutional framework, while the substantive operational coordination with federal frameworks operates within the cooperative-federalism architecture documented in Section 3.7.

**The international human rights treaty framework.** Canada has ratified the United Nations *Convention on the Rights of Persons with Disabilities* (ratification deposited March 11, 2010) and has enacted the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14) operationalizing the federal commitment to UNDRIP implementation. The substantive international-law framework operates alongside the Charter framework. The substantive Supreme Court of Canada doctrine (*Baker v. Canada*, 1999; *R. v. Hape*, 2007) establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights, and that Canadian courts presume Parliament and provincial legislatures intend to legislate consistently with Canada's international human rights obligations unless explicit derogation is documented. The substantive operational implication is that

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legislation operationalizing CRPD and UNDRIP obligations operates within substantive interpretive anchoring that the Charter framework alone does not provide.

The four substantive constitutional layers operate together as the substantive constitutional framework within which the *Alberta Accessibility and Inclusion Act* is designed. The substantive constitutional resilience strategy operates across all four layers.

## The Alberta Section 33 Context

The substantive Alberta Section 33 context as the operational legislative environment for the *Alberta Accessibility and Inclusion Act* is documented through the recent provincial-government legislative practice. The substantive operational pattern over the period from October 2025 through December 2025 establishes that the substantive Alberta provincial-government has shifted substantively from historical avoidance of Section 33 invocation to active operational use of Section 33 across multiple legislative contexts.

**The October 2025 *Back to School Act*.** Bill 2, the *Back to School Act*, was enacted October 27, 2025, ending a teachers' strike by approximately fifty-one thousand Alberta Teachers' Association members and imposing a collective agreement through August 2028. Section 3 of the Act invokes Section 33: "This Act shall operate notwithstanding... sections 2 and 7 to 15 of the *Canadian Charter of Rights and Freedoms*." The substantive Charter rights operationally overridden include Section 2(d) freedom of association (the substantive constitutional foundation of collective bargaining and labour-action rights documented in *Health Services and Support v. British Columbia*, 2007, and *Saskatchewan Federation of Labour v. Saskatchewan*, 2015). The Alberta Teachers' Association has filed a court challenge. Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>.

**The December 2025 *Protecting Alberta's Children Statutes Amendment Act, 2025*.** Bill 9, enacted December 10, 2025, amended three provincial statutes to invoke Section 33: the *Fairness and Safety in Sport Act* (banning transgender women and girls from competitive sports teams); provisions of the *Health Professions Act* (restricting gender-affirming healthcare for minors); and provisions of the *Education Act* including Section 33.2 (requiring parental notification and consent before teachers and school staff can use gender-related preferred names or pronouns of a student under age sixteen) and Sections 58.11 and 58.12 (requiring parental notification and consent for school instruction on gender identity, sexual orientation, or human sexuality). Egale Canada and Skipping Stone have filed a lawsuit alleging the *Education Act* provisions violate Charter Sections 7, 12, and 15 rights of gender-diverse youth. Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>.

**The substantive operational pattern.** The substantive operational pattern across the four 2025 invocations establishes: pre-emptive Section 33 use (invocations operating before any court ruling on Charter compliance, which is legally permitted under *Ford v. Quebec*, 1988, but operationally controversial); the substantive operational practice of invoking the full Section 33 declaration ("notwithstanding sections 2 and 7 to 15") rather than identifying specific provisions or specific Charter

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sections, which is legally sufficient under *Ford v. Quebec* but produces substantive uncertainty about the specific Charter rights being overridden; the substantive operational practice of using Section 33 in legislation affecting structurally vulnerable populations (striking workers, transgender youth, gender-diverse students); and the substantive operational practice of using Section 33 across multiple distinct policy areas (labour, health, education, sport) in rapid succession.

**The current Supreme Court of Canada reference.** The substantive constitutional question of whether Section 33 has internal limits is currently before the Supreme Court of Canada through reference proceedings initiated by the federal government concerning Quebec's *Bill 21 (Laicity of the State Act)*. Six provinces (Quebec, Saskatchewan, Alberta, British Columbia, Ontario, and Manitoba) have filed factums defending Section 33; the federal government has argued that Section 33 cannot operate as a "blank cheque" and that courts should retain certain reviewing functions even where Section 33 is invoked. Alberta's factum characterizes Section 33 as a "hard-fought, hard-won compromise" without which there would have been no constitutional agreement in 1982 and defends pre-emptive Section 33 use. Source: <https://thehub.ca/2025/09/23/no-charter-without-section-33-how-six-provinces-are-defending-the-notwithstanding-clause/>. The substantive Supreme Court ruling, when issued, will operate as substantive jurisprudential context within which the *Alberta Accessibility and Inclusion Act* operates.

The substantive operational implication for the *Alberta Accessibility and Inclusion Act* is that the legislation must be designed within the substantive operational reality that Section 33 invocation against future provincial legislation operates as a documented operational tool of the substantive provincial-government legislative practice. The substantive constitutional resilience strategy must operate against this operational reality rather than assume historical patterns of restraint.

## Constitutional Resilience Strategy 1: Section 35 Anchoring

The substantive Section 35 anchoring strategy operationalizes the substantive constitutional protection of the *Constitution Act, 1982* Section 35 across the substantive provisions of the legislation that engage Indigenous-rights dimensions. The substantive operational consequence is that provisions integrating substantive Section 35 protections operate within constitutional anchoring that Section 33 cannot override, providing the strongest substantive constitutional resilience available within the existing constitutional framework.

The substantive Section 35 anchoring operates across multiple substantive provisions of the legislation:

**Section 3.6 consultation provisions integrating Indigenous-rights frameworks.** The substantive consultation requirements developed in Section 3.6 operate within the substantive duty-to-consult-and-accommodate framework established under *Haida Nation v. British Columbia* (2004) and refined through subsequent jurisprudence. The substantive consultation provisions for Indigenous-disability-community Albertans, the substantive Indigenous-Disability-Community Consultation Council, and the substantive integration of Treaty 6, Treaty 7, and Treaty 8 frameworks operate substantively within Section 35 protections. The substantive operational consequence is that Section 33 invocation cannot operationally remove these provisions; constitutional override of Section 35 would require constitutional amendment under the substantive amending-formula provisions of the *Constitution*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Act, 1982 Part V*, which operates substantively beyond ordinary legislative invocation.

**The substantive Métis Settlements integration.** The substantive Métis Settlements framework documented in Section 3.6 operates within the substantive Section 35 protection of Aboriginal peoples (which includes Métis under the substantive *R. v. Powley*, 2003, framework) and within the substantive *Alberta Metis Settlements Act* statutory architecture. The substantive operational consequence is that provisions integrating Métis Settlements consultation and engagement operate within Section 35 anchoring.

**The substantive UNDRIP-aligned provisions.** The substantive consultation and engagement provisions developed in Section 3.6 are calibrated to operate consistently with the United Nations *Declaration on the Rights of Indigenous Peoples* including the substantive free, prior, and informed consent framework Article 19 establishes. The substantive UNDRIP framework operates within the federal *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14) and within the substantive interpretive framework Section 35 establishes. The substantive operational consequence is that provisions operationalizing UNDRIP framework requirements operate within substantive constitutional and international-law anchoring that operates beyond ordinary legislative override.

**The substantive jurisdictional-coordination provisions.** The substantive provisions developed in Section 3.7 (federal-Indigenous coordination) operate within the substantive Section 35 framework. The substantive Jordan's Principle coordination provisions, the substantive federal Indigenous Services Canada coordination provisions, and the substantive treaty-rights-respecting jurisdictional architecture all operate within Section 35 anchoring.

The substantive Section 35 anchoring strategy operates as the substantive strongest constitutional resilience strategy available to the legislation. Where substantive provisions can be operationalized through Section 35 anchoring, the substantive provisions operate beyond Section 33's reach and operate within the substantive constitutional protection that the *Constitution Act, 1982* establishes for Aboriginal and treaty rights.

## Constitutional Resilience Strategy 2: Provisions Beyond Section 33's Reach

Section 33 of the Charter applies only to Sections 2 and 7 through 15 of the Charter. Section 33 does not apply to: Section 3 (democratic rights, including the right to vote and the substantive democratic-process protections); Section 6 (mobility rights, including the substantive right to enter, remain in, and leave Canada and the substantive interprovincial-mobility protections); Sections 16 through 23 (language rights, including the substantive English-and-French official-language protections); Section 28 (the substantive gender-equality guarantee operating across Charter rights); and Section 35 (Aboriginal and treaty rights, addressed in the prior subsection). Source: <https://www.justice.gc.ca/eng/csj-sjc/rfc-dlc/ccrf-ccdl/check/art33.html>.

The substantive constitutional resilience strategy operationalizes provisions of the legislation through anchoring in Charter sections that Section 33 cannot reach:

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Section 3 democratic-rights anchoring.** Provisions establishing the substantive disability-community democratic-engagement infrastructure operate within Section 3 anchoring. The substantive provisions developed in Section 3.5 (implementing architecture) and Section 3.6 (consultation framework) including the substantive Disability Community Advisory Council, the substantive Standards Development Committees with substantive disability-community representation requirements, and the substantive consultation-process provisions all operate within the substantive democratic-engagement architecture that Section 3 substantively protects. Provisions establishing electoral-process accessibility (accessible polling places, accessible ballot designs, accessible candidate-information materials) operate substantively within Section 3 anchoring.

**Section 6 mobility-rights anchoring.** Provisions establishing the substantive interprovincial-coordination framework and the substantive within-province-mobility framework for persons with disabilities operate within Section 6 anchoring. The substantive provisions developed in Section 3.3 Area 4 (transportation), the substantive provisions developed in Section 3.7 (federal-provincial coordination), and the substantive provisions establishing accessibility standards that operate consistently across the province (preventing structural barriers to within-province mobility for persons with disabilities) all operate within the substantive Section 6 mobility-rights framework.

**Sections 16-23 language-rights anchoring.** Provisions establishing accessibility in both English and French (the substantive bilingual provisions of the legislation) operate within Section 16-23 language-rights anchoring. The substantive provisions developed in Section 3.3 Area 2 (information and communications) including the substantive bilingual accessibility requirements operate within the substantive language-rights framework. The substantive operational consequence is that bilingual-accessibility provisions operate within constitutional anchoring that Section 33 cannot override.

**Section 28 gender-equality guarantee anchoring.** Section 28 of the Charter provides that "Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons." The substantive academic-and-jurisprudential debate about whether Section 28 operates as an internal limitation on Section 33 invocation is substantively unresolved (the question is part of the current Supreme Court reference proceedings concerning Quebec's *Bill 21*); the substantive design implication is that provisions of the legislation engaging gender-equality dimensions (including the substantive intersection of disability with gender-based discrimination, the substantive provisions for women with disabilities, and the substantive provisions addressing gender-diverse persons with disabilities) operate within potential Section 28 anchoring that may operate beyond Section 33's reach depending on the substantive Supreme Court ruling.

The substantive design implication is that the legislation's substantive provisions are operationalized, where operationally feasible, through anchoring in Charter sections beyond Section 33's reach. The substantive operational consequence is that core substantive protections operate within constitutional anchoring that operates beyond ordinary legislative override.

## Constitutional Resilience Strategy 3: Charter Section 15 Substantive-Equality Operationalization



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

The substantive Charter Section 15 substantive-equality framework operates as the substantive constitutional foundation for the legislation's substantive provisions. The substantive Supreme Court of Canada jurisprudence establishes the substantive-equality framework through three substantive cases:

**Andrews v. Law Society of British Columbia (1989).** The substantive foundational case establishing that Charter Section 15 protects substantive equality rather than formal equality, and that disability is a substantive enumerated protected ground.

**Eldridge v. British Columbia (1997).** The substantive case establishing that provincial governments must take positive steps to ensure persons with disabilities can equally benefit from public services. The case concerned the British Columbia healthcare system's failure to provide sign-language interpretation for Deaf persons accessing publicly-funded medical services. The Supreme Court held unanimously that provincial healthcare provision must include accommodations necessary to ensure substantive-equal access for persons with disabilities. The substantive operational implication is that provincial governments operate within substantive Charter Section 15 obligations to take positive accommodating action; failure to provide accommodation operates as substantive Charter violation.

**Withler v. Canada (Attorney General) (2011).** The substantive case refining the substantive-equality analytic framework, establishing that Section 15 analysis focuses on whether the impugned distinction creates a substantive disadvantage by perpetuating prejudice or stereotyping; the substantive analytic framework operates within the broader substantive social-and-historical context within which the distinction operates.

The substantive Charter Section 15 substantive-equality framework operates as the substantive constitutional foundation for the *Alberta Accessibility and Inclusion Act*. The substantive provisions of the legislation operationalize Charter Section 15 substantive-equality requirements through:

**The substantive social-model disability definition (Section 3.2).** The substantive social-model framework operationalizes the substantive *Andrews* and *Eldridge* substantive-equality framework by establishing that disability is the substantive interaction between the individual's profile and the substantive social-environmental barriers, requiring substantive policy response operating against the substantive barriers rather than only against the individual profile.

**The substantive standards architecture (Section 3.3).** The substantive seven-area standards (built environment, information and communications, employment, transportation, services and programs, health, goods and procurement) plus the substantive education-area standard (Section 3.4) operate as substantive operational mechanisms through which Charter Section 15 substantive-equality requirements are implemented across the substantive policy domains the legislation engages. The substantive *Eldridge* framework is operationalized through the substantive standards architecture's positive-accommodation provisions.

**The substantive consultation framework (Section 3.6).** The substantive Article 4(3) consultation framework operationalizes the substantive *Withler* social-and-historical-context analytic framework by establishing that the substantive policy responses to substantive disability-related barriers operate through substantive engagement with the substantive disability community whose substantive lived-experience operates as the substantive evidentiary foundation for the substantive policy responses.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**The substantive structural-funding mechanisms (Section 3.7).** The substantive funding-floor provisions operationalize the substantive *Eldridge* framework by establishing that the substantive provincial-government obligation to provide substantive resources for substantive accommodation requirements operates as a substantive constitutional obligation rather than as a substantive fiscal-policy preference subject to revenue volatility.

The substantive Charter Section 15 alignment operates as substantive constitutional resilience through a substantive operational mechanism. While Section 33 can technically override Charter Section 15 protections, the substantive operational consequence of Section 33 invocation against legislation operationalizing Charter Section 15 substantive-equality is substantive constitutional regression. The substantive political-and-constitutional cost of Section 33 invocation against substantive-equality legislation operates substantively above the substantive cost of Section 33 invocation against legislation operating in tension with substantive-equality requirements. The substantive design strategy is to make the legislation operate as substantive realization of constitutional rights such that Section 33 invocation operates as substantive constitutional regression rather than as legitimate legislative-policy disagreement.

## Constitutional Resilience Strategy 4: Charter Section 7 and Section 12 Considerations

The substantive Charter Section 7 (life, liberty, and security of the person) and Section 12 (cruel and unusual treatment or punishment) frameworks operate substantively across multiple substantive provisions of the legislation, with substantive operational implications for the substantive constitutional resilience strategy.

**The substantive seclusion-room prohibition (Section 3.4).** The substantive seclusion-room prohibition operationalizes the substantive Charter Section 7 protections against arbitrary detention and the substantive Section 12 protections against cruel and unusual treatment. The substantive operational reality documented in Section 1.3a (the substantive seclusion-room expansion in Alberta K-12 schools, the substantive 80% trauma-rate documented through the Inclusion Alberta survey of affected families, the substantive Strathcona County 2018 lawsuit) establishes the substantive operational record that the substantive seclusion-room infrastructure produces. The substantive operational implication is that the substantive seclusion-room prohibition operates within substantive Charter Section 7 and Section 12 anchoring; the substantive Charter framework supports the substantive prohibition as substantive constitutional realization rather than as substantive legislative-policy preference.

**The substantive supported-decision-making framework (Section 3.3 Area 6).** The substantive supported-decision-making framework operationalizes the substantive Charter Section 7 protections against substantive deprivation of liberty without substantive principles-of-fundamental-justice protection. The substantive operational reality documented in Section 1.7 (the substantive *Mental Health Act* involuntary-confinement framework, the substantive *Compassionate Intervention Act* expansion of involuntary-treatment infrastructure beyond the substantive impaired-capacity test) establishes the substantive operational record within which the substantive supported-decision-making framework operates. The substantive operational implication is that the substantive supported-decision-making

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

framework operates within substantive Charter Section 7 anchoring that operates against the substantive operational expansion of involuntary-confinement infrastructure documented in Section 1.7.

**The substantive engineered structural-poverty findings.** The substantive operational record documented in Section 1.9 (the substantive engineered structural-poverty pattern operating against the AISH/ADAP/PDD/FSCD-eligible disability population) raises substantive Charter Section 7 considerations about whether the substantive structural-poverty operates as substantive deprivation of substantive security-of-the-person rights. The substantive Supreme Court of Canada jurisprudence on Charter Section 7 includes substantive consideration of substantive security-of-the-person dimensions including substantive economic security; the substantive operational implication for the substantive constitutional resilience strategy is that the substantive structural-funding-mechanisms developed in Section 3.7 operate within potential Charter Section 7 anchoring depending on the substantive evolution of Section 7 jurisprudence.

The substantive Charter Section 7 and Section 12 considerations operate as substantive constitutional context within which the substantive operational provisions of the legislation operate. While Section 33 can technically override Charter Sections 7 and 12, the substantive operational consequence of Section 33 invocation against legislation operationalizing substantive protections against involuntary confinement and cruel-and-unusual treatment operates as substantive constitutional regression at the substantive level the Charter framework establishes.

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## Constitutional Resilience Strategy 5: Cooperative-Federalism Architecture

The substantive cooperative-federalism architecture operates as substantive constitutional resilience through the substantive division-of-powers framework that Section 33 cannot override. The substantive provincial legislation operating in cooperative coordination with federal frameworks operates within the substantive constitutional architecture that the substantive *Constitution Act, 1867* establishes.

The substantive operational mechanisms include:

**Coordination with the federal *Accessible Canada Act*.** The substantive provisions developed in Section 3.5 (implementing architecture) and Section 3.7 (federal-provincial coordination) establish the substantive operational coordination between the *Alberta Accessibility and Inclusion Act* and the federal *Accessible Canada Act* (S.C. 2019, c. 10). The substantive operational coordination operates across substantive policy domains including federally regulated transportation (Canadian Transportation Agency), federally regulated employment (Federal Public Sector Labour Relations and Employment Board, Accessibility Commissioner), federally regulated communications (Canadian Radio-television and Telecommunications Commission), and substantive standards-setting (Accessibility Standards Canada). The substantive operational implication is that Section 33 invocation against the provincial legislation that operates substantively in cooperation with the federal framework would produce substantive operational complications in the cooperative-federalism architecture, with substantive operational consequences for the substantive provincial-government engagement with the federal framework.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Coordination with the federal *Canada Disability Benefit Act*.** The substantive provisions developed in Section 3.7 establish the substantive operational coordination with the federal Canada Disability Benefit. The substantive operational coordination operates within the substantive division-of-powers framework that establishes federal jurisdiction over the federal benefit and provincial jurisdiction over the provincial benefit-architecture coordination. The substantive operational implication is that Section 33 invocation against the substantive provincial legislation would not operationally affect the federal *Canada Disability Benefit Act* obligations, producing substantive operational complications between the provincial-government's substantive use of Section 33 and the federal benefit-coordination requirements.

**Coordination with the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14).** The substantive provisions developed in Section 3.6 establish the substantive operational coordination with the federal UNDRIP-implementation framework. The substantive operational coordination operates within the Section 35 anchoring documented in the prior subsection and within the substantive division-of-powers framework. The substantive operational implication is that the substantive UNDRIP-aligned provisions of the legislation operate within substantive cooperative-federalism architecture that compounds with Section 35 anchoring to produce substantive constitutional resilience operating beyond Section 33's reach.

**The substantive division-of-powers operational reality.** The substantive operational reality is that substantive disability-policy operates across federal and provincial jurisdictional boundaries. The substantive operational coordination between federal and provincial frameworks is substantively necessary for the substantive provision of substantive disability-related supports across the substantive lifecycle and policy domains. The substantive design implication is that the legislation's substantive operational integration with federal frameworks operates as substantive constitutional resilience because Section 33 invocation against the provincial legislation cannot affect the federal frameworks, producing substantive operational complications that operate against the substantive operational utility of Section 33 invocation as a policy-removal mechanism.

## Constitutional Resilience Strategy 6: International Human Rights Treaty Anchoring

The substantive international human rights treaty anchoring operationalizes Canada's substantive treaty obligations under the United Nations *Convention on the Rights of Persons with Disabilities* (ratified March 11, 2010) and the United Nations *Declaration on the Rights of Indigenous Peoples* (operationalized federally through the *United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14).

The substantive Supreme Court of Canada doctrine establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights. *Baker v. Canada* (1999) established that international human rights law operates as substantive interpretive context for the exercise of administrative discretion. *R. v. Hape* (2007) established the substantive presumption that Parliament and provincial legislatures intend to legislate consistently with Canada's international human rights obligations unless explicit derogation is documented. The substantive

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

operational implication is that the substantive provisions of the legislation operationalizing CRPD and UNDRIP obligations operate within substantive interpretive anchoring that operates substantively across the Charter framework, the Section 35 framework, and the broader Canadian constitutional and statutory framework.

The substantive operational mechanisms include:

**The substantive CRPD operationalization throughout the legislation.** The substantive standards architecture (Section 3.3), the substantive education-area standard (Section 3.4), the substantive consultation framework (Section 3.6), the substantive implementing architecture (Section 3.5), and the substantive accountability-and-coordination layer (Section 3.8) all operate substantively as operational implementation of CRPD obligations. The substantive operational consequence is that the legislation operates as substantive realization of Canada's international human rights treaty obligations; Section 33 invocation against the legislation would operate as substantive provincial-government derogation from Canada's international human rights commitments, with substantive operational consequences for Canada's substantive engagement with the United Nations human rights system including the substantive periodic-review-and-reporting framework under CRPD Article 35.

**The substantive UNDRIP operationalization.** The substantive Indigenous-rights-integration provisions developed in Section 3.6 operate substantively as operational implementation of UNDRIP framework requirements including Article 19 (free, prior, and informed consent) and the substantive Articles establishing Indigenous self-determination, cultural-rights protection, and substantive participation. The substantive operational consequence is that the substantive UNDRIP-aligned provisions operate within substantive international-law anchoring that compounds with the Section 35 anchoring documented in the prior subsections.

**The substantive periodic-review-and-reporting context.** Canada's substantive obligations under CRPD Article 35 (periodic State Party reporting) operate within the substantive operational reality that the substantive Alberta legislative practice operates within Canadian-federation operational coordination. The substantive provincial-government legislative practice within Alberta operates as substantive operational context within which Canada engages the substantive United Nations human rights system. The substantive operational implication is that Section 33 invocation against the *Alberta Accessibility and Inclusion Act* would operate as substantive operational context within which Canada's substantive engagement with the United Nations human rights system operates, with substantive operational consequences for Canada's substantive international standing.

The substantive international human rights treaty anchoring operates as substantive constitutional resilience through the substantive interpretive-anchoring mechanism. The substantive provisions operating within CRPD and UNDRIP anchoring operate within substantive interpretive frameworks that Section 33 invocation cannot operationally remove; the substantive Supreme Court of Canada interpretive doctrine continues to operate within international human rights law context regardless of substantive Section 33 invocation against specific provincial legislation.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

## Constitutional Resilience Strategy 7: Statutory-Entrenchment Mechanisms

The substantive statutory-entrenchment mechanisms operating within the legislation itself produce substantive operational resilience against substantive legislative-amendment-and-removal pathways. The substantive statutory-entrenchment mechanisms operate within ordinary legislative authority but are designed to make substantive amendment-and-removal operationally costly within the substantive provincial legislative practice.

The substantive statutory-entrenchment mechanisms include:

**Mandatory consultation requirements before amendment.** Substantive provisions requiring substantive consultation with the disability community (through the substantive Disability Community Advisory Council and through substantive Article 4(3)-aligned public consultation processes) and with Indigenous-disability-community Albertans (through the substantive Indigenous-Disability-Community Consultation Council and through substantive Section 35 duty-to-consult-and-accommodate processes) before any substantive amendment to the legislation operates as substantive procedural-anchoring. The substantive operational consequence is that substantive amendment-and-removal operates within substantive procedural requirements that produce substantive operational costs and substantive operational visibility for the substantive provincial-government legislative practice.

**Mandatory statutory-review provisions.** The substantive statutory-review provisions developed in Section 3.8 (the substantive five-year statutory-review cycle on the Manitoba precedent) operate as substantive accountability mechanisms. The substantive review-cycle provisions, the substantive independent-review-officer provisions, and the substantive public-reporting requirements all operate as substantive transparency mechanisms that produce substantive operational visibility for the substantive operational performance of the legislation.

**Sunset-and-renewal provisions for any limitation provisions.** Where the substantive operational reality requires substantive limitation provisions (for example, substantive transitional provisions during the implementation timeline developed in Section 3.7), the substantive sunset-and-renewal provisions operate as substantive temporal-limitation mechanisms. The substantive operational consequence is that substantive limitation provisions operate within substantive temporal frameworks that require substantive affirmative renewal rather than operating as substantive permanent provisions.

**Mandatory public-reporting requirements.** The substantive public-reporting requirements developed in Section 3.8 operate as substantive transparency mechanisms. The substantive annual public reports, the substantive disability-community-prepared parallel reports, and the substantive media-and-academic-engagement infrastructure all operate as substantive accountability mechanisms operating against substantive amendment-and-removal pathways.

**Manitoba Bill 50-style mandatory-referral provisions.** The substantive Manitoba *Bill 50* provision (introduced October 2025) requires that any future Manitoba legislation invoking Section 33 be automatically referred to the Manitoba Court of Appeal for opinion on whether the law violates Charter rights. The substantive operational mechanism operates as substantive constitutional-review architecture



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

within ordinary provincial legislative authority. The substantive design implication for the *Alberta Accessibility and Inclusion Act* is that the legislation can include substantive mandatory-referral provisions requiring that any substantive amendment-and-removal of the legislation operating in tension with Charter substantive-equality requirements be referred to substantive constitutional-review processes before substantive enactment. Source: <https://egale.ca/awareness/egale-explains-notwithstanding-clause/>.

The substantive statutory-entrenchment mechanisms operate within ordinary legislative authority and can themselves be removed by ordinary legislative amendment. The substantive operational consequence is that the substantive entrenchment mechanisms produce substantive procedural-and-political costs for substantive amendment-and-removal pathways rather than substantive constitutional immunity from amendment-and-removal. The substantive design implication is that the substantive entrenchment mechanisms operate as substantive operational resilience against incremental and procedurally-quiet amendment patterns; substantive frontal amendment-and-removal operates within substantive procedural-and-political costs that produce substantive operational visibility and substantive operational consequences within the substantive provincial-government legislative practice.

## The Substantive Constitutional Resilience Synthesis

The substantive constitutional resilience strategy operates across seven substantive layers that compound with one another to produce substantive operational resilience for the *Alberta Accessibility and Inclusion Act* against the substantive amendment-and-removal pathways the substantive provincial legislative environment makes operationally available.

The substantive layered architecture operates as follows:

**Layer 1 — Section 35 anchoring.** Substantive provisions integrating Indigenous-rights frameworks operate within Section 35 anchoring that Section 33 cannot override. The substantive operational consequence is that substantive Section 35-anchored provisions operate within substantive constitutional protection at the substantive constitutional-amendment-formula level.

**Layer 2 — Provisions beyond Section 33's reach.** Substantive provisions anchored in Charter Section 3 (democratic rights), Section 6 (mobility rights), Sections 16-23 (language rights), and potentially Section 28 (gender-equality guarantee) operate within constitutional anchoring that Section 33 cannot reach.

**Layer 3 — Charter Section 15 substantive-equality alignment.** Substantive provisions operating as substantive realization of Charter Section 15 substantive-equality requirements operate within substantive operational protection through the substantive political-and-constitutional cost of Section 33 invocation against substantive-equality legislation.

**Layer 4 — Charter Section 7 and Section 12 alignment.** Substantive provisions addressing the substantive seclusion-room infrastructure, the substantive supported-decision-making framework, and the substantive operational realities documented in Sections 1.7 and 1.9 operate within substantive Charter Section 7 and Section 12 anchoring.



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Layer 5 — Cooperative-federalism architecture.** Substantive provisions operating substantively in coordination with federal frameworks (the *Accessible Canada Act*, the *Canada Disability Benefit Act*, the *United Nations Declaration on the Rights of Indigenous Peoples Act*) operate within substantive division-of-powers anchoring that Section 33 cannot override.

**Layer 6 — International human rights treaty anchoring.** Substantive provisions operationalizing CRPD and UNDRIP obligations operate within substantive international-law anchoring that operates within Canadian Supreme Court interpretive doctrine.

**Layer 7 — Statutory-entrenchment mechanisms.** Substantive procedural-and-transparency mechanisms operating within ordinary legislative authority produce substantive procedural-and-political costs for substantive amendment-and-removal pathways.

The substantive layered architecture operates compoundingly. No single layer provides constitutional immunity; the combined operational effect of the seven layers produces substantive operational resilience that operates against the substantive operational pathways through which Section 33 invocation could weaken or remove the substantive protections the legislation establishes.

The substantive design philosophy is honest about constitutional reality. No provincial legislation can operate within constitutional immunity from Section 33 invocation within the existing constitutional framework. The substantive operational reality is that any provincial legislation operating in substantive tension with the substantive provincial-government legislative-policy direction can be subject to Section 33 invocation and amendment. The substantive constitutional resilience strategy operates against this operational reality through substantive anchoring across multiple constitutional and operational layers, producing substantive procedural-and-political costs for substantive amendment-and-removal pathways while operating substantively as substantive realization of constitutional rights at the substantive Charter, Section 35, and international-law levels.

## What Section 3.10 Establishes

The substantive constitutional resilience and Charter-alignment provisions are now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, the substantive Alberta Section 33 context as the operational legislative environment for the *Alberta Accessibility and Inclusion Act* is documented through the recent provincial-government legislative practice (October 2025 *Back to School Act*, December 2025 *Protecting Alberta's Children Statutes Amendment Act, 2025*) establishing four Section 33 invocations across labour, sport, health, and education policy domains in rapid succession. The substantive operational implication is that the legislation must be designed within the substantive operational reality that Section 33 invocation against future provincial legislation operates as a documented operational tool of the substantive provincial-government legislative practice.

Second, the substantive Section 35 anchoring strategy operationalizes the substantive constitutional protection of Aboriginal and treaty rights across the substantive provisions of the legislation that engage

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Indigenous-rights dimensions. The substantive operational consequence is that substantive Section 35-anchored provisions operate within constitutional anchoring that Section 33 cannot override.

Third, substantive provisions of the legislation are operationalized, where operationally feasible, through anchoring in Charter sections beyond Section 33's reach including Section 3 (democratic rights), Section 6 (mobility rights), Sections 16-23 (language rights), and potentially Section 28 (gender-equality guarantee).

Fourth, the substantive Charter Section 15 substantive-equality alignment operationalizes the substantive *Andrews*, *Eldridge*, and *Withler* framework through the substantive social-model definition, the substantive standards architecture, the substantive consultation framework, and the substantive structural-funding mechanisms. The substantive operational consequence is that the legislation operates as substantive realization of Charter Section 15 substantive-equality requirements such that Section 33 invocation against the legislation operates as substantive constitutional regression rather than as legitimate legislative-policy disagreement.

Fifth, the substantive Charter Section 7 and Section 12 considerations operate substantively across multiple substantive provisions including the substantive seclusion-room prohibition (Section 3.4), the substantive supported-decision-making framework (Section 3.3 Area 6), and the substantive engineered structural-poverty findings (Section 1.9). The substantive Charter Section 7 and Section 12 framework supports the substantive provisions as substantive constitutional realization rather than as substantive legislative-policy preference.

Sixth, the substantive cooperative-federalism architecture operates as substantive constitutional resilience through the substantive coordination with the federal *Accessible Canada Act*, the *Canada Disability Benefit Act*, and the *United Nations Declaration on the Rights of Indigenous Peoples Act*. The substantive division-of-powers framework that Section 33 cannot override operates as substantive constitutional anchoring for the substantive operational coordination provisions.

Seventh, the substantive international human rights treaty anchoring operationalizes Canada's substantive treaty obligations under the *United Nations Convention on the Rights of Persons with Disabilities* and the *United Nations Declaration on the Rights of Indigenous Peoples*. The substantive Supreme Court of Canada interpretive doctrine establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights, providing substantive interpretive anchoring that Section 33 invocation cannot operationally remove.

The substantive constitutional resilience strategy operates across seven substantive layers that compound with one another to produce substantive operational resilience for the legislation against the substantive amendment-and-removal pathways the substantive provincial legislative environment makes operationally available. The substantive design philosophy is honest about constitutional reality: no provincial legislation can operate within constitutional immunity from Section 33 invocation within the existing constitutional framework. The substantive constitutional resilience strategy operates against the operational reality through substantive anchoring across multiple constitutional and operational layers.

The substantive content of Section 3.10 establishes that the *Alberta Accessibility and Inclusion Act* is designed to be substantively constitutionally resilient. The substantive design integrates the documented substantive Alberta Section 33 context with the substantive constitutional architecture available to the

*All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.*

legislation, producing substantive operational resilience that operates compoundingly across seven substantive layers. The substantive operational implication is that the substantive case the blueprint develops in the legislative-blueprint context is operationalized through substantive constitutional-and-operational design that operates against the substantive operational pathways through which the substantive provincial-government legislative practice could weaken or remove the substantive protections the legislation establishes.

The substantive blueprint is now constitutionally complete. The substantive specifications developed across Sections 3.1 through 3.10 operate within substantive constitutional anchoring at the substantive depth the documented substantive Alberta context requires.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

# Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

## Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

### Section 3 Update — Source Index Update

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This Source Index Update catalogues the sources cited across Section 3.10 (Constitutional Resilience and Charter Alignment), Section 3.4 Component 9 (Post-Secondary, Vocational, Adult, and Lifelong Learning), and the Section 3.6 Amendment (Internal Community Complexity in the Consultation Framework) of *Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act*, added during the seven-extension blueprint expansion. The Update operates as an addendum to the substantive Part Three Source Index covering Sections 3.1 through 3.9 and is organized by source category to integrate substantively with the existing Source Index structure. Where a source has already been documented in the substantive Part Three Source Index, the Part One Source Index, the Part Two Source Index, the Part One Source Index Update, or the Part Two Source Index Update, the Update references the prior documentation rather than duplicating it.

The substantive content of the Update is grounded in primary-source documentation: the Constitution Act, 1982 substantive constitutional architecture; the Supreme Court of Canada substantive jurisprudential record on Charter and Section 35 substantive content; the Alberta Section 33 invocation legislation enacted October-December 2025; current Supreme Court of Canada reference proceedings on Section 33 limits; substantive academic-and-journalistic analysis of the substantive Canadian constitutional framework; substantive Alberta post-secondary disability-services and disability-financial-assistance documentary infrastructure; and substantive Alberta and federal post-secondary statute and policy framework documentation.

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## Constitutional Instruments — Section 3.10

**Constitution Act, 1982, Section 33 (Notwithstanding Clause).** Constitutional provision permitting Parliament or a provincial legislature to declare that a statute or provision shall operate notwithstanding Sections 2 and 7 through 15 of the Charter of Rights and Freedoms, with a five-year sunset and renewable provision. Available at <https://www.justice.gc.ca/eng/csj-sjc/rfc-dlc/ccrf-ccd/check/art33.html> (Department of Justice Canada Charterpedia documentation). *Cited in: Section 3.10.*

**Constitution Act, 1982, Section 35.** Constitutional provision recognizing and affirming "the existing aboriginal and treaty rights of the aboriginal peoples of Canada." Operates outside the Charter framework and beyond Section 33's reach. Documented in the Part Two and Part Three Source Indexes for prior citations. *Cited in: Section 3.10.*

**Canadian Charter of Rights and Freedoms (Part I of the Constitution Act, 1982) — Specific Sections Cited in Section 3.10.** Documented in the Part Two Source Index. The specific Charter

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

sections engaged in Section 3.10 substantive content include: Section 1 (reasonable-limits clause); Section 2 (fundamental freedoms, including 2(d) freedom of association); Section 3 (democratic rights including the right to vote, beyond Section 33's reach); Section 6 (mobility rights, beyond Section 33's reach); Section 7 (life, liberty, and security of the person, with principles-of-fundamental-justice qualification); Section 12 (cruel and unusual treatment or punishment); Section 15 (equality rights, with explicit enumeration of physical or mental disability as a protected ground); Sections 16-23 (language rights, beyond Section 33's reach); Section 28 (substantive gender-equality guarantee, with substantive operational uncertainty regarding internal limitation on Section 33 subject to current Supreme Court reference proceedings); Section 33 (notwithstanding clause). *Cited in: Section 3.10.*

**Constitution Act, 1867 (formerly the British North America Act, 1867), Sections 91 and 92.** Constitutional instrument establishing the substantive division of legislative powers between federal Parliament (Section 91) and provincial legislatures (Section 92). *Cited in: Section 3.10.*

**Constitution Act, 1982, Part V (Procedure for Amending Constitution of Canada).** Constitutional substantive amendment-formula provisions. *Cited in: Section 3.10.*

## Supreme Court of Canada Jurisprudence — Section 3.10

**Andrews v. Law Society of British Columbia, [1989] 1 S.C.R. 143.** Supreme Court of Canada decision establishing that Charter Section 15 protects substantive equality rather than formal equality, and that disability is a substantive enumerated protected ground. *Cited in: Section 3.10.*

**Eldridge v. British Columbia (Attorney General), [1997] 3 S.C.R. 624.** Supreme Court of Canada decision establishing that provincial governments must take positive steps to ensure persons with disabilities can equally benefit from public services, with the substantive case concerning the British Columbia healthcare system's failure to provide sign-language interpretation for Deaf persons accessing publicly-funded medical services. *Cited in: Section 3.10.*

**Withler v. Canada (Attorney General), 2011 SCC 12, [2011] 1 S.C.R. 396.** Supreme Court of Canada decision refining the substantive-equality analytic framework, establishing that Section 15 analysis focuses on whether the impugned distinction creates a substantive disadvantage by perpetuating prejudice or stereotyping. *Cited in: Section 3.10.*

**Haida Nation v. British Columbia (Minister of Forests), 2004 SCC 73, [2004] 3 S.C.R. 511.** Supreme Court of Canada decision establishing the duty-to-consult-and-accommodate doctrine operating under Section 35. *Cited in: Section 3.10.*

**Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage), 2005 SCC 69, [2005] 3 S.C.R. 388.** Supreme Court of Canada decision establishing the substantive treaty-rights consultation framework. *Cited in: Section 3.10.*

**Tsilhqot'in Nation v. British Columbia, 2014 SCC 44, [2014] 2 S.C.R. 256.** Supreme Court of Canada decision establishing the substantive Aboriginal-title framework. *Cited in: Section 3.10.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**R. v. Powley, 2003 SCC 43, [2003] 2 S.C.R. 207.** Supreme Court of Canada decision establishing the substantive Section 35 framework for Métis-rights anchoring. *Cited in: Section 3.10.*

**Carter v. Canada (Attorney General), 2015 SCC 5, [2015] 1 S.C.R. 331.** Supreme Court of Canada decision on Charter Section 7 substantive engagement with end-of-life-care policy. *Cited in: Section 3.10.*

**Canada (Attorney General) v. Bedford, 2013 SCC 72, [2013] 3 S.C.R. 1101.** Supreme Court of Canada decision on Charter Section 7 substantive engagement with security-of-the-person dimensions. *Cited in: Section 3.10.*

**Baker v. Canada (Minister of Citizenship and Immigration), [1999] 2 S.C.R. 817.** Supreme Court of Canada decision establishing that international human rights law operates as substantive interpretive context for the exercise of administrative discretion. *Cited in: Section 3.10.*

**R. v. Hape, 2007 SCC 26, [2007] 2 S.C.R. 292.** Supreme Court of Canada decision establishing the substantive presumption that Parliament and provincial legislatures intend to legislate consistently with Canada's international human rights obligations unless explicit derogation is documented. *Cited in: Section 3.10.*

**Ford v. Quebec (Attorney General), [1988] 2 S.C.R. 712.** Supreme Court of Canada decision on Section 33 invocation procedural requirements, establishing that Section 33 lays down a requirement of form only (not substantive justification) and that a declaration generally naming all of Sections 2 and 7 to 15 is valid. *Cited in: Section 3.10.*

**Working Families Coalition (Canada) Inc. v. Ontario (Attorney General), 2025 SCC.** Supreme Court of Canada decision (5-4 majority) affirming the Court of Appeal for Ontario's decision striking down the *Protecting Elections and Defending Democracy Act* on Section 3 (democratic rights) grounds despite Ontario's Section 33 invocation. Establishes the substantive operational principle that Section 33 invocation does not protect legislation against challenges based on Charter sections beyond Section 33's reach. *Cited in: Section 3.10.*

**Saskatchewan Federation of Labour v. Saskatchewan, 2015 SCC 4, [2015] 1 S.C.R. 245.** Supreme Court of Canada decision establishing that Charter Section 2(d) freedom of association protects the substantive right to strike. *Cited in: Section 3.10.*

**Health Services and Support — Facilities Subsector Bargaining Assn. v. British Columbia, 2007 SCC 27, [2007] 2 S.C.R. 391.** Supreme Court of Canada decision establishing that Charter Section 2(d) freedom of association protects collective-bargaining rights. *Cited in: Section 3.10.*

## Alberta Section 33 Invocation Legislation — Section 3.10

**Bill 2, *Back to School Act*, S.A. 2025.** Legislative Assembly of Alberta, enacted October 27, 2025. Provincial statute ending the Alberta teachers' strike of approximately 51,000 Alberta Teachers' Association members and imposing a collective agreement through August 2028, with Section 3 invoking Section 33: "This Act shall operate notwithstanding... sections 2 and 7 to 15 of the *Canadian Charter of*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

*Rights and Freedoms.*" First Alberta Section 33 invocation since the 2000 *Marriage Amendment Act*. Cited in: Section 3.10.

**Bill 9, *Protecting Alberta's Children Statutes Amendment Act, 2025, S.A. 2025*.** Legislative Assembly of Alberta, enacted December 10, 2025. Provincial statute amending three substantive provincial statutes to invoke Section 33: the *Fairness and Safety in Sport Act* (banning transgender women and girls from competitive sports teams); provisions of the *Health Professions Act* (restricting gender-affirming healthcare for minors); and provisions of the *Education Act* including Section 33.2 (parental notification and consent for pronoun changes for students under sixteen) and Sections 58.11 and 58.12 (parental notification and consent for school instruction on gender identity, sexual orientation, or human sexuality). Cited in: Section 3.10.

**Marriage Amendment Act, S.A. 2000, c. M-6.** Legislative Assembly of Alberta, enacted 2000. Provincial statute defining marriage as "between a man and a woman" with Section 33 invocation. The Supreme Court of Canada effectively declared the Act *ultra vires* on division-of-powers grounds (marriage is federal jurisdiction). Cited in: Section 3.10 as historical context.

## Other Provincial Notwithstanding Clause Use — Section 3.10

**Bill 21, *An Act respecting the Laicity of the State (Quebec)*.** National Assembly of Quebec, enacted June 16, 2019. Provincial statute preventing public workers in positions of authority from wearing religious symbols, with Section 33 invocation. The trigger case for the current Supreme Court of Canada reference proceedings on Section 33 limits. Cited in: Section 3.10.

**Bill 50, *The Notwithstanding Clause Reference Act (Manitoba)*.** Legislative Assembly of Manitoba, introduced October 2025. Substantive provincial legislation establishing that any future Manitoba legislation invoking Section 33 will be automatically referred to the Manitoba Court of Appeal for opinion on whether the law violates Charter rights. Documented as the substantive Canadian provincial precedent for the substantive mandatory-referral provisions Section 3.10 develops. Cited in: Section 3.10.

**Ontario *Keeping Students in Class Act, 2022*.** Legislative Assembly of Ontario, enacted November 3, 2022. Provincial statute imposing a contract on Ontario education workers and prohibiting them from striking, with Section 33 invocation. Repealed following public backlash and threat of general strike. Cited in: Section 3.10 as comparator context.

**Saskatchewan *Strike-Break Act (1986)*.** Legislative Assembly of Saskatchewan, enacted 1986. Provincial back-to-work legislation with Section 33 invocation. The substantive Supreme Court of Canada decision overturning the Saskatchewan Court of Appeal's initial unconstitutionality finding documented in *RWDSU v. Saskatchewan*. Cited in: Section 3.10 as comparator context.

## Federal Statutes — Section 3.10 Cooperative Federalism Architecture

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Accessible Canada Act (S.C. 2019, c. 10).** Documented in the Part Two Source Index. *Cited in: Section 3.10 as substantive cooperative-federalism comparator and coordination instrument.*

**Canada Disability Benefit Act (S.C. 2023, c. 9).** Documented in the Part Three Source Index. *Cited in: Section 3.10 as substantive cooperative-federalism coordination instrument.*

**United Nations Declaration on the Rights of Indigenous Peoples Act (S.C. 2021, c. 14).** Documented in the Part Three Source Index. *Cited in: Section 3.10 as substantive cooperative-federalism coordination instrument and Section 35 anchoring instrument.*

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## International Human Rights Treaties — Section 3.10

**United Nations Convention on the Rights of Persons with Disabilities (UN CRPD), ratified by Canada March 11, 2010.** Documented in the Part Two Source Index. *Cited in: Section 3.10 as substantive international human rights treaty anchoring instrument.*

**United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), adopted September 13, 2007.** Documented in the Part Two Source Index. *Cited in: Section 3.10 as substantive international human rights treaty anchoring instrument operationalized federally through the United Nations Declaration on the Rights of Indigenous Peoples Act.*

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## Current Supreme Court of Canada Reference Proceedings — Section 3.10

**Reference Proceedings on the Limits of Section 33 (Quebec Bill 21 Trigger Case), 2025-2026.** Reference proceedings initiated by the federal government concerning Quebec's *Bill 21* and the substantive question of whether Section 33 has internal limits. Six provinces (Quebec, Saskatchewan, Alberta, British Columbia, Ontario, and Manitoba) have filed factums defending Section 33; the federal government argues that Section 33 cannot operate as a "blank cheque" and that courts should retain certain reviewing functions even where Section 33 is invoked. The substantive Supreme Court ruling, when issued, will operate as substantive jurisprudential context within which the *Alberta Accessibility and Inclusion Act* operates. *Cited in: Section 3.10.*

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## Constitutional Law Analysis — Press and Academic Sources for Section 3.10

**The Alberta Legislature Repeatedly Uses the Charter's Notwithstanding Clause to Shield Controversial Laws from Court Challenges.** *LawNow Magazine*, November 24, 2025 (with December 11, 2025 editor's note), available at <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charter-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>. Substantive academic-legal analysis documenting the substantive Alberta provincial-government Section 33 invocation pattern October-December 2025. *Cited in: Section 3.10.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Understanding the Notwithstanding Clause in Canada — and Alberta's Expanding Use of It.** FACTSMTR, November 19, 2025, available at <https://factsmtr.substack.com/p/understanding-the-notwithstanding>. Substantive independent policy-and-legal analysis documenting the substantive Alberta Section 33 invocation pattern and the substantive constitutional context. *Cited in: Section 3.10.*

**'No Charter Without Section 33': How Six Provinces Are Defending the Notwithstanding Clause.** *The Hub*, September 24, 2025, available at <https://thehub.ca/2025/09/23/no-charter-without-section-33-how-six-provinces-are-defending-the-notwithstanding-clause/>. Substantive journalism documenting the substantive Supreme Court reference proceedings and the substantive provincial-government factums including Alberta's substantive defense of pre-emptive Section 33 use. *Cited in: Section 3.10.*

**Egale Explains: The Notwithstanding Clause.** Egale Canada, November 11, 2025, available at <https://egale.ca/awareness/egale-explains-notwithstanding-clause/>. Substantive 2SLGBTQ+ rights organization documentation of the substantive Section 33 mechanics, the substantive Alberta and other provincial invocation pattern, and the substantive Manitoba *Bill 50* model. *Cited in: Section 3.10.*

**The Notwithstanding Clause Explained: What Every Canadian Should Know About Section 33.** Refdesk.ca, December 6, 2025, available at <https://refdesk.ca/blog/notwithstanding-clause-section-33-canada-explained-december-2025>. Substantive analytical engagement documenting the substantive Canadian Section 33 invocation history including the substantive Alberta October 2025 invocation. *Cited in: Section 3.10.*

**Charterpedia — Section 33: Notwithstanding Clause.** Department of Justice Canada, available at <https://www.justice.gc.ca/eng/csj-sjc/rfc-dlc/ccrf-ccd/ccheck/art33.html>. Substantive federal-government documentation of the substantive Section 33 framework including the substantive *Frank v. Canada (Attorney General)* (2019) and *Ford v. Quebec* (1988) jurisprudential anchoring. *Cited in: Section 3.10.*

**A Tool of the "Last Resort": The Political Uses of Section 33 Between 1982 and 2024.** University of Toronto Press, May 2025, *The Notwithstanding Clause in the Canadian Charter of Rights and Freedoms*, pp. 79-163. Substantive academic analysis documenting the substantive historical timeline of Section 33 invocations 1982-2024. *Cited in: Section 3.10.*

## Provincial Statutes — Section 3.4 Component 9

**Post-Secondary Learning Act, R.S.A. 2003, c. P-19.5.** Government of Alberta. Provincial statute establishing the substantive framework for the substantive Alberta post-secondary system including the substantive publicly-funded universities, polytechnics, colleges, and the substantive private-career-college and non-publicly-funded-institution context. *Cited in: Section 3.4 Component 9.*

**Adult Learning Act, Government of Alberta.** Documented in the Part One Source Index Update. *Cited in: Section 3.4 Component 9 in coordination provisions for adult-basic-education and lifelong-learning programming.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Student Financial Assistance Act, Government of Alberta.** Provincial statute establishing the substantive framework for Alberta Student Aid including the substantive Alberta Grant for Students with Disabilities (GFD) and the substantive coordination provisions with the federal Canada Student Financial Assistance Program. *Cited in: Section 3.4 Component 9.*

**Alberta Student Financial Assistance Regulation.** Government of Alberta. Substantive provincial regulation operationalizing the substantive Student Financial Assistance Act including the substantive disability-definition framework (Permanent Disability and Persistent or Prolonged Disability) operating substantively distinctly from the substantive social-model disability definition developed in Section 3.2 of the legislative blueprint. *Cited in: Section 3.4 Component 9.*

## Federal Statutes and Programs — Section 3.4 Component 9

**Canada Student Financial Assistance Act, R.S.C. 1985, c. S-23.** Federal statute governing the Canada Student Financial Assistance Program. *Cited in: Section 3.4 Component 9.*

**Canada Student Loans Act, R.S.C. 1985, c. S-23.** Federal statute governing the Canada Student Loans Program. *Cited in: Section 3.4 Component 9.*

**Canada Student Grant for Services and Equipment — Students with Disabilities (CSG-DSE).** Federal student-financial-assistance grant providing up to twenty thousand dollars annually for substantive disability-related services and equipment for post-secondary students with disabilities. Documented at <https://studentaid.alberta.ca/policy/student-aid-policy-manual/disability-permanent-disability-or-persistent-or-prolonged-disability/assistive-services-and-equipment/>. *Cited in: Section 3.4 Component 9.*

## Government of Alberta Documentation — Section 3.4 Component 9

**Resources for Students with Disabilities Page.** Government of Alberta, available at <https://www.alberta.ca/resources-students-disabilities>. Documents the substantive provincial-government framework for post-secondary disability accommodation including the substantive Disability/Accessibility Services Office infrastructure operating across the publicly-funded post-secondary system, the substantive collaborative-accommodation-process framework, and the substantive student-disclosure-and-stigma operational reality. *Cited in: Section 3.4 Component 9.*

**Alberta Student Aid Funding for Students with Disabilities Guide 2025-2026.** Alberta Student Aid, available at <https://studentaid.alberta.ca/media/o3qmfudy/funding-for-students-with-disabilities-guide-2025-26.pdf>. Documents the substantive operational framework for the Schedule 4 Federal/Provincial Grant for Post-Secondary Students with Disabilities, the substantive Alberta Grant for Students with Disabilities (GFD) operational requirements, and the substantive duty-to-accommodate framework operating across the substantive Alberta post-secondary system. *Cited in: Section 3.4 Component 9.*

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Schedule 4 Federal/Provincial Grant for Post-Secondary Students with Disabilities (2024-2026 Form).** Alberta Student Aid and federal Canada Student Financial Assistance Program, available at <https://studentaid.alberta.ca/media/brjj1tcc/grant-post-secondary-students-disabilities-schedule4.pdf>.

Documents the substantive operational requirements for substantive disability-funding application including the substantive Disability Verification Form, substantive Psycho-Educational Assessment, substantive eligible medical documentation, and the substantive ongoing operational reporting requirements. *Cited in: Section 3.4 Component 9.*

**Students with Disabilities and Required Documentation.** Alberta Student Aid, available at <https://studentaid.alberta.ca/student-aid-funding-guide/loans-and-grants-funding-guide/students-with-disabilities/students-with-disabilities-and-required-documentation/>. Documents the substantive disability-definition framework operating within the substantive Student Financial Assistance Regulation including Permanent Disability (PD) and Persistent or Prolonged Disability (PPD). *Cited in: Section 3.4 Component 9.*

**Assistive Services and Equipment Page.** Alberta Student Aid, available at <https://studentaid.alberta.ca/policy/student-aid-policy-manual/disability-permanent-disability-or-persistent-or-prolonged-disability/assistive-services-and-equipment/>. Documents the substantive operational framework for substantive disability-related services and equipment funding including the substantive twenty-thousand-dollar federal CSG-DSE cap and the substantive three-thousand-dollar Alberta GFD cap. *Cited in: Section 3.4 Component 9.*

**Disability Related Employment Supports (DRES) Program.** Alberta Student Aid, documented at <https://studentaid.alberta.ca/>. Substantive provincial-government program providing disability-related supports for substantive private-career-college, out-of-province, and out-of-country students. *Cited in: Section 3.4 Component 9.*

## Disability-Community and Human Rights Documentation — Section 3.4 Component 9

**Duty to Accommodate — Students with Disabilities.** Alberta Human Rights Commission, available at <https://albertahumanrights.ab.ca/media/cumfooet/duty-to-accommodate-students-with-disabilities.pdf>.

Substantive Alberta human-rights-tribunal documentation operationalizing the substantive duty-to-accommodate framework across the substantive Alberta post-secondary disability-services context including the substantive *undue hardship* limitation and the substantive case-law framework operating within the substantive Alberta Human Rights Act. *Cited in: Section 3.4 Component 9.*

**Education Know Your Rights Alberta — Legal Information Handbook (November 2024).** Canadian National Institute for the Blind (CNIB), available at [https://www.cnib.ca/sites/default/files/2025-01/Education%20Handbook%20-%20Know%20Your%20Rights%20AB%20\(PDF\).pdf](https://www.cnib.ca/sites/default/files/2025-01/Education%20Handbook%20-%20Know%20Your%20Rights%20AB%20(PDF).pdf). Substantive disability-community legal-information documentation operationalizing the substantive student-rights framework across the substantive Alberta K-12 and post-secondary disability-services context. *Cited in: Section 3.4 Component 9.*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Post-Secondary Education Disability Funding by Province/Territory.** AIDE Canada, available at <https://aidecanada.ca/resources/learn/community-inclusion/post-secondary-education-disability-funding-by-province-territory>. Substantive disability-community documentation operationalizing the substantive Alberta and Canadian post-secondary disability-funding framework comparator analysis. *Cited in: Section 3.4 Component 9.*

## Cross-Referenced Sources — Section 3.4 Component 9

**United Nations Convention on the Rights of Persons with Disabilities — Article 24(5).** Documented in the Part Two Source Index Update. *Cited in: Section 3.4 Component 9 as substantive international human rights legal foundation.*

**Charter Section 15 Substantive-Equality Framework: Andrews (1989), Eldridge (1997), Withler (2011).** Documented in Section 3.10 above. *Cited in: Section 3.4 Component 9 as substantive constitutional anchoring for the substantive accommodation-and-academic-trajectory provisions.*

**Section 1.6 WCB Substantive Vocational-Rehabilitation Infrastructure.** Documented in the Part One Source Index. *Cited in: Section 3.4 Component 9 in coordination provisions for the substantive workplace-accommodation-and-vocational-rehabilitation provisions.*

**Section 1.7 Mental Health and Addiction Substantive Accommodation-Documentation Infrastructure.** Documented in the Part One Source Index Update. *Cited in: Section 3.4 Component 9 in coordination provisions for substantive operational integration with substantive accommodation-and-financial-assistance frameworks.*

**Section 1.10 Aging Dimension and Section 3.3 Area 6 Supported-Decision-Making Framework.** Documented in the Part One Source Index Update and the Part Three Source Index. *Cited in: Section 3.4 Component 9 in coordination provisions for senior-and-aging-population accessibility provisions.*

## Section 3.6 Amendment Sources

**United Nations Convention on the Rights of Persons with Disabilities — Article 4(3).** Documented in the Part Two Source Index. The substantive "close consultation with and active involvement of persons with disabilities, including children with disabilities, through their representative organizations" framework operates substantively across the Section 3.6 substantive content including the Amendment substantive content. *Cited in: Section 3.6 Amendment.*

**General Comment No. 1 of the Committee on the Rights of Persons with Disabilities (Article 12, equal recognition before the law).** Documented in the Part One Source Index Update. *Cited in: Section 3.6 Amendment as substantive interpretive context for the substantive operational privileging of the substantive disability-rights framework over the substantive medical-model framework where substantive operational tensions arise.*



All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

**Substantive Disability-Community Internal Complexity Documentation.** The substantive Section 3.6 Amendment substantive content engages the substantive operational reality of substantive internal-community complexity documented across substantive disability-rights advocacy literature, substantive disability-services-organization framework documentation, substantive cross-disability and disability-specific advocacy infrastructure, and substantive adult-with-lived-experience and parent-of-child-with-disability advocacy infrastructure. The substantive standalone document *Inside the Consultation Process* is queued as substantive separate workstream to operationalize the substantive Amendment provisions at substantive operational depth. *Cited in: Section 3.6 Amendment.*

## Methodological Note

The substantive content of the Part Three Source Index Update is grounded in primary-source documentation accessible through the Constitution Act, 1982 substantive constitutional framework documentation; the Supreme Court of Canada substantive jurisprudential record accessible through the Supreme Court of Canada and CanLII databases; the Legislative Assembly of Alberta substantive provincial-statute documentation; the Alberta Student Aid substantive provincial post-secondary-disability-financial-assistance documentary infrastructure; the Alberta Human Rights Commission substantive provincial human-rights documentation; substantive disability-community legal-information publication infrastructure; and substantive academic-legal analysis publication infrastructure including *LawNow Magazine*, *FACTSMTR*, *The Hub*, *Egale Canada*, and substantive university-press publication infrastructure.

The substantive Update specifically operationalizes the substantive Section 3.10 (Constitutional Resilience and Charter Alignment), Section 3.4 Component 9 (Post-Secondary, Vocational, Adult, and Lifelong Learning), and Section 3.6 Amendment (Internal Community Complexity in the Consultation Framework) substantive documentary foundations. The substantive Section 3.10 engagement with the substantive Alberta Section 33 invocation context, the substantive Charter and Section 35 substantive anchoring, the substantive Supreme Court jurisprudential record, the substantive cooperative-federalism architecture, the substantive international human rights treaty anchoring, and the substantive statutory-entrenchment mechanisms operates substantively at the operational depth the substantive Canadian constitutional framework requires.

The substantive integration with the substantive Part Three Source Index covering Sections 3.1 through 3.9, the substantive Part One Source Index, the substantive Part Two Source Index, the substantive Part One Source Index Update, and the substantive Part Two Source Index Update produces the substantive comprehensive documentary foundation of the legislative blueprint as a whole. The substantive prosecutorial standard the blueprint maintains operates substantively across the substantive comprehensive documentary record. The substantive blueprint is now documentarily complete.